

AN ORDINANCE REPEALING ADA COUNTY CODE TITLE 8, ENTITLED THE ADA COUNTY ZONING ORDINANCE, IN ITS ENTIRETY AND ENACTING A NEW ADA COUNTY CODE TITLE 8, TO BE KNOWN AS THE ADA COUNTY ZONING ORDINANCE; PROVIDING FOR GENERAL PROVISIONS INCLUDING THE PURPOSE, SCOPE, AUTHORITY, APPLICABILITY, RESOLVING CONFLICTING PROVISIONS, MINIMUM REQUIREMENTS, AN ENACTMENT DATE AND A SEVERABILITY AND SAVINGS CLAUSE; PROVIDING FOR THE ESTABLISHMENT AND REGULATION OF BASE ZONING DISTRICTS, PLANNED COMMUNITY STANDARDS, ESTABLISHMENT OF A ZONING MAP, DEVELOPMENT AND DIMENSIONAL STANDARDS, PERMITTED USES IN ZONING DISTRICTS, ESTABLISHMENT AND REGULATION OF OVERLAY DISTRICTS; PROVIDING FOR DEVELOPMENT STANDARDS FOR ACCESS, BUILDING DESIGN, INFRASTRUCTURE, FENCING, LANDSCAPING, SCREENING, OPEN SPACE PARKING, PRIVATE ROADS AND SIGNS FOR USES IN BASE AND OVERLAY ZONING DISTRICTS; PROVIDING FOR ADDITIONAL USE STANDARDS FOR SPECIFIC LISTED USES; PROVIDING FOR STANDARDS FOR SUBDIVISIONS OF PROPERTY; PROVIDING REGULATIONS FOR PROCESSING VARIOUS ZONING APPLICATIONS INCLUDING PREAPPLICATION AND NEIGHBORHOOD MEETINGS, PUBLIC NOTICE AND HEARING REQUIREMENTS; PROVIDING FOR RULES FOR NONCONFORMING PROPERTY AND/OR STRUCTURES; PROVIDING FOR ADMINISTRATION OF THE ZONING ORDINANCE BY THE COUNTY; PROVIDING FOR RULES OF INTERPRETATION OF THE ZONING ORDINANCE AND DEFINITIONS OF ZONING ORDINANCE TERMS; PROVIDING THE ESTABLISHMENT AND REGULATION OF PLANNED COMMUNITY SUBAREA DEVELOPMENT; PROVIDING FOR THE RECODIFICATION OF THE REGULATIONS FOR THE PLANNED COMMUNITIES OF AVIMOR, CARTWRIGHT RANCH, DRY CREEK RANCH; AND HIDDEN SPRINGS; PROVIDING FOR ENFORCEMENT OF VIOLATIONS OF THE ZONING ORDINANCE TO BE A MISDEMEANOR PUNISHABLE BY IMPRISONMENT NOT EXCEEDING SIX MONTHS OR BY A FINE NOT EXCEEDING \$1,000 OR BY BOTH IMPRISONMENT AND FINE.

BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF ADA COUNTY, IDAHO, THAT ADA COUNTY CODE TITLE 8, IS REPEALED IN ITS ENTIRETY AND A NEW ADA COUNTY CODE TITLE 8, IS ENACTED TO BE KNOWN AS THE ADA COUNTY ZONING ORDINANCE AS FOLLOWS:

ADA COUNTY ZONING ORDINANCE

CHAPTER 1

GENERAL PROVISIONS

SECTION:

- 8-1-1: TITLE
- 8-1-2: PURPOSE
- 8-1-3: SCOPE
- 8-1-4: AUTHORITY

- 8-1-5: APPLICABILITY
- 8-1-6: CONFLICTING PROVISIONS
- 8-1-7: MINIMUM REQUIREMENTS
- 8-1-8: ENACTMENT, EFFECTIVE DATE, AND REPEAL
- 8-1-9: SEVERABILITY AND SAVINGS CLAUSE

8-1-1: Title

- A. This Title is known and cited as the Ada County Zoning Ordinance. The Ada County Zoning Ordinance is published by authority of the Board of Commissioners and kept up to date as provided in Section 1-1-3 of the County Code.
- B. Within this document, the Ada County Zoning Ordinance is referred to as "this Title" or the "Zoning Ordinance."

8-1-2: Purpose

- A. This Chapter establishes the zoning regulations for Ada County, Idaho. This Title:
 - 1. Fulfills the intent and purposes of the "Local Land Use Planning Act," Idaho Code Section 67-6501 et seq., as amended.
 - 2. Implements the policies of the applicable Comprehensive Plans by classifying and regulating the uses of property and structures within the unincorporated areas of Ada County.
 - 3. Establishes zoning districts within Ada County that comply with the adopted Comprehensive Plans in conformance with Idaho Code Section 67-6511.
 - 4. Provides standards for the orderly growth and development of Ada County. As required by Idaho Code Section 67-6511, these standards include those regulating:
 - a. The height, number of stories, size, construction, reconstruction, alteration, repair, or location of structures;
 - b. Percentage of coverage, size of required yards, and density of residential dwellings; and
 - c. The use of structures and property.
- B. Ensures appropriate use of properties.
- C. Protects property rights and enhances property values.
- D. Provides a method of administration and prescribes penalties for the violations of regulations authorized by the Constitution and laws of the State of Idaho.

8-1-3: Scope

- A. This Title consists of the most recently adopted and amended zoning text, official zoning maps, and subdivision regulations. Copies are available for review at the Ada County Development Services Department. This Title and all its terms are to be read and interpreted with consideration to the designations of the official zoning maps (see Section 8-2-4).
- B. This Title applies to any of the following in the unincorporated areas of Ada County:

1. The height, number of stories, size, construction, reconstruction, alteration, repair or use of buildings and structures;
2. The percentage of lot occupancy, size of courts, yards, and open spaces;
3. The density of population;
4. The location and use of buildings and structures;
5. Any subdivision; and
6. Standards for building or development.

8-1-4: Authority

A. This Title is adopted pursuant to:

1. Article 12, Section 2 of the Idaho Constitution (local police regulations).
2. Idaho Code Title 67, Chapter 65 (Local Land Use Planning Act).
3. Idaho Code Title 50, Chapter 13 (Plats and Vacations).

8-1-5: Applicability

A. **Compliance and Approval Required.** No person or public agency shall construct, alter, move, or change the use of a structure or undertake any development or changes to the property unless:

1. Such action complies with this Title.
2. Any required approval is obtained as provided by Chapter 6 of this Title and any applicable conditions of approval are met.

B. **Permits Required.** Nothing in this Title eliminates the need to obtain any other required permits, including:

1. Building permits, plumbing, electrical, or mechanical permits, or
2. Any permit or entitlement required by other titles of the County Code, other political subdivisions of the state of Idaho, or agencies of the state of Idaho.

C. **Unincorporated County Properties.** All properties in unincorporated Ada County shall comply with this Title unless otherwise preempted by federal statute, state law, or local ordinance.

D. **Previous Violations.** The violations that occurred under previous land use regulations and that remain a violation under this Title will continue until resolved.

E. **Project With Pending Application.** All applications shall be processed and reviewed according to the ordinances and comprehensive plans in effect when the application is submitted.

F. **Approved Projects Not Yet Completed.** Any approved application may be completed as provided by the approval.

8-1-6: Conflicting Provisions

A. If there is conflict between the text and the maps of this Title, the maps prevail.

- B.** If conflicts occur between different regulations of this Title, or between this Title and other regulations of County Code, the most restrictive regulation applies. If there is a conflict between the Idaho Code and the County Code, the Idaho Code shall prevail.
- C.** It is not intended that this Title interfere with, abrogate, or annul any easements, covenants, or other agreements between parties. However, where this Title imposes a greater restriction upon the use of structures or premises or upon the height of structures or requires larger space than is imposed or required by ordinances, rules, or regulations, or by easements, covenants, or agreements, the regulations of this Title govern.

8-1-7: Minimum Requirements. When interpreting and applying the regulations of this Title, all regulations are minimum requirements, unless stated otherwise. Proposed uses shall comply with all applicable regulations and standards unless specifically exempt elsewhere in this Title.

8-1-8: Enactment, Effective Date and Repeal. Upon the date of publication of this Title, this Title repeals and replaces all previous zoning ordinances.

8-1-9: Severability and Savings Clause. Should any section, clause, or regulation of this Title be declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of this Title, or any part thereof, other than the part so declared to be invalid; each section, clause, or regulation hereof being declared severable.

CHAPTER 2

ZONING DISTRICTS

SECTION:

- 8-2-1: PURPOSE
- 8-2-2: DISTRICT STRUCTURE
- 8-2-3: DISTRICTS ESTABLISHED
- 8-2-4: ZONING MAP
- 8-2-5: RURAL PRESERVATION (RP)
- 8-2-6: RURAL RESIDENTIAL (RR)
- 8-2-7: RURAL URBAN TRANSITION (RUT)
- 8-2-8: SOUTHWEST COMMUNITY RESIDENTIAL (RSW)
- 8-2-9: ESTATE RESIDENTIAL (R1)
- 8-2-10: LOW DENSITY RESIDENTIAL (R2)
- 8-2-11: MEDIUM LOW DENSITY RESIDENTIAL (R4)
- 8-2-12: MEDIUM DENSITY RESIDENTIAL (R6)
- 8-2-13: MEDIUM HIGH DENSITY RESIDENTIAL (R8)
- 8-2-14: HIGH DENSITY RESIDENTIAL (R12)
- 8-2-15: VERY HIGH DENSITY RESIDENTIAL (R20)
- 8-2-16: LIMITED OFFICE (LO)
- 8-2-17: NEIGHBORHOOD COMMERCIAL (C1)
- 8-2-18: COMMUNITY COMMERCIAL (C2)
- 8-2-19: LIGHT INDUSTRIAL (M1)
- 8-2-20: GENERAL INDUSTRIAL (M2)
- 8-2-21: AIRPORT INDUSTRIAL (M3)
- 8-2-22: PLANNED COMMUNITY (PC)

- 8-2-23: USE TABLE
- 8-2-24: BOISE AIR TERMINAL AIRPORT INFLUENCE AREAS (BAT) OVERLAY DISTRICT
- 8-2-25: WILDLAND-URBAN INTERFACE (WUI) OVERLAY DISTRICT
- 8-2-26: SOUTHWEST PLANNING AREA (SPA) OVERLAY DISTRICT
- 8-2-27: AREA OF MILITARY INFLUENCE (AMI) OVERLAY DISTRICT
- 8-2-28: FLOOD HAZARD (FH) OVERLAY DISTRICT
- 8-2-29: BOISE RIVER GREENWAY (BRG) OVERLAY DISTRICT
- 8-2-30: HILLSIDE (HS) OVERLAY DISTRICT

8-2-1: Purpose. This Chapter establishes zoning districts and sets out permitted and conditional uses in each zoning district. The zoning districts are shown on the Zoning Map (see Section 8-2-4 [Zoning Map]).

8-2-2: District Structure

- A. Applicability.** The use, erection, alteration, or relocation of any building, or a change in use or alteration of land, shall comply with the regulations for the zoning district where that building, or land is located.
- B. Permitted and Conditional Uses.** Section 8-2-23 of this Chapter (*Use Table*) establishes uses which are permitted, specially authorized, and prohibited in each zoning district.
- C. Dimensional Standards.** Each zoning district includes dimensional standards, including density, setback, and building height. These are defined in Chapter 10 of this Title and summarized below:

Table 8-2-2-1 Summary / Description of Dimensional Standards

Note: See Chapter 10 for definitions of the terms below.

Density and Development

Density Density is expressed as gross density (see Chapter 10) unless otherwise indicated. Although maximum densities are listed, they are not guaranteed and are determined based on a variety of factors. Permitted densities may or may not be achievable on every lot in a given district due to specific site constraints of particular parcels or lots.

Lot Area This is a minimum (in square feet or acreage) for the entire lot where a lot area standard applies.

Lot Coverage This is the maximum percentage (in square feet or acreage) of the lot covered by all improvements where a lot coverage standard applies.

Lot Depth This is a minimum (in feet) for the entire lot where a lot depth standard applies.

Lot Width This is a minimum (in feet) for the entire lot where a lot width standard applies.

Building Area This is expressed as the maximum per building, in gross floor area (gfa). The building area is determined using the methodology established in the Ada County Building Code.

Building Height	Building height shall be measured as the vertical distance from the average contact ground level at the front wall of a building to the highest point of the coping of a flat roof, the deck line of a mansard roof, or the average height of the highest gable of a pitch or hip roof.
Common Open or Civic Space	These are open or civic space requirements calibrated to the district's character.
Setbacks	<i>Note: Chapter 3 explains the relationship between setbacks and related standards such as landscaping and buffers.</i>
Front Setback	The minimum required distance between the front property line and nearest structure.
Side Street Setback	The minimum required distance between the side street property line and nearest structure.
Interior Side Setback	The minimum required distance between the side property line and nearest structure.
Rear Setback	The minimum required distance between the rear property line and nearest structure.

8-2-3: Districts Established

A. Generally. Table 8-2-3-1 (Zoning Districts):

1. Establishes the zoning districts for the County;
2. Associates the districts to the future land use designations from the Ada County Comprehensive Plan that each district implements; and
3. Translates the former zoning districts from the zoning districts in the predecessor Base District Regulations and Overlay Districts to the new zoning districts in this Title.

Table 8-2-3-1 Zoning Districts

Base Districts	
Rural	Rural Preservation (RP)
	Rural Residential (RR)
Transitional	Rural Urban Transition (RUT)
	Southwest Community Residential (RSW)
Residential	Estate Residential (R1)
	Low Density Residential (R2)
	Medium Low Density Residential (R4)
	Medium Density Residential (R6)
	Medium High Density Residential (R8)
	High Density Residential (R12)
	Very High Density Residential (R20)
Commercial	Limited Office (LO)
	Neighborhood Commercial (C1)
	Community Commercial (C2)

Base Districts	
Industrial	Light Industrial (M1)
	General Industrial (M2)
	Airport Industrial (M3)
Planned Communities	Planned Communities (PC)
Overlay Districts	
Boise Air Terminal Airport Influence Areas (BAT)	
Wildland – Urban Fire Interface (WUI)	
Southwest Planning Area (SPA)	
Area of Military Influence (AMI)	
Flood Hazard (FH)	
Boise River Greenway (BRG)	
Hillside (HS)	

8-2-4: Zoning Map

- A. **Zoning Map Adopted.** Zoning districts are shown on the map entitled "Zoning Map" of the County of Ada. An official copy of the map is on file and available for inspection during regular business hours at the Development Services Office.
- B. **Force and Effect.** The Zoning Map, together with all legends, references, symbols, boundaries, and other information, is part of, and has the same force of law, as the text of this Title.
- C. **Status of the Zoning Map.** The Zoning Map controls if there is a conflict between the Zoning Map that is on file and any other paper or digital reproduction of the Zoning Map.
 1. **Base Zoning Districts.** All property within the County has an associated base zoning district. A base zoning district applies a uniform set of standards, including:
 - a. Permitted, conditional, and prohibited uses;
 - b. Development standards; and
 - c. Use regulations.
- D. **Overlay Districts.** Overlay districts apply only to certain areas within the jurisdiction of this Title, as shown on the Zoning Map. They establish additional standards that supplement the base districts.
- E. **Interpreting the Zoning Map.** Refer to Section 8-10-1 of this Title (General Rules of Interpretation) for criteria and procedures for interpreting the boundaries depicted on the Zoning Map.

8-2-5: Rural Preservation (RP)

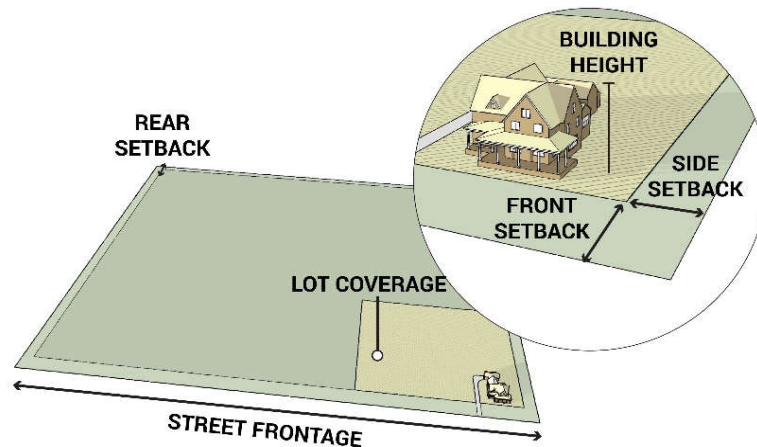
- A. **Purpose.** The Rural Preservation (RP) District promotes the public health, safety, and welfare of the people of Ada County by encouraging the protection of prime agricultural lands; ensures the important environmental features of the state and Ada County are protected and enhanced; and protects fish, wildlife, and recreation resources, consistent with the purposes of the "Local Land Use Planning Act," Idaho Code Section 67-6501 et seq., by:

1. Implementing the Ada County Comprehensive Plan goal to protect prime agricultural land and to maximize opportunities for agricultural activities and an agricultural lifestyle in areas designated as rural areas on the Comprehensive Plan Future Land Use Map;
2. Allowing the development of agricultural industries and agriculture service establishments when such uses do not take prime agricultural land out of crop production;
3. Protecting agricultural and rangeland uses and wildlife management areas from undue adverse impacts from adjacent development;
4. Permitting the development of schools, churches, and other public and quasi-public uses in rural areas consistent with the applicable Comprehensive Plan;
5. Directing more intense development to occur within the residential, transitional, commercial, and industrial base districts, as defined in Table 8-2-3-1, and the planned community base district; and
6. Accommodating the continued use of agricultural lands, rangelands, and wildlife management areas, within the Boise front foothills (in areas designated as the foothills planning area in the Boise City Comprehensive Plan and the Ada County Comprehensive Plan).
7. Limiting development of hazardous areas, including, but not limited to, fault lines, landslides, subsidence, shallow soils, steep slopes, unstable slopes, flooding, and seeps, and allow a limited number of uses with significant space requirements or buffering needs on non-prime agricultural lands.

B. Development and Dimensional Standards

1. All development shall be in accord with the regulations in Chapter 3 of this Title.
2. Institutional uses (including church, group day care facility, portable classroom, public or quasi-public use, and school, public or private) which are proposed within rural base districts, shall be permitted an increase of the maximum coverage from ten percent (10%) to twenty-five percent (25%).
3. Stable or riding arena, commercial, which is proposed within rural base districts, shall be permitted an increase of the maximum coverage from ten percent (10%) to twenty-five percent (25%).

Table 8-2-5-1 Rural Preservation (RP) Dimensional Standards



Density and Development		Base	Rural Residence
1	Lot Size (acreage)	40 (min)	1 (min), 2.5 (max)
2	Building Height (max feet)	35'	35'
3	Lot Coverage (max percentage)	10%	20%
4	Street Frontage (min feet)	100'	100'
Setbacks		Base	Rural Residence
5	Front Yard Setback (min-feet)		
	Arterial, collector, or section line street	50'	50'
	Other roadway	30'	30'
	Property line not fronting a roadway (for rural residences, side property line setback of 10' is allowed adjacent to other rural residences)	25'	25'
6	Side Setback (min)	25'	25'
7	Rear Setback (min)	25'	25'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted unit per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2 1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

D. Farm Development Rights

- 1. Purpose.** This regulation allows owners of a qualifying property in the Rural Preservation (RP) District to create one residential parcel for conveyance.
- 2. Applicability.** This subsection applies to any property that meets all of the following criteria:
 - a. The property is within the Rural Preservation (RP) District;
 - b. The property is at least forty (40) acres of contiguous land; and

- c. The property was of record in the Ada County Recorder's office as of January 1, 1985 (hereinafter referred to as the "property of record"), the boundaries of which shall not have changed except as the result of a governmental action. (See Section 8-3-2M of this Title.)

3. Development Rights

- a. The property of record is entitled to a maximum of one farm development right.
- b. For the purposes of this Title, parcels approved prior to the effective date of this Title, subject to the one-acre lot regulations or one acre parcel regulations, are considered farm development rights.
- c. If the qualifying property is decreased below the minimum property size as a result of granting the farm development rights, the remainder of the qualifying property is still considered a conforming property.

4. Process

- a. **Application:** Applications shall be submitted on forms provided by the Development Services Department as set forth in Section 8-6-5 of this Title.
- b. **Tentative Approval; Requirements:** Upon tentative approval by the Director subject to Section 8-6-6 of this Title, the following tasks shall be completed within one year:
 - 1. Cause the property to be surveyed. Before recording, submit to the Director draft copies of the record of survey and resultant parcel descriptions for review;
 - 2. Record the record of survey and the necessary executed deeds with the Ada County Recorder to accomplish the farm development right parcel as approved;
 - 3. Obtain new tax parcel numbers from the Ada County Assessor; and
 - 4. Provide copies of the recorded record of survey, recorded deeds, and the new tax parcel numbers to the Director.
- c. **Issuance of Approval Letter:** The Director shall determine if all conditions of approval have been met and that the farm development right parcel conforms with this Section before final approval letter is issued.

5. Standards

- a. The farm development right parcel shall meet the dimensional standards for a rural residence as established by Table 8-2-5-1 of this Section.
- b. Access and frontage shall be as required by Section 8-3-3 of this Title.
- c. If the qualifying property has more than one permanent dwelling, the farm development right parcel shall contain one of the extra dwellings. This standard does not apply to temporary living quarters.
- d. The proposed farm development right division shall maximize to the greatest extent possible the preservation of prime agricultural soils.
- e. The farm development right parcel shall be located on the portion of the property that causes the least disruption of agriculture on the remainder of the qualifying

property while still meeting the standards of this Section.

6. Required Findings. The Director shall make the following findings to approve, or approve with conditions, the farm development right:

- a. The proposed farm development right meets the applicability requirements of subsection D.2 of this Section; and
- b. The proposed farm development right complies with standards of subsection D.5 of this Section.

8-2-6: Rural Residential (RR)

A. Purpose. The Rural Residential (RR) District promotes the public health, safety, and welfare of the people of Ada County by encouraging the protection of prime agricultural lands; ensuring the important environmental features of the state and Ada County are protected and enhanced; and protecting fish, wildlife, and recreation resources, consistent with the purposes of the "Local Land Use Planning Act," Idaho Code Section 67-6501 et seq., by:

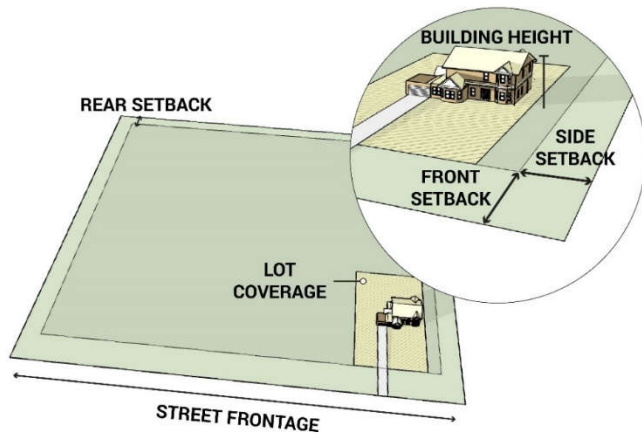
1. Implementing the Ada County Comprehensive Plan goal to protect prime agricultural land and to maximize opportunities for agricultural activities and an agricultural lifestyle in areas designated as rural areas on the Comprehensive Plan Future Land Use Map;
2. Allowing the development of agricultural industries and agriculture service establishments when such uses do not take prime agricultural land out of crop production;
3. Protecting agricultural and rangeland uses and wildlife management areas from undue adverse impacts from adjacent development;
4. Permitting the development of schools, churches, and other public and quasi-public uses in rural areas consistent with the applicable Comprehensive Plan;
5. Directing more intense development to occur within residential, transitional, commercial, and industrial base districts, as defined in Table 8-2-3-1, and the planned community base district; and
6. Permitting low density residential uses that would provide a rural lifestyle, and that do not require excessive expansion of public services.

B. Development and Dimensional Standards

1. All development shall be in accord with the regulations in Chapter 3 of this Title.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

Table 8-2-6-1 Rural Residential (RR) Dimensional Standards



Density and Development		Base	Rural Residence
1	Lot Size (acreage)	10	1 (min), 2.5 (max)
2	Building Height (max feet)	35'	35'
3	Lot Coverage (max percentage)	10%	20%
4	Street Frontage (min feet)	100'	100'
Setbacks		Base	Rural Residence
5	Front Yard Setback (min-feet)		
	Arterial, collector, or section line street	50'	50'
	Other roadway	30'	30'
	Property line not fronting a roadway (for rural residences, side property line setback of 10' is allowed adjacent to other rural residences)	25'	25'
6	Side Street Setback (min)	30'	25'
7	Interior Side Setback (min)	25'	25'
8	Rear Setback (min)	25'	25'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted unit per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

8-2-7: Rural Urban Transition (RUT)

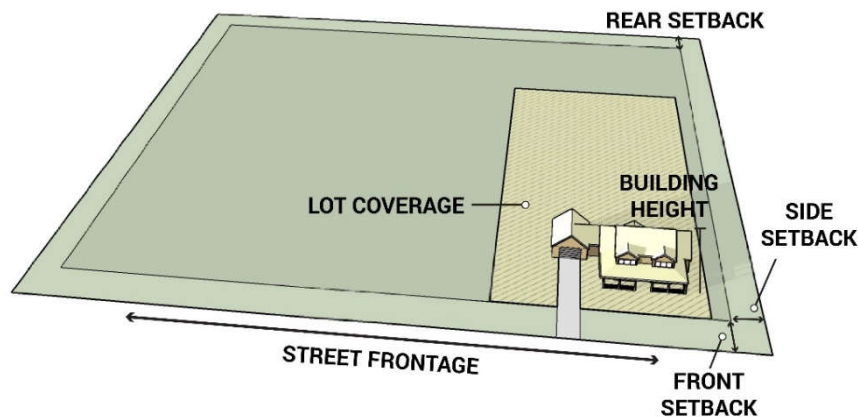
A. Purpose. The Rural Urban Transition (RUT) District promotes the public health, safety, and welfare of Ada County by accommodating single-family residential and limited agricultural, commercial, and industrial uses within areas of city impact (ACIs). Although low density development mostly characterizes this district, redevelopment should accommodate higher density development when urban public facilities are extended. This district provides development patterns to achieve the desired Rural Urban Transition by:

1. Providing standards and regulations for the development of property within areas of city impact, consistent with the goals and policies of the applicable city Comprehensive Plan;

2. Allowing agriculture and rural residential uses to continue within areas of city impact until urban public facilities are extended;
3. Providing standards and regulations that shall permit redevelopment of property to higher densities when urban public facilities are extended; and
4. Limiting new agricultural uses within the areas of city impact to those that shall not significantly impact nearby urbanizing areas with noise, odor, dust, or other nuisances normally related to more intensive farm uses, such as livestock confinement facilities with three hundred one (301) or more animal units. This Title, however, shall in no way preclude the continued use of properties within these areas for agriculture.

B. Development and Dimensional Standards

Table 8-2-7-1 Rural Urban Transition (RUT) Dimensional Standards



Density and Development		Base	Rural Residence
1	Lot Size (<i>min</i>)	5 acres	1 acre (<i>min</i>) to 2.5 acres (<i>max</i>)
2	Lot Coverage (<i>max</i>)	20%	20%
3	Building Height (<i>max</i>)	35'	35'
4	Street Frontage (<i>min</i>)	250'	100'
Setbacks		Base	Rural Residence
5	Front Setback (<i>min</i>)		
	Arterial or Collector Street	30'	30'
	Local street or private road (for rural residences, side property line setback of 10' is allowed adjacent to other rural residences)	25'	25'
	If providing alley access, a side loaded garage, or rear garage (<i>min</i>)	25'	20'
6	Interior Side Setback	25'	15'
7	Rear Setback (<i>min</i>)	25'	25'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

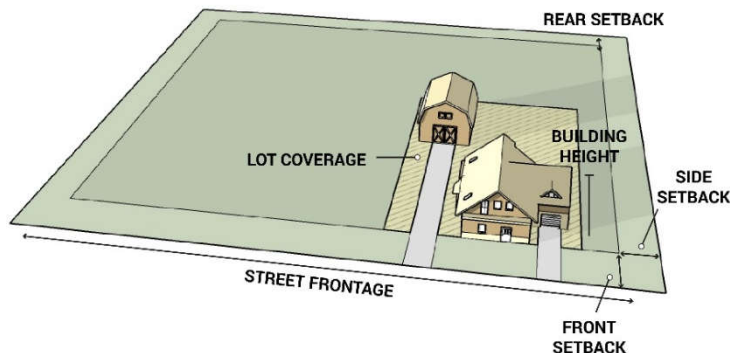
8-2-8: Southwest Community Residential (RSW)

A. Purpose. The Southwest Community Residential (RSW) District promotes the public health, safety, and welfare of Ada County by accommodating single-family residential and limited agricultural uses within the Southwest Planning Area. Although low density development mostly characterizes this district, redevelopment should accommodate higher density development when urban public facilities are extended. This district provides conventional and cluster development patterns to achieve the appropriate Southwest Community Residential characteristics by:

1. Implementing the Boise City Comprehensive Plan for the Southwest Planning Area. After the effective date of this Title, rezones to designate additional land "southwest community residential" shall not be approved;
2. Allowing agriculture and rural residential uses to continue within areas of city impact until urban public facilities are extended.

B. Development and Dimensional Standards

Table 8-2-8-1 Southwest Community Residential (RSW) Dimensional Standards



Density and Development		Base	Rural Residence
1	Lot Size (<i>min</i>)	2.5 acres	1 acre (<i>min</i>) to 2.5 acres (<i>max</i>)
2	Lot Coverage (<i>max</i>)	20%	20%
3	Building Height (<i>max</i>)	35'	35'
4	Street Frontage (<i>min</i>)	250'	100'
Setbacks		Base	Rural Residence
5	Front Setback (<i>min</i>)		
	Arterial or Collector Street	30'	30'
	Local street or private road (for rural residences, side property line setback of 10' is allowed adjacent to other rural residences)	25'	25'
	Front Setback if providing alley access, a side loaded garage, or rear garage (<i>min</i>)	25'	20'
6	Interior Side Setback	25'	15'
7	Rear Setback (<i>min</i>)	25'	25'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

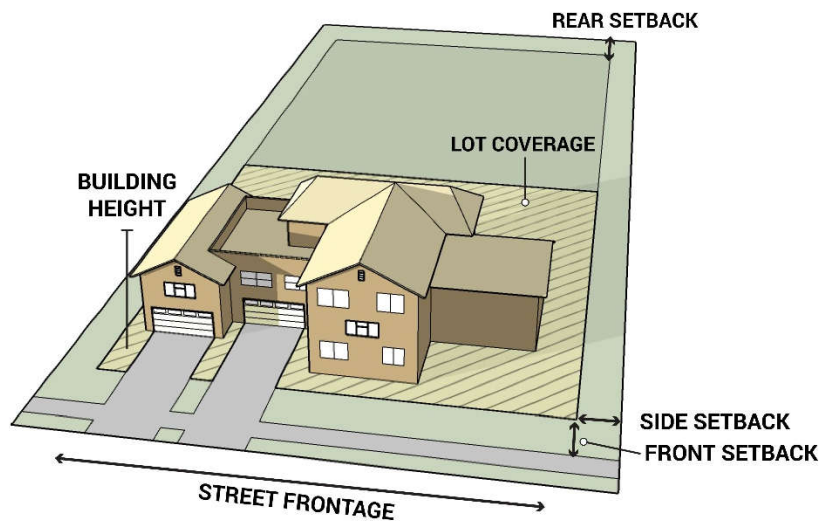
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-9: Estate Residential (R1)

A. Purpose. The Estate Residential (R1) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. This district primarily includes single-family detached residences developed at densities lower than typically found in urban and suburban areas.

B. Development and Dimensional Standards

Table 8-2-9-1 Estate Residential (R1) Dimensional Standards



Density and Development		
1	Lot Size (<i>min</i>)	1 acre
2	Lot Coverage (<i>max</i>)	35%
3	Building Height (<i>max</i>)	35'
4	Street Frontage	100'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	30'
	Local street or private road	25'
	If providing alley access, a side loaded garage, or rear garage (<i>min</i>)	20'
6	Interior Side Setback (<i>min</i>)	10'
7	Side Setback from Local Street or Private Road (<i>min</i> ; if vehicle access is restricted on the local street or private road, a setback of 15' is permitted)	20'
8	Rear Setback (<i>min</i>)	20'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

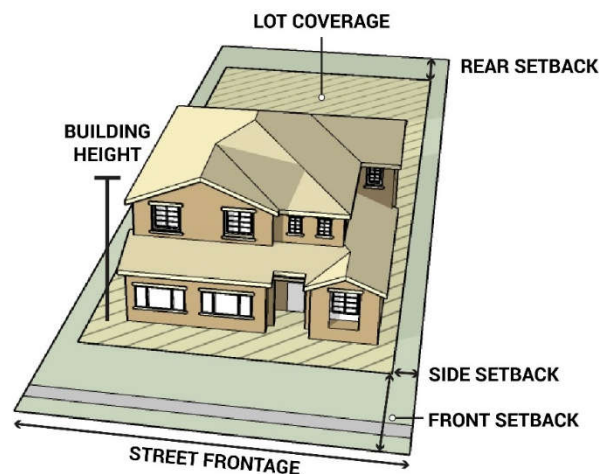
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-10: Low Density Residential (R2)

A. Purpose. The Low Density Residential (R2) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. This district primarily accommodates single-family and low intensity multi-family residences developed outside of commercial areas.

B. Development and Dimensional Standards

Table 8-2-10-1 Low Density Residential (R2) Dimensional Standards



Density and Development		
1	Lot Size (<i>min</i>)	16,000 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	35'
4	Street Frontage	75'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	30'
	Local street or private road	25'
	If providing alley access, a side loaded garage, or rear garage (<i>min</i>)	20'
6	Interior Side Setback (<i>min</i>)	5'
7	Side Setback from Local Street or Private Road (<i>min</i> ; if vehicle access is restricted on the local street or private road, a setback of 15' is permitted)	20'
8	Rear Setback (<i>min</i>)	20'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

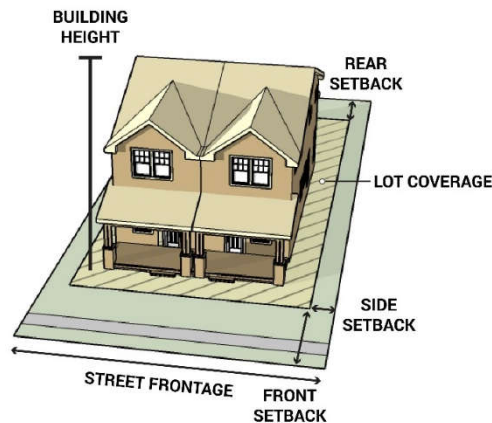
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-11: Medium Low Density Residential (R4)

A. Purpose. The Medium Low Density Residential (R4) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. This district primarily accommodates single-family and low intensity multi-family residences developed outside of commercial areas.

B. Development and Dimensional Standards

Table 8-2-11-1 Medium Low Density Residential (R4) Dimensional Standards



Density and Development		
1	Lot Size (<i>min</i>)	8,000 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	35'
4	Street Frontage	60'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	20'
	Local street or private road	20'
	If providing alley access, a side loaded garage, or rear garage (<i>min</i>)	15'
6	Interior Side Setback (<i>min</i>)	5'
7	Side Setback from Local Street or Private Road	15'
8	Rear Setback (<i>min</i>)	15'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

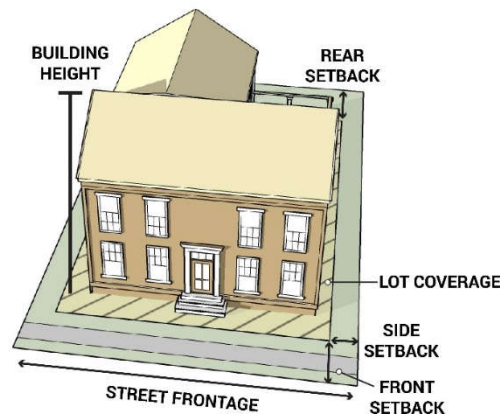
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-12: Medium Density Residential (R6)

A. Purpose. The Medium Density Residential (R6) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. The Medium Density Residential (R6) District primarily accommodates single-family detached and attached residences, duplexes, zero lot line homes, and townhomes. A limited degree of multi-unit houses may be developed with moderate density adjacent to commercial uses. This district provides housing diversity at appropriate scales for a suburban context.

B. Development and Dimensional Standards

Table 8-2-12-1 Medium Density Residential (R6) Dimensional Standards



Density and Development		
1	Lot Size per dwelling unit (<i>min</i>)	6,000 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	35'
4	Street Frontage (<i>min</i>)	60'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	20'
	Local street or private road	20'
6	Front Setback if providing alley access, a side loaded garage, or rear garage (<i>min</i>)	10'
7	Interior Side Setback (<i>min</i>)	5'
8	Side Setback from Local Street or Private Road	15'
9	Rear Setback (<i>min</i>)	15'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

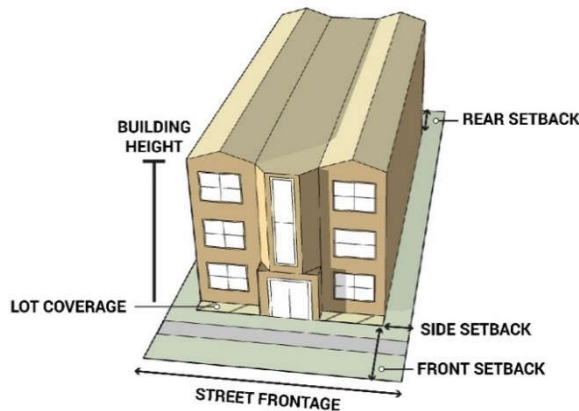
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-13: Medium High Density Residential (R8)

A. Purpose. The Medium High Density Residential (R8) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. The Medium High Density Residential (R8) District primarily accommodates single-family detached and attached residences, duplexes, zero lot line homes, and townhomes. A limited degree of multi-family residences may be developed with moderate density adjacent to commercial uses. This district provides housing diversity at appropriate scales for a suburban context.

B. Development and Dimensional Standards

Table 8-2-13-1 Medium Density Residential (R8) Dimensional Standards



Density and Development		
1	Lot Size per dwelling unit (<i>min</i>)	5,000 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	35'
4	Street Frontage	45'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	20'
	Local street or private road	20'
6	Front Setback if providing alley access, a side loaded garage, or rear garage (<i>min</i>)	10'
7	Interior Side Setback (<i>min</i>)	5'
8	Side Setback from Local Street or Private Road	15'
9	Rear Setback (<i>min</i>)	15'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

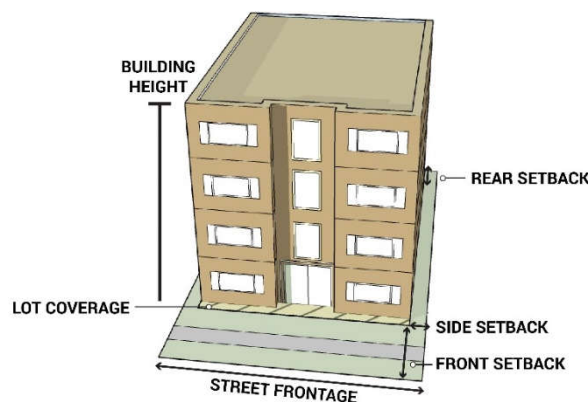
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-14: High Density Residential (R12)

A. Purpose. The High Density Residential (R12) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. The High Density Residential (R12) District accommodates a mixture of housing types from single-family attached to multi-family dwellings and is higher in density. This district is designed to be located along arterial streets, near transit locations, and within proximity to activity centers where residents can enjoy a mix of supporting uses. This district provides housing diversity at appropriate scales within the County's residential development context.

B. Development and Dimensional Standards

Table 8-2-14-1 High Density Residential (R12) Dimensional Standards



Density and Development		
1	Lot Size per dwelling unit (<i>min</i>)	3,500 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	40'
4	Street Frontage	45'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	20'
	Local street or private road	15'
6	Front Setback if providing alley access, a side loaded garage, or rear garage (<i>min</i>)	10'
7	Interior Side Setback (<i>min</i>)	3'
8	Side Setback from Local Street or Private Road	10'
9	Rear Setback (<i>min</i>)	10'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

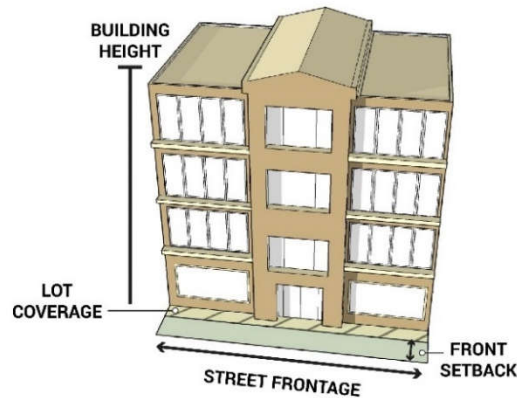
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-15: Very High Density Residential (R20)

A. Purpose. The Very High Density Residential (R20) District promotes the public health, safety, and welfare of Ada County by implementing the applicable comprehensive plans within areas of city impact. Residential development shall be based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation. The Very High Density Residential (R20) District accommodates a mixture of housing types from single-family attached to multi-family dwellings and is the highest density district. This district is designed to be located along arterial streets, near transit locations, and within proximity to activity centers where residents can enjoy a mix of supporting uses. This district provides housing diversity at appropriate scales within the County's residential development context.

B. Development and Dimensional Standards

Table 8-2-15-1 Very High Density Residential (R20) Dimensional Standards



Density and Development		
1	Lot Size (<i>min</i>)	2,000 sf
2	Lot Coverage (<i>max</i>)	N/A
3	Building Height (<i>max</i>)	40'
4	Street Frontage	45'
Setbacks		
5	Front Setback (<i>min</i>)	
	Arterial or Collector Street	20'
	Local street or private road	15'
6	Front Setback if providing alley access, a side loaded garage, or rear garage (<i>min</i>)	5'
7	Interior Side Setback (<i>min</i>)	0'
8	Side Setback from Local Street or Private Road	5'
9	Rear Setback (<i>min</i>)	10'

NOTES: Only one dwelling unit is allowed per parcel, except that one Secondary Dwelling Unit, one Additional Farm Dwelling, one Caretaker Dwelling, or one Temporary Living Quarters is allowed in addition to the principally permitted use per Table 8-2-23-2. Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types, such as Secondary Dwelling Units.

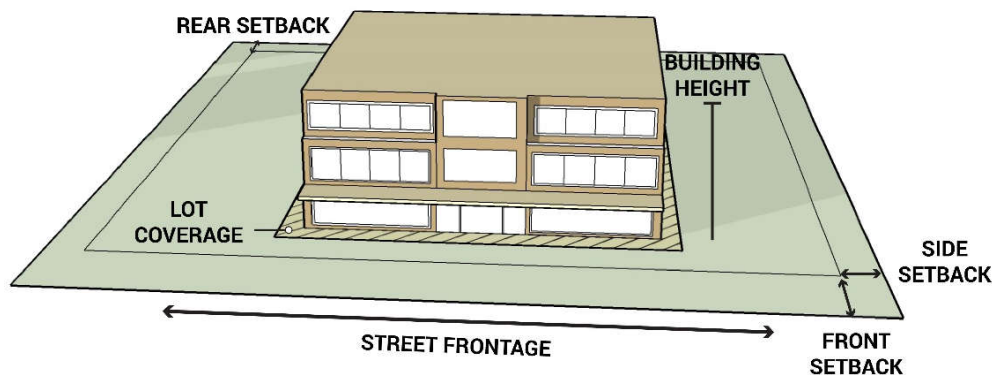
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-16: Limited Office (LO)

A. Purpose. The Limited Office (LO) District promotes the public health, safety, and welfare of Ada County by encouraging commercial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The Limited Office (LO) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed commercial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. This district provides administrative, professional, medical, and business office uses that complement the surrounding residential areas, accommodates the limited sale of convenience goods and personal services for daily living needs of the immediate neighborhood, limits larger developments to arterial streets away from intersections or gateway locations, and allows for limited housing options such as multi-family dwellings.

B. Development and Dimensional Standards

Table 8-2-16-1 Limited Office (LO) Dimensional Standards



Intensity and Development		
1	Building Height (<i>max</i>)	35'
2	Lot Coverage (<i>max</i>)	N/A
3	Street Frontage (<i>min</i>)	30'
Setbacks		
4	Front Yard Setback (<i>min</i>)	20'
5	Front Yard Setback Abutting Residential (<i>min</i>)	20'
6	Side Street Setback (<i>min</i>)	20'
7	Side Street Setback Abutting Residential (<i>min</i>)	20'
8	Interior Side Setback (<i>min</i>)	10'
9	Interior Side Setback Abutting Residential (<i>min</i>)	10'
10	Rear Yard Setback (<i>min</i>)	10'
11	Rear Yard Setback Abutting Residential (<i>min</i>)	20'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

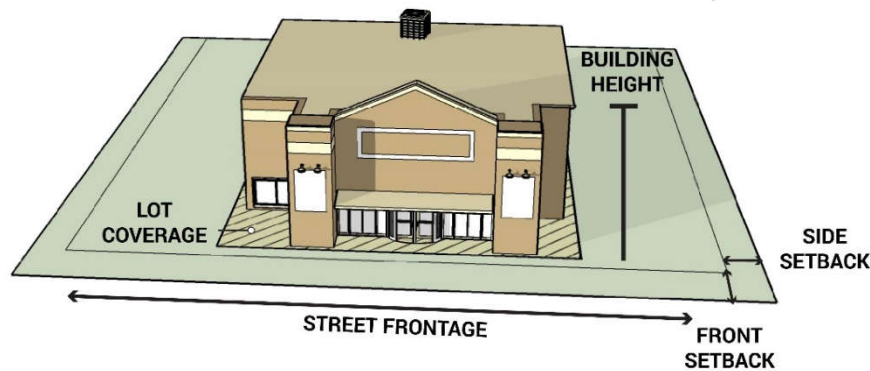
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-17: Neighborhood Commercial (C1)

A. Purpose. The Neighborhood Commercial (C1) District promotes the public health, safety, and welfare of Ada County by encouraging commercial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The Neighborhood Commercial (C1) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed commercial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. The Neighborhood Commercial (C1) District accommodates the sale of convenience goods (such as a grocery store or pharmacy) and personal services (laundry, dry cleaning, etc.) for daily living needs of the immediate neighborhood, complements the surrounding residential and commercial uses by allowing for medical, legal, banking, insurance and similar professional office uses, and limits larger developments to arterial streets away from intersections or gateway locations.

B. Development and Dimensional Standards.

Table 8-2-17-1 Neighborhood Commercial (C1) Dimensional Standards



Intensity and Development		
1	Building Height (max)	35'
2	Lot Coverage (max)	N/A
3	Street Frontage (min)	30'
Setbacks		
4	Front Yard Setback (min)	15'
5	Front Yard Setback Abutting Residential (min)	20'
6	Side Street Setback (min)	10'
7	Side Street Setback Abutting Residential (min)	15'
8	Interior Side Setback (min)	0'
9	Interior Side Setback Abutting Residential (min)	10'
10	Rear Yard Setback (min)	0'
11	Rear Yard Setback Abutting Residential (min)	15'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

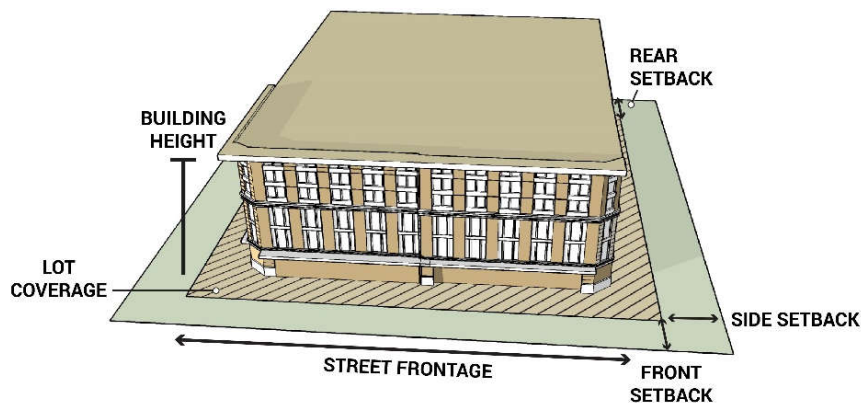
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-18: Community Commercial (C2)

A. Purpose. The Community Commercial (C2) District promotes the public health, safety, and welfare of Ada County by encouraging commercial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The Community Commercial (C2) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed commercial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. The Community Commercial (C2) District accommodates areas for community shopping and clustered commercial activities along arterial streets and provides for the sale of a full range of merchandise and services required of persons living within several neighborhood service areas and rural trade areas, accommodates large-scale, high-intensity commercial structures, and limits large-scale, high-intensity developments to interstates and principal arterial roadways that serve the Treasure Valley.

B. Development and Dimensional Standards

Table 8-2-18-1 Community Commercial (C2) Dimensional Standards



Intensity and Development		
1	Building Height (max)	50'
2	Lot Coverage (max)	N/A
3	Street Frontage (min)	100'
Setbacks		
4	Front Yard Setback (min)	15'
5	Front Yard Setback Abutting Residential (min)	25'
6	Side Street Setback (min)	20'
7	Side Street Setback Abutting Residential (min)	25'
8	Interior Side Setback (min)	20'
9	Interior Side Setback Abutting Residential (min)	35'
10	Rear Yard Setback (min)	20'
11	Rear Yard Setback Abutting Residential (min)	35'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

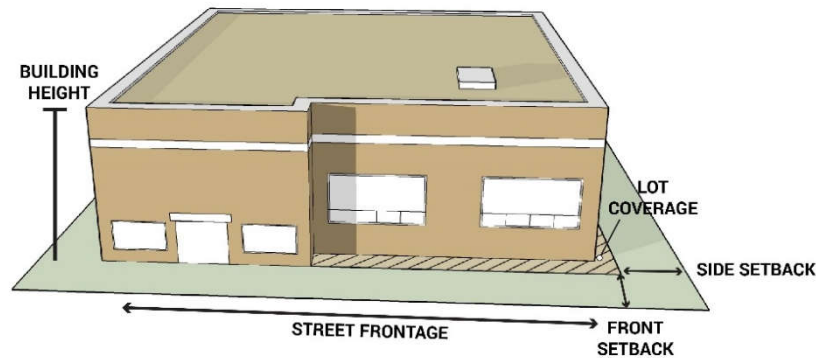
C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-19: Light Industrial (M1)

A. Purpose. The Light Industrial (M1) District promotes the public health, safety, and welfare of Ada County by encouraging industrial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The Light Industrial (M1) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed industrial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. The Light Industrial (M1) District accommodates areas for, and conducive to, light industrial uses and the development of technological industrial uses, supports light assembly, warehousing, administrative facilities, research institutions, and specialized manufacturing organizations, and accommodates professional offices and similar uses if they provide services to light industrial uses.

B. Development and Dimensional Standards

Table 8-2-19-1 Light Industrial (M1) Dimensional Standards



Intensity and Development		
1	Building Height (max)	50'
2	Lot Coverage (max)	N/A
3	Street Frontage (min)	30'
Setbacks		
4	Front Yard Setback (min)	20'
5	Front Yard Setback Abutting Residential (min)	20'
6	Side Street Setback (min)	15'
7	Side Street Setback Abutting Residential (min)	20'
8	Interior Side Setback (min)	0'
9	Interior Side Setback Abutting Residential (min)	15'
10	Rear Yard Setback (min)	0'
11	Rear Yard Setback Abutting Residential (min)	15'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

D. Retail and Office Uses. The following uses (see Use Table for categories) may occupy up to ten percent (10%) of the gross floor area or fifteen thousand (15,000) square feet (whichever is less) of an industrial building in the M1 district:

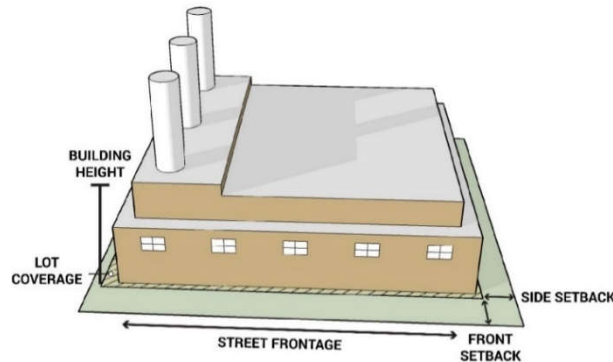
1. Retail Store;
2. Personal Services; or
3. Office.

8-2-20: General Industrial (M2)

A. Purpose. The General Industrial (M2) District promotes the public health, safety, and welfare of Ada County by encouraging industrial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The General Industrial (M2) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed industrial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. The General Industrial (M2) District accommodates medium to high intensity industrial uses and provides for development with higher intensities than industrial developments in the Light Industrial (M1) District.

B. Development and Dimensional Standards

Table 8-2-20-1 General Industrial (M2) Dimensional Standards



Intensity and Development		
1	<i>Building Height (max)</i>	50'
2	<i>Lot Coverage (max)</i>	N/A
3	<i>Street Frontage (min)</i>	30'
Setbacks		
4	<i>Front Yard Setback (min)</i>	20'
5	<i>Front Yard Setback Abutting Residential (min)</i>	20'
6	<i>Side Street Setback (min)</i>	15'
7	<i>Side Street Setback Abutting Residential (min)</i>	20'
8	<i>Interior Side Setback (min)</i>	0'
9	<i>Interior Side Setback Abutting Residential (min)</i>	15'
10	<i>Rear Yard Setback (min)</i>	0'
11	<i>Rear Yard Setback Abutting Residential (min)</i>	15'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

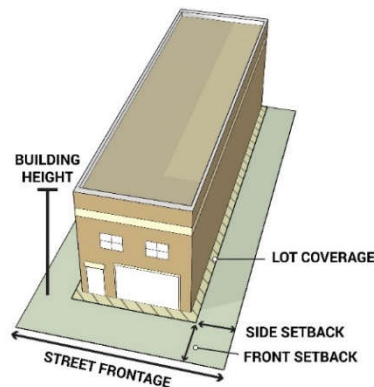
8-2-21: Airport Industrial (M3)

A. Purpose. The Airport Industrial (M3) District promotes the public health, safety, and welfare of Ada County by encouraging industrial uses primarily inside areas of city impact to implement the applicable comprehensive plans that are adopted as part of the area of city impact agreements. The Airport Industrial (M1) District may also be established outside areas of city impact on a limited basis. The intent of this district is to provide separate and distinct allowed industrial uses based on the availability of urban public facilities, surrounding land uses, and the applicable comprehensive plan designation for the area. The Airport Industrial (M1) District accommodates industrial uses that are compatible with the safe operation of the Boise Air Terminal (Gowen Field). This district is intended for non-noise sensitive manufacturing, industrial, and commercial uses.

B. Development and Dimensional Standards

1. Any proposed use within the airport overlay district shall comply with the regulations of Section 8-2-24 of this Title.

Table 8-2-21-1 Airport Industrial (M3) Dimensional Standards



Intensity and Development		
1	<i>Building Height (max)</i>	50'
2	<i>Lot Coverage (max)</i>	N/A
3	<i>Street Frontage (min)</i>	30'
Setbacks		
4	<i>Front Yard Setback (min)</i>	20'
5	<i>Front Yard Setback Abutting Residential (min)</i>	20'
6	<i>Side Street Setback (min)</i>	15'
7	<i>Side Street Setback Abutting Residential (min)</i>	20'
8	<i>Interior Side Setback (min)</i>	0'
9	<i>Interior Side Setback Abutting Residential (min)</i>	15'
10	<i>Rear Yard Setback (min)</i>	0'
11	<i>Rear Yard Setback Abutting Residential (min)</i>	15'

NOTES: See Section 8-2-2C, Table 8-2-2-1 (Summary / Description of Dimensional Standards). See Chapter 4 (Use Standards) for additional or supplemental standards for use types.

C. Permitted Uses. Refer to Section 8-2-23 of this Chapter (Use Table).

8-2-22: Planned Communities (PC)

A. Purpose. This Section provides for master planned communities both within and outside areas of city impact in accord with the comprehensive plan. The Planned Community (PC) District allows small town or urban type development when urban public facilities and services can be provided, and pursuant to community specific subarea comprehensive plans and zoning regulations for each Planned Community.

B. Generally

1. Planned Communities follow the regulations specifically expressed in the Planned Communities Chapter 12 in this Title.
2. Each Planned Community must be established on the official zoning map of Ada County.
3. Specific overlay districts are designated for each Planned Community. Each Planned Community district regulation identifies distinct allowed uses, dimensional standards and regulations that are specific to each Planned Community.

8-2-23: Use Table

1. **Purpose.** The Use Table found in Table 8-2-23-2 of this Chapter establishes principal, conditional, accessory, and temporary uses permitted within each zoning district, and how they are permitted. Each use is defined in Chapter 10 (Definitions) of this Title.

Table 8-2-23-1 Use Table Legend

Symbol	Meaning	Description
P	Principal permitted use	A "P" in a zoning district column indicates that a principal use is principally permitted and shall be reviewed in accord with the applicable use standards in Chapter 4. These uses are subject to all other applicable regulations of this Title. Master site plan review (see Section 8-6-19) is required unless the use is [bracketed] (see below).
C	Conditional Use	A "C" in a zoning district column indicates that a use requires conditional use review and approval (see Section 8-6-15). Master site plan review is required unless the use is [bracketed] (see below).
[]		Master Site Plan review is not required.
{ }		Partial Master Site Plan review is required (see Section 8-6-19B.3).
A	Accessory Use	Permitted only if accessory to a principal use on the same property.
T	Temporary Use	Applies to temporary uses (12 months or less) (see Section 8-4-73).
*		Administrative Application (see Section 8-6-2-1).
¹		A Zoning Certificate is required (see Section 8-6-32).
²		A Zoning Certificate is not required.
	Use not Permitted	A blank cell in a column indicates that a use is not permitted as a principal use in the zoning district.

NOTES: The Use Table only establishes the principally permitted uses allowed in each zoning district. Accessory Uses are regulated by Chapter 4 (Use Standards).

B. Standards Column. The "Use Standards" column provides a reference to associated standards for certain principal permitted uses, conditional uses, and accessory uses. Where "N/A" is in the column, there is no associated standard. Where a "Section number" is in the column, there are associated standards.

Table 8-2-23-2 Use Table

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Residential															
Dwelling, Single-Family Detached	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]							N/A
Dwelling, Single-Family Attached						[P]	[P]	[P]							N/A
Dwelling, Duplex	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]							N/A
Dwelling, Multi-Family							C	P	C	C	C				8-4-45
Manufactured Home	[P]	[P]	[P]	[P]	[P]										N/A
Manufactured Home Park					C	C	C	C							8-4-41
Lodging/Group Living															
Bed and Breakfast Establishment	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]				8-4-10
Boarding House									[C]	[C]	[C]				N/A
Continuing Care Facility	C	C	C	C	C	C	C	C	P	P	P				N/A
Foster Home, Group	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]							8-4-30
Hotel/Motel									C	C	P				8-4-34
Recreational Vehicle Park										C	C				8-4-60
Agriculture															
Agricultural Service	{C}	{C}													N/A
Agricultural Use	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	N/A
Equestrian Stable/Event Facility	[C]	[C]	[C]												N/A
Livestock Confinement < 300 AU	[P] ¹	[P] ¹	[P]	[P]	[P]	[P]	[P]								8-4-38
Livestock Confinement 301-999 AU	{P}	{P}													8-4-38
Livestock Confinement 1,000+ AU	{C}	{C}													8-4-38
Nursery, Wholesale	[P]	[P]	[P]									[P]	[P]	[P]	8-4-46
Seasonal Farmworker Housing	C	C													8-4-66
Stable	[P]*	[P]*	[P]*	[P]*	[P]*										N/A
Winery	C	C	C							C	C	P	P	P	8-4-80

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Commercial/Office															
<i>Animal Services</i>															
Kennel, Commercial	C	C	C						C	C	C	C			8-4-36
Veterinary Services	C	C	C	C	C				C	P	P	P			N/A
<i>Day Care</i>															
Family Day Care, Home	A*	A*	A*	A*	A*	A*	A*	A*							8-4-18
Day Care, Group	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*					8-4-18
Day Care, Center			C	C	C	C	C	C	C	P	P				8-4-18
<i>Financial Services</i>															
Financial Institution									P	P	P				N/A
<i>Food & Beverage Sales/Service</i>															
Bar									C	C	P				8-4-9
Brewpub or Distillery										P	P				8-4-9
Nightclub										C	C				8-4-9
Restaurant									C	P	P	C	C	C	N/A
<i>Office, Business & Professional</i>															
Office								C	P	P	P	P			N/A
<i>Personal / Business Services</i>															
Personal Services								C	C	P	P	P			8-4-50
Postal Service									P	P	P	P	P	P	8-4-53
<i>Retail sales</i>															
Auction	C	C									C	C	C		8-4-7
Farm, Garden, Lumber, or Building Supply Store										P	P	P	P		N/A
Fuel Sales										C	P	P	P	P	8-4-28
Heavy Equipment Sales or Service											P	P	P	P	8-4-31
Nursery, Retail		C	C							P	P	P			8-4-46
Retail Store								C	C	P	P	P			N/A
<i>Automotive</i>															
Car Wash										C	C	P	P	P	8-4-12
Vehicle Repair, Minor										C	P	P	P	P	8-4-79
Vehicle Repair, Major											C	P	P	P	8-4-79

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Vehicle Sales											P	P	C	C	8-4-79
<i>Entertainment/Recreation</i>															
Adult Entertainment Establishment											C	C			8-4-3
Amusement or Recreation, Indoor								C	C	C	P	C			N/A
Amusement or Recreation, Outdoor		C	C	C					C	C	P				8-4-5
Campground	C	C													8-4-11
Racetrack	C	C									C				8-4-58
Shooting Range (Indoor Only)	C	C								C	P	C	C	C	8-4-68
Shooting Range (Outdoor Only)	C	C													8-4-68
Civic															
<i>Assembly</i>															
Event Center	C	C	C	C	C	C	C	C	C	C	C	C			8-4-24
Religious Land Use	C	C	C	C	C	C	C	C	C	P	C				N/A
<i>Death Care Services</i>															
Cemetery	C	C	C	C	C	C	C	C							8-4-13
Crematory									C	C	P	P			8-4-16
Funeral Services									C	C	P ¹	P ¹			8-4-29
Mortuary									A*/C	A*/C	A*/C	A*/C			8-4-16
<i>Government/Non-Profit</i>															
Public or Quasi-Public Use	C	C	C	C	C	C	C	C	C	C	C	C	C	C	8-4-57
<i>Education</i>															
School	C	C	C	C	C	C	C	C	C	C	C				8-4-65
Studio					-			C	C	P	P	P			N/A
Technical School	C	C	C						C	P	P	P	P	P	N/A
<i>Medical</i>															
Clinic (Dental or Medical)									P	P	P				N/A
Medical Care Facility									C	P	P				8-4-44
Industrial															
<i>Manufacturing & Employment</i>															
Asphalt or Concrete Ready-Mix Plant	A*/C	A*/C	C										P	C	8-4-6
Contractor Yard	C	C	C									P	P	P	8-4-15

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Explosive Manufacturing or Storage	C												P	C	8-4-25
Foundry													P	P	8-4-26
Manufacturing, Heavy													P	C	8-4-39
Manufacturing, Light											C	P	P	P	8-4-40
Meatpacking/ Slaughterhouse Facility	{C}	{C}											C		8-4-43
Pit, Mine, or Quarry, Large	C	C	C										C	C	8-4-51
Processing Plant, Agricultural and Dairy Products	{C}	{C}										P	P	P	8-4-55
Research and Development Facility	C	C	C							C	C	P	P	P	N/A
Sawmill/Planing Mill	C												P	C	8-4-64
Tannery													P		8-4-72
Wood, Metal, and Stone Shop											C	P	P	P	N/A
Warehousing, Storage & Distribution															
Energy Storage	C	C	C	C	C	C	C	C	C	C	C	C	C	C	N/A
Grain Elevator	[P]	[P]										[P]	[P]		N/A
Manufactured Home Storage												P	P	P	8-4-42
Storage Facility, Self- Service							C	C	C	C	P	P	P	P	8-4-70
Storage Facility, Self- Service -Outdoor Only	C	C	C									C	C	C	8-4-71
Wholesale Distribution and Warehousing												P	P	P	N/A
Infrastructure															
Transportation / Parking															
Aircraft Landing Field	C	C										C	C		8-4-4
Airport	C	C										C	C	C	8-4-4
Freight/Truck Terminal												P	P	P	8-4-27
Ground Passenger Transportation (e.g. taxi, charter bus)											P	P		P	N/A
Heavy Truck Wash Facility	C											C	C	C	8-4-32
Off Street Parking Facility										C	C	P	P	P	N/A
Railroad Switching Yard	C											P	P	P	8-4-59

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Transit Facility										P	P	C	C	C	8-4-76
Truck Stop	C	C									P	P	P	P	8-4-77
Infrastructure-Utilities															
Centralized Power Facility	C	C										C	C	C	8-4-54
Distribution Power Facility	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	8-4-54
Distributed Power Facility, Wind Freestanding Tower	[P]	[P]										C	C	C	8-4-54
Distributed Power Facility, Wind Rooftop	A*	A*										A*	A*		8-4-54
Distributed Power Facility, Solar Rooftop	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	8-4-54
Electric Distribution Line	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	[P]	8-4-54
Electric Sub-transmission Line	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-4-54
Electric Substation	C	C	C	C	C	C	C	C	C	C	C	C	C	C	8-4-54
Electric Transmission Line	C	C	C	C	C	C	C	C	C	C	C	C	C	C	8-4-54
Communications															
Radio and Television Broadcasting Station										C	P	P			N/A
Tower or Antenna Structure, Commercial	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	[C]	8-4-74
Tower or Antenna Structure, Private	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	[C]	8-4-75
Waste-related:															
Composting Facility	{C}	{C}											P	P	8-4-14
Junkyard or Automobile Wrecking Yard													C	C	8-4-35
Recycling Center											C	P	P	P	8-4-61
Recycling Plant													P	P	N/A
Sanitary Landfill	C	C											C		8-4-63
Septage Treatment and Disposal Facility	C														8-4-67
Soil/Water Remediation	[C]														8-4-69
Soil/Water Remediation, Onsite	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-4-69
Vehicle Impound Yard													P	P	8-4-78
Accessory Uses															
Accessory Retail Sales	A*	A*	A*	A*	A*	A*	A*	A*	A	A	A	A	A	A	8-4-62
Accessory Office	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	8-4-47

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Accessory Outdoor Storage	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	8-4-49
Accessory Structure, 200 square feet or less	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	A ¹	8-4-2
Accessory Structure, >200 <1,500 square feet	A	A	A	A	A	A	A	A	A	A	A	A	A	A	8-4-2
Accessory Structure, >1,500 square feet	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	8-4-2
Additional Farm Dwelling	A*	A*	A*	A*	A*	A*	A*	A*							8-4-21
Caretaker Dwelling	A*	A*	A*	A*	A*	A*	A*	A*				A*	A*	A*	8-4-22
Dwelling, Secondary Attached or Detached	A*	A*	A*	A*	A*	A*	A*	A*							8-4-23
Agricultural Structure	A	A	A	A	A	A	A	A	A	A	A	A	A	A	N/A
Automotive, Hobby	A	A	A	A	A	A	A	A	A	A	A				8-4-8
Fuel Cell	A	A	A	A	A	A						A	A	A	N/A
Home Occupation, Small	A	A	A	A	A	A	A	A	A	A	A	A	A	A	8-4-33
Home Occupation, Large	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	8-4-33
Kennel, Hobby	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	8-4-37
Portable Classroom	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	8-4-52
Produce Stand, Agricultural	A	A	A	A	A	A	A	A	A	A	A				8-4-56
Produce Stand, Roadside	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*	A*				8-4-56
Small Wireless Facility	A	A	A	A	A	A	A	A	A	A	A	A	A	A	8-4-74
Swimming Pool, Private (includes swimming pools accessory to Hotels/Motels)	A	A	A	A	A	A	A	A	A	A	A				8-4-5
Temporary Uses															
Anemometer	T	T	T	T								T	T	T	8-4-73
Fireworks Stands									T	T	T				8-4-73
Seasonal Stands	T	T	T						T	T	T				8-4-73
Seasonal Events	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*				8-4-73
Temporary Construction Office	T	T	T	T	T	T	T	T	T	T	T	T	T	T	8-4-48
Temporary Living Quarters	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	8-4-73
Subdivision Model Home/Real Estate Offices	T	T	T	T	T	T	T	T	T	T	T				8-4-73
Temporary Pit, Mine, or Quarry	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	T*	8-4-73/8-4-51

Proposed Use	Rural		Transition		Residential				Commercial			Industrial			Use Standards
	RP	RR	RUT	RSW	R1	R2, R4	R6, R8	R12, R20	LO	C1	C2	M1	M2	M3	
Other															
Billboards	[C]	[C]									[C]	[C]	[C]	[C]	8-3-12
Dangerous or Protected Animal Facility	C	C	C	C	C	C	C	C	C	C	C	C	C	C	8-4-17
Drive-up Establishments									C	C	C	C			8-4-19

8-2-24:Boise Air Terminal Airport Influence Areas (BAT) Overlay District

A. Purpose. The purpose of the Boise Air Terminal Airport Influence Areas (BAT) Overlay District is to:

1. Implement the goals, objectives, and policies of the applicable comprehensive plan as it relates to airport influence areas;
2. Provide for land uses that are compatible with aircraft noise, approach zones, and airport operations; Establish the boundaries of the Boise Air Terminal Airport Influence Areas overlay district; and
3. Promote public health, safety, and welfare by limiting and/or placing additional restrictions on land use activities within the overlay district.

B. Applicability. These regulations apply to development as herein defined and as identified on the Boise Air Terminal Airport Influence Areas Map, the limits of which are adopted by the Zoning Map (see Section 8-2-4).

C. Influence Areas. Boise Air Terminal Airport Influence Areas (“influence areas”) are established within this overlay district consistent with the federal aviation regulations, part 150 noise compatibility study for the Boise Air Terminal. This Section establishes use restrictions and noise attenuation standards for uses subject to noise levels of up to the levels established in Table 8-2-24-1 below:

Table 8-2-24-1 Influence Areas and Noise Levels

Intensity and Development	Noise Levels
Influence Area A	65 dNL
Influence Area B	70 dNL
Influence Area B-1	60 dNL while acknowledging existing residential uses
Influence Area C	> 75 dNL

D. General Standards

1. Prior to issuance of a zoning certificate, written documentation shall be provided that the property owner has filed an avigation easement with the Boise Air Terminal.
2. Despite any other regulations of this Title, no use is permitted within the airport

influence areas that creates hazards to aircraft and/or impairs landing, takeoff, or maneuvering of aircraft.

3. Within Airport Influence Area B-1, new residential subdivisions shall not exceed a maximum density of five (5) dwelling units per acre, if compatible with the existing residential development in the area.
4. Within Airport Influence Area B, new dwellings and/or new residential subdivisions are prohibited unless the subject property is designated for a residential land use in the applicable comprehensive plan.
5. No increase in residential density is allowed for properties within Airport Influence Area B.
6. Within the runway approach zones, population density shall not exceed forty (40) people per acre within a structure and/or seventy-five (75) people per acre outside a structure.

E. Additional Standards by Influence Area. The underlying base district establishes allowed uses.

1. Single-family attached, single-family detached, secondary dwelling, duplex, farm dwelling, caretaker dwelling, temporary living quarters, manufactured home, and manufactured home parks are not to exceed a density of five (5) dwelling units per acre in the B-1 overlay district. Calculation shall be based on the individual property or on proposed development area for the master site plan, as applicable.
2. Explosive manufacturing or storage, flammable substance storage, fuel sales, golf course and country club, hospital, manufacturing, heavy, nursing facility, skilled, racetrack, religious land use, school, event centers, and technical school, are prohibited in the runway approach zones.

8-2-25: Wildland-Urban Interface (WUI) Overlay District

A. Purpose

1. The Wildland-Urban Interface (WUI) Overlay District protects the public health, safety, and welfare by establishing standards to:
 - a. Minimize the potential of spreading fire from wildland areas to structures;
 - b. Establish special standards that apply to new construction, and the alteration, movement or change of use of habitable structures, with the intent to reduce the threat of loss of life and property from fire;
 - c. Require vehicle turnouts on new private roads with the intent to provide better emergency access to remote areas where needed; and
 - d. Require that new subdivisions and planned unit developments provide water supply systems and suitable access for firefighting crews, with the intent to increase the resources available to such crews and minimize the spread of fire.
2. Ada County has adopted the International Wildland-Urban Interface Code, (See Ada County Code Title 7, Chapter 2). This Section supplements that code with zoning and development standards.

B. Applicability

- 1. Generally.** These regulations apply to development as herein defined and as identified on the Wildland-Urban Interface overlay district map, the limits of which are adopted by Zoning Map (see Section 8-2-4) on file at the Ada County Development Services Department, or as amended.
- 2. Non-habitable Structures.** Non-habitable structures are exempt from these regulations, except when located within the defensible space as set forth in the regulations of subsection (C)(1) below.
- 3. Clearing.** For purposes of this Section, the terms "clear," "cleared" or "clearing" means the removal of all vegetation except:
 - a. Single specimens of trees, ornamental vegetation, cultivated ground cover (such as green grass, ivy, succulents, or similar plants); and
 - b. Native grasses and weeds that do not readily transmit fire trimmed to a maximum height of four inches (4"). The Director may approve heights of 4- to 6-inches where needed to minimize erosion due to steep slopes.
- 4. Relocation.** This Section does not require an owner to relocate existing habitable structures, driveways, or utilities.
- 5. Plant Species.** In this Section, references to plant species that do not "form a means of readily transmitting fire" means:
 - a. The plant has a score of at least eight (8) for the applicable zone, as defined in the Fire Resistance of Plants Master Database & Placement of Species Within Firewise Landscape Zones for Southern Idaho developed by the Federal Bureau of Land Management, the College of Western Idaho Horticulture and the Idaho Botanical Garden and published by Idaho Firewise; or
 - b. The application demonstrates, and the Director finds, that the plant is fire resistant because it:
 1. Has a high moisture content in its leaves;
 2. Has little seasonal buildup of dead vegetation;
 3. Has a low, compact growth form;
 4. Is high in soap or pectin content;
 5. Has green stems; and
 6. Is drought tolerant.
- 6. Abutting Property.** This Section does not require an owner to remove vegetation from an abutting property.

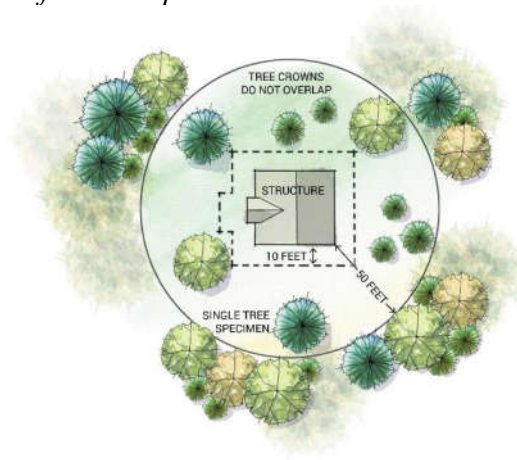
C. Vegetation Control Standards

1. Defensible Space

- a. This subsection 1 applies to any "modification," defined as any new construction, or the alteration, movement or change of use of a habitable structure.

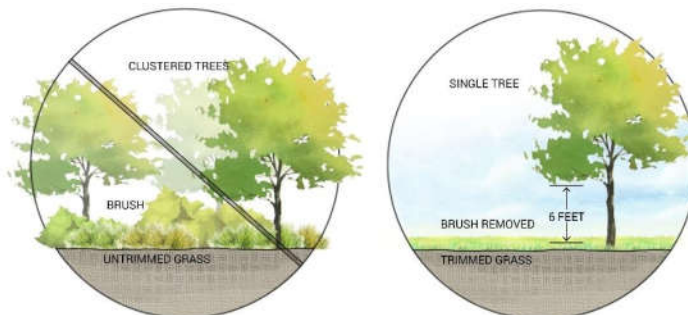
- b.** A modification requires a minimum fifty foot (50') defensible space around the perimeter of any habitable structure. Property owners shall maintain the defensible space unless that responsibility is transferred to another party through a binding contract. The defensible space shall meet the criteria in subsections c through j below.
- c.** Only single specimens of trees, ornamental vegetation, cultivated ground cover (such as green grass, ivy, succulents, or similar plants), or native grasses and weeds trimmed to a maximum height of four inches (4"), are allowed within the defensible space. Plants shall not form a means of readily transmitting fire. All other vegetation shall be removed from the defensible space. See Figure 8-2-25-1 below.

Figure 8-2-25-1 Defensible Space



- d.** All deadwood shall be removed from trees within the defensible space. Clusters or groups of trees shall be thinned so tree crowns do not overlap. Trees within the defensible space shall be pruned. Prune trees up to six feet (6') to ten feet (10') from the ground; for shorter trees do not exceed one-third (1/3) of the overall tree height. See Figure 8-2-25-2 below.

Figure 8-2-25-2 Defensible Space Pruning



- e. Tree crowns shall be pruned to maintain a minimum horizontal clearance of ten feet (10') from any structure or chimney outlet.
 - f. Liquefied petroleum gas containers shall not be located within the defensible space in accord with the applicable code as adopted by the state of Idaho.
 - g. Firewood and combustible material shall not be stored in unenclosed spaces beneath structures, on decks, or under eaves, canopies, or other projections or overhangs. All firewood and combustible material stored in the defensible space shall be located a minimum of twenty feet (20') from structures and separated from the crown of trees by a minimum horizontal distance of fifteen feet (15').
 - h. Agricultural structures are not allowed within the defensible space.
 - i. All accessory structures within the defensible space must meet the fire resistive construction standards for structures as established by the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
 - j. If an abutting public street or approved private road meets the standards for the defensible space as set forth above, the width of that roadway is counted as part of the defensible space.
- 2. Roads and Driveways.** All areas adjacent to private roads and driveways shall be cleared of vegetation. Single specimens of trees, ornamental vegetation, cultivated ground cover (such as green grass, ivy, succulents, or similar plants), or native grasses and weeds trimmed to a maximum height of four inches (4"), are allowed, if these plants do not form a means of readily transmitting fire.
- a. For driveways, all areas within five feet (5') of each side of the driveway shall be cleared.
 - b. For private roads, the area encompassed by the travel way plus five feet (5') on each side of the travel way, measured from the outside edge of the travel way, shall be cleared of all flammable vegetation.
- 3. Electrical Distribution and Transmission Lines.** All vegetation shall be cleared from within thirty-one inches (31") of any above grade electrical distribution and transmission lines.
- 4. Electrical Conductors.** All vegetation shall be cleared from within ten (10) radial feet of any non-insulated energized electrical conductor and associated live parts. Cultivated ground cover (such as green grass, ivy, succulents, or similar plants), or native grasses and weeds trimmed to a maximum height of four inches (4"), are allowed if these plants do not form a means of readily transmitting fire.
- 5. New Driveways / Construction or Moving Structures.** For new driveways, new construction, or moving of structures on a site, the areas that require vegetation removal shall be located within the property boundaries. The Director may approve a lesser standard if:
- a. The property abuts a public or approved private road as set forth in subsection 8-2-25C.1.j of this Section; and/or

- b. Severe topographic or other site constraints exist that prohibit locating new construction to meet the specified standard.

D. Private Road Standards

1. All new private roads require vehicular turnouts for emergency vehicles. These turnouts require spacing at a maximum interval of seven hundred feet (700') with a minimum width of ten feet (10') and minimum length of thirty feet (30'). Road construction and vehicular turnarounds shall meet the private road standards as set forth in Section 8-3-11 of this Title. Driveways that meet turnout standards count as turnouts if they are at least twenty feet (20') wide and thirty feet (30') long.
2. Maintenance of the private road shall include vegetation control as specified in subsection 8-2-25C.2.b of this Section.

E. New Subdivisions and Planned Unit Developments

1. An engineer, special expert (e.g., wildfire mitigation specialist), or other person that the Director finds has demonstrated competence and relevant wildfire experience, or training shall be retained who can demonstrate the following for the development:
 - a. Evaluate fire hazards and emergency access roads to determine site specific hazards and proper accessibility for emergency vehicles.
 - b. Prepare a fire protection plan that is specifically tailored to the proposed subdivision or planned unit development that includes:
 1. Completed fire hazard severity form from the current International Wildland-Urban Interface Code, appendix C, using nationally recognized standards;
 2. A fire protection plan map showing the roadway, turnouts, turnarounds, terminus, and lots;
 3. Determination of fuel model and fuel loading;
 4. Required signage for turnouts, turnarounds, and fire lane parking;
 5. Required number and placement of turnouts based on development density and roadway width;
 6. Requirements for fire resistance rated construction;
 7. Required road width or required interconnected system of roadways and fire accesses.
2. As part of the agency review process of subdivisions and planned unit developments, the fire protection plan shall be reviewed by:
 - a. The applicable fire district; or
 - b. If no fire district applies, the Ada County Sheriff, with advice from the Idaho State Fire Marshal.

F. Prohibited Uses. Campgrounds and seasonal farmworker housing are prohibited within the Wildland-Urban Interface overlay district.

8-2-26: Southwest Planning Area (SPA) Overlay District

A. Purpose. The purpose of the Southwest Planning Area (SPA) Overlay District is to establish standards to accommodate urban development in the southwest planning area of the Boise City comprehensive plan that is compatible with high ground water and drainage conditions and to ensure provision of urban public facilities, in addition to other applicable standards and procedures in this Title.

B. Applicability. This Section applies to development as herein defined in the Southwest Planning Area of the Boise City comprehensive plan. This Section is designated by the Zoning Map (see Section 8-2-4).

C. Standards

1. New development is not permitted until urban public facilities are available. This subsection does not apply to single-family detached dwellings on existing platted lots or on properties two and a half (2.5) acres or larger.
2. If the Central District Health Department determines that an existing wastewater treatment system has failed:
 - a. The property owner shall connect to the Boise sewer system, if a collection line is located within three hundred feet (300') of the property line; or
 - b. If a collection line is not located within three hundred feet (300') of the property line, the existing wastewater treatment system may be replaced with a system approved by the Central District Health Department.
3. Creeks, streambeds, and riparian areas within this overlay district shall be left in a natural state, not channeled, and kept free of any obstructions to water flows. This subsection does not apply to necessary road and/or public service crossings.

8-2-27: Area of Military Influence (AMI) Overlay District

A. Purpose. The Area of Military Influence (AMI) Overlay District:

1. Implements the goals, objectives, and policies of the applicable comprehensive plan as it relates to the areas of military influence;
2. Provides for notification areas to ensure the Idaho National Guard officials are made aware of land use applications within the AMI; and
3. Promotes the public health, safety, and welfare by having regulations and standards for new development within the AMI to ensure compatibility with military activity occurring in the AMI.

B. Applicability

1. The Area of Military Influence Overlay (AMI) District consists of:
 - a. A one-fourth (1/4) mile buffer along either side of the centerline of Pleasant Valley Road that extends from Gowen Field to the Orchard Combat Training Center to be known as the Military Tank Trail, the limits of which are adopted by the Zoning Map (see Section 8-2-4); and
 - b. A buffer area surrounding the Orchard Combat Training Center, the limits of which are adopted by the Zoning Map (see Section 8-2-4).

2. This Section applies to development as herein defined within the adopted AMI.
3. This Section does not apply to:
 - a. Uses occurring within structures that are listed on the national register of historic places;
 - b. Structures identified by the Ada County Historic Preservation Council as having historical significance; or
 - c. Structures identified as contributing in an archeological or historical survey or study accepted by the State Historic Preservation Office.

C. Process. Applications shall be transmitted to the appropriate agency, including, but not limited to, the following: National Guard, Mountain Home Military Base, and the Boise Airport Director.

D. Standards

1. Uses that require a conditional use, master site plan, planned community or subdivision application located within the AMI shall address compatibility issues such as intermittent noise, dust, traffic, and other development design issues.
2. For subdivisions located within the AMI the following statement shall appear on the final plat:

“This development recognizes that it is in an Area of Military Influence (AMI) and as such there will be times during the course of the year that properties could be subject to intermittent dust, noise, and military traffic.”
3. Development shall conform to Federal Aviation Regulations (FAR) part 77 height limits (as may be amended) as not to pose a safety hazard to air traffic.

8-2-28: Flood Hazard (FH) Overlay District

A. Purpose. The purpose of the Flood Hazard Overlay (FH) District is to promote public health, safety, and general welfare and to minimize public and private losses due to potential flooding. The provisions are designed to:

1. Protect human life, health, and property;
2. Minimize damage to public facilities and utilities such as water purification and sewage treatment plants, water, and gas mains, electric, telephone and sewer lines, streets, and bridges located in floodplains;
3. Provide for the sound use and development in flood prone areas;
4. Minimize expenditure of public money for costly flood control projects;
5. Minimize the need for rescue and emergency services associated with flooding, generally undertaken at the expense of the general public;
6. Minimize prolonged business interruptions;
7. Ensure potential buyers are notified the property is in an area of special flood hazard; and
8. Ensure those who occupy the areas of special flood hazard assume responsibility for

their actions.

B. Warning and Disclaimer. The degree of flood protection required by this Section is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur. Flood heights may be increased due to artificial or natural causes. This Section does not imply that property outside the identified Special Flood Hazard Areas will be free from flooding or flood damages, or that uses permitted within the identified Special Flood Hazard Areas will be free from flooding or flood damages. This Section shall not create liability on the part of Ada County, any officer or employee thereof, or the federal insurance and mitigation administration, for any flood damages that result from adherence to this Section, or any administrative decision lawfully made hereunder. If any Section, provision, or portion of this ordinance is adjudged unconstitutional or invalid by a court, the remainder of the ordinance shall not be affected.

C. Authority. This Section is adopted pursuant to Idaho Code Section 46-1001, et seq., which authorizes local governments to adopt floodplain management ordinances that identify floodplains and minimum floodplain development standards to minimize flood hazards and protect human life, health, and property.

D. Applicability. These regulations shall apply to "development" as defined in this Section, within all Special Flood Hazard Areas identified by one or more of the following:

1. The federal insurance and mitigation administration in a scientific and engineering report entitled "The Flood Insurance Study (FIS) For Ada County, Idaho," revised June 19, 2020, and all subsequent amendments and revisions, and the accompanying Flood Insurance Rate Maps (FIRM) and Digital Flood Insurance Rate Maps (DFIRMS), and all subsequent amendments and revisions to such maps, are hereby adopted by reference and serve as the basis for establishing flood hazard areas. Maps and studies that establish flood hazard areas are on file at the Ada County Development Services Department.
2. Foothill or other hillside tributary floodplains as herein defined.

E. Administration

1. Floodplain Administrator Responsibilities. The Director, or their designee, hereinafter referred to as the "Floodplain Administrator," is hereby appointed to administer and implement the provisions of this Section and shall have the following responsibilities in all Special Flood Hazard Areas:

- a. Review all floodplain development applications and issue permits for all proposed development within Special Flood Hazard Areas to determine whether proposed building sites comply with the requirements for building in a Special Flood Hazard Area.
- b. Review all proposed development within Special Flood Hazard Areas to assure that all necessary Local, State, and Federal permits have been received, including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 USC Section 1334.
- c. Notify adjacent communities and the Idaho Department of Water Resources State Coordinator for the National Flood Insurance Program (NFIP) prior to any

alteration or relocation of a watercourse. (This is the LOMC procedure).

- d.** Confirm stream channel or water course alteration meets the current Federal Emergency Management Agency (FEMA) NFIP regulations.
- e.** Prevent unpermitted encroachments into the floodway.
- f.** Obtain and maintain actual elevation (in relation to mean sea level) of the lowest floor (including basement) and all attendant utilities of all new and substantially improved structures.
- g.** Obtain and maintain actual elevation (in relation to mean sea level) to which all new and substantially improved structures and utilities have been floodproofed.
- h.** Review plans to verify public utilities are constructed to minimize flood damage.
- i.** When floodproofing is utilized for a particular structure, obtain, and maintain Floodproofing Certifications on the latest FEMA approved forms.
- j.** Where interpretation is needed as to the exact location of boundaries of the Special Flood Hazard Areas, and floodways (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), make the necessary interpretation in conjunction with entity making conflicting decision. The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this Section.
- k.** When Base Flood Elevation (BFE) data has not been provided, obtain, review, and reasonably utilize any BFE data, along with floodway data available from a Federal, State, or other source.
- l.** When Base Flood Elevation (BFE) data is provided but no floodway data has been provided, require that no new construction, substantial improvements, or other development (including fill) shall be permitted within Zones A (or A1-30) and AE on Ada County's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within Ada County. (This is a Hydraulic & Hydrology Analysis).
- m.** When the lowest floor and the lowest adjacent grade of a structure or the lowest ground elevation of a parcel in a Special Flood Hazard Area (SFHA) is above the Base Flood Elevation (BFE), advise the property owner of the option to apply for a Letter of Map Amendment (LOMA) from FEMA. Maintain a copy of the LOMA issued by FEMA in the floodplain development permit file.
- n.** Permanently maintain all records that pertain to the administration of this Section.
- o.** Make on-site inspections of work in progress. As the work pursuant to a floodplain development permit progresses, the floodplain administrator shall make as many inspections of the work as may be necessary to ensure that the work is being done according to the provisions of this Section and the terms of the permit. In exercising this power of inspection of work related to a permit, the floodplain administrator has a right, upon presentation of proper credentials, to enter on any premises within

Ada County at any reasonable hour for the purposes of inspection or other enforcement action.

- p. Issue stop-work orders as required. Whenever a building or part thereof is being constructed, reconstructed, altered, or repaired in violation of this Section, the floodplain administrator may order the work to be immediately stopped. The stop-work order shall be in writing and directed to the person doing or in charge of the work. The stop-work order shall state the specific work to be stopped, the specific reason(s) for the stoppage, and the condition(s) under which the work may be resumed.
 - q. Revoke floodplain development permits as required. The Floodplain Administrator may revoke and require the return of the floodplain development permit by notifying the permit holder in writing stating the reason(s) for the revocation. Permits shall be revoked for any substantial departure from the approved application, plans, and specifications; for refusal or failure to comply with the requirements of State or local laws; or for false statements or misrepresentations made in securing the permit. Any floodplain development permit mistakenly issued in violation of an applicable State or local law may also be revoked.
 - r. Make periodic inspections throughout the Special Flood Hazard Areas within Ada County.
 - s. Prohibit activities that violate the regulations of this Section.
 - t. Review, provide input, and make recommendations for variance requests.
 - u. Maintain a current map repository to include, but not limited to, the FIS Report, FIRM and other official flood maps, and studies including any revisions thereto including Letters of Map Change, issued by FEMA. Notify the NFIP State Coordinator and FEMA of your community's mapping needs.
 - v. Coordinate revisions to FIS reports and FIRMs, including Letters of Map Revision Based on Fill (LOMR-Fs) and Letters of Map Revision (LOMRs).
- 2. Interpretation.** All of the regulations of this Section shall be considered as minimum requirements and shall be considered liberally construed in favor of the governing body and shall not be deemed to limit or repeal any other powers granted under state statutes.
- F. Definitions.** For the purposes of this Section, the terms, as herein defined, shall be used in the administration of this Section:

A Zone: A Special Flood Hazard Area delineated on the flood insurance rate map (FIRM) that is subject to inundation by the one percent (1%) annual chance flood event generally determined using approximate methodologies. Because detailed hydraulic analyses have not been performed, no base flood elevations or flood depths are shown.

AE Zone: A Special Flood Hazard Area delineated on the flood insurance rate map (FIRM) that is subject to inundation by the one percent (1%) annual chance flood event determined by detailed methods. Base flood elevations are shown.

Area of Shallow Flooding: An area within the flood fringe shown on the flood insurance

rate map (FIRM) as an AO or an AH zone; and where the base flood depths range from one to three feet (3'), a clearly defined channel does not exist, the path of flooding is unpredictable and indeterminate, and velocity flow may be evident.

Base Flood: The flood having a one percent (1%) chance of being equaled or exceeded each year. Also known as the "regulatory flood."

Base Flood Elevation (BFE): A determination by the Federal Insurance Administrator of the water surface elevations of the base flood, that is, the flood level that has a one percent or greater chance of occurrence in any given year.

When the BFE has not been provided in a Special Flood Hazard Area, it may be obtained from engineering studies available from a Federal, State, or other source using FEMA-approved engineering methodologies. This elevation, when combined with the Freeboard, establishes the Flood Protection Elevation.

Basement: Any area of a structure having its floor subgrade (below ground level) on all sides, including a crawl space.

Check Dam: A structure erected perpendicular to the direction of flow of floodwaters in a foothill or other hillside tributary floodplain, and which does not exceed ten feet (10') in height or fifty (50) acre-feet of storage capacity and is constructed for the purpose of reducing the velocity of floodwaters or reducing flood flows downstream or both. For the purposes of this Section, energy dissipating devices shall be considered check dams.

Cleaning: Mowing, cutting, or burning of weeds, trees, and other nuisance growth, including algae growth, application of pesticides as permitted, removal of beaver dams, and removal of trash or other debris whether floating, lodged or otherwise obstructing the conveyance of water flow through channels and works.

Critical Facilities: Facilities that are vital to flood response activities or critical to the health and safety of the public before, during, and after a flood, such as a hospital, emergency operations center, electric substation, police station, fire station, nursing home, school, vehicle and equipment storage facility, or shelter; and facilities that, if flooded, would make the flood problem and its impacts much worse, such as a hazardous materials facility, power generation facility, water utility, or wastewater treatment plant.

Development: Any man-made change to improved or unimproved property, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations, or storage of equipment or materials.

Development Activity: Any activity defined as Development which will necessitate a Floodplain Permit. This includes any man-made change to improved or unimproved property including, but not limited to, the construction of buildings, structures or accessory structures, or the construction of additions or substantial improvements to buildings, structures or accessory structures; the placement of mobile homes; filling, mining,

dredging, grading, paving, excavation or drilling operations; storage of equipment and materials; and the deposition or extraction of materials; specifically including the construction of dikes, berms and levees.

Digital Flood Insurance Rate Map (DFIRM): A digital representation of a flood insurance rate map (FIRM) within an electronic mapping application depicting both the Special Flood Hazard Areas and the risk premium zones applicable within Ada County.

Dredging: The removal of sediment from the bottom of streams creeks, irrigation and drainage channels and works.

Elevation Certificate: The Elevation Certificate is an important administrative tool of the NFIP. It is used to determine the proper flood insurance premium rate; it is used to document elevation information; and it may be used to support a request for a Letter of Map Amendment (LOMA), or Letter of Map Revision based on fill (LOMR-F).

FEMA Regulatory Floodway Boundary: The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Flood Elevation Study (FES): An examination, evaluation and determination of flood hazards, flood profiles, floodway boundaries and water surface elevation of the base flood.

Flood Fringe: The area between the floodway and the one hundred (100) year floodplain boundary, including the A zones where no floodway is identified (see Figure 8-2-28-1 Special Flood Hazard Area Diagram below).

Flood Insurance Rate Map (FIRM): The official map of Ada County, on which the Federal Insurance Administrator has delineated both the Special Flood Hazard Areas and the risk premium zones applicable to Ada County. A FIRM that has been made available digitally is called a Digital Flood Insurance Rate Map (DFIRM).

Flood Insurance Study (FIS): An examination, evaluation, and determination of flood hazards and, if appropriate, corresponding water surface elevations; or an examination, evaluation, and determination of mudslide (i.e., mudflow) and/or flood-related erosion hazards.

Flood or Flooding:

- A.** A general and temporary condition of partial or complete inundation of normally dry land areas from:
1. The overflow of inland or tidal waters.
 2. The unusual and rapid accumulation or runoff of surface waters from any source.
 3. Mudslides (i.e., mudflows) which are proximately caused by flooding as defined in paragraph A.2. of this definition and are akin to a river of liquid and flowing mud on the surfaces of normally dry land areas, as when earth is carried by a current of

water and deposited along the path of the current.

- B.** The collapse or subsidence of land along the shore of a lake or other body of water as a result of erosion or undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm, or by an unanticipated force of nature, such as flash flood or an abnormal tidal surge, or by some similarly unusual and unforeseeable event which results in flooding as defined in paragraph A.1 of this definition.

Floodplain Administrator: The individual appointed to administer and enforce the floodplain management regulations.

Floodplain Management: The operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works, and flood plain management regulations.

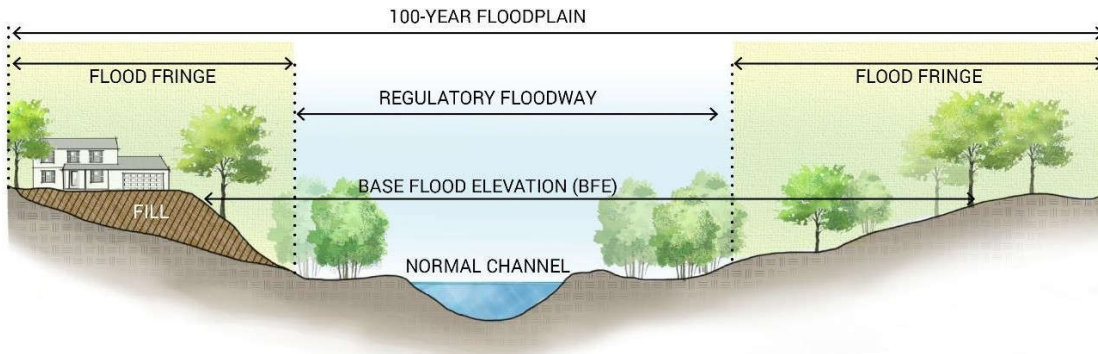
Floodplain Management Regulations: Zoning regulations, subdivision regulations, building codes, health regulations, special purpose regulations (such as flood plain regulations, grading regulations, and erosion control regulations), and other applications of police power. The term describes such federal, state, or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

Floodproofing: Any combination of structural and non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures, and their contents.

Flood Protection Elevation (FPE): The Base Flood Elevation plus the Freeboard. In "Special Flood Hazard Areas" where Base Flood Elevations (BFEs) have been determined, this elevation shall be the BFE plus two feet (2') of freeboard.

Floodplain: Any land area susceptible to being inundated by floodwaters (see Figure 8-2-28-1.)

Figure 8-2-28-1 Special Flood Hazard Area Diagram



Floodplain and Bank Restoration: The reestablishment of the structure and function of ecosystems and floodplains to return the ecosystem as closely as possible to its natural conditions and functions prior to being developed or impacted by a natural event.

Floodproofing Certificate: A FEMA form used to certify a floodproofing design for a nonresidential structure that is being floodproofed as an alternative to elevating the structure to or above the base flood elevation.

Floodway: See **FEMA Regulatory Floodway Boundary**.

Foothill or Hillside Tributary Floodplain: A watercourse or drainageway located in the foothills or other hillside tributary that collects and carries water draining from an area of greater than ten (10) acres in size.

Freeboard: A factor of safety usually expressed in feet above a flood level for the purposes of floodplain management. Freeboard tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, obstructed bridge openings, debris and ice jams, and the hydrologic effects of urbanization in a watershed. The Base Flood Elevation (BFE) plus the freeboard establishes the Flood Protection Elevation (FPE). Freeboard shall be two feet (2').

Functionally Dependent Use: A facility that cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding, or ship repair facilities. The term does not include long-term storage, manufacture, sales, or service facilities.

Highest Adjacent Grade: The highest natural elevation of the ground surface prior to construction, adjacent to the proposed walls of a structure. Refer to the FEMA Elevation Certificate for HAG related to building elevation information.

Historic Structure: A structure that is:

- A. Listed individually in the National Register of Historic Places (a listing maintained by the U.S. Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
- B. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or to a district preliminarily determined by the Secretary to qualify as a registered historic district;
- C. Individually listed on a state inventory of historic places and determined as eligible by states with historic preservation programs which have been approved by the Secretary of the Interior; or
- D. Individually listed on a local inventory of historic places and determined as eligible by communities with historic preservation programs that have been certified either:
 - 1. By an approved state program as determined by the Secretary of the Interior; or
 - 2. Directly by the Secretary of the Interior in states without approved programs.

Irrigation or Drainage Channel: A man-made or natural channel used to convey or deliver water for irrigation, drainage, or other uses, by irrigation districts, canal companies, lateral associations, drainage districts, or other water delivery entities. Irrigation and drainage channels include man-made canals, ditches, laterals, culverts, flumes, tiled drains, pipes, storage reservoirs, and natural channels (including reservoirs on natural channels), used to convey storage or other sources of water owned or controlled by an irrigation or drainage entity.

Irrigation and Drainage Works: Man-made structures used to divert, regulate, and measure water from natural channels (streams, rivers, lakes, and springs) and in man-made irrigation and drainage channels. Irrigation and drainage work include diversions or regulation structures, including but not limited to control gates or head gates, check dams or diversion dams, culverts, measuring devices and their housing (including stilling wells and staff gages), flumes, siphons, pumps, pipes, protective structures, energy dissipaters, fish passage structures, and trash screens or trash racks.

Letter of Map Change (LOMC): A general term used to refer to the several types of revisions and amendments to FIRMs that can be accomplished by letter. They include Letter of Map Amendment (LOMA), Letter of Map Revision (LOMR), Letter of Map Revision based on Fill (LOMR-F), and Conditional Letters of Map Revision (CLOMR).

Letter of Map Amendment (LOMA): An official amendment, by letter, to an effective National Flood Insurance Program (NFIP) map. A LOMA establishes a property's or structure's location in relation to the Special Flood Hazard Area (SFHA). LOMAs are usually issued because a property or structure has been inadvertently mapped as being in the floodplain but is actually on natural high ground above the base

flood elevation.

Letter of Map Revision (LOMR): FEMA's modification to an effective Flood Insurance Rate Map (FIRM) or a Flood Boundary and Floodway Map (FBFM) or both. LOMRs are generally based on the implementation of physical measures that affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective Base Flood Elevations (BFEs), or the Special Flood Hazard Area (SFHA). The LOMR officially revises the Flood Insurance Rate Map (FIRM) or Flood Boundary and Floodway Map (FBFM), and sometimes the Flood Insurance Study (FIS) report, and when appropriate, includes a description of the modifications.

The LOMR is generally accompanied by an annotated copy of the affected portions of the FIRM, FBFM, or FIS report.

Letter of Map Revision Based on Fill (LOMR-F): FEMA's modification of the Special Flood Hazard Area (SFHA) shown on the Flood Insurance Rate Map (FIRM) based on the placement of fill outside the existing regulatory floodway. The LOMR-F does not change the FIRM, FBFM, or FIS report.

Conditional Letter of Map Revision (CLOMR): A formal review and comment as to whether a proposed flood protection project or other project complies with the minimum NFIP requirements for such projects with respect to delineation of Special Flood Hazard Areas. A CLOMR does not revise the effective Flood Insurance Rate Map (FIRM) or Flood Insurance Study (FIS). Upon submission and approval of certified as-built documentation, a Letter of Map Revision (LOMR) may be issued by FEMA to revise the effective FIRM.

Lowest Floor: The lowest floor of the lowest enclosed area (including basement or subgrade crawl space). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; Provided, that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of 44 CFR Section 60.3 and this Section.

Maintenance: The act of ongoing upkeep of existing structures required to keep channels in a condition adequate to support the conveyance of irrigation and drainage water (this does not include the complete replacement or substantial replacement of an existing structure). Maintenance is further defined as the care or upkeep of channels, works, appurtenances, easements, utility corridors and property; to keep in an existing state, specified state of repair, and efficiency; return to a former condition, elevation, place, and position; to preserve from failure or decline; or repair or renovate so as to return it to its original condition. Maintenance does not include dredging as defined herein.

Manufactured Home: A structure, transportable in one or more sections, built on a

permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. This includes Tiny Homes and Park Models. The term "manufactured home" does not include a "recreational vehicle."

Manufactured Home Park or Subdivision: A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Market Value: The building value, not including the land value and that of any accessory structures or other improvements on the lot. Market value is determined by the tax assessed values, unless revised by an independent certified appraisal (paid for by the property owner).

New Construction: For floodplain management purposes, a structure for which the start of construction commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures. Any construction started after April 4, 1984 (entry into the NFHP), and before the effective start date of this floodplain management section is subject to the section in effect at the time the permit was issued, provided the start of construction was within one hundred and eighty (180) days of permit issuance.

Nonresidential Structure: A building, other than a residential structure or dwelling, or parts thereof, that is open to the public or for private use. The term nonresidential structure includes but is not limited to: structures used for places of assembly, education, business, maintenance, storage, manufacturing, and government.

Operation: The regular and reoccurring performance of typical work by an irrigation or drainage entity including, but not limited to, the delivery or drainage of water, measurement of water, and adjustment of irrigation and drainage works and all related appurtenances.

Ordinary High-Water Mark: The line that the water impresses upon the soil by covering it for sufficient periods of time to deprive the soil of its vegetation and destroy its value for agricultural purposes. When the soil, configuration of the surface, or vegetation has been altered by human activity, the natural or ordinary high-water mark will be located where it would have been if this alteration had not occurred.

Recreational Vehicle: A vehicle that is:

- A. Built on a single chassis;
- B. Four hundred (400) square feet or less when measured at the largest horizontal projection;
- C. Designed to be self-propelled or permanently towed by a light duty truck; and
- D. Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Regulatory Floodway: See FEMA Regulatory Floodway Boundary

Repair: The restoration to good or sound conditions of any part of an existing structure, channel, channel bank, or service road for the purpose of maintenance (this does not include the complete replacement or substantial replacement of an existing structure). Repair does not include dredging as defined herein.

Residential Structure: A building used as a dwelling for one or more persons. The term residential structure includes, but is not limited to houses, family day care homes, group day care facilities, apartment buildings, lodging homes, dormitories, hotels, motels, hospitals, sanatoriums, and nursing homes. The term residential structure also includes accessory use areas used in conjunction with, and an integral part of, a residential structure.

Riparian Area: The land that directly abuts a natural body of water such as a river, lake, stream, creek, or coastal body of water and is within twenty-five feet (25') of the FEMA Regulatory Floodway Boundary.

Special Flood Hazard Area (SFHA): The areas in Ada County in the flood plain subject to a one percent (1%) or greater chance of flooding in any given year. For purposes of these regulations, the term "Special Flood Hazard Area" is synonymous in meaning with the phrase "area of special flood hazard." It also includes foothill or hillside tributary floodplain; and other areas determined by the floodplain administrator to be a hazard to public health, safety, and welfare due to flooding.

Start of Construction: Includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvement was within one hundred and eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading, and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure: A walled and/or roofed building, including a gas or liquid storage tank that is principally above ground, as well as a manufactured home.

Substantial Damage (SD): Damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed

fifty percent (50%) of its market value before the damage occurred. See definition of “substantial improvement.” Substantial damage also means flood- related damage sustained by a structure on two separate occasions during a ten (10) year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds twenty-five percent (25%) of the market value of the structure before the damage occurred.

Substantial Improvement (SI): Any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure before the “start of construction” of the improvement. This term includes structures which have incurred “substantial damage,” regardless of the actual repair work performed. The term does not, however, include either:

- A. Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or
- B. Any alteration of a “historic structure,” provided that the alteration will not preclude the structure’s continued designation as a “historic structure” and the alteration is approved by variance issued pursuant to this Section.

Violation: The failure of a structure or other development to be fully compliant with this Section. A structure or other development without the Finished Construction Elevation Certificate, other certifications, or other evidence of compliance required in 44 CFR Sections 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or(e)(5) is presumed to be in violation, see Chapter 8 of this Title, until such time as that documentation is provided.

G. Process

1. **Approval.** Prior to the commencement of any development within any Special Flood Hazard Area, the property owner shall obtain approval of a floodplain permit.
2. **Application.** An application, including fees, shall be submitted to the Development Services Department, on forms provided by the department, along with all required information identified on the applicable floodplain checklist. The floodplain administrator will review the request and determine if additional information, certificates, or studies are required prior to commencement of development or manufactured home placement.
3. **Permit Duration.** The approval of a floodplain permit shall be limited to a two (2) year period in which the proposed improvements shall be completed to the satisfaction of the floodplain administrator.
4. **Determination of the Base Flood Elevation (BFE).** The first item to accomplish for any proposed work in the special flood hazard area is to determine the BFE by any of the following:
 - a. A previous FEMA study or map. FEMA Zone AE will already have a BFE noted for use.

- b. A flood elevation study (FES). FEMA Zone A will require the BFE to be established by the application. A FES shall be prepared by a professional engineer licensed in the state of Idaho and must be approved by the floodplain administrator prior to the commencement of any development. The study submitted shall include:
 - 1. A title;
 - 2. A table of contents;
 - 3. The location and description of the property;
 - 4. A scope of work;
 - 5. Analysis and documentation of methods and procedures to determine the flood elevation and any additional information required by this Section;
 - 6. A discussion of the proposed use in the existing floodplain and the surrounding land uses;
 - 7. A discussion of floodplain regulation compliance; and
 - 8. All other items identified on the floodplain checklist as may be applicable and/or as may be required by the floodplain administrator.
- 5. **Once the BFE is determined the following standards apply:**
 - a. A grading and drainage plan shall be submitted showing adequate drainage paths around structures.
 - b. For Residential Structures, the application shall include an Elevation Certificate on the most current FEMA Approved forms. The Elevation Certificate must show the lowest floor elevation (including basement or crawlspace) is two feet (2') above the BFE. New residential structure construction in the floodway is prohibited.
 - c. For Non-Residential Structures, the application shall include an Elevation Certificate on the most current FEMA Approved forms. The Elevation Certificate must show the lowest floor elevation (including basement or crawlspace) is two feet (2') above the BFE. OR the application shall include a Floodproofing Certificate on the most current FEMA approved forms. The Floodproofing Certificate must show floodproofing protection is provided up to two feet (2') above the BFE. New non-residential construction in the floodway is prohibited.
 - d. For pools, the application shall include an Elevation Certificate or Floodproofing certificate on the most current FEMA approved forms. The form must show flood protection is provided up to two feet (2') above the BFE. New pool construction in the floodway is prohibited.
 - e. For a pit, mine, or quarry, the application shall demonstrate that the extraction site will be designed to avoid river avulsion by a FES. The FES must be approved prior to commencement of the use or breaking ground. Gravel mining operations or excavations are not permitted within two hundred feet (200') of the top of riverbank regardless of floodway or floodplain designation. Material

stockpiles and permanently installed structures shall not be located within the regulatory floodway. New pit, mine, or quarry construction and/or operation is prohibited in the floodway.

- f. For a proposed subdivision, the application shall demonstrate that the subdivision shall be consistent in design and construction with the need to minimize flood damage. Public utilities and facilities including, but not limited to, sewer, gas, electrical, telephone, and water systems shall be located and constructed to minimize flood damage and certified by a professional engineer licensed in the state of Idaho. Adequate drainage shall be provided to reduce exposure to flood damage. All roads shall be elevated at two (2') above the established base flood elevation and allow flood water to pass under so that it does not act as a check dam. New subdivision construction is prohibited in the floodway.
- g. For subdivisions, the SFHA boundary lines must be drawn on the final plat and a plat note(s) added designating the following:
 - 1. FEMA FIRM panel(s): #160xxxxxxC, and 160xxxxxxE, etc.;
 - 2. FIRM effective date(s): mm/dd/year;
 - 3. Flood Zone(s): Zone X, Zone A, Zone AE, A Zone, Zone D, etc.;
 - 4. Base Flood Elevation(s): AE xxxxxx.x ft., etc.; and
 - 5. The following statement: "Flood Zones are subject to change by FEMA and all land within a floodway or floodplain is regulated by Section 8-2-28 of the Ada County Code and FEMA and the Local Floodplain Authority."
- h. For proposed work in a Foothill or Hillside tributary, the County Engineer may require an FES to determine that the proposed work will not result in any increase in flood levels within the community during the occurrence of the base flood discharge.
- i. For new bridges, the proposed plan(s) shall show that all horizontal bridge supports are elevated two feet (2') above the BFE and that all supporting members are designed to withstand the flows and velocities of the base flood.
- j. If the proposed work requires a change to the effective FEMA Map and/or FIS, then a LOMR shall be submitted to FEMA. Ada County may require the applicant submit a CLOMR to FEMA prior to work starting if the project scope warrants.
- k. The following setbacks apply to all proposed work in the Special Flood Hazard Area and outside of the Special Flood Hazard Area:

Boise River Setback. Structures, parking areas, and fences shall be setback one hundred feet (100') from the Floodway line of the Boise River. Structures, parking areas and fences shall also be five feet (5') from the boundary of all dedications or easements granted to the County for recreational purposes in excess of sixty-five feet (65').

Great Blue Heron Rookeries Setback. If Great Blue Heron Rookeries have

been identified and documented by the County or Idaho Fish and Game Department, a three-hundred-foot (300') setback from the rookery location, applies to development within the Boise River Greenway.

Bald Eagle Nest Setback. If Bald Eagle nests have been identified and documented by the County or Idaho Fish and Game Department, a two-hundred-foot (200') setback from the nest location, applies to development within the Boise River Greenway.

Riparian Setback. Grading including vegetation clearing or thinning is not allowed within one hundred feet (100') of the FEMA Regulatory Floodway Boundary unless required for public safety and approved in writing prior to work.

- l.** For proposed fences and walls, fence construction is prohibited in the Floodway. Proposed fencing in the floodplain shall be reviewed on a case-by-case basis to confirm flood flows will not be obstructed.
- m.** For proposed projects that have Functionally Dependent Use, functionally dependent uses shall follow the standards of this Section, provided that the use does not cause a rise in the BFE within a regulatory floodway, and the structure and other development must be protected by methods that minimize flood damages.
- n.** For habitat restoration and bank stabilization projects, a floodplain permit is required. Although these projects will require a No-Rise Certification, these projects may not require a full hydraulic analysis if the permit shows equal or greater flood water conveyance by standard engineering practice.
- o.** For irrigation district work, the floodplain permit will be governed by the Guidance Letter issued to Ada County from the Idaho Department of Water Resources dated 5-20-2019, and any following amendments from IDWR.

H. Land Use Restrictions for Special Flood Hazard Areas

- 1. Land Use Restrictions.** AE, A, and D Zones and the Regulatory Floodway: Despite any other regulations of this Title, Critical Facilities, and the following uses, including any new construction or substantial improvements to such uses, are prohibited in the regulatory floodway, AE, A, or D zone where the base flood elevations have been determined or estimated:

Explosive manufacturing or storage.

Flammable substance storage.

Foster home, group.

Gasoline, diesel, or alternative fuel sales.

Junkyard or automobile wrecking yard.

Manufacture and/or storage of materials that are buoyant, flammable, toxic, radioactive, or explosive or may present a hazard to public health or safety in time of flooding.

Manufacture of electronic or electrical products.
Manufacture or processing of hazardous chemicals or gases.
Manufactured home storage.
Portable classroom.
Sanitary landfill, restricted.
School, vocational or trade.
Soil or water remediation.
Tannery.
Vehicle impound yard.
Stormwater Facilities
Sanitary Sewer Facilities.

I. Required Findings. In order to approve the application, the decision-making body shall find that the proposed development including, but not limited to, new construction, placement of manufactured home or substantial improvement, meets the general regulations and standards as set forth in this Section, and as such, shall find that the proposed work would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

J. Appeals

1. Appeals of determinations made by the floodplain administrator shall be heard by the board and shall comply with procedures of Section 8-6-13 of this Title.
2. Appeals which allege there is an error in any requirement, decision, or determination made by the floodplain administrator in the enforcement or administration of this Section, shall be supported by technical and scientific evidence which shall include, but is not limited to, the following items:
 - a. A copy of the recorded plat map showing the property or, if there is no recorded plat map, a scaled vicinity map showing the property.
 - b. A topographic map showing ground elevation contours and a line representing the area subject to inundation by the base flood.
 - c. Certification by a professional engineer licensed in the state of Idaho of the elevation of the lowest floor (including basement and/or crawl space), the elevation of any fill, the date on which the fill was placed, and the elevation to which any structure has been floodproofed.
3. The board shall base their decision on an appeal on the specific and technical evidence in the record.

K. Variances to Flood Insurance Program Standards

1. **Purpose.** The purpose of this Section is to provide a relief from national flood insurance program standards as they pertain to a physical piece of property and at the same time not jeopardizing sufficient flood protection.

2. Applicability. Variances may be issued consistent with the FEMA variance and exception regulations as set forth in 44 CFR Chapter 1, Section 60.6.

3. Process.

- a. An application and fees, as set forth in Section 8-6-5 of this Title, shall be submitted to the Director on forms provided by the Development Services Department.
- b. The Board shall consider all technical evaluations, all relevant factors, standards specified in other Sections of this Section including, but not limited to, the expected heights, velocity, duration, rate of rise, and sediment transport of the floodwaters if applicable, expected at the site.
- c. The Board may attach such conditions to the granting of variances as it deems necessary to further the purposes of this Section.
- d. The Board shall apply the findings listed in subsection 4 of this subsection to review the variance.
- e. Anyone to whom a variance is granted shall be given written notice that:
 - 1. The issuance of the variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as twenty-five dollars (\$25.00) for one hundred dollars (\$100.00) of insurance coverage; and that such construction below the base flood level increases the risk to life and property.

4. Required Variance Findings

- a. The proposed use adequately mitigates any danger that materials may be swept onto other properties to the injury of others;
- b. The proposed use adequately mitigates the danger to life and property due to flooding or erosion damage;
- c. The proposed use minimizes the susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;
- d. The proposed use provides an important service to Ada County;
- e. The proposed use shall not cause extraordinary public expense in providing governmental services during post-flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, water systems, and streets and bridges;
- f. The proposed use shall not have available alternative locations that are not subject to flooding or erosion damage;
- g. The proposed use provides for safe access to the property in times of flood for ordinary and emergency vehicles;
- h. The variance shall not conflict with existing local laws or articles;
- i. The variance is the minimum necessary, considering the flood hazard, to afford relief;
- j. The variance shall not result in increased flood heights during the base flood

discharge;

- k. The variance shall not cause fraud on or victimization of the public; and
 - l. Failure to grant the variance would result in exceptional hardship.
5. **Required Findings for Historic Structures.** The following additional findings are required for variances for historic structures:
- a. The proposed repair or rehabilitation of the structure will not preclude the structure's continued designation as a historic structure; and
 - b. The variance is the minimum necessary to preserve the historic character and design of the structure.

8-2-29: Boise River Greenway (BRG) Overlay District

- A. **Purpose.** The purpose of the Boise River Greenway Overlay (BRG) District is to protect and enhance the important environmental features of the Boise River, and to protect fish, wildlife, and recreation resources consistent with the purpose of the "Local Land Use Planning Act," Idaho Code Section 67-6501 et seq., as amended.
- B. **Applicability.** This Section applies to development as herein defined in those lands situated between the Boise River and a three hundred feet (300') wide buffer zone that parallels the FEMA Regulatory Floodway Boundary as defined in Section 8-2-28. All terms are as defined in subsection 8-2-28F.

C. General Standards

- 1. Development shall minimize the disturbance of natural vegetation within the BRG.
- 2. Development within the BRG shall incorporate landscaping in all unpaved areas where the natural vegetation has been disturbed or removed.
- 3. In addition to the requirements of Section 8-2-28 of this Chapter, and of Section 8-3-7G of this Title, parking areas shall have a minimum five-foot (5') screen between an approved parking area and the Ordinary High-Water Mark, as defined in subsection 8-2-28F, of the Boise River. Screening materials shall be as set forth in Section 8-3-7E of this Title.
- 4. Additional screening of uses as viewed from the Boise River Greenway may be required consistent with the purpose of this Section.

D. Specific Standards

- 1. **Wetlands.** In recognition of their importance and their scarcity, wetlands shall be preserved as follows:
 - a. Wetlands may be replaced with a wetland of equal size, provided that the created wetland has the same or greater degree of natural resource functions and values as did the impacted wetland.
 - b. The wetland may be relocated anywhere on the project site or offsite.
- 2. **Enhancement of Water Resources.** Proposals to use or create a water amenity shall be designed to accommodate wetland and riparian functions and wildlife or warm water fish habitats.

3. **Parks and Open Spaces.** Open spaces such as parks, golf courses, greenbelt areas, parking lots, etc., within the BRG and the floodplain, shall be designed to accommodate the base flood event as provided in Section 8-2-28.
4. **Emergency Access.** New developments shall include provisions for emergency access as determined by the applicable Fire and Flood Control Districts.
5. **Landscaping.** Landscaping shall utilize native or naturalized plant materials that provide wildlife food and shelter. Manicured landscaping and lawns are prohibited in riparian areas and setbacks.
6. **Bank and Channel.** Bank or channel stabilization measures (e.g., rip-rap, drop structures, large cobble) shall include over-planting with shrubs and trees and the deliberate enhancement of fish habitat.
7. **Construction Fencing.** Fencing shall be installed during construction activities that abut a riparian area.

E. Setbacks

1. **Boise River Setback.** Structures, parking areas, and fences shall be setback one hundred feet (100') from the boundary of the floodway, as defined in Section 8-2-28F, of the Boise River or five feet (5') from the boundary of all dedications or easements granted to the County or other government entity for greenbelt or recreational purposes in excess of ninety-five feet (95').
2. **Great Blue Heron Rookeries Setback.** If Great Blue Heron Rookeries have been identified and mapped by Idaho Fish and Game Department, a three-hundred-foot (300') setback, from the rookery location, applies to development within the Boise River Greenway.
3. **Bald Eagle Nest Setback.** If Bald Eagle nests have been identified and documented by the County or Idaho Fish and Game Department, a two-hundred-foot (200') setback, from the nest location, applies to development within the Boise River Greenway.

F. Allowed Uses and Improvements. The following uses and improvements are allowed within the Boise River setback subject to the standards for uses, and/or mitigation and enhancement provisions that may be required by the County Engineer and set forth in this Chapter. All uses not explicitly listed are prohibited.

1. Signs
2. Restrooms
3. River bridges and paved access to river bridges
4. Fish and wildlife habitat improvements
5. Irrigation weirs, diversion dams, and inlets
6. Water inlets to supply domestic water
7. Pedestrian paths that may provide limited access to the river
8. Paved bicycle paths, limited to:
 - a. Existing paths

- b. Future paths identified by the County Comprehensive Plan or Transportation Plan
- c. Where an existing railroad right-of-way is already located or that may be required, donated, or used as a bicycle path.

9. Parks

10. Bank and channel stabilization projects

11. Hydro-electric and flood protection dams

12. Public piers and beaches owned by the County, a municipality, or the State of Idaho

13. Public utility lines such as water and sewer lines

14. Storm drain outlets and detention basins

15. Water pump facilities

16. Gravel extraction needs to remove gravel deposits following a flood event.

G. Permit Conditions. Conditions may be attached that:

- 1. Require compliance with applicable specifications, standards or requirements of the Idaho Department of Water Resources, Army Corps of Engineers, the Idaho Fish and Game Department, U.S. Fish and Wildlife Service, Environmental Protection Agency, Ada County, or other agencies.
- 2. Require preservation of existing vegetation, and mitigation or enhancement of natural resources of this Chapter.
- 3. Require landscaping consistent with the objectives of the extension of the natural setting of the river.
- 4. Limit construction to certain periods of time.
- 5. Require certification by a licensed engineer in the state of Idaho that conditions have been fulfilled.

8-2-30: Hillside (HS) Overlay District

A. Purpose. The purpose of the Hillside Overlay (HS) District is to:

- 1. To provide for public safety and welfare in the development and design of building sites, roadways, and other service amenities;
- 2. To preserve and enhance the hillside landscape by encouraging retention of natural features, such as drainage swales, streams, slopes, ridgelines, crests of hills, rock outcroppings, vistas, and natural formations;
- 3. To provide safe ingress and egress for vehicular, bicycle, and pedestrian traffic to and within the hillside areas, while at the same time minimizing the scarring effects of hillside development; and
- 4. To use the planning, design, and engineering professions and the natural sciences including botany, biology, ecology, soils, and geology to mitigate potential hazards, and to enhance the existing and future appearance and resources of the hillsides.

B. Applicability

1. Trail development that does not exceed eight feet (8') in width and three feet (3') cut, or three feet (3') fill shall be exempt from the provisions of this Section.
2. Except for as allowed in subsection 1 of this Section, the regulations of this Section apply to any grading, filling, clearing, or excavation of any kind where slopes exceed twenty-five percent (25%).
3. The Hillside areas shall be designated in two (2) levels:
 - a. Level 1: Areas where the slope is at least twenty-five percent (25%).
 - b. Level 2: Areas that meet Level 1 criteria and that have special hazard areas as described in subsection E.2.

C. Application Requirements

1. **Application.** An application, as set forth in Chapter 6 of this Title, shall be submitted to the Director on forms provided by the Development Services Department. Level 2 requires all information described in subsection E.2 to the County Engineer and the Director.
2. **Preliminary Grading Plan.** Levels 1 and 2 require a preliminary grading plan designed to ensure that the properties within the development are able to conform to the requirements of a final grading plan as set forth in subsection E. The following items shall be included in the preliminary grading plan:
 - a. Contour lines at five-foot (5') intervals; the maximum allowable side slope on any cuts and fills is 2:1;
 - b. The location of all proposed or existing structures and roads;
 - c. Any areas of cut or fill;
 - d. Any areas with characteristics listed in subsection E.2 of this Section; and
 - e. A narrative indicating how the proposed design complies with the purpose statement of the Hillside Overlay District.
3. **Slope Stabilization and Revegetation Plan and Report.** A licensed landscape design professional shall prepare the slope stabilization and revegetation plan. The report shall include a complete description of the existing soils, existing vegetation, the vegetation to be removed and the method of disposal, the vegetation to be planted, soils amendments and pH adjustments, and slope stabilization measures to be implemented. The plan shall include an analysis of the environmental effects of such operations including the effects on slope stability, soil erosion, water quality, and fish and wildlife.
4. **Engineering Hydrology Report.** A professional engineer registered in the state of Idaho shall complete an engineering hydrology investigation and report. This individual should be experienced and knowledgeable in the science of hydrology and in the techniques of hydrologic investigation. This report shall include the following information:
 - a. An adequate description of the hydrology of the site, conclusions on the proposed development, and opinions and recommendations covering the adequacy of sites to be developed. The report shall include results of field investigations of the site,

unless existing information is determined by the County Engineer to be sufficient to satisfy the purpose of this Section.

- b.** The Hydrology Report shall use the best available data and standard engineering practice.
- 5. Soils Engineering Report.** Any area proposed for development shall be investigated to determine the soil characteristics.
 - a.** This report shall include the following information:
 - 1.** Data regarding the nature, distribution, and strength of soils.
 - 2.** Conclusions and recommendations for grading procedures, design criteria for corrective measures, and opinion and recommendations covering the adequacy of sites to be developed.
 - 3.** Results of field investigations of the site unless existing information is determined by the County Engineer to be sufficient to satisfy the purpose of this Section.
 - b.** The investigation and report shall be completed by a professional engineer registered in the state of Idaho. This individual should be experienced and knowledgeable in the practice of soils mechanics.
 - c.** Recommendations included in the report shall be incorporated into the design plan and specifications.
- 6. Engineering Geology Report.** Any area proposed for development shall be investigated to determine its geological characteristics. This report shall include the following information:
 - a.** A description of the geology of the site, conclusions, and recommendations regarding the effect of geologic conditions on the proposed development, and the opinions and recommendations covering the adequacy of sites to be developed. The report shall include results of field investigations of the site, unless existing information is determined by the County Engineer to be sufficient to satisfy the purpose of this Section.
 - b.** The investigation and report shall be completed by either a professional geologist registered in the state of Idaho or by a professional engineer registered in the state of Idaho. This individual should be experienced and knowledgeable in the principles and practices of engineering geology.
 - c.** Any area in which the investigation indicates geologic hazards shall not be developed unless the project engineer can demonstrate to the County Engineer, based on the required engineering reports, that these hazards can be overcome in such a manner as to prevent hazard to people, hazard to property, adverse effects on the safety, use or stability of a public way or waterway, and adverse impacts on the natural environment.
 - d.** Recommendations included in the report shall be incorporated into the design plan and specifications.

7. **Visual Impact Report.** This report shall be prepared by a licensed design professional in the state of Idaho and shall be submitted with the development application. The report shall include the following information:
 - a. The view from key vantage points along public roadways or public viewing areas that depict the existing view (prior to development) and the proposed view (after development).
 - b. Proposed screening methods such as architectural design, designated building envelopes, height restrictions, landscaping, fencing, construction materials, and colors.
 - c. The existing vegetation and the proposed method of preserving and/or replacing such vegetation.
 - d. A statement detailing how the proposed development or subdivision minimizes grading through careful site and roadway design.
8. **Other Pertinent Data.** Any other pertinent data deemed necessary by the engineer of record or by the Director, after consulting with the engineer of record, to satisfy the stated purpose of this Section and that is reasonably related to the health, safety, and welfare of the general public and persons who might purchase the property being developed.

D. Process

1. The preliminary grading plan, prepared by the engineer of record, shall be submitted with the development application. The Director shall forward the preliminary grading plan and other documents required by this Section to the County Engineer for review and recommendation.
2. Upon review of the study, the County Engineer shall forward a recommendation on the grading plan to the Director. The Director shall apply the standards listed in subsection E of this Section and the required findings listed in subsection F of this Section to determine whether or not to approve, approve with conditions, or deny the preliminary grading plan.
3. No grading, filling, clearing, or excavation of any kind shall be initiated until the preliminary grading plan is approved by the Director, and the development has received final approval by the decision-making body. For subdivisions, Board approval of the preliminary plat is deemed the final approval.
4. When required by the Director, special inspections and special testing shall be performed to verify conformance with this Section. The cost of special inspections and special testing shall be paid by the applicant or owner.

E. Standards

1. General Standards

- a. Construction shall be scheduled to minimize soil disturbance between December 1 and April 15.
- b. The County Engineer may require the grading operation and/or project schedule

be modified if delays occur which result in weather-generated problems not anticipated at the time approval was granted.

- c. All development shall take into account land use planning, soil mechanics, hydrology, civil engineering, the environment, architectural and landscape design, and related disciplines as applied to hillside areas.

2. Development of Special Hazard Areas. Any area that presents one or more of the following limiting factors shall not be permitted to develop unless the engineer of record can demonstrate to the County Engineer, based on the required engineering reports, that these limitations can be overcome in such a manner as to prevent hazard to life, hazard to property, adverse effects on the safety, use or stability of a public way or drainage channel, and adverse impact on the natural environment:

- a. Landslide areas or scarps, or areas of active landslides.
- b. Lines of active faults.
- c. Soils with a high shrinkage-expansion potential and hydro- compactible soils.
- d. Soils with unified classification of ML, CL, OL, MH, CH, OH, and Pt as listed in ASTM.
- e. Natural slopes greater than twenty five percent (25%).
- f. Water table within six feet (6') of the surface at any time of the year.
- g. Any area of hydrologic hazard as determined by the engineering hydrology report.

3. Vegetation

- a. Vegetation shall be removed only when absolutely necessary, such as for the construction of structures, filled areas, roadways, firebreaks, or as required by this Title.
- b. An effort shall be made to conserve topsoil that is removed during construction for later use on areas requiring revegetation or landscaping, e.g., cut and fill slopes.
- c. Vegetation or a chemical or mechanical stabilization method sufficient to stabilize the soil shall be established on all disturbed areas, except for proposed rights of way, as each stage of grading is completed.

4. Grading and Stabilization

- a. All retaining walls with a total vertical height of four feet (4') or more, including footing, shall be designed in accord with the regulations of the Ada County Building Code.
- b. All slopes that are stabilized by mechanical or chemical means shall conform to the surrounding terrain and shall be given aesthetic treatment that is consistent with the purpose of this Section.
- c. Large tracts shall be divided into smaller workable units on which construction can be completed within one construction season so that large areas are not left bare and exposed during the winter-spring runoff period.
- d. All disturbed soil surfaces shall be stabilized or covered prior to December 1. If the

planned impervious surfaces (e.g., roadways, driveways, etc.) cannot be established prior to December 1, a temporary treatment adequate to prevent erosion shall be installed on those surfaces.

5. Hydrologic Controls

- a.** Curb and gutter, pavement, and appurtenant roadway drainage facilities shall be designed to control roadway runoff to accommodate the 100-year design storm.
- b.** Watercourses shall be riprapped or otherwise stabilized below drainage and culvert discharge points for a distance sufficient to convey the discharge without channel erosion.
- c.** Any material from construction, including soil and other material, shall not be deposited within any floodway or watercourse.
- d.** All new water courses shall be designed to accommodate the 100-year design storm.
- e.** With the exception of roadway crossings, approved drainage structures, and recreation and open space uses that do not involve the destruction of vegetative cover, development shall be prohibited within the 100-year floodplain for major watercourses.

6. Sediment

- a.** All construction must meet current EPA and IDEQ erosion and control rules.
- b.** The overall drainage system shall be completed and made operational at the earliest possible time during construction. No certificate of occupancy shall be issued on the property until the drainage system is complete.
- c.** Alterations of major watercourses shall be prohibited, except for approved roadway crossings and drainage structures.
- d.** Natural or improved open channels shall be preserved, or provided for, in watercourses, except that at roadway crossings, conduits may be permitted.

7. Roadways and Circulation

- a.** Roadway alignments shall be designed to create the minimum feasible amounts of land coverage and the minimum feasible disturbance of the soil.
- b.** Roadway alignments shall be designed to minimize removal of existing deep rooted perennial vegetation.
- c.** Roadway alignments shall be designed to follow natural terrain.
- d.** The width of the graded section shall extend five feet (5') beyond the travel right of way line on both the cut and fill sides of the roadway for slope rounding purposes. If a sidewalk is to be installed parallel to the roadway, the graded section shall be increased by the width of the sidewalk plus five feet (5') beyond the sidewalk.
- e.** Combinations of collective private driveways, cluster parking areas, and on street parallel parking bays shall be used where possible to attempt to optimize the objectives of minimum soil disturbance and minimum impervious cover.

- d. Adverse impact on the natural environment.
- 2. The request for a waiver of standards shall be in writing and shall state the reason for the request. The request shall be signed and have the professional seal of the engineer of record. The justification for the waiver shall be based on the engineering reports required in subsection C.

H. Engineer of Record Responsibilities

- 1. To ensure that the intent of this Section is attained through the principles and practices of civil engineering, the applicant or owner shall retain a professional engineer currently licensed in the state of Idaho to serve as the engineer of record. It shall be the responsibility of the engineer of record:
 - a. To prepare the preliminary grading plan.
 - b. To incorporate into the grading plans all recommendations contained in the soils, geology and hydrology reports, and the slope stabilization and revegetation plan and other reports as required in this Section.
 - c. To inspect and certify all work within the project.
 - d. To act as coordinating agent for liaison between other professionals, the owner, and the Director.
 - e. To communicate any substantial plan changes due to field conditions with the final substantial completion letter.
- 2. Prior to and during grading operations, the engineer of record shall submit all necessary reports, compaction data, soils, geology, and hydrology recommendations to the Director.
- 3. If, in the course of fulfilling the specified responsibilities, the engineer of record discovers that the work is being accomplished to a substantially lesser standard than required by this Section or by the approved final grading plan, the noncompliance shall be reported in writing to the Director within three (3) working days with recommendations for corrective measures, if applicable. The Director may require corrective action within a specified period of time. If any deficiency is deemed by the Director to be an imminent threat to the public health, safety, or welfare, that work shall be stopped immediately until such deficiencies are corrected.
- 4. If the engineer of record, the soils engineer, the geologist, the professional landscape architect, or the hydrologist of record is replaced during the course of work, the work shall be stopped. Work may resume when the replacement individual has agreed to accept the responsibility for certifications of the work within the areas of their individual technical competence.
- 5. If work is stopped during inclement weather, all open, and/or unfinished work on the project shall be protected to the satisfaction of the Director.
- 6. At the conclusion of the approved work, the engineer of record shall submit a report to the Director stating that the work has been executed in compliance with the approved plans. The report shall have the signature and professional seal of the engineer of record.

CHAPTER 3 DEVELOPMENT STANDARDS

SECTION:

- 8-3-1: PURPOSE AND APPLICABILITY
- 8-3-2: GENERAL STANDARDS
- 8-3-3: ACCESS
- 8-3-4: BUILDING DESIGN
- 8-3-5: INFRASTRUCTURE
- 8-3-6: FENCES
- 8-3-7: LANDSCAPING
- 8-3-8: LIGHTING
- 8-3-9: OPEN SPACE
- 8-3-10: PARKING AND LOADING
- 8-3-11: PRIVATE ROADS
- 8-3-12: SIGNS

8-3-1: Purpose and Applicability

- A. Purpose.** This Chapter establishes general regulations for all uses within base and overlay districts including specific regulations for access, building design, infrastructure, landscaping and screening, lighting, dedicated open space, parking and loading, private roads, and signs. See Chapter 4 for use standards.
- B. Applicability.** The regulations of this Chapter generally apply to all development in unincorporated Ada County:
 - 1. Generally.** Section 8-3-2 establishes general standards for all development.
 - 2. Access.** Access shall comply with Section 8-3-3 of this Chapter.
 - 3. Building Design.** Building design shall comply with Section 8-3-4 of this Chapter.
 - 4. Infrastructure.** Infrastructure shall comply with Section 8-3-5 of this Chapter.
 - 5. Fences.** Fences shall comply with Section 8-3-6 of this Chapter.
 - 6. Landscaping and Screening.** Landscaping and screening shall comply with Section 8-3-7 of this Chapter.
 - 7. Lighting.** Exterior lighting shall comply with Section 8-3-8 of this Chapter.
 - 8. Dedicated Open Space.** Dedicated open space uses in subdivisions and planned unit developments shall comply with Section 8-3-9 of this Chapter.
 - 9. Parking and Loading.** Off-street parking and loading facilities shall comply with Section 8-3-10 of this Chapter.
 - 10. Private Roads.** Private roads shall comply with Section 8-3-11 of this Chapter and the procedures in Chapter 6 of this Title.
 - 11. Signs.** Signs shall comply with Section 8-3-12 of this Chapter.

8-3-2: General Standards

A. Accumulation of Junk

1. Unless approved as a commercial junkyard, accumulation of junk on a property is only allowed on a property where a principally permitted junkyard use is lawfully established.
2. Property owners shall not store an accumulation of junk outdoors on more than one acre or shall not exceed the maximum coverage allowed for the property, whichever standard is more restrictive.
3. All outdoor storage of an accumulation of junk is subject to screening standards of Section 8-3-7E of this Chapter. However, requirements to screen abandoned farm equipment do not apply to farms in a rural district.
4. An accumulation of junk shall not exceed the height of the sight obscuring screen.

B. Atmospheric Emissions. All atmospheric emissions (including, but not limited to, smoke, gas, dust, odor, or other atmospheric pollutants), without respect to whether the emissions are created outside the structure in which the use is conducted or within a completely enclosed structure, requires a permit, as provided in Idaho Code Section 39-115, through the Idaho Department of Health and Welfare.

C. Condominium Projects. All condominium projects shall comply with the requirements of any applicable base and overlay districts. If approved, the condominium project plat and declaration shall be certified by the County Surveyor and signed by the Board as provided in Idaho Code Title 50, Chapter 13 and Title 55, Chapter 15.

D. Contiguous Parcels. Abutting parcels held in the same ownership are considered one property for development purposes unless the owner can demonstrate one of the following:

1. The parcels comply with the regulations of this Title that were in effect at the time those parcels were recorded, and the parcels were originally conveyed and recorded under a single deed identifying each as a separate parcel;
2. The parcels comply with the regulations of this Title that were in effect at the time those parcels were recorded, and the parcels were originally conveyed and recorded under separate deeds;
3. Each of the abutting parcels is a conforming or nonconforming property as defined in Chapter 7 of this Title; or
4. Physical characteristics of the property prevent its use as one unit, for example, the properties are separated by a fee simple ownership and/or the properties are separated by a public right of way, public street, or irrigation canal.

E. Construction Sites. New development shall contain construction debris on site and prevent windblown debris from entering neighboring properties.

F. Dimensional Standards. Dimensional standards and required yards are established for each base district established in Chapter 2 of this Title.

1. Minimum Area and Dimension Requirements

1. No property size, yard, parking area, or other space shall be reduced in area or dimension to make that area or dimension less than the minimum required.

2. If already less than the minimum required by this Title, that area or dimension shall not be further reduced.
3. This provision does not apply to non-buildable properties including, but not limited to, landscape lots, lots for private roads, drainage facilities, pump stations, metering stations and transmission/distribution substations.

2. Setbacks

1. Approved signs are exempt from the setback requirements of Chapter 2 of this Title.

2. Corner lot setback determination.

1. The front yard setback is required along the property line where the driveway enters the property. The side yard setback shall be provided along the side street property line as applicable to the roadway classification.
2. The rear yard setback shall be provided either along the interior side property line or rear property line. The side yard setback shall be provided along the remaining property line (rear or interior side) as applicable.

3. Zero Lot Line Setback Development. Zero lot line development may be allowed in the R2, R4, R6, R8, R12, and R20 districts. For developments containing multiple zero lot line setbacks, reduced setback and street frontage requirements may be applied for concurrent with a preliminary plat application subject to the following standards:

1. The preliminary and final plats shall designate a building envelope for each property with a zero-lot line or abutting a zero-lot line setback.
2. In no case shall a zero-lot line setback be allowed adjacent to a property line that is not part of the subdivision.
3. Within the R12 and R20 districts, no lot shall have more than two (2) zero lot line setbacks.
4. For zero lot line developments within the R2, R4, R6, R8, R12, and R20 districts, reduced street frontage, up to twenty percent (20%) below the district standard, may be requested.

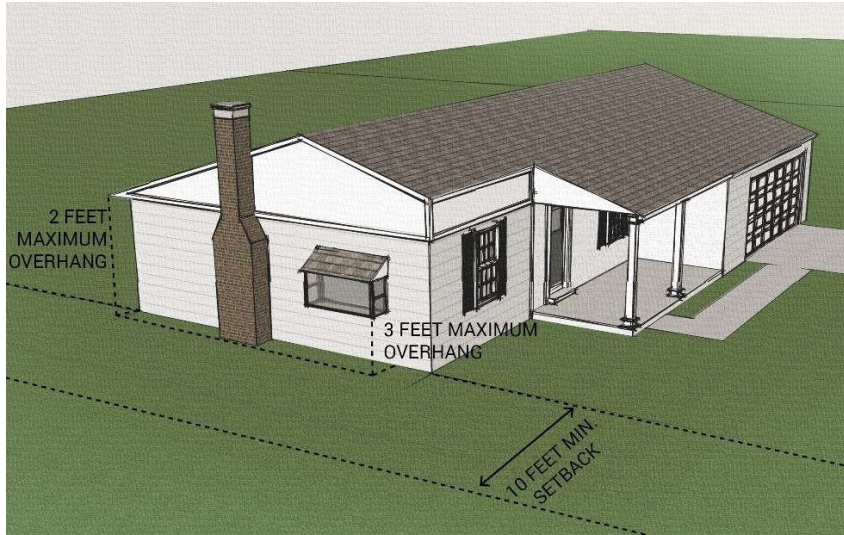
4. Required Yards. The front, side, and rear required yards shall not be occupied by any use or structure except for: fencing (see Section 8-3-6 of this Chapter for specific fence standards); landscaping; off street parking; drives; streets; signs; lighting; detached accessory structures two hundred (200) square feet or less in size and under ten feet (10') in height may be located in side and/or rear required yards only; patios; walkways; retaining walls; and/or certain architectural features as detailed below (see Figure 8-3-2-1 Projections in Required Yards):

1. Where the required setback is greater than ten feet (10').

1. Cornices, canopies, eaves, or other architectural features shall not project more than two and a half feet (2.5') into the required yard.
2. Fire escapes shall not project more than four and a half feet (4.5') into the required yard.
3. Bay windows, balconies, and chimneys shall not project more than three feet

(3') into the required yard if those features do not occupy, in the aggregate, more than one-third (1/3) of the building wall on which they are located.

Figure 8-3-2-1 Projections in Required Yards



5. The property complies with the minimum property size of the base and overlay districts.

G. Transmission Line Corridors. All wire fences, metal structures, and metal objects within one hundred feet (100') of transmission lines shall be grounded.

8-3-3: Access

A. Development shall only be approved on a property that meets the minimum dimensional standards of the base and overlay districts, unless otherwise allowed by this Title.

1. When a property takes access from a private road, the terminus of which is located within the property, the required frontage shall be thirty feet (30') or the width of the private road easement. **Where the required setback is ten feet (10') or less.**

- a. Cornices, canopies, eaves, or other architectural features shall not project a distance more than two feet (2') into the required yard.
- b. Fire escapes shall not project more than two feet (2') into the required yard.
- c. Bay windows, balconies, and chimneys shall not project more than two feet (2') into the required yard if those features do not occupy, in the aggregate, more than one-third (1/3) of the building wall on which they are located.

B. Height Limit Measurement. Chapter 10 describes how structure height is measured.

C. Height Limit Exceptions. The maximum height limitation established in the applicable base district do not apply to:

1. **Agricultural Structures**
2. **Chimney or Smokestack**

- a. Chimney or smokestack architectural features have a sixty foot (60') maximum height limit.
 - b. A maximum height that exceeds sixty feet (60') may be allowed by variance or if specifically authorized as a component of a conditional use permit, subject to the standards identified in subsection e of this Section.
- 3. Spire, Steeple, Belfry, or Cupola**
- a. Spire, steeple, belfry, or cupola architectural features have a sixty feet (60') maximum height limit.
 - b. The maximum height limit may be increased to eighty feet (80') if the architectural feature is found by the Director to comply with the standards identified in subsection e of this Section in conjunction with a review of a master site plan or building permit for the building to which the feature will be attached.
 - c. A maximum height that exceeds eighty feet (80') may be allowed by variance or if specifically authorized as a component of a conditional use permit, subject to the standards identified in subsection e of this Section.
- 4. Institutional Uses.** Institutional uses (including church, hospital, public or quasi-public use, and school, public or private) that require conditional use approval may exceed the maximum height limitation prescribed by the applicable zoning base district if specifically authorized as a component of a conditional use permit; and subject to the standards identified in subsection F.4.e of this section.
- 5. Towers, Commercial and Private.** The following types of tower structures may exceed the maximum height limitation of the applicable base district subject to applicable specific use standards:
- a. Amateur Radio Antenna;
 - b. Distributed Power Facility-Wind Freestanding Tower;
 - c. Water Tower;
 - d. Fire and Hose Tower;
 - e. Observation Tower;
 - f. Power Line Tower;
 - g. Radio Tower;
 - h. Paging Facility;
 - i. Cellular Phone Facility;
 - j. Cellular Tower;
 - k. Television Tower;
 - l. Bridge Tower; or
 - m. Other Commercial or Personal Tower and/or Antenna Structure.
- 4. Architectural Feature Standards.** An architectural feature(s) listed in subsections 8-

3-2F.4.d(2) or 8-3-2F.4.d(3) of this Section which exceeds sixty feet (60') in height shall comply with the following standards:

- a. The mass of the architectural feature is in visual proportion and scale with the building to which it is attached;
- b. The exterior materials and colors of the architectural feature are appropriate to its mass, and are visually complementary with the building to which it is attached;
- c. The architectural feature does not significantly impede views from adjacent properties;
- d. The architectural feature does not include a sign; and
- e. Lighting of the architectural feature is limited to indirect lighting.

D. Grading. No grading, filling, clearing, or excavation of any kind, excluding grading associated with an agricultural use, shall initiate without County Engineer approval of a drainage study or drainage plan (see Section 8-3-5B of this Chapter), and as applicable, an approved hillside application (see Section 8-2-30 of this Title).

E. Hazardous Material Storage. The storage of any hazardous materials, as defined by Title 40 code of Federal Regulations part 261, or subsequent amendments, requires a list of those materials to be submitted to the Ada County Sheriff's Office, the Ada County Emergency Medical Services, the Ada County Development Services Department, the applicable fire district, and the Ada City-County Emergency Management Office, prior to issuance of a zoning certificate.

F. Outdoor Public Address System

1. Outdoor public address systems or speakers for nonresidential uses are only allowed within the C2, M2, and M3 districts, or as part of an approved master site plan, accessory use, or conditional use.
2. The outdoor public address system shall comply with Section 5-13-3 (Noise-Prohibited Acts) of the Ada County Code.

G. Outdoor Storage of Chemicals and Fertilizers

1. The outdoor storage of chemicals and fertilizers including, but not limited to, salts or other minerals, are prohibited.
2. Also see subsection 8-3-7E.4 of this Chapter for screening standards for outdoor storage areas.

H. Property Created by Court Decree. Any property created by court decree is recognized as a property for transfer of ownership and is eligible for development (including any building permits for renovation or repair of an existing structure) only if it complies with all applicable regulations of this Title (including, but not limited to, Chapter 2 and Section 8-6-21 [One-Time Division], and Chapter 5 of this Title).

I. Pipeline Corridors. For any property for which there is a pipeline corridor easement (including, but not limited to, the Northwest Pipeline and Chevron Pipeline), appropriate setbacks from the pipeline facility shall be provided as determined by the easement holder.

J. Property Reduced by Governmental Action. If a governmental action (such as

acquisition through prescription, purchase, or other means by Ada County, a municipality within Ada County, the Ada County Highway District, Idaho Transportation Department, utility company or corporation under the jurisdiction of the Idaho Public Utilities Commission, or other local, state, or federal agency) reduces an existing property below the required property size, the remaining property shall be deemed as a conforming property for the purposes of development. See also Section 8-7-4 (Nonconforming Properties) of this Title.

K. Renovation, Repair, Expansion, or Replacement of Dwelling. A zoning certificate for the renovation, repair, expansion, or replacement of a dwelling (including any existing or proposed accessory structures) may be issued to a property that meets the following criteria:

1. Has the required frontage and access onto either a public or an approved private road, or;
2. An easement, recorded prior to May 20, 1968, that is at least twenty feet (20') wide, provides access to the property; and
3. The property was of record in the Ada County Recorder's Office prior to January 1, 1985; and
4. The property contains a dwelling that conforms to all applicable codes and/or ordinances; and

J. Access shall be taken from the required frontage unless the property also has frontage on an alley or an approved private road.

K. Multi-family, commercial or industrial developments may be exempt from this requirement if the development meets the standards for continuous service drive outlined in subsection 8-3-10D.3 of this Chapter.

8-3-4: Building Design

A. Purpose. For structures where the footprint is greater than ten thousand (10,000) square feet, the structure shall be designed such that the building mass and bulk are distributed. The following standards do not apply to dwellings or agricultural structures:

B. Distribution. Mechanisms for distribution include, but are not limited to, one or more of the following:

1. Variation in the horizontal offsets of the structure facade.
 - a. Facades greater than one hundred feet (100') in length must incorporate recesses and projections along a minimum of twenty percent (20%) of the length of the facade.
 - b. Windows, awnings, and arcades must total a minimum of sixty percent (60%) of the facade length abutting a public street.
2. Variation in the height of a minimum of five feet (5').
3. Changes in the grade of a minimum of three feet (3').
4. Variation in rooflines.

- C. Maximum Footprint.** The maximum footprint area for the distributed portions of the structure is ten thousand (10,000) square feet.
- D. Minimum Footprint.** The minimum footprint area for the distributed portions of the structure is one thousand (1,000) square feet.

Figure 8-3-4-1 Building Design



8-3-5: Infrastructure

A. Surety Agreements

1. Surety Deposit

- a. In lieu of completion of the improvements listed in this Section or required as a condition of any zoning or subdivision plat approval, the owner may deposit a surety and sign a surety agreement for their completion. The owner shall deposit the surety and surety agreement improvements with the Director on forms provided by the Development Services Department.
- b. The amount of surety shall equal at least one hundred twenty percent (120%) of the cost of completing the required improvements. The estimated cost shall be reviewed and approved by the County Engineer.
- c. The surety shall be drawn solely in favor of, and payable to, the order of the County of Ada, in accordance with the regulations contained in the surety agreement by and between the guarantor and the County of Ada.

2. Release of Surety. The following regulations apply to the release of a surety accepted and deposited as provided in subsection 1:

- a. The owner shall submit a written request to the Director to return the surety. The request shall include the following documents:
 1. A statement from the owner that the required improvements are complete.
 2. Two (2) sets of prints of the as-built plans and specifications for all improvements.
- b. The Director shall verify and certify that the required improvements, as detailed in

the surety agreement, are installed.

- c. The Director shall review and approve the as-built plans.
- d. Upon certification, the Director shall give notice to the County Treasurer to release the sureties deposited with the County Treasurer in the manner and to the extent as provided for in the surety agreement in accord with the regulations of subsection 1 above.

B. Drainage. All required drainage studies and drainage plans shall be based upon peak and total discharge estimates and shall be submitted by a professional engineer licensed in the state of Idaho.

1. Drainage Study

- a. The drainage study shall identify the essential elements, alignments, and functions of a drainage system.
- b. The drainage study shall show the following site conditions:
 - 1. Details of existing site drainage and/or irrigation features including, but not limited to, ditches, watercourses, and drainage structures;
 - 2. The permeability and types of soils and geologic materials;
 - 3. The size of the drainage basin upstream;
 - 4. The topography, slope, and geometry of the site;
 - 5. The proximity of surface water within one hundred feet (100');
 - 6. The proximity of potable water supply wells within one hundred feet (100');
 - 7. The proposed use and potential contaminants; and
 - 8. The past use and possible soil and/or ground water contamination.
- c. Other supplemental data required by the County Engineer.
- d. The drainage study requirement is also met if the study information required is shown on the drainage plan.

2. Drainage Plan

- a. When a condition of approval requires approval of a drainage plan by the County Engineer, a drainage plan shall be submitted to the Director that has been prepared by a professional engineer licensed in the state of Idaho for design approval by the County Engineer prior to issuance of a zoning certificate.
- b. The drainage plan shall be drawn to scale and shall include, but not be limited to, the following:
 - 1. All proposed grading on the property;
 - 2. Essential elements, alignments, and functions of the proposed drainage system including, but not limited to, sewers, storm drains, catch basins, pumps, and seepage beds;
 - 3. The drainage plan shall indicate by flow arrows, contours, spot elevations, or

some other acceptable manner, where storm water will be routed for the property. It must show the location and size of any flows onto the site from outside the property boundaries as well as any discharges leaving the site;

4. The proposed use and potential contaminants;
5. When drainage courses and irrigation facilities exist on site, documentary evidence of consent to re-routings by all interested landowners and drainage and irrigation entities affected and having rights to, and in, those facilities shall be provided; and
6. Other supplemental data required by the County Engineer.

C. Utilities

1. All utilities shall be installed underground for a new dwelling or approved use.
2. For the purposes of this Section, the term "utilities" include, but are not limited to, electric, natural gas, water, wastewater collection, storm drainage, telephone, and cable services.
3. Agricultural structures are exempt from this regulation.

D. Sewage Disposal and Water. Options for sewage disposal facilities shall include the following methods:

1. New development located within an urban service planning area or within a planned community shall be served by sewage disposal facilities that have sufficient available capacity to serve the development.
2. Other new developments shall be served by an on-site individual wastewater treatment system and an on-site well, both of which have been approved by the Idaho Department of Water Resources and Central District Health Department.
3. If an existing wastewater treatment system fails, as determined by the Central District Health Department, the property owner(s) shall connect to a city's or sewer district's wastewater collection and treatment system, if a collection line is located within three hundred feet (300'). If a collection line is not located within three hundred feet (300'), then the existing wastewater treatment system may be replaced with a system approved by the Central District Health Department.
4. If an existing community well fails, the property owner(s) shall connect to a city's, water district's, or utility's water system if a distribution line is located within three hundred feet (300'). If a distribution line is not located within three hundred feet (300'), then the community well may be replaced with a water system approved by the Central District Health Department and Idaho Department of Water Resources.

E. Water

1. **Purpose.** These regulations minimize the development impacts on water resources, such as water supply, consumption, and quality.
2. **Applicability.** These regulations apply to all new development, including but not limited to residential, commercial, and industrial development.
3. **Exemptions.** The following uses are exempt from these regulations:

- a. All agricultural uses; and
- b. Existing uses prior to the effective date of this Title.

4. Water Conservation Measures

- a. **Watering Restrictions.** All watering for yards and landscaped areas shall occur between the hours of 5:00 pm and 10:00 am.
- b. **Rainwater Harvesting.** Rainwater harvesting includes, but is not limited to, cisterns and rain barrels.
 - 1. All commercial and industrial structures over ten thousand (10,000) square feet require the use of rainwater harvesting techniques.
 - 2. All single-family residences greater than twenty-five thousand (2,500) square feet require the use of rainwater harvesting techniques.
 - 3. Cisterns and rain barrel design shall store at least forty (40) gallons of water.
 - 4. Harvested rainwater from cisterns and rain barrels may be used for irrigating landscaped areas, flushing toilets, or pressure washing.
- c. **Pervious Pavement**
 - 1. Pervious pavement includes, but is not limited to, porous asphalt, pervious concrete, and grass or permeable pavers.
 - 2. Pervious pavement is allowed as surface for parking areas. The permeability of pervious pavement in any drainage study required by subsection B above may be considered.

- 5. **Green Infrastructure.** Green stormwater infrastructure (GSI) techniques, rainwater harvesting, or pervious pavement techniques may be incorporated in any building, surface parking area, or street. These measures may be used to reduce the rate and volume of stormwater runoff and required drainage improvements if the County Engineer determines that:
 - a. The application demonstrates that the improvements will reduce stormwater demands, using generally accepted engineering principles;
 - b. A maintenance plan has been provided that ensures the adequate ongoing maintenance of those facilities; and
 - c. The maintenance plan ensures that the improvements will continue to control the rate and volume of stormwater runoff as shown in the application.

8-3-6: Fences

- A. **Purpose.** This Section provides standards on the types, construction, installation, and uses of fences.
- B. **Clear Vision Triangle.** No sight-obscuring fence, hedge, wall, latticework, or screen shall violate the clear vision triangle requirements (see definition in Chapter 10) at a street intersection.
- C. **Barbed Wire/Electric Wire.** Barbed wire and electric wire fencing shall only be allowed

on properties that meet one or more of the following standards:

1. The property is a “farm,” as herein defined;
2. The property is in the RP, RR, or RUT base districts;
3. The property has a livestock confinement facility with more than three hundred (300) animals; or
4. The use of barbed wire and/or electric wire fencing was allowed as part of an approved use where security fencing was proposed.

D. Height in Areas of City Impact. On properties one (1) acre in size or less and located within an area of city impact, no fence, wall, latticework, or screen shall be erected over three feet (3') in height within the required front yard plane.

E. Height on Lot. Fences, walls, latticework, or screens:

1. Are allowed within or outside of any setback, and
2. Shall not exceed a height of six feet (6') above grade on the perimeter boundary or within any required setback area, unless approved by a variance by the Board or as part of an approved use: and
3. For a public facility may exceed six feet (6') above grade without a variance but shall not exceed a height of twelve feet (12') above grade.

F. Building Permit Required. Fences, walls, latticework, or screens that exceed six feet (6') in height require a building permit with construction drawings prepared by a qualified and licensed engineer or architect in the state of Idaho.

G. Maintenance. Any sight-obscuring fence, or wall, latticework, or screen that is required by this Title to protect adjacent properties, said fence, wall, latticework, or screen shall be maintained in good repair.

H. Security Fencing. Security fencing that is not associated with an agricultural use, public facility, or a livestock confinement facility, utilizing barbed wire or electric wire, shall only be used as the top section of the fencing and shall be a minimum of six feet (6') above grade.

8-3-7: Landscaping

A. Purpose. The purpose of this Section is to:

1. Ensure development consistent with the goals of the applicable comprehensive plan related to community design;
2. Enhance the aesthetic appearance of streets, parking areas, and development sites and visually screen and buffer incompatible land uses;
3. Preserve existing healthy trees and rare plants;
4. Encourage the use of native species and drought tolerant landscape materials with the intent to maintain wildlife habitat areas and conserve water;
5. Break up large areas of pavement, and provide shade in parking areas and around structures with the intent to promote energy conservation;

6. Provide pervious surface areas to minimize storm water runoff and promote ground water recharge; and
7. Separate pedestrians from automobile fumes, noise, and dust, and reduce glare from vehicle headlights.

B. Applicability

1. The standards in this Section apply to all projects requiring master site plan review unless otherwise exempt under subsection B.2 below.
2. All principally permitted and accessory uses in the rural base districts as listed in Section 8-2-23 (Use Table) of this Title are exempt from these regulations. Requirements of this Section may be waived or modified for conditional uses in the rural base districts (see conditional use procedures in Chapter 6 of this Title).

C. Process

1. A landscape and screening plan shall be required as a component of a master site plan.
 - a. Within an area of city impact, the landscape and screening plan shall be prepared by a licensed landscape design professional such as a landscape architect.
 - b. The landscape and screening plan shall contain the following items:
 1. The location, size, and type of all proposed landscaping and screening materials (including a plant list detailing common and botanic names of all species), and verification that minimum landscaping and screening requirements have been satisfied. All plants shall be shown at seventy five percent (75%) mature growth.
 2. Existing vegetation to be saved shall be identified on the landscaping and screening plan along with protection measures to be used during grading and construction.
 3. If the proposed development project shall be completed in phases, the phases shall be noted on the landscape and screening plan.
2. Landscaping and screening shall be in accord with the approved landscaping and screening plan, by the beginning of the next planting season for that species after issuance of a certificate of occupancy for the project. The Director may extend the time limit for compliance up to one additional planting season after issuance of a certificate of occupancy when circumstances beyond the control of the applicant or owner warrant an extension.

D. General Landscaping Standards

1. For the purposes of this Section, landscaping elements shall mean all exterior enhancements of a project including, but not be limited to: deciduous trees (shade and ornamental), evergreen trees, sidewalks, paths, site furniture, trellis, fences, walls, sound walls, shrubs, flowering plants, vines, pots, vases, window boxes, raised planters, and grade work such as berms, grassy swales, and water retention features.
2. Existing trees, native vegetation, and existing rare plants shall be retained wherever possible.

- a. Existing native vegetation may be accepted in lieu of new plantings, provided they contribute to achieving the intent of this Section.
 - b. To control erosion and soil loss, the existing vegetation shall only be removed from the current phase of the project.
3. All existing trees six-inch (6") caliper or larger proposed for removal on any new or infill development shall be mitigated at the following rate:

Table 8-3-7-1: Tree Removal Rate Standards.

Tree to be removed	Replace with
6" to 12" caliper tree	One 3" caliper min. tree
12" to 24" caliper tree	Two 3" caliper min. trees
24" or larger caliper tree	Three 3" caliper min. trees

4. Landscaped areas shall incorporate a hierarchy of plantings from ground covers to shrubs to trees. Shrub areas shall incorporate a vegetative ground cover wherever possible. If the site configuration or plant type prohibits the use of a ground cover in conjunction with the shrubs, shredded tree bark or other mulch shall be provided.
5. The landscape plan shall include plant material that provides seasonal color during the spring, summer, and fall.
6. All landscaping shall be designed to consider the microclimate of the site and surrounding properties by addressing sun, shade, and wind for increased energy efficiency.
 - a. Deciduous trees shall be the preferred method of providing shade in parking lots and around structures.
 - b. Evergreen trees shall be located with adequate space to accommodate mature spread at the base and primarily used for screening and accent purposes.
 - c. If unenclosed air conditioning systems are located on the west or south side of a structure, trees shall be planted so that, at maturity, they shade the unit during the months of July, August, and September.
 - d. Trees shall be planted so that, at maturity, they shade fifty percent (50%) of ground floor window surfaces on the west and south sides of each structure during the months of July, August, and September.
7. All landscaping shall be designed to be waterwise per the suggested plant list provided by Ada County.
 - a. The use of native and low-water and native plant material is highly encouraged.
 - b. Plants shall be grouped into hydrozones based on similar water needs to minimize the unnecessary use of water plants with low water needs.
 - c. High water-use plant material such as bluegrass lawn shall comprise no more than fifty percent (50%) of any landscape area.

8. Landscaping elements shall not violate the clear vision triangle requirements at a street intersection as defined in this Title (see Chapter 10).
9. Landscaping elements shall not violate the clear pathway of a pedestrian or bicycle facility.
10. If the subject property is within a flood hazard overlay district or wildland-urban interface overlay district, a landscaping and screening plan may be proposed that meets the intent of this Section in addition to complying with the standards of Section 8-2-28 (Flood Hazard Overlay District) and Section 8-2-25 (Wildland-Urban Interface Overlay District).
11. Installation of required landscaping shall be the responsibility of the property owner.
 - a. All plant material shall be planted according to industry standards, using acceptable topsoil, or incorporating organic soil amendment at a rate of three cubic yards per one thousand square feet (3 cy/1000 sf).
 - b. All proposed plant material shall be in accord with the American Association of Nurserymen standards in terms of size, character, and quality.
 - c. Trees planted within a sidewalk or other pedestrian traffic areas shall be installed with protective tree grates with expandable centers. The minimum size opening within the sidewalk shall be four feet by eight feet (4' x 8').
 - d. The following minimum plant sizes are required:

Table 8-3-7-2: Minimum Plant Size Standards

Landscape Element (Plants)	Minimum Size at Planting
Shade tree	2-inch caliper
Ornamental tree	2-inch caliper
Evergreen tree	7.5 feet in height
Shrub	5-gallon container
Parking lot shrub	5-gallon container
Perennial or ornamental grass	1 gallon container
Note: Caliper shall refer to the trunk diameter as measured 6 inches above ground level.	

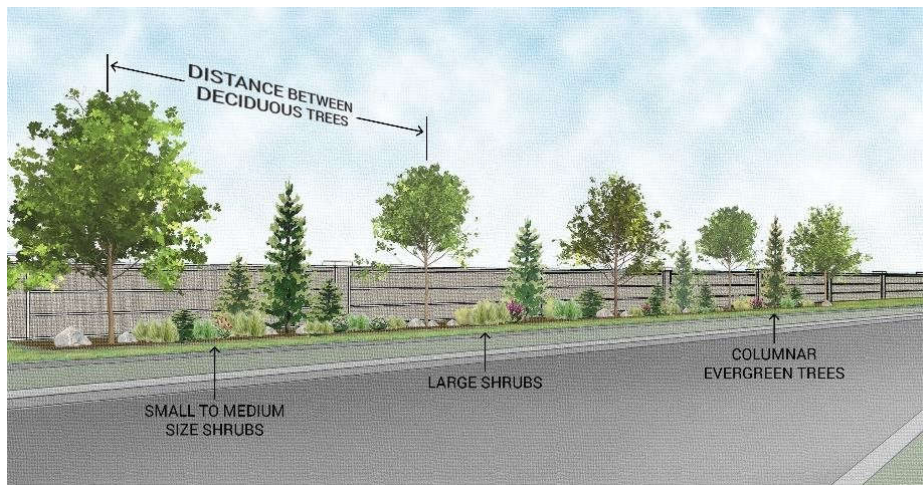
- e. All landscaped areas shall be provided with a permanent and automated underground irrigation system of such design and capacity to satisfactorily serve the landscaped areas.
12. Maintenance and replacement of required landscaping and screening shall be the responsibility of the property owner.
 - a. All plant materials shall be pruned, trimmed, watered, and otherwise maintained to create an attractive appearance and a healthy growing condition. No trees shall be severely pruned or topped.

- b. Dead, diseased, stolen, or vandalized plant materials shall be replaced by the next planting season.
- c. Property owners shall keep landscaped areas free of weeds and trash.
- d. Stolen, vandalized, or otherwise damaged fences and/or walls shall be replaced immediately. Fences and/or walls shall be maintained to create an attractive appearance.

E. General Screening Standards

1. **Screening Elements.** For the purposes of this Section, screening elements shall include, but not be limited to, deciduous trees (shade and ornamental), evergreen trees, berms, solid fences, walls, and sound walls. Cyclone or chain link fencing (with or without slats) shall not be deemed a screening material.
2. **Solid Fence or Sound Wall.** Where a solid fence, wall, or sound wall is used for screening, the landscape plan shall incorporate vegetative materials along the length of the solid fence or sound wall at the following rate:
 - a. A minimum of one deciduous tree per fifty linear feet (50').
 - b. Shrubs at a rate of ten small to medium shrubs or five large shrubs per fifty linear feet (50').
 - c. Columnar evergreen trees and shrubs are encouraged to be placed between deciduous trees.

Figure 8-3-7-1 Landscaping of Solid Fences or Sound Walls



3. **Trash Dumpsters.** Trash dumpsters shall be fenced or enclosed and screened from public view. The sight obscuring screen shall be at least six feet (6'), but not greater than ten feet (10'), in height. One side of the enclosure may be left unenclosed or unscreened, provided that the trash dumpster shall not be visible from a public roadway or an abutting property.
4. **Outdoor Storage Areas.** All outdoor storage areas shall be completely fenced or

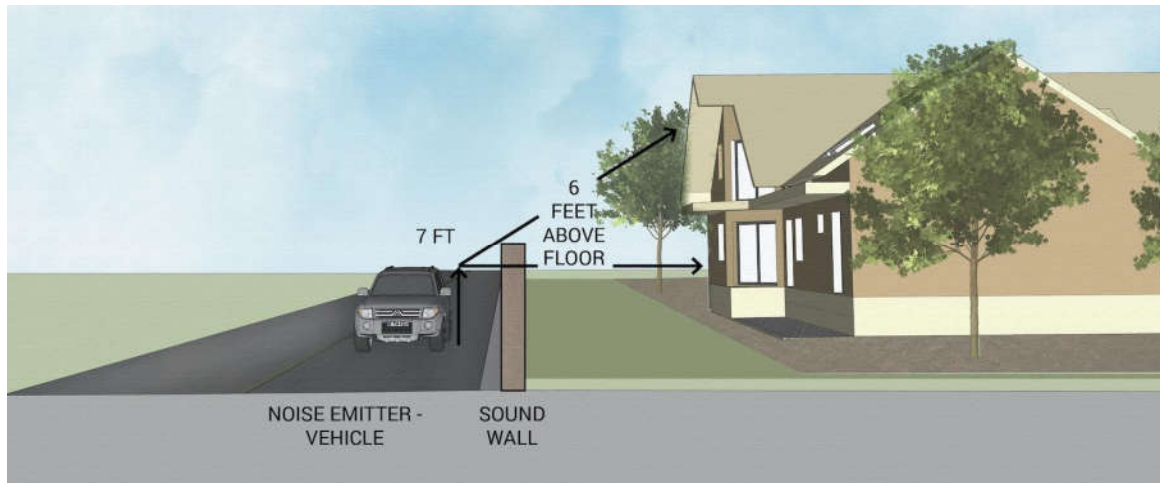
enclosed and screened from public view. The sight obscuring screen shall be at least six feet (6'), but not greater than ten feet (10') in height. One side of the outdoor storage area may be left unenclosed or unscreened, provided that the materials stored in the area shall not be visible from a public roadway or an abutting property.

- 5. Loading Areas.** Loading areas (including, but not limited to, loading spaces, loading docks, and service or maintenance areas) shall be screened from public view. In addition, loading areas that abut a residential district shall attenuate noise associated with such use by providing a sound wall and/or berm with screen plantings around the loading areas or at the property line abutting the residential district. Planting shall be in conformance with subsection 8-3-7E.2 above.
- 6. Berm Slopes.** Berm slopes shall not exceed a rise to run ratio of one to two (1:2) and shall be a minimum of three feet (3') in height.

7. Sound Walls

- a.** Sound walls shall meet all the following construction standards (see Figure 8-3-7-2 Sound Walls):
 1. The wall shall be tall enough to break the line of sight from the noise emitter and the noise receiver on abutting property.
 2. There shall be no break in the barrier between the noise emitter and the noise receiver on the abutting property.
 3. The wall shall be constructed of a rigid, dense material that provides a noise reduction of ten (10) dBA greater than the expected reduction in the noise diffracted over the top of the barrier as certified by a qualified engineer or architect licensed in the State of Idaho.
- b.** For the purposes of this Section, the location, height, and direction of the noise emitter and the location and height of the noise receiver on the abutting property shall be determined as follows:
 1. For outdoor address systems, the noise emitter shall be at the height and location of the speaker and in the direction that the speaker is oriented.
 2. For parking lots, the noise emitter shall be at a height of four feet (4') at any location where an automobile may travel and six feet (6') at any location where a truck or trailer may travel. The noise shall be measured in all directions that are not otherwise attenuated by a structure.
 3. For loading areas, the noise emitter shall be at a height of six feet (6') above the floor of the loading dock. The noise shall be measured in all directions that are not otherwise attenuated by a structure.
 4. The noise receiver on the abutting property with an existing structure shall be at a height of six feet (6') above the floor (including upper floors, if applicable) of the structure and any outdoor patio area.
 5. The noise receiver on the abutting property where there is no existing structure shall be set at a height of six feet (6') at any location where a structure can be built.

Figure 8-3-7-2 Sound Walls



8. Within an area of city impact, expanses of walls or solid fences that are greater than one hundred feet (100') along a roadway shall be interrupted with offsets and provided with accents to prevent monotony (see Figure. 8-3-7-3 Solid Fence Offsets).
 - a. For the purposes of this standard, accents shall include, but not be limited to, other landscape elements as listed in subsection D of this Section.
 - b. Offsets shall be designed with pedestrian safety in mind, such as small alcoves with angled sides that provide full visibility.

Figure 8-3-7-3 Solid Fence Offsets



F. Perimeter Landscaping and Screening

1. **Purpose.** The intent of this Section is for landscaping and screening standards required along the perimeter of the property. Table 8-3-7-3 Minimum Required Depth and Plant Material of this Section specifies the standards for the minimum depth and minimum number of trees and shrubs per one hundred linear feet (100') as measured along the

property line.

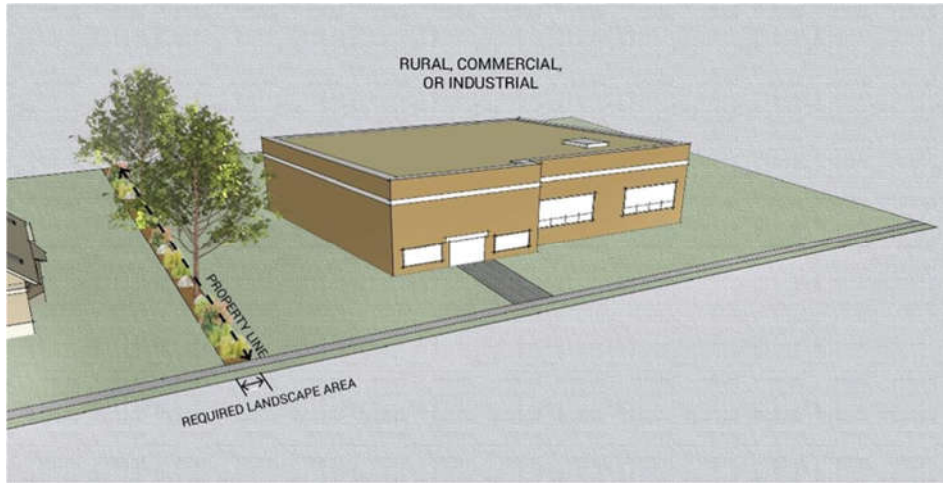
- 2. Property Lines That Do Not Abut a Roadway.** All principally permitted and accessory uses in the RP, RR, RUT, R1, R2, R4, R6 and R8 base districts as listed in Section 8-2-23 (Use Table) of this Title shall be exempt from these regulations. Conditional uses in the RP, RR, RUT, R1, R2, R4, R6 and R8 base districts as listed in Section 8-2-23 (Use Table) of this Title shall require a perimeter buffer where the property subject to a development application contains a commercial or industrial use. Where the dimensional standards for the base district of the subject property require side and/or rear setbacks of ten feet (10') or more, a perimeter landscape area will be required to be located on the property subject to development application per the following:
- a.** Abutting a residential district, a minimum of one (1) deciduous tree and ten (10) small shrubs or five (5) large shrubs shall be provided per fifty linear feet (50').

Figure 8-3-7-4 Perimeter Landscaping Abutting a Residential District



- b.** Abutting a rural, commercial, or industrial district, a minimum one (1) deciduous tree and ten (10) small shrubs or five (5) large shrubs shall be provided per one hundred linear feet (100').

Figure 8-3-7-5 Perimeter Landscaping Abutting a Rural, Commercial, or Industrial District



- c. Alternatively, a solid fence with a minimum height of six feet (6') may replace the shrub requirement.
 - d. The Director may waive perimeter landscaping requirements along portions of property lines not abutting a roadway where needed to accommodate construction of vehicular cross-access across property lines and where cross-access easements to adjacent properties are provided.
- 3. Property Lines That Abut a Roadway.** Entryway corridors shall be as identified in the applicable comprehensive plan. Interstate, arterial, collector, and local streets shall be as identified by the Ada County long range highway and street map functional street classification system.

Table 8-3-7-3 Minimum Required Depth and Plant Material

Classification of Street Abutting Subject Property	Minimum Depth of Landscaped Area	Minimum Number of Trees Per One Hundred Linear Feet	Minimum Number of Shrubs Per One Hundred Linear Feet
Entryway corridor	30 feet	3 deciduous trees	20 small shrubs or ornamental grasses and 6 large shrubs
Interstate abutting residential district	50 feet ¹	2 deciduous trees and 3 evergreen trees	20 large shrubs
Classification of Street Abutting Subject Property	Minimum Depth of Landscaped	Minimum Number of Trees Per One Hundred Linear Feet	Minimum Number of Shrubs Per One Hundred Linear Area Feet
Interstate abutting rural, transitional, commercial, or industrial district	25 feet	2 deciduous trees and 2 evergreen trees	10 small shrubs or ornamental grasses and 10 large shrubs
Arterial, collector, or local street abutting rural, transitional, or residential district	20 feet	3 deciduous trees	20 small shrubs or ornamental grasses and 6 large shrubs
Arterial, collector, or local street abutting commercial or industrial district	10 feet	3 deciduous trees	20 small shrubs or ornamental grasses
Private road	5 feet	2 deciduous trees	NA
¹ This standard may be reduced where a sound wall is provided that mitigates noise levels to a comparable level as would be achieved by meeting the fifty-foot (50') separation			

G. Parking Area Landscaping and Screening Standards

1. Parking lot landscaping is intended to break up large expanses of pavement, create shade, buffer views of parking lots from adjacent streets and development, and enhance the overall appearance of each project.
2. All parking lots with ten (10) spaces or more shall be subject to the following requirements.
3. Interior parking lot landscape requirement:
 - a. A minimum of one landscape island shall be provided per fifteen (15) parking spaces with a minimum width of nine feet (9').
 - b. Each island shall contain one (1) shade tree and seventy five percent (75%) live plant material cover.

Figure 8-3-7-6 Interior Parking Lot Landscape Island



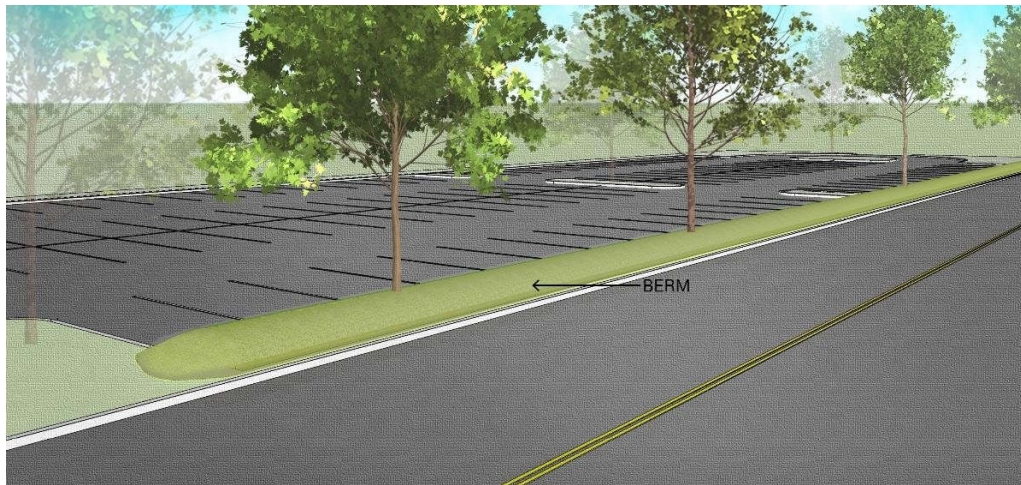
4. Perimeter parking lot landscape requirement:
- a. A minimum eight-foot (8') wide landscape area shall be provided at the perimeter of surface parking lots abutting any public right-of-way.
 - b. A minimum of one (1) tree shall be provided per forty (40') linear feet of required perimeter landscape area.
 - c. The parking lot perimeter shall be screened by one of the following methods:
 1. A hedge of shrubs and ornamental grasses with a minimum height of thirty inches (30") and maximum height of thirty-six inches (36") to screen seventy five percent (75%) of headlights;

Figure 8-3-7-7 Parking Lot Perimeter Screening Option 1



2. A berm with a minimum of thirty inches (30") height; or

Figure 8-3-7-8 Parking Lot Perimeter Screening Option 2



3. A masonry wall with a height between three and four feet (3-4') paired with landscape material for at least fifty percent (50%) of the length of the landscape area placed on the street side of the wall.

Figure 8-3-7-9 Parking Lot Perimeter Screening Option 3



5. Limit areas of irrigated sod to landscape areas with a minimum width of ten (10') feet.
6. Where landscaping elements abut parking spaces, curbs, wheel stops, or two feet (2') of additional landscaping planted in ground cover to protect shrubs and trees from damage by vehicles shall be provided.
7. Pedestrian access shall meet the requirements of subsection 8-6-19G.2 (Master Site Plan standards for Nonvehicular Access and Internal Circulation) of this Title.

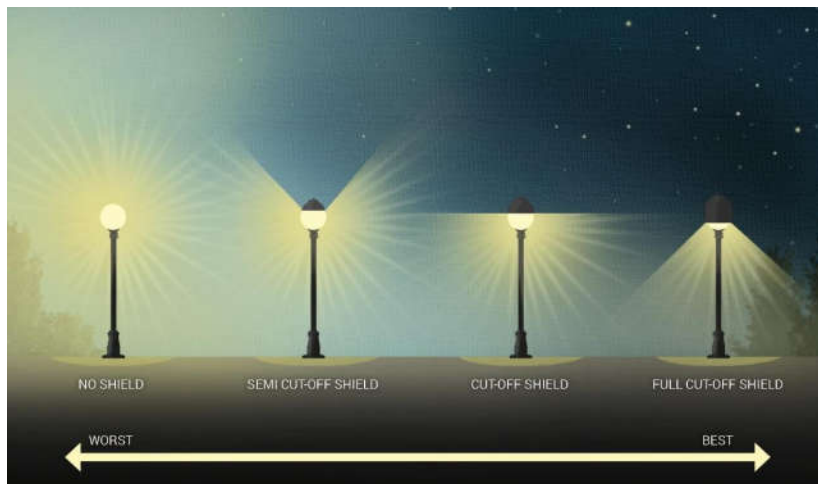
8-3-8: Lighting

- A. Purpose.** This Section provides standards on the types, construction, installation, and uses of outdoor lighting to conserve energy, regulate glare, prevent the creation of a nuisance, and enhance nighttime enjoyment of properties in Ada County without decreasing safety, utility, or security.
- B. Applicability.** These regulations apply to the following uses and activities:
1. Any proposed development requiring master site plan approval.
 2. Any stationary outdoor lighting in common areas of a planned unit development or subdivision.
 3. Installation, change, upgrade, expansion, or enlargement of existing outdoor lighting.
- C. Exempt.** The following types of lighting are exempt from these regulations:
1. Light fixtures that have a maximum output of less than two hundred sixty (260) lumens.
 2. All outdoor lighting produced by the direct combustion of natural gas or other fossil fuels such as kerosene lanterns or gas lamps.
 3. Temporary holiday lighting used for forty (40) days or less per year.
 4. Vehicular lights and all temporary emergency lighting needed for fire protection, police protection, and/or other emergency services.
 5. All hazard warning lights required by federal or state regulatory agencies.
 6. Streetlights installed by the Ada County Highway District or Idaho Department of Transportation in accordance with subsection F.7.b of this Section.
- D. Prohibited.** The installation of any of the following types of lighting are prohibited:
1. Mercury vapor lamp fixture and/or lamp.
 2. Laser source light or any similar high intensity light when projected above the horizontal.
 3. Changing colors, moving lights, or searchlights (for advertising purposes) are prohibited in all districts, except when approval has been obtained for temporary uses.
 4. Lighting, including holiday lighting, on commercial or private tower structures that exceed the district height limit is prohibited except as required by regulations of the Federal Aviation Administration (FAA).
- E. Process**
1. A master site plan requires a lighting plan for any proposed outdoor lighting.
 2. The lighting plan shall show the location, orientation, and height of all proposed exterior light fixtures, both attached and detached (including those that may be exempt from these regulations). The lighting plan shall also detail the type and extent of shielding including cut off angles and the type of illumination including the watts, luminous area, and photometric test report for each light source.

F. Standards

1. **Two Hundred Sixty (260) Lumens or More.** Light fixtures that have a maximum output of two hundred sixty (260) lumens or more shall have an opaque top to prevent up lighting.
2. **One Thousand (1,000) Lumens or More.** Light fixtures that have a maximum output of one thousand (1,000) lumens or more per fixture shall have an opaque top to prevent up lighting and the bulb shall not be visible.
3. **One Thousand Eight Hundred (1,800) Lumens or More.** Light fixtures that have a maximum output of one thousand eight hundred (1,800) lumens or more shall have a "full cut off shield." See Figure 8-3-8-1.

Figure 8-3-8-1 Full Cut Off Shield

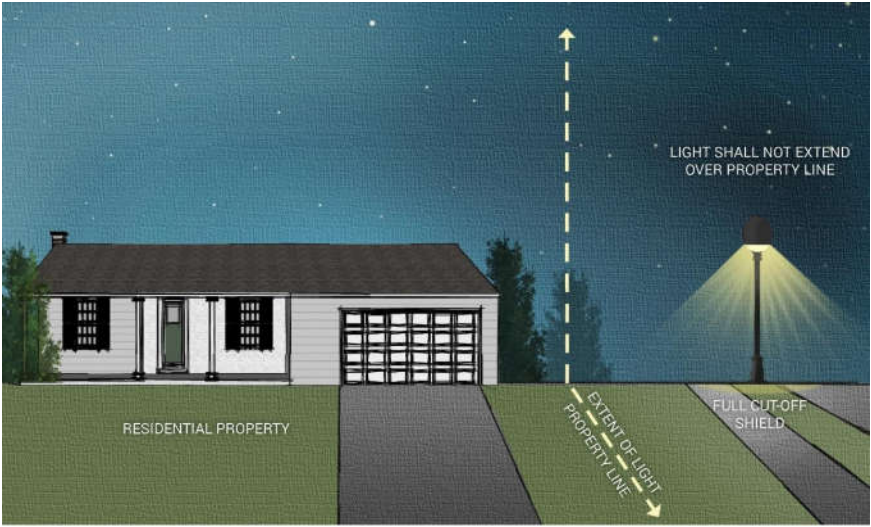


4. **Floodlight Fixtures.** Floodlight fixture location shall prevent direct glare into a roadway and minimize impact on abutting properties.
 - a. Floodlight fixtures shall be set to only go on when triggered by activity on the property (sensor activated) and to go off within five (5) minutes after activation has ceased.
 - b. Installed floodlight fixtures shall not tilt more than forty-five degrees (45°) from vertical.
5. **Up Lighting.** Up lighting is only allowed in cases where the fixture and any light it emits are shielded from the sky by a roof overhang or similar structural shield.
6. **Display and Security Lighting.** Display lighting shall turn off within thirty (30) minutes after close of business and shall remain off until sunrise or the opening of the business on the following day, whichever comes first. There are no time restrictions regarding security lighting.
7. **Installed Height of Fixture**
 - a. The height of a freestanding light fixture shall not exceed twenty-five feet (25') or

the height of the principal permitted structure, whichever is less. Light fixtures mounted on a wall may extend to the full height of the structure, but no farther.

- b. The following standards apply to floodlight fixtures with a maximum output of nine hundred (900) lumens or more and other light fixtures that have a maximum output of one thousand eight hundred (1,800) lumens or more. Streetlights installed by the Ada County Highway District or Idaho Department of Transportation are exempt from these standards.
 - 1. Within a commercial or industrial base district, or a commercial or industrial type use within a rural or transitional base district, the effective zone of light (as documented by the photometric test report) shall not trespass on abutting residential properties. See Figure 8-3-8-2 of this Title.

Figure 8-3-8-2 Light Trespass



- 2. Within a rural, transitional, or residential base district, the allowed height shall be determined by the setback from the property line established in Table 8-3-8-1 Height of Light Fixtures below.

Table 8-3-8-1 Height of Light Fixtures

Height of Pole	Setback from Property Line	Height of Pole	Setback from Property Line
1 foot to 3 feet	0 feet	15 feet	36 feet
4 feet	3 feet	16 feet	39 feet
5 feet	6 feet	17 feet	42 feet
6 feet	9 feet	18 feet	45 feet
7 feet	12 feet	19 feet	48 feet
8 feet	15 feet	20 feet	51 feet
9 feet	18 feet	21 feet	54 feet
10 feet	21 feet	22 feet	57 feet

11 feet	24 feet	23 feet	60 feet
12 feet	27 feet	24 feet	63 feet
13 feet	30 feet	25 feet	66 feet
14 feet	33 feet		

Note: Table is based on the formula $H \text{ (height)} = 3 + D \text{ (setback distance)} / 3$.

8. Underground Electrical Feeds. Electrical feeds to outdoor light fixtures shall be underground, and not overhead.

9. Neon Illumination. Rural base districts prohibit neon illumination.

G. Required Finding. In order to approve the application, a finding must be made that the proposed lighting plan complies with the standards listed in subsection 8-3-8F of this Chapter.

8-3-9: Open Space

A. Purpose. This Section encourages well designed open space within new development and provides standards for dedicated open space areas and/or uses approved as part of a development application.

B. Applicability. These regulations shall apply to planned unit developments, master site plans, and/or subdivision plats that include dedicated open space areas and/or uses.

C. General Regulations

1. Dedicated Open Space Plan. The dedicated open space plan shall include the following information on a map of an appropriate scale and may be accompanied by any necessary associated documents:

- a. The boundaries and legal description of all dedicated open space areas;
- b. Existing distinctive natural characteristics including, but not limited to, prime agricultural land and topographical elements;
- c. The dedicated open space uses;
- d. Depiction of all impervious surfaces including, but not limited to, structure footprints, driveways, or roadways; and
- e. The dedicated open space area maintenance, management, and administration description.

2. Required Dedicated Open Space. At least ten percent (10%) of residential areas of planned unit developments shall be designated as, and used exclusively for, dedicated open space, as set forth in this Section.

3. Allowed Open Space Uses. The allowed open space uses shall include, but not be limited to, the following:

- a. Natural areas;
- b. Agriculture;
- c. Community garden plots for cultivation by residents;

- d. Recreational areas designed for specific passive and/or active recreational uses including, but not limited to, golf courses, tot lots, tennis courts, swimming pools, and ball fields;
 - e. Greenways identified on the adopted Ada County Ridge to Rivers Pathway Plan;
 - f. Lawns or ground cover with or without trees;
 - g. Riding trails and common pasture;
 - h. Use associated with a historic structure; or
 - i. Any combination of uses listed above.
4. **Ownership.** Dedicated open space shall be held in one or more of the following methods of ownership:
- a. **Condominium.** If ownership of the proposed development is held as a condominium compliant with Idaho Code, Title 55, Chapter 15, the dedicated open space may be held as a common area of the condominium.
 - b. **Homeowners' Association.** The dedicated open space may be held in common ownership by an incorporated homeowners' association.
 - c. **Fee Simple Dedication**
 - 1. The dedicated open space may be dedicated to a federal, state, or municipal government body empowered to hold an interest in real property subject to the laws of Idaho or the United States, or a charitable corporation, charitable association, or charitable trust, the purposes or powers of which include retaining or protecting the natural, scenic, or open space values of real property, assuring the availability of real property for agricultural, forest, recreation, or open space use, protecting natural resources, maintaining or enhancing air or water quality, or preserving the historical, architectural, archaeological, or cultural aspects of real property.
 - 2. The County shall review and approve any offer of dedication to an entity listed above, and the acceptance of the offer, and the terms and conditions thereof that demonstrate the dedicated open space shall be maintained as dedicated open space.
5. **Maintenance Requirement.** If any owner of dedicated open space fails to maintain same according to the standards of this Title, Ada County may demand that deficiency of maintenance be corrected and enter the dedicated open space to maintain same. The cost of such maintenance shall be charged to those persons having the primary responsibility for maintenance of the dedicated open space.
6. **Improvements.** The applicant or owner is responsible for required improvements within dedicated open space areas. A surety agreement, established in Section 8-3-5, may be required to cover costs of installation or maintenance of those improvements.

D. Design Standards

- 1. **Consistent with Adopted Plans.** The design shall be consistent with adopted regional or local open space and recreation plans.

2. **Accessibility.** The dedicated open space shall have access to residents of the subdivision or planned unit development. For dedicated open space within a master site plan, the dedicated open space shall have access to site users.
3. **Roadways.** The number of private or public roadways that divide the dedicated open space shall be limited to those necessary for proper traffic circulation, and the roadways shall not detract from the efficient use of the open space.
4. **Structures.** The dedicated open space shall be free of all structures, except those that enhance the use of the dedicated open space including, but not limited to, structures related to outdoor recreational use, well houses, and stormwater retention basins.
5. **Stormwater Basins.** Stormwater retention or detention basins designed and approved as part of the stormwater management system for the property may be located within the dedicated open space area.
6. **Impervious Surface.** No more than five percent (5%) of the dedicated open space shall be impervious surface.
7. **Additional Standards for Dedicated Open Space in A Planned Unit Development or Subdivision**
 - a. The dedicated open space shall not be less than one hundred feet (100') in width at any point and not less than twenty thousand (20,000) square feet of contiguous area, except when part of a trail system, pathway network, or pocket park for active recreational use.
 - b. The dedicated open space shall connect to open space areas on neighboring properties wherever possible including provisions for pedestrian walkways to create linked walkway or pathway systems.
 - c. The dedicated open space shall have the required number of automobile and bicycle parking spaces as established in Section 8-3-10 of this Chapter.
 1. Parking areas shall have safe and convenient access from an abutting public street or other rights of way or easements capable of accommodating pedestrian, bicycle, or vehicle traffic.
 2. Required parking areas for outdoor amusement or recreation facilities may be included in calculating the amount of dedicated open space.
 - d. When children's play equipment is proposed, a minimum of two (2) shade trees shall be planted to shade the play equipment on the west and southern exposures.

8-3-10: Parking and Loading

- A. **Purpose.** This Section provides regulations and standards for off-street parking and loading facilities with the intent to provide off-street parking areas, minimize traffic hazards and congestion, improve connectivity and accessibility for all individuals and non-motorized users, and mitigate impacts on surrounding properties.
- B. **Applicability.** The following standards apply to any new construction, alteration, or moving of a structure or any new or more intense use of property. The number of off-street parking spaces are provided for all allowed uses in any district. The number of required

spaces may be reduced or increased in any application involving discretionary approval.

C. Process

- 1. Site Plan.** An off-street parking and loading plan are a required master site plan component.
 - a.** The off-street parking and loading plan contains the location, size, and type of all proposed off-street parking and loading facilities. A table shall be provided indicating any applicable standards and the calculations used to determine the required number of spaces.
 - b.** If the proposed development project shall be completed in phases, the site plan shall note these phases. Documentation on the proposed uses and the number of off-street parking and loading facilities associated with each phase shall also be provided.
- 2. Residential and Accessory Uses.** For residential and accessory uses that do not require master site plan approval, these regulations shall be reviewed at the time of building permit application or accessory use approval.
- 3. Installation and Construction.** Off-street parking and loading shall be installed and constructed in accordance with the approved off-street parking and loading plan.

D. General Regulations

- 1. Use of Required Parking Spaces**
 - a.** Required parking spaces are used for vehicle and bicycle parking only.
 - b.** Parking areas for residential use may be used for the parking of one commercial vehicle per property if it is operated by the occupant and used to commute from home to work at an off-site location or used as part of an approved home occupation.
- 2. Joint Use Parking.** Joint use of off-street parking spaces are allowed when the principal operating hours of the structures or uses are not in conflict with one another.
 - a.** The required off-street parking shall be located within three hundred feet (300') from the primary entrance of the structure to the nearest entrance of the parking area, as measured along the sidewalk or pedestrian walkway.
 - b.** All parties involved with the joint use parking area shall submit a written agreement to the Director, signed by the applicable parties involved. The agreement shall specify the following:
 1. Party or parties responsible for construction;
 2. Party or parties responsible for maintenance;
 3. Regulations for amendments to the agreement that include notice to the Director; and
 4. Regulations for termination of the agreement that include notice to the Director.
 - c.** If the Director finds that the agreement complies with these regulations, the agreement shall be recorded with the Ada County Recorder prior to issuance of any permits.

- d. The joint use parking agreement may be terminated by the parties only if off-street parking is provided in conformance with this Section and approved by the Director prior to the termination.
- 3. **Continuous Service Drives.** Continuous service drives shall meet the following standards:
 - a. Service drives are only allowed for multi-family developments, or developments that are within the commercial and industrial base districts.
 - b. The minimum width of the continuous service drive shall be twenty feet (20') and shall be paved with asphaltic concrete as approved by the County Engineer. The parking areas and drive aisles shall comply with Section 8-3-10E of this Section. Where the continuous service drive also doubles as the drive aisle, the minimum width of the continuous service drive shall be twenty-five feet (25').
 - c. The continuous service drive shall connect to a minimum of one public road. The point(s) of connection shall be approved by the Ada County Highway District or Idaho Transportation Department based on the classification of the public road. Continuous service drives shall be designed to discourage cut-through traffic.
 - d. Written approval shall be provided from the appropriate fire district.

E. Design Standards

1. Design of Parking Areas

- a. **Design and Construction.** All parking areas shall be designed and constructed to provide the type and number of off-street parking spaces required by subsection 8-3-10F of this Section and designed as required by this Section.
- b. **Location.** All parking spaces required by this Section shall be located on the same property as the use for which parking is required, except as provided for in joint use parking in subsection 8-3-10D.2 of this Chapter. For the purposes of this standard, all properties within a single master site plan or planned unit development shall be considered the same property.
- c. **Accessible Spaces.** Accessible parking spaces shall provide reasonable accommodations to principal permitted structures and shall be located along the shortest route of travel from adjacent parking to an accessible entrance.
- d. **Additional Design Standards for Uses Requiring Master Site Plan Approval**
 - 1. Off-street parking spaces shall not be located in any landscape area required by subsections 8-3-7F and 8-3-7G of this Chapter.
 - 2. Parking stalls and driving aisles shall be designed in accord with the standards in Table 8-3-10-1 of this Section.
 - 3. All parking areas shall provide on-site turnarounds for all off street parking spaces and loading facilities.
 - 4. The design of off-street parking areas shall not require moving any car to gain access to a required parking space. (No tandem parking).
 - 5. Sidewalks located within the off-street parking areas, outside of public rights of

way, shall be a minimum width of five feet (5').

6. All sidewalks must contain adequate ADA ramps with truncated domes that are perpendicular to the service drives or drive aisle per Public Right-of-Way Accessibility Guidelines (PROWAG) guidance.

Table 8-3-10-1 Parking Dimensions

Parking Angle	Stall Width	Curb Length	Stall Depth	One Way Driving Aisle	Two Way Driving Aisle
0	9'	23'	9'	12'	25'
30	9'	18'	17'8"	11'	25'
45	9'	12'9"	20'5"	13'	25'
60	9'	10'5"	21'10"	16'	25'
90	9'	9'	20'	22'	25'

2. Improvements

- a. Except as otherwise provided in this Section, all off street parking areas shall be improved with a compacted gravel base, not less than four inches (4") thick, surfaced with asphaltic concrete or some comparable all weather dustless material as approved by the County Engineer. This standard shall not apply to agricultural produce stands, roadside produce stands, rural residences, temporary uses, or temporary construction offices.
 - b. Except as otherwise provided in this Section, all off street parking areas shall be provided with a substantial wheel restraint to prevent cars from encroaching upon abutting private and public property or overhanging beyond the designated parking stall dimensions. This standard shall not apply to agricultural produce stands, roadside produce stands, rural residences, temporary uses, or temporary construction offices.
 - c. When a bumper overhangs onto a sidewalk or landscape area, the parking stall dimensions may be reduced two feet (2') in length if two feet (2') are added to the width of the sidewalk or landscaped area planted in ground cover. In no case shall the width of the sidewalk not be ADA compliant.
 - d. Parking spaces and access lanes shall be marked including accessible symbols and signs.
 - e. All lighting provided to illuminate a parking area shall comply with the lighting standards provided in Section 8-3-8 of this Chapter.
- 3. Bicycle Parking Facilities.** Bicycle parking facilities, where required by this section, shall meet the following location and design standards:
- a. Bicycle parking facilities shall be located as close as possible to the building entrance(s).
 - b. Bicycle parking spaces shall be a minimum of 6-feet (6') long and two and one-half-feet (2.5') wide and have an overhead clearance of seven-feet (7') if covered.

A four-foot (4') wide aisle is required between rows of bicycle parking spaces or nearby walls. Stationary racks shall be located on improved non-permeable surfaces and anchored to the ground.

- c. Bicycle parking facilities shall not obstruct pedestrian walkways, public sidewalks, or building entrances.
- d. Bicycle parking facilities shall not conflict with the Americans with Disabilities Act.
- e. Bicycle parking facilities shall support the bicycle and allow the owner to lock the frame and front wheel with one lock.

F. Required Number of Off-Street Parking Spaces

1. Generally

- a. The required number of off-street automobile and bicycle parking spaces, where required by this section, shall meet the requirements established in Table 8-3-10-2 (Parking Ratios) of this Section.
- b. Where the standards require a fractional space, the next larger whole number shall be the number of spaces required.
- c. When more than one standard is provided, the standard that results in the greatest number of required parking spaces shall apply.
- d. For uses listed in Table 8-2-23-2 (Use Table) but not listed in Table 8-3-10-2 (Parking Ratios), parking ratios shall be determined by the Director.

2. Minimum Parking. The minimum parking spaces required on the site are established in Table 8-3-10-2 (Parking Ratios) below.

3. Bicycle Parking. Bicycle parking facilities are required for uses within an area of city impact. Bicycle parking facilities shall meet the following location and design standards except in the industrial base districts.

- a. One bicycle parking space shall be provided for every ten (10) proposed parking spaces.
- b. Residential uses, except for multi-family, are exempt from providing bicycle spaces.

4. Mixed Uses. For mixed uses, the total requirement of off-street automobile and bicycle parking spaces shall be the sum of the requirements of the individual uses, except as provided in joint use of parking in subsection 8-3-10D.2 of this Chapter.

5. Accessible Parking. The number and design of accessible automobile parking spaces shall comply with the Americans with Disabilities Act.

6. Reserved Parking Spaces. Reserved off street automobile parking spaces shall be noted on the site plan and each reserved space shall count as one required space.

7. Change of Use

- a. Upon any change of use, the number of automobile and bicycle parking spaces to be provided shall be calculated according to the requirement of this Section for the

new use.

- b. For the purposes of this Section, a change of use shall include, but not be limited to, an expansion, alteration, or change in occupancy resulting in a more intense use of a site, such as additional dwelling units, gross floor area, seating capacity, or other unit of measurement specified as a standard in subsection 8-3-10F, Table 8-3-10-2 (Parking Ratios) of this Chapter.
8. **Maintenance.** The minimum number of required automobile and bicycle parking spaces shall be provided and continuously maintained.
 9. **Elimination, Reduction, or Conversion.** No parking area or space provided, as required by this Section, shall later be eliminated, reduced, or converted in any manner unless other equivalent facilities approved by the Director are provided.

Table 8-3-10-2 Parking Ratios

<i>DU = dwelling unit sf = square feet / = per (e.g., 1 / DU means "1 parking space per dwelling unit")</i>	
Proposed Use	Proposed Minimum Parking Ratio
Residential	
Dwelling, Single-Family Detached	2/DU
Dwelling, Single-Family Attached	2/DU
Dwelling, Duplex	2/DU
Dwelling, Multi-Family (> 2 bedrooms)	>2 bedrooms: 2.25/DU; 1 bedroom: 1.25/DU (25% for visitor spaces)
Manufactured Home	2/DU
Manufactured Home Park	2.25/DU (25% for visitor spaces)
Lodging / Group Living	
Bed and Breakfast Establishment	1 + (0.75 / guest room)
Boarding House	1 + (0.75 / guest room)
Continuing Care Facility	2/1000 sf
Foster Home, Group	2/1000 sf
Hotel/Motel	1/guest room
Recreational Vehicle Park	2/site
Agriculture	
Equestrian Stable/Event Facility	Stable – N/A Event Facility -1/500 sf
Livestock Confinement Facility (1,000+)	1/1000 sf
Livestock Confinement Facility (301-999)	1/1000 sf
Nursery, Wholesale	0.25/1000 sf
Seasonal Farmworker Housing	2/DU or 1/dorm room
Winery	2/1000 sf
Commercial / Office	
Animal Services	

<i>DU = dwelling unit sf = square feet / = per (e.g., 1 / DU means "1 parking space per dwelling unit")</i>	
Proposed Use	Proposed Minimum Parking Ratio
Kennel, Commercial	2/1000 sf
Veterinary Services	2/1000 sf
<i>Day Care</i>	
Family Day Care, Home	2/1000 sf
Day Care, Group	3/1000 sf
Day Care, Center	3/1000 sf
<i>Financial Services</i>	
Financial Institution	2/1000 sf
<i>Food & Beverage Sales / Service</i>	
Bar	5/1000 sf
Brewpub or Distillery	5/1000 sf
Nightclub	5/1000 sf
Restaurant	5/1000 sf
<i>Office, Business & Professional</i>	
Office	2/1000 sf
<i>Personal / Business Services</i>	
Personal Services	2/1000 sf
Postal Service	2/1000 sf
<i>Retail sales</i>	
Auction	5/1000 sf
Farm, garden, lumber, or building supply store	1/1000 sf
Fuel Sales	½ pumps
Heavy Equipment Sales or Service	1/1000 sf
Nursery, Retail	1/1000 sf
Retail Store	2/1000 sf
<i>Automotive</i>	
Car Wash	1/bay + 1/1000 sf
Vehicle Repair, Minor	1/bay + 1/1000 sf
Vehicle Repair, Major	1/bay + 1/1000 sf
Vehicle Sales	1/1000 sf
<i>Entertainment / Recreation</i>	
Adult Entertainment Establishment	8/1000 sf
Amusement or Recreation, Indoor	4/1000 sf
Amusement or Recreation, Outdoor	10/acre Golf Course and Country Club 2 per hole/1 per employee
Campground	1/site
Racetrack	10/acre

<i>DU = dwelling unit sf = square feet / = per (e.g., 1 / DU means "1 parking space per dwelling unit")</i>	
Proposed Use	Proposed Minimum Parking Ratio
Shooting Range Indoor Only)	2/1000 sf
Shooting Range (Outdoor Only)	2/1000 sf
Civic	
<i>Assembly</i>	
Event Center	5/1000 sf
Religious Land Use	5/1000 sf
<i>Death Care Services</i>	
Cemetery	10/acre
Crematory	2/1000 sf
Funeral Services	2/1000 sf
Mortuary	2/1000 sf
<i>Government / Non-Profit</i>	
Public or Quasi-Public Use	2/1000 sf
<i>Education</i>	
School	3/1000 sf
Studio	2/1000 sf
Technical School	3/1000 sf
<i>Medical</i>	
Clinic (Dental or Medical)	4/1000 sf
Medical Care Facility	4/1000 sf
Industrial	
<i>Manufacturing & Employment</i>	
Asphalt or Concrete Ready-Mix Plant	1/1000 sf
Contractor Yard	1/1000 sf
Explosive Manufacturing or Storage	1/1000 sf
Foundry	1/1000 sf
Manufacturing, Heavy	1/1000 sf
Manufacturing, Light	1/1000 sf
Meatpacking/ Slaughterhouse Facility	1/1000 sf
Pit, Mine, or Quarry	1/1000 sf
Processing Plant, Agricultural and Dairy Products	1/1000 sf
Research and Development Facility	1/1000 sf
Sawmill/Planning Mill	1/1000 sf
Tannery	1/1000 sf
Wood, Metal, and Stone Shop	1/1000 sf
<i>Warehousing, Storage & Distribution</i>	
Energy Storage	2/site
Grain Elevator	2/site

<i>DU = dwelling unit sf = square feet / = per (e.g., 1 / DU means "1 parking space per dwelling unit")</i>	
Proposed Use	Proposed Minimum Parking Ratio
Manufactured Home Storage	Parking for On-Site Office (see Office Standard)
Storage Facility, Self-Service	2/site
Storage Facility, Self-Service, Outdoor Only	2/site
Wholesale Distribution and Warehousing	1 + (0.25/1000 sf)
Infrastructure	
<i>Transportation / Parking:</i>	
Freight/Truck Terminal	4/site
Heavy Truck Wash Facility	1/1000 sf
Railroad Switching Yard	2/site
Truck Stop	2/1000 sf
<i>Utilities</i>	
Centralized Power Facility	1/1000 sf
Electric Substation	1/1000 sf
<i>Communications</i>	
Radio and Television Broadcasting Station	1/1000 sf
<i>Waste-related:</i>	
Composting Facility	4/site
Junkyard or Automobile Wrecking Yard	4/site
Recycling Center	4/site
Recycling Plant	4/site
Sanitary Landfill	4/site
Septage Treatment and Disposal Facility	4/site
Soil/Water Remediation	4/site
Vehicle Impound Yard	4/site
Accessory Uses	
Additional Farm Dwelling	1/DU
Caretaker Dwelling	1/DU
Dwelling, Secondary Attached or Detached	1/DU
Home Occupation, small/large	1/DU
Produce Stand, Agricultural	1/produce stand
Produce Stand, Roadside	4/produce stand
Temporary Uses	
Temporary Living Quarters*	2/DU
Other	
Dangerous or Protected Animal Facility	1/1000 sf

G. General Off-Street Loading. Any commercial or industrial use with a gross floor area of five thousand (5,000) square feet or more requires off-street loading. These uses shall provide and maintain at least one off-street loading space. One additional off-street loading space shall be required for each subsequent twenty thousand (20,000) square feet of gross floor area (e.g., 25,000 square feet, 45,000 square feet, etc.).

H. Loading Space Dimensions. Each loading space shall meet the following minimum dimensions:

1. A ten-foot (10') width;
2. A thirty-foot (30') length; and
3. A fourteen foot (14') vertical clearance.

I. Backing and Maneuverability

1. Parking and loading area design shall not result in vehicles backing out into the street.
2. Parking and loading area design shall accommodate vehicular maneuverability on site.

J. Loading Location

1. No off-street loading space shall be located within fifty feet (50') of an abutting rural, transitional, or residential district, as outlined in Table 8-2-3-1, unless wholly enclosed within a structure.
2. No off-street loading space shall face an abutting residential district.

K. Loading Hours of Operation. Any off-street loading space located within fifty feet (50') of a residential district shall not operate between the hours of ten o'clock (10:00) P.M. and seven o'clock (7:00) A.M.

8-3-11: Private Roads

A. Purpose. This Section allows property owners to construct and maintain private roads to provide access to properties that do not have frontage on a public street.

B. Applicability. These standards apply to all new private roads, all extensions to private roads, and in some instances, to existing private roads.

C. Process

1. When Application is Required

- a. The construction of all new private roads.
- b. Extensions to existing private roads.
- c. The addition of properties to an existing private road, which requires the road to be widened and paved as required in subsection 8-3-11D.2 of this Chapter.
- d. An application for a private road shall not be required when an existing private road has had prior written approval and provides adequate access for the additional lots of property being proposed.
 1. Documents demonstrating approval and adequate access must be submitted as part of the property development application.

2. Submitted documents include:

- a. a copy of the recorded perpetual access easement that demonstrates the easement is applicable to additional properties;
- b. the recorded maintenance agreement that demonstrates it is applicable to the additional properties;
- c. and the original approval from Ada County or the city which approved the existing private road.

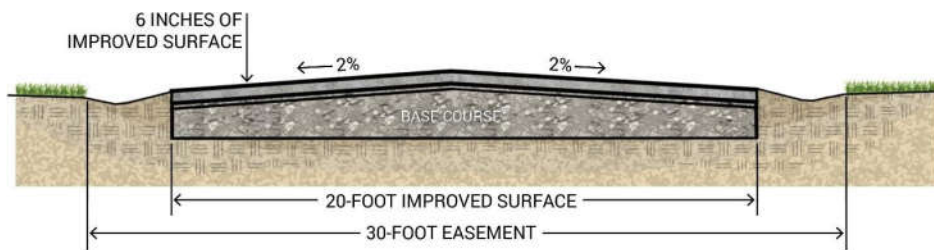
2. Tentative Approval; Requirements. Upon tentative approval of the application by the Director subject to any applicable conditions of approval and Section 8-6-6 of this Title, the following tasks shall be completed in one year or two years if a private road is a part of a subdivision application:

- a. Obtain approval from the Ada County Street Naming Committee for a private road name (see Title 2, Chapter 1 of this code);
- b. Contact the Ada County Highway District (ACHD) to install an approved street name sign that complies with the Ada County uniform street naming ordinance (see Title 2, Chapter 1 of this code);
- c. Record a perpetual access easement with the Ada County Recorder for the private road from a public street to all applicable properties;
- d. After the private road is constructed and the street name sign is installed, schedule an inspection by the Ada County Engineer; and
- e. Documentation of a binding contract shall be provided that establishes the party or parties responsible for the repair and maintenance of the private road including regulations for the funding thereof.

3. Completion; Approval. Upon completion of the items noted above, the Director shall issue a letter stating that the private road has been approved. No building permit shall be issued for any structure using a private road for access to a public street until the private road has been approved.

D. Standards. All private roads (including extensions of previously approved private roads) must be designed by a professional engineer licensed in the state of Idaho and constructed to the following standards (see Figure 8-3-11-1 Private Road Minimum Construction Standards for Properties Outside and Inside an Area of City Impact):

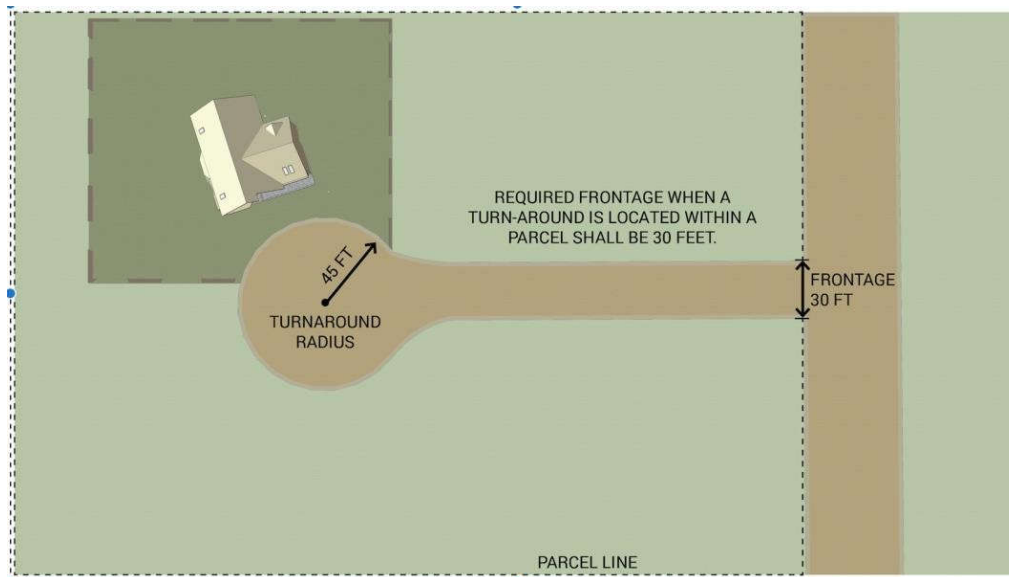
Figure 8-3-11-1 Private Road Minimum Construction Standards for Properties Outside and Inside an Area of City Impact



1. Design Standards

- a. The private road shall be constructed on a perpetual access easement or a single platted lot that originates from a public street and provides access to all applicable properties.
 1. Outside an area of city impact, the easement or lot shall be a minimum of thirty feet (30') in width. Inside an area of city impact, the easement or lot shall be a minimum of fifty feet (50') in width.
 2. If located on a lot, the primary function of the lot shall be to accommodate the private road. Minimum parcel size requirements shall not apply.
- b. All properties abutting an approved private road shall have the same minimum required street frontage as required by the applicable base district.
 1. **Exception.** If the turnaround for the private road is located within a property as illustrated in Figure 8-3-11-2 Private Roads, the required frontage shall be thirty feet (30') (the width of the private road easement).

Figure 8-3-11-2 Private Roads



- c. The point of connection of the private road and the public street shall be approved by the Ada County Highway District or the Idaho Transportation Department if abutting a state highway.
- d. The private road shall terminate at a forty-five-foot (45') radius cul-de-sac or other approved turnaround configuration.
 1. The turnaround may be located in an area of the property other than where the private road enters the property (see Figure 8-3-11-2 Private Roads.)
 2. If an alternate location and/or configuration for the turnaround is proposed, the following additional standards shall apply:

- a. Written approval shall be provided from the appropriate fire district.
 - b. The County Engineer shall review and approve the alternate location and/or configuration.
- e. The private road shall only intersect a public road at its origination point.
- f. The private road shall not intersect another private road.
- g. New gates or other travelway obstacles shall not be allowed except in exceptional circumstances when the Director determines the gate or gates are necessary to improve safety or to halt environmental degradation in the area. Before approving a new gate or other obstacle, the Director shall provide the fire district, or if no fire district, the Ada County Sheriff, with advice from the Idaho State Fire Marshal's Office, the opportunity to review the proposal and offer recommendations.
 - 1. Approved gate openings shall be a minimum of twenty feet (20') wide, be located a minimum of thirty feet (30') from the public right of way, and when the gate is open, the travelway, for its entire width shall be clear and unobstructed.
 - 2. Gates located on one-way roads shall open in the same direction that traffic moves. Gates located on two-way roads must open in both directions that traffic moves. Gates that open upward shall not be allowed.
 - 3. Gates shall have a fail-open lock in the event of a loss of power.
- h. No segment of the travel way of a private road shall exceed ten percent (10%) grade. Fire apparatus roadways in locations that front buildings, at intersections with other roads, and in front of fire hydrants, shall not exceed eight percent (8%) grade.
- i. If the private road is located within the Wildland-Urban Fire Interface Overlay district, the additional design standards listed in Section 8-2-25 (Wildland-Urban Interface Overlay District) of this Title apply.
- j. Upon the County Engineer's review of the design of the proposed private road that licensed in the state of Idaho, the submittal of a drainage study may be required before constructing the private road.

2. Construction Standards

- a. Private roads that serve developments located within an area of city impact and exceed a density of three (3) dwelling units per acre shall be constructed to the Ada County Highway District standards for urban local roads.
- b. All other private roads shall be constructed to the following standards:
 - 1. Private roads that will provide frontage or access to four (4) or fewer properties shall have a travel way with a minimum improved width of twenty feet (20'). Private roads that will provide frontage or access to more than four (4) properties shall have a travel way with a minimum improved width of twenty-four feet (24').
 - 2. The travel way shall have a stable, compacted base.
 - 3. There shall be a crown or transverse slope of two percent (2%) to drain water

away from the travel way.

4. The improved surface shall consist of six inches (6") of compacted three-fourths inch (3/4") minus crushed gravel or other materials approved by the County Engineer. Private roads that provide frontage and/or access to more than four (4) properties shall be paved with two and a half (2.5") inches of asphaltic concrete.
5. Any segment of a travelway of a private road greater than five percent (5%) grade shall be improved with asphalt or concrete paving.
6. For the purposes of this Section, corner properties that abut a private road shall be counted as taking access off the private road. Temporary dedicated open space lots that were created as part of a nonfarm subdivision shall also be counted as taking access off the private road.

E. Required Findings. In order to approve the application, the Director shall find the following:

1. The design of the private road meets the requirements of this Section;
2. Granting approval of the private road would not cause damage, hazard, or nuisance, or other detriment to persons, property, or uses in the vicinity; and
3. The use and location of the private road shall not conflict with the applicable comprehensive plan and/or the regional transportation plan.

8-3-12: Signs

A. Purpose. The purpose of this Section is to control and regulate the erection and maintenance of signs in the unincorporated portions of Ada County by:

1. Protecting state and federal constitutional rights to free speech by:
 - a. Providing ample opportunities for expression through signs;
 - b. Avoiding regulatory triggers or distinctions based on a sign's content; and
 - c. Providing clear standards for approval of signs.
2. Protecting the public health and safety by:
 - a. Providing maximum visibility along highways;
 - b. Assuring unobstructed views at connecting roads and intersections for all users;
 - c. Preventing undue distraction of operators of motor vehicles; and
 - d. Preventing confusion with respect to traffic lights, signs, or signals.
3. Promoting the County's appearance, character, quality, and business climate by:
 - a. Encouraging attractive and functional signs;
 - b. Encouraging signs that harmonize with the sign's site and buildings and with surrounding buildings and developments.

B. Applicability. This Section applies to signs that are installed, constructed, painted, or altered after the effective date of this Title.

1. **Signs Requiring Building Permits.** The Ada County Building Code, set forth in Title 7, Chapter 2 of this code, determines which signs require building permits.
2. **Signs Requiring Administrative Approval.** Any sign greater than sixty-four (64) square feet requires administrative approval prior to construction and/or placement unless this Section exempts the sign from the permitting requirement.
3. **Interstate Roads and Primary Highways.** The standards of this Title apply to all interstate roads and primary highways covered by the Idaho Highway Beautification Act, Idaho Code Title 40, Chapter 19, to the extent that this Section provides more restrictive standards for maintaining signs on such roadways.

C. Exempt Signs. This Section does not apply to the following types of signs, which do not require permits.

1. Signs less than four (4) square feet in sign area that are embedded, extruded, or carved into the material of a building façade or are made of bronze, brushed stainless steel or aluminum, or similar material that is permanently attached to the building façade.
2. Signs erected, maintained, or displayed by the State, Federal, or County government, or any other subdivision of the State. Government uses in all zoning districts may include signs.
3. Traffic control devices on private or public property erected and maintained to comply with the Manual on Uniform Traffic Control Devices adopted in the State of Idaho or by the Federal Highway Administration.
4. Signs placed by a public utility showing the location of underground facilities.
5. Any sign that is visible only from the parcel where it is located.

D. Prohibited Signs. The following signs are prohibited:

1. Any sign or sign structure, other than approved County and highway signs in or on any street or highway right of way; and
2. Signs incorporating a rotating beam, beacon, or flashing illumination resembling an emergency light.

E. General Regulations

1. **Owner's Consent Required.** A person may not place a sign or sign structure on private or public property without the written consent of the owner.
2. **Illumination**
 - a. Illumination of signs is subject to the regulations in Section 8-3-8 (Lighting) of this Chapter.
 - b. Where this Section provides for illumination of a sign, the illumination may be direct, internal, or neon illumination unless the sign standard specifies otherwise.
 - c. Flashing and/or animated signs are prohibited within three hundred feet (300') of any property within a residential base district.
3. **Measurement**

- a. For the purposes of this Section, distance for the purpose of establishing location refers to the linear distance in either direction on the street to which the sign faces only.
 - b. For building signs, the maximum sign area is based on the area of the building face to which the sign is attached.
 - c. If the adjacent street grade to which the sign is oriented is more than ten feet (10') greater than the grade elevation at the base of the sign structure, the adjacent street grade may be used in determining the permitted height. This provision applies to all freestanding sign structures.
4. **Clear Vision Triangle.** Signs at railroad and street intersections are not permitted in the clear vision triangle as defined in this Title.
5. **Blanketing.** For the purpose of preventing the blanketing of one sign by another, the following provisions govern the size of a sign and its location:
- a. A projecting sign may not be erected in the same horizontal plane with other projecting signs unless the signs are spaced as provided in table 8-3-12-1, measured center to center.

Table 8-3-12-1 Required Spacing of Projecting Signs

Overlap Of Projecting Signs	Spacing Between Signs
3 feet or less	10 feet
Greater than 3 feet to 4 feet	20 feet
Greater than 4 feet to 6 feet	25 feet
Greater than 6 feet	30 feet

- b. A projecting sign erected closer than allowed by table 8-3-12-1 must be erected above the top edge or below the bottom edge of the blanketed sign.
6. **Setbacks**
- a. Signs must have a minimum setback of five feet (5') from any property line, unless this Section provides otherwise.
 - b. A sign background area facing the side or rear property line of an abutting residential base district may not be located within fifty feet (50') of the side or rear property line.
7. **Substitution.** Any sign with a commercial message may contain any non- commercial message. Any sign with a non-commercial message may contain any other non-commercial message.
8. **Signs Not Addressed in this Section.** If there is no applicable regulation in this Title, the application will be considered under the conditional use procedure outlined in Chapter 6 of this Title.

F. Signs in Commercial and Industrial Districts

- 1. **Single Use Properties.** Properties with a single use in a commercial or industrial base

district are allowed one or more building signs as provided in this subsection.

- a. Building Signs.** Table 8-3-12-2 provides the sign standards for building signs for single use properties in a commercial or industrial district.

Table 8-3-12-2 Building Sign Standards for Single Use Properties

Standard	Wall Sign	Projecting Sign	Canopy Sign
Max. Sign Area (as a % of building face)	40%	15%	15%
Max. Height	30 feet	30 feet	30 feet
Illumination Allowed	Yes	Yes	Yes
Animation (as a % of sign area)	20%	20%	20%

b. Freestanding Signs

1. **Standards.** In lieu of building signs as provided in this subsection, one freestanding sign is permitted on each street frontage for any property as provided in Table 8-3-12-3 in each commercial or industrial base district.

Table 8-3-12-3 Freestanding Sign Standards for Single Use Properties

Standard	Allowance
Number	1 per street frontage
Max. Sign Area	Greater of 65 square feet or 1.5 square feet per linear feet of street frontage
Max. Height	40 feet
Illumination Allowed	Yes
Animation (as a % of the sign area)	20%

2. **Setback.** Freestanding signs must be located at least a distance equal to twenty percent (20%) of the length of the road frontage where the sign is located within 50% of the sign's height from any abutting property line.

- c. Combination of Building and Freestanding Signs.** Properties with a single use in commercial and industrial base districts are allowed a combination of a building sign and a freestanding sign provided:

1. All signs are reduced by fifty percent (50%) in sign area; and
2. The height to the top of the freestanding sign does not exceed thirty feet (30').

2. **Multi-Use Properties.** Properties with more than a single use in a commercial or industrial base district are allowed signs as provided in this subsection.

a. Building Signs

1. **Standards.** Table 8-3-12-4 provides the sign standards for building signs.

Table 8-3-12-4 Building Signs for Multi-Use Properties

Standard	C1 and LO Districts	C2 Districts	Industrial Districts
Max. Sign Area	200 square feet	315 square feet	315 square feet
Max. Height, Sign Background Area	35 feet	55 feet	55 feet
Max. Height, Sign Structure	45 feet	70 feet	70 feet
Illumination Allowed	Yes	Yes	Yes
Animation (as a % of the sign area)	10%	20%	20%

2. **Projecting Signs.** Table 8-3-12-5 provides the sign standards for projecting signs.

Table 8-3-12-5 Projecting Signs for Multi-Use Properties

Standard	C1 and LO Districts	C2 and Industrial Districts
Max. Sign Area (as a % of building face)	10%	10%
Max. Height	Lesser of 20 feet above grade or 4 feet above eaves or parapet	Lesser of 20 feet above grade or 4 feet above eaves or parapet
Illumination Allowed	Yes	Yes
Animation (as a % of the sign area)	10%	20%

3. **Roof Signs.** This subsection provides additional standards for roof signs.
 - a. Roof signs are allowed by conditional use permit only.
 - b. The lower and upper edges of a roof sign must be within four feet (4') and eight feet (8') above the eaves of the building on which it is placed.
 - c. Illumination of roof signs is not allowed.

b. Freestanding Signs

1. **Standards.** In lieu of building signs as provided in this subsection, one freestanding sign is permitted on each street frontage as provided in Table 8-3-12-6 in commercial and industrial base districts.

Table 8-3-12-6 Freestanding Signs for Multi-Use Properties

Standard	Allowance
Number	1 per street frontage
Max. Sign Area	Greater of 50 square feet or 1 square foot per linear foot of street frontage
Max. Height	25 feet
Illumination Allowed	Yes
Animation (as a % of the sign area)	10%

2. **Setback.** A freestanding sign must be located at least a distance equal to twenty percent (20%) of the length of the road frontage where the sign is located within fifty percent (50%) of the sign's height from any abutting property line.
- c. **Combination of Building and Freestanding Signs.** Multi-Use properties are allowed a combination of a building sign and a freestanding sign if:
 1. All signs are reduced by fifty percent (50%) in sign area;
 2. Signs in any commercial or industrial base districts are at least one hundred feet (100') from any property in a residential district except the R12 and R20 districts.
3. **Establishments Within Multi-Use Properties.** Each establishment within a property that has more than one use in a commercial or industrial base district is allowed one or more building signs as provided in this subsection.
 - a. **Building Signs**
 1. **Standards.** Table 8-3-12-7 provides the sign standards for building signs for each establishment in a multi-use property in a commercial or industrial district.

Table 8-3-12-7 Building Sign Standards for Establishments in Multi-Use Properties

Standard	Allowance
Max. Sign Area (as a % of building face)	25%
Max. Height	Lesser of 20 feet above grade or 4 feet above eaves or parapet
Illumination Allowed	Yes
Animation (as a % of the sign area)	10%

2. **Measurement.** The maximum area is based on the building face area dedicated to each grade level use.
3. Revolving signs are prohibited.
4. Establishments above grade level may have business signs as outlined in this subsection, except that the maximum sign area is reduced by fifty percent (50%).

- b. Projecting Signs.** One projecting sign is allowed for each grade level use on each street frontage, plus one additional projecting sign for each one hundred fifty feet (150') of street frontage devoted to a single use.

4. Property With Frontage on Two Or More Streets

- a. Generally.** Property with frontage on two or more streets is allowed the number and dimensions of signs on each of the streets as provided in this Section unless it is on a corner lot.
- b. Corner Lot.** Property located on a corner may have either one (1) freestanding sign designed to be read from both intersecting streets or two (2) freestanding signs where each sign is designed to be read from only one of the intersecting streets.

G. Signs for Non-Residential Uses in Residential, Transitional, and Rural Districts

- 1. Standards.** A permitted non-residential use in a residential, transitional, or rural district is allowed signs that conform with the standards in Table 8-3-12-8.

Table 8-3-12-8 Sign Standards for Non-Residential Uses in Residential and Rural Districts

Standard	Rural and Transitional	R4, R6, and R8	All Other Residential
Maximum Sign Area	Lesser of 64 square feet or 1 square foot for each 3 feet of frontage	Lesser of 32 square feet or 1 square foot for each 3 feet of frontage	Lesser of 64 square feet or 1 square foot for each 3 feet of frontage
Height (in feet)	12 feet	8 feet	12 feet
Illumination Allowed	Yes	Yes	Yes
Animation Allowed	No	No	No

- 2. Frontage Calculation.** For the purposes of this subsection, street frontage means the frontage of the principal building on the principal street, measured in linear feet.
- 3. Freestanding Sign Standards.** Freestanding signs shall not revolve or flash.
- 4. Roof Signs Prohibited.** Roof signs are prohibited. The top edge of a sign may not project above the lesser of the eaves of the building or the height in Table 8-3-12-8.

H. Subdivision Entry Signs

- 1. Standards.** A subdivision entry sign on the site of a single-family or multi-family residential development is allowed one sign that conforms with the standards in Table 8-3-12-9.

Table 8-3-12-9 Sign Standards for Subdivision Entry Signs

Standard	Residential, Transitional, and Rural Districts	Commercial Districts
Number	1 per residential development	1 per residential development
Max. Sign Area	Lesser of 64 square feet or 1 square foot per linear foot of street frontage	Lesser of 64 square feet or 1 square ft per linear foot of street frontage
Height	8 feet	12 feet
Illumination	Direct or Internal Illumination	Direct or Internal Illumination
Animation	No	No

2. Movement Not Allowed. Subdivision entry signs shall not revolve or flash or have any movement feature.

3. Freestanding Signs

a. Freestanding signs shall not be located in the required yards.

b. Freestanding signs are allowed only when the building setback is at least twenty feet (20') from the front property line.

4. Building Signs. Building signs shall not exceed the height of the eaves line of the building.

I. Incidental Signs

1. Standards. Incidental signs are allowed without a permit in all districts; however, they are only allowed on a developed property and must comply with the standards in Table 8-3-12-10.

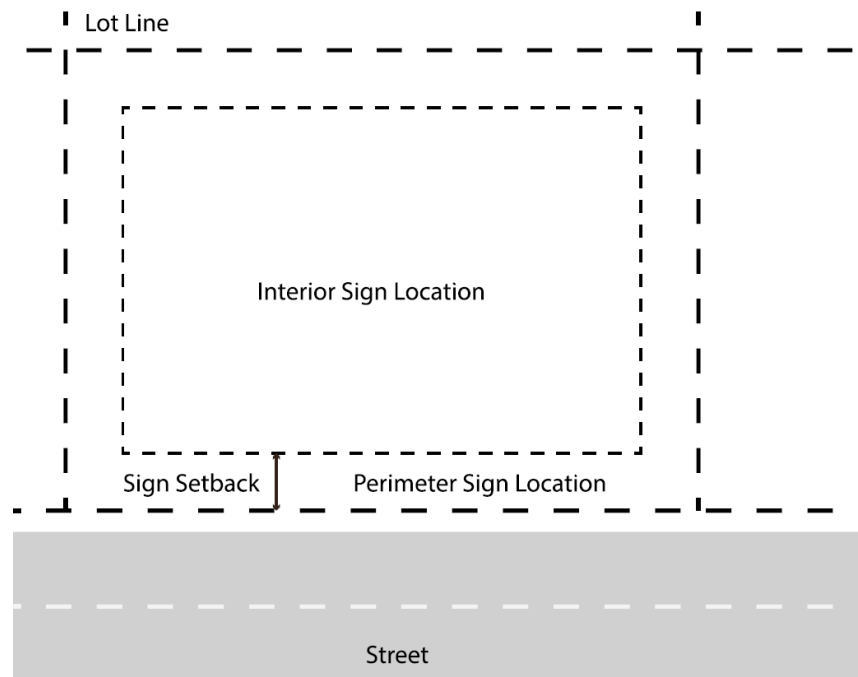
Table 8-3-12-10 Incidental Signs by District

Standard	Rural	Residential	C1 and LO	Other Commercial / Industrial
Incidental Sign Setback	10 feet	10 feet	20 feet	30 feet
Perimeter Lot Signs				
Max. Number (per entrance)	1	1	2	2
Max. Sign Area	2 square feet	2 square feet	2 square feet	2 square feet
Max. Height	4 feet	4 feet	4 feet	4 feet
Interior Lot Signs				

Max. Number (per acre)	10	10	20	20
Max. Sign Area (number of signs of each size)	1 at 16 square feet 9 at 4 square feet	1 at 16 square feet 9 at 4 square feet	1 at 32 square feet 19 at 4 square feet	1 at 32 square feet 19 at 4 square feet
Max. Height	12 feet	12 feet	12 feet	12 feet
Max. Copy Height	4 inches	4 inches	4 inches	4 inches
Sign Features				
Illumination	Yes	Yes	Yes	Yes
Animation	No	No	No	No

1. **Incidental Sign Setback.** The incidental sign setback is the setback from any street frontage that regulates the location and size of incidental signs. Table 8-3-12-10: Incidental Signs by District defines the incidental sign setback for each district. Incidental signs on a lot must comply with the applicable incidental sign setback for the district. Figure 8-3-12-1 illustrates the sign setback for incidental sign locations.

Figure 8-3-12-1 Incidental Sign Setback



- a. **Lot Perimeter Signs.** Lot perimeter signs are signs that may be located between the right-of-way and the applicable sign setback.
- b. **Lot Interior Signs.** Lot interior signs must be located on the interior of a lot and may not be located within the sign setback.

2. Number and Location

a. **Lot Perimeter Signs.** Table 8-3-12-10 defines the maximum number of lot perimeter signs per entrance to a public street. All lot perimeter signs must be located within fifteen feet (15') of an entrance to a public street.

b. **Lot Interior Signs**

1. Table 8-3-12-10 defines the maximum number of lot interior signs per acre. The standards generally allow different sizes of signs in different numbers for each district. The standards allow one larger incidental sign that exceeds the sign area and height allowance for smaller incidental signs.
2. Lot interior signs may be located on a building façade if the building is within the incidental sign setback.

3. Design Standards

- a. **Roof Signs Prohibited.** Roof signs are prohibited. Incidental signs shall not extend above the eaves line or parapet of the building.
- b. **Wall Signs.** An incidental sign on a wall must affix flush against the wall of the building.

J. Temporary Signs

1. **Standards.** Temporary signs are allowed without a permit in all districts but must comply with the standards in Table 8-3-12-11: Temporary Signs by District.

Table 8-3-12-11 Temporary Signs by District

Standard	Rural	Residential	C1 and LO	Other Commercial / Industrial
Max. Number (per property)	6	6	6	6
Total Sign Area (per property)	64 square feet	64 square feet	96 square feet	96 square feet
Max. Sign Area (per sign)	32 square feet	4 square feet	32 square feet	32 square feet
Max. Sign Height	12 feet	8 feet	8 feet	12 feet
Illumination	No	No	Yes	Yes
Animation Allowed	No	No	No	No

2. **Number.** Table 8-3-12-11 defines the maximum number of temporary signs per property at any one time.
3. **Sign Area.** Table 8-3-12-11 provides a cumulative area (total sign area) for all temporary signs and a maximum area for one sign (max. sign area).
4. **Duration for Display.** One temporary sign may be displayed for a maximum of one (1) year.
5. **Removal of Signs.** The owner of the sign or the owner of the property where the sign is located must completely remove the sign at the expiration of the time for display of the sign.

K. Billboards

1. Where Allowed

a. Billboards are:

1. Allowed principal permitted uses in the Commercial and Industrial Districts, except as provided below; and
 2. Prohibited in transitional districts, LO, and CI.
- b. In addition to the zoning district limitations, billboards are only permitted on property that abuts a Federal Interstate Highway or U.S. Highway, an Idaho State Highway, or a street classified as an arterial on the County's Master Street Map. Billboards are not permitted on sites abutting other street classifications or within scenic byway corridors.

2. Sign Standards

- a. Billboards must comply with the standards in 8-3-12-12: Billboard Standards by District.

Table 8-3-12-12 Billboard Standards by District

Standard	Rural	Residential, Transitional, C1 and LO	Other Commercial/ Industrial
Max. Sign Area	650 square feet	Not allowed	650 square feet
Max. Sign Height	50 feet		40 feet
Illumination	Yes		Yes
Animation	20%		20%

- b. The minimum clearance between ground level and the lowest point of display surface, exclusive of supports, is at least six (6').

3. Location

- a.** The billboard's location must comply with all established building lines and required setbacks as outlined in this Chapter and all other ordinances of the County.
- b.** Where there is no building setback line established by ordinance or subdivision plat, billboards must be set back from the front lot line at least twenty-five feet (25').
- c.** If a railroad right-of-way crosses a public right-of-way, required setbacks, or established building lines on adjacent properties are extended through or across the railroad right-of-way.
- d.** A billboard may not be constructed, erected, or placed in any way on the roof or walls of a building. A billboard may be constructed over but not on a roof if there is a minimum distance between the roof and the lowest point of the sign surface of ten feet (10').

4. Spacing Between Billboards

- a.** A billboard shall not be constructed, erected, placed, or replaced closer than seven hundred fifty feet (750') to another billboard in any direction.
- b.** The measurement for the spacing requirement is from the center of the sign support structure.

5. Spacing from Districts or Uses

- a.** A billboard shall not be constructed, erected, placed, or replaced closer than fifty feet (50') to the nearest property zoned R4, R6, and R8.
- b.** A billboard shall not be constructed, erected, placed, or replaced closer than one hundred fifty feet (150') to the nearest detached single-family residential building.

- 6. Lighting.** Billboards may be illuminated in compliance with Section 8-3-8 (Lighting) of this Chapter, and any other applicable ordinances. However, no flashing or intermittent lighting of billboards is permitted.

L. Nonconforming Signs

- 1.** Nonconforming signs are a nonconforming use or structure and may continue in use subject to the standards set forth in Chapter 7 of this Title.
- 2.** Signs or sign structures for a nonconforming use may not be enlarged, altered, or relocated, other than as provided in this Section or in Section 8-7-3 (Nonconforming Structures) of this Title.

CHAPTER 4

USE STANDARDS

SECTION:

- 8-4-1: PURPOSE AND APPLICABILITY
- 8-4-2: ACCESSORY USES AND STRUCTURES
- 8-4-3: ADULT ENTERTAINMENT ESTABLISHMENT
- 8-4-4: AIRPORT / AIRCRAFT LANDING FIELD (PRIVATE)
- 8-4-5: AMUSEMENT OR RECREATION FACILITY, OUTDOOR
- 8-4-6: ASPHALT OR CONCRETE READY MIX PLANT
- 8-4-7: AUCTION
- 8-4-8: AUTOMOTIVE, HOBBY
- 8-4-9: BAR; BREWPUB OR DISTILLERY; OR NIGHTCLUB
- 8-4-10: BED AND BREAKFAST ESTABLISHMENT
- 8-4-11: CAMPGROUND
- 8-4-12: CAR WASH
- 8-4-13: CEMETARY
- 8-4-14: COMPOSTING FACILITY
- 8-4-15: CONTRACTOR YARD
- 8-4-16: CREMATORY
- 8-4-17: DANGEROUS OR PROTECTED ANIMALS
- 8-4-18: DAY CARE (DAY CARE CENTER, FAMILY DAY CARE HOME, GROUP DAY CARE FACILITY)
- 8-4-19: DRIVE-UP ESTABLISHMENT
- 8-4-20: (RESERVED)
- 8-4-21: DWELLING, ADDITIONAL FARM
- 8-4-22: DWELLING, CARETAKER
- 8-4-23: DWELLING, SECONDARY ATTACHED OR DETACHED
- 8-4-24: EVENT CENTER
- 8-4-25: EXPLOSIVE MANUFACTURING OR STORAGE
- 8-4-26: FOUNDRY
- 8-4-27: FREIGHT OR TRUCK TERMINAL
- 8-4-28: FUEL SALES
- 8-4-29: FUNERAL SERVICES
- 8-4-30: GROUP FOSTER HOME
- 8-4-31: HEAVY EQUIPMENT SALES OR SERVICE
- 8-4-32: HEAVY TRUCK WASH FACILITY
- 8-4-33: HOME OCCUPATION
- 8-4-34: HOTEL OR MOTEL
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- 8-4-36: KENNEL, COMMERCIAL
- 8-4-37: KENNEL, HOBBY
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- 8-4-39: MANUFACTURING, HEAVY
- 8-4-40: MANUFACTURING, LIGHT
- 8-4-41: MANUFACTURED HOME PARK
- 8-4-42: MANUFACTURED HOME STORAGE

8-4-43:	MEATPACKING / SLAUGHTERHOUSE FACILITY
8-4-44:	MEDICAL CARE FACILITY
8-4-45:	MULTI-FAMILY DWELLING
8-4-46:	NURSERY, WHOLESALE OR RETAIL
8-4-47:	OFFICE, ACCESSORY
8-4-48:	OFFICE, TEMPORARY CONSTRUCTION
8-4-49:	OUTDOOR STORAGE AREA, ACCESSORY
8-4-50:	PERSONAL SERVICES
8-4-51:	PIT, MINE, OR QUARRY
8-4-52:	PORTABLE CLASSROOM
8-4-53:	POSTAL SERVICE
8-4-54:	POWER FACILITIES
8-4-55:	PROCESSING PLANTS FOR AGRICULTURAL OR DAIRY PRODUCTS
8-4-56:	PRODUCE STAND, AGRICULTURAL OR ROADSIDE
8-4-57:	PUBLIC OR QUASI-PUBLIC USE
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8-4-59:	RAILROAD SWITCHING YARD
8-4-60:	RECREATION VEHICLE PARK
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8-4-62:	RETAIL SALES, ACCESSORY
8-4-63:	SANITARY LANDFILL
8-4-64:	SAWMILL OR PLANING MILL
8-4-65:	SCHOOL
8-4-66:	SEASONAL FARMWORKER HOUSING
8-4-67:	SEPTAGE TREATMENT AND DISPOSAL FACILITY
8-4-68:	SHOOTING RANGE
8-4-69:	SOIL OR WATER REMEDIATION
8-4-70:	STORAGE FACILITY, SELF-SERVICE
8-4-71:	STORAGE FACILITY, SELF-SERVICE – OUTDOOR ONLY
8-4-72:	TANNERY
8-4-73:	TEMPORARY USES
8-4-74:	TOWER OR ANTENNA STRUCTURES, COMMERCIAL
8-4-75:	TOWER OR ANTENNA STRUCTURE, PRIVATE
8-4-76:	TRANSIT FACILITY
8-4-77:	TRUCK STOP
8-4-78:	VEHICLE IMPOUND YARD
8-4-79:	VEHICLE REPAIR, MAJOR; MINOR; VEHICLE SALES
8-4-80:	WINERY

8-4-1: Purpose and Applicability

- A. Purpose.** This Chapter provides additional standards for specific uses listed in Table 8-2-23-2 (Use Table).
- B. Applicability.** This Chapter applies to any property in unincorporated Ada County where the specific use is listed as a permitted, accessory, or conditional use in the base district or overlay district.
- C. Use Table.** Table 8-2-23-2 (Use Table) identifies which use requires specific use standards

with a cross-reference to the applicable Section of this Chapter.

D. Standards Supplemental. These standards are in addition to the requirements of the applicable zoning district (Chapter 2), generally applicable development standards (Chapter 3), and other requirements of this Title.

E. Separation Measurement. This subsection applies to any required separation between a use and a zoning district or another use.

1. If the separation is from a use, measurement is made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure housing the use to the nearest property line of the other use, unless otherwise stated.
2. If the separation is from a zoning district, the measurement is made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure housing the use to the closest boundary line of the zoning district, unless otherwise stated.

8-4-2: Accessory Uses and Structures

A. Accessory Uses

1. **Approval.** These regulations apply to any property in unincorporated Ada County where an accessory use is allowed under the regulations of this Title and where the property has an established principally permitted use.
2. **General Standards.** In addition to the specific use standards set forth in this Chapter, the following standards apply to accessory uses:
 - a. The Director may require additional conditions to mitigate impacts. The conditions may include, but not be limited to, any or all of the following:
 1. Standards related to the emission of noise, vibration, and other potentially objectionable impacts.
 2. Limits on time of day for the conduct of the specified use.
 3. The period within which the permit shall be exercised or otherwise lapse.
 4. Other standards necessary to protect the public health, safety, and welfare and mitigate adverse effects on surrounding property.

B. Accessory Structures

1. General Standards

- a. A principal permitted dwelling with zoning or building approval, or a principal permitted dwelling under construction with a valid building permit, is present on the subject property.
- b. The structure is not used as an additional dwelling, except as provided for secondary dwellings.
- c. The structure is not used for commercial or industrial purposes unless approved as part of a home occupation.
- d. The accessory structure does not store commercial vehicles, except as provided in

subsection 8-3-10D1.b.

e. Coverage calculations include all accessory structures for a particular property.

2. Location Standards. The following location restrictions apply to accessory structures:

- a. Accessory structures shall not be located in any required setbacks or on any publicly dedicated easements.
- b. Accessory structures in the front yard shall not impede connection of the dwelling to a municipal wastewater collection and treatment system.
- c. Accessory structures in the front yard shall not block the view of the main entrance to the principal permitted dwelling.

3. Height Standards. An accessory structure shall not exceed a height of twenty-four feet (24').

4. Design Standards. The roofing and finish materials of accessory structures shall be complimentary to the principal permitted structure.

8-4-3: Adult Entertainment Establishment

A. Separation. In recognition of Idaho Code Section 67-6533, the following required distance separations apply (see subsection 8-4-1E for measurement standards):

1. No adult entertainment establishment is allowed within one thousand feet (1,000') of another existing adult entertainment establishment.
2. No adult entertainment establishment is allowed within two thousand five hundred feet (2,500') of any religious land use.
3. No adult entertainment establishment is allowed within two thousand five hundred feet (2,500') of any school.
4. The application shall provide evidence certified by a professional land surveyor licensed in the state of Idaho that the proposed adult entertainment establishment conforms to the separation requirements of this subsection A.

B. Signs

1. All adult entertainment establishments shall comply with Section 8-3-12.
2. An adult entertainment establishment shall have in place at each entrance to such business a legible door sign (as defined herein) stating "Persons under eighteen (18) years of age not permitted." The sign shall be no less than one half (0.5) square feet and no greater than one (1) square foot in area. This sign shall not require administrative approval as set forth in Section 8-3-12.

8-4-4: Airport/Aircraft Landing Field (Private)

A. Applicability

1. Subsections B, C.1, D, E, F and G apply to any aircraft landing field (private).
2. Subsections B, C.2, D, E, F, and G apply to airports.

B. FAA Approval. Prior to application, the applicant or owner shall receive airspace approval

from the Federal Aviation Administration (FAA).

C. Design

1. The runway design for an aircraft landing field (private) shall comply with the design and construction standards and recommendations in the Federal Aviation Administration handbook entitled "Airport Design," Advisory Circular 150/5300-13.
2. A proposed airport shall meet the design standards of the federal aviation administration for the particular class or field.

D. Verification of Regulatory Compliance. If applicable, verification of compliance with the regulations and requirements of the following agencies shall be provided:

1. Federal Aviation Administration.
2. Idaho Transportation Department (Bureau of Aeronautics).
3. Idaho Military Division-National Guard.
4. The City of Boise Airport Commission.

E. Accessory Uses. An airport master site plan shall include any accessory uses such as fuel storage areas, structures, or facilities for storing and maintenance of aircraft, and any outdoor storage or tie down areas.

F. Fuel Tanks. As applicable, written approval for fuel tanks from the Idaho Division of Environmental Quality, Idaho Department of Water Resources, and the appropriate fire authority shall be provided.

G. Prohibited Areas. Aircraft landing fields are prohibited in:

1. The Snake River Birds of Prey natural area and canyon preservation as noted on the Ada County comprehensive plan generalized future land use map; or
2. The Snake River Birds of Prey National Conservation Area.

8-4-5: Amusement or Recreation Facility, Outdoor

A. General Standards

1. All outdoor activities and events shall comply with Section 5-13-3 of the Ada County Code.
2. All illumination shall terminate by one hour after the event's conclusion.

B. Drive-In Theater

1. **Projection Screen.** The projection screen shall not be:
 - a. Located closer than fifty feet (50') from any public street;
 - b. Visible from a public street; and
 - c. Located closer than three hundred feet (300') from a residential district or use.
2. **Access and Stacking**
 - a. The site shall have access from a principal or minor arterial.
 - b. Vehicle stacking lanes shall be available on the property, but outside the theater

entrance.

- c. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right of way by theater patrons.
- 3. **Screening.** A landscape plan for all property lines abutting a residential district shall include a six-foot (6') sight obscuring fence, wall, or screen.
- 4. **Noise.** Central loudspeakers are not permitted. Individual loudspeakers shall be designed to be heard by the occupants of one vehicle only.
- 5. **Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards in this Chapter.
- 6. **Accessory Uses.** Accessory retail uses (including, but not limited to, food or beverage service) associated with the theater may be allowed if designed for use by patrons of the drive-in theater only.

C. Golf Course and Country Club

1. Accessory Uses

- a. Accessory sales and rental of golf equipment are allowed. A restaurant and/or bar is allowed and is accessory to the golf course.
 - b. All other accessory structures to the golf course shall not be located within one hundred feet (100') of an abutting property within a residential district.
 - c. No outdoor recreation area associated with the country club shall be located within fifty feet (50') of any property line.
 - d. If an outdoor swimming pool is proposed on site, the pool shall be enclosed with a six-foot (6') barrier that meets the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
- 2. **Design.** The golf driving range design shall protect abutting property and roadways from golf balls.
 - 3. **Location.** For reasons of public health, safety and welfare, an accessory country club or clubhouse shall only be allowed on property located within a fire district.
 - 4. **Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards of this Chapter.

D. Golf Driving Range

- 1. **Accessory Uses.** Accessory sales and rental of golf equipment are allowed.
- 2. **Design.** The golf driving range design shall protect abutting property and roadways from golf balls.

- E. **Swimming Pool.** Any outdoor swimming pool shall be completely enclosed within a six-foot (6') barrier that meets the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.

8-4-6: Asphalt or Concrete Ready-Mix Plant

- A. **Accessory Use.** Asphalt mixing and concrete batching may be allowed as accessory uses

to a pit, mine, or quarry in the Rural Preservation (RP) and Rural Residential (RR) districts.

- B. Separation.** Any structure or equipment shall be set back at least one thousand feet (1,000') from any dwelling other than the dwelling of the owner or caretaker of the subject property.
- C. Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards of this Chapter.

8-4-7: Auction

A. Generally

1. Outdoor auction facilities are only allowed in rural districts.
2. Outdoor auctions that exclude the sales and trading of livestock are allowed in all other districts.

- B. Separation.** A three-hundred-foot (300') separation shall be maintained between the area and structures where animals are housed and any residential district or use.

- C. Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards of this Chapter.

8-4-8: Automotive, Hobby

- A. Applicability.** This Section applies to any automotive hobby. It is the intent of this regulation to allow for restoration, maintenance, and/or preservation of motor vehicles as a hobby. The following standards shall apply:

1. No wholesale or retail sale of automotive parts or supplies.
2. No commercial restoration, repair, or maintenance of motor vehicles.
3. The site does not create a public nuisance, junkyard, or automobile wrecking yard.
4. No more than two (2) inoperable, dismantled, or unregistered motor vehicles may be visible from any street or private road. All other inoperable, dismantled, or unregistered motor vehicles shall be stored:
 - a. In the rear or side yard behind a sight obscuring fence, wall, or screen that is not less than six feet (6') tall; or
 - b. Within a completely enclosed structure.

8-4-9: Bar; Brewpub or Distillery; or Nightclub

- A. Generally.** The use shall comply with all Idaho Code regulations regarding the sale, manufacturing, or distribution of alcoholic beverages.

- B. Separation.** See subsection 8-4-1E for measurement standards.

1. No bar, brewpub or distillery, or nightclub shall be located within one thousand feet (1,000') of any religious land use or school property.
2. No bar, brewpub or distillery, or nightclub shall be located within three hundred feet (300') of any residential use.
3. The application shall provide evidence certified by a professional land surveyor licensed in the state of Idaho that the proposed bar, brewpub or distillery, or nightclub

conforms to the separation requirements of this subsection A.

- C. Outside Activity.** For properties abutting a residential district, no outside activity or event shall be allowed on the site.

8-4-10: Bed and Breakfast Establishment

A. Owner Occupancy

1. A bed and breakfast establishment is an owner occupied dwelling.
2. For the purposes of this subsection, an “owner” means a person with a fifty percent (50%) or greater interest in the bed and breakfast establishment.

B. Renovations

1. If remodeling or renovating an existing structure, the exterior appearance of the structure shall resemble a single-family dwelling.
2. Fire escapes and other features may be added to protect public safety; however, structural alterations may not be made that would prevent future use of the structure as a single-family dwelling.

- C. Occupancy Limit.** No more than ten (10) occupants (including, but not limited to, the owner, the owner’s family, and any resident or nonresident employees) shall occupy the bed and breakfast establishment at any one time (daytime, evening, or night).

8-4-11: Campground

A. Design Standards

1. **Location.** The specific location of each proposed cabin, campsite, or recreational vehicle space shall be indicated on the master site plan.
2. **Landscape Setbacks**
 - a. Property boundaries adjacent to a public right of way require a fifty-foot (50’) landscaped setback with protective screening or fencing.
 - b. Those property boundaries abutting private property shall require a fifty-foot (50’) landscape setback with protective fencing.
3. **Separation.** A three-hundred-foot (300’) separation shall be maintained between any outdoor activity area (including campsites and recreation facilities) and any residential district.

- B. Accessory Uses.** Accessory uses including, but not limited to, management headquarters, recreational structures, coin-operated laundry facilities, toilets, and showers may be allowed, subject to the following restrictions.

1. These uses shall be restricted in their use to occupants of the campground.
2. These uses shall present no visible evidence of their commercial character to attract customers other than occupants of the campground.
3. The structures enclosing these uses shall not be located closer than one hundred feet (100’) to any public street and shall not be directly accessible from any public street but shall be accessible only from a drive within the campground.

- C. Use of Spaces.** Spaces may be used by tents or temporary shelter arrangements or devices (including recreational vehicles).

8-4-12: Car Wash

- A. Site Plan.** All businesses providing self-service or drive-through car wash facilities shall identify the stacking lane and wash location on the master site plan.
- B. Accessory Use.** If within the C1 district, a car wash facility shall be allowed only as an accessory use to a gasoline, diesel, or alternative fuel sales facility. The car wash facility shall limit capacity to a single vehicle.
- C. Setbacks.** At least one hundred feet (100') shall separate any car wash facility and any residential district or use.
- D. Stacking Lanes**
1. Vehicle stacking lanes shall be available on the property but outside the car wash facility entrance.
 2. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right of way by patrons.
 3. These stacking lanes shall be separate from areas required for access and parking and depicted on the master site plan showing the car capacity and adequate turning radius for standard vehicles.
 4. The stacking lanes shall not be located within ten feet (10') of any residential district or use.

8-4-13: Cemetery

A. Generally

1. For the purposes of this subsection, the term "structures" shall include, but not be limited to, mausolea, columbaria, and crypts.
2. Structures shall conform to the height limitation and required yards for the applicable base district.

B. Separation

1. No structure, excluding fences or walls, shall be located within one hundred feet (100') from any existing dwelling other than the dwelling of the owner or caretaker.
2. Graves and monuments shall be set back at least fifteen feet (15') from any property line.

- C. Platting.** All cemeteries shall be platted according to Chapter 5, Subdivision Standards.

- D. Private Ownership.** If the cemetery is privately owned, the cemetery shall be established as a perpetual care cemetery in accord with Idaho Code Section 27-401.

- E. Accessory Uses.** If the cemetery use includes a mortuary, the mortuary is considered an accessory use to the cemetery.

8-4-14: Composting Facility

- A. Generally.** The use shall comply with all applicable regulations pertaining to designation, licensing, and maintenance of commercial composting facilities including, but not limited to, federal, state, and local statutes, rules, and/or ordinances.
- B. Grass Composting.** Grass composting shall only be allowed when the application can demonstrate that the use will not cause undue adverse impacts on surrounding properties.
- C. Separation.** All structures, outdoor storage areas, or any areas where compost is stored shall be located at least one hundred feet (100') from any residential district or use.
- D. Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards of this Chapter.
- E. Compost Material not a Fertilizer.** For the purposes of this subsection, compost material is not considered a fertilizer, and is not restricted by Section 8-3-2J.

8-4-15: Contractor Yard

A. General Standards

- 1. Outdoor Storage Area.** In addition to the specific use standards for outdoor storage areas in this Chapter, the following additional standards apply:
 - a.** If the property is located in a residential or rural base district, all outdoor storage areas shall be located at least fifty feet (50') from any property line abutting other property and depicted on the master site plan.
 - b.** The fifty-foot (50') buffer from the property line shall have a vegetative ground cover or decorative rock mulch and shall be regularly maintained to prevent weed growth.
 - c.** All structures and outdoor storage areas shall be depicted on the master site plan.
- 2. Structures.** If the property is located in a transitional or rural base district, all structures shall be located at least fifty feet (50') from any property line abutting other property and depicted on the master site plan.
- 3. Property Size.** If the property is located in a residential or rural base district the minimum property size for a contractor's yard shall be three (3) acres.
- 4.** The site shall not be used as a "junkyard" or "automobile wrecking yard" as defined in Chapter 10.
- 5.** For the purposes of this Title, a contractor's yard or shop is not a home occupation.
- 6. Access.** The property shall have approved access from an improved public roadway for the use.
- 7. Accessory Uses**
 - a.** Maintenance of vehicles or machinery shall be incidental to the contractor's yard or shop and the incidental use shall only include minor repair.
 - b.** Accessory office space shall comply with the accessory office use requirements of this Chapter and shall be identified on the master site plan.
 - c.** No retail sales associated with a contractor's yard or shop may occur on the property

unless retail sales are approved with a different use that allows retail sales.

8. Parking

- a. Parking area improvements shall be delineated on the master site plan or parking plan.
- b. No on-street parking of vehicles or equipment associated with the use is allowed.

9. Hours of Operation. Hours of operation are limited between the hours of seven o'clock (7:00) A.M. and ten o'clock (10:00) P.M. or as specified in a conditional use permit.

10. Change in Use. A building permit may be required for the change in use or occupancy of any existing structure, or portion thereof, used in association with a contractor yard.

11. Inspection

- a. For the duration of the approval, the use shall be subject to zoning inspection upon advanced notice and request by the Development Services Department.
- b. If a permit holder refuses to allow inspection of the premises by the Development Services Department, the approved zoning certificate or conditional use permit may be revoked.

B. Additional Standards. Additional standards for a contractor yard permitted as a conditional use:

1. Application Requirements. The application materials shall include the following documentation:

- a. The proximity of existing dwellings;
- b. The number of employees at the largest shift;
- c. The hours and days of operation;
- d. The number and type of vehicles that will be stored/used on the site;
- e. Dust;
- f. Noise;
- g. Outdoor loading; and
- h. Traffic.

2. Duration. The duration of a conditional use permit for a contractor yard shall be limited within the RR, RP, RSW, and RUT Districts. The conditional use permit shall expire five (5) years following the approval date, or upon annexation of the subject property into a city, whichever occurs first. Upon expiration of the conditional use permit, all equipment and materials stored outdoors shall be removed within thirty (30) days from the subject property.

8-4-16: Crematory

A. State Approval. The written approval from the state of Idaho Department of Environmental Quality shall be provided.

B. Setbacks. A crematory, whether lying within or without the limits of a cemetery, shall set

back at least one hundred feet (100') from any property line. Written documentation shall be provided that the crematory structures and equipment shall not create a public nuisance by reason of smoke or odor extending beyond or outside of the property lines of the subject premises.

- C. Fire Requirements.** A mortuary may be allowed as an accessory use to a cemetery when located within a fire district and/or when fire flow is available.

8-4-17: Dangerous or Protected Animal

A. Standards

1. The facility, which may include more than one structure, must be located within a rural base district on at least forty (40) contiguous acres of land.
2. A conditional use permit shall be required for approval of a conceptual development plan.
 - a. The Commission shall determine the approval period for the conceptual development.
 - b. The maximum allowable time period shall not exceed twenty (20) years.
3. Allowable ancillary uses consistent with the research and educational mission of the endangered or protected species research facility, can be established at the time of conditional use permit approval of a conceptual development plan. These uses may include, but not be limited to:
 - a. Museums;
 - b. Visitor Centers;
 - c. Incidental Retail;
 - d. Libraries;
 - e. Classrooms;
 - f. Offices;
 - g. Meeting Spaces;
 - h. Staff Residences;
 - i. Storage Buildings; and
 - j. Veterinary and Laboratory Facilities.
4. Additional ancillary uses identified at time of conceptual development plan application may require separate conditional use approval at the time of development.
5. Unless specifically exempted or amended as part of an approved conditional use permit, all structures and uses, with the exception of incidental storage or utility structures having a building footprint of more than one thousand five hundred (1,500) square feet, shall set back two hundred feet (200') from any property line abutting a residential use.
6. In no case shall setbacks be reduced below the minimum standards for the base zoning district unless a variance is approved (see Section 8-6-31).

7. Incidental storage or utility structures having a building footprint of less than one thousand five hundred (1,500) square feet shall comply with standard setbacks for the base zoning district.

8-4-18: Day Care (Day Care Center, Family Day Care Home, Group Day Care Facility)

A. Applicability

1. This Section applies to any day care facility or innovation classroom (as defined in Section 33-1636, Idaho Code).
2. For purposes of this Title, innovation classrooms with the following number of students are treated as the following for purposes of this Ordinance, including the Use Table and this Section:

Table 8-4-18-1 Innovation Classrooms

Number of Students	Applicable Zoning Regulations
≤ 6	Family Day Care Home
7-12	Group Day Care Facility
> 13	Day Care Center

B. Family Day Care Homes. Family day care homes shall comply with the following:

1. If any of the clients cared for at the family day care home are younger than seven (7) years of age, a criminal history check of staff shall be obtained from the Idaho Department of Health and Welfare.
2. Hours of operation are limited to six-thirty (6:30) A.M. to seven (7:00) P.M.

C. Group Day Care Facilities. Group day care facilities shall comply with the following:

1. There shall be at least thirty-five (35) square feet of net floor area indoors per client. This space shall be measured wall-to-wall in rooms that are regularly used by the clients, exclusive of halls, bathrooms, and kitchen.
2. Overnight parking is not allowed. On-site parking for the group day care facility shall not use the parking space(s) required for the dwelling unit or other approved uses located on the site.
3. A minimum outdoor recreation area of one hundred (100) square feet per client shall be provided. The Director may waive the minimum recreation area requirement if a park abuts the property that can be used by the clients.
4. All outdoor areas shall be completely enclosed by a minimum of six-foot (6') barriers to secure against exit or entry by small children and to screen abutting properties. The fencing material shall meet the swimming pool barrier requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
5. Outdoor play equipment over six feet (6') high shall not be located in any required yard.
6. Minimum staff required is one staff person per six (6) clients younger than eighteen (18) months and one staff person per twelve (12) clients eighteen (18) months old or

older.

7. A fire inspection is required. The applicant or owner shall apply to the local fire district, or, if not located within a fire district, to the Idaho fire marshal.
8. If any of the clients cared for at the group day care facility are younger than seven (7) years of age, a criminal history check of staff is required from the Idaho Department of Health and Welfare, per Idaho Code Section 39-1114.
9. Hours of operation are limited to six-thirty (6:30) A.M. to seven (7:00) P.M.

D. Day Care Centers. Day care centers shall comply with the following:

1. There shall be at least thirty-five (35) square feet of net floor area indoors per client. This space shall be measured wall to wall in rooms that are regularly used by the clients, exclusive of halls, bathrooms, and kitchen.
2. On-site vehicle parking and pick up and turnaround areas shall provide safe discharge and pick up of clients.
3. The maximum number of allowable clients shall be a condition of approval, based on the requirements of this Title and Idaho Code.
4. Consideration of approval shall include the uses of the surrounding properties in the determination of the compatibility of the proposed day care center with those uses. Additional conditions needed to protect the public health, safety, and welfare of the clients may be imposed.
5. No portion of the facilities used by clients may be within three hundred feet (300') of explosive or hazardous material or alcohol storage including the following uses: brewery or distillery, explosive manufacturing or storage, flammable substance storage, gasoline, diesel, or alternative fuel sales facility, manufacture or processing of hazardous chemicals or gases, and winery.
6. The day care center operator shall secure and maintain any required license from the state of Idaho Department of Health and Welfare and comply with all state regulations. The day care operator shall apply to the Idaho Department of Health and Welfare for any required inspections and criminal history checks.
7. The day care center operator shall provide a minimum outdoor recreation area of one hundred (100) square feet per client. The minimum recreation area requirement may be waived if:
 - a. There is greater or equal area of parks that abut the facility that can be used by the clients, or
 - b. The program design is such that the number of clients using the recreation area at any one time conforms to the one hundred (100) square foot per client criteria.
8. All outdoor recreation areas shall be completely enclosed by a minimum of six-foot (6') barriers to secure against exit/entry by small children and to screen abutting properties. The fencing material shall meet the swimming pool barrier requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
9. Outdoor play equipment over six feet (6') high shall not be located in any required yard.

10. The proposed use shall be located and designed to protect the health, safety, and welfare of the clients.
11. Minimum staff required is one per six (6) clients under eighteen (18) months; one per twelve (12) clients eighteen (18) months to five (5) years; and one per eighteen (18) clients aged five (5) years or older.
12. A commercial building permit is required for the entire structure(s) used for the day care center.
13. Hours of operation are limited to six thirty (6:30) A.M. to seven (7:00) P.M. or as specified in the conditional use permit.

8-4-19: Drive-Up Establishment

A. Site Plan. All drive-up establishments shall identify the stacking lane, menu, and speaker location (if applicable), and window location on the master site plan.

B. Stacking Lane

1. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right of way by patrons.
2. The stacking lane shall be a separate lane from the circulation lanes needed for access and parking and depicted on the master site plan showing the car capacity and adequate turning radius for standard vehicles.
3. The stacking lane shall not be located within ten feet (10') of any residential district or use.

8-4-20: (Reserved)

8-4-21: Dwelling, Additional Farm

A. Farm Requirement. The additional farm dwelling shall be located on a "farm" as defined in Chapter 10, Definitions.

B. Occupancy. The additional farm dwelling shall be occupied by households where at least one individual is an "employee" (as defined in Chapter 10, Definitions) on the farm.

C. Location

1. The location of the additional farm dwelling shall be:
 - a. On an existing or previously abandoned farmstead; or
 - b. Not on prime agricultural land as herein defined.
2. If such alternatives are not available, the farthest extent of the additional farm dwelling shall be located within one hundred feet (100') of the existing farm dwelling.
3. The additional farm dwelling shall not conflict with existing or proposed wastewater treatment systems.

D. Demonstration. The application shall demonstrate the need for the additional farm dwelling based on characteristics of the farm and/or farm operation. These characteristics shall include, but are not limited to:

1. The size of the entire farm including all other property used for the farm operation within the immediate area.
2. The types of farm crops and acreage for each type.
3. The operational requirements for the particular farm activity.
4. The number of other permanent or temporary dwellings on the farm.
5. The numbers of owners/employees/workers on the farm (including permanent and seasonal).

8-4-22: Dwelling, Caretaker

A. Justification. A caretaker dwelling is allowed if:

1. It is needed to house the owner or the owner's employee of an approved use, and
2. Need for the caretaker dwelling is justified for reasons of upkeep on the property, supervision of operations, and/or guarding materials stored on site.

B. Employee Residence. The caretaker dwelling shall be occupied by households where at least one individual is an employee.

C. Number of Additional Dwellings. No more than one permanent additional dwelling (including, but not limited to, principally permitted dwelling, caretaker dwelling, additional farm dwelling, or secondary dwelling) is permitted on a property.

8-4-23: Dwelling, Secondary Attached or Detached

A. Applicability. This Section applies to any secondary attached or detached dwelling and details the standards required to ensure these dwelling types remain incidental and subordinate to the principal permitted dwelling.

B. General Standards

1. **Principal Dwelling.** A principal permitted dwelling with a valid zoning certificate and certificate of occupancy, or a principal permitted dwelling under construction with a valid building permit, must be present on the subject property.
2. **Number Allowed.** No more than one permanent additional dwelling including, but not limited to, an additional farm dwelling, caretaker dwelling, or a secondary dwelling shall be permitted on a property.
3. **Occupancy.** Either the principal dwelling or the secondary dwelling must be continuously occupied by at least one (1) person having ownership interest in the subject property.
4. **Property Size.** The subject property shall have a minimum property size of at least six thousand (6,000) square feet.
5. **Dimensional Standards.** All secondary dwellings shall meet the dimensional standards for the applicable zoning district.

C. Design Standards

1. **Size.** A secondary dwelling may be between three hundred fifty (350) square feet up to a maximum of one thousand two hundred (1,200) square feet or sixty percent (60%) of

the square footage of above-ground living space of the principal dwelling, whichever is less.

- a. 60% Calculation.** The square footage of covered outdoor space, basements or attached/detached garages associated with the principal dwelling must be excluded from the 60% calculation.
- 2. Bedrooms.** Secondary dwellings are limited to a maximum of three (3) bedrooms.
- 3. Parking.** Off-street parking shall be provided as per Section 8-3-10 in addition to the required off street parking for the principal dwelling.
- 4. Appearance.** The secondary dwelling shall be complementary with the principal permitted dwelling in that it:
 - a.** Does not appear like a second principal dwelling;
 - b.** Has a similar roof pitch; and
 - c.** Has similar color of building materials.
- 5. Facilities.** The secondary dwelling shall have separate kitchen and bathroom facilities from the principal permitted dwelling.
- 6. Utilities.** The secondary dwelling shall be provided with utilities which may be metered separately - including gas, electric, communications, water and sewer all subject to the approval of applicable utility companies and public agencies.
- 7. Entry.** Secondary dwellings shall be provided with a primary point of ingress and egress separate from the principal dwelling.
- 8. Emergency Access.** Secondary dwellings shall be provided with a separate address, a unique identifier, or other means to enable emergency service providers to identify and distinguish the dwelling unit from the principal dwelling. Adequate physical access for emergency services to both the principal and secondary dwellings shall be provided.
- 9. Foundation.** Secondary dwellings shall be placed on a foundation.

D. Additional Standards for Detached Secondary Dwelling Units

- 1. Location.** A secondary dwelling shall not be located in the front yard unless the principal dwelling, and its address indicator can remain unobscured, and one or more of the following can be demonstrated:
 - a.** The depth of the lot or parcel is two hundred fifty feet (250') or less; or
 - b.** The configuration of the property and location of the principal dwelling would preclude the location of the secondary dwelling to meet the required back yard and/or side yard setbacks.
- 2. Outdoor Space.** A minimum of fifty (50) square feet of outdoor space like a porch, patio, or balcony shall be provided for the exclusive use of the residents of the dwelling.

- E. Conversion.** An existing garage, basement or a detached accessory structure may be converted into a secondary dwelling, provided that the conversion or structure meets the standards of this Section, along with all applicable requirements of the Ada County

Building Code, as set forth in Title 7, Chapter 2 of this code, any applicable plumbing or electrical code requirements, and any applicable off-street parking requirements for both the principal and secondary dwellings.

- F. Deed Restriction.** A recorded deed restriction is required ensuring compliance with the following requirements and shall be submitted prior to issuance of a certificate of occupancy or final building permit inspection.

- 1. Document Requirements.** The deed restriction or covenant shall address the following topics:

- a. The secondary dwelling shall not be sold or owned separately from the principal dwelling.
- b. The secondary dwelling may be utilized as habitable space, only so long as either the principal dwelling or the secondary dwelling is occupied by at least one individual with ownership interest in the property.
- c. In the event that a minimum of one (1) person having ownership interest in the property ceases to occupy a dwelling on the property, the secondary dwelling shall automatically become non-habitable space, shall not be used as a dwelling and shall not be rented or leased for any purpose.
- d. The above restrictions shall be binding upon any successor in ownership of the property as long as the secondary dwelling exists on the property.

8-4-24: Event Center

- A. Setbacks.** All structures shall meet the minimum required setbacks for the applicable base district, or a thirty-five foot (35') minimum setback from any public street and twenty-five feet (25') from any other property line, whichever is greater.
- B. Food Service.** Any food service shall be approved by the Central District Health Department.

8-4-25: Explosive Manufacturing or Storage

- A. Applicability.** This Section applies to any explosive manufacturing or storage as a principal use. This Section does not apply to gasoline fueling stations or research and development facilities.
- B. Separation**
1. At least one thousand feet (1,000') shall separate the use from any residential district or use or medical care facility.
 2. At least three hundred feet (300') shall separate all structures and outdoor activity areas from any property line.
- C. Enclosure**
1. The facility shall be enclosed by an eight foot (8') high security fence or wall.
 2. Entrance and exit shall be through a gate that shall be locked during nonbusiness hours.
- D. Fire Compliance.** The application materials shall include written documentation from the appropriate fire authority approving the proposed location and plan specifications of the

facilities.

E. Application Materials

1. The application materials shall include maps and engineering drawings showing:
 - a. Proposed drainage;
 - b. Proposed sewer system design;
 - c. The depth of the water table;
 - d. Soil composition;
 - e. All existing surface water; and
 - f. All existing uses within one-fourth (1/4) mile of the property.
2. The application shall also provide evidence that the dangerous characteristics of the particular process or activity in question have been or shall be eliminated or minimized sufficiently to not create a public nuisance or be detrimental to the public health, safety, or welfare.

8-4-26: Foundry

A. Separation

1. All structures or outdoor activity areas shall be located a minimum of three-hundred-feet (300') from any property line.
2. The use shall be located a minimum of one thousand feet (1,000') from any residential district or approved hospital use.

8-4-27: Freight or Truck Terminal

A. Separation. The use shall be located:

1. At least three hundred feet (300') from any residential district or use; and
2. At least one thousand feet (1,000') from any medical care facility.

B. Outdoor Storage Area. Outdoor storage areas shall comply with the specific use standards in this Chapter.

C. Accessory Uses. Accessory uses directly related to the maintenance and fueling of vehicles (including, but not limited to, truck and trailer washing, fuel pumps, garages for minor repair) may be allowed.

D. Installation. Installation of underground fuel tanks shall require written approval from Idaho Division of Environmental Quality, Idaho Department of Water Resources, and the appropriate fire authority.

8-4-28: Fuel Sales

- A. When allowed as an accessory use, gasoline, diesel, or alternative fuel sales facilities shall not occupy more than twenty five percent (25%) of the subject property.
- B. Installation of underground fuel tanks shall require written approval from Idaho Division of Environmental Quality, Idaho Department of Water Resources, and the appropriate fire

authority.

- C. Structures and pump station canopies on corner properties shall observe a thirty-five foot (35') minimum setback from any public street. There shall be a twenty-five foot (25') minimum setback from any residential district or use.
- D. The total height of any overhead canopy or weather protection device shall not exceed twenty feet (20').
- E. Vehicle stacking lanes shall be available on the property but outside the fueling areas. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right of way by patrons. Such stacking lanes shall be separate from areas required for access and parking. The stacking lanes shall not be located within ten feet (10') of any residential district or use.
- F. **Outdoor Storage Area.** Outdoor storage areas shall meet the specific use standards in this Chapter. In addition, all trash, waste materials, and obsolete automobile parts shall be stored within a separate enclosure behind the principal structure of the gasoline, diesel, or alternative fuel sales facility.

8-4-29: Funeral Services

- A. **Fire Requirements.** A mortuary may be allowed as an accessory use to a cemetery when located within a fire district and/or when fire flow is available.

8-4-30: Group Foster Home

- A. **Generally.** The proposed use shall be properly located and designed to protect the health, safety, and welfare of the client.
- B. **Parking.** Off-street parking shall be provided as per Section 8-3-10, in addition to the required off-street parking for the dwelling.
- C. **Occupancy.** If the proposed group foster home results in more than ten (10) persons occupying a dwelling at any one time, a concurrent application shall be submitted for a change of occupancy as required by the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
- D. **Outdoor Play**
 - 1. A minimum outdoor play area of one hundred (100) square feet per client is required. The Director may waive the minimum recreation area requirement if there is a park that abuts the property that can be used by the clients.
 - 2. All outdoor play areas shall be completely enclosed by minimum six-foot (6') barriers to secure against exit/entry by small children and to screen abutting properties. The fencing material shall meet the swimming pool barrier requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
 - 3. Outdoor recreation equipment over six feet (6') high shall not be located in a front yard or within any required yard.

8-4-31: Heavy Equipment Sales or Service

- A. **Enclosure**

1. All repair activities (including, but not limited to, open pits and lifts) shall occur within an enclosed structure.
2. Inoperable or dismantled equipment shall be stored behind a sight obscuring fence, wall, or screen or within an enclosed structure, and shall not be visible from any street or private road.

B. Outdoor Storage Area. Outdoor storage of accessories, replacement parts, or discarded parts shall comply with the Outdoor Storage Area specific use standards in this Chapter.

8-4-32: Heavy Truck Wash Facility

- A.** The use shall be conducted pursuant to State of Idaho Code, Title 22, Chapter 1 “Rules Governing Commercial Livestock Truck Washing Facilities (CLTWF).” The facility will be operated under the auspices of a valid CLTWF permit issued by the Director of the Idaho State Department of Agriculture. Written approval from the Idaho State Department of Agriculture along with the associated application materials must be provided at the time of application.
- B.** All structures or outdoor storage areas shall be located a minimum of one hundred feet (100’) from any property line abutting other property. All structures and outdoor storage areas shall be depicted on the master site plan. In addition, the use shall be located a minimum of one thousand feet (1,000’) from any hospital.
- C. Zoning Inspection.** For the duration of the approval, the use shall be subject to zoning inspection upon advanced notice and request by the Ada County Development Services Department. If a permit holder refuses to allow inspection of the premises by the Development Services Department, the approved zoning certificate or conditional use permit may be revoked.
- D. Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards in this Chapter.
- E.** Vehicle stacking lanes shall be available on the property but outside the truck washing facility entrance. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right of way by patrons. Such stacking lanes shall be separate from areas required for access and parking. The stacking lanes shall not be located within one hundred feet (100’) from another property line.
- F.** If wastewater is being treated or being land applied, it shall comply with standards required by the Department of Environmental Quality.
- G.** A Nutrient Management Plan (NMP) conforming to a nutrient management standard is required.
- H.** The application shall include a Sediment and Mud Track Out Prevention Plan explaining how the project will prevent mud, silt, and other debris from being tracked out on the roadway.

8-4-33: Home Occupation

A. Applicability

1. This Section applies to home occupations.

2. This Section does not apply to no-impact home occupations, which do not require review under this Title. For purposes of this Subsection, a "no-impact home occupation" means a home occupation that:
 - a. Is conducted entirely inside the dwelling unit;
 - b. Does not involve external modifications to the dwelling unit, and has no outside appearance of a business (such as parking, lighting, or signs);
 - c. Employs only persons who reside in the principal dwelling unit;
 - d. Does not display retail goods or stockpile inventory or equipment;
 - e. Uses no equipment or process that creates noise, vibration, glare, fumes, odors, or electrical or electronic interference detectable at the property line;
 - f. Does not generate solid waste or sewage discharge beyond those normally associated with a single-family dwelling unit; and
 - g. Does not involve use, storage, or disposal of any grouping or classification of materials that the United States Secretary of Transportation, the State, or the County designates as a hazardous material.

B. Standards for All Home Occupations

1. The home occupation shall not cause the property to differ from its rural or residential character in appearance, or in the emission of noise, dust, fumes, odors, vibrations, or electrical interference. Storage or use of hazardous materials, odor causing materials, or other materials that may cause a nuisance or health or safety problems is prohibited.
2. No more than twenty five percent (25%) of the total floor area (both habitable and non-habitable space) of the principal permitted dwelling or one thousand feet (1,000') (whichever is less) shall be devoted to the home occupation or for storing goods or vehicles associated with the home occupation. Home occupations may be located in either the principal permitted dwelling or accessory structures.
3. The structure in which the home occupation is located must have a valid building permit and/or zoning approval. The home occupation and associated storage shall not occupy any space required for off street parking for the principal permitted dwelling.
4. No outdoor storage or outdoor loading shall be allowed, except that one work trailer, work vehicle or commercial vehicle may park on the property.
5. No home occupation shall discharge any hazardous material into any sewer, drainageway or the ground.
6. The following occupations are prohibited as home occupations: service, repair, or painting of any vehicle; commercial kennel; adult entertainment establishment; commercial composting; contractor's yard or shop; sale, repackaging or use of hazardous materials; or any use not consistent with the applicable base district purpose statement.
7. Day care is not a home occupation. Day care is regulated by specific use standards found in this Chapter.
8. All signs shall comply with Section 8-3-12.

9. No processing of soil or rock shall be allowed.
10. Home occupations shall comply with all applicable State and Federal Regulations.
11. In addition to the requirements set forth on the applicable application forms of the department, home occupation applications shall include the following:
 - a. A site plan drawn to scale, depicting the total square footage and location of all existing and proposed structures located within the property boundaries of the subject property.
 - b. A graphical depiction, such as a floor plan, showing the separation of home occupation space from residential and/or accessory use space.
 - c. A detailed letter indicating:
 1. The square footage of the proposed area of the home occupation;
 2. The number of employees who do not live on site;
 3. If retail sales are planned;
 4. The hours and days of operation;
 5. If group instruction is planned, the number of students at any one time;
 6. The number of off-street parking spaces;
 7. The number of commercial vehicles;
 8. The frequency of pick ups, deliveries, and visits by patrons; and
 9. Any other information relative to the description of the proposed home occupation.

C. Standards for Small Home Occupations

1. A zoning certificate is required. The resident owner of the home occupation shall continuously comply with the restrictions in this Section and the specific use standards found in this Chapter.
2. A building permit may be required for the change in use or occupancy of any portion of the principal permitted dwelling, greenhouse, garage, or accessory structure used for the home occupation.
3. The home occupation shall be conducted solely by the residents of the principal permitted dwelling. No employees are allowed.
4. No client, customer, and/or student visits shall be allowed.
5. The home occupation shall not receive more than two (2) pick-ups or deliveries per day.

D. Standards for Large Home Occupations

1. Administrative approval is required. The owner of the home occupation shall continuously comply with the restrictions in this Section and the specific use standards found in this Chapter.

2. A building permit may be required for the change in use or occupancy of any portion of the principal permitted dwelling, greenhouse, garage, or accessory structure used for the home occupation.
3. The home occupation shall be conducted by the inhabitants of the principal permitted dwelling, and no more than one nonresident employee shall be permitted to work on site.
4. All visits by the nonresident employee, clients and customers, and deliveries, shall occur between the hours of seven o'clock (7:00) A.M. and six o'clock (6:00) P.M., Monday through Friday, and between the hours of ten o'clock (10:00) A.M. and six o'clock (6:00) P.M. on Saturday and Sunday.
5. Group instruction shall be limited to no more than five (5) students at one time with a maximum of two (2) classes per day.
6. The use of an outdoor swimming pool for swimming instruction shall be provided with a barrier which meets the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
7. One paved, off-street parking space shall be provided for the nonresident employee, plus up to three (3) parking spaces for clients, if applicable, and shall be improved as per Section 8-3-10, in addition to the required off street parking for the dwelling. No overnight parking of client or employee vehicles shall be allowed on site. On-site parking may be reduced by the number of off-street parking spaces in the driveway and by on-street parallel parking spaces in front of the single-family detached dwelling, if applicable.
8. The property shall have no more than twenty (20) additional vehicular trips per day of home occupation traffic.
9. Large home occupations, involving on-site visits by clients, customers, and/or students shall not be allowed on private roads unless one of the following can be demonstrated:
 - a. The private road does not provide access or frontage to any other property; or
 - b. An existing or updated recorded maintenance/easement agreement addresses and permits nonresidential use of the private road.

8-4-34: Hotel or Motel

- A. Separation.** No structure or driveway shall be located within one hundred feet (100') of a property line abutting a residential district or use.
- B. Accessory Uses.** Accessory retail uses including, but not limited to, restaurants, retail shops, food or beverage service, and personal service shops, may be allowed if such facilities are completely within the hotel or motel structure. A bar or nightclub shall require separate or concurrent approval subject to the regulations of this Title.
- C. Outdoor Recreation Areas**
 1. No outdoor recreation area associated with the hotel or motel shall be within one hundred feet (100') of a residential district or use.
 2. If an outdoor swimming pool is proposed on site, the pool shall be enclosed with a six-

foot (6') barrier that meets the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.

8-4-35: Junkyard or Automobile Wrecking Yard

A. Screening

1. Outdoor storage areas shall comply with the Outdoor Storage Area specific use standards in this Chapter. Fences, walls, or screening materials shall be at least ten feet (10') tall.
2. No portion of the junkyard or automobile wrecking yard outdoor storage areas and/or outdoor activity areas may be visible from any "highway," "interstate," "principal arterial," or "minor arterial" as herein defined.
3. All materials or parts shall be stored and located within the fenced or walled area. No vehicles or materials shall be stored so they exceed the height of the fence or wall.

B. Site Related Standards

1. All structures or outdoor activity areas shall be located at least three hundred feet (300') from any property line. The use shall be located at least one thousand feet (1,000') from any residential district or use.
2. The master site plan shall designate an area for processing vehicles as they are brought to the site. The processing area shall be an impermeable surface that has a means to collect and properly dispose of oils and fluids in the vehicles.
3. All necessary permits for the storage of materials on the site, including, but not limited to, oil, hazardous waste, and tires shall be obtained.
4. No person shall establish, operate, or maintain a junkyard or automobile wrecking yard, any portion of which is within one thousand feet (1,000') of the nearest edge of the right of way and visible from any "highway," "interstate," "principal arterial," or "minor arterial" as herein defined. See Idaho Code Section 40-313.
5. The application shall include review comments from the Boise regional office of the Idaho Department of Environmental Quality with the conditional use permit application.

8-4-36: Kennel, Commercial

- A. Generally.** The owner and/or operator shall comply with all County and state regulations relative to the operation of the commercial kennel.

B. Outside Runs

1. **Separation.** A three-hundred-foot (300') separation shall be maintained between the area and structures where animals are housed and any property line.
2. **Operational Standards**
 - a. Outside runs for commercial kennels shall be operated only with an attendant present on the premises twenty-four (24) hours a day.

3. Fences

- a. Adequate fencing shall be provided to restrain animals from running at large.
- b. At a minimum, the animals shall be enclosed within a six-foot (6') fence or wall.
- c. Electronic fences shall not be used as the sole method of restraining animals.
- d. In residential districts, visual screening is required to buffer adjacent land uses. (See also Section 8-3-7).

4. Accessory Uses

- a. Five percent (5%) of the building floor area, excluding the kennel area, may be used for related retail sales.
- b. A grooming facility is allowed, but not to occupy more than thirty-five percent (35%) of the building floor area, excluding the kennel area.

8-4-37: Kennel, Hobby

A. Generally

- 1. A maximum of ten (10) dogs shall be allowed as a hobby kennel.
- 2. For the purposes of this Section, a litter of puppies together with the mother, shall count as one dog until the litter reaches six (6) months of age. Each puppy over six (6) months of age shall be counted as one dog.

B. Licensing. The owner shall maintain a valid Ada County dog license for each dog as required by Section 5-7-5 of the Ada County Code. The owner shall comply with Section 5-7-6 of the Ada County Code regarding limitations on dogs. The owner shall comply with Section 5-7-7 of the Ada County Code regarding kennel licenses.

C. Operational Standard

- 1. Facilities in which dogs are housed and the designated location for feeding and watering shall be in the rear yard and at least fifty feet (50') from any property line.
- 2. In residential districts and properties under two and a half acres (2.5) in the rural base districts, all dogs shall be housed indoors during the night.
- 3. The dogs shall be physically restrained from running at large. In residential districts, visual screening shall be required to buffer adjacent land uses.
- 4. No commercial dog boarding shall be allowed.

8-4-38: Livestock Confinement Facility

- 1. Facilities less than three hundred (300) animal units. A new livestock confinement facility or expansion of an existing facility that has three hundred (300) animal units or fewer shall not require Master Site Plan approval.
- 2. Facilities more than three hundred (300) animal units but less than one thousand (1,000) animal units. A new livestock confinement facility or expansion of an existing facility that will have more than three hundred (300) animal units shall be deemed an animal

feeding operation (AFO) and shall require Master Site Plan approval.

3. Facilities more than one thousand (1,000) animal units. A new AFO or expansion of an existing AFO that will have more than one thousand (1,000) animal units shall require conditional use approval.
 4. Aquaculture AFOs are exempt from the regulations in this Section, except for manure storage setback.
- B. Location.** Livestock confinement facilities shall be located within an RP, RR, RUT, RSW, R1, R2, R4, R6, or R8 Base District.
- C. Standards for AFOs.** In addition to the requirements of subsection 8-4-38B, the following standards shall apply:
1. **Compliance.** The AFO must comply with and not be in violation of any Federal, State, or local law including, but not limited to, all applicable State of Idaho Department of Agriculture, State of Idaho Department of Environmental Quality, State of Idaho Department of Water Resources, and/or Central District Health Department regulations and specifications.
 2. **Lighting.** All proposed lighting shall comply with the provisions of Section 8-3-8.
 3. **Siting Standards.** For expansions of existing facilities that require Master Site Plan or conditional use approval, the location standards shall only apply to proposed expansions.
 - a. Lagoons and manure storage shall not be located within a Flood Hazard Overlay District.
 - b. All lagoons and manure storage areas shall maintain a minimum separation distance as set forth in Table 8-4-38-1 below.
 - c. Silage, haylage, potatoes, or any feed product resulting from the ensilage process shall be stored no closer than three hundred feet (300') from any property line.
 - d. Each existing facility with three hundred (300) or more animal units and each proposed AFO shall have a one-mile radius sphere of influence from the lagoons and/or manure storage areas. The sphere of influence of a proposed AFO may overlap the sphere of another AFO if no existing development is within more than two (2) AFO spheres of influence.

Table 8-4-38-1 AFO Setbacks

Use	Setback (In Feet)
Another AFO lagoon or manure storage area where existing development is within either AFO sphere of influence	2,500
Another AFO lagoon or manure storage area where there is no existing development within either AFO sphere of influence	1,250
Existing development outside an area of city impact	1,000
Existing development inside an area of city impact	2,500
Public water intakes ¹	300
Domestic well ²	300
Streets and roadways	200
Property lines not fronting a street or roadway	300

Notes:

1. Public water intakes shall include, but not be limited to, wells, springs, lakes, and/or streams used as a potable water source.
2. This does not include any domestic well of the AFO owner and/or operator.

8-4-39: Manufacturing, Heavy

A. Applicability. This Section applies to any heavy manufacture or processing for manufacture.

B. Standards

1. All structures shall be located a minimum of three-hundred-feet (300') from any property line. The use shall be located a minimum of one thousand feet (1,000') from any residential district or approved medical care facility property.
2. All hazardous chemicals or gases shall be stored and/or used within an enclosed structure.
 - a. The facility shall be enclosed by a minimum eight-foot (8') high security fence or wall. Entrance and exit shall be through a gate that shall be locked during nonbusiness hours (see Section 8-3-6).
3. The application materials shall include written documentation from the appropriate fire authority approving the proposed location and plan specifications of the facilities.
4. The application materials shall include maps and engineering drawings showing proposed drainage, proposed sewer system design, the depth of the water table, soil composition, all existing surface water, and all existing uses within one-fourth (1/4) mile of the property.

5. Evidence shall be provided that in the event there are dangerous characteristics of the particular process or activity in question have been, or shall be, eliminated or minimized sufficiently so as not to create a public nuisance or be detrimental to the public health, safety, or welfare.
6. The use shall comply with the flood hazard overlay district as set forth in this Title.

C. Nuisance

1. The following adverse effects shall be mitigated through setbacks, buffers, sound attenuation and/or hours of operation:
 - a. Noise, odor, or vibrations; or direct or reflected glare detectable by the human senses without the aid of instruments.
 - b. Any other emission or radiation that endangers human health, results in damages to vegetation or property, or which exceed health and safety standards.
2. The application materials shall include a written statement that the proposed facility meets any applicable federal, state, or local standards regarding such use.

8-4-40: Manufacturing, Light

A. Applicability. This Section applies to any light manufacture or processing for manufacture.

B. Standards

1. All mechanical equipment emissions; shipping and/or delivery; or other outdoor activity areas shall be located a minimum of three-hundred-feet (300') from any abutting residential districts or medical care facility property.
2. The application shall identify how the proposed use will address the impacts of noise and other emissions on adjoining residential districts. More specifically, the following adverse effects shall be mitigated through setbacks, buffers, sound attenuation and/or hours of operation:
 - a. Noise, odor, or vibrations, or direct or reflected glare detectable by the human senses without the aid of instruments.
 - b. Radioactivity and electric or electromagnetic disturbances that unduly interfere with the normal operation of equipment, instruments, or appliances on abutting properties.
 - c. Any other emission or radiation that endangers human health, results in damages to vegetation or property or which exceeds health and safety standards.

8-4-41: Manufactured Home Park

A. Definitions: For the purposes of this Section, the following definitions shall apply:

COMMON PLAY AREA: Shall refer to the play area required in subsection 8-4-41G.3 of this Section. The term common play area shall not refer to the outdoor living area required in subsection 8-4-41E.4 of this Section.

DRIVE: A privately owned roadway that provides internal circulation for vehicles within the manufactured home park and/or access to manufactured home spaces within the manufactured home park.

MANUFACTURED HOME SPACE: Shall refer to the area that is for lease or rent as a site to place a manufactured home, including the required outdoor living area. The manufactured home space shall be delineated on an approved master site plan for a manufactured home park.

SERVICE AREA: Shall refer to areas necessary for the management of the manufactured home park. Such areas may include but shall not be limited to: storage and collection areas for trash and garbage, loading and unloading areas other than passenger vehicles, and outdoor storage areas.

B. Density. The maximum density of a manufactured home park shall not exceed the maximum density of the corresponding base district.

C. Use Standards

1. Accessory uses shall be in conformance with the accessory uses of the corresponding base district.
2. A single-family detached dwelling or a manufactured home may be allowed for the sole use of a caretaker.
3. A recreational center and clubhouse may be allowed for the use of park residents.
4. Manufactured home parks shall accommodate only manufactured homes, not vacation trailers or other recreational vehicles except when stored within a designated storage area. Not more than one manufactured home shall be parked at one time in a manufactured home space.

D. Manufactured Home Space Design Standards

1. No manufactured home space shall contain less than two thousand (2,000) square feet. The gross average areas of all spaces in the park shall not be less than three thousand (3,000) square feet. No drives, common play area, or service area shall be considered as providing any part of the required manufactured home space.
2. No manufactured home space shall be less than thirty feet (30') in width and/or depth.
3. The boundaries of each manufactured home space shall have an approved fence, wall, planting, or other permanent marker defining the perimeter of the space.
4. An outdoor living area shall be provided in each manufactured home space. Such outdoor living area shall be a minimum of ten percent (10%) of the individual space, but in no case shall such area be less than three hundred (300) square feet nor required to be more than five hundred (500) square feet. The minimum dimension of such area shall not be less than fifteen feet (15').

E. Drives. Drives shall comply with the following standards and are subject to plan review, field inspection, and approval by the County Engineer:

1. The following construction standards apply to all drives in manufactured home parks:
 - a. A minimum of one drive shall originate at a public street and terminate at a public

street. This standard is not intended to require two (2) access points to the manufactured home park.

- b. Drives shall have rolled concrete curb and gutter sections along both sides of the drive and extending the length of the drive.
 - c. Drives shall be at least thirty feet (30') wide from back of curb to back of curb. The entire width of the drive shall be improved.
 - d. Drives shall have a crown or transverse slope a minimum of two percent (2%) to drain water away from the travel way and water shall be disposed of in a manner that protects life and property.
 - e. The improved surface shall include two and a half inches (2.5") of asphalt plant mix paving on top of the base course of six inches (6") of three-fourths inch (3/4") minus crushed gravel or other materials approved by the County Engineer over a stable compacted subbase. As an alternative to asphalt plant mix, concrete shall be allowed with the approval of the County Engineer.
 - f. Bridge and culvert crossings shall be designed for a minimum H-93 loading.
 - g. The maximum allowable grade shall be ten percent (10%) slope.
 - h. The minimum center line curve radius shall be fifty feet (50').
 - i. The minimum curb radius at intersections shall be twenty feet (20').
- 2. The County Engineer may approve, or recommend approval of, alternative drive designs when the overall design, as proposed and stamped by a professional engineer licensed in the state of Idaho, meets, or exceeds the intent and the requirements of this Section and shall not be detrimental to public health, safety, and welfare.
 - 3. Sidewalks shall be constructed along one side of the drive and constructed to the standards for local streets in the most current edition of the development policy manual as adopted by the Ada County Highway District.

F. Park Design Standards

- 1. Two (2) off-street parking spaces shall be provided for each manufactured home space. All off-street parking shall be improved to the same standards as drives as noted in subsection 8-4-41F of this Section. Parking areas for accessory uses shall be paved in a like manner. For the purposes of this Section, off-street parking spaces shall mean off-drive parking spaces.
- 2. Outdoor lighting shall be provided to illuminate drives and sidewalks.
- 3. Manufactured home parks that accommodate children less than fourteen (14) years of age shall provide a common play area restricted to that use. Parks that qualify as housing for older persons subject to the federal Fair Housing Act are exempt from this regulation.
 - a. At least one hundred (100) square feet of common play area shall be provided per manufactured home space; provided, however, that no such common play area, regardless of the number of manufactured home spaces, shall be less than two thousand five hundred (2,500) square feet.

8-4-42: Manufactured Home Storage

A. Setbacks. Manufactured homes shall not be stored within required yards.

B. Use Standards

1. Outdoor storage areas shall comply with the regulations for Outdoor Storage Area requirements in this Chapter.
2. The site shall not be used as a "junkyard" or "automobile wrecking yard" as herein defined.

8-4-43: Meatpacking/ Slaughterhouse Facility

A. Setbacks. All structures or outdoor activity areas shall be located at least three hundred feet (300') from any property line.

B. Separation. The use shall be located at least one thousand feet (1,000') from any residential district, residential use, or medical care facility.

C. Waste. The owner shall obtain written approval of the state of Idaho Department of Health and Welfare for elimination of waste materials.

D. Compliance. The application materials shall include written documentation that the proposed facility meets any applicable federal, state, or local standards regarding such use including, but not limited to, those of the Environmental Protection Agency, the U.S. Department of Agriculture, Central District Health Department, and Idaho Department of Water Resources.

8-4-44: Medical Care Facility

A. Frontage. The use shall have frontage on an arterial street.

B. Accessory Uses. Accessory retail uses including, but not limited to, retail shops, food or beverage service, and personal service shops, may be allowed if designed to serve patrons of the medical care facility and their visitors only.

C. Separation. No medical care facility shall be located within one thousand feet (1,000') of the following uses:

1. Explosive Manufacturing or Storage;
2. Livestock Confinement Facility with Three Hundred One (301) or More Animal Units;
3. Flammable Substance Storage;
4. Foundry;
5. Freight and Truck Terminal;
6. Manufacture or Processing of Hazardous Chemicals;
7. Centralized Power Facility;
8. Processing Plant for Agricultural and Dairy Products;
9. Slaughterhouse;
10. Soil or Water Remediation; or

11. Tannery.

8-4-45: Multi-Family Dwelling

- A. Frontage.** The minimum roadway frontage shall be fifty feet (50') for multi-family developments in the R12 and R20 districts.
- B. Open Space**
 - 1. The minimum dedicated open space requirement shall be thirty percent (30%) for multi-family developments.
 - 2. Dedicated open space shall abut multi-family development within a planned unit development.
- C.** Multi-family site development shall comply with the design standards specified in Section 8-6-19G (Master Site Plan standards).

8-4-46: Nursery, Wholesale or Retail

- A. Mechanical Equipment.** Outdoor mechanical equipment (including, but not limited to, heaters and fans) shall not be located within fifty feet (50') of a property line. To reduce noise, permanently mounted mechanical equipment shall be enclosed to the maximum extent possible.
- B. Outdoor Storage Area.** Outdoor storage for materials shall comply with the Outdoor Storage Area requirements of this Chapter. The following nursery materials shall be exempt from this requirement:
 - 1. Growing plants in ground or in containers; and
 - 2. Wood chips, bark, rock, gravel, or similar ground cover material where such storage piles do not exceed six feet (6') tall.
- C. Fertilizer.** The application of fertilizer or processed wastewater at agronomic rates shall be deemed a component of the nursery use.
- D. Additional Standards.** Additional standards for wholesale and/or retail nursery within a residential district or adjoining a residential district:
 - 1. Any storage area for material in the process of being converted into compost shall be located at least one hundred feet (100') from any property line.
 - 2. No aerial spraying of the property shall be allowed.
- E.** Retail nurseries in the RUT (rural-urban transition) district shall also comply with the following:
 - 1. The total amount of enclosed retail space shall not exceed five thousand (5,000) square feet. Greenhouses (as defined by this Title) shall not be considered retail space.
 - 2. The property shall have frontage to an arterial street.

8-4-47: Office, Accessory

- A. Where Permitted.** An accessory office is allowed for an approved use.
- B. Area**

1. The office shall not occupy more than twenty-five percent (25%) of the gross floor area of the approved use.
2. If the approved primary use is not located in a structure, the office structure shall not occupy more than five percent (5%) of the property area on which the primary use is located or five thousand (5,000) square feet, whichever is less.

8-4-48: Office, Temporary Construction

- A. Any offices or accessory structures shall be removed from the property within thirty (30) days of completion of the construction project.

8-4-49: Outdoor Storage Area, Accessory

- A. **Screening.** Outdoor storage areas shall be screened according to Section 8-3-7E.4.
 1. Cyclone or chain-link fencing (with or without slats) shall not be deemed a screening material.
 2. The landscaping plan shall incorporate vegetative materials along the length of the screening to soften the appearance of such features.
- B. **Prohibited Locations.** Materials shall not be stored within required yards. Stored items shall not block sidewalks or parking areas and may not impede vehicular or pedestrian traffic.
- C. **Use of Site.** The site shall not be used as a "pit, mine, or quarry," "contractor's yard," junkyard," "automobile wrecking yard", or "vehicle impound yard."
- D. **Additional Standards:**
 1. The location of the outdoor storage area shall be noted on the master site plan and reviewed as part of that application.
 2. Storage areas shall not be rented, leased, let, or otherwise used as a commercial business.
 3. Outdoor storage for commercial or industrial uses shall be limited to those items owned or used by the business.
 4. Outdoor storage for a multi-family development, recreational vehicle park, or manufactured home park, shall be only for recreational vehicles or personal recreation items of the tenants.

8-4-50: Personal Services

- A. **Hours of Operation:** If abutting a residential district, the hours of operation shall be seven o'clock (7:00) A.M. to ten o'clock (10:00) P.M.

8-4-51: Pit, Mine, or Quarry

A. Applicability

1. A pit, mine, or quarry that meets the standards of subsection C of this Section is reviewed as a temporary use. Any other pit, mine, or quarry is reviewed as a conditional use.

B. General Use Standards

1. All operations shall be subject to accepted safety conditions for the type of excavation being performed.
2. Asphalt mixing and concrete batching may only be allowed as accessory uses to a pit, mine, or quarry in an industrial or rural district. See standards in Section 8-4-6.
3. Extraction, movement, or stockpiling are prohibited within required yards. The tops and toes of cut and fill slopes shall remain outside the required yards.
4. Areas where equipment is stored shall be deemed outdoor storage areas and shall comply with the outdoor storage requirements in this Chapter. Such storage areas shall be constructed and maintained to prevent chemicals from discharging into surface or ground waters. Such chemicals shall include, but not be limited to, petroleum products, antifreeze, and lubricants.
5. The extraction area shall be watered daily to reduce dust impacts to surrounding properties. Haul roads shall have a durable and dust free surface and shall be graded to drain all surface water from the haul roads.
6. For any pit, mine, or quarry all property owners within one thousand feet (1,000') of any property boundary of the proposed site and any additional area that may be substantially impacted by the use shall be notified.
7. In accord with Title 5, Chapter 2 of this code, the storage and/or disposal of solid waste on the proposed site is prohibited.
8. Upon reclamation of the final phase, all temporary structures shall be removed from the property, except for property line fences or walls. Any contaminated soils shall be properly recycled or disposed.

C. General Design and Reclamation Standards

1. Documentation (from the appropriate agency) shall be provided that the proposed pit, mine, or quarry operation and reclamation plan comply with federal and state regulations in regard to air and water quality and site reclamation.
2. For a pit, mine, or quarry where the excavation area results in a pond, the following standards shall apply:
 - a. The extraction areas shall be designed to create a meandering edge.
 - b. Written documentation shall be provided from Idaho Fish and Game that the proposed pond is designed to create viable fish and/or wildlife habitat.
 - c. Documentation shall be provided from the Central District Health Department that the proposed pond shall not cause septic leach fields on abutting properties to fail.
 - d. For the purposes of this Section, a "pond" means any pit, mine, or quarry where the rehabilitation plan results in an area that contains water to within six feet (6') of the surface year-round.
3. Any riparian vegetation disturbed as part of the operation shall be replaced at a ratio of two to one (2:1). Replacement vegetation shall be native plant materials and shall meet the requirements of Table 8-3-7-2 (Minimum Plant Size Standards) of this Title.

4. All pit, mines, or quarries shall comply with all requirements of "Best Management Practices for Mining in Idaho," published by the Idaho Department of Lands.

D. Standards for Temporary Use Approval

1. The property has not received previous approval for a pit, mine, or quarry as a temporary use.
2. The maximum area of the extraction site shall be six (6) acres.
3. The proposed extraction activities shall be completed within five (5) years.
4. The pit, mine, or quarry shall meet the standards in subsections A and B of this Section.
5. Stockpiles shall be a maximum of fifteen feet (15') tall.
6. All extraction and hauling activities shall take place between seven o'clock (7:00) A.M. and dusk or six o'clock (6:00) P.M. (whichever is earlier) Monday through Friday.
7. Haul roads shall not pass through existing residential neighborhoods. For the purpose of this subsection D, the term "residential neighborhood" means any residential subdivision development at a density of one or more units per acre. This standard does not apply to a pit, mine, or quarry that is located in R1, R2, R4, R6, R8, R12, or R20 base district.
8. Additional standards for a pit, mine, or quarry located in an R1, R2, R4, R6, R8, R12, or R20 base district:
 - a. The maximum extraction area shall be limited to the equivalent of the maximum allowed coverage.
 - b. Stockpiles shall be a maximum of six feet (6') tall.
 - c. No rock crushing shall be done on site.
 - d. The proposed extraction activities shall be completed within one (1) year.

E. Standards for Conditional Use Approval

1. The pit, mine, or quarry shall meet the standards in subsections A and B of this Section.
2. The approved site plan shall include adequate parking and loading areas to accommodate the peak number of vehicles. Such areas are not allowed within required yards.
3. Rock crushing may be allowed as an accessory use.
4. The extraction and reclamation phasing plan shall be shown on the master site plan.
5. The reclamation plan for each phase shall be implemented as soon as the subject area is depleted of resources or when the allowed time has ended (whichever occurs first).
6. The conditional use approval shall consider and/or establish a time frame for the extraction of material. For any proposal where an extraction period greater than five (5) years is requested, the Commission shall review the status of the pit, mine, or quarry after two and a half (2.5) years and consider amendments or additions to the approval.

8-4-52: Portable Classroom

A. Portable classrooms that are not indicated on an approved conditional use require administrative approval. A proposed use that cannot meet all of the following specific use standards requires conditional use approval:

1. The portable classroom shall not be located in the front yard of the principal school structure.
2. The portable classroom shall not be located in any required yard.
3. The placement of the portable classroom shall not reduce the number of required off-street parking spaces.

8-4-53: Postal Service

A. **Location.** No structure, facility, drive lane, parking area, nor loading area shall be located within twenty feet (20') of a residential district unless a six-foot (6') sound reduction wall is provided.

B. **Hours of Operation.** If abutting a residential district, the facility hours of public operation shall be limited to seven o'clock (7:00) A.M. to ten o'clock (10:00) P.M.

1. **Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards in this Chapter.

8-4-54: Power Facilities

A. **Applicability.** This Section applies to any power facility listed under the Infrastructure-Utilities category in Table 8-2-23-2 (Use Table).

B. General Standards

1. Electric Distribution Line

- a. Electric distribution line shall be a principal permitted use. Master site plan approval shall not be required.
- b. Electric distribution line rights of way are exempt from Section 8-3-7 (Landscaping and Screening).
- c. Electric distribution line shall comply with subsection 8-3-2O (transmission line corridors).

2. Electric Subtransmission Line

- a. Electric subtransmission line shall be a principal permitted use. Master site plan approval shall be required. A parking plan is not required with the master site plan application unless a parking area is proposed with the subtransmission line.
- b. Electric subtransmission line rights of way are exempt from Section 8-3-7 (Landscaping and Screening).
- c. Electric subtransmission line shall comply with subsection 8-3-2O (transmission line corridors).

3. Electric Transmission Line and Substation

- a. Electric transmission line and substations require conditional use approval. Master site plan approval shall be required.

- b. All electric transmission line rights of way are exempt from Section 8-3-7 (Landscaping and Screening).
- c. Electric substations and other utility structures are considered outdoor storage areas and shall meet the standards in Section 8-4-49.
- d. Towers for the purpose of communicating from the substation to remote devices shall be deemed an accessory use to an approved substation, provided that the pole and antenna are no taller than the existing towers.
- e. Electric transmission line and substations shall comply with subsection 8-3-20 (transmission line corridors).
- f. Transmission lines shall comply with the Avian Power Line Interaction Committee's (APLIC) guidelines.

4. Centralized or Distributed Power Facilities

- a. Centralized or Distributed Power Facilities require conditional use and master site plan approval.
- b. No power facility shall be used for displaying any advertising except for reasonable identification of the manufacturer or operator.
- c. The power facility shall comply with subsection 8-3-5C.
- d. The power facility shall comply with all local, state, and Federal Regulations.
- e. Installation of an anemometer or similar devices shall be reviewed as a temporary use.

C. Specific Standards Applicable to Centralized Power Facilities

1. Standards Applicable to All Centralized Power Facilities

- a. The minimum property size shall be forty (40) acres.
- b. The centralized power facility shall not be located within an area of city impact.
- c. Approval may be required from the appropriate agency, including, but not limited to, the following: Federal Energy Regulatory Commission, Federal Aviation Administration, National Guard, Mountain Home military base, Idaho Bureau of Aeronautics, Boise Airport Director, IPUC, Idaho Power Company compliance, Idaho Fish and Game, U.S. Department of Fish and Wildlife, Idaho Department of Water Resources, Idaho Department of Environmental Quality, Ada County Emergency Communications Division, Idaho Bureau of Homeland Security Public Safety Communications, and the appropriate fire authority as a condition of approval.
- d. The master site plan for the proposed centralized power facility shall include a map of the proposed transmission line corridors and any proposed or existing substations, if any.

2. Additional Standards for Certain Centralized Power Facilities

- a. **Biomass Facility**

1. The minimum property size shall be ten (10) acres.
2. The application shall identify the specific location and type of all fuel sources for the biomass facility, and the method of gathering and delivering the fuel to the site.
3. Mass burn facilities shall not use waste containing hazardous materials as a fuel source.

b. Hydroelectric Facility

1. Major earthwork associated with construction and maintenance shall be scheduled to minimize soil disturbance between December 1 and April 15.
2. Any removal of riparian vegetation along watercourses shall be replaced at a ratio of two to one (2:1).
3. A master site plan approval is not required for a hydroelectric facility, relating to a seasonal irrigation canal.

c. Solar Facility

1. The minimum property size shall be ten (10) acres.
2. Solar facilities shall not be located on irrigated prime farmland.
3. Solar equipment shall meet the required setbacks for the district in which it is located.
4. All solar panels shall be constructed to minimize glare or reflection onto adjacent properties and adjacent roadways and shall not interfere with traffic, including air traffic, or create a safety hazard for people or wildlife.
5. Ground mounted solar arrays are exempt from lot coverage and impervious surface requirements if the area under the system remains permeable.

a. Application Requirements

- i. A decommissioning plan that includes, but is not limited to, the anticipated life of the ground solar equipment, disposal methods of the equipment, the way the site will be restored, and the timeline for the removal of the ground solar equipment following the cessation of operations or irreparable damage to panels or equipment. The applicant shall also provide the method in which the panels or components will be recycled at the end of their useful life. Decommissioning shall be completed in accordance with the approved decommissioning plan.
- ii. A fire protection plan that provides fire protection measures and describes fire suppression methods for the construction and operation of the energy project. The applicable fire authority shall approve the fire protection plan as a condition of approval.
- iii. An emergency response plan that outlines procedures for safe shutdown, de-energizing or isolation of equipment and systems under emergency conditions.

- iv. A vegetative management plan that includes methods for managing noxious weeds, proposed vegetation on the site along with locations, and justification for proposed vegetation or lack thereof.

d. Energy Storage Facility

1. Battery energy storage systems shall meet the minimum setback for the district in which it is located.
2. Perimeter security fencing shall comply with federal requirements and shall be designed to prevent public entry. Fencing shall be maintained in good condition until the installation is dismantled and removed from the site.
 - a. Application Requirements
 - i. A fire protection plan that provides fire protection measures and describes fire suppression methods for the construction and operation of the energy project. The applicable fire authority shall approve the fire protection plan as a condition of approval.
 - ii. An emergency response plan that outlines procedures for safe shutdown, de-energizing or isolation of equipment and systems under emergency conditions and a plan for training local first responders on appropriate response procedures.
 - iii. A decommissioning plan that includes, but is not limited to, the anticipated life of the equipment, disposal methods of the equipment, the timeline for removal of the equipment following irreparable damage or cessation of operations. The applicant shall also provide the method in which the components will be recycled at the end of the useful life. Decommissioning shall be completed in accordance with the approved decommissioning plan.

D. Specific Standards for Certain Distributed Power Facilities

1. **Geothermal Resources.** Direct use of geothermal resources for heating spas, greenhouses, and other similar uses shall not constitute a distributed power facility.

2. Solar Facility

- a. All solar panels shall be constructed to minimize glare or reflection onto adjacent properties and adjacent roadways and shall not interfere with traffic, including air traffic, or create a safety hazard for people or wildlife.
- b. Roof mounted solar equipment shall not exceed five feet (5') above the roof surface and in no case shall the equipment exceed the maximum height of the base district.
- c. Ground and pole solar equipment shall be prohibited in the required front or side yard.
- d. Pole solar equipment shall not exceed a maximum height of fifteen feet (15').
- e. Pole solar equipment shall be set back one and a half feet (1.5') from the property line for every one foot (1') of maximum height or the minimum setback for the district, whichever is greater.

- f. Ground solar equipment shall meet the minimum setback for the district in which it is located.

3. Wind Facility

a. Specific Standards for Rooftop or Freestanding Wind Tower.

1. Approval may be required from the appropriate agency, including, but not limited to, the following: Federal Energy Regulatory Commission, Federal Aviation Administration, National Guard, Mountain Home military base, Idaho Bureau of Aeronautics, Boise Airport Director, IPUC, Idaho Power Company compliance, Idaho Fish and Game, U.S. Department of Fish and Wildlife, Idaho Department of Water Resources, Idaho Department of Environmental Quality, Ada County Emergency Communications Division, Idaho Bureau of Homeland Security Public Safety Communications, and the appropriate fire authority as a condition of approval.
2. Documentation shall be submitted that describes the expected maximum noise level that will be generated by the facility. If the noise level exceeds the applicable standard set forth below, an acoustical study shall be prepared by a licensed professional that demonstrates how the facility will comply with the maximum allowed noise level.
3. No experimental, homebuilt, or prototype wind turbines shall be allowed.

b. Rooftop Wind Facilities

1. The minimum property size shall be one acre.
2. One rooftop wind facility requires an accessory use.
3. Two (2) or more rooftop wind facilities require a conditional use.
4. Rooftop wind equipment shall not exceed the maximum height of the base district in which it is located.
5. The maximum diameter of the blades shall not exceed five feet (5').
6. Roof mounted wind equipment shall be located so that in the event of failure, no part of the equipment will fall across any property line.
7. Noise emitted from a rooftop wind facility shall not exceed thirty-five (35) decibels (dBA) measured from all external property lines of the subject property.

c. Freestanding Wind Facilities

1. The minimum property size shall be forty (40) acres.
2. One wind tower per forty (40) acres shall be allowed.
3. A property owner shall only be allowed to construct a maximum of two (2) wind towers on their property, including all of their abutting properties.
4. The maximum height shall be one hundred twenty feet (120') including the tip height of the blade.

5. All wind tower facilities shall be located a minimum of one and a half feet (1.5') from all property lines for every one foot (1') of tower height, including the tip height of the blade as illustrated in Figure 8-4-54-1 Wind Facility Fall Zone and Setback (Overhead View Example).
6. In addition to the setback requirements in subsection 8-4-54D3.c.5 of this Section, a fall zone for each wind tower facility shall be delineated and permanently restricted from future development, as follows:
 - a. The fall zone shall consist of the land area centered beneath the wind facility and circumscribed by a circle with a radius equal to the maximum height including the tip height of the blade plus ten feet (10') as illustrated in Figure 8-4-54-1 Wind Facility Fall Zone and Setback (Overhead View Example) and Figure 8-4-54-2 Wind Facility Fall Zone (Side View Example).

Figure 8-4-54-1 Wind Facility Fall Zone and Setback (Overhead View Example)

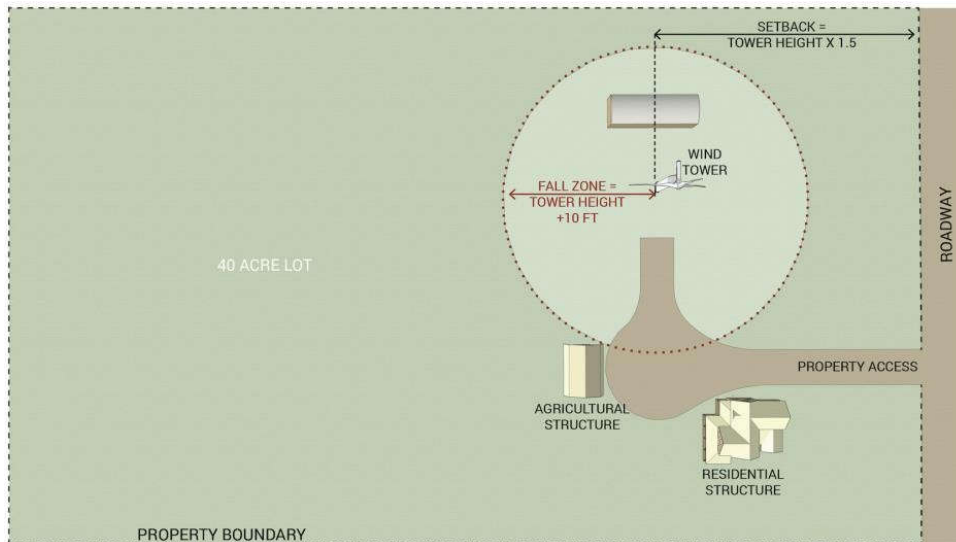
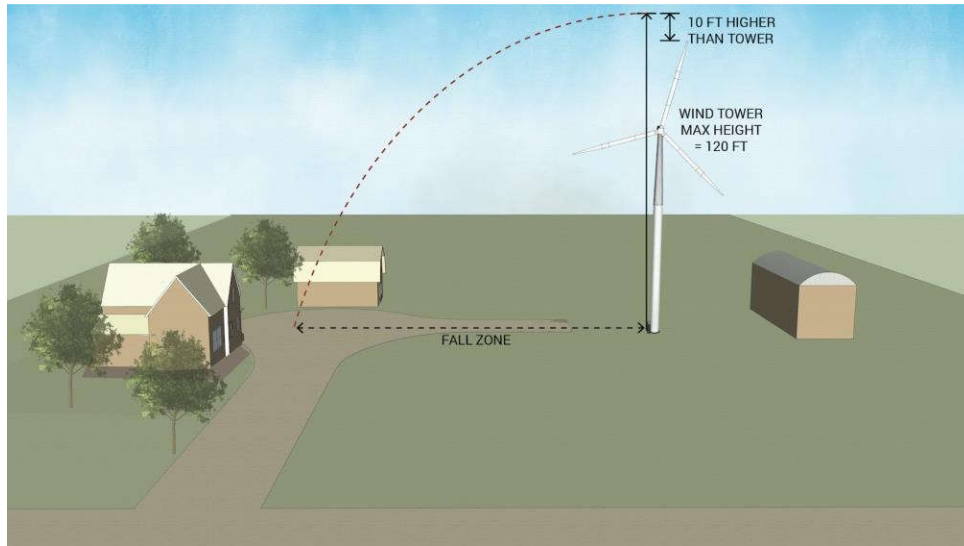


Figure 8-4-54-2 Wind Facility Fall Zone (Side View Example)



- b. All future development (with the exception of agricultural structures) is prohibited within the fall zone.
7. **Minimum Setback from Overhead Utility Lines.** The minimum required setback distance from all overhead utility lines shall be no less than the tower height including the tip height of the blade plus ten feet (10') unless extended by an easement from the overhead utility line company for the fall distance.
8. **Maintenance and Removal**
 - a. **Maintenance.** All wind facilities and their identification tags, supports, braces, mechanical and electrical equipment, and associated apparatus must be kept fully operable and maintained in a safe, neat, and clean condition.
 - b. **Removal.** Any wind facility that is not operated for a continuous period of twelve (12) months or more or that is in an obvious state of disrepair and a threat to public safety will be deemed abandoned and must be removed within sixty (60) days.
9. **Shadow Flicker.** The facility owner and operator shall make reasonable efforts to minimize shadow flicker to any nonparticipating landowner's property.
10. **Color.** Wind facilities shall be a neutral, nonreflective color designed to blend with the surrounding environment. This shall not preclude towers requiring FAA painting and/or marking from meeting those standards.
11. **Minimum Distance from Ground to Blade.** Minimum distance between the ground and the tip of the blade closest to the ground in a resting position shall not be less than twenty feet (20').
12. **Landscaping.** Wind facilities are exempt from Section 8-3-7 (Landscaping and Screening).

13. **Lighting.** No lighting is allowed, except as required by the Federal Aviation Administration.
14. **Uncontrolled Rotation Prevention.** All wind turbines must have an automatic braking, governing, or feathering system to prevent uncontrolled rotation creating excessive pressure on the tower structure, rotor blades, and turbine components.
15. **Emergency Shutdown.** Procedures for emergency shutdown of power generation units shall be established and posted prominently and permanently within three feet (3') of the meter panel.
16. **Director's Review.** The conditional use permit shall require a Director's review every five (5) years upon issuance of a zoning certificate. The Director shall review the conditions of approval for compliance.
17. **Noise.** Noise emitted from a freestanding wind facility shall not exceed forty-five (45) decibels (dBA) as measured from all external property lines of the subject property.

8-4-55: Processing Plants for Agricultural or Dairy Products

- A. **Separation.** All structures or outdoor activity areas shall be located at least three hundred feet (300') from any property line. The use shall be located at least one thousand feet (1,000') from any residential district, residential use, or approved medical care facility use.
- B. **Regulatory Compliance Documentation.** The application materials shall include written documentation that the proposed facility meets any applicable federal, state, or local standards regarding such use including, but not limited to, those of the Environmental Protection Agency, the U.S. Department of Agriculture, Central District Health Department, and Idaho Department of Water Resources.

8-4-56: Produce Stand, Agricultural or Roadside

A. Standards for Both Agricultural and Roadside Produce Stands

1. **Number Allowed.** One (1) stand per property under one ownership is allowed, subject to approval as set forth in this Chapter.
2. **Duration.** Display and sale of produce shall be allowed from May 1 to October 31 each year.
3. **Access.** Access to a stand shall be from a roadway and shall be approved by the Ada County Highway District or Idaho Department of Transportation.
4. **Private Road Requirements.** A stand shall not be allowed on private roads unless one of the following can be demonstrated:
 - a. The private road does not provide access or frontage to any other property; or
 - b. An existing or updated recorded maintenance/easement agreement addresses and permits nonresidential use of the private road.
5. **Hours of Operation.** Hours of operation shall be limited between the hours of eight o'clock (8:00) A.M. and eight o'clock (8:00) P.M.

6. Building Permits

- a. A building permit may be required for the change in use or occupancy of any portion of structures used for the stand.
- b. A stand that is a membrane covered structure under the Idaho Building Code shall require a building permit if it is erected for one hundred eighty (180) days or longer.

7. Parking. All parking and access areas shall have a six inch (6") thick surface coarse layer of crushed aggregate meeting Type I or Type II of the latest edition of Idaho Standards for Public Works Construction (ISPWC). The existing subgrade must be compacted, and proof rolled. The applicant, operator, or owner is responsible for complying with rules for the control of air pollution in Idaho by controlling fugitive dust as required by the Idaho Department of Environmental Quality.

B. Additional standards for agricultural produce stands

1. The agricultural produce stand shall only be located on a "farm" as defined in this Title.
2. The agricultural produce stand shall only sell produce grown on the premises.
3. A zoning certificate is required.
4. The area dedicated to the sale, display and storage of produce shall not exceed four hundred (400) square feet.

C. Additional standards for roadside produce stands

1. Administrative approval and zoning certificate is required.
2. Sales at the roadside produce stand shall be limited to ninety percent (90%) of the produce sold, must be grown on the premises.
3. The area dedicated to the sale, display and storage of produce shall not exceed six hundred (600) square feet.

8-4-57: Public or Quasi-Public Use

- A. Public Recreation Facilities.** The standards as set forth for amusement and recreation facilities shall apply for all public recreation facilities.
- B. Storm Drainage and Storm Detention Facilities.** A storm drainage facility and/or storm detention facility that is an accessory use to a roadway on the same property is exempt. For the purposes of this standard, subsection 8-3-2D (Contiguous Parcels) does not apply.
- C. Underground Utilities.** Underground utilities within an easement or within a public street right of way shall not require additional approval.
- D. Correctional Facilities.** Any privately owned correctional facility designed for residence by incarcerated individuals shall meet the following standards:
 1. No structure or outdoor recreation area shall be located within one thousand feet (1,000') of a property line that abuts a residential district or residential use.
 2. No structure or outdoor recreation area shall be located within one thousand feet (1,000') of a public or private school, day care center, or church.

8-4-58: Racetrack

- A. Setbacks.** All structures or outdoor activity areas shall be located at least three hundred feet (300') from any property line. The use shall be located at least one thousand feet (1,000') from any residential district or residential use.
- B. Sound.** Any outdoor speaker system associated with the racetrack shall comply with Section 5-13-3 of the Ada County Code.
- C. Lighting.** Lighted facilities shall maintain a three-hundred-foot (300') setback from any property line abutting a residential district or residential use. Setback requirements may be reduced at time of master site plan approval when conditions warrant a reduction. Possible conditions include, but are not limited to, building orientation, topography, distance to off-site improvements, and physical obstructions.
- D. Retail Sales.** Accessory retail uses including, but not limited to, retail shops and food or beverage service, may be allowed if designed to serve patrons of the facility only, and is approved by the Central District Health Department and the applicable fire authority.

8-4-59: Railroad Switching Yard

- A. Setbacks.** All structures shall be located at least one hundred feet (100') from any residential district or residential use.
- B. Outdoor Storage Area.** Outdoor storage areas shall comply with the specific use standards in this Chapter.

8-4-60: Recreation Vehicle Park

- A. Use of Spaces.** Spaces may be used by recreation vehicles, tents, or other shelter arrangements or devices.
- B. Accessory Uses.** Accessory uses including, but not limited to, management headquarters, recreational facilities, caretaker dwelling, coin operated laundry facilities, toilets, and showers may be allowed, subject to the following restrictions:
 - 1. The park shall have direct access to a collector or arterial street. No entrance or exit to the park shall be permitted through a residential district.
- C. Drives.** Drives shall comply with the following standards and are subject to plan review, field inspection, and approval by the County Engineer:
 - 1. A minimum of one drive shall originate at a public street and terminate at a public street. This standard is not intended to require two (2) access points to the recreational vehicle park.
 - 2. Drives shall have rolled concrete curb and gutter sections along both sides of the drive and extending the length of the drive.
 - 3. Drives shall be at least thirty feet (30') wide from back of curb to back of curb. The entire width of the drive shall be improved.
 - 4. Drive shall have a crown or transverse slope a minimum of two percent (2%) to drain water away from the travelway and shall be disposed of in a manner that protects life and property.
 - 5. The improved surface shall include two and a half (2.5") inches of asphalt plant mix paving on top of the base course of six inches (6") of three-fourths inch (3/4") minus

crushed gravel or other materials approved by the County Engineer over a stable compacted subbase. As an alternative to asphalt plant mix, concrete shall be allowed with the approval of the County Engineer.

6. Bridge and culvert crossings shall be designed for a minimum H-93 loading.
7. The maximum allowable grade shall be ten percent (10%) slope.
8. The minimum center line curve radius shall be fifty feet (50').
9. The minimum curb radius at intersections shall be twenty feet (20').

D. Design Standards

1. The park shall have direct access to a collector or arterial street. No entrance or exit shall be permitted which moves traffic from the park through a residential district.
2. Internal drives shall meet the drive standards required for a manufactured home park.
3. The application shall indicate the specific location of each proposed space on the master site plan.
 - a. All recreational vehicle spaces shall have an all-weather surface and be drained to prevent standing water.
 - b. Spaces shall be a minimum size of one thousand five hundred (1,500) square feet.
 - c. Recreational vehicles shall not be located closer than ten feet (10') to any other recreational vehicle, structure, manufactured home, public street, or property line.
 - d. Recreational vehicle spaces shall not be located in any required off-street parking space or required yard.
4. A dump station for discharging wastewater holding tanks shall be provided unless each space is equipped with a sewer connection. Such discharge facilities shall be approved by the Central District Health Department.

8-4-61: Recycling Center

- A. Outdoor storage areas shall comply with the specific use standards in this Chapter. No storage, excluding truck trailers, shall be visible above the required screening material.
- B. Except for after-hours donation containers, no unsorted material shall be stored outdoors.
- C. Any container provided for after-hours donation of recyclable materials shall be at least fifty feet (50') from a residential district or residential use, shall be of sturdy, rustproof construction, and shall have sufficient capacity to accommodate materials collected.
- D. Power driven processing (including, but not limited to, aluminum foil and can compacting, baling, plastic shredding, or other light processing activities necessary for efficient temporary storage and shipment of materials) may be allowed when located within an enclosed structure.
- E. All recycling center grounds and facilities shall be maintained in an orderly manner to not create a public nuisance.

8-4-62: Retail Sales, Accessory

A. Generally

1. Accessory retail sales are allowed for an approved commercial or industrial use, excluding uses within the M3 district.
2. The area devoted to retail sales shall not occupy more than twenty-five percent (25%) of the gross floor area of the approved use.
3. Unless otherwise permitted in this Title or as a condition of approval, no accessory retail sales shall be permitted in the rural base districts.

8-4-63: Sanitary Landfill

- A. Setbacks.** All structures shall be located at least three hundred feet (300') from any property line.
- B. Separation.** Active landfill disposal sites shall be located at least one thousand feet (1,000') from any residential district and/or residential use.
- C. Conditions.** Conditions may specify definite time limits for daily operation and for termination of such use.
- D. County and State Regulations.** Compliance with all applicable regulations pertaining to designation, licensing and maintenance of restricted sanitary landfills and disposal sites as set forth in Title 5, Chapter 2 of this code; Idaho Code Title 31, Chapter 44; and Title 39, Chapters 65, 70, and 74 is required.
- E. Development Standards.** All structures shall comply with the height limit per the applicable base district unless specifically exempt under subsection 8-3-2F (Dimensional Standards).

8-4-64: Sawmill or Planing Mill

- A. Enclosure.** The use shall be conducted within an enclosed structure.
- B. Separation.** There shall be a one-thousand-foot (1,000') separation from the mill structure and any residential district.
- C. Outdoor Storage.** Outdoor storage areas shall comply with the specific use standards in this Chapter.

8-4-65: School

- A. Location.** Locations for school sites are determined in conformance with the applicable comprehensive plan. The following location criteria shall apply unless in conflict with the applicable comprehensive plan:
 1. Elementary schools (Kindergarten through 5th Grade) shall take access off a local or collector street.
 2. Middle schools, junior high schools, and senior high schools (6th through 12th Grades) shall take access off a designated arterial, collector, or local street.
 3. No school except for a high school, shall abut a commercial or industrial district.
 4. No school shall be located in a floodplain or adjacent to a hazardous land use.
- B. Setbacks.** All structures shall meet a minimum setback of:

1. Forty feet (40') from any public street;
2. Thirty feet (30') from any other property line.

C. **Accessory Uses.** Accessory uses including, but not limited to, day care centers, community services, social services, meeting facilities for clubs and organizations, and administrative offices for the individual school facility may be allowed.

8-4-66: Seasonal Farmworker Housing

- A. **Justification.** The application shall specify the season and crop for which the housing is required. The housing shall not be occupied or otherwise used as dwelling units other than during the specifically permitted period.
- B. **Sewage and Water.** All housing shall have adequate sewage and water facilities as provided in Section 8-3-5. If recreational vehicles are proposed as dwelling units, such recreational vehicles shall have power, water, and sewer hookups.
- C. **Accessory Uses.** Accessory uses including, but not limited to, management headquarters, recreation areas, coin operated laundry facilities, and communal toilets and showers, may be allowed if such facilities are designated on the facility master site plan and are to be used only by residents of the facility.
- D. **Separation.** No structure shall be closer than one hundred feet (100') from an abutting property within a residential district or residential use. No structure shall be closer than ten feet (10') from any other structure.
- E. **Access Drives/Parking.** Access drives and parking areas shall have a durable and dust free surface, and the area shall be graded so as to drain all surface water from the driveways.
- F. **Enforcement.** If the owner is found to be in violation of any of the standards listed in this Section, the approval or permit shall be revoked. Upon revocation of a permit or approval, the owner may not reapply for housing for any location in the County for a period of three (3) years following the date of revocation.

8-4-67: Septage Treatment and Disposal Facility

- A. **Applicability.** This Section applies to any septage treatment and disposal facility that imports septage from septic tanks for treatment and disposal.
- B. **General Use Standards**
 1. **Minimum Property Size.** The minimum property size shall be forty (40) acres.
 2. **Written Approval.** The owner shall obtain written approval for the acceptance, treatment, and disposal of septage from the state of Idaho Department of Environmental Quality (DEQ). The approval shall make specific reference to the location of the facility, type of facility, the substance(s) being treated and its sources, the method(s) of treatment, the method(s) and location(s) of disposal of solids, monitoring methods, and the ability of the site to support the proposed use.
 3. **Security Fencing.** Security fencing shall be provided to prevent access to the facility by animals and unauthorized persons as required by DEQ.
 4. **Prohibited Locations.** The proposed use shall not be located in any city area of impact, the Snake River Birds of Prey National Conservation Area, airport overlay district, or

wildlife habitat area as depicted in the Ada County comprehensive plan.

- 5. Minimum Distance from Property Line/Residential District.** All structures, ponds/lagoons, and waste storage areas shall be located at least three hundred feet (300') from any property line. The use shall be located at least one thousand feet (1,000') from any residential district or residential use.
- 6. Operator Licensed and Qualified.** Written approval that the operator of the private septage disposal facility is licensed and qualified as required by DEQ shall be submitted.
- 7. Private Roads Prohibited.** Private septage treatment and disposal facilities shall not be allowed on a private road.
- 8. Odor Management Plan.** An odor management plan for the septage disposal facility as required by DEQ shall be submitted.

C. Application Requirements

- 1.** The application materials shall include the following written documentation:
 - a.** Description of the surrounding area within one mile of the subject site including the proximity of existing residential dwellings;
 - b.** The number and frequency of anticipated deliveries from outside companies dumping septage;
 - c.** The anticipated quantity (in gallons) of septage to be accepted;
 - d.** One parking spot for every one employee and one parking spot for every one thousand (1,000) square feet of gross floor area;
 - e.** The hours and days of operation;
 - f.** Description of the disposal method(s), including, but not limited to: evaporative lagoon(s), land application, or subsurface discharge (interment), and proposed location of disposal;
 - g.** Description of the proposed substance(s) being treated and its source(s), the method(s) of treatment, monitoring methods, and the ability of the site to support the proposed use;
 - h.** Storage and screening method for materials to be used to process solid waste (i.e., woodchips) and location of storage goods.

8-4-68: Shooting Range

- A. Written Approval.** Written approval from the Federal Bureau of Alcohol, Tobacco, and Firearms is required.

B. Outdoor Range

- 1.** The proposed use shall be within a rural district, but outside the Snake River Birds of Prey National Conservation Area or wildlife habitat area as depicted in the Ada County comprehensive plan.
- 2.** The master site plan shall designate the layout of the range including, but not limited

- to, shooting platforms, targets, target backstops, structures, and berms.
3. The range shall be designed and located so no ammunition travels off site.
 4. Written documentation that the proposed target backstops conform to the standards for outdoor ranges in "The NRA Range Source Book" published by the National Rifle Association shall be provided.
 5. An outdoor shooting range may also include covers or structures where the shooter shoots from within to an outdoor target.

C. Indoor Range

1. All related activities shall be housed totally within an enclosed structure and designed with full consideration for safety and noise factors involved in the type of use.
2. If located on the ground level, accessory uses such as gun sales, gun repair, and training courses may be allowed when such uses take up no more than twenty five percent (25%) of the gross floor area on the ground level.
3. If gun sales or gun repair are conducted within the range, the owner of the indoor shooting range shall secure and maintain a valid federal firearms license from the Bureau of Alcohol, Tobacco, and Firearms.
4. Written documentation that the proposed target backstops conform to the standards for indoor ranges in "The NRA Range Source Book" published by the National Rifle Association shall be provided.

8-4-69: Soil or Water Remediation

A. Applicability

1. This Section applies to any soil or water remediation use.
2. The following standards apply to establishments that import soil and/or water for remediation. The standards do not apply to on-site soil/water remediation.

B. Property Size. The minimum property size shall be forty (40) acres.

C. Setback

1. All structures shall be located at least three hundred feet (300') from any property line.

D. Separation

1. The use shall be located at least one thousand feet (1,000') from any residential district or residential use or approved medical care facility use.
2. The proposed use shall not be located in the Snake River Birds of Prey National Conservation Area or wildlife habitat area as depicted in the Ada County comprehensive plan.

E. State/Local Approval

1. The owner shall obtain written approval from the state of Idaho Department of Environmental Quality. The approval shall make specific reference to the location, substance being treated, method of treatment, monitoring methods, and ability of the site to support the proposed use.

2. The owner shall obtain written approval from Central District Health Department.

8-4-70: Storage Facility, Self-Service

- A. Applicability.** This Section applies to any self-service storage facility, except for outdoor only facilities.
- B. Prohibited Activities**
 1. Storage facilities shall not be used as dwellings or as a commercial or industrial place of business.
 2. The manufacture or sale of any item from or at a self-service storage facility is prohibited.
 3. Storage of any hazardous materials as defined by Title 40 code of Federal Regulations part 261, or subsequent amendments thereto, shall be prohibited.
- C. Size.** The maximum size of an individual storage area is five hundred (500) square feet.
- D. Travel Lanes.** The distance between structures shall be designed to allow a twelve-foot (12') travel lane for emergency vehicles to pass while tenant's vehicles are parallel parked (9-foot width) at the entrance to their individual storage areas.
- E. Fencing.** The perimeter of the storage facility shall be completely fenced, walled, or enclosed and screened from public view. Fencing materials shall complement the exterior building materials.
- F. Separation.** No structure, facility, drive lane, parking area, nor loading area shall be located within twenty feet (20') of a residential district unless a six-foot (6') sound reduction wall is provided.
- G. Hours of Operation.** If abutting a residential district, the facility hours of public operation are limited to seven o'clock (7:00) A.M. to ten o'clock (10:00) P.M.

8-4-71: Storage Facility, Self-Service – Outdoor Only

- A. Property/Project Size.** A minimum property size of five (5) acres is required. No facility shall exceed ten (10) acres in size.
- B. Frontage.** The property shall have frontage to an arterial or collector street.
- C. Prohibited Activities**
 1. **Dwellings; Places of Business.** Stored vehicles, including RVs and trailers, shall not be used as dwellings or as a commercial or industrial place of business. The manufacture or sale of any item from or at an outdoor only self-service storage facility is specifically prohibited.
 2. **Storage of Hazardous Materials.** Storage of any hazardous materials as defined by Title 40 code of Federal Regulations part 261, or subsequent amendments, is prohibited.
 3. **Use As a Junkyard Prohibited.** The site shall not be used as a junkyard or automobile wrecking yard.
 4. **Storage.** The storage of any items and materials other than vehicles, RVs, or trailers is

- prohibited. However, items and materials contained within a vehicle, RV or trailer are permitted.
- 5. Use of Site.** The site shall not be used as a contractor's yard unless that use is separately approved.
 - 6. On-Site Office Prohibited.** An on-site office within the confines of the storage facility is prohibited. If the facility owner has a dwelling located on the remaining property, and if that dwelling will be used by the owner to administer the facility, or if the owner intends to administer the facility from an off-site dwelling, then the owner shall obtain a home occupation permit and comply with the Home Occupation requirements in this Chapter.
- D. Distance Between Stored Vehicles.** The distance between stored vehicles, including RVs and trailers, shall be a minimum of ten feet (10') side to side, while maintaining a twenty foot (20') minimum access aisle on at least one end or as approved by the local fire authority. The distance between parking rows shall be at least twenty feet (20') of travel lane for emergency vehicle access or as approved by the local fire authority. Each space shall have access from an access aisle that is a minimum of twenty feet (20').
- E. Screening.** The perimeter of the storage facility shall be completely fenced, walled, or enclosed and screened from the public right of way, and comply with Section 8-3-7 (Landscaping and Screening). For the purpose of perimeter landscaping and screening, property lines (as described in Section 8-3-7) refer to the specific facility boundaries.
- F. Separation.** No portion of the facility shall be located within one hundred feet (100') of a property line adjacent to a rural, transitional, or residential district, with the exception of a property line adjacent to a public roadway.
- G. Design Standards.** Minimum design standards for the facility shall include the following:
1. The storage facility shall be screened year-round and comply with Section 8-3-7. This Section provides for the minimum required screening. Additional or modified screening and/or buffering may be required in order to prevent or enhance the blocking of views of existing adjacent residences and to maintain the rural and residential character of the RUT district.
 2. Access locations into the facility shall be approved by the applicable transportation jurisdiction.
 3. All parking, storage and drive aisles within the facility shall be improved with a compacted gravel base, not less than four inches (4") thick, surfaced with asphaltic concrete or some comparable all weather dustless material.
 4. All storage stalls shall be clearly defined on the site plan. The facility shall designate and maintain storage stall locations on site at all times.
 5. Outdoor storage areas shall further comply with the specific use standards in this Chapter.
- H. Maintenance, Repair, or Rebuilding.** Maintenance, repair, or rebuilding of vehicles or machinery on the property is prohibited.
- I. Hours of Operation.** Unless otherwise approved or restricted through the conditional use,

hours of operation shall be limited between the hours of seven o'clock (7:00) A.M. and ten o'clock (10:00) P.M. Facilities abutting residential uses (Section 8-10-2, Figure 8-10-2-3 Dwelling Types) are limited to the hours of eight o'clock (8:00) A.M. and eight o'clock (8:00) P.M.

J. Prohibited Locations. Vehicles shall not be stored within required yards.

K. Additional Standards

1. The following shall be considered as part of the review of an application:
 - a. The proximity of existing dwellings;
 - b. The number of vehicles anticipated to be stored upon the property;
 - c. The hours of operation;
 - d. Dust;
 - e. Noise;
 - f. Traffic and circulation;
 - g. Landscaping and screening;
 - h. Other.
2. The duration of a conditional use permit for an outdoor only storage facility shall be limited. The conditional use permit shall expire five (5) years following the approval date, or upon annexation of the subject property into a city, whichever occurs first. If continuing the use beyond the five (5) year period is requested, a new conditional use permit shall be submitted and must be given approval prior to expiration of the original conditional use permit. Upon expiration of the conditional use permit, all stored vehicles shall be removed within thirty (30) days from the subject property.

8-4-72: Tannery

A. Generally

1. The applicant or owner shall obtain written approval of the State of Idaho Department of Environmental Quality for elimination of waste materials.
2. The tannery shall have adequate sewer and water facilities.

B. Setbacks. All structures or outdoor activity areas shall be located a minimum of three hundred feet (300') from any property line.

C. Separation. The use shall be located a minimum of one thousand feet (1,000') from any residential district or approved medical care facility.

8-4-73: Temporary Uses

A. Generally

1. Except for those uses that may be allowed in this Title for periods exceeding twelve (12) months, the use may be granted for a specified period not exceeding twelve (12) months from issuance of the zoning certificate. If the use will continue beyond twelve (12) months, then a conditional use and/or master site plan application must be

submitted and approved.

2. The use shall not result in the construction of any permanent structure that would not otherwise be permitted subject to these regulations.
3. No structure shall be located within a required yard, nor shall any structure obstruct the "clear vision triangle".
4. Temporary signs less than or equal to six (6) square feet in area are exempt. Temporary signs shall not exceed forty-eight (48) square feet.
5. The owner has a continuous obligation to maintain adequate housekeeping practices to not create a nuisance.
6. For uses that require Director approval, the Director may require additional conditions to mitigate impacts. The conditions may include, but not be limited to, any or all of the following:
 - a. Standards related to the emission of noise, vibration, and other potentially objectionable impacts.
 - b. Limits on time of day of the specified use.
 - c. Other standards necessary to protect the public health, safety, and welfare and mitigate adverse effects on surrounding property.

B. Seasonal Stands. The zoning certificate shall specify a beginning and end date.

C. Fireworks Stand. Fireworks stands shall meet the following additional standards.

1. Prior to the issuance of a zoning certificate, the owner shall obtain a permit to sell fireworks in accordance with Idaho Code Section 39-2604 from the appropriate fire district.
2. Dates of fireworks sales shall comply with Idaho Code Section 39-2606.

D. Subdivision Model Home/Real Estate Sales Offices. Subdivision model home/real estate sales offices shall meet the following additional standards.

1. The sales office shall be located on a lot within a subdivision or planned unit development, or on a space within a manufactured home park.
2. The principal use of the sales office shall be the sale of lots and/or dwellings or renting of spaces within the development.
3. The sales office shall meet the construction standards for a commercial occupancy as required by the Ada County Building Code established in Title 7, Chapter 2 of this code. The owner shall obtain all necessary building permits as required by the Ada County Building Code established in Title 7, Chapter 2 of this code.
4. The owner shall obtain a building permit to convert the sales office to a dwelling or shall remove the sales office within thirty (30) days of the sale or rental of the final lot or space.
5. Subdivision model home/real estate sales offices may operate continually for over twelve (12) months upon the Director's approval.

E. Temporary Dwelling Units

1. Permission to live in an existing dwelling or a temporary manufactured home is allowed until the completion of the construction of the new principal permitted dwelling, or for up to twelve (12) months, whichever time period is less, unless otherwise permitted.
2. The existing dwelling or the temporary manufactured home shall be removed prior to issuance of the certificate of occupancy for the principal permitted dwelling unless the existing dwelling or manufactured home is approved for use as a secondary dwelling.

F. Temporary Pit, Mine, or Quarry. For standards related to temporary permits for a temporary pit, mine, or quarry in a residential district, see the specific temporary use standards in this Chapter (Pit, Mine, or Quarry).

G. Temporary Living Quarters. Temporary living quarters shall meet the following additional required standards.

1. The temporary living quarters is needed to house a member of the owner's immediate family or the owner's employee.
 - a. Need for temporary living quarters for a family member shall be justified for reasons of health, employment, or upkeep on the property.
 - b. Need for temporary living quarters for an employee shall be justified for reasons of upkeep on the property, supervision of livestock, healthcare of owner, or crop management. For the purposes of this Section, "owner's employee" shall mean a person employed on the premises by the property owner and receiving not less than seventy five percent (75%) of the employee's annual income from said property owners.
2. The temporary living quarters shall be a securely anchored manufactured home.
3. The temporary living quarters shall not be permanently affixed to the property and shall be maintained in a condition to permit removal of the unit upon termination of the authorized use or expiration of the approval.
4. The temporary living quarters shall have adequate sewage facilities as provided for in Section 8-3-5.
5. No more than one temporary living quarters is allowed on a property.
6. The property shall be maintained in a neat and orderly manner and shall not differ in appearance from surrounding residential uses.
7. The temporary living quarters, any attached structures, and the anchoring devices shall be removed from the property within thirty (30) days of termination of the authorized use or expiration of the approval.
8. Temporary living quarters may be approved for a maximum of two (2) years. The duration of the temporary living quarters approval may be extended for up to four (4) additional 2-year time periods, by securing a zoning certificate prior to the expiration date of the temporary use or previous zoning certificate extension. After ten (10) years, a new application is required to establish a new temporary living quarters.

H. Anemometers/Wind Facility Feasibility Devices. An anemometer or similar device for

the purpose of determining feasibility of a wind facility site shall meet the following additional standards:

1. An anemometer for a distributed power facility, wind freestanding tower shall only be allowed in the RP, RR, and RUT districts on property containing a minimum of forty (40) acres and shall not exceed a height of one hundred twenty feet (120'), including the maximum tip height.
2. An anemometer for distributed power facility, wind rooftop shall only be allowed in the RP, RR, RUT, RSW, R1 districts, on property containing a minimum of one acre and shall not exceed the height of the base district in which it is located.

8-4-74: Tower or Antenna Structure, Commercial

A. Applicability

1. This Section applies to tower structures and associated equipment, including but not limited to the purposes of commercial radio, television, telephone, paging, or satellite reception and/or transmission.
2. A structure that meets the following standards is reviewed as an accessory use. Any other structure is reviewed as a conditional use.
 - a. Collocation of new antenna and/or equipment for an approved commercial tower structure is an accessory use and requires a zoning certificate prior to installation.
 - b. Small wireless facilities are an accessory use and require a zoning certificate prior to installation.
 - c. Small Wireless Support Structures located outside of the Ada County Highway District and Idaho Department of Transportation rights-of-way require a zoning certificate and building permit prior to installation.

B. General Standards for Commercial Tower Structures and Associated Equipment

1. **Radio Frequency Emissions.** The structure and equipment shall comply with FCC standards regarding radio frequency (RF) emissions.
2. **Approval Required.** The structure and equipment shall have approval from the Federal Aviation Administration and the Chief of the Idaho Bureau of Aeronautics prior to operation.
3. **Additional Approval.** The structure and equipment shall have approval from the Boise Airport Director prior to operation. The approval shall include specific reference to the site location, height of the tower, lighting, and issuance of an avigation easement.
4. **Permits Required.** All necessary permits required under Federal, State, or local statutes, regulations, or ordinances including, but not limited to, building permits shall be obtained.
5. **Maintenance of Structure and Equipment.** The structure and equipment shall comply with all Federal, State, and local regulations and the construction standards established in this Section.
6. **Outdoor Storage Areas.** The proposed structure and equipment shall comply with the specific use standards for Outdoor Storage Area in this Chapter.

7. Conditional Use Approval. For any structure and equipment requiring conditional use approval, the Director shall notify all property owners within one thousand feet (1,000') of any property boundary of the proposed site.

8. Removal

- a.** Any structure that has had no antenna mounted upon it for a period of one hundred twenty (120) consecutive days, or if the antennas mounted thereon are not operated for a period of one hundred twenty (120) successive days, shall be considered abandoned. The structure owner or landowner shall:
 - 1. Remove any such structure and any accompanying equipment enclosure within ninety (90) days of abandonment; and
 - 2. Bring the location of the removed structure back to its original state, or better.
- b.** The Director, upon determining that a structure has been abandoned, shall serve notice of its determination of abandonment upon the owner of the structure.
 - 1. The notice shall contain the reasons why the structure has been deemed abandoned, the owner's obligation to remove the structure and the owner's right to appeal the determination of abandonment.
 - 2. If the structure and equipment enclosure are not removed within ninety (90) days, then the County has the right without further notice to enter upon the land and remove and abate such structures at the expense of the tower owner or landowner.

9. Structure Construction, Setback, and Fall Zone Standards

- a.** The structure shall be constructed to the Telecommunications Industry Association/Electronic Industries Association (TIA/EIA) 222 revision F standard entitled "Structural Standards for Steel Antenna Supporting Structures," or as hereinafter may be amended.
- b.** Within the Boise Air Terminal Airport Influence Areas Overlay District, the height limit on the tower structure or antenna structure shall be as required by the Code of Federal Regulations 14 CFR 77.
- c.** The design for structures over twenty feet (20') tall must allow for future arrangements of antennas upon the structure. These towers must also be designed to accept antennas mounted at varying heights.
- d.** If the tower does not exceed the height limitations of the applicable base district, the tower shall meet the setback requirements of the district. If the tower exceeds the height limitation of the applicable base district, the tower shall meet the setback requirements of the district or it shall set back one foot (1') for every ten feet (10') of total tower height from all property lines, whichever is greater.
- e.** In addition to the setback requirement noted in the preceding paragraph, a fall zone for each tower shall be delineated and permanently restricted from future development, as follows:
 - 1. The fall zone shall consist of the land area centered beneath the tower and

circumscribed by a circle with a radius equal to a length of one foot (1') for every ten feet (10') of tower height.

2. If the fall zone does not lie completely within the subject property, a nonrevocable easement shall be obtained from all owners of property within the fall zone that prohibits the construction or placement of new structures within the fall zone, except as may be specifically permitted through the conditional use process. If an easement is utilized, a copy of the fully executed easement agreement shall be submitted as part of the application.
- f. Towers shall be architecturally and visually compatible with the existing structures, vegetation, and/or uses in the area or likely to exist in the area under the terms of the applicable base district and/or comprehensive plan. Considerations shall include but not be limited to, the following factors: similar height, color, bulk, and/or shape, or camouflage techniques to disguise the tower. This shall not preclude towers requiring FAA painting and/or marking from meeting those standards.
- g. This subsection B does not apply to small wireless support structures and small wireless facilities that meet the standards found in subsections C and D of this Section.

C. General Standards for Small Wireless Support Structures and Small Wireless Facilities

1. Small Wireless Support Structures

- a. Small wireless support structures shall not exceed the height limitation of forty-five feet (45').
- b. Small wireless support structures that are over twenty feet (20') tall and located within a utility easement or public right-of-way must be designed to allow for future arrangements of antennas and to accept antennas mounted at varying heights upon the small wireless support structure, to the extent reasonably feasible based upon construction, engineering, and design standards.
- c. Small wireless support structures shall be permitted within utility easements or public rights-of-way in accordance with the requirements of this Section.
- d. Single carrier small wireless support structures may be used within utility easements and public rights-of-way due to the height restrictions imposed by this Section.
- e. The replacement of pre-existing small wireless support structures shall be subject to all the same requirements as the construction of new small wireless support structures.

2. Small Wireless Facilities

- a. Small wireless facilities located within utility easements or public rights-of-way are exempted from setback requirements.
- b. Small wireless facilities may extend up to ten feet (10') above the height of a small wireless support structure.

- c. Small wireless facilities may be mounted on a roof of a building only if the height of the small wireless facility at the highest point does not exceed the horizontal distance from the small wireless facility to the edge of the roof.
- d. Small wireless facilities shall be compatible with regard to similar height, color, bulk, and/or shape, and/or use of camouflage techniques.

D. Application Requirements. The application materials shall include the following written documentation:

1. **Suitability Analysis of The Proposed Site.** The analysis shall include, but is not limited to, the following:
 - a. Description of the surrounding area within one mile of the subject site including topography; and
 - b. For towers and/or associated facilities that do not meet the definition of small wireless support structures and small wireless facilities. Propagation charts showing existing and proposed transmission coverage at the subject site and within an area large enough to provide an understanding of why the facility needs to be placed at the chosen location.
 - c. For towers and/or associated facilities that meet the definition of small wireless support structures and small wireless facilities. A map and written analysis describing existing and proposed transmission coverage.
2. **Facilities Not Meeting Definitions of Small Wireless Support Structures and Facilities.** For towers and/or associated facilities that do not meet the definitions of small wireless support structures and small wireless facilities: if applicable, a signed lease agreement, relevant portions of which require the owner to remove the tower and/or associated facilities upon cessation of use.
3. **Facilities Meeting Definitions of Small Wireless Support Structures and Facilities.** For towers and/or associated facilities that meet the definitions of small wireless support structures and small wireless facilities: if applicable, a signed lease agreement, master lease agreement or letter of authorization from the property owner or controlling entity that requires the owner to remove the tower and/or associated facilities upon cessation of use.
4. **Prior To Construction.** Before construction of a small wireless support structure or small wireless facility commences in a utility easement or public right-of-way, the owner shall provide written evidence of a permit, license, or legal right or approval to use such structure or facility by the Ada County Highway District, other controlling entity, or the owner.
5. Owners may submit consolidated applications for up to five (5) small wireless facilities being installed, modified, replaced, or collocated.

E. Additional Application Requirements for Facilities That Require a Conditional Use Approval

1. Engineering data showing that the tower is designed structurally, electrically, and in all other respects to accommodate both the equipment requested in the application and

comparable equipment for a minimum of one (1) additional user if the tower is over twenty feet (20') tall. If the tower is over one hundred ten feet (110') tall, it shall be designed structurally, electrically, and in all other respects to accommodate both the equipment requested in the application and comparable equipment for a minimum of two (2) additional users.

2. A report from a qualified and licensed professional engineer in the state of Idaho that describes the facility height and design (including a cross section and elevation); documents the height above grade for the recommended mounting position for collocated antennas and the minimum separation distances between antennas; describes the facility's capacity; and any other information necessary to evaluate the request. The report must include the engineer's stamp and registration number.
3. A letter of intent committing the facility owner and successors to allow the shared use of the facility, as required by this Title, if additional users agree in writing to meet reasonable terms and conditions for shared use.
4. A map and written analysis demonstrating that the facility cannot be accommodated on an existing or approved tower within a two (2) mile radius.
5. The Planning and Zoning Commission will issue a decision within one hundred fifty (150) days after submission of the application.
6. It shall be the burden of the applicant or owner to demonstrate that the proposed facility cannot be accommodated on an approved tower or structure within the two (2) mile search radius due to one or more of the following reasons:
 - a. Unwillingness of a property owner, or tower or facility owner to entertain shared use.
 - b. The planned equipment would exceed the structural capacity of the existing tower or structure, as documented by a qualified and licensed professional engineer in the state of Idaho, and the existing tower or structure cannot be reinforced, modified, or replaced to accommodate planned or equivalent equipment at a reasonable cost.
 - c. The planned equipment would cause radio interference with material impacting the usability of other existing or planned equipment at the tower or structure, and the interference cannot be prevented at a reasonable cost as documented by a qualified and licensed professional engineer or other professional qualified to provide necessary documentation.
 - d. Existing or approved towers or other structures within the search radius cannot accommodate the planned equipment at a height necessary to be commercially functional as documented by a qualified and licensed professional engineer or other professional qualified to provide necessary documentation.
 - e. The proposed collocation with an existing tower or structure would be in violation of a local, State, or Federal law.
 - f. Any other unforeseen reasons that make it unfeasible to collocate upon an existing or approved tower or structure as documented by a qualified and licensed professional engineer, or other professional qualified to provide necessary documentation.

7. It shall be the burden of the owner to demonstrate that a good faith effort has been made to solicit the location of the proposed tower on federal, state, county, or city property when such property exists within the two (2) mile radius. Evidence of this shall include, at a minimum, copies of notices sent by certified mail, return receipt requested, to all federal, state, county or city property managers asking the possibility of locating the proposed tower on said property and requesting a written response within fifteen business days.
8. It shall be the burden of the owner to demonstrate that a good faith effort has been made to solicit additional users for the proposed structure. Evidence of this shall include, at a minimum, copies of notices sent by certified mail, return receipt requested, to all other providers of cellular and wireless communications services within Ada County, advising of the intent to construct a new tower, identifying the location, inviting the joint use and sharing the costs, and requesting a written response within fifteen business days.

8-4-75: Tower or Antenna Structure, Private

- A. The following regulations shall apply to tower structures for the purpose of private radio, television, or satellite reception and antennas for amateur radio. Towers are not subject to the accessory structure regulations of this Chapter.

B. General Standards

1. The tower or antenna structure is only for private, not commercial, use.
2. The tower or antenna structure is accessory to a permitted or approved use.
3. Verification of compliance with the regulations and requirements of the following agencies, as applicable, shall be provided:
 - a. Federal Aviation Administration.
 - b. Idaho Transportation Department (Bureau of Aeronautics).
 - c. The City of Boise Airport Commission.
4. An amateur radio tower for a licensed amateur radio operator that exceeds the height limit for structures in the applicable base district shall require accessory use approval by the Director. The applicant or owner must be a licensed amateur radio operator. Any other tower that exceeds the height limit for structures in the applicable base district shall require conditional use approval.

C. Tower Construction Standards

1. Within the Boise Air Terminal Airport Influence Areas Overlay District, the height limit on the tower shall be as required by the Code of Federal Regulations 14 CFR 77.
2. If the tower does not exceed the height limitations of the applicable base district, the tower shall meet the setback requirements of the district.
3. If the tower exceeds the height limitation of the applicable base district, the following standards shall apply:
 - a. The tower shall meet the setback requirements of the district, or it shall be set back one foot (1') for every ten feet (10') of total tower height from all property lines,

whichever is greater.

- b. A report shall be submitted from a qualified and licensed professional engineer and installed in accord with the manufacturer's specifications that describes the facility height and design (including a cross section and elevation). The report must include the engineer's stamp and registration number.
- c. A copy of the notice of construction filed with the Federal Aviation Administration (FAA) shall be provided.
- d. A fall zone for each tower shall be delineated and permanently restricted from future development, as follows:
 - 1. The fall zone shall consist of the land area centered beneath the tower and circumscribed by a circle with a radius equal to a length of one foot (1') for every ten feet (10') of tower height.
 - 2. If the fall zone does not lie completely within the subject property, a nonrevocable easement shall be obtained from all owners of property within the fall zone that prohibits the construction or placement of new structures within the fall zone, except as may be specifically permitted through the conditional use process. If an easement is utilized, a copy of the fully executed easement agreement shall be submitted as part of the application.
- 4. Towers not requiring FAA painting and/or marking shall have either a galvanized finish or painted with a non-contrasting blue, gray, or black finish.

8-4-76: Transit Facility

- A. Generally.** The master site plan shall designate sufficient areas to accommodate the maximum number of buses, vans, or other transit vehicles anticipated at any one time.
- B. Queuing.** No queuing areas shall be located within required yards.

8-4-77: Truck Stop

- A. Location.** The use shall be located on a principal arterial that is within one thousand three hundred twenty feet (1,320') of an interstate interchange.
- B. Accessory Uses**
 - 1. Accessory uses directly related to the maintenance and fueling of vehicles (including, but not limited to, truck and trailer washing, fuel pumps, garages for minor repair) may be allowed.
 - 2. Other accessory uses including, but not limited to, office, restaurant, and convenience retail, may be allowed if such facilities are completely within the truck stop facility.
- C. Installation.** Installation of underground fuel tanks shall require written approval from the Idaho Department of Environmental Quality, Idaho Department of Water Resources, and the appropriate fire authority.
- D. Safe Haven Designation.** If the truck stop has been designated a safe haven facility by the Board for Trucks Transporting Hazardous Materials, accessory sleeping quarters may be allowed.

1. Sleeping Quarters

- a. No more than ten (10) guest rooms shall be provided.
- b. No kitchen facilities shall be provided.
- c. Bathroom facilities may be provided.

8-4-78: Vehicle Impound Yard

A. Screening

- 1. Outdoor storage areas and outdoor activity areas shall comply with the Outdoor Storage Area requirements of this Chapter, including a fence or wall and screening material ten feet (10') tall.
- 2. No portion of the vehicle impound yard outdoor storage areas and/or outdoor activity areas may be visible from any "highway," "interstate," "principal arterial," or "minor arterial" as herein defined.
- 3. All materials or parts shall be stored and located within the fenced or walled area. No vehicles or materials shall be stored so they exceed the height of the fence or wall.

B. Site Related Standards

- 1. The use shall be located at least one thousand feet (1,000') from any residential district or residential use.
- 2. No person shall establish, operate, or maintain a vehicle impound yard, any portion of which is within one thousand feet (1,000') of the nearest edge of the right-of-way and visible from any "highway," "interstate," "principal arterial," or "minor arterial" as herein defined.

8-4-79: Vehicle Repair, Major; Minor; Vehicle Sales

A. Generally. The use shall not constitute a junkyard as defined in Chapter 10 of this Title.

B. Enclosure. All repair activities (including, but not limited to, open pits and lifts) shall occur within an enclosed structure.

C. Outdoor Storage Area. Outdoor storage shall comply with the Outdoor Storage Area requirements of this Chapter.

D. Landscaping and Screening

- 1. Inoperable or dismantled motor vehicles shall be stored behind a sight obscuring fence, wall, or screen or within an enclosed structure and shall not be visible from any street or private road.
- 2. Automotive sales and rental areas (if permitted) are subject to the landscape and screening requirement of parking areas in Section 8-3-7.

8-4-80: Winery

A. Regulatory Compliance. The winery shall comply with all applicable State, Federal, and local regulations.

B. Access. The property shall have access and frontage on a public road.

- C. Tasting Rooms and Promotional Events.** In zoning districts where a winery is a conditional use, tasting rooms and promotional events, such as but not limited to wine club events and winemakers' dinners, may be allowed as part of the conditional use. A tasting room is only allowed on a property when part of a winery. Promotional events shall be limited to not more than twenty-four (24) small (fifty [50] guest maximum) events per year.

CHAPTER 5

SUBDIVISION STANDARDS

SECTION:

- 8-5-1: GENERALLY
- 8-5-2: ACCESS
- 8-5-3: ALLEYS
- 8-5-4: BLOCKS
- 8-5-5: EASEMENTS
- 8-5-6: FLOOD HAZARDS
- 8-5-7: IMPROVEMENTS
- 8-5-8: LOTS
- 8-5-9: WATERCOURSES

8-5-1: Generally

- A. Purpose.** The purpose of this Chapter is to provide uniform standards for the subdivision of property, to protect property, and to protect the health, safety, and general welfare of the people of Ada County:
1. To guide the future growth and development of the County in accordance with this Code, Comprehensive Plan, and all other County development related ordinances.
 2. To promote safety from fire, flood, and other danger.
 3. To ensure that public and private development are served by adequate public facilities and services with sufficient capacity for efficient transportation, water, sewer, drainage, and other public requirements and facilities, and that the development bears its fair share of the cost of providing the facilities and services.
 4. To provide for the circulation of pedestrians required for the beneficial use of land and buildings throughout the County.
 5. Working with partner transportation entities to ensure that traffic generated from the proposed development can be adequately and safely served by the existing and future street system.
 6. To establish reasonable standards of design and procedures for platting to further the orderly layout and use of land and to promote proper legal descriptions and documenting of platted land.
 7. To minimize the pollution of streams and ponds; to provide for the adequacy of drainage facilities; to control stormwater runoff; to minimize erosion and siltation problems; to safeguard the water table; to encourage the wise use and management of natural resources; and enhance the stability and beauty of the community and the value

of the land.

8. To assure that sufficient parks and/or open spaces are provided to meet the recreational demands resulting from new residential development and to encourage measures for nonstructural flood control that will reduce the risk of flood damage for surrounding development.
9. To remedy the problems associated with illegally subdivided lands and/or previously platted lands, including premature subdivision, incomplete subdivision, or scattered subdivision of land.

B. Applicability

1. **Subdivision in Unincorporated Areas.** This Chapter shall apply to the subdivision of all property within the unincorporated area of Ada County except by modification of Title 9 of this code.

2. **Unlawful**

- a. It is unlawful to make a subdivision of property until the requirements of this Chapter are satisfied.
- b. No plat or any instrument passing title to any portion of a plat shall be offered for recording unless approved in accord with the regulations of this Title.
- c. No building permit shall be issued on any property being considered in the subdivision process until:
 1. The final plat has been recorded;
 2. Assessor's parcel numbers have been assigned; and
 3. All required public improvements have been constructed and approved by the appropriate authority or a surety agreement has been submitted to and approved by the Director.
- d. It is unlawful to reduce a property containing an approved distributed power facility containing a wind freestanding tower below the forty (40) acre minimum property size as of the effective date of this subsection. None of the exceptions listed in subsection 8-5-1B.3 below apply to those properties, except a "property reduced by governmental action" in accord with subsection 8-3-2M.

3. **Exceptions.** The following divisions of property do not constitute a subdivision:

- a. A "property boundary adjustment" (see Section 8-6-23) and as defined in Chapter 10, Definitions.
- b. An approved "one time division" (see Section 8-6-21).
- c. The division of property because of condemnation, as defined and allowed in the Idaho Code.
- d. The expansion or acquisition of street rights of way by a public highway agency.
- e. An approved farm development right in accord with Section 8-2-5 of this Title.
- f. Abutting parcels that qualify as an exception to the contiguous parcel regulation as

set forth in subsection 8-3-2D.

g. A "property reduced by governmental action" in accord with Section 8-3-2M.

C. Subdivision Types. The three (3) subdivision types – preliminary plat, final plat, and combined preliminary and final plat – shall comply with this Chapter and follow the specifications, processes, and requirements established in Chapter 6.

8-5-2: Access

A. Generally

1. All lots shall have access that complies with Section 8-3-3.
2. The arrangement, character, extent, and location of all streets shall conform to the comprehensive plan or portions thereof and shall consider their relation to existing and planned streets, topographic conditions, and in their appropriate relation to the proposed uses of the property to be served by those streets.
3. All required public street improvements and additional design standards are subject to the jurisdiction of the Ada County Highway District (ACHD) and the Idaho Transportation Department (ITD).
4. Where a subdivision borders a railroad right of way or limited access highway right of way, a street approximately parallel to such right of way, at a distance suitable for appropriate use of the intervening property may be required.
5. Street layout shall be planned to facilitate future development of abutting areas and the entire neighborhood and shall provide for adequate access to abutting lands.

8-5-3: Alleys

A. Generally. Alleys may be provided within approved Subdivisions.

B. ACHD Compliance. Alleys shall comply with ACHD standards.

8-5-4: Blocks

A. Generally. The length, widths, and shapes of blocks are determined by:

1. Provision of adequate building sites suitable to the special needs of the type of use contemplated including the base district requirements as to property sizes and dimensions.
2. Avoiding double front lots, not to include corner lots. If unavoidable, one of the frontages shall be restricted from access, unless approved by the Director.
3. Needs for convenient access, circulation, control, and safety of street traffic.
4. The limitations and opportunities of topography.
5. Arranging lots within blocks or abutting a cul-de-sac.

B. Standards

1. Residential block lengths should range between four hundred feet (400') and six hundred feet (600'), unless the Director approves an alternative length based on consistency with adjacent streets, future land development patterns provided in the

comprehensive plan, to provide a lot configuration that better protects natural resources or agricultural land.

2. Pedestrian access rights of way not less than ten feet (10') wide, may be required for walkways through or across a block when deemed desirable to provide circulation, or access to schools, playgrounds, shopping centers, transportation, and other community facilities. That access right of way shall be located within an easement or on a separately platted lot.

8-5-5: Easements

- A. The subdivision plat shall provide easements for utilities, drainage, and irrigation abutting to all public street right of way and subdivision boundaries, and where considered necessary, centered on the interior property lines.
- B. Those easements shall have a minimum width of ten feet (10').
- C. Where a subdivision is transversed by a watercourse, appropriate easements shall be provided.

8-5-6: Flood Hazards. Proposed subdivisions in a flood hazard overlay district shall comply with the requirements of the Flood Hazard Overlay District regulations.

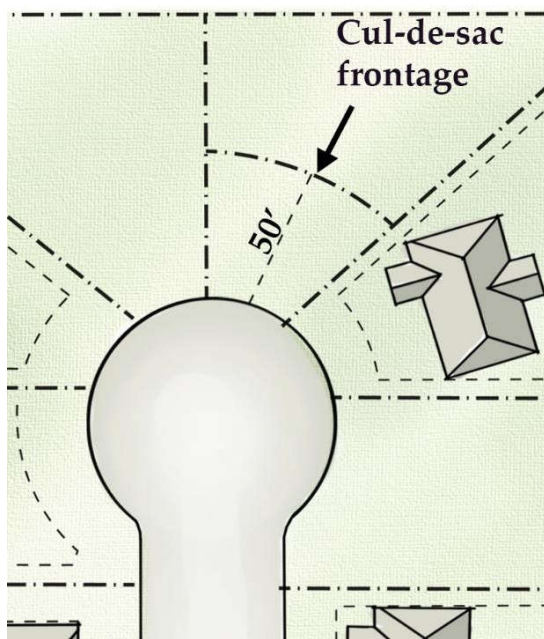
8-5-7: Improvements

- A. **Owner's Responsibility.** The owner shall complete the improvements required by this Section and any additional improvements required as a condition of approval.
- B. **Monument Requirements.** The owner shall comply with the requirements of Idaho Code Title 50, Chapter 13 Plats and Vacations Sections 50-1302 (Duty to File), 50-1303 (Survey-Monuments-Accuracy), Title 54, Chapter 12 Engineers and Surveyors, Section 54-1227 (Surveys-Authority and Duties of Professional Land Surveyors and Professional Engineers), and Title 55, Chapter 16 Corner Perpetuation and Filing, Section 55-1608 (Professional Land Surveyor to Establish or Rehabilitate Monuments).
- C. **Streets and other Improvements.** The owner shall fulfill the following requirements (as applicable) before the final plat is signed:
 1. Public streets shall be accepted by the Ada County Highway District.
 2. Approved private roads shall be completed and comply with the requirements in this Title.
 3. All new developments shall have adequate sewage facilities as provided for in Section 8-3-5 or the plat shall have a sanitary restriction approved by the appropriate health authority.
 4. Stormwater facilities and drainage improvements shall be constructed and approved by the County Engineer.
 5. Streetlights shall comply with the lighting regulations established in this Title.
- D. **Surety and Surety Agreement.** See Section 8-3-5.

8-5-8: Lots

- A. Generally.** Except as otherwise permitted by this Code, every building shall be located on a lot.
- B. Standards.** The property size, width, depth, shape, and orientation, and the minimum structure setback lines shall be appropriate for the location of the subdivision and for the type of development and use contemplated.
1. The minimum dimensional standards for all lots shall comply with the applicable base district.
 2. Corner lots in residential zoning districts shall increase five percent (5%) above the minimum property size of the applicable base district to permit appropriate front and street side setbacks.
 3. For a distance of fifty feet (50'), side property lines originating at the front of the lot shall be within twenty degrees (20°) of right angles or radial to the street providing access.
 4. Through lots shall be avoided except to separate developments from arterial streets or to overcome topographic restrictions.
 - a. A screening easement or common area lot having a minimum width of ten feet (10') shall be provided along the arterial streets.
 - b. If unavoidable, one of the frontages shall be restricted from access.
 5. Frontage for lots on a cul-de-sac turnaround is measured fifty feet (50') back from the front property line along an arc parallel to the right of way of the cul-de-sac (see Figure 8-5-8-1 below).

Figure 8-5-8-1 Cul-de-sac frontage



6. Frontage for lots on a knuckle shall be measured fifty feet (50') back from the front property line along the arc parallel to the right of way of the knuckle. See Figure 8-5-8-1 Cul-de-sac frontage.

8-5-9: Watercourses

A. Generally

1. There shall be a minimum structural setback of thirty feet (30') from the normal high-water line of all watercourses, whether covered or uncovered.
2. For open watercourses, normal high-water line shall be as determined by a licensed surveyor or engineer.

B. Requirements. Only when required by the Board shall watercourses be covered or fenced.

1. Proposed fences shall comply with Section 8-3-6.
2. Proposed fences in a designated flood hazard area shall comply with Section 8-2-28.
3. Unless otherwise specified by this Title, fences shall be a six-foot (6') barrier that meets the barrier requirements for swimming pools in the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
4. Proposed covers or fences involving an irrigation distribution system shall have the prior approval of the affected irrigation district.

CHAPTER 6 PROCEDURES

SECTION:

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8-6-4:	NEIGHBORHOOD MEETINGS
8-6-5:	APPLICATION SUBMITTAL COMPLETENESS
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8-6-1: Purpose and Applicability

A. Purpose. This Chapter establishes rules for procedures, including pre-application meetings, neighborhood meetings, public notice, and public hearings. In addition, it describes the process for specific applications. The procedures have a common workflow and description, as identified in Table 8-6-1-1.

B. Applicability. This Chapter applies to any application for development approval (“applications”) in the County.

Table 8-6-1-1 Common Procedural Elements

Element	What this Means
Applicability	The type of development or situation that is subject to the process.
Initiation	This is how the application process begins, including which department or official receives the application.
Completeness	This is how Ada County determines that the application has sufficient information to be processed.
Notice	This describes the type of notice, and how it is provided.
Decision	This states who approves the application, and the type of proceeding that leads to the decision.
Required Findings	These are any specific findings of fact that pertain to the approval of an application.
Appeals	This provides a way to review an application that is approved, denied, or that have conditions with which the applicant, owner, or an affected person disagree.
Scope of Approval	This indicates what activity the application authorizes. For example, some approvals send the application to the next step in the overall process, while others authorize construction or use.

8-6-2: Development Review Summary Table

A. Generally. Table 8-6-2-1 summarizes the land use and development applications and procedures in this Zoning Ordinance and identifies the bodies that have review and decision-making responsibilities. Any application submitted jointly with another application that requires noticing and/or a public hearing shall concurrently be noticed and/or go to public hearing.

Table 8-6-2-1 Development Review Summary Table

Development Review Summary Table							
Key ✓ = Required R = Review and Recommendation D = Decision							
Application Type ↓	Pre-application Conference	Requirement Neighborhood Meeting	Noticing	Public Hearing	Director	Authority Planning & Zoning Commission	Board
Accessory Use Permit – Administrative Approval (8-6-11)			✓		D		
Alternative Compliance (8-6-12)	✓	✓	✓		D		
Appeal (8-6-13)			✓	✓			D
Area of City Impact Amendment (See Title 9)			✓	✓		R	D
Combined Preliminary & Final Plat (8-6-25 and 8-6-28)	✓	✓	✓	✓		R	D
Comprehensive Plan Land Use Map Amendment (8-6-14)	✓	✓	✓	✓		R	D
Comprehensive Plan Text Amendment (8-6-14)	✓		✓	✓		R	D
Conditional Use Permit (8-6-15)	✓	✓	✓	✓		D	
Consolidation (8-6-16)					D		
Development Agreement (8-6-17)			✓	✓		R	D
Expansion/Extension of a Nonconforming Use or Structure (8-7-2)		✓	✓		D		
Farm Development Right (8-2-5)					D		
Final Plat (8-6-25 and 8-6-27)							D
Floodplain Permit (8-6-12)					D		

Development Review Summary Table							
Key ✓ = Required R = Review and Recommendation D = Decision							
Application Type ↓	Pre-application Conference	Requirement Neighborhood Meeting	Noticing	Public Hearing	Director	Authority Planning & Zoning Commission	Board
Hillside Development Permit (8-2-30)					D		
Landscape and Screening (8-3-7)					D		
Lighting (8-3-8)					D		
Master Site Plan (8-6-19)			✓		D		
Modification/Expansion of a Master Site Plan (8-6-19)					D		
Modification/Expansion of a Conditional Use (8-6-19)			✓	✓		D	
Minor Modification/Expansion of a Conditional Use (8-6-20)					D		
One Time Division (8-6-21)						D	
Planned Community Comprehensive Plan Amendment (8-12-7)	✓	✓ (Scoping Session)	✓	✓		R	D
Planned Community Implementation Plan (8-12-8)	✓	✓ (Scoping Session)	✓	✓		R	D
Planned Unit Development (8-6-22)							
Preliminary Plat (8-6-25 and 8-6-26)	✓	✓	✓	✓		R	D
Private Road (8-3-11)			✓		D		
Property Boundary Adjustment (8-6-23)					D		
Sign Permit (8-6-24)					D		
Temporary Use Permit – Zoning Certificate Only (8-6-29)					D		
Temporary Use Permit – Administrative Approval (8-6-29)			✓		D		
Time Extension – Administrative Approval (8-6-11)					D		
Time Extension – Board Approval (8-6-11)			✓	✓			D
Vacation (8-6-30)	✓		✓	✓			D

Development Review Summary Table							
Key ✓ = Required R = Review and Recommendation D = Decision							
Application Type ↓	Pre-application Conference	Requirement Neighborhood Meeting	Noticing	Public Hearing	Director	Authority Planning & Zoning Commission	Board
Variance (8-6-31)	✓	✓	✓	✓			D
Zoning Certificate (8-6-32)					D		
Zoning Ordinance Map Amendment (8-6-33)	✓	✓	✓	✓		R	D
Zoning Ordinance Text Amendment (8-6-34)	✓	✓	✓	✓		R	D

8-6-3: Pre-Application Conference

- A. Purpose.** The purpose of a pre-application conference is to review the proposed application(s), to discuss the procedures and requirements of this Title, and to review the associated application material.
- B. Applicability.** See Table 8-6-2-1 for applications that require a pre-application conference.
- C. Requirements**
1. At least one pre-application conference with the Director is required before submitting the application.
 2. The Director and the applicant and/or owner shall attend the pre-application conference. The Ada County Engineer, Surveyor, or Building Official may also attend the pre-application conference(s).

8-6-4: Neighborhood Meetings

- A. Purpose.** The purpose of the neighborhood meeting is for the applicant and/or owner to provide an opportunity for the public to review the proposed project. Neighborhood meetings must occur in-person or virtually with Director approval.
- B. Applicability.** See Table 8-6-2-1 for applications that require a neighborhood meeting.
- C. Notice**
1. The applicant and/or owner shall provide written notice to all property owners or purchasers of record owning property within the radius required in Section 8-6-8 of the exterior boundary of the application property and to all registered neighborhood associations covering areas within the notification area.
 2. Notice of a neighborhood meeting is in addition to, and not in lieu of, mailed radius notices required by this Title. However, when notice of a neighborhood meeting is required of two hundred (200) or more property owners or purchasers of record, alternate forms of notice may be provided in accord with Section 8-6-8 of this Title.
 3. The applicant and/or owner shall send the notice at least seven (7) days before the meeting.
- D. Meeting Requirements.** Neighborhood meeting shall be held in-person and be at least

one (1) hour in length except as provided below.

1. In-Person Meetings

- a. The meeting shall occur on a:
 - 1. Weekend between ten o'clock (10:00) A.M. and seven o'clock (7:00) P.M.; or
 - 2. Weekday between six o'clock (6:00) P.M. and eight o'clock (8:00) P.M.
- b. The meeting shall not occur on a holiday, a holiday weekend, or the day before a holiday or holiday weekend.
- c. The meeting shall occur at one of the following locations:
 - 1. On the subject property;
 - 2. At the nearest available public meeting place such as a fire station, library, or community center; or
 - 3. At an office space with suitable meeting facilities if those facilities are within a one-mile radius of the nearest public meeting place.

2. Virtual Meetings

- a. The applicant and/or owner may request the Director to allow the neighborhood meeting to occur virtually. The Director may approve the request upon determining that there is good cause for holding the meeting virtually. Reasons that substantiate a good cause determination include, but are not limited to, illness of a participant, special needs of a participant, or public health orders are in effect.
- b. Notice of virtual meetings requires notices to include sufficient information so the public may attend via the remote/virtual means.
- c. The meeting shall occur on a:
 - 1. Weekend between ten o'clock (10:00) A.M. and seven o'clock (7:00) P.M.; or
 - 2. Weekday between six o'clock (6:00) P.M. and eight o'clock (8:00) P.M.
- d. The meeting shall not occur on a holiday, a holiday weekend, or the day before a holiday or holiday weekend.

E. Timing. The neighborhood meeting shall occur prior to the application submission. The neighborhood meeting shall not occur more than six (6) months prior to the application submission.

F. Disclosure. The application materials shall include a written verification of the neighborhood meeting.

8-6-5: Application Submittal Completeness

A. Application Submittal

- 1. The application is submitted when the applicant and/or owner submits the appropriate application form, the appropriate fees, and all information listed as required on the application form and applicable checklist(s) to the Development Services Department.
- 2. The application must clearly indicate compliance with the applicable development

standards. A request for a variance or modification to certain standards shall also indicate the application's degree of noncompliance.

- B. Initiation.** The Director shall review and process complete applications. The Director will not review or process incomplete applications.
- C. Complete Determination.** An application that is determined complete is processed using the procedures established in this Chapter.
- D. Incomplete Determination.** If an application is determined incomplete, the Director shall provide notice to the applicant and/or owner along with an explanation of the application's deficiencies. No further processing of an incomplete application will occur until the deficiencies are corrected in a future re-submittal.
- E. Additional Information.** The County will receive any supplemental technical reports and special studies that are submitted after the original application is filed at least thirty (30) days prior to the first application hearing. The County may postpone and reschedule a hearing or approval deadline if those reports and studies are submitted less than thirty (30) days prior to a hearing. Copies of additional materials are delivered to all reviewers who received the original application packet.

8-6-6: Director Review

- A. Review.** Once an application is determined complete, the Director will review all necessary application materials to verify that the application complies with the applicable regulations established in this Zoning Ordinance and any other applicable ordinances and codes.
- B. Decision.** Following the submission of an application, the Director will act upon the application within sixty (60) days. Failure of the Director to act upon an application is considered a denial or recommendation of denial of the application.

8-6-7: Common Decision Requirements

A. Generally

1. All applications shall comply with all applicable standards in this Zoning Ordinance.
2. The decision-making body may impose conditions reasonably calculated to achieve or maintain compliance with all applicable criteria.
3. The decision-making body may incorporate or require, as part of a condition of approval, a written agreement between the applicant and/or owner and the County that enforces the conditions.

B. Default Criteria

1. **Generally.** Unless otherwise specified, County review and decision-making bodies shall review all development applications submitted pursuant to this Chapter for compliance with the general review criteria stated below. The application may also be subject to additional review criteria specific to the type of application, as stated below. If there is a conflict between the general review criteria in this Section and the specific review criteria in Chapters 2 – 5, the specific review criteria controls.
2. **Prior Approvals.** The application shall comply with the terms and conditions of any currently effective prior plan or plat approval. This includes an approved phasing plan

for development and installation of public improvements and amenities.

3. **Consideration of the Comprehensive Plan and Other Applicable Plans.** The application shall consider the Comprehensive Plan and any applicable development policy plan. The decision-making authority:
 - a. Shall weigh competing plan goals, policies, and strategies; and
 - b. May approve an application that provides a public benefit even if the development is contrary to some of the goals, policies, or strategies in the Comprehensive Plan or other applicable plans.
4. **Compliance with Development and Use Standards.** The application shall comply with all applicable standards, unless the standard is lawfully modified, varied, or waived.
5. **Compliance with Other Applicable Regulations.** The proposed development shall comply with all other County regulations and all applicable regulations, standards, requirements, or plans of the federal or state governments and other relevant jurisdictions. This includes wetlands, water quality, erosion control, and wastewater regulations.
6. **Compliance with Interlocal Agreements.** The proposed development shall comply with any adopted interlocal agreements and meet the terms and conditions of any interlocal agreements incorporated by reference into this Zoning Ordinance.
7. **Compliance with Utility, Service, and Improvement Standards.** The proposed development shall comply with Federal, State, service district, County and other regulatory authority standards, and design/construction specifications for roads, access, drainage, water, sewer, schools, emergency/fire protection, and similar standards.
8. **Phasing Plan.** If the application involves phases, each phase of the development shall contain all of the required streets, utilities, landscaping, dedicated open space, and other improvements that are required to comply with the project's cumulative development to date, and shall not depend upon subsequent phases for those improvements.

C. Substantial Compliance

1. The decision-making body may approve an applicable permit or plan subject to Chapter 6 if it substantially complies with the applicable approval criteria.
2. Unless a specific permit or process establishes different criteria, a permit or plan substantially complies with the applicable approval criteria if the proposed use or development does not:
 - a. Exceed any dimensional or numerical criteria by more than twenty-five percent (25%);
 - b. Alter the basic relationship of the proposed development to adjacent property;
 - c. Change the uses permitted;
 - d. Increase the maximum density, floor area ratio, or height;
 - e. Decrease the amount of required off street parking;

- f. Reduce the minimum yards required at the boundary of the site.
 - g. Increase the number of buildable lots; or
 - h. Decrease dedicated open space acreage.
3. Deviations greater than twenty-five percent (25%) of any dimensional standard are not considered substantial compliance, unless required by a public highway agency, public utility, or federal or state agency.
 4. If the number of buildable lots increases or there is an overall reduction in the amount of open space, the final plat is not in substantial compliance with the preliminary plat. If the Director determines there is a substantial difference in the final plat versus the approved preliminary plat or conditions were not met, the Director may recommend the Board require the submittal of a new preliminary plat.

D. Decision Requirements by Decision Making Body

1. Director

- a. The Director may require conditions of approval that are deemed necessary to protect the public health, safety, and welfare and prevent undue adverse impacts on surrounding properties.
- b. The Director shall provide the applicant and/or owner written findings of fact and conclusions of law in accord with Idaho Code Sections 67-6519 and 67-6535 stating the reasons for the decision reached. All conditions of approval shall be attached to the written decision.

2. The Commission

- a. The Commission may require or recommend conditions of approval that it deems necessary to protect the public health, safety, and welfare and/or to prevent undue adverse impacts on surrounding properties.
- b. The Commission shall provide the applicant and/or owner written findings of fact and conclusions of law in accord with Idaho Code Sections 67-6519 and 67-6535 stating the reasons for the decision or recommendation reached. Conditions of approval shall be attached to the written decision or recommendation. For applications where the Commission is acting as a recommending body, the Commission shall forward their recommendation to the Board.
- c. For applications where a decision or recommendation is required by this Title, the Commission shall file a written report with the clerk of the Board stating the findings and action taken by the Commission. Such report shall be filed no later than ten (10) days after the written decision or recommendation.

3. The Board

- a. The Board may require conditions of approval that it deems necessary to protect the public health, safety, and welfare and/or to prevent undue adverse impacts on surrounding properties. This regulation shall not apply to applications for comprehensive plan amendments or zoning ordinance amendments.
- b. The Board shall provide the applicant and/or owner written findings of fact and

conclusions of law in accord with Idaho Code Sections 67-6519 and 67-6535 stating the reasons for the decision. Conditions of approval, if any, shall be attached to the written decision.

- c. The Board shall adopt resolutions adopting the amendments to the comprehensive plan.
- d. The Board shall adopt zoning ordinance amendments and within thirty (30) days, publish a summary of the ordinance in the official newspaper of general circulation in the County.

4. Hearings Examiner

- a. The Hearings Examiner may require or recommend conditions of approval that it deems necessary to protect the public health, safety, and welfare and/or to prevent undue adverse impacts on surrounding properties.
- b. The Hearings Examiner shall provide the applicant and/or owner written findings of fact and conclusions of law in accord with Idaho Code Sections 67-6519 and 67-6535 stating the reasons for the decision or recommendation reached. Conditions of approval shall be attached to the written decision or recommendation. For applications where the Hearings Examiner is acting as a recommending body, the Hearings Examiner shall forward their recommendation to the Board.
- c. For applications where a decision or recommendation is required by this Title, the Hearings Examiner shall file a written report with the clerk of the Board stating the findings and action taken by the Hearings Examiner. Such report shall be filed no later than ten (10) days after the written decision or recommendation.

8-6-8: Notice

A. Agencies, Political Subdivisions, and Property Owners Notice

- 1. The Director shall send a summary of development applications that require public notice to adjacent property owners, applicable agencies, and political subdivisions as determined by the Director. The notice is sent at least fifteen (15) days prior to the public hearing (See Table 8-6-2-1).
- 2. The Director shall send a summary of petitions for comprehensive plan amendments and applications for zoning ordinance amendments to adjacent property owners, applicable agencies, and political subdivisions as referenced in Idaho Code Section 67-6509(a). The notice is sent at least fifteen (15) days prior to the public hearing.
- 3. Noticing for applications within an area of city impact follow Title 9 of this Code.
- 4. Notice shall also be given to a pipeline company operating any existing interstate natural gas transmission pipeline or interstate petroleum products pipeline, as recognized by the pipeline and hazardous materials safety administration, with a center point within one thousand feet (1,000') of the external boundaries of land being considered for a development application, provided that the pipeline company is in compliance with Section 62-1104, Idaho Code.

B. Public Notice

1. **Legal Notice.** At least fifteen (15) days prior to the public hearing, the Director shall publish a notice of the time and place and a summary of the application in the official newspaper of general circulation in the County.
2. **Site Notice.** At least ten (10) days prior to the public hearing, the applicant and/or owner shall post a notice on the property, which is the subject of the application, except for zoning ordinance text amendments or comprehensive plan amendments. The notice shall comply with the sign posting requirements established in this Section.
3. **Radius Notice.** At least seven (7) days prior to the public hearing, the Director shall send a notice of the time and place, and a summary of the application to property owners or purchasers of record (as listed in the current records of Ada County) owning property within three hundred feet (300') of the external boundaries of the property upon which the application is considered. The Director may send notices to property owners or purchasers of record whose properties are farther than the required minimum radius.
 - a. The following applications require notice within one thousand feet (1,000') of the property being considered:
 1. Any application located in a rural district.
 2. Any application for the following uses:
 - a. Adult Entertainment Establishment
 - b. Airport (Public Ownership)
 - c. Bar, Brewpub, or Nightclub
 - d. Distributed Power Facility, Wind Rooftop
 - e. Explosive Manufacturing or Storage
 - f. Flammable Substance Storage
 - g. Foundry
 - h. Junkyard or Automobile Wrecking Yard
 - i. Manufacture or Processing of Hazardous Chemicals or Gases
 - j. Meatpacking/Slaughterhouse Facility
 - k. Pit, Mine, or Quarry Requiring Administrative or Conditional Use Approval
 - l. Processing Plant for Agricultural and Dairy Products
 - m. Public or Quasi-Public Use, Public or Private Correctional Facility
 - n. Racetrack
 - o. Sanitary Landfill, Restricted
 - p. Sawmill or Planing Mill
 - q. Soil or Water Remediation
 - r. Tannery
 - s. Tower or Antenna Structure, Commercial
 - t. Vehicle Impound Yard
 - b. The following uses require notice within two thousand six hundred forty feet (2,640') of the property being considered:
 1. Centralized Power Facility
 2. Distributed Power Facility, Wind Freestanding Tower

3. Livestock Confinement Facilities with Three Hundred One (301) or More Animal Units
- c. Requests for exceptions to height limitations proposed as part of a conditional use application require compliance with the following additional notification distances along with any additional area that may be substantially impacted as determined by the Commission:
 1. Notice to all property owners or purchasers of record within one thousand two hundred feet (1,200') is required if any proposed architectural feature and/or structure height is greater than one hundred feet (100') and less than four hundred feet (400').
 2. If the proposed architectural feature and/or structure height is four hundred feet (400') or greater, notice to all property owners and purchasers of record within five thousand two hundred eighty feet (5,280') is required.
 3. If this subsection applies, the notice shall identify the feature location and proposed height.

4. Alternate Forms of Notice

- a. When notice is required of two hundred (200) or more property owners or purchasers of record, alternate forms of notice may be provided as follows:
 1. Instead of mailed notice, the County may publish one additional notice of the time and place of the hearing and summary of the proposal in a newspaper of general circulation within the County, at least seven (7) days prior to the hearing.
 2. At least ten (10) days prior to the hearing, the applicant and/or owner shall post a hearing notice on the property following the sign posting requirements of this Section.
 3. At least seven (7) days prior to the hearing, the County shall make available a notice to other newspapers, radio, and television stations servicing the County for use as a public service announcement.

5. **Public Service Announcement.** For amendments to this Title and the Comprehensive Plan, the Director shall issue a notice to other newspapers and radio and television stations serving the jurisdiction for use as a public service announcement prior to the public hearing.

6. Sign Posting Requirements

- a. **Posting of Hearing Notice on Property.** At least ten (10) days prior to the scheduled Ada County Planning and Zoning Commission and/or the Board of Ada County Commissioners hearing(s), the applicant and/or owner shall post a sign containing the notice of hearing of the application on the property under consideration. The posting of the property must comply with the following requirements:
 1. **Sign Requirements.** All installed signs shall comply with the following standards:

a. **Number of Signs**

- i. **General Standards.** One sign is posted on the subject property to be visible from each roadway that is adjacent to it, excluding Interstate 84. If the property being considered has roadway frontage of one thousand two hundred fifty feet (1,250') or more, a sign is placed at each end of the property roadway frontage.
- ii. **Standards For Electric Transmission Line Corridors/Substations.** For electric transmission line corridors running parallel to a roadway, a sign is posted at each end of the corridor along the roadway frontage and at each arterial intersection. For electric transmission line corridors not running parallel to a roadway, signs are posted on both sides of the roadway where the corridor intersects a roadway. For electric substations, signs are posted on site.

- b. **Placement.** Where the property fronts an intersection of two (2) roadways, then the sign(s) is not posted in the clear vision triangle as set forth in this Title. The sign(s) is located on the property, outside of the public right of way. If the sign(s) cannot be placed on the property and still be clearly visible, the sign(s) may be placed within the right of way if the applicant and/or owner can obtain the consent of the owner of the right of way. For an appeal by a person (other than the original applicant and/or owner) of an administrative or Commission decision, the appellant may place the sign on the right of way with the permission of the owner of the right of way.

c. **Size and Materials**

- i. The sign(s) shall consist of four-foot by four-foot (4' x 4') plywood or other hard surface mounted on two (2) four-inch by four-inch (4" x 4") posts or attached to another Director approved support.
 - ii. For an application for a subdivision plat, variance, rezone, or vacation for property less than three (3) acres in size, any application where the applicant and/or owner is a federal, state, county or municipal government, a utility company or corporation under the jurisdiction of the Idaho Public Utilities Commission, or an appeal of an administrative or a Commission decision to the Board, the sign(s) may consist of eleven-inch by seventeen-inch (11" x 17") yellow laminated paper or similar material mounted to a rigid surface of equal size and attached to a Director approved support.
 - iii. The bottom of the sign shall lie at least three feet (3') above the grade elevation at the base of the sign structure or street elevation to which the sign(s) is oriented, whichever is higher.
- d. **Wordings.** The following shall be centered at the top of the sign(s): "ADA COUNTY PUBLIC HEARING NOTICE." In addition, each sign will state whether it is for the Ada County Planning and Zoning Commission or the Board of Ada County Commissioners, the date, time and address of the hearing location, a summary of the proposal to be considered, the property

size and location of the development, the name of the applicant, project number, planner name and phone number. Each four-foot by four-foot (4' x 4') sign shall be white on both sides and the letters shall be black and appear on both sides. An example of the required sign specification is set forth in Table 8-6-8-1 Notice Sign Specifications with the letter size required for a four-foot by four-foot (4' x 4') sign:

Table 8-6-8-1 Notice Sign Specifications

Notice Sign Specifications	
Size	Required Information
6 inches	ADA COUNTY PUBLIC HEARING NOTICE
2 inches	Ada County Planning and Zoning Commission
1.5 inches	WHEN: ADA COUNTY will hold a public hearing on September 28, 2008, at 6:00 p.m. in the Commissioners Main Hearing Room #1235, on the first floor, 200 W. Front Street, Boise, ID.
1.5 inches	PURPOSE: A Preliminary Plat for (You-Name-It-Subdivision) to include 28 residential lots and 4 common lots, a Zoning Ordinance Map Amendment from Southwest Community Residential (RSW) District to Medium Low Density (R4) District, a Property Boundary Adjustment, and a Development Agreement.
1.5 inches	PROPERTY SIZE/LOCATION: The property contains approximately 14.50 acres and is located on the south side of W. Any Where Drive, approximately 1/2 mile south of E. You Tell Us Road, Boise, ID; Section 26, T. 3N., R. 1E.
1.5 inches	APPLICATION BY: Average citizen, USA, Inc.
1.5 inches	PROJECT NUMBER/PLANNER NAME/PLANNER PHONE NUMBER: 200801123-S-ZC-PBA-DA/Jane Doe/287-0000.

- e. **Separation Requirements from Utility Power Lines.** Signs shall maintain horizontal and vertical clearance of all overhead electrical conductors in accordance with national electrical safety code specifications, as reviewed and determined by the local power company. Applicants and/or owners are required to contact the local electric company before erecting a sign nearer than twenty-five feet (25') to electric power lines. No sign shall be placed within a power line easement without approval of the holder of the easement.
- f. **Sign Maintenance and Repair.** All signs shall maintain a state of good appearance, security, safety and repair during the hearing process.
- g. **Proof of Posting.** The applicant and/or owner shall submit a certification of

sign posting and dated photograph of each sign(s) posted to the Director no later than seven (7) days prior to the public hearing. The Development Services Department shall provide the certification form, which shall contain all the required information. The hearing may be tabled if the certification is not filed in a timely manner.

- h. **Sign Removal.** No later than three (3) days after the applicant and/or owner receives a final decision on the application, the sign(s) must be removed. Failure to remove signs shall be a violation of this Title and subject to the penalties of this Title.

8-6-9: Public Meetings and Hearings

- A. **Purpose.** This Section provides a procedure by which the Board or the Commission shall conduct hearings.

B. Planning and Zoning Commission Hearings

1. Generally

- a. The Commission shall conduct the public hearing in accord with its adopted bylaws.
 - b. The Commission may continue the hearing if it determines in its discretion that additional hearings are necessary.
 - c. The Commission will hold a hearing on each submitted application for which a hearing is required within ninety (90) days (or one hundred twenty [120] days for planned community applications) after application submission.
 - d. The Commission will issue a decision or recommendation, as is applicable, no later than one hundred eighty (180) days (or two hundred forty [240] days for planned community applications); and one hundred fifty (150) days for the siting of a tower or antenna structure, after the date of the application submission.
 - e. Failure of the Commission to issue a decision or recommendation within the time periods allowed in this Chapter is considered a denial or a recommendation of denial of the application. However, the Commission and applicant may mutually agree in writing to extend the time periods for a decision to be made.
- 2. **Planned Communities.** The Commission shall not conduct a public hearing on a planned community implementation plan until the Board has approved the planned community subarea comprehensive plan. The period for issuing a decision described in Section 8-6-6 of this Section does not commence until the Board approves the planned community subarea comprehensive plan.
 - 3. Public notice pursuant to Section 8-6-8 of this Chapter is required prior to the public hearing.

C. Board Hearings

- 1. The Board will hold a hearing within ninety (90) days after application submission or ninety (90) days after the Commission makes a recommendation (if applicable).
- 2. For planned community applications for which the Board must hold a hearing, the

Board will hold a hearing no later than one hundred twenty (120) days after the date the Commission makes a recommendation. The Board will not hold a hearing on a planned community implementation plan until the Board approves the planned community subarea comprehensive plan.

3. Public notice shall be provided as set forth in Section 8-6-8 of this Chapter prior to the public hearing.
4. Following the public hearing, if the Board makes a material change to a comprehensive plan amendment application or zoning ordinance amendment application, further notice and hearing shall be provided pursuant to Section 8-6-8 of this Chapter, and with applicable agreements in Title 9 of the County Code.
5. The Board may continue the hearing if it determines in its discretion that additional hearings are necessary.

D. Hearings Examiner

1. For those applications for which a hearing examiner may be used, the hearings examiner shall hold a hearing within ninety (90) days after an application is submitted to the Director.
 - a. Public notice shall be provided as set forth in Section 8-6-8 of this Chapter prior to the public hearing.
 - b. The hearing examiner may continue the hearing if it determines in its discretion that additional hearings are necessary.
2. **Action.** The hearing examiner shall issue a decision or recommendation, as applicable, no later than one hundred eighty (180) days after the date the application was submitted to the Director. Failure of the hearing examiner to issue a decision or recommendation within the time periods allowed in this Section is deemed a denial or a recommendation of denial of the application.
3. **Decision.** The hearings examiner shall provide the applicant and/or owner a written decision in accordance with Idaho Code Sections 67-6520 and 67-6535 stating the reasons for the decision. Conditions of approval, if any, shall be attached to the written decision.

E. Conduct of Hearing. Hearings before the Board, Commission, or the Hearing Examiner shall generally conform to the following procedure:

1. **Generally.** The Board, Commission, or the Hearing Examiner may require any person to be sworn in before testifying at a hearing. The Board, Commission, or the Hearing Examiner may place a time limit on verbal testimony. If there is a time limitation, the limitation is announced at the beginning of the hearing.
2. **Overview of the Application.** Hearings before the Board, Commission, or the Hearing Examiner shall commence with a brief overview from staff and staff's submission of the written report to the Board, Commission, or the Hearing Examiner.
3. **Applicant/Appellant Presentation of Application.** The applicant/appellant shall present its application and is allowed an opportunity to present testimony, documents, and other evidence which supports the application.

4. **Public Testimony.** The Board, Commission, or Hearings Examiner shall take comments from the public. Those providing public testimony have an opportunity to present testimony, documents, or other evidence. The Board, Commission, or Hearings Examiner may alternate between those supporting and those opposing a particular application. The public and/or staff may be questioned at any time during the public hearing process.
5. **Applicant/Appellant Rebuttal.** The applicant/appellant is allowed a rebuttal opportunity. This rebuttal is limited to responding to testimony, documents, or other evidence provided during the public testimony.
6. **Conclusion of the Hearing.** At the conclusion of the hearing, the Board, Commission, or Hearings Examiner shall close the record prior to its deliberations. If the Board, Commission, or Hearings Examiner determines additional evidence is required, it may proceed as follows:
 - a. Close the record except for allowing the submission of specifically requested information;
 - b. Leave the entire record open for the submission of additional evidence to a date certain; or
 - c. Continue the hearing to a date certain for the purpose of receiving additional evidence and conducting further proceedings as may be advisable.
7. **Close Record.** After the Board, Commission, or Hearings Examiner closes the record and begins its deliberation, no further comments or testimony may be taken from the applicant/appellant, staff, or the public.

F. Record of the Public Hearing

1. The staff report, any documents, and/or comments submitted by the close of business on the Thursday before the hearing date by the applicant/appellant and the public, and all testimony given at the hearing automatically become part of the record.
2. Any documents submitted as part of testimony also become part of the public hearing record.

G. Decision or Recommendation from the Public Hearing. When the record is closed, the Board, Commission, or Hearings Examiner shall take the matter under advisement for the purpose of deliberating toward a decision or recommendation based on the record. After deliberating, the Board, Commission, or Hearings Examiner may then immediately render a written decision or recommendation or may continue the matter to a date and time certain for further deliberation and decision or recommendation.

H. Request for Reconsideration of Decision

1. Every applicant or affected person seeking judicial review of the Board's final decision must first submit to the Director an application and the fee as set forth in this Title requesting reconsideration of the Board's decision. The request must specify deficiencies in the decision and must be submitted within fourteen (14) days of the date of the decision. The deficiencies identified must be based on the record and not based on information that is not part of the record.

2. The Board will consider the request for reconsideration at a scheduled open business meeting and determine whether to grant or deny the request for reconsideration of its decision. If the Board grants reconsideration of its decision in whole or in part, the Board will conduct a scheduled public hearing on the specific deficiencies identified by the applicant or affected person and to allow interested persons an opportunity to be heard.
3. Notice of a public hearing concerning a request for reconsideration includes the following:
 - a. **Notice to Agencies and Political Subdivisions.** At least fifteen (15) days prior to the public hearing, the Director shall send notice to all political subdivisions providing services with the planning jurisdiction, including school districts.
 - b. **Legal Notice.** At least fifteen (15) days prior to the public hearing, the Director shall publish a notice of the time and place in the official newspaper or paper of general circulation in the County.
 - c. **Radius Notice.** Radius notice follows the same manner as originally provided on the application.
4. If the Board grants the request to hold a hearing on the reconsideration, it must occur within sixty (60) days of receipt of the request for reconsideration. If the Board fails to timely decide, the request for reconsideration is deemed denied.
5. Following the hearing on the reconsideration, the Board may affirm, reverse, or modify its prior decision and shall provide a written decision to the applicant and the affected person(s).

8-6-10: Time Extension

- A. **Applicability.** This Section applies to an extension of the effective time period for an approved application, or an extension of time to comply with permit conditions for an application.
- B. **Initiation.** Applications subject to this Section are submitted to the Director on forms provided by the Development Services Department.
- C. **Contents.** The application shall include a letter describing the reasons for the time extension request. These reasons may include:
 1. Current and/or forecasted economic conditions that make it impracticable to finish the development within the time allotted; or
 2. Delays that make it impracticable to meet the conditions of approval and/or development requirements within the time allotted.
- D. **Timing.** A filed application must occur prior to the expiration date of the development approval or previously granted time extension.
- E. **Eligible Time Extensions**
 1. A development application is only eligible to apply for and receive three (3) time extensions (one [1] administratively granted and two [2] granted by the Board). An application for a time extension must occur prior to the expiration of a granted time

extension.

2. The first-time extension application is administrative. An administratively granted time extension is valid for one (1) year from the date of the original development application expiration date.
3. The second time extension application requires a public hearing in front of the Board. The public hearing shall comply with the notice and hearing procedures provided under Idaho Code Section 67-6509. The Board may grant a time extension for any period up to two (2) years from the administratively granted time extension expiration date. The Board may amend, delete, and/or add conditions of approval/development requirements as necessary to grant a time extension.
4. The third time extension application requires a public hearing in front of the Board. The public hearing shall comply with the notice and hearing procedures provided under Idaho Code Section 67-6509. The Board may grant a time extension for any period up to two (2) years from the second Board time extension expiration date. The Board may amend, delete, and/or add conditions of approval/development requirements as necessary to grant a third time extension.

F. Appeals. If time extension is granted and an appeal of the application is pending, the time extension is tolled until final resolution of that appeal.

G. Required Findings. The Director or Board shall make the following findings to grant a time extension:

1. The application was submitted in a timely manner; and
2. The application includes reasons that justify the granting of the time extension.

8-6-11: Accessory Uses

A. Purpose: This Section establishes a process for accessory uses and structures on a property.

B. Applicability. All properties within the County may apply for an accessory use permit, as permitted within the applicable zoning district.

C. Initiation. An accessory use permit application shall be submitted to the Director.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

1. The Director shall apply the specific use standards listed in Section 8-4-2 of this Chapter and the findings listed in subsection H of this Section to review the accessory use.
2. The applicant and/or owner shall have one (1) year to obtain all necessary permits and obtain a zoning certificate.
3. The Director shall determine that all conditions of approval have been met and that the accessory use is in conformance with this Section before a zoning certificate is issued.

G. Standards. See Section 8-4-2.

H. Required Findings

1. The proposed use shall not be detrimental to the public health, safety, or welfare. The proposed use shall not adversely impact the health and safety of surrounding residents, nor shall it create undue adverse impacts on surrounding properties;
2. The proposed use is consistent with the applicable comprehensive plan;
3. The proposed use complies with the purpose statement of the applicable base district and with the specific use standards as set forth in this Section and Section 8-4-2;
4. The proposed use complies with the dimensional standards of the applicable base district;
5. The proposed use complies with all applicable County ordinances;
6. The proposed use complies with all applicable State and Federal regulations;
7. The proposed use and facilities shall not adversely affect or conflict with abutting uses or impede the normal development of surrounding property;
8. Adequate public and private facilities such as utilities, landscaping, parking spaces, and traffic circulation measures are, or shall be, provided for the proposed use;
9. For private tower structures, the proposed tower complies with any applicable Federal Communications Commission decisions and regulations;
10. For signs, the size, characteristics, location, number of signs, and the sum of the area of all building and freestanding signs on the property conforms to the standards specified in Section 8-3-12.

I. Appeals. See Section 8-6-13.

J. Scope of Approval. An accessory use permit does not authorize the maintenance of an unlawful use or structure and does not constitute a defense in an action to abate an unlawful use or structure. The Ada County Building Code may require a building permit (see Section 7-2-3 of Ada County Code and the adopted building code).

8-6-12: Alternative Compliance

A. Purpose. The purpose of this process is to provide for alternative means in which to meet certain development regulations when explicit compliance is not feasible, or the alternative means is superior to what is required. This Section encourages creative solutions to land use problems. The County recognizes that some specific requirements of this Title do not anticipate all possible situations. Further, the County recognizes that there may be land use proposals that conform to the purpose, intent, and objectives of the regulations in this Title but were not anticipated in the specific regulations. This Section sets forth an alternative method of compliance in the event of these situations.

B. Applicability

1. Alternative compliance allows for relief from the following specific requirements set forth in this Title:
 - a. Base and Overlay District Dimensional Standards (Chapter 2) of no more than

- twenty-five percent (25%) deviation;
 - b. Development Standards (Chapter 3);
 - c. Use Standards (Chapter 4);
 - d. Subdivision Standards (Chapter 5); and
 - e. Master Site Plan Standards (Section 8-6-19).
2. Requests for alternative compliance are allowed only if at least one (1) of the following conditions exist:
- a. Topography, soil, vegetation, or other site conditions are such that full compliance is impossible or impractical;
 - b. The site involves space limitations or an unusually shaped lot;
 - c. Safety considerations make alternative compliance desirable;
 - d. Other regulatory agencies or departments having jurisdiction require standards that conflict with the requirements of this Title;
 - e. Additional environmental quality improvements would result from alternative compliance.

C. Initiation

- 1. Alternative compliance applications shall be submitted to the Director.
- 2. An application for alternative compliance shall be submitted upon a determination that a project does not comply with specific provisions of this Title.
- 3. The application shall specify:
 - a. The specific requirements that are proposed to be modified;
 - b. The reasons for the modification; and
 - c. A demonstration of how the alternative means for compliance meets the requirements' intended purpose.

D. Completeness. See 8-6-5.

E. Notice. At least fifteen (15) days before rendering a decision, the Director shall provide written notice to all applicable agencies, political subdivisions, and property owners in accordance with Section 8-6-8.

F. Decision. The Director shall apply the standards listed in subsection B of this Section and the findings listed in subsection G of this Section to review the request for alternative compliance.

G. Required Findings. To grant approval for an alternative compliance application, the Director shall find that:

- 1. Strict adherence or application of the requirements are not feasible; or
- 2. The alternative compliance provides an equal or superior means for meeting the requirements; and

3. The alternative compliance is not materially detrimental to the public welfare and does not impair the intended uses and character of surrounding properties.

H. Appeals. See Section 8-6-13.

- I. Scope of Approval.** Alternative compliance does not establish precedent for acceptance in other cases.

8-6-13: Appeal

- A. Application.** Any decision or action may be appealed as set forth in this Chapter by an affected person as defined in Idaho Code Section 67-6521(1)(a).

1. A person aggrieved by a final decision or action within the jurisdiction and authority of the Director (see 8-6-6D.1), the Hearings Examiner (see 8-6-6D.4), or the Commission (see 8-6-6D.2) may appeal to the Board.
2. A person aggrieved by the Board's final decision or action may seek judicial review as provided by Idaho Code Sections 67-6521(d) and 67-6535.

B. Appeal Procedures

1. Appeals of written decisions shall be filed with the Director within fifteen (15) days after the date of the written decision. Untimely appeals are not accepted. An application and fees, as set forth in Section 8-6-5, are submitted to the Director on forms provided by the Development Services Department.
2. The Director shall schedule, and the Board shall hold a public hearing and make a decision pursuant to the procedures as set forth in this Chapter.
3. At the public hearing, the Board will consider the order, requirement, permit, decision, or determination of the Commission and/or Director, and any attached conditions. The Board shall also consider any additional evidence offered by the public, applicant, Director, and/or Commission.
4. The Board may affirm, reverse, modify, in whole or in part the order, requirement, permit, decision, or determination appealed from, or make or substitute any additional conditions it finds as warranted based on its deliberations.

8-6-14: Comprehensive Plan Amendment (Map or Text)

- A. Applicability.** This Section applies to any petition to amend the Comprehensive Plan.

B. Initiation

1. The Board, Planning and Zoning Commission or a public entity may propose to amend the Comprehensive Plan following the notice and public hearing procedures of this Chapter.
2. Any County resident or property owner may propose a comprehensive plan amendment to the Board.
3. Comprehensive plan amendment petitions are submitted to the Director.

- C. Completeness.** See Section 8-6-5.

- D. Notice.** See Section 8-6-8.

E. Decision

1. **Staff Review.** The Director shall review the petition and prepare and send a recommendation for the Commission's review.
2. **Commission Review.** The Commission shall review the petition and submit its recommendation to the Board:
 - a. To approve the comprehensive plan amendment;
 - b. To deny the comprehensive plan amendment; or
 - c. To approve the comprehensive plan amendment with suggested changes.
3. **Board Decision.** The Board shall make the final decision:
 - a. To approve the comprehensive plan amendment;
 - b. To deny the comprehensive plan amendment; or
 - c. To approve the comprehensive plan amendment with changes.

F. Required Findings. The Board shall make following findings to grant a comprehensive plan amendment:

1. The comprehensive plan amendment complies with applicable Idaho Code Sections 67-6508, 67-6509, and 67-6537(4); and
2. The comprehensive plan amendment is not detrimental to public health, safety, and welfare.

G. Appeals. See Section 8-6-13.

H. Scope of Approval. The approval of a comprehensive plan amendment does not directly authorize the development of land.

8-6-15: Conditional Use Permit

A. Purpose. This Section provides procedures, general conditional use standards, and required findings for various conditional uses as set forth under the base district, any applicable overlay districts, and in accord with the specific use standards of this Chapter.

B. Applicability

1. This Section applies to any use that requires conditional use approval as noted in the applicable base district or overlay district.
2. Any modification or expansion of a previously approved conditional use that would generate the need for a new master site plan review requires a new conditional use approval.
3. Upon the sale or transfer of an approved conditional use, and if the approved use requires a license to operate, the subsequent property owner or operator must provide evidence of proper licensing to the Director.

C. Initiation

1. **Generally.** A conditional use permit may be initiated by the owner of the subject property and shall be submitted to the Director.

2. Additionally

- a. The master site plan for the conditional use shall address firefighting resources. Those resources shall include proper access for firetrucks, water for fire flow and/or defensible space.
- b. A screening plan shall be submitted for any parking areas abutting a residential district. See also Section 8-3-7.
- c. The owner and/or operator shall provide evidence that any dangerous characteristics of the proposed use are eliminated or minimized so as not to create a nuisance or cause detriment to public health, safety, or welfare.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

1. **Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission's review.
2. **Commission Decision.** The Commission shall make the final decision:
 - a. To approve the conditional use permit;
 - b. To deny the conditional use permit; or
 - c. To approve the conditional use permit with conditions. The conditions may include, but not limited to, any or all of the following:
 1. Standards related to the emission of noise, vibration, and other potentially objectionable impacts.
 2. Limits on time of day for the conduct of the specified use and facility hours.
 3. The permit's exercise or lapse period.
 4. Other standards necessary to protect public health, safety, and welfare and mitigate adverse effects on surrounding property.

G. Standards. Any applicable specific use standards listed in Chapter 4 of this Title and the findings listed in subsection H below in reviewing the conditional use shall apply.

H. Required Findings. The Commission shall find the following before issuing a conditional use permit:

1. The proposed use is not detrimental to public health, safety, or welfare;
2. The proposed use does not create undue adverse impacts on surrounding properties;
3. The proposed use is consistent with the applicable comprehensive plan;
4. The proposed use complies with the purpose statement of the applicable base district and with the specific use standards as set forth in this Chapter;
5. The proposed use complies with all applicable County ordinances;
6. The proposed use complies with all applicable state and federal regulations;

7. The proposed use and facilities do not impede the normal development of surrounding property;
8. Adequate public and private facilities such as utilities, landscaping, parking spaces, and traffic circulation measures are provided for the proposed use;
9. Political subdivisions, including school districts, are able to provide services for the proposed use; and
10. If abutting or within a rural district, the proposed use shall not cause detrimental impacts to agriculture.

I. Appeals. See Section 8-6-13.

J. Scope of Approval of the Conditional Use

1. **Generally.** The approval of a conditional use permit does not authorize the development of land. Any development that occurs after the conditional use permit is approved requires additional approval, which may include subdivision review or master site development plan approval, if applicable, and building permits and certificates of occupancy.
2. **Ongoing Obligations.** The approved project shall:
 - a. Comply with all applicable approved plans and specifications,
 - b. Continuously maintain adequate housekeeping practices so as not to create a nuisance, and
 - c. Maintain sanitary practices so as not to create a public nuisance and to reduce noise and odor.
3. **Master Site Plan.** A master site plan application shall be concurrently submitted subject to the regulations of Section 8-6-19, unless specifically exempt under the regulations of that Section. The master site plan shall note any accessory buildings or facilities and any outdoor storage areas where they are reviewed as part of the conditional use.
4. **Tentative Approval**
 - a. Written documentation shall be provided indicating the conditional use has been approved by all applicable public agencies before a zoning certificate is issued.
 - b. A maximum of two (2) years are allowed to obtain all necessary permits and a zoning certificate.
 - c. The Director shall determine that all conditions of approval have been met and that the conditional use conforms with this Section before a zoning certificate is issued.
5. **Minor Modifications**
 - a. The minor modification provisions set forth for approved master site plans in Section 8-6-20 also apply to approved conditional uses.
 - b. All other modifications to an approved conditional use are considered in accordance with Section 8-6-15.

8-6-16: Consolidation

- A. Purpose.** The purpose of consolidation is to combine two (2) properties into one (1).
- B. Applicability.** This Section applies to the approval of consolidation of properties within the County.
- C. Initiation.** The application for consolidation shall be submitted to the Director.
- D. Completeness.** See Section 8-6-5.
- E. Notice.** Not applicable.
- F. Decision.** The Director shall review the consolidation application and shall:
 - 1. Approve the consolidation;
 - 2. Deny the consolidation; or
 - 3. Approve the consolidation with conditions.
- G. Required Findings.** The proposed consolidation shall result in one (1) property from two (2) properties that complies with the design and dimensional standards of this Title.
- H. Appeals.** See Section 8-6-13.
- I. Scope of Approval**
 - 1. **Generally.** Consolidation does not authorize development and is not considered a "subdivision" for purposes of this Title.
 - 2. **Tentative Approval Requirements.** Upon tentative approval of the application by the Director subject to any applicable conditions of approval and the regulations of Section 8-6-5, the following tasks shall be completed within one year:
 - a. Survey the property and before recording submit to the Director draft copies of the record of survey and resultant property description for review;
 - b. Execute and record the record of survey and necessary deed(s) with the Ada County Recorder to accomplish the consolidation as approved;
 - c. Obtain new tax parcel numbers from the Ada County assessor; and
 - d. Provide copies of the recorded record of survey, recorded deed, and the new tax parcel number to the Director.
 - 3. **Approval Letter Issuance.** The Director shall determine that all approval conditions are met, and that the consolidation conforms with this Section before issuing a final approval letter.

8-6-17: Development Agreements

- A. Purpose.** To exercise the authority granted the Board in Section 67-6511A, Idaho Code; to provide for the creation, form, recording, modification, enforcement, and termination of development agreements; and to require as a condition of a zoning ordinance map amendment approval that an owner of land make a written commitment concerning the use and/or development of that land.
- B. Applicability.** At the discretion of the Director, the owner shall enter into a development

agreement acceptable to the Board as part of receiving approval of the zoning ordinance map amendment.

C. Initiation

1. After the Commission makes a recommendation on an application for a zoning ordinance map amendment, the Director shall forward a request to the Ada County prosecuting attorney's office to create a development agreement.
2. After the Ada County prosecuting attorney's office drafts the development agreement, the prosecuting attorney's office shall return the development agreement.
3. The Director shall forward the development agreement to the owner for signature prior to signature by the Board.

D. Completeness. See Section 8-6-5. The Director's request shall include all the necessary documents pertaining to the zoning ordinance map amendment application and the creation of a development agreement, such as the legal description of the land subject to the zoning ordinance map amendment application; deed(s); preliminary plat; and any proposed conditions of approval.

E. Notice. Notice is processed as part of the zoning map amendment. No separate notice is required for the development agreement.

F. Decision. Approval of the zoning ordinance map amendment application by the Board is contingent upon the Board and owner of the land signing a mutually acceptable development agreement.

G. Required Findings. See Section 67-6511A, Idaho Code.

H. Appeals. See Section 8-6-13.

I. Scope of Approval

1. **Generally.** By signing the development agreement, the owner, and any subsequent owners, consents to having the zoning ordinance map amendment reversed, in whole or in part, upon failure to comply with the terms and/or conditions set out in the development agreement.
2. **Review And Enforcement.** The Director shall monitor the owner's compliance with the terms and/or conditions of the development agreement. The Director shall review the status of the development every two (2) years from the date the development agreement is signed. A more frequent review may be undertaken by the Director at the Director's discretion or at the request of the Board. During a review the owner, or any subsequent owner, must demonstrate that they are in compliance with the terms and/or conditions of the development agreement. If the Director determines that the terms and/or the conditions of the development agreement are not being complied with, and the lack of compliance is not immediately resolved by the owner, the Director shall recommend that the Board enforce the terms of the development agreement by modification or termination.
3. **Modification.** A development agreement may be modified, in whole or in part, as follows:

- a. **Modification In Whole or in Part for Failure to Comply with Terms and/or Conditions.** The Board may modify a development agreement and/or reverse the zoning designation of the land or any undeveloped portion of the land upon the failure of the owner or subsequent owners to comply with the terms and/or conditions of the development agreement. Prior to modifying a development agreement for failure to comply with the terms and/or conditions the owner or subsequent owners shall have a reasonable time as determined in the sole discretion of the Board to come into compliance with the terms and/or conditions. Prior to modifying a development agreement, the Board shall hold a public hearing in accordance with the notice and hearing provisions of Idaho Code Section 67-6509.
- b. **Modification By Mutual Consent.** The Board and the owner or subsequent owners of the land may mutually agree to modify a development agreement and reverse the zoning map amendment, in whole or in part. Prior to modifying the development agreement by mutual consent, the Board shall hold a public hearing in accordance with the notice and hearing procedures of Idaho Code Section 67-6509.

4. Termination

- a. **Termination For Failure to Comply with Terms and/or Conditions.** The Board may terminate a development agreement and reverse the zoning designation of the land or any undeveloped portion of the land upon the failure of the owner or subsequent owners to comply with the terms and/or conditions of the development agreement. Prior to terminating a development agreement for failure to comply with the terms and/or conditions the owner or subsequent owners shall have a reasonable time as determined by the Board to come into compliance with the terms and/or conditions. Prior to terminating the development agreement for failure to comply, the Board shall hold a public hearing in accordance with the notice and hearing procedures of Idaho Code Section 67-6509.
- b. **Termination By Mutual Consent.** The Board and the owner or subsequent owners of the land may mutually agree to terminate a development agreement and reverse the zoning map amendment, in whole or in part. Prior to terminating the development agreement by mutual consent, the Board shall hold a public hearing in accordance with the notice and hearing procedures of Idaho Code Section 67-6509.
- c. **Termination at Owner's Discretion.** The owner of land subject to a development agreement may terminate the development agreement as to any remaining undeveloped land if the Board modifies the development agreement without mutual consent. In the event the owner chooses to terminate the development agreement under these circumstances, the Board may reverse the zoning designation of any undeveloped portion of the land.
- d. **Termination When Owner Has Complied With and/or Completed All Terms and/or Conditions.** A development agreement terminates when the owner has complied with and/or completed all the terms and/or conditions of the development agreement.

8-6-18: Floodplain Development Permit. The County Floodplain Administrator issues

Floodplain Development Permits pursuant to Section 8-2-28 Flood Hazard Overlay District (FH).

8-6-19: Master Site Plan

A. Purpose. The purpose of this Section is to:

1. Promote efficient, high-quality site designs;
2. Preserve natural and scenic resources through design that is sensitive to the environment; and
3. Ensure development is consistent with the goals of the applicable comprehensive plan related to community design.

B. Applicability

1. Unless specifically exempt under subsection 2 below, a master site plan is required for the following prior to zoning certificate or building permit:
 - a. New construction, addition, or moving of a structure.
 - b. Change of use of a property or structure.
 - c. Change of occupancy of a structure as defined by the Ada County Building Code as set forth in Title 7, Chapter 2 of this code.
 - d. Minor modifications to previously approved master site plans unless specifically exempt. For the purposes of this Title, traffic, and development plans, planned development commercial site plans, planned development industrial site plans, and conditional use site plans that were approved prior to the effective date are considered master site plans.
2. Section 8-2-23 (Use Table) indicates whether a use is exempt from master site plan regulations:
3. Section 8-2-23 (Use Table) indicates whether a use requires “partial master site plan” review. A partial master site plan review is exempt from subsections F.2 (Location of Structures on the Site), F.3 (Nonvehicular Access and Internal Circulation), and F.5 (Natural Features).

C. Initiation

1. **Information Required.** The following information may be submitted at the time of application. If information is not submitted at the time of application, this may be submitted as a condition of approval. Any approval of a master site plan prior to the submission and approval of the following items is considered a tentative approval:
 - a. A landscape and screening plan subject to Section 8-3-7.
 - b. If any outdoor lighting is proposed or anticipated, a lighting plan shall be submitted subject to Section 8-3-8.
 - c. If any signs are proposed or anticipated, a sign plan shall be submitted subject to Section 8-3-12.
2. **Natural Features Analysis.** A natural features analysis shall be submitted subject to

the regulations of subsection 8-6-19G.4. A natural features analysis is not required if the entire subject property already had one completed from a previous approved master site plan.

3. **Drainage.** An increase in impervious surface area of one thousand (1,000) square feet or ten percent (10%) of the property area, whichever is less, requires a drainage study.
4. **Parking Plan.** A parking plan shall be submitted subject to the regulations of Section 8-3-10.
5. **Water Supply and Sewage Disposal.** The master site plan shall show all well locations and subsurface disposal areas for wastewater treatment systems.
6. **Supplemental Information and Modifications.** The Director, County Engineer, and/or decision-making body may require supplemental information or modifications where site planning has not sufficiently addressed the existing natural features.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

1. Staff Review

- a. Per the requirements of this subsection, the Director shall review the master site plan and shall:
 1. Approve the master site plan;
 2. Deny the master site plan;
 3. Approve the master site plan with conditions; or
 4. Refer the master site plan to the Commission for its review and final action.
- b. The applicant or an aggrieved party may appeal the Director's decision to the Board pursuant to subsection I below.

2. Authorization to Impose Conditions

- a. **Generally.** The Director, Commission, Hearing Examiner, or Board may impose conditions necessary to maintain the integrity of the County's zoning districts, to ensure the proposed use is consistent with the County's Comprehensive Plan, conforms with this Chapter, is appropriate to its location and compatible with neighboring uses, and does not cause undue traffic congestion or significant deterioration of the environment.
- b. **Conditions Supplementary.** All requirements imposed by a master site plan are in addition to and supplement this Chapter's requirements.
- c. **Authorized Conditions.** Authorized conditions include, but are not limited to:
 1. **Master Site Plan Features.** Limitations or requirements regarding the area, setbacks, open space, landscaping, buffering, lighting, fencing, signage, off-street parking, and similar master site plan features of the proposal.
 2. **Operations.** Limitations or requirements regarding the proposed use's

operating characteristics, duration, or any similar feature of the proposed use.

G. Standards. The master site plan shall meet the applicable design and dimensional standards of Chapters 2-5 of this Title. The site development (as depicted by the master site plan) shall also meet the following applicable standards:

1. Location of Structures on the Site

- a. Within a commercial base district, the proposed placement of structures, location of parking areas and pedestrian walkways, method of screening, and public entrances shall facilitate pedestrian access to abutting residential properties.
- b. Multi-family structures shall have varied setbacks within the same structure and staggered and/or reversed unit plans to provide a more varied outward appearance of the structures.
- c. Structures within a multi-family development shall have rotated, staggered, and/or reversed configurations to vary the outward appearance of the structures.

2. Nonvehicular Access and Internal Circulation

- a. Within a commercial base district, structures shall have at least one pedestrian access on each side of the structure that faces a street.
- b. For proposed uses that require ten (10) or more parking spaces (as set forth in Section of this Chapter), site development shall provide safe and well-defined pedestrian walkways from structures to each parking space, from structures to the abutting streets, and among structures on the same site.
 1. A walkway within ten feet (10') of a street shall be separated from the street shoulder by curbs, intervening vegetation, and/or swales.
 2. Where a walkway is within a parking area and abuts driving aisles or parking spaces, the walkway shall be separated by curbs, intervening vegetation, and/or wheel restraints. Where a walkway crosses a driving aisle, the crossing shall include a different paving texture and/or material or striping to indicate a pedestrian crossing.
- c. In planned unit developments and multi-family developments, the site development shall provide a safe nonvehicular circulation system including:
 1. Pedestrian and bicycle walkways that link abutting parks, schools, neighborhoods, and commercial areas to the greatest possible extent; and
 2. Trails and bicycle routes that link to abutting trail networks as designated by the APA Ridge to Rivers Pathways Plan or the applicable comprehensive plan.

3. Automobile Access and Internal Circulation

- a. The site development shall provide for safe access to and egress from roadways.
- b. Off-street parking and loading area design shall preclude vehicles from backing out into a roadway.
- c. Where delivery vehicles are anticipated, the site development shall delineate a clear route for them, with appropriate geometric design to allow the vehicles to turn

safely.

- d. The site development shall provide adequate internal circulation consistent with this Chapter.
- e. The site development shall provide an adequate design and number of parking spaces consistent with.

4. Natural Features

- a. **Hydrology.** Analysis of natural drainage patterns and water resources throughout the site including an analysis of:

- 1. Streams;
- 2. Natural drainage swales;
- 3. Ponds or lakes;
- 4. Wetlands;
- 5. Floodplain areas or other areas subject to flooding;
- 6. Poorly drained areas;
- 7. Permanent high ground water areas; and
- 8. Seasonal high ground water areas.

- b. **Soils**

- 1. Analysis of types of soils present in the site area including:
 - a. Delineation of prime agricultural soil areas; and
 - b. Aquifer recharge soil areas, unstable soils most susceptible to erosion, and soils suitable for development.
- 2. Analysis of soils is based on the Ada County soils survey (United States Department of Agriculture, Natural Resources Conservation Service).

- c. **Topography.** The application shall include:

- 1. Analysis of the site's terrain including mapping of elevations and delineation of slope areas:
 - a. Greater than twenty-five percent (25%);
 - b. Between fifteen percent (15%) and twenty-five percent (25%);
 - c. Between eight percent (8%) and fifteen percent (15%); and
 - d. Less than eight percent (8%).
- 2. Contour lines based on USGS datum of 1988 with intervals of not more than five feet (5') for properties with a general slope of greater than five percent (5%), or intervals of not more than two feet (2') for properties with a general slope of less than or equal to five percent (5%). The contour lines shall extend at least three hundred feet (300') beyond the proposed development boundary.

- d. **Vegetation.** Analysis of existing vegetation of the site including dominant tree,

plant, and ground cover species.

- e. **Sensitive Plant and Wildlife Species.** Analysis of sensitive plant and wildlife species of the site including those species listed by agencies such as the Idaho Department of Fish and Game and United States Fish and Wildlife Service.
 - f. **Historic Resources.** Analysis of existing historic resources as identified on the Ada County historic resources inventory.
 - g. **Hazardous Areas.** Location and identification of all potentially hazardous areas including:
 - 1. Land that is unsuitable for development because of flood threat;
 - 2. Poorly drained areas;
 - 3. High ground water;
 - 4. Steep slopes;
 - 5. Rock formation;
 - 6. Buried pipelines; or
 - 7. Other conditions likely to be encountered.
 - h. **Impact on Natural Features.** A written statement shall be submitted explaining how the design of the plan protects or mitigates impacts on the natural features of the site.
5. **Screening.** The site development shall provide landscaping and screening consistent with Section 8-3-7 unless otherwise exempt under Section 8-3-7-B2.
6. **Drainage.** Site development shall incorporate natural watercourses and above grade drainageways into the site design to minimize the need for culverts, pipe systems, and concrete channels.
7. **Water Supply and Sewage Disposal.**
- a. Adequate provision shall be made for water supply and sewage disposal in accordance with the regulations of this Chapter.
 - b. The master site plan shall address required firefighting resources, including proper access for firetrucks, water for fire flow, and/or defensible space by indicating or denoting those resources on the master site plan.
8. **Filling, Excavation, and Earthmoving.** Filling, excavation, and earthmoving activity shall minimize erosion and sedimentation.
- a. Building design, parking lots, and other site development elements shall fit and orient to existing topography and natural surroundings to minimize filling, excavation, and earthmoving activity.
 - b. The master site plan shall propose permanent soil erosion measures for all slopes and disturbed areas. Completed stabilization measures shall occur within fifteen (15) calendar days after final grading is completed.
 - c. Until a disturbed area is stabilized, sediment and runoff shall be trapped by the use

of debris basins, sediment basins, silt traps, or other acceptable methods.

9. Historic Features. The proposed site development shall conserve identified historic features.

10. Sensitive Plant and Animal Species. The site development shall minimize adverse impacts to sensitive plant and animal species through site design or governmental approved mitigation programs.

11. Irrigation. All development proposals shall provide documentation preserving gravity flow irrigation systems on site and downstream.

- a. The proposed development shall not modify irrigation canals, ditches, laterals, and associated rights of way without written approval of the irrigation or drainage authority and landowners affected.
- b. When property is converted from an agricultural to a nonagricultural use, a pressurized irrigation system or similarly efficient delivery system shall be provided.

12. Utilities

- a. The site layout shall place electrical, telephone, and other public utilities serving the site in a manner that is not hazardous or unsightly.
- b. All utilities shall be placed underground in a utility corridor or easement. The Director may waive this requirement if unique topographic or geological features of the site make it impractical.
- c. Transformer boxes, meters, pumping stations, and other components of the utility system located above ground shall be sited and buffered pursuant to the screening standards of Section 8-3-7 of this Chapter.

13. Maintenance

- a. Security, trash collection, and any other nuisance created on the site, shall be provided for and maintained in a neat and orderly manner.
- b. The property owner, homeowners' association, or irrigation or drainage entity (as applicable) shall maintain any proposed drainage system.

H. Required Findings. The Director shall find the following to approve the master site plan application:

- 1. The master site plan complies with this Title and the applicable comprehensive plan;
- 2. A natural features analysis has been submitted identifying constraints presented by those natural features, and the proposed development sufficiently addresses those features;
- 3. The proposed landscaping meets the requirements of this Chapter and Section 8-3-7;
- 4. The proposed parking and loading spaces meet the requirements of this Chapter and Section 8-3-10;
- 5. The proposed lighting plan meets the requirements of this Chapter and Section 8-3-8;

6. The proposed master site plan complies with the applicable base district standards, overlay district standards, and specific use standards of this Title; and
7. Adequate utilities and public services are available or provided for the proposed development, and the development would not be premature by reason of lack of utilities, transportation, schools, fire protection, or other essential services.

I. Appeals. See Section 8-6-13.

J. Scope of Approval

1. **Generally.** After the site plan is approved, the building official may issue a building permit or certificate of occupancy consistent with any conditions of site plan approval.
2. **Tentative Approval.** A maximum of two (2) years are allowed to obtain all necessary permits and a zoning certificate. The Director shall determine that all conditions of approval are met and that the master site plan conforms to this Section before a zoning certificate is issued.

8-6-20: Minor Modification of an Approved Master Site Plan

A. Applicability. The Director may approve specified minor modifications to an approved master site plan if those minor modifications were not subject to review or appealed during the original approval or at the public hearing and will not adversely impact adjacent properties. Minor modifications include the following:

1. Minor relocation of building pads for practical reasons such as road alignment, topography, or access, if the minimum setback requirements are met.
2. Increase in building square footage up to twenty-five percent (25%) if the minimum dimensional standards, off street parking and loading, landscaping and screening, sign and/or lighting requirements of this Title are met.
3. Minor modifications to an approved off-street parking plan, landscape and screening plan, sign plan, and/or outdoor lighting plan that was part of an approved master site plan, if the off-street parking and loading, landscaping and screening, sign and/or lighting requirements of this Title are met.

B. Initiation. Minor modification applications shall be submitted to the Director.

C. Completeness. See 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision. The Director shall issue a letter (an “approval letter”) stating that the minor modification has received final approval.

F. Standards. See Section 8-6-19.

G. Appeals. See Section 8-6-13.

H. Scope of Approval

1. The Director may approve minor modifications to a previously approved master site plan without notice or a public hearing.
2. Refer to Section 8-6-19 for all other modifications to an approved master site plan.

8-6-21: One-Time Division

- A. Purpose.** The regulations of this Section allow for the one-time division of a parcel into two (2) parcels without being subject to the subdivision regulations as set forth in Chapter 5 of this Title.
- B. Applicability.** These regulations apply to lots created prior to September 29, 1959, or parcels of land that were of record in the Ada County recorder's office prior to January 1, 1985 (referred to as the property of record), the boundaries of which have not changed except for at least one of the following:
1. The property of record was reduced by governmental action as specified in Section 8-3-2M;
 2. The property of record was reduced by the conveyance of property to a public utility for the purpose of constructing a public infrastructure facility; or
 3. The property of record received approval for a property boundary adjustment (see Section 8-6-23), and:
 - a. The property of record had sufficient acreage to accomplish the one-time division prior to completion of the property boundary adjustment; and
 - b. The property boundary adjustment did not diminish the size of the property of record so that it no longer has sufficient acreage to accomplish the one-time division.
- C. Initiation.** One-time division applications shall be submitted to the Director.
- D. Completeness.** See Section 8-6-5.
- E. Notice.** Not applicable.
- F. Decision**
1. The Director shall review the one-time division and shall:
 - a. Approve the one-time division;
 - b. Deny the one-time division; or
 - c. Approve the one-time division with conditions.
 2. **Tentative Approval Requirements.** Upon tentative approval of the application by the Director subject to any applicable conditions of approval and the regulations of Section 8-6-5, the following tasks shall be completed within one year:
 - a. Cause the property to be surveyed;
 - b. Before recording, submit draft copies of the record of survey and resulting parcel descriptions to the Director for review;
 - c. Execute and record the record of survey and necessary deeds with the Ada County Recorder to accomplish the one-time division as approved;
 - d. Obtain new tax parcel numbers from the Ada County assessor; and
 - e. Provide copies of the recorded record of survey, and the new tax parcel numbers to

the Director.

3. **Approval Letter Issuance.** The Director shall determine that all approval conditions are met, and that the one-time division conforms with this Section before issuing a final approval letter.

G. Required Findings

1. The Director shall find that the proposed one-time division complies with the standards in this subsection to approve the application.
2. The proposed division shall result in two (2) parcels that comply with the design and dimensional standards of this Title. However, if the property of record is diminished by governmental action, the Director may approve a reduced property size on one of the resulting parcels subject to other regulations of this Title.
3. The proposed division is not a “subdivision” as defined in this Title.

H. Appeals. See Section 8-6-13.

- I. **Scope of Approval.** A one-time division is not considered a "subdivision" for purposes of this Title.

8-6-22: Planned Unit Development

A. Purpose. The Planned Unit Development (PUD) provides a discretionary review process to permit flexibility in zoning and site standards where the application demonstrates that the proposed development standards are equivalent or superior to the base district standards and meet the intent of the Comprehensive Plan. The PUD responds to unique physical characteristics of property and its surrounding area, where more flexible zoning than achievable through a base district is desirable. This provides for creative, high-quality development incorporating well designed and integrated open space and/or recreational facilities at scales proportionate to the use; a system of circulation and access that supports multimodal forms of mobility; preservation of significant aspects of the lot, including natural features, views and/or cultural resources; building design, site design, and amenities that create a unique and more sustainable alternative to conventional development; an appropriate scale for a property owner or homeowner association to manage future maintenance responsibilities; and single or multiple land use activities organized in a comprehensive manner and designed to work together in common and in a synergistic manner to benefit both the project and the neighboring properties.

B. Applicability. This Section applies to any application to establish a PUD. The Commission may approve a PUD if:

1. The proposed project area shall lie entirely within an area of city impact.
2. The minimum project area is five (5) acres.
3. The proposed development involves at least one of the following:
 - a. A mix of uses that are not allowed as principal permitted or conditional uses in the same base district;
 - b. Any commercial or industrial development with a total building area more than one hundred thousand (100,000) square feet;

- c. Clustering of residential units away from physical constraints or hazardous areas. Examples of physical constraints include flood hazards, unstable geologic conditions, soil conditions, topography, identified high ground water areas, and other characteristics that could threaten public health and/or safety; or
- d. Deviation of dimensional standards to achieve dedicated open space and provide amenities not found in traditional subdivisions.

C. Initiation

- 1. Applications for PUDs shall be submitted to the Director. Concurrent submittal of a master site plan is required.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

- 1. **Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission's review.
- 2. **Commission Decision.** The Commission shall make the final decision:
 - a. To approve the PUD;
 - b. To deny the PUD; or
 - c. To approve the PUD with conditions. The conditions may include any or all of the following:
 - 1. Standards related to the emission of noise, vibration, and other potentially objectionable impacts.
 - 2. Limits on time of day and hours for the conduct of specified uses and facilities within the PUD.
 - 3. The permit's exercise or lapse period.
 - 4. Other standards necessary to protect public health, safety, and welfare and mitigate adverse effects on surrounding property.

G. Standards

1. General Use Standards

- a. No more than twenty percent (20%) of the total area of the planned unit development shall be designated for uses not otherwise permitted in the base district.
- b. Any applicable specific use standards listed in Chapter 4 of this Title shall apply.

2. Connectivity. An interconnected system of roadways and/or pathways shall connect all uses in a PUD.

3. Residential Density Standards

- a. **Generally.** The allowable density for residential uses is the density established by the comprehensive plan. Where the comprehensive plan does not indicate an urban

density for development, the maximum density is three (3) dwelling units per acre. The County may approve higher densities as provided in subsection b below.

- b. Density Bonus.** An increase in the average residential density may be allowed by incorporating dedicated open space or public use dedications into the planned unit development. All dedications shall be shown on the master site plan.
 1. **Additional Open Space Dedication.** For each full additional percentage point of property in dedicated open space above the minimum requirements, the average residential density may be increased by the same percentage. The maximum density for residential areas shall not exceed an additional twenty-five percent (25%) over the base density.
 2. **Public Amenity Dedications.** A density bonus may be approved for dedications of facilities or interests in real property for public amenities. The maximum density bonus shall be as set forth in Table 8-6-22-1. See subsection D regarding required findings for mandatory dedication of facilities.
 3. **Public Amenity Defined.** For the purposes of this Section, the term "public amenity" includes the following: school site, bike path, transit facility, park site, park and ride lot, and public safety facility such as police, fire, or emergency medical facilities.

Table 8-6-22-1 Density Bonus as Percent of Total Project

Area of Land Designated as Public Use Facility Dedication as Percent of Total Project Area		Maximum Density Bonus
	15%	5%
	20%	10%
	25%	15%

4. **Dedicated Open Space Uses.** Dedicated open space uses shall comply with the regulations of Chapter 3 of this Title.
5. **Commercial Uses.** The following design standards apply to any proposed commercial uses within a planned unit development:
 - a. Joint parking facilities shall be planned to use common access points to public streets.
 - b. Screening shall be provided on the perimeter of commercial uses abutting the residential areas as provided in Section 8-3-7F (Perimeter Landscaping and Screening) of this Title.
 - c. Commercial buildings and structures:
 - i. Shall share common design themes in landscaping, signs, architecture, and building bulk with other uses within the planned unit development.
6. **Industrial Uses.** The following design standards apply to any proposed industrial uses within a PUD:
 - a. Landscaping shall be provided as required in Section 8-3-7 of this Title for

parking areas, loading areas, and outdoor storage areas of industrial materials.

- b. Screening shall be provided on the perimeter of industrial uses abutting residential areas as provided in Section 8-3-7 of this Title.
- c. Structure location shall promote efficient installation of utilities.
- d. Industrial uses buildings and structures:
 - i. Shall share common design themes in landscaping, signs, architecture, and building bulk with other uses within the planned unit development.

7. Improvements

- a. Improvements, consistent with the standards established in the area or as designated in any officially adopted comprehensive plan, are required as a condition of approval of a PUD.
- b. If any improvements required as part of the PUD cannot be completed prior to submission of a final plat and/or signing of the master site plan, the applicant or owner shall deposit a surety as set forth in Section 8-3-5 of this Title.

8. Deviations. As part of the original application, a written request to deviate from the dimensional standards of this Title may be included. Where applicable, the proposed deviations shall be noted on the master site plan.

9. Alternative Development Standards. The development agreement may include alternative development standards when the overall design meets or exceeds the intent and requirements of this Section and are not detrimental to the public health, safety, and welfare. The development agreement may also allow the Director to approve alternative development standards pursuant to standards and procedures identified in the agreement.

H. Required Findings. The Commission shall find the following before issuing a PUD:

- 1. The proposed development is not detrimental to public health, safety, or welfare;
- 2. The proposed development does not create undue adverse impacts on surrounding properties;
- 3. The proposed development is consistent with the applicable comprehensive plan;
- 4. The proposed development complies with the purpose statement of the applicable base district and with the specific use standards as set forth in this Chapter;
- 5. The proposed development complies with all applicable County ordinances;
- 6. The proposed development complies with all applicable state and federal regulations;
- 7. The proposed development does not impede the normal development of surrounding property;
- 8. Adequate public and private facilities such as utilities, landscaping, parking spaces, and traffic circulation measures are provided for the proposed development;

9. Political subdivisions, including school districts, are able to provide services for the proposed development; and
10. If abutting or within a rural district, the proposed development shall not cause detrimental impacts to agriculture.
11. The arrangement of uses and/or structures conforms to the topography and natural landscape features;
12. The arrangement of uses and/or structures in the development does not cause damage, hazard, or nuisance to persons or property in the vicinity;
13. The internal street system is designed for the efficient and safe flow of vehicles and pedestrians without having a disruptive influence upon the activities and functions contained within the development, or place an undue burden upon existing transportation and other public services in the surrounding area;
14. Community facilities (such as park, recreation, and dedicated open space areas) are functionally related and accessible to all dwelling units via pedestrian and/or bicycle pathways. Dedicated open space shall abut any lots that are reduced below the minimum average lot size of adjacent residentially zoned subdivisions and multi-family development within the PUD;
15. The proposal complies with the density standards set forth in this Section;
16. The PUD conforms to the applicable comprehensive plan, future acquisition maps, area of city impact ordinance, and other applicable ordinances; and
17. Additional required findings for mandatory public use facility dedications or improvement:
 - a. The dedication of the public use facility is substantiated by the governing Board responsible for the facility;
 - b. The public use facility shall serve the public interest in the PUD's location;
 - c. The public use facility is consistent with the comprehensive plan; and
 - d. The capacity, area, and location of property to be dedicated to the public use facility is proportionate to the demand generated by the proposed development.

I. Appeals. See Section 8-6-13.

J. Scope of Approval of the PUD

1. **Generally.** The approval of a PUD does not authorize the development of land. Any development that occurs after the PUD is approved requires additional approval, which may include subdivision review or master site development plan approval, if applicable, and building permits and certificates of occupancy.
2. **Ongoing Obligations.** The approved project shall:
 - a. Comply with all applicable approved plans and specifications;
 - b. Continuously maintain adequate housekeeping practices so as not to create a nuisance; and

- c. Maintain sanitary practices so as not to create a public nuisance and to reduce noise and odor.
- 3. **Master Site Plan.** A master site plan application shall be concurrently submitted subject to the regulations of Section 8-6-19, unless specifically exempt under the regulations of that Section. The master site plan shall note any accessory buildings, facilities, and any outdoor storage areas where they are reviewed as part of the PUD.
- 4. **Tentative Approval**
 - a. Written documentation shall be provided indicating the conditional use has been approved by all applicable public agencies before a zoning certificate is issued.
 - b. A maximum of two (2) years are allowed to obtain all necessary permits and a zoning certificate.
 - c. The Director shall determine that all conditions of approval have been met and that the PUD conforms with this Section before a zoning certificate is issued.

8-6-23: Property Boundary Adjustment

- A. **Purpose.** This Section allows parcel line or platted lot line adjustments between existing legal or nonconforming properties.
- B. **Applicability.** These regulations apply to adjustments of parcel lines or platted lot lines between existing lots and parcels in Ada County.
- C. **Initiation.** Property boundary adjustment applications shall be submitted to the Director.
- D. **Completeness.** See Section 8-6-5.
- E. **Notice.** A copy of the application shall be submitted to the Ada County Surveyor and Central District Health.
- F. **Decision.** The Director shall review the property boundary adjustment and shall:
 - 1. Approve the property boundary adjustment; or
 - 2. Deny the property boundary adjustment; or
 - 3. Approve the property boundary adjustment with conditions.
- G. **Required Findings**
 - 1. A property boundary adjustment shall not reduce the property size below the minimum dimensional standards prescribed by this Title, including regulations for individual wastewater treatment systems and wells as set forth in as set forth in Section 8-3-5D of this Chapter.
 - 2. If one or more of the properties is nonconforming as to the minimum dimensional standards prescribed by this Title, the property boundary adjustment shall not increase the nonconformity.
 - 3. A property boundary adjustment shall not increase the original number of properties.
 - 4. A property boundary adjustment shall not change or move any public streets, private roads, easements, or publicly dedicated areas.

5. The property boundary adjustment shall not constitute a relocation of a property.
6. For platted lots, the property boundary adjustment substantially conforms to the recorded plat.

H. Appeals. See Section 8-6-13.

I. Scope of Approval. A property boundary adjustment does not vacate the platted lot lines of a recorded subdivision.

1. **Tentative Approval Requirements.** Upon tentative approval of the application by the Director subject to any applicable conditions of approval and the regulations of Section 8-6-5, the following tasks must be completed within one year:
 2. Cause the property to be surveyed;
 3. Before recording, submit draft copies of the record of survey and resulting parcel descriptions to the Director for review;
 4. Execute and record the record of survey and necessary deeds with the Ada County Recorder to accomplish the approved property boundary adjustments;
 5. Obtain new tax parcel numbers from the Ada County assessor; and
 6. Provide copies of the recorded record of survey, recorded deeds, and the new tax parcel numbers to the Director.
7. **Approval Letter Issuance.** The Director shall determine that all conditions of approval are met, and that the property boundary adjustment conforms with this Section before issuing a final approval letter.

8-6-24: Sign Permit

- A. **Applicability.** It is unlawful for any person to erect, or alter any sign as defined in this Title without first obtaining a sign permit. This does not require a permit for sign maintenance, altering permitted changeable copy, or signs exempted from a permit as described elsewhere in Section 8-3-12.
- B. **Initiation.** Sign permit applications include one set of plans drawn to scale indicating the sign size, location, method of illumination, colors, materials of the sign and structure, method of attachment, and any permit fees. In addition, information relating to the placement, construction, and design shall be submitted to the Director, as needed to demonstrate compliance with Section 8-3-12.
- C. **Completeness.** See Section 8-6-5.
- D. **Notice.** Not applicable.
- E. **Decision.** The Director will approve or deny the sign permit application within sixty (60) days following the date of its submission. If the Director fails to timely act on the application, the sign permit is deemed denied unless a request is submitted for continuance.
- F. **Required Findings.** The Director shall approve the sign permit application pursuant to the regulations in Section 8-3-12.
- G. **Appeals.** See Section 8-6-13.

H. Issuance. The Director will issue a permit for the erection, alteration, or relocation of a sign within the County when an application is properly made, and the sign complies with all appropriate laws and ordinances.

I. Scope of Approval. A sign permit does not authorize the maintenance of an unlawful sign and does not constitute a defense in an action to abate an unlawful sign. The Ada County Building Code may require a building permit (see Section 7-2-3 of Ada County Code and the adopted building code).

8-6-25: Subdivision Plats – Generally

A. Applicability. In addition to the requirements for public hearings in Section 8-6-9, the following are general approval procedures for subdivision review applications. Specific regulations for each type of subdivision review application are prescribed in Sections 8-6-26, 8-6-27, and 8-6-28.

B. Initiation

1. An application for subdivision review approval is not considered filed until the Director determines that it is complete.
2. Concurrent with the submission of a subdivision review application, required information established in Sections 8-6-26, 8-6-27, and 8-6-28, as applicable, and any additional information required by the Director shall be submitted.

C. Completeness

1. **Generally.** Completeness shall comply with Section 8-6-5.

2. Additionally

- a. These standards shall be followed in all subdivisions regulated by this Title.
- b. Any proposed subdivision in areas of the County where topographical slopes are greater than fifteen percent (15%) or where adverse conditions associated with slope stability, erosion, or sedimentation are present, as determined by the County Engineer, shall conform with the additional hillside regulations in Section 8-2-30 as set forth in this Title.
- c. Adequate means for eliminating unsuitable conditions must be approved by the County Engineer in order to develop property that has been designated in the applicable comprehensive plan, in the natural features analysis, or elsewhere, as being unsuitable for development because of flood threat, poorly drained areas, high groundwater, steep slopes, rock formation, buried pipelines, or other similar conditions likely to be encountered.
- d. The limits of the subdivision shall encompass the full extent of the owner's lot or "contiguous parcels", as defined in this Title.
- e. The decision-making body may require modifications where, in its opinion, site planning has not sufficiently addressed the existing natural features.
- f. In addition to Section 8-6-5, the Development Services Department shall examine all subdivision applications for compliance with this Title. The application is forwarded to the appropriate decision-making body for consideration. Failure of

staff to make specific comments related to application deficiencies does not relieve the property owner from compliance with this Title.

D. Notice. Subdivision applications require noticing pursuant to Section 8-6-8 unless otherwise noted in this Title.

E. Decision

1. Generally

- a. Subdivision review applications are approved by the decision-making body prescribed in Section 8-6-2.
- b. Staff review will occur for all subdivision review applications prior to a final decision by the applicable decision-making body.

2. Decision Types. The decision-making body shall make any of the following decisions for this Section:

- a. Approve the application if it complies with all provisions of this Title;
- b. Disapprove the application if it fails to comply with this Title; or
- c. Approve the application with conditions.

F. Required Findings. The following standards apply to all subdivision applications:

- 1. No land shall be used for a purpose prohibited by a condition of approval, any plat note required by condition of approval, inscribed on an approved plat, nor shall any land be used that is not in accordance with the regulations of this Title.
- 2. No building shall be erected, converted, enlarged, reconstructed, or structurally altered or moved for a purpose or purposes prohibited by covenants incorporated as plat restrictions and approved by the Director, Commission, or Board.

G. Appeals. See Section 8-6-13.

H. Scope of Approval

1. Generally

- a. Approval of a subdivision review application does not constitute acceptance of the subdivision but authorizes preparation of the final plat unless otherwise noted in this Section.
- b. Once public improvements and easements are accepted by the County Engineer, recordkeeping can occur.

2. Modifications. See Section 8-6-12.

8-6-26: Subdivision Plats – Preliminary Plat

A. Applicability. This Section applies to any application for approval of a preliminary plat of subdivision.

B. Initiation

- 1. Generally.** A preliminary plat application shall be submitted to the Director.

2. Required Information. The preliminary plat shall include the following required information:

- a. The subdivision boundary that is based on an actual field survey including the stamp of the licensed in the state of Idaho professional land surveyor certifying and stamping the boundary survey of the plan. Boundary problems shall be resolved, and non-buildable remnants are prohibited. For purposes of this subsection, a “non-buildable remnant” means a lot that does not meet the minimum lot size requirements of the applicable zoning district. Certification and stamping of the plan by the professional land surveyor is required only for the boundary survey.
- b. The name of the owner.
- c. The name of the person or firm responsible for the drawing.
- d. The name of the proposed subdivision in accord with Idaho Code Section 50-1307.
- e. The date, graphic scale, true north arrow, vicinity map, section, township, and range.
- f. Ties to all controlling corners.
- g. The names of neighboring subdivisions as listed in the Ada County Assessor's files.
- h. The names of owners of neighboring properties as listed in the assessor's files, and the boundaries of all neighboring properties.
- i. The name, location, width, direction of slope, centerline and right of way of all existing and proposed public streets and private roads.
- j. The proposed off-site improvements pertaining to streets, water supply, sanitary sewer systems, storm water systems, fire protection facilities, and proposed utilities.
- k. The lot layout with lot and block numbers, lot dimensions, and lot area in square feet.
- l. The minimum setbacks from the front, the side, and the rear property lines.
- m. Areas of special use, e.g., parks and schools, with appropriate labels.

3. Separation of Information. Separate drawing(s) may be required to assist in delineation of specific information.

C. Completeness. See Section 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision

- 1. Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission’s review.
- 2. Commission Review.** The Commission shall review the application and submit its recommendation to the Board:
 - a. To approve the application; or

- b. To disapprove the application; or
- c. To approve the application with conditions.

3. Board Decision. See Section 8-6-25E.2 (Decision Types).

F. Required Findings. The Board shall find the following before approving a preliminary plat:

1. The design conforms to the standards established in Chapter 5;
2. The design complies with the required improvements established in Section 8-5-7;
3. If applicable, the proposed subdivision complies with the standards of an overlay district as set forth in Chapter 2 of this Title;
4. The design conforms to the topography and natural landscape features and shows consideration for the location and function of land uses and structures to achieve this purpose;
5. The development would not cause undue damage, hazard, or nuisance to persons or property in the vicinity;
6. The internal street system is designed for the efficient and safe flow of vehicles, bicycles, and pedestrians without disrupting the activities and functions contained within the proposed subdivision, or placing an undue burden upon existing transportation and other public services in the surrounding area;
7. Community facilities such as parks, recreation, and dedicated open space areas are functionally related to all dwelling units and are easily accessible via pedestrian and/or bicycle pathways;
8. The proposal complies with the dimension standards set forth in this Title for the applicable zoning district;
9. The overall plat conforms to the applicable comprehensive plan(s), future acquisition maps, area of city impact ordinances including applicable subdivision regulations, and other pertinent ordinances; and
10. In addition to the findings required above, the Board shall make the following findings for preliminary plats located in a Planned Community base district:
 - a. The preliminary plat conforms to the approved planned community implementation plan; and
 - b. Sufficient funds will be available to construct the urban public facilities and to provide urban public services.

G. Required Findings – Planned Community Preliminary Plat

1. **Accord with the Comprehensive Plan.** Despite any other regulations to the contrary, each preliminary plat within a planned community shall be in accordance with the approved planned community comprehensive plan and the applicable planned community overlay district.
2. **Time Of Submission.** A preliminary plat must be submitted to the Director no later than two (2) years from the date the planned community implementation plan is

approved.

- 3. Additional Application Requirements.** In addition to other requirements in this Chapter, the following information shall be submitted with every preliminary plat application in a PC base district, and shall be specific to the area that the preliminary plat encompasses:
- a. Land Use.** A color keyed land use designation sheet.
 - b. Landscape.** A landscape plan in compliance with the applicable overlay district.
 - c. Urban Public Services.** A written description of the urban public services provided and how they comply with the urban public services standards set forth in Chapter 12 of this Title.
 - d. Open Space.** A written description of the types and sizes of developed and natural open space, including a detailed description of the ownership, operation, and maintenance structure.
 - e. Community Center.** A written description of the community meeting centers and/or recreation centers, if applicable.
 - f. Water Supply.** A demonstration that existing and/or proposed water rights are available within the entire boundary of the planned community as identified on the official zoning map by supplying the following, as applicable:
 - 1.** For an existing or new private water company or water district or water from a private source:
 - a.** A letter indicating that the planned community is serviceable by said entity in accordance with the existing rules and regulations as filed with the Idaho Public Utilities Commission (IPUC) as applicable, or a letter indicating that the planned community is serviceable after obtaining approval from the IPUC, including a copy of the application filed with the IPUC as applicable;
 - b.** A letter from the Idaho Department of Water Resources (IDWR) indicating that existing water rights, proposed changes to existing water rights, and/or proposed new water rights are currently sufficient for the proposed planned community or will be sufficient after obtaining approval from the IDWR. A copy of the water rights documents and/or applications therefore filed with IDWR shall be included with the application for preliminary plat; and
 - c.** A description of how the landscaping within the boundaries of the planned community will be irrigated, which shall include the source(s) of the irrigation water and verification from IDWR that the existing and/or proposed irrigation water rights are currently sufficient, or will be sufficient after obtaining approval from IDWR. Copies of such water rights documents or applications, therefore, shall be included with the preliminary plat application.
 - g. Urban Public Services Construction.** A demonstration that sufficient assets and funds are available to construct necessary urban public facilities required to meet urban public service standards in Chapter 12 of this Title, if applicable, as shown

in the implementation plan, including, but not limited to:

- 1.** If the preliminary plat is being processed concurrently with the implementation plan then the following information shall be submitted:
 - a.** To the extent privately financed, a written verification of adequate owner and partner equity assets in possession required to secure planned financing as set forth in the cash flow pro forma, including, but not limited to, cash reserves, land, and other assets meeting standard lending criteria of established lenders; and
 - b.** To the extent financed with public resources, a written verification of adequate owner and partner equity assets in possession required to secure tax exempt public funds and/or bonds identified as financing tools in the cash flow pro forma, including, but not limited to, cash reserves, land, and other assets meeting standard lending criteria of established public lending entities; or
- 2.** If the preliminary plat application is not being processed concurrently with the implementation plan, then the following material shall be submitted:
 - a.** An updated cash flow pro forma consistent with implementation plan financing plan requirements and reflecting changes in market, economic, and/or financial changes since the planned community implementation plan approval;
 - b.** To the extent privately financed, a written verification of adequate owner and partner equity assets in possession required to secure planned financing as set forth in the updated cash flow pro forma, including, but not limited to, cash reserves, land, and other assets meeting standard lending criteria of established lenders; and
 - c.** To the extent financed with public resources, a written verification of adequate owner and partner equity assets in possession required to secure tax exempt public funds and/or bonds identified as financing tools in the updated cash flow pro forma, including, but not limited to, cash reserves, land, and other assets meeting standard lending criteria of established public lending entities; or
- 3.** If urban public facilities will be constructed and owned by a municipality or a regulated public utility, then a certificate of service from the municipality or regulated public utility shall be a prima facie demonstration that sufficient assets and funds are available to construct the relevant urban public facilities required to meet urban public service standards in Chapter 12 of this Title, if applicable, as shown in the planned community implementation plan; or
- 4.** If urban public facilities will be constructed and owned by a taxing district, then compliance with the following requirements shall be a prima facie demonstration that sufficient assets and funds are available to construct the relevant urban public facilities required to meet urban public service standards in Chapter 12 of this Title as shown in the planned community implementation plan:

- a. The area encompassed by the planned community must be included within the district boundaries;
 - b. The urban public facility must be a programmed urban public facility; and
 - c. The district must provide a certificate of service for the relevant area.
- h. **Urban Public Services Operation and Maintenance.** A demonstration that sufficient funds will be provided and set aside for funding the operation and maintenance costs of urban public services (including capital renewal and replacement costs) as specified in the implementation plan, including, but not limited to:
 - 1. If the preliminary plat application is being processed concurrently with the implementation plan, then the following information shall be submitted:
 - a. A written description of the amounts needed to be placed in reserve accounts for operations and maintenance reserves and verification of the dedicated source of owner and/or partner assets sufficient for reserves establishment. The amounts needed to be placed in reserves may take into account the transition plan, the availability of other financial assurances, the availability of sources of funding identified in the pro forma or some combination of the above;
 - b. A written assessment of the current valuation of unimproved, unencumbered landholdings or other assets in hand that can or may be utilized as collateral to secure funding separately for operations and maintenance as identified in the cash flow pro forma; and
 - c. If facilities operation will be contracted to an independent service provider, a written identification of potential operator(s) and a description of and verification of operator(s) qualifications and financial standing; or
 - 2. If the preliminary plat application is not being processed concurrently with the implementation plan, then the following material shall be submitted:
 - a. An updated cash flow pro forma consistent with the planned community implementation plan financing plan requirements and reflecting changes in market, economic, and/or financial changes since the planned community implementation plan approval and the following material;
 - b. A written description of the amounts needed to be placed in reserve accounts for operations and maintenance reserves and verification of the dedicated source of owner and/or partner assets sufficient for reserves establishment; the amounts to be placed in reserve may take into account the transition plan, the availability of other assets and financial assurances, the availability of sources of funding identified in the pro forma or a combination thereof;
 - c. A written assessment of the current valuation of unimproved, unencumbered landholdings or other assets in hand that can or may be utilized as collateral to secure funding separately for operations and maintenance as identified in the updated cash flow pro forma; and

- d. If facilities' operation will be contracted to an independent service provider, a written identification of potential operator(s) and a description of and verification of operator(s) qualifications and financial standing; or
- 3. If urban public services will be provided by a municipality or regulated public utility, then a certificate of service from the municipality or regulated public utility shall be a prima facie demonstration that sufficient assets and funds are available to provide the relevant urban public service, and to operate and maintain the relevant urban public facilities required to meet urban public service standards, for the service being provided by the municipality or regulated public utility, in Chapter 12 of this Title as shown in the planned community implementation plan; or
- 4. If urban public services will be provided by a taxing district, then compliance with the following three (3) requirements shall be a prima facie demonstration that sufficient assets and funds are available to provide the urban public service and to operate and maintain the relevant urban public facilities required to meet urban public service standards, for the service being provided by the taxing district as shown in the planned community implementation plan:
 - a. The area encompassed by the planned community must be included within the district boundaries;
 - b. The urban public service must be a programmed urban public service; and
 - c. The district must provide a certificate of service for the relevant area.
 - i. **Transportation.** The previously approved traffic impact study shall be updated with each preliminary plat based upon the best available data and shall be submitted to ITD and ACHD thirty (30) days prior to submission of the preliminary plat to the Director. An updated comprehensive transportation demand management program may be required.
- 4. **Financing Verification Application.** Prior to grading, filling, clearing, excavation or construction of any kind associated with an approved preliminary plat, including that required for infrastructure improvements, an application for financing verification shall be approved by the Director as follows:
 - a. An application and fees as set forth in Chapter 6 of this Title shall be submitted to the Director on forms provided by the development services department and shall include the following material:
 - 1. A final cash flow pro forma, consistent with final verification of sufficient project financing required herein, for urban public services;
 - 2. A demonstration that sufficient assets, funds and financing are secured for construction of the urban public facilities, including, if applicable, that the planned community owner has paid or will pay pursuant to an approved transition plan, its proportionate share (based on a minimum density of 3 dwelling units per acre within the applicable response time area) of any unfunded capital improvement costs required to construct any required new

municipal or district facilities;

3. A demonstration that sufficient assets, funds and financing are secured or are identified in the approved pro forma for operation and maintenance costs of urban public services (including capital renewal and replacement costs of necessary urban public facilities), including, if applicable, that the planned community owner has received approval on a petition to prepay taxes per Idaho Code Section 63-1602 as necessary to cover any temporary shortfall caused by the necessity for the applicable municipality or district to provide applicable urban public services at urban public service levels until tax revenue collection covers the cost of providing services including amortizing the prepayment.

H. Appeals. See Section 8-6-13.

I. Scope of Approval

1. Approval of a preliminary plat does not constitute acceptance of the subdivision but authorizes preparation of the final plat.
2. Improvements shown on the preliminary plat may be constructed following approval.
3. Preliminary plat approval is effective for a period of twenty-four (24) months. Where a final plat for the subdivision is not submitted for approval within the twenty-four (24) months, the preliminary plat becomes nullified, and the applicant shall resubmit a new preliminary plat application for approval subject to the then effective regulations.

8-6-27: Subdivision Plats – Final Plat

A. Applicability. This Section applies to the approval of final plats for recording with the County. Final plat applications are filed after the preliminary plat is approved.

B. Initiation

1. **Generally.** A final plat application shall be submitted to the Director.
2. **Required Information.** The final plat shall include the following information as required by Idaho Code Title 50, Chapter 13 and related state law, and the following additional requirements:
 - a. The final plat drawing page(s) and signature page drawn on eighteen-inch by twenty-seven-inch (18" x 27") sheets, with all information at least three and one-half inches (3 1/2") from the left edge and one-half inch (1/2") from all other edges. The letters, numbers, and notes shall be of such size and scale to clearly show on microfilm copies, reproducible copies, and prints of the recorded documents.
 - b. The drawing page(s) shall show exterior boundary and property lines, right of way lines, streets, street islands, existing and new easements, all accurately dimensioned with bearings to the nearest one second and distances to the nearest one-hundredth (1/100) of a foot. The dimensions shall provide a minimum lot and boundary survey closure of one to ten thousand (1:10,000). The drawing page(s) and owner's certificate shall show or contain all related curve data including radius, length, central angle, long chord, and long chord bearing.
 - c. Permanent monuments, magnetically detectable, marked with the license number

of the surveyor, is set for all the following:

1. All lot corners and exterior boundary corners.
 2. Street centerline angle points, point of curvatures (PCs), point of tangencies (PTs), intersecting street centerlines, and places where street centerline changes directions.
 3. Street islands, radius points for cul-de-sacs, and lot controlling corners that control the location of the boundary.
- d. In places that are impossible or impractical to set the monument, the final plat shall set and dimension a witness corner or reference monument. That monument shall have the same size and marking required for the monument it replaces. A witness corner monument sets on the lot line or property line. A reference monument sets with a bearing and distance tie to the actual corner.
- e. All monuments found, existing or accepted and used in the survey shall be marked with the license number of the surveyor.
- f. Format required by the County Surveyor.
- g. The plat shall show:
1. **Primary Control Points.** At least two (2) primary control points, officially recognized by the County Surveyor and ties to those control points. Primary control points are public land survey corners or officially recognized corners. Corner perpetuation and filing recording instrument numbers are shown.
 2. **Approved Street Names.** The Street Naming Committee shall approve all street names.
 3. **Easements.** Location, dimensions, and purpose of any easements.
 4. **Monuments.** Location, description, and size of monuments that are found.
 5. **Title, Subdivision Name, Description and Date.** Title, including subdivision name in accord with Idaho Code Section 50-1307, and general location description and date.
 6. **Owner's Certificate.** Owner's certificate containing a statement of reservation of easements and private roads. Private roads may be shown as a lot or an easement.
 7. **Right Of Way Width.** The right of way width from centerline of each street or other right of way.
 8. **Abutting Subdivisions.** Name and location of abutting subdivisions. All other abutting properties are shown as "unplatted."
- h. The following certificates and approvals shall appear on the final plat:
1. Owner's certificate.
 2. Licensed land surveyor's certificate.
 3. Ada County Highway District (if applicable).

4. Central District Health.
5. City Engineer (if applicable).
6. City approval certificate (if applicable).
7. County Surveyor's certificate.
8. Acceptance and approval of the Board.

C. Completeness. See Section 8-6-5.

D. Notice. Not applicable.

E. Decision. The Board shall make the decision on the application pursuant to Subsection 8-6-27F.

F. Required Findings

1. The final plat is in substantial compliance with the preliminary plat;
2. All conditions of the approved preliminary plat are met; and
3. For a planned community, the area encompassed by the final plat, together with any previously approved plats, is a self-supporting unit.

G. Appeals. See Section 8-6-13.

H. Scope of Approval

1. After the final plat is recorded, building permits may be issued.

8-6-28: Subdivision Plats – Combined Preliminary-Final Plat

A. Applicability. This Section applies to any application for approval of a combined preliminary-final plat. A combined preliminary-final plat shall comply with Sections 8-6-27 and 8-6-28.

B. Initiation. A combined preliminary-final plat application shall be submitted to the Director.

C. Completeness. See Section 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision

1. **Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission's review.
2. **Commission Review.** The Commission shall review the application and submit its recommendation to the Board:
 - a. To approve the application;
 - b. To disapprove the application; or
 - c. To approve the application with conditions.
3. **Board Decision.** See Subsection 8-6-25E.2 (Decision Types).

F. Required Findings

1. **Generally.** To approve a combined preliminary-final plat, the Board shall make the findings in Subsections 8-6-26F and 8-6-27F.
2. **Additionally.** A combined preliminary-final plat shall meet the following additional standards:
 - a. **Number of Lots.** A combined preliminary-final plat is limited to a maximum of eight (8) lots.
 - b. **Dedication.** Additional street right-of-way or widening of existing streets are prohibited.
 - c. **Private Roads.** New, widened, or extended private road are allowed and are clearly marked on the combined preliminary-final plat.
 - d. **Phasing.** Lot phasing is prohibited.

G. Appeals. See Section 8-6-13.

H. Scope of Approval. See Subsection 8-6-27H.

8-6-29: Temporary Use Permit

A. Purpose. This Section establishes a process to allow temporary uses on a property.

B. Applicability. All properties within the County may apply for a temporary use permit, as a temporary use only, even if the use is not principally permitted within the zoning district. This Section applies to the temporary uses listed below.

1. Temporary uses that require a zoning certificate include:
 - a. Temporary Signs;
 - b. Seasonal Stands;
 - c. Fireworks Stands (see Idaho Code Section 39-2607);
 - d. Subdivision Model Homes/Real Estate Offices; and
 - e. Reapplication for an existing permitted temporary use if the permit has not expired or been revoked.
2. Temporary uses that require administrative approval include new applications and reapplications for an expired or revoked permit for:
 - a. Temporary Living Quarters;
 - b. Seasonal Events;
 - c. An existing dwelling, an existing secondary dwelling, or a temporary manufactured home dwelling while building a new single-family dwelling on the same site;
 - d. A temporary Pit, Mine, Or Quarry within a residential district;
 - e. An anemometer or similar device.

C. Initiation. A temporary use application shall be submitted to the Director.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

1. The Director shall review the temporary use permit and shall:
 - a. Approve the temporary use permit;
 - b. Deny the temporary use permit; or
 - c. Approve the temporary use permit with conditions.
2. The Director shall determine that all conditions of approval are met and that the temporary use conforms with this Section before a zoning certificate is issued.

G. Standards. The Director shall apply the specific use standards listed in this Section and Section 8-4-73 of this Title to review the temporary use.

H. Required Findings

1. The Director will issue a temporary use only if:
 - a. The proposed temporary use is not detrimental to the public health, safety, or welfare;
 - b. The proposed use does not adversely impact the health and safety of surrounding residents or create undue adverse impacts on surrounding properties;
 - c. The proposed temporary use complies with all applicable County ordinances;
 - d. The proposed temporary use complies with all applicable federal and state regulations;
 - e. The proposed temporary use and facilities do not adversely affect or conflict with abutting uses or impede the normal development of surrounding property; and
 - f. Adequate public and private facilities such as utilities, landscaping, parking spaces, and traffic circulation measures are provided for the proposed temporary use.

I. Appeals. See Section 8-6-13.

J. Scope of Approval. The approval of a temporary use permit does not authorize the development of land but allows for an approved use for a specified amount of time on a specific property.

8-6-30: Vacation

A. Applicability. This Section applies to a total or partial vacation of a recorded subdivision plat, including easements. For purposes of this Section, “vacation” or “vacate” means the act of reverting land that is dedicated or reserved for public use to private ownership or extinguishing an easement for the benefit of private use that is recorded on a subdivision plat. All vacations must be approved by the Board in accordance with this Title.

B. Initiation. A vacation application shall be submitted to the Director.

C. Completeness. See Section 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision. The Board shall review the vacation application and shall:

1. Approve the vacation;
2. Deny the vacation; or
3. Approve the vacation with conditions.

F. Required Findings. Vacation shall comply with the regulations set forth in Idaho Code Section 50-1306A.

G. Appeals. See Section 8-6-13.

H. Scope of Approval. If a vacation is approved, ownership of the vacated area reverts as provided under Idaho law.

8-6-31: Variance

A. Purpose. This Section establishes procedures for variance permits pursuant to Idaho Code Section 67-6516.

B. Applicability. The Board may authorize a variance in specific cases that is not contrary to the public interest where exceptional circumstances and literal enforcement of the provisions of this Chapter will result in unnecessary hardship. Variances are subject to conditions and terms established by the Board.

C. Initiation. A variance application shall be submitted to the Director.

D. Completeness. See Section 8-6-5.

E. Notice. See Section 8-6-8.

F. Decision

1. The Board shall conduct a public hearing on the variance and shall render its decision after the hearing is closed.
2. The Board may, in whole or in part:
 - a. Approve the variance;
 - b. Deny the variance; or
 - c. Approve the variance with conditions.

G. Required Findings

1. The Board shall make the following findings to grant a variance:
 - a. The variance shall not grant a right or special privilege that is not otherwise allowed in the base district;
 - b. The variance relieves an undue hardship due to characteristics of the site; and
 - c. The variance shall not cause detriment to public health, safety, and welfare.
2. In granting any variance, the Board may prescribe appropriate conditions and safeguards that conforms with this Title.
3. Applications for floodplain variance shall comply with the Section 8-2-28 of this Title and are not subject to the regulations of this section.

H. Appeals. See Section 8-6-13.

- I. Scope of Approval.** After a final decision on the variance is rendered, the Director may issue any applicable building permits and/or zoning certificates.

8-6-32: Zoning Certificate

- A. Applicability.** This Section applies to all properties within Ada County.

- B. Initiation.** A zoning certificate application shall be submitted to the Director.

- C. Completeness.** See Section 8-6-5.

- D. Notice.** Not applicable.

E. Decision

1. The Director shall review the zoning certificate application and shall:

- a. Approve the application;
- b. Deny the application; or
- c. Approve the application with conditions.

2. The Director shall not issue a zoning certificate for any use on a property that violates this Title or on a property that contains structures or uses that violate this Title, with the exception that a zoning certificate may be issued exclusively for the installation of solar panels on any existing detached structure constructed prior to January 1, 2000, or increased in size after January 1, 2000, regardless of its current zoning status. Any zoning certificate secured that violates state or federal law is invalid.

- F. Required Findings.** The application for a zoning certificate shall comply with all applicable requirements of this Title and any applicable, unexpired conditions of a prior approval.

- G. Appeals.** See Section 8-6-13.

H. Scope of Approval

- 1. No construction or alteration shall commence until the Director issues a zoning certificate. If no structures are involved, no use shall commence until the Director issues a zoning certificate.
- 2. Any application that requires zoning certificate issuance as a condition of approval is complete with zoning certificate issuance. This provision applies to prior approved applications with issued zoning certificates.
- 3. Zoning certificates issued in conjunction with a change of use that are not associated with a building permit expires if the new use does not commence within one year of zoning certificate issuance date.
- 4. The zoning certificate may require inspections and approvals specified in the approval of the application.
- 5. Upon determining that zoning certificate conditions are violated, the Director may require that all further work stop on a project until the violation is remedied.

8-6-33: Zoning Ordinance Map Amendment

A. Applicability. This Section applies to any application to amend the Zoning Ordinance Map.

B. Initiation

1. The Board may propose to amend the zoning ordinance map following notice, neighborhood meeting, and public hearing procedures in Sections 8-6-4, 8-6-8 and 8-6-9.
2. Any property owner may propose a zoning ordinance map amendment to the Board.
3. Zoning ordinance map amendment applications shall be submitted to the Director.

C. Completeness. See Section 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision

1. **Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission's review.
2. **Commission Review.** The Commission shall review the application and submit its recommendation to the Board:
 - a. To approve the zoning ordinance map amendment;
 - b. To deny the zoning ordinance map amendment; or
 - c. To approve the zoning ordinance map amendment with suggested changes.
3. **Board Decision.** The Board shall make the final decision:
 - a. To approve the zoning ordinance map amendment;
 - b. To deny the zoning ordinance map amendment; or
 - c. To approve the zoning ordinance map amendment with changes.

F. Required Findings. To grant a zoning ordinance map amendment, the following findings must be made:

1. The zoning ordinance map amendment conforms with the applicable comprehensive plan;
2. The zoning ordinance map amendment complies with the regulations outlined for the proposed base district, specifically the purpose statement;
3. The subject property shall meet the minimum dimensional standards of the proposed zoning district;
4. The zoning ordinance map amendment shall not cause detriment to public health, safety, and welfare;
5. The zoning ordinance map amendment shall not result in demonstrable adverse impacts upon the delivery of services by any political subdivision providing public services within the planning jurisdiction including school districts; and
6. For zoning ordinance map amendments within a planned community (PC) base district,

the amendment complies with the planned community implementation plan.

G. Appeals. See Section 8-6-13.

H. Scope of Approval. The approval of a zoning ordinance map amendment does not authorize the development of land. A zoning ordinance map amendment allows property owners to apply for permits or actions that are consistent with the zoning district's standards and requirements.

8-6-34: Zoning Ordinance Text Amendment

A. Applicability. This Section applies to any application to amend the text of the Zoning Ordinance.

B. Initiation

1. The Board may propose to amend the zoning ordinance text following notice, neighborhood meeting, and public hearing procedures in Sections 8-6-4, 8-6-8, and 8-6-9.
2. Any property owner may propose a zoning ordinance text amendment to the Board.
3. Zoning ordinance text amendment applications shall be submitted to the Director.

C. Completeness. See Section 8-6-5.

D. Notice. See Section 8-6-8.

E. Decision

1. **Staff Review.** The Director shall review the application and prepare and send a recommendation for the Commission's review.
2. **Commission Review.** The Commission shall review the application and submit its recommendation to the Board:
 - a. To approve the zoning ordinance text amendment;
 - b. To deny the zoning ordinance text amendment; or
 - c. To approve the zoning ordinance text amendment with suggested changes.
3. **Board Decision.** The Board shall make the final decision:
 - a. To approve the zoning ordinance text amendment;
 - b. To deny the zoning ordinance text amendment; or
 - c. To approve the zoning ordinance text amendment with changes, subject to public notification of the changes per Section 8-6-8.

F. Required Findings. The Board shall make following findings to grant a zoning ordinance text amendment:

1. The zoning ordinance text amendment conforms with the applicable comprehensive plan;
2. The zoning ordinance text amendment is not detrimental to public health, safety, and welfare; and

3. For zoning ordinance text amendments within a planned community (PC) base district, the amendment complies with the planned community implementation plan.

G. Appeals. See Section 8-6-13.

H. Scope of Approval. The approval of a zoning ordinance text amendment does not directly authorize the development of land. A zoning ordinance text amendment simply changes the Zoning Ordinance regulations.

CHAPTER 7

NONCONFORMITIES

SECTION

- 8-7-1: PURPOSE AND APPLICABILITY
- 8-7-2: NONCONFORMING USES
- 8-7-3: NONCONFORMING STRUCTURES
- 8-7-4: NONCONFORMING PROPERTIES
- 8-7-5: NONCONFORMING SIGNS

8-7-1: Purpose and Applicability

A. Purpose. This Chapter governs uses, structures, properties, and other situations that legally came into existence prior to the effective date of this Zoning Ordinance or the effective date of future amendments to this Zoning Ordinance, but do not comply with or conform to one or more requirements of this Zoning Ordinance. Those situations are collectively referred to as “nonconformities.” Also, this Chapter allows any nonconforming property, use, or structure that was lawfully existing prior to the effective date of this Title to continue until they are removed, but not to encourage their continuation. Nonconformities shall not expand or extend the nonconforming aspect of the property, use, or structure, unless approved subject to the regulations of Chapter 6.

B. Applicability. These regulations apply to any lawfully existing nonconforming property, use, or structure in Ada County. However, a property, use, or structure that was deemed nonconforming under past zoning regulations but now complies with this Title is deemed conforming.

C. Deemed Conforming Property

1. Applicability. These regulations apply to properties that:

- a. Were not created in accord with the regulations of this Title (an illegal division of property);
- b. That were of record in the Ada County recorder's office prior to January 1, 1985; and
- c. Have not changed their boundaries except by governmental action as specified in subsection 8-7-4B.

2. Current Dimensional Standards. A deemed conforming property is eligible for building permits if it meets the dimensional standards for the base district in which it is now located.

3. Former Dimensional Standards or Dwelling Constructed. A deemed conforming property is eligible for building permits if it meets one of the following standards:

- a. The property met the dimensional standards for the applicable base district at the time it was created; or
- b. A dwelling was constructed or placed on the property prior to January 1, 1985. However, if the dwelling is subsequently damaged or destroyed by fire, flood, explosion, wind, earthquake, war, riot, calamity or other catastrophic event after January 1, 1985, the property remains eligible for a building permit.

D. Dwellings, Two or more Existing

1. Any property that has two (2) or more existing dwellings that were built prior to May 20, 1968, or were principal permitted dwellings approved in accordance with the zoning regulations that were in effect at the time those dwellings were built, is deemed a nonconforming use.
2. Each dwelling is subject to the standards in Section 8-7-2 below.

8-7-2: Nonconforming Uses

A. Generally. The nonconforming use may continue if the use remains lawful and the use is not expanded or extended, unless approved subject to the regulations of Chapter 6.

B. Definition. For the purposes of this Section, the term "expanded or extended" includes:

1. Increased hours;
2. Increased services or programs;
3. Increased number of residential dwellings;
4. Interior renovations or structural additions that increase the occupant load of the structure dedicated to the nonconforming use (see the Ada County Building Code);
5. Any new structures accessory to the nonconforming use;
6. Expansion or replacement of the structure (or portions thereof) dedicated to the nonconforming use;
7. Anything beyond regular maintenance and minor repairs (as required by the Ada County Building Code); or
8. Any action that extends the duration or intensity of the nonconforming use.

C. Abandonment. A nonconforming use that ceases for ten (10) years or is replaced with a conforming use is deemed abandoned and shall not be reestablished. If nonuse or vacancy continues for at least one (1) year, the County may request resolution of the nonconforming use right according to procedures outlined in Idaho Code Section 67-6538(2).

D. Damage

1. A nonconforming use or structure housing a nonconforming use that is damaged by more than fifty percent (50%) of its current assessed taxable value by fire, flood, explosion, wind, earthquake, war, riot, calamity, or other catastrophic event shall comply with this Title upon reconstruction.

2. If the damage to the nonconforming use or structure housing the nonconforming use is fifty percent (50%) or less of the current assessed taxable value, the nonconforming use may continue if construction or use commences within ten (10) years of the event.
3. If nonuse or vacancy continues for at least one year, the County may request resolution of the nonconforming use right according to procedures outlined in Idaho Code Section 67-6538(2).

E. Exemption. Uses housed within structures listed on the national register of historic places are exempt from this Section.

8-7-3: Nonconforming Structures

A. Generally. Nonconforming structures may be enlarged or modified if the additions or modifications to the structure conform to this Title.

B. Damage

1. A nonconforming structure that is damaged more than seventy-five percent (75%) of its current assessed taxable value by fire, flood, explosion, wind, earthquake, war, riot, calamity, or other catastrophic event, shall comply with this Title upon restoration or reconstruction.
2. If the damage to the nonconforming structure is seventy-five percent (75%) or less of the current assessed taxable value, the structure may be restored or reconstructed if the restoration or reconstruction commences within twelve (12) months of the event.

C. Exemption. Structures listed on the national register of historic places are exempt from this Section.

8-7-4: Nonconforming Properties

A. Generally. A nonconforming property shall not be diminished in size.

B. Reduction by Governmental Action. Any property reduced by governmental action that reduces an existing conforming parcel below the required lot size is deemed a conforming property for the purpose of development. To be deemed a conforming property, the following shall be submitted to the Development Services Department:

1. Documentation the property followed the minimum property size requirement of the applicable zoning district prior to the decrease in property size; and
2. Documentation the decrease in property size was caused by acquisition through prescription, purchase, or other means by Ada County, a municipality within Ada County, the Ada County Highway District, Idaho Transportation Department, utility company or corporation under the jurisdiction of the Idaho Public Utilities Commission, or other local, State, or Federal agency.

8-7-5: Nonconforming Signs. Nonconforming signs are deemed a nonconforming use and/or structure (as applicable) and may continue subject to the standards established in this Chapter.

CHAPTER 8

ENFORCEMENT

SECTION

- 8-8-1: **GENERALLY**
- 8-8-2: **VIOLATIONS**
- 8-8-3: **REMEDIES**

8-8-1: Generally

- A. Purpose.** This Chapter provides measures to enforce Zoning Ordinance violations pursuant to Idaho Code Section 67-6527 or any other applicable authority.
- B. Applicability.** This Chapter establishes:
 - 1. Procedures through which the County seeks to ensure compliance with the provisions of this Zoning Ordinance and obtain corrections for violations.
 - 2. The remedies and penalties that apply to Zoning Ordinance violations.

8-8-2: Violations

- A. Authority.** Idaho Code 67-6527 provides for enforcement of ordinances and regulations.
- B. Generally**
 - 1. Conviction of a violation of this ordinance and regulations is a misdemeanor.
 - 2. Each day that work continues after a violation notification is a separate offense.
 - 3. Violations are punishable as provided in Idaho Code Section 18-113.
 - 4. A violation may be pursued through a civil action.

8-8-3: Remedies

A. Violation of Conditions of Approval

- 1. This subsection applies to noncompliance with any conditions of approval.
- 2. The Director shall provide due notice to the applicant/owner of the violation of any conditions of approval.
- 3. If the violations continue, the Director may order a public hearing before the deciding body, in conformance with Chapters 6 and 9.
- 4. At the public hearing, the deciding body may, in whole or in part:
 - a. Affirm the approval;
 - b. Reverse the approval;
 - c. Modify the approval; or
 - d. Make or substitute any additional conditions that it determines are warranted.
- 5. To act except to affirm the approval, the deciding body must find there is a violation of the conditions of approval of an application within the authority of the deciding body and one or more of the following:

- a. The violation has caused or will cause detriment to the public health, safety, or welfare.
- b. The violation has created or will create undue adverse impact on surrounding properties.
- c. The violation has caused or will cause the approved use to be served by inadequate public or private facilities.
- d. The violation has impeded or will impede the normal development of surrounding property.

CHAPTER 9 ADMINISTRATION

SECTION

8-9-1:	PURPOSE
8-9-2:	BOARD OF COUNTY COMMISSIONERS
8-9-3:	PLANNING AND ZONING COMMISSION
8-9-4:	DIRECTOR OF DEVELOPMENT SERVICES
8-9-5:	HISTORIC PRESERVATION
8-9-6:	COUNTY ENGINEER
8-9-7:	PROSECUTING ATTORNEY
8-9-8:	SHERIFF
8-9-9:	HEARINGS EXAMINER

8-9-1: Purpose. This Chapter establishes and/or describes the responsibilities of decision-making bodies for development activity in Ada County. Any actions authorized for any agency requires transmittals, notice, public hearings, etc. as required by Chapter 6.

8-9-2: Board of County Commissioners

- A. The Board is responsible for the enforcement and administration of this Zoning Ordinance including:
 - 1. Actions referenced in Chapter 8 of this Title.
 - 2. Withholding any zoning certificates on any property where structures or uses violate the Zoning Ordinance.
- B. The Board has the authority to act on the following agreements, applications, and petitions, all of which require a recommendation from the Planning and Zoning Commission, transmittals to agencies and cities, notice to the public, and public hearing:
 - 1. Amendment to an area of city impact agreement (Title 9 of the County Code).
 - 2. Amendment to the comprehensive plan (text or map).
 - 3. Amendment to the zoning ordinance (text or map).
 - 4. Development agreement.
 - 5. Joint applications that require noticing and/or a public hearing as shown in Table 8-6-2-1.

6. Planned community implementation plan.
 7. Subdivision: preliminary plat.
- C. The Board has the authority to act on the following applications, all of which require transmittals to agencies, notice to the public, and a public hearing by the Board:
1. Appeal.
 2. Joint applications that require noticing and/or public hearing as shown in Table 8-6-2-1.
 3. Time extension.
 4. Variance.
- D. The Board has the authority to act on final subdivision plats at an open meeting of the Board.
- E. The Board has the authority to appoint a Hearings Examiner, pursuant to Idaho Code Section 67-6520.

8-9-3: Planning and Zoning Commission

- A. The Commission has jurisdiction and authority to:
1. Provide for citizen meetings, hearings, surveys, or other methods to obtain advice on the planning process, comprehensive plan, and implementation;
 2. Conduct informational meetings and consult with public officials and agencies, public utility companies, and civic, educational, professional, or other organizations;
 3. Promote a public interest in and understanding of the Commission's activities;
 4. Make recommendations to the Board concerning the comprehensive plan, planning process, or implementation of the comprehensive plan;
 5. Enter upon any property (with the consent of the owner) to:
 - a. Make examinations and surveys; and
 - b. Place and maintain necessary monuments and marks; and
 6. Hear applications under the authority of the Hearings Examiner (see Section 8-9-9) if a Hearings Examiner is not appointed by the Board.
 7. The Commission shall hear final plats subject to its review authority at an open meeting.
- B. The Commission has the authority to act on the following applications, all of which require transmittals to agencies, notice to the public, and a public hearing before the Commission:
1. Conditional use.
 2. Joint applications that require noticing and/or a public hearing as shown in Table 8-6-2-1.
- C. The Commission has the authority to make a recommendation to the Board on the following applications or petitions, all of which shall require transmittals to agencies and

cities, notice to the public, and a public hearing before the Commission:

1. Amendment to an area of city impact agreement (Title 9 of the County Code).
2. Amendment to the comprehensive plan (text or map).
3. Amendment to the zoning ordinance (text or map).
4. Joint applications that require noticing and/or a public hearing as shown in Table 8-6-2-1.
5. Planned community implementation plan.
6. Subdivision: preliminary plat.

8-9-4: Director of Development Services

- A. The Director shall provide information to the public on planning, zoning, building, and engineering matters.
- B. The Director has authority to receive and examine applications including:
 1. Entering upon any property (with the consent of the owner) to:
 - a. Make examinations and surveys; and
 - b. Place and maintain necessary monuments and marks.
 2. Maintaining records of all materials and correspondence related to land use applications;
 3. Transmitting to outside agencies and providing written notice to surrounding property owners on all Commission and Board hearings;
 4. Maintaining records of the Commission and Board hearings and actions;
 5. Transmitting to the Commission or Board all applications, petitions, and other communications upon which the Commission or Board is required to act;
 6. Issuing zoning certificates; and
 7. Receiving applications pursuant to Chapter 6.
- C. The Director shall act on the following applications that do not require transmittal to outside agencies or notice to surrounding property owners:
 1. Accessory Use Approval, Zoning Certificate Required
 2. Farm Development Right
 3. Financing Verification Application
 4. Floodplain Permit
 5. Landscaping And Screening Plan
 6. Lighting Plan
 7. Onetime Division of Property
 8. Planned Community Landscape Plan

9. Planned Community Periodic Review
10. Property Boundary Adjustment
11. Sign Plan
12. Temporary Use Approval, Zoning Certificate Required
13. Time Extension, Administrative
14. Zoning Certificate

D. The Director shall transmit to outside agencies, provide written notice to surrounding property owners, and act on the following applications:

1. Accessory Use Approval, Zoning Certificate and Administrative Approval Required
2. Expansion or Extension of Nonconforming Use or Structure
3. Joint Applications as shown in Table 8-6-2-1
4. Master Site Plan
5. Private Road
6. Temporary Use Approval, Zoning Certificate and Administrative Approval Required

8-9-5: Historic Preservation

A. Purpose. The purpose of this Section is to promote the educational, cultural, economic, and general welfare of the public of Ada County through the identification, evaluation, designation, and protection of those buildings, sites, areas, structures, and objects which reflect significant elements of the County's, the state's, and the nation's historic, architectural, archaeological, and cultural heritage.

B. Council Created

1. There is hereby created a historic preservation council which shall consist of members who shall be appointed by the Board. The number of members shall be set by the bylaws of the council and shall be consistent with the standards set for participation in the national park services' certified local government program and Idaho Code Section 67-4601 et seq., as may be amended and/or retitled in the future.
2. All members of the council shall have a demonstrated interest, competence, or knowledge in history or historic preservation. The Board shall endeavor to appoint at least two (2) members with professional training or experience in the disciplines of architecture, history, architectural history, urban planning, archaeology, engineering, law, or other historic preservation related disciplines.
3. All appointments shall be made for three (3) year terms. Council members may be reappointed to serve additional terms. Vacancies shall be filled in the same manner as original appointments and the appointee shall serve for a full term.

C. Organization and Administration

1. The Council shall have the power to make whatever rules are necessary for the execution of its duties as set forth in this Chapter. Rules of procedure and bylaws adopted by the council shall be available for public inspection. Changes to bylaws shall

be approved by the Board after adoption by the council.

2. The council shall elect a chairman and vice chairman from among the council members. The chairman shall preside at meetings of the council. The vice chairman shall, in the absence of the chairman, perform the duties of the chairman.
3. All meetings of the council shall be open to the public and follow the requirements of Idaho's open meeting laws. The council shall keep minutes and other appropriate written records of its resolutions, proceedings, and actions.
4. The council may recommend to the Board the employment of or the contracting with other parties for the services of technical experts or other persons, to assist the council in its functions.

D. Powers, Duties and Responsibilities. The council shall be advisory to the Board and shall be authorized to:

1. Conduct a survey of local historic properties.
2. Recommend the acquisition, by the County, of fee simple and lesser interests in historic properties, including adjacent or associated lands, by purchase, bequest, or donation.
3. Recommend methods and procedures necessary to preserve, restore, maintain and operate historic properties under the ownership or control of the County.
4. Recommend that the lease, sale, or other transfer or disposition of historic properties be made subject to rights of public access and other covenants and in a manner that will preserve the property.
5. Draft and submit to the Board for approval, contracts with the state or federal government, or any agency of either, or with any other organization.
6. Cooperate with the federal, state, and local governments in the pursuance of the objectives of historic preservation.
7. Make recommendations and otherwise participate in the planning processes undertaken by cities, the County, the state, or the federal government and related agencies.
8. Recommend ordinances to the County and otherwise provide information for the purposes of historic preservation in the County.
9. Promote and conduct educational and interpretive programs on historic preservation and historic properties in the County.
10. Enter private property, buildings, or structures in the performance of its official duties, but only with the express consent of the owner or occupant thereof.
11. Review nominations of properties, within the County's jurisdiction, to the National Register of Historic Places and provide comments to the state historic preservation office.
12. Nominate properties within the County's jurisdiction to the National Register of Historic Places.
13. Review requests for demolition of any structure fifty (50) years old or older for historical significance prior to the issuance of a demolition permit.

8-9-6: County Engineer

- A. The County Engineer shall administer engineering matters.
- B. The County Engineer shall provide information to the public on engineering matters.
- C. The County Engineer may examine the following applications:
 - 1. Floodplain permit.
 - 2. Modification or expansion to an approved conditional use.
 - 3. Modification or expansion to an approved master site plan.
 - 4. One time division of a property.
 - 5. Property boundary adjustment.
 - 6. Expansion or extension of nonconforming use or structure.
 - 7. Joint applications as shown in Table 8-6-2-1.
 - 8. Master site plan.
 - 9. Private road.
 - 10. Subdivision of property.

8-9-7: Prosecuting Attorney. The Prosecuting Attorney of Ada County has the authority to enforce this Zoning Ordinance as set forth in Idaho Code and this County Code.

8-9-8: Sheriff. The Ada County Sheriff has the authority to enforce this Zoning Ordinance as set forth in Idaho Code and this County Code.

8-9-9: Hearings Examiner. The Hearings Examiner has the authority to enforce this Zoning Ordinance as set forth in Idaho Code and this County Code.

CHAPTER 10

RULES OF INTERPRETATION AND DEFINITIONS

SECTION:

- 8-10-1: PURPOSE AND GENERAL RULES OF INTERPRETATION
- 8-10-2: DEFINED TERMS
- 8-10-3: ACRONYMS AND ABBREVIATIONS

8-10-1: Purpose and General Rules of Interpretation

- A. **Purpose.** This Chapter describes the general rules of interpretation and provides definitions for those terms used in the Ada County Zoning Ordinance.
- B. **Language**
 - 1. **Terminology.** When used in this Title, all words used in the present tense shall include the future; words used in the singular number shall include the plural number and the plural the singular, unless the natural construction of the sentence indicates otherwise. The word "shall" is mandatory, and the word "may" is permissive.
 - 2. **Number of Days.** Whenever a number of days is specified in this Title, or in any

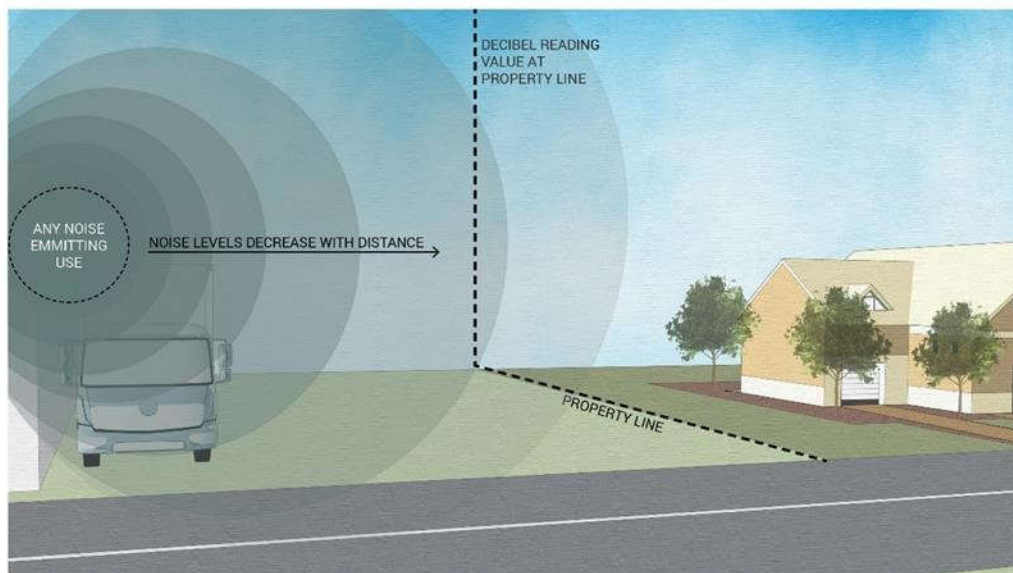
permit, condition of approval, or notice issued or given as provided in this Title, the number of days are construed as calendar days, except that those time limits shall extend to the following working day when the last of the specified number of days falls on a weekend or Ada County holiday.

3. **Section Headings.** Section headings or captions are for reference purposes only and shall not be used in the interpretation of this Title.
4. **References.** All references to state or federal laws and/or regulations shall refer to such laws and/or regulations as they may be amended over time.

C. Measurements

1. Structure height is measured as the vertical distance from the average contact ground level at the front wall of a building to the highest point of the coping of a flat roof, the deck line of a mansard roof, or the average height of the highest gable of a pitch or hip roof.
2. Linear distance is measured in a horizontal line. It is not measured along an inclined surface or line. For uses that have a separation standard, the distance is measured from the nearest customer entrance of the proposed use to the nearest property line of the specified use. This measurement is conducted in a radial fashion by the specified number of feet (e.g., 300 feet, 1,000 feet). Illumination levels are measured with a calibrated photoelectric photometer or similar device capable of accurate measurement of light.
3. Noise levels are measured at the property line with a calibrated noise meter or similar device capable of accurate measurement of sound. See Figure 8-10-1-1 Noise Measurement.

Figure 8-10-1-1 Noise Measurement



D. District Boundaries. Where uncertainty exists about the location of any district boundary shown on the official zoning map, the following rules are used to resolve the uncertainty:

1. Where a district boundary approximately follows a property line, that property line is construed as the district boundary.
2. Where a district boundary approximately follows a street, alley, or railroad line, that street, alley, centerline, or the extension of that line, is construed as the district boundary. Where a street or alley is officially vacated and that street or alley has not been given a zoning designation, the land that was formerly in the vacated street or alley shall have the same designation as the abutting property on either side of the centerline of the vacated street or alley.
3. Where a district boundary approximately follows a watercourse, the centerline of the watercourse is construed as that boundary. If a change in the watercourse shoreline, the boundary is construed as moving with the actual centerline.
4. Where a district boundary does not obviously coincide with any of the above lines (property; street, alley, or railroad line; watercourse), or where it is not designated by dimensions, it is located along nearest section, a quarter section, or a sixteenth section line.

8-10-2: Defined Terms

ABANDONED: To cease or discontinue a use of activity for twelve (12) months unless an active building permit has been issued.

ABUT OR ABUTTING: Having a common border with the subject property, which may include public right of way.

ACCESS: Ingress/egress to a property, parcel, or lot.

ACCESSORY OFFICE: An accessory use involving any office related functions to a primary use.

ACCESSORY OUTDOOR STORAGE: An accessory use involving the outdoor storage of materials, supplies, and products to a primary use.

ACCESSORY POWER FACILITY: A wind facility or solar facility where electricity is primarily produced for use on site with excess supplied to a power grid. The generation capacity shall be one hundred (100) kilowatts or less.

ACCESSORY RETAIL SALES: The sale, distribution, presentation, demonstration, or supply of goods to consumers through or at a retail store.

ACCESSORY STRUCTURE: A detached structure in a rural or residential base district that is incidental and subordinate to the principal structure and is located upon the same property. (Hallways, tunnels, breezeways, porticos, and similar connections shall not constitute an attachment to the principal permitted dwelling.) The term accessory structure shall include, but not be limited to, the following: private garage, storage structure, workshop, greenhouse, and/or a structure that houses a detached secondary dwelling. The term shall not include additional structures for approved public, commercial, or industrial uses.

ACCESSORY USE: A use that is incidental and subordinate to the principal or approved conditional use and is conducted upon the same property. For the purposes of this Title, temporary

uses specified in Sections 8-4-73 and 8-6-29 of this Title shall be deemed accessory uses.

ADDITIONAL FARM DWELLING: A dwelling that complies with the requirements for a “Dwelling, Additional Farm” in Chapter 4.

ADULT BOOTH: A separate enclosure within a structure featuring adult entertainment or adult material. The term adult booth does not include a restroom or a foyer through which any person can enter or exit the establishment.

ADULT CABARET: An establishment that features adult entertainment.

ADULT ENTERTAINMENT: Material or performances distinguished or characterized by an emphasis on matter depicting, describing, or relating to ‘Specified Sexual Activities’ or ‘Specified Anatomical Areas’ for observation by its patrons or limits the presentation of those materials to persons over eighteen (18) years of age. This definition does not apply to a legitimate theatrical performance where nudity is only incidental to the primary purpose of the performance. For the purposes of this definition:

1. “Specified Sexual Activities” are defined as:
 - a. human genitals in a state of sexual stimulation or arousal;
 - b. acts of human masturbation, sexual intercourse, or sodomy;
 - c. fondling or other erotic touching of human genitals, pubic region, buttock, or female breast.
2. “Specified Anatomical Areas” are defined as:
 - a. less than completely and opaquely covered:
 1. human genitals, pubic region,
 2. buttock, and
 3. female breast below a point immediately above the top of the areola; and
 4. human male genitals in a discernibly turgid state, even if completely and opaquely covered.

ADULT ENTERTAINMENT ESTABLISHMENT: A place where adult entertainment occurs, where adult material is available, an adult cabaret, adult booth, adult modeling or display establishment, adult motel, or adult theater.

ADULT MATERIAL: One or more of the following materials that have as their primary or dominant theme matter depicting, illustrating, describing, or relating to adult entertainment, regardless of whether it is new or used:

1. books, magazines, periodicals or other printed matter;
2. photographs, films, motion pictures, videocassettes, slides, or other visual representations;
3. recordings or other audio matter.

The term adult material shall also include instruments, novelties, devices, or paraphernalia that are designed for use in connection with adult entertainment.

ADULT MODELING OR DISPLAY ESTABLISHMENT: Any establishment whose employees engage in adult entertainment or adult private modeling.

ADULT MOTEL: Any motel, hotel, boarding house, rooming house, or other place of temporary lodging that includes the word "adult" or "erotic" in any name it uses, or otherwise provides or advertises adult entertainment or adult material.

ADULT PRIVATE MODELING: Modeling, posing, exhibition, display, or exposure by an employee relating to adult entertainment before a nonemployee while the nonemployee is in an area not accessible to all other persons in the establishment, or while the nonemployee is in an area either totally or partially screened or partitioned during such display from the view of all persons outside the area. The term "private performance" is considered private modeling.

ADULT THEATER: An establishment consisting of an enclosed structure, or a portion or part of an enclosed structure, or an open-air area where a person may view adult material or adult entertainment. Generally, the adult material or adult entertainment is prerecorded material.

ADULT VIDEO OR BOOK STORE: An establishment that sells or rents adult material; however, any establishment meeting all the following criteria shall not be considered an adult video or bookstore:

1. The adult material is accessible only by employees.
2. The individual items of adult material offered for sale and/or rental comprise less than ten percent (10%) of the individual items publicly displayed at the establishment as stock in trade in the following categories: videos, books, magazines, periodicals, other printed matter, slides, other visual representations, recordings, and other audio matter.
3. The establishment does not use the following terms in advertisements or other promotional activities relating to the adult materials: "XXX," "XX," "X," or any series of the letter "X" whether or not interspersed with other letters, figures, or characters; "erotic" or deviations of that word; "adult entertainment" or similar phrases; "sex" or "sexual acts" or similar phrases; "nude" or "nudies" or similar phrases; or any other letters, words, or phrases that promote the purchase or rental of adult material.

AGRICULTURAL LAND, PRIME: Land that contains class I, II, or III agricultural soils as defined by the land capability classification assigned by the Natural Resources Conservation Service of the United States Department of Agriculture.

AGRICULTURAL PRODUCE STAND: An establishment for the display and sale to the general public of "produce" as defined in this Section, which produce has been grown on the premises on a seasonal basis. No other commodities may be sold.

AGRICULTURAL SERVICE: An activity that provides support for agriculture and forestry as classified by the U.S. Census Bureau "North American Industrial Classification System." The term shall include agricultural service composting. The use must serve a rural district with agricultural use.

AGRICULTURAL STRUCTURE: A structure on a "farm," excluding any dwelling or any structure that shelters any personal items not directly needed for agricultural uses.

AGRICULTURAL USE: Activities that take place on a "farm," as herein defined, that are classified by the Ada County Assessor's Office tax categories of 010, 020, 030, 040, and/or 050.

The application of fertilizer or process wastewater at agronomic rates shall be deemed a component of the agricultural use.

AGRITAINMENT: Events and activities (such as corn mazes, hayrides, and petting zoos, that allow for recreation, entertainment, and tourism in conjunction with agriculture support and services) that are directly associated with an ongoing agricultural use on-site.

AGRONOMIC RATE: The application of fertilizer or other crop supplements: a) at rates whereby the nutrients are fully taken up by the crop or stored in the soil, and b) in a manner that does not negatively impact the waters of the state.

AIRCRAFT LANDING FIELD (PRIVATE): A privately owned area of land that is used or intended for the landing and takeoff of aircraft, including the necessary accessory structures or facilities for storing and maintenance of aircraft.

AIRPORT INFLUENCE AREAS: The areas surrounding the Boise air terminal that are affected by significant aircraft noise and safety hazards, as set forth in Section 8-2-24 of this Title.

AIRPORT: Any area of land or water which is used or intended for the landing and taking off of aircraft, and any appurtenant areas which are used or intended for use for airport buildings or other airport facilities or rights-of-way. This includes all necessary runways, taxiways, aircraft storage and tie-down areas, hangars, public terminal buildings and parking, helicopter pads, support activities such as airport operations and air traffic control, and other necessary buildings and open spaces. Includes dusting services. For purposes of this definition, "aircraft" means a device that is used or intended to be used for flight in the air, such as an airplane or helicopter.

ALQUOT: The length of one side of a quarter-quarter section (1/16). The one-sixteenth (1/16) section contains forty (40) acres, more or less.

ALTERNATIVE FUEL: A fuel that is used primarily to power combustion engines that includes, but is not limited to, biodiesel, electricity, ethanol, hydrogen, methanol, natural gas and propane.

AMATEUR RADIO ANTENNA: The supporting towers and antenna structure necessary for broadcast from a radio communication service for the purpose of self-training, intercommunication, and technical investigation carried out by amateurs, that is, duly authorized persons interested in radio technique solely with a personal aim and without commercial interest.

AMERICANS WITH DISABILITIES ACT: 42 U.S.C. Chapter 126 and 28 CFR Part 36 (Part 36 Nondiscrimination on the Basis of Disability in Public Accommodations and Commercial Facilities), and Standards and Specifications, 2010 ADA Standards for Accessible Design (United States Department of Justice, September 15, 2010), Americans with Disabilities Act (ADA) Accessibility Guidelines for Buildings and Facilities.

AMUSEMENT OR RECREATION, INDOOR: An establishment engaged in providing amusement, recreation, or entertainment. Indoor amusement or recreation facility shall include, but not be limited to, pool hall, billiard parlor, theater, health club, spa, fitness facility, nightclub, or skating rink.

AMUSEMENT OR RECREATION, OUTDOOR: An establishment engaged in providing amusement, recreation, or entertainment. Outdoor amusement or recreation facility shall include, but not be limited to, amusement park, miniature golf, golf driving range (that is not accessory to a golf course), drive-in theater, tennis court, football, soccer, rugby, or hockey field, skatepark, or swimming pool.

ANIMAL FEEDING OPERATION (AFO): A "livestock confinement facility," as herein defined, with more than three hundred (300) animal units, and where the animal confinement areas do not sustain crops, vegetation, forage growth, or postharvest residues in the normal growing season as generally described in 40 CFR (code of Federal Regulations) 122.23(b)(1). Two (2) or more abutting AFOs under common ownership shall be considered a single AFO. Two (2) or more AFOs that are operated as a single facility shall be considered a single AFO if it is determined by the Director that they significantly link operations including, but not limited to, shared storage or treatment systems or shared equipment.

ANIMAL UNIT: A unit of measurement for livestock confinement facilities calculated by adding the following numbers: the combined weight of all dairy cattle divided by one thousand three hundred fifty (1,350); plus the combined weight of all other cattle divided by one thousand four hundred (1,400); plus the combined weight of all swine divided by six hundred (600); plus the combined weight of all sheep divided by one thousand two hundred fifty (1,250); plus the combined weight of all goats divided by one thousand (1,000); plus the combined weight of all horses divided by one thousand five hundred (1,500); plus the combined weight of all chickens divided by three hundred fifty (350); plus the combined weight of all turkeys divided by five hundred (500); plus the combined weight of all ducks divided by two hundred (200). Where an AU is not specifically defined in this Title for an animal, an appropriate AU shall be determined by the Director with advice from the Idaho department of agriculture.

ANTENNA: Any system of wires, poles, rods, reflecting discs, or similar devices used for the collection, transmission, radiation, or reception of electromagnetic waves, external to or attached to the exterior of any structure. This includes both directional antennas, such as panels and microwave dishes, and omnidirectional antennas, such as whips and satellite dishes, but not including satellite earth stations.

ANTENNA HUB SITE: An area containing one or more unmanned equipment structures sited to serve telecommunications antennas. An antenna hub site may be located on the same lot as the antennas served or located on a lot that does not contain the antennas served.

ANTENNA SUPPORT STRUCTURE: A self-supporting or bracketed ground-mounted pole sixty (60) feet or less in height that is accessory to and used to support one or more telecommunications antennas and no more than one related unmanned equipment structure.

APARTMENT: A room or suite of rooms in a multi-family development for sale, rent, lease, let, or hire to be used as a single dwelling.

APPEAL: A request for a review of any decision by the Ada County Director or the Planning and Zoning Commission in applying the Ada County Zoning Ordinance.

APPELLANT: A party of record or other person who is entitled by law to appeal and who initiates an appeal.

APPLICANT: The person or entity seeking an approval of an application required by this Title, including a decision from the Director or the Board, or a decision or recommendation from the Commission. The "applicant" includes the owner of the property subject to an application.

APPLICATION: The document utilized by a person seeking approval for an act under this Title.

APPROVED USE: A use that has been approved.

AREA OF CITY IMPACT: Those unincorporated areas of Ada County surrounding each

incorporated city as identified in Title 9 of this code, in accord with Idaho Code Section 67-6526.

ASPHALT OR CONCRETE READY-MIX PLANT: A central proportioning and mixing plant for the production of an aggregate product such as asphalt or concrete.

AUCTION: Premises on which merchandise is stored on a temporary basis to be sold through an on-site auction.

AUTOMOBILE WRECKING YARD: Any area, lot, land, or parcel where more than two (2) motor vehicles without current registration or more than two (2) inoperable or dismantled motor vehicles that are not in operating condition (or parts thereof) are: a) standing more than thirty (30) days, b) dismantled, or c) stored. The following uses are excluded from this definition: agricultural equipment on a "farm" as herein defined, automotive hobby as set forth in Section 8-4-8 of this Title, and vehicles stored or dismantled within a completely enclosed structure.

AUTOMOTIVE, HOBBY: An accessory use involving the restoration, maintenance, and/or preservation of not more than two (2) vehicles at any one time.

BAR: A structure used primarily for the sale or dispensing of liquor by the drink or glass, but not including restaurants where the principal business is serving food.

BARRIER: A vertical element including, but not limited to, a fence, wall, structure, or a combination thereof, that completely surrounds an area and controls access to such area.

BASE DISTRICT: The zone district classification, listed in Section 8-2-3 of this Title, in effect on any given property.

BEACON: Any light with one or more beams directed into the atmosphere or directed at one or more points not on the same property as the light source; also, any light with one or more beams that rotate or move.

BED AND BREAKFAST ESTABLISHMENT: An owner-occupied dwelling providing overnight accommodations and breakfast food service for no more than ten (10) occupants, including the owner and owner's family.

BERM: A raised landform designed to provide visual interest, screen undesirable views, and/or decrease noise.

BICYCLE PARKING FACILITIES: Any area or necessary equipment to store bicycles on a short- or long-term basis. Bicycle parking facilities include spaces, racks, lockers, cages, and secured parking locations.

BILLBOARD: A permanent, off-premises sign or sign structure on which a person places copy on a poster or panel mounted on a pole or metal structure. Typically, a billboard has one of the following configurations:

1. wood posts or pole supports with dimensional lumber as the secondary support (A-frame) with a wood or metal catwalk with display panels,
2. steel A-frame constructed with angle iron or steel supports with metal framing, catwalk, with display panels,
3. multi-mast structure constructed with steel poles, I-beam, or equivalent member as the primary support, with a catwalk, and display panels, or
4. monopole structure constructed with tubular steel support, tubular steel framing, metal

catwalk, and display panels with a concrete foundation.

BIOMASS FACILITY: A type of power facility that converts the energy stored in renewable organic material into electricity. Renewable organic materials used in the conversion process include, but are not limited to, wood, crops, animal waste, garbage, landfill gas, biogas, and alcohol fuels.

BLANKETING: A term applicable to signs or sign structures where the partial or complete shutting off of the face of one sign by another sign.

BLOCK: A piece of land or group of lots within a platted subdivision.

BOARD: Board of Ada County Commissioners.

BOARDING HOUSE: An establishment with individual rooms where meals and lodging are provided for, with or without compensation, to more than two (2) but not more than ten (10) persons. A boarding house shall include, but not be limited to, a rooming house, shelter, convent, monastery, dormitory, fraternity house, sorority house, or any group of individuals whose association is temporary or seasonal in nature. Hotels, motels, multi-family developments, and bed and breakfast establishments are not considered boarding houses.

BREWERY: An establishment that brews thirty thousand (30,000) barrels of beer or more annually and as defined by Idaho Code Section 23-1003. The use may include the ancillary sale or dispensing of beer or malt liquor by the drink or glass.

BREW PUB or DISTILLERY: A brewpub is an establishment that brews less than thirty thousand (30,000) barrels of beer annually and as defined by Idaho Code Section 23-1003. A distillery is an establishment that produces spirits, as defined by Idaho Code Section 23-105. A brewery or distillery may include a restaurant, sale of alcoholic beverages by the drink or glass, and/or retail sale of the products of the brewery or distillery.

BUFFER: A combination of physical space and vertical elements, including, but not limited to, plants, berms, fences, and/or walls that separate and screen incompatible land uses from one another.

BUILDING AREA: This is expressed as the maximum per building, in gross floor area (gfa). The building area is determined using the methodology established in the Ada County Building Code.

BUILDING ENVELOPE: The area on a property exclusive of required yards and unbuildable areas (including, but not limited to, slopes in excess of twenty-five percent (25%) and areas within a designated floodway).

BUILDING FACE: Where sign size is prescribed as a percent of building face area, the “building face area” is a continuous portion of a building facade, as viewed by a person approaching the building from the public right-of-way, consisting of a plane surface including the parapet wall but excluding any appurtenances, such as columns, pilasters, canopies, marquees, showcases, or decorations.

BUILDING HEIGHT: Building height is measured as the vertical distance from the average ground level at the front wall of a building to the highest point of the coping of a flat roof, the deck line of a mansard roof, or the average height of the highest gable of a pitch or hip roof.

BUILDING MARKER: Any sign indicating the name of a structure, a date, or other incidental information about its construction cut into a masonry surface or made of bronze or other permanent

material.

BUILDING OFFICIAL: The officer or other designated authority charged with the administration and enforcement of the Ada County Building Code, or the building official's duly authorized representative.

CALENDAR DAY: Sunday through Saturday, including all holidays.

CALIPER: A measurement of the diameter of the trunk of a deciduous tree. The caliper of the trunk shall be measured six inches (6") above the ground for all trees up to and including four-inch (4") caliper size, and twelve inches (12") above the ground for larger sizes.

CAMPGROUND: An area or tract of land that accommodates one or more temporary residential uses, including, but not limited to, cabins, tents, campers, travel trailers, motor homes, and/or recreational vehicles.

CAPITAL IMPROVEMENTS PROGRAM (CIP): A plan that describes when urban public facilities will be built, how much they will cost, and the source of funding. A CIP usually covers a period of between three (3) and ten (10) years.

CAR WASH: An establishment or area that provides facilities for washing and cleaning vehicles, which may use production line methods with a conveyor, blower, or other mechanical devices, and that may employ some hand labor. The facility may include vacuums and drying areas as accessory uses.

CARETAKER DWELLING: See Dwelling, Caretaker.

CELL TOWER HEIGHT: The distance from the finished grade at the tower base to the highest point of the tower, plus twenty (20) feet to accommodate additional antenna colocation.

CEMETERY: A place dedicated to, used and intended to be used for, the permanent interment of the human dead, and may include a burial plot for earth interments, a mausoleum for vault or crypt interments, a crematory, or a crematory and columbarium for cinerary interments, or a combination of one or more of the above.

CENTRALIZED POWER FACILITY: A geothermal, solar, biomass, or hydroelectric power facility where electricity is produced with a capacity greater than one hundred (100) kilowatts and is transmitted to other locations for consumption. This includes all buildings and structures on the site that are used to generate power, including power generators, equipment, and other structures that are located on-site.

CHILDREN'S TREATMENT FACILITY: An establishment, or portion thereof, that: a) provides permanent provisions for living, sleeping, eating, cooking, and sanitation for more than eight (8) juveniles under eighteen (18) years old, and b) provides treatment for substance abuse, mental illness, emotional disturbance, developmental disability, mental retardation, or juveniles who have been identified by the judicial system as requiring treatment, therapy, rehabilitation, or supervision. For purposes of this Title, this definition shall include group foster homes with more than thirteen (13) juveniles.

CLEAR VISION TRIANGLE: An area at the intersection of two (2) streets that is clear of sight obstructions to motorists (see Figures 10-2-1a and 10-2-1b).

Figure 10-2-1a Clear Vision Triangle

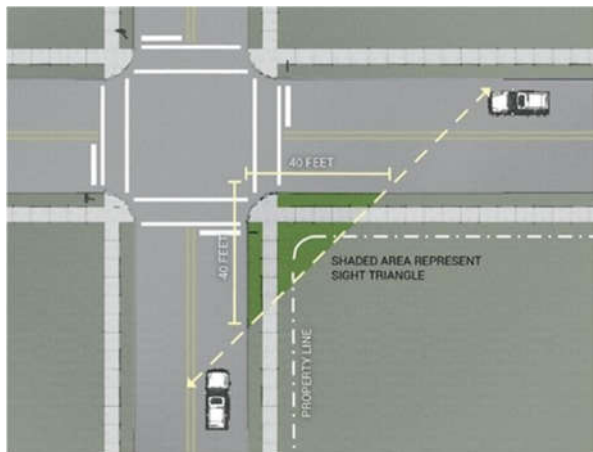
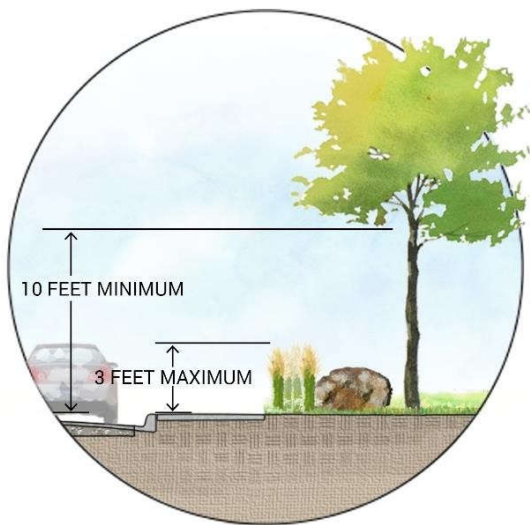


Figure 10-2-2b Clear Vision Triangle – Height Standards



CLIENT: For purposes of the day care (day care center; day care home, family; and day care facility, group) and group foster home definitions, a “client” is a person who receives direct care from providers at a day care facility, or a group foster home.

CLINIC (DENTAL OR MEDICAL): A facility (including any room, studio, clinic, suite, or building) where individuals licensed in the State practice medicine, osteopathy, dentistry, chiropractic, podiatry, physical therapy, psychiatry, clinical psychology, or other health-related professions on an out-patient basis. This does not include a hospital, veterinary service, or animal hospital.

COLLOCATION: The use of a single structure to support more than one wireless telecommunication service provider's equipment, or the mounting of an antenna to a preexisting structure.

COMMERCIAL VEHICLE: Any vehicle defined by Idaho Code Section 49-123.

COMMISSION: The Planning and Zoning Commission of Ada County, Idaho.

COMPOSTING FACILITY: A facility for the production of compost intended for use on premises other than where the compost is produced. This does not include wood chipping activities that result wood bark sales on-and-off site, as this is not a fertilizer.

COMPREHENSIVE PLAN: The duly adopted comprehensive plan for a political subdivision of the state of Idaho pursuant to the "Local Land Use Planning Act," Idaho Code Section 67-6501 et seq., as amended.

CONDITIONAL USE: A use that, owing to some special characteristics, attendant to its operation or installation (for example, potential danger, hours of operation, or noise), is permitted in a district only subject to approval by the Planning and Zoning Commission and subject to special requirements as enabled by Idaho Code Section 67-6512.

CONDOMINIUM: An estate in real property as defined in Idaho Code Section 55-101B that is not a subdivision.

CONFINEMENT AREAS: Any area or structure where livestock and/or poultry are stabled, confined, gathered, fed, maintained, and/or milked and where such areas do not sustain crops, vegetation, forage growth, or postharvest residues in the normal growing season.

CONSERVATION EASEMENT: A nonpossessory interest of a holder in real property imposing limitations or affirmative obligations, the purposes of which include retaining or protecting natural, scenic, or open space values of real property, assuring its availability for agricultural, forest, recreational, or open space use, protecting natural resources, maintaining or enhancing air or water quality, or preserving the historical, architectural, archaeological, or cultural aspects of real property.

CONSOLIDATION: The process of combining two parcels of land into one. This is not a subdivision process.

CONTIGUOUS PARCELS: Un-platted parcels held in one ownership that abut each other at a common boundary. See also Section 8-3-2D of this Title.

CONTINUING CARE FACILITY: A building or structure used for any of the following:

1. **Congregate Living Facility:** an establishment that provides independent living affiliated with or located near health care facilities. This also includes children's treatment facilities.
2. **Adult Assisted Living:** an establishment for people who cannot live independently and who need assistance with daily chores and housekeeping.
3. **Nursing Home:** an establishment for individuals who require specialized nursing care on a regular basis but who do not need to be hospitalized. This use also includes residential care facilities and adult respite health care centers.
4. **Skilled Nursing Facility:** An establishment that provides permanent provisions for living, sleeping, eating, cooking, and sanitation and that provides healthcare needs to more than eight (8) individuals who, at a minimum, require: a) inpatient care and services for twenty-four (24) or more consecutive hours for unstable chronic health problems, b) daily professional nursing supervision and licensed nursing care on a twenty-four (24) hour basis, and c) restorative, rehabilitative care and assistance in meeting daily living needs. Medical supervision may be necessary on a regular, but not

daily, basis. A skilled nursing facility shall include, but not be limited to: convalescent home, intermediate care, and subacute care.

- 5. Residential Care Facility:** An establishment that provides permanent provisions for living, sleeping, eating, cooking, and sanitation and that provides twenty-four (24) hour nonmedical care for more than eight (8) individuals who need personal care or assistance and supervision. A residential care facility shall include, but not be limited to, assisted living facility, retirement home, and respite care.

CONTINUOUS SERVICE DRIVE: A privately owned and maintained continuous drive providing for ingress and egress to a public road, internal vehicle circulation, and emergency access in a multi-family, commercial or industrial development.

CONTRACTOR YARD: Any area of land used by a contractor for storage, maintenance, or processing incidental to the business of building, hauling, excavation, demolition, or similar activity and including any area of land used for the incidental repair of machinery used for any of the above listed activities.

CONTRACTOR: A person who agrees to furnish materials or perform services at a specified price, especially for construction. The term contractor shall include, but not be limited to, building, landscaping, electrical, plumbing, heating, or air conditioning contractors.

COUNTY CODE: The Ada County, Idaho, Code of Ordinances. This term may also be referred to as “Code.”

COUNTY ENGINEER: That licensed in the state of Idaho professional engineer appointed by the Board who is responsible for all engineering matters for Ada County.

COUNTY SURVEYOR: That licensed in the state of Idaho professional land surveyor appointed by the Board to check plats and monuments for compliance with platting and surveying laws, provide for surveying monument records, and make such surveys,

descriptions, maps, and plats as ordered by the Board.

COUNTY: Ada County, Idaho.

COVERAGE: The area of a property occupied by the footprint of all structures.

CREMATORY: A facility used primarily for human funeral services, which may or may not include facilities on the premises for embalming and performing of autopsies or other surgical procedures. This facility conducts cremation or incineration for deceased individuals.

CUTOFF ANGLE: The angle formed by a line drawn from the direction of light rays at the light source and a line perpendicular to the ground from the light source, above which the light is emitted.

DAIRY: An operation whose principal function is the production of milk, including the barn, processing facility, or feeding area where dairy animals are kept, raised, or fed.

DANGEROUS OR PROTECTED ANIMAL: Any species for which the state or federal government has established specific regulations regarding such animal including, but not limited to, big cats, bears, raptors, large reptiles, and other wildlife. The term shall not include any species commonly recognized as domestic pets.

DANGEROUS OR PROTECTED ANIMAL FACILITY: A building, structure, or enclosure

where dangerous or protected animals are maintained, harbored, possessed, trained, bred, boarded, or cared for.

DAY-NIGHT AVERAGE SOUND LEVEL (DNL): The 24-hour average sound level, in decibels, for the period from midnight to midnight, obtained after the addition of ten decibels to sound levels for the periods between midnight and 7 a.m., and between 10 p.m., and midnight, local time. The symbol for DNL is Ldn. [Source: 14 C.F.R. § 150.7]

DAY CARE CENTER: A place or facility providing day care for compensation for thirteen (13) or more clients. Day camps, day programs and religious schools held for more than two (2) weeks during a calendar year or held more often than once a week, are considered day care centers. The provision of occasional care exclusively for clients of parents who are simultaneously in the same building is not considered a day care center.

DAY CARE HOME, FAMILY: A home, place, or facility providing care and supervision for compensation for part of a day, for six (6) or fewer clients not related by blood or marriage to the person providing the care, in a place other than the clients' own home. The occasional care of clients by a person not ordinarily in the business of childcare, and the provision of care for clients of only one immediate family in addition to the person's own children are not considered family day care homes.

DAY CARE FACILITY, GROUP: A home, place or facility providing care and supervision for compensation for part of a day, for seven (7) to twelve (12) clients not related by blood or marriage to the person(s) providing the care, in a place other than the clients' own home. The occasional care of clients by a person not ordinarily in the business of childcare, and the provision of care for clients of only one immediate family in addition to the person's own children are not considered group day care facilities.

dBA: The A-weighted scale for measuring sound in decibels; weighs or reduces the effects of low and high frequencies in order to simulate human hearing.

DECISION MAKING BODY: The Director, Commission, or Board, as set forth in Chapter 9 of this Title. The decision-making bodies are identified as the bodies making a "decision" in Section 8-6-2, Table 8-6-2-1.

DEDICATION: The setting apart of land or interests in land for public use, charitable, religious, or educational purposes.

DENSITY, NET: The ratio of the total number of dwelling units within a development divided by the area devoted to residential uses (excluding roadways and/or required dedicated open space). Should that number be a fraction, it shall be rounded to the nearest whole number.

DENSITY: The ratio of the total number of dwelling units within a development divided by the total area. Should that number be a fraction, it shall be rounded to the nearest whole number.

DEVELOPMENT AGREEMENT: A written agreement as a condition of zoning ordinance map amendment between the Board and an owner concerning the use or development of a property in accord with Idaho Code Section 67-6511A and Section 8-6-17 of this Title.

DEVELOPMENT: Any construction or installation of a structure, or any change in use of a structure, or any change in the use, character, or appearance of land.

DIRECTOR: The Director of the Ada County Development Services Department or an authorized

representative.

DISTRIBUTED POWER FACILITY: A wind or solar power facility where electricity is primarily produced for use on site with excess supplied to a power grid. The generation capacity shall be one hundred (100) kilowatts or less.

DISTRIBUTED POWER FACILITY, SOLAR ROOFTOP: A distributed power facility that converts solar energy into electrical energy, and that is mounted on the rooftop of a building.

DISTRIBUTED POWER FACILITY, WIND FREESTANDING TOWER: A wind or solar power facility where electricity is primarily produced for use on site with excess supplied to a power grid. The generation capacity shall be one hundred (100) kilowatts or less.

DISTRIBUTED POWER FACILITY, WIND ROOFTOP: A distributed power facility that converts wind energy into electrical energy, and that is mounted on the rooftop of a building.

dNL: See Day-night average sound level above.

DOMESTIC PET: An animal kept for enjoyment and companionship that is housed primarily inside a dwelling.

DRIVE AISLE: Provides access to off-street parking spaces. In some instances, a continuous service drive may also double as the drive aisle.

DRIVE-UP ESTABLISHMENT: An establishment with drive-up window service.

DRIVE-UP WINDOW SERVICE: An establishment providing a "drive-up window" as herein defined. The term drive-up window service shall include, but not be limited to, providing food or beverage service, and/or bank service. The term drive-up window service shall not include "gasoline, diesel, or alternative fuel sales facility" or "car wash" as herein defined.

DRIVE-UP WINDOW: Any portion of a structure or structure from which business is transacted, or is capable of being transacted, directly with customers located in a motor vehicle.

DRUG AND ALCOHOL TREATMENT FACILITY: An establishment, or portion that:

- a) provides permanent provisions for living, sleeping, eating, cooking, and sanitation, and
- b) provides a treatment program for adult patients (18 years and older) with a drug and/or alcohol use problem. This definition shall include a detoxification facility, inpatient facility, residential facility, clinic, and outpatient facility as they relate to drug and alcohol treatment.

DWELLING OR DWELLING UNIT:

Any structure, or portion thereof, providing independent living facilities for one "family" as herein defined, including provisions for living, sleeping, eating, cooking, and sanitation. See Figure 8-10-2-3 for types of dwellings.

DWELLING, ADDITIONAL FARM:

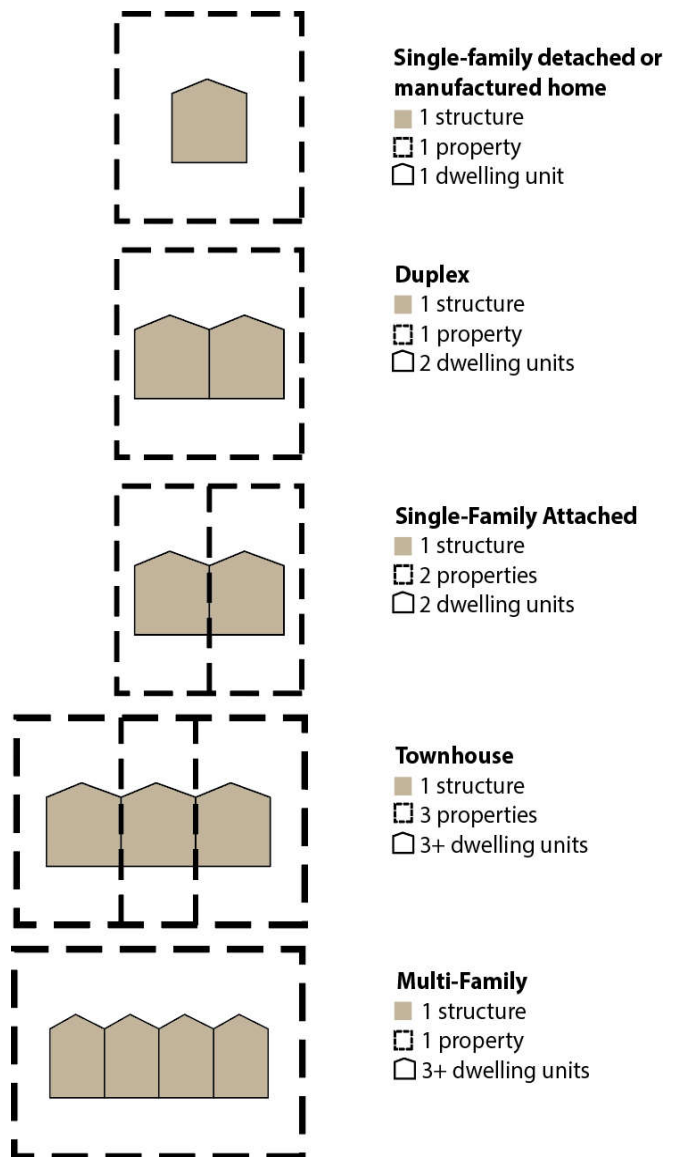
A secondary, independent dwelling unit located in, or on the same property as, a farm.

DWELLING, CARETAKER: A secondary, independent dwelling unit located in, or on the same lot/parcel as a use requiring an on-property caretaker.

DWELLING, DUPLEX: A dwelling unit, which is attached by a common wall, where dwelling units are located on the same property.

DWELLING, MULTI-FAMILY: One of a group of dwelling units in an attached multi-family residential structure. For purposes of this ordinance, multi-family dwelling includes any unit that does not meet the definition of single-family attached or single-family detached. Examples include stacked triplexes (three dwellings stacked on separate floors), quadruplexes or fourplexes (four dwellings in a single building with two dwellings on the ground floor and two above), and apartments or flats (buildings with more than four dwellings in a single building).

Figure 8-10-2-3 Dwelling Unit Types



DWELLING, SECONDARY ATTACHED OR DETACHED: A dwelling unit intended to increase the access to and availability of housing in Ada County.

- 1. Attached:** A dwelling unit that shares a common wall or walls with the principal dwelling, has a separate outside entrance from the principal dwelling, and is subordinate to the principal dwelling.
- 2. Detached:** A dwelling unit that is located in a completely separate structure from the principal dwelling and is subordinate to the principal dwelling.

DWELLING, SINGLE-FAMILY ATTACHED: A group of dwelling units attached by common walls, where dwelling units are located on separate lots. Examples include two dwelling units in a single building divided by a lot line, and townhouses.

DWELLING, SINGLE-FAMILY DETACHED: A dwelling unit designed for and occupied by one family only and not structurally connected or attached to any other dwelling. This definition includes a manufactured home that:

1. Is multi-sectional;
2. Encloses an area of at least one thousand (1,000) square feet;
3. Is placed on an excavated and backfilled foundation and enclosed at the perimeter so that the structure is located no more than twelve inches (12") above grade;
4. Has exterior siding and a roof that is similar in color, material, and appearance to the exterior siding and roofing material commonly used on immediately surrounding properties.

DWELLING, TOWNHOUSE: A single-family dwelling unit constructed in a group of three (3) or more attached units, where each unit is located on a separate lot. Each dwelling unit extends from the foundation to roof and with open space on at least two (2) sides.

EASEMENT: A right of use, usually for a certain stated purpose, as defined by Idaho Code Section 50-1301.

ELECTRIC DISTRIBUTION LINE: Those lines carrying between seven (7) kV and thirty-five (35) kV of electricity directly to customers.

ELECTRIC SUBSTATION: A facility primarily serving as part of a regional interconnecting grid system that provides for the transformation, switching, and distribution of both transmission voltage and/or distribution voltages.

ELECTRIC SUBTRANSMISSION LINE: All lines forty-six (46) kV, sixty-nine (69) kV, and one hundred thirty-eight (138) kV carrying electricity between two (2) substations.

ELECTRIC TRANSMISSION LINE: Those lines carrying from two hundred thirty (230) kV to five hundred (500) kV of electricity from a power facility to a substation.

ELECTRONIC MESSAGE BOARD: A freestanding sign on which changeable copy is provided by a digital readout.

EMPLOYEE: A person employed on the premises by the property owner and receiving not less than seventy-five percent (75%) of the employee's annual income from said property owners.

ENDANGERED OR PROTECTED SPECIES RESEARCH FACILITY: A facility whose principal purpose includes active captive breeding of endangered or protected animals. The facility must have a public education initiative and allow general public access to some portion of the facility. The operator shall possess a current U.S. fish and wildlife service permit(s) that allows working with the endangered or protected species being maintained on site.

ENERGY STORAGE: A fixed installation where energy is stored, either for subsequent transshipment to a smaller fixed installation, for pick-up by truck for transport to the site where the product will be used by the consumer, or for collection or transmission through electrical lines. Energy types may include: bulk gasoline; petroleum products; natural gas, coal; or electric / battery / hydrogen fuel cells. Materials may be stored in one or more tanks on the site, with tank size subject to Federal and State construction and safety standards. These facilities do not include retail sales. This use does not include accessory tanks for agriculture, temporary construction, or

personal use.

EQUESTRIAN STABLE/EVENT FACILITY: An establishment engaged in equine activities and events including teaching equestrian skills, participating in equestrian competitions, exhibitions, or other displays of equestrian skill (such as polo, dressage, and show jumping). Accessory uses may include offices, storage areas, caretaker's quarters, and caring for, breeding, boarding, riding, or training horses associated with the Equestrian Event Facility use.

ESTABLISHMENT: A place of business or residence with its furnishings and staff.

ESTABLISHMENT: For purposes of Section 8-3-12 (Signs), for multi-use properties, a distinct user that occupies a portion of a multi-tenant building, lot, or development, regardless of the legal arrangement allowing occupancy between the owner of the building, lot, or development and the user.

EVENT: See "Special Event."

EVENT CENTER: A public or privately owned structure, structures and/or area used for the purposes of a social or cultural event, such as private receptions, weddings, public performances, meetings or parties, or similar attractions.

EXPLOSIVE MANUFACTURING OR STORAGE: A facility engaged in the process and business of manufacturing explosive materials for research, testing, sale, or distribution.

FACILITY: A structure or place which is built, installed, or established to serve a particular purpose.

FALL ZONE: The area in which there is a potential hazard from falling debris (such as ice) or collapsing structural components.

FAMILY:

1. A person living alone or two (2) or more persons related by blood or marriage.
2. A group of not more than ten (10) persons who need not be related by blood or marriage living together in a dwelling unit.
3. Eight (8) or fewer unrelated mentally and/or physically handicapped or elderly persons residing in a dwelling who are supervised at the dwelling in connection with their handicap or age-related infirmity, provided that no more than two (2) staff members reside in the dwelling at any one time. (Resident staff shall not be counted toward the "eight [8] or fewer" criterion).

FAMILY DAY CARE HOME: see "Day Care Home, Family."

FAMILY MEMBER: See definition of Member of The Owner's Immediate Family.

FARM: A property that meets the requirements of Idaho Code Section 63-604 and has obtained agricultural determination with the Ada County Assessor's Office.

FARM DEVELOPMENT RIGHT: A residential parcel created for conveyance pursuant to Section 8-2-5D.

FARM RESIDENTIAL PARCEL: The residential parcel created as a result of a farm development right.

FARM, GARDEN, LUMBER, OR BUILDING SUPPLY STORE: A commercial establishment

engaged in the provision of animal feed, bedding and accessories, lumber and building materials, and farm and garden supplies (such as seed, fencing, hardware, pesticides, and fertilizer) to agricultural, horticultural, and/or construction operations.

FARMWORKER HOUSING COMPLEX: A complex of dwellings established for the purpose of providing housing for laborers of seasonal agricultural operations, such as harvesting of agricultural crops.

FEDERALLY REGULATED CAFO: A confined animal feeding operation regulated by the Environmental Protection Agency for compliance with Section 502(14) of the Clean Water Act and the national pollutant discharge elimination system.

FINANCIAL INSTITUTION: An establishment where the primary occupation is financial services such as banking, savings and loans, loan offices, and check cashing, and currency exchange outlets. It does not include financial services that typically occur in an office or storefront (such as investment companies, loan companies, credit and mortgage, insurance services, or brokerage firms), which are classified under "Office," below.

FIRE AUTHORITY: The chief officer or an authorized representative of the fire entity serving the jurisdiction.

FIREWORKS STAND: The retail sales of nonaerial common fireworks from temporary stands (see Idaho Code Sections 39-2602, 39-2607).

FLAG: Any fabric, banner, or bunting containing distinctive colors, patterns, or symbols.

FLAMMABLE SUBSTANCE STORAGE: An establishment, or portion thereof, wherein combustible substances (as defined by the applicable fire code) are stored.

FOOTPRINT: Area of the ground covered by a structure, including the foundation and all areas enclosed by exterior walls and/or footings.

FOSTER HOME, GROUP: An establishment that: a) provides permanent provisions for living, sleeping, eating, cooking, and sanitation, and b) provides foster care for seven (7) to thirteen (13) children under the age of eighteen (18).

FOUNDRY: A workshop or factory for casting metal.

FREIGHT/TRUCK TERMINAL: An establishment or area where freight (brought by truck or rail) is transferred. The terminal facility may include storage or repair areas for trucks or railcars. The term freight or truck terminal shall not include a structure or area used for permanent or long-term storage of freight.

FRONTAGE: A property line along either:

1. a roadway, or
2. a permanent access easement to a public street that was of record prior to May 20, 1968, and has been established by a clear chain of title in subsequent recorded deeds.

FRONTAGE ROAD: A minor street parallel to and adjacent to an arterial street providing access to abutting properties and protection from through traffic.

FUEL CELL: A device that continuously changes the chemical energy of a fuel (as hydrogen) and an oxidant directly into electrical energy.

FUEL SALES: An establishment that sells and supplies motor fuel, lubricating oils, alternative fuel, and/or grease to on premises trade.

FULL CUTOFF SHIELD: In its installed position, a light fixture with a full cutoff shield will not allow any direct light above a horizontal plane and no more than five percent (5%) of the total light output may come from the zone from fifteen degrees (15°) below the horizontal to the horizontal plane. See Section 8-3-8 of this Title, Figure 8-3-8-1 (Full Cut Off Shield).

FUNERAL SERVICES: An establishment used primarily for human funeral services, which may or may not include facilities on the premises for embalming and performing of autopsies or other surgical procedures. Examples include funeral homes, mortuaries, or columbarias.

GLARE: Light emitted from a fixture with intensity great enough to cause visual discomfort, eye fatigue, reduction in a viewer's ability to see and, in extreme cases, momentary blindness.

GOLF COURSE: A tract of land laid out with at least nine holes for playing a game of golf and improved with tees, greens, fairways, and hazards. A golf course may include a clubhouse, restrooms, driving range, and shelters as accessory uses.

GOLF COURSE AND COUNTRY CLUB: An establishment with recreation facilities for members, their families, and invited guests, that includes a clubhouse (which may include dining and banquet facilities) and a golf course. The establishment may also include tennis facilities, swimming facilities, and indoor exercise or recreational rooms and equipment.

GRADE:

1. The degree of inclination of a slope, roadway, or other surface.
2. A slope or gradual inclination.
3. Top of ground upon completion of grading and landscaping.

GRADE, ADJACENT STREET: The grade at the top of the curb or the pavement edge where no curb exists.

GRAIN ELEVATOR: A structure equipped with mechanical lifting devices used for storing grain.

GRANDFATHER RIGHTS: See Chapter 7 of this Title.

GREENHOUSE: Structures whose roof and sides are made largely of transparent or translucent material and in which the temperature and humidity can be regulated for the cultivation of plants.

GROSS FLOOR AREA: The measure of total square footage of habitable space of a structure.

GROUND PASSENGER TRANSPORTATION: Facilities that provide passenger transportation by bus, charter bus, automobile, limousine, van, or shuttle. Some services (such as taxi) are not operated over regular routes and on regular schedules. Examples include charter bus, special needs transportation, taxicab owner/operators, taxicab fleet operators, or taxicab organizations. This use includes fleet services that store, maintain, repair, fuel, and service two or more vehicles owned by a single commercial or public entity. This use does not include publicly operated bus or transit systems.

GROUP DAY CARE FACILITY: See Day Care Facility, Group.

GROUP HOME: See Foster Home, Group.

HABITABLE SPACE: Space in a structure for living, sleeping, eating, or cooking. Bathrooms,

toilet compartments, closets, halls, storage or utility space, and similar areas, are not considered habitable space.

HALFWAY HOUSE: An establishment that provides housing for persons convicted of nonviolent crimes that are in the later stages of serving a sentence and are being transitioned back into society.

HEALTH AUTHORITY: The Central District Health Department, the Idaho Department of Health and Welfare, the Idaho Department of Environmental Quality, the United States Environmental Protection Agency, and any agency as may succeed to any of their powers. The term health authority is liberally construed to include all of the adopted, approved or certified plans, rules, regulations, statutes or laws of the health authority.

HEAVY EQUIPMENT SALES OR SERVICE: An establishment used for the sale, rental or servicing of tools, trucks, tractors, construction equipment, agricultural implements, or similar industrial equipment.

HEAVY TRUCK WASH FACILITY: A facility utilized primarily for washing and cleaning trucks and trailers that haul livestock and other agricultural products. The facility may include structures to store and contain process wastewater, i.e., water generated on an agricultural truck washing facility that comes into contact with manure, compost, bedding, or feed, during the non-land application season. The facility may include structures to allow land application of process wastewater during the land application season.

HIGHWAY: A street so designated as a state or federal highway by the state or federal agency responsible therefor.

HOME OCCUPATION: An occupation, profession, or business activity that is incidental and secondary to a dwelling unit and does not affect the rural or residential character of the neighborhood.

HOTEL/MOTEL: An establishment that provides lodging to the public for a fee as defined by Idaho Code Section 67-4711, excluding boarding houses and bed and breakfast establishments.

ILLUMINATED, DIRECT: A light fixture that directs and concentrates light on a sign.

ILLUMINATED, INTERNAL: A light source for a sign that is contained within the sign and is visible only through a translucent surface or recessed into the sign structure.

ILLUMINATED, NEON: A source of diffused light from a tube filled with neon, helium, argon, krypton, and/or xenon.

ILLUMINATION, EXPOSED LAMP: A source of light visible from the street where the lamp does not produce diffused light or where such lamp is not completely covered by a translucent and/or opaque shield.

IMPERVIOUS SURFACE: Any material that substantially reduces or prevents the infiltration of water. It includes surfaces such as compacted sand, shale, lime rock, or clay, as well as most conventionally surfaced streets, roofs, sidewalks, parking lots, and other similar structures.

IMPROVEMENT: Shall include, but not be limited to, roadway paving, curb, gutter, sidewalk, pedestrian pathway, bike path, water line, sewer line, drainage work, bus turnout, streetlight, and/or landscaping.

INDUSTRIAL: Refers to the manufacture, processing, fabrication, and testing of goods and

materials, including the production of power. It does not refer to the growing of agricultural crops, the raising of livestock, or the extraction or severance of raw materials.

INNER APPROACH ZONE: An area inside the airport influence areas that has the following dimensions: ten thousand feet (10,000') in length and beginning one thousand feet (1,000') in width at the end of the overrun area and widening uniformly to a width of four thousand feet (4,000') at a distance of ten thousand feet (10,000') and having as its center line the continuation of the center line of the landing strip.

INTERSTATE: A street that is designated as an interstate on the most current Ada County long range highway and street map.

JOINT USE PARKING: The use of a single parking facility by several related uses occupying the same or adjacent parcels.

JUNK: Discarded, used, or secondhand materials, including, but not limited to, used machinery, scrap copper, brass, iron, steel, other ferrous and nonferrous metals, tools, appliances, implements, vehicles or portions thereof, furniture, beds and bedding, rags, glass, plastic, cordage, rubber, building materials (excluding lumber), or other waste

that has been abandoned from its original use and may be used again in its present or in a new form.

JUNKYARD OR AUTOMOBILE WRECKING YARD: An establishment as defined by Idaho Code Section 40-111 where junk, including automobiles and machinery, are bought, sold, exchanged, stored, kept, processed, or handled.

KENNEL, COMMERCIAL: Any premises which five (5) or more domestic dogs are maintained, harbored, possessed, trained, bred, boarded, or cared for in return for compensation, but not including an animal clinic, animal hospital, or veterinary office.

KENNEL, HOBBY: A facility located at the private dwelling of the dog owner, where five (5) to ten (10) of the owner's dogs are maintained for purposes of breeding, hunting, organized field trials, obedience or training, competition, security, foster care, or for personal enjoyment.

LABORATORY: Facilities for biological, serological, biophysical, cytological, and pathological tests, and facilities for the chemical or other examination of materials from water, air or other substances, as defined by Idaho Code Section 39-103.

LAGOON: An earthen structure designed to treat liquid manure through biodegradation by bacteria.

LANDSCAPE AND SCREENING PLAN: A scaled drawing showing all existing and proposed landscaping and its associated measurements, features, and details such as trees, plantings, shrubs, groundcovers, soils, mulches, and preservation, protection, and replacement of landscaping items for a proposed development.

LANDSCAPE ISLAND: A landscape area surrounded by a parking area and/or a vehicular use area.

LIGHT FIXTURE, INSTALLED: The attachment, or assembly fixed in place, whether or not connected to a power source, of any outdoor light fixture.

LIGHT FIXTURE, OUTDOOR: Outdoor electrically powered illuminating device, outdoor

lighting or reflective surface, lamp, and similar device, permanently installed or portable, used for illumination or advertisement. Such devices shall include, but are not limited to, search, spot, and floodlights for buildings and structures; recreational areas; parking lot lighting; landscape lighting; billboards and other signs; street lighting; product display area lighting; building overhangs and open canopies.

LIGHT FIXTURE: A complete lighting unit consisting of a light source (lamp) and all necessary mechanical, electrical, and decorative parts.

LIGHT TRESPASS: The extension of a light fixture's effective zone of light (as defined by a photometric test report) beyond the boundaries of the property on which it is located. See Section 8-3-8 of this Title, Figure 8-3-8-2 (Light Trespass).

LIGHTING PLAN: A drawing showing all existing and proposed lighting and its associated structures, measurements, details, and features for a proposed development.

LIGHTING, DISPLAY: The Illuminating Engineering Society of North America (IESNA) recommended practices and American National Standards Institute (ANSI) standard lighting levels for display lighting.

LIGHTING, SECURITY: The IESNA recommended practices and ANSI standard lighting levels for security lighting.

LIGHTING, TEMPORARY: Exterior light fixtures that are intended for use for a period of less than seven (7) days, with at least one hundred eighty (180) days passing before being used again.

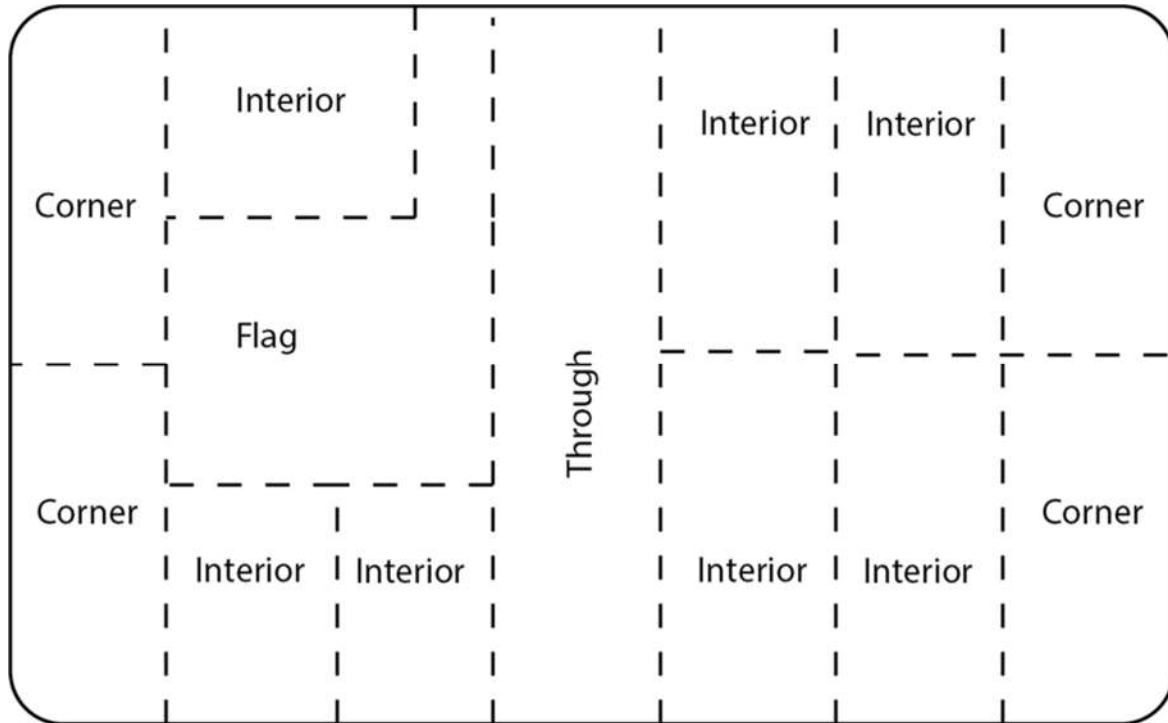
LIVESTOCK CONFINEMENT FACILITY: Facilities where animals have been, are, or will be stabled, confined, gathered, or concentrated and fed or maintained (watered, cleaned, groomed, medicated, etc.) for a total of forty-five (45) days or more in any twelve (12) month period. The days do not have to be consecutive.

LIVESTOCK: Poultry or other birds, horses, cattle, dairy cattle, swine, sheep, llamas, goats, or other grazing animals, excluding any such animal kept as a "domestic pet" as herein defined.

LOADING AREA: An open, off-street, hard-surfaced area of land used for the standing, loading, and unloading of motor vehicles, commercial vehicles, tractors, and trailers to avoid undue interference with public streets and alleys.

LOT, AREA: This is a minimum (in square feet or acreage) for the entire lot where a lot area standard applies.

Figure 8-10-2-4 Lot Types



LOT, CORNER: A lot bounded by two or more abutting and intersecting street lines.

LOT, COVERAGE: This is the maximum percentage (in square feet or acreage) of the lot covered by all improvements where a lot coverage standard applies.

LOT, DEPTH: This is a minimum (in feet) for the entire lot where a lot depth standard applies.

LOT, FLAG: A lot connected to a street by an access corridor such as an alley, private drive, or access easement.

LOT, INTERIOR: A lot which is not a corner lot and only has one (1) street frontage.

LOT, THROUGH: An interior lot bounded by two (2) or more abutting street lines that do not intersect.

LOT, WIDTH: This is a minimum (in feet) for the entire lot where a lot width standard applies.

LOT: A portion of a subdivision intended as a unit for transfer of ownership and development.

LUMEN: A unit of luminous flux. One (1) foot-candle is one (1) lumen per square foot. For the purposes of these regulations, the lumen-output values shall be the initial lumen-output ratings of a light fixture.

MANUFACTURED HOME:

1. A dwelling constructed according to HUD/FHA construction and safety standards and as defined by Idaho Code Section 39-4105.
2. A rehabilitated dwelling certified by the state of Idaho Department of Labor and Industry, Building Safety Division. See “dwelling, single-family detached” for a

description of manufactured homes that are treated as single-family detached dwellings.

MANUFACTURED HOME PARK: A development exclusively for siting manufactured homes on individual spaces that are rented or leased.

MANUFACTURED HOME STORAGE: Any property used for the dead storage of manufactured homes. "Dead storage" means that the manufactured homes are not occupied as dwelling units, connected to any utilities, or offered for sale by a dealer holding a valid retail license and having its principal place of business at the property.

MANUFACTURED HOME SUBDIVISION: A residential subdivision developed exclusively for siting manufactured homes on individual lots under individual ownership.

MANUFACTURING, HEAVY: Manufacturing of paper, chemicals, plastics, rubber, cosmetics, drugs, nonmetallic mineral products (such as concrete and concrete products, glass), primary metals, acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins, electrical equipment, appliances, batteries, and machinery. This group also includes asphalt mixing plants, concrete mixing plants, smelting, animal slaughtering, oil refining, and magazine contained explosives facilities.

MANUFACTURING, LIGHT: Manufacturing of products, from extracted, raw, recycled or secondary materials, including bulk storage and handling of those products and materials, or crushing, treating, washing, and/or processing of materials. This includes similar establishments, and businesses of a similar and no more objectionable character. It also includes incidental finishing and storage. Goods or products manufactured or processed on-site may be sold at retail or wholesale on or off the premises. This does not include any activity listed under Manufacturing, Heavy. Examples of light manufacturing include the manufacture or production of the following goods or products: apparel (including clothing, shoes, dressmaking); boats and transportation equipment; brooms; caskets; communication or computation equipment; dairy products; die-cut paperboard and cardboard; drugs, medicines, pharmaceutical; electrical equipment or machinery; farm machinery; fasteners and buttons; feed and grain; food/baking (including coffee roasting, creameries, ice cream, ice, frozen food, confectionery, and beverage); fruit and vegetable processing, canning and storage; gaskets; glass products made of purchased glass; household appliances; industrial controls; leather and allied products; lithographic and printing processes (including printing plants as defined below); mattresses; medical equipment and supplies; medicines; mill work and similar woodwork; mobile homes; musical instruments; novelties; office supplies; optical goods; photographic equipment; prefabricated and modular housing and components; printing and print supplies (including printing plants); 3-D printing, radio and TV receiving sets; sanitary paper products; scientific and precision instruments; service industry machines; signs; textiles (including dyeing, laundry bags, canvas products, dry goods, hosiery, millinery); tobacco products; toys, sporting and athletic goods; and watches and clocks. A "printing plant" means a facility devoted to printing or bookbinding, including related large-scale storage and transshipment.

MANURE STORAGE: An area or structure in which dry manure is stored or a structure, pond, or tank in which liquid manure is stored but not treated.

MANURE, DRY: Animal or poultry excreta that may also contain bedding, spilled feed, or soil.

MANURE, LIQUID: Manure and any associated wastewater, including, but not limited to: a) any excess water generated from the process and any precipitation (rain or snow) that comes into contact with any manure, litter or bedding, or any other material or product used in, or resulting from, animal or poultry production or direct products (e.g., milk, eggs); and b) any water used (directly or indirectly) in AFOs for any or all of the following: animal or poultry watering system spillage or overflow; washing, cleaning, or flushing pens, barns, manure pits or other facilities; direct contact swimming, animal washing or spray cooling; and/or dust control.

MASTER SITE PLAN: A scaled drawing showing the parcel and all existing and proposed uses and structures and roads all with dimensions, distances, and private and public road names. It includes lot lines, lot area, parking spaces, private and public roadways and travel ways, walkways and sidewalks, topographic features, dedicated open space, buildings and other structures, major landscape features, and the location of proposed utility easements. A master site plan is a more detailed representation of a proposed development than shown in a plat and may also include density and statistical data.

MEATPACKING/SLAUGHTERHOUSE FACILITY: A facility maintained for canning, curing, smoking, salting, packing, freezing, storing, or other similar uses in which meat products are processed for commercial sale.

MEDICAL CARE FACILITY: A facility, whether or not licensed or required to be licensed by the State, by or in which facilities are maintained, furnished, conducted, operated, or offered to prevent, diagnose, or treat human disease, pain, injury, deformity or physical condition, whether medical or surgical, of two or more non-related mentally or physically sick or injured persons; or for the care of two or more non-related persons requiring or receiving medical, surgical, or nursing attention or service as acute, chronic, convalescent, aged, or physically disabled. This use includes an intermediate care facility, mental retardation facility, outpatient surgery center, birthing facility, diagnostic imaging facility, radiation therapy facility, dialysis facility, medical/physical rehabilitation and trauma unit, or related institution or facility that offers treatment on an outpatient basis. This use may be operated for profit or nonprofit, privately owned, or operated by a local government unit. This use includes any hospital, defined as any licensed and State of Idaho accredited health care institution with an organized medical and professional staff and with inpatient beds available around-the-clock, whose primary function is to provide inpatient medical, nursing, and other health-related services to patients for both surgical and nonsurgical conditions and that usually provides some outpatient services (such as emergency care).

MEMBER OF THE OWNER'S IMMEDIATE FAMILY: Any one of the following: a birth or adoptive parent, stepparent, grandparent, children, grandchildren, sibling, aunt, uncle, niece, nephew, or person under the owner's legal guardianship.

MONOPOLE: A single, self-supporting pole-type structure, tapering from base to top and supporting a fixture designed to hold one (1) or more antennas. For the purpose of this Ordinance, a monopole shall not be deemed to be a transmission tower.

MORTUARY: A facility used primarily for human funeral services, which may or may not include facilities on the premises for embalming and performing of autopsies or other surgical procedures.

MULTI-FAMILY DEVELOPMENT: Development where there are three (3) or more dwelling units or apartments located on the same property in an urban base district or a planned community base district. A multi-family dwelling may or may not be present on the property.

MULTI-USE PROPERTY: A building or a lot with multiple buildings that is under common ownership, management, and control and whose occupants are distinct users that each occupy a portion of the multi-use property.

NEIGHBORHOOD ASSOCIATION: A group that has filed registration forms with the Director, providing the name, boundaries, and representative of the association.

NEIGHBORING PROPERTIES: Abutting properties and any properties separated from the subject property solely by a roadway or dedicated easement.

NIGHTCLUB: An establishment that provides live or recorded music and a dance area for patrons inside a structure. A nightclub may or may not serve alcohol. The term nightclub shall not include dance studios.

NONCONFORMING PROPERTY:

1. A property that lawfully existed prior to the effective date of this Title, but that does not now conform to the dimensional standards for the district in which it is located.
2. A deemed conforming property given amnesty under the regulations of subsection 8-7-1B of this Chapter.

NONCONFORMING SIGN: A sign, sign structure, or use of a sign lawfully existing prior to the effective date of this Title but that does not now conform to the standards for the district in which it is located.

NONCONFORMING STRUCTURE: A structure, including agricultural structures, that was lawfully constructed and/or existing prior to the effective date of this Title, but that does not conform to the dimensional standards for the district in which it is located.

NONCONFORMING USE: A use that lawfully existed prior to the effective date of this Title, but that does not now conform to the allowed uses for the district in which it is located.

NON-FARM RESIDENTIAL LOT: Residential lot created by the former Non-farm Subdivision regulations.

NONNOISE SENSITIVE DEVELOPMENT: A use that can be conducted within the noise exposure forecast thirty (30) area and that is not hindered from maintaining the use by the Boise air terminal air traffic noise and associated vibration.

NORMAL HIGH-WATER LINE: The "natural or ordinary high-water mark" as defined by Idaho Code 58-1202, is "the line that water impresses on the soil by covering it for sufficient periods to deprive the soil of its vegetation and destroy its value for agricultural purposes. When the soil, configuration of the surface, or vegetation has been altered by man's activity, the natural or ordinary high-water mark shall be located where it would have been if no alteration had occurred."

NURSERY, RETAIL: Any grounds, structures, greenhouses, or premises in which garden, farm, landscaping, Christmas trees, or florist's stock is propagated, grown, stored, or packed for commercial sale, and where the general public may purchase goods in small quantities.

NURSERY, WHOLESALE: Any grounds, structures, greenhouses, or premises in which garden, farm, landscaping, Christmas trees, or florist's stock is propagated, grown, stored, or packed for commercial sale, and where the owner/operator sells the goods in large quantities to a limited number of buyers.

OFF STREET PARKING FACILITY: An enclosed structure (other than a private garage) or open, hard surfaced area (other than a public street or private road), designed, arranged, and made available for parking vehicles, where such use is operated as a business enterprise with a service charge or fee being paid by the vehicle operator. Off-street parking facility shall include, but not be limited to, a commercial parking lot and public garage.

OFFICE: An establishment engaged in professional, semi-professional, business, government, philanthropic institutions, or client-oriented services. Offices do not include retail or wholesale activities which require the receiving, stocking, storing, displaying, manufacturing, selling, or renting of merchandise or equipment, except where specifically permitted as an accessory use. Offices include the administrative, clerical, or public contact offices of a government agency. All services are rendered within the principal building, and no outside areas are used to perform services.

Examples of offices include law firms, publishers, business services, sales, marketing, interior decorators, employment agencies, security systems services, and studios for professional work or teaching.

ONE TIME DIVISION: The one-time process of splitting property into multiple properties.

OPEN SPACE, DEDICATED: An area that has been designated on a master site plan or subdivision plat as open space.

OPEN SPACE, DEVELOPED: An area of open land used for recreational opportunities and that provides either active or passive recreational facilities.

OPEN SPACE, NATURAL: An area of open land, with little or no land disturbance, preserved, enhanced and/or restored in order to maintain the natural, scenic, ecological, cultural, hydrological, geological, or agricultural values of the land. Natural open space may include trails and park bench style seating; interpretive signage and kiosks for educational purposes; and agricultural activities.

OPEN SPACE: Any developed or natural open space.

OUTDOOR STORAGE OF MATERIALS: Material (including, but not limited to, goods, wares, merchandise, or vehicles) that is kept in the same place for more than twenty-four (24) hours in an open area. The term outdoor storage shall include material that is kept under a pole barn structure or any structure that is less than fully enclosed.

OWNER: A "person", as herein defined, having sufficient proprietary interest in the land to maintain proceedings under this Title. It shall include the entity or person who files an application for the owner's property.

PARCEL: A tract of unplatted land (or contiguous land, if applicable), in single ownership, considered a unit for purposes of development.

PENNANT: Any lightweight plastic, fabric, or other material, whether or not containing a message of any kind, suspended from a rope, wire, or string, usually in series, designed to move in the wind.

PERSON: Includes an individual, associations, joint ventures, partnerships, estates, trusts, business trusts, syndicates, fiduciaries, corporations, and all other or any other similar entity.

PERSONAL SERVICE or PERSONAL SERVICE USE: Establishments primarily engaged in providing services, including the care of persons or their apparel. This includes cleaning and garment services, repair services (not otherwise listed), linen supply, diaper service, coin-operated

laundries, carpet and upholstery cleaning, photographic studios, beauty shops, barber shops, shoe repair, steam baths, reducing salons and health clubs, travel agents, clothing rental, locker rental, porter services, opticians, and tailors.

PERVIOUS SURFACE: A surface that allows water percolation into the underlying soil. This includes grass, planted areas, vegetated areas, permeable paving, and groundcovers.

PIT, MINE, OR QUARRY: The excavation, mining, dredging, or stripping of land or earth, including quarrying, borrow pits, or the extraction of sedimentary rock. "Quarrying" means commercial or industrial stone quarries or operations involving removal from a site of natural accumulations of sand, rock, soil, or gravel. "Stone quarrying" includes appurtenant structures such as crushers, screeners, and washers. Accessory uses include:

1. Crushing, treating, washing, and/or processing of materials, accessory to a quarry operation, when conducted on the same property;
2. Manufacturing of concrete block, cinder block or pre-formed concrete products, accessory to an approved quarry use; and
3. Retail sales of crushed stone or architectural stone products, accessory to an approved quarry use. Accessory uses do not include any other industrial use, such as a concrete batching plant or asphalt mixing plant.

PIT, MINE, OR QUARRY, TEMPORARY: The excavation, mining, dredging, or stripping of land or earth, including quarrying on less than six (6) acres of land.

PLANNED COMMUNITY (PC): A well designed small town or urban type development characterized by a wide mix of uses, on site amenities, trip capture, and connectivity within the community; conservation of open space and preservation of environmental attributes; an emphasis on community character and heritage and forming a sense of community; and provision of urban public services.

PLANNED UNIT DEVELOPMENT (PUD): An area of land in which a variety of residential, commercial, industrial, and other land uses are provided for under single ownership or control. (Source: Idaho Code 67-6515; see Section 8-6-22 (Planned Unit Development (PUD)) for procedures and requirements for PUDs).

PLANNED COMMUNITY IMPLEMENTATION PLAN: A plan submitted in compliance with this Title demonstrating how a PC will be developed in compliance with the requirements of this Title.

PLANNED COMMUNITY SUBAREA COMPREHENSIVE PLAN: The comprehensive plan text for a subarea encompassed by a PC base district and specific PC overlay district.

PLAT, COMBINED PRELIMINARY FINAL: The drawing, map, or plan of a subdivision meeting the requirements set forth in Section 8-6-28. This plat is the combined, streamlined approval process of preliminary and final plats.

PLAT, FINAL: The drawing, map or plan of a subdivision, cemetery, or other tract of land, or a replatting of such, including certifications, descriptions, and approvals and containing those elements and requirements set forth in Section 8-6-27 of this Title.

PLAT, PRELIMINARY: A development plan of a subdivision, containing the elements and requirements set forth in Section 8-6-26 of this Title. A preliminary plat is a final document and is

not considered to be of a preliminary nature and is used as a guide for the preparation of the final plat.

PLAT: An engineered map of a land subdivision in compliance with local and State law.

PORTABLE CLASSROOM: A building or structure that is designed to be made mobile and drawn by a separate vehicle and is used for the educational purpose for students on a site.

POSTAL SERVICE: Retail sales or business services establishments that facilitate the transmittal and receipt of letter, bulk, and package mail.

POWER FACILITY: A facility associated with the production or transmission of electricity, including wind, geothermal, solar, biomass, and hydroelectric power facilities; or a power substation, an electric substation, a grid switching site, or an electric transmission, sub-transmission, or distribution line, any of which may or may not be regulated by the Federal Energy Regulatory Commission; or a facility qualifying under 18 CFR part 131.80.

PRIME FARMLAND: Prime farmland is land that has the best combination of physical and chemical characteristics for producing food, feed, forage, fiber, and oilseed crops and that is available for these uses. Prime farmland can be determined using resources provided by the United States Department of Agriculture Natural Resources Conservation Service.

PRINCIPAL PERMITTED USE: The use of land or a structure allowed in a specific zoning base or overlay district as distinguished from an accessory or conditional use.

PRINCIPAL STRUCTURE: For any given property, the structure in which the principal use is conducted.

PRIVATE ROAD: A roadway that is not dedicated to the public, that is not a part of the public highway system, and that is approved pursuant to Section 8-3-11 of this Title.

PROCESSING PLANT, AGRICULTURAL AND DAIRY PRODUCTS: A facility that applies specific treatments and food or chemical processes to agricultural or dairy products.

PRODUCE: Raw and unprocessed fruits, vegetables, or herbs.

PRODUCE STAND, AGRICULTURAL: See "Agricultural Produce Stand."

PRODUCE STAND, ROADSIDE: See "Roadside Produce Stand."

PROGRAMMED: Included in the capital improvements program of a city, Ada County, a planned community provider outside of an area of impact, a taxing district, or a regulated public utility, as being constructed within five (5) years. If a capital improvements program has not been adopted, "programmed" shall mean a transferable memorandum of understanding between the provider of the urban public facility and the applicant/owner, that a needed public facility will be provided within one year.

PROHIBITED USE: Any use within a district not listed as a principal permitted, accessory, or conditional use in this Title.

PROPERTY BOUNDARY ADJUSTMENT: The division for conveyance of a lot or parcel for the purpose of adjusting the boundary between properties where:

1. the dimensions of the properties are not reduced below the minimum dimensional standards for the applicable district;

2. there is no increase in the original number of properties; and
3. no easements, public streets, private roads, or publicly dedicated areas are affected.

PROPERTY DEPTH: The horizontal distance that connects the front property line and the rear property line as measured perpendicular to any point along the front property line.

PROPERTY LINE, FRONT: The line separating the lot or parcel from the street on which it takes access.

PROPERTY LINE, REAR: The property line opposite and most distant from the front property line. Where the lot or parcel is irregular and the property lines converge, the rear property line is a line at a point where the side property lines are at least ten feet (10') apart.

PROPERTY LINE, SIDE: Any property lines other than a front or rear property line. A side property line separating a lot or parcel from a street is called a side street property line. A side property line separating a lot or parcel from another lot or parcel is called an interior side property line.

PROPERTY LINES: Lot lines or parcel boundaries.

PROPERTY OF RECORD: A property of record in the Ada County recorder's office as of January 1, 1985.

PROPERTY SIZE: The computed horizontal area contained within the property lines.

PROPERTY WIDTH: The horizontal distance that connects opposing side property lines as measured perpendicular to any point along the side property lines.

PROPERTY, CORNER: A lot or parcel abutting upon two (2) or more streets at their intersection or upon two (2) parts of the same street, such streets or parts of the same street forming an interior angle of less than one hundred thirty-five degrees (135°). The point of intersection of the street lines is the "corner".

PROPERTY, THROUGH: A lot or parcel other than a corner property having frontage on two (2) parallel or approximately parallel streets.

PROPERTY: A "lot" or "parcel" defined in this Zoning Ordinance.

PUBLIC AMENITY: Shall include, but not be limited to, the following: school site, bike path, transit facility, park site, park and ride lot, and public safety facility such as police, fire, or emergency medical facilities.

PUBLIC BUILDING: Shall include, but not be limited to:

1. fire station;
2. law enforcement;
3. library;
4. post office;
5. public administration building (exclusive of shop, garage);
6. hospital, skilled nursing facility, or residential care facility;
7. emergency medical service facility;

8. halfway house and work release facility; and
9. juvenile detention facility.

PUBLIC HIGHWAY AGENCY: The Ada County Highway District or the Idaho Transportation Department.

PUBLIC INFRASTRUCTURE FACILITY: Shall include, but not be limited to:

1. pumping station for water, sewer, or gas;
2. municipal wastewater collection and treatment facility or interim wastewater treatment system;
3. utility shop, garage, or storage facility;
4. park and ride lot;
5. water reservoir and water tank; or
6. storm drainage facility and storm detention facility.

PUBLIC OR QUASI-PUBLIC USE: Shall include, but not be limited to, public buildings and/or public infrastructure facilities.

PUBLIC RIGHT OF WAY: A right of way open to the public and subject to the jurisdiction of a public highway agency, where the public highway agency has no obligation to construct or maintain said right of way for vehicular traffic.

PUBLIC UTILITY: Facilities owned and operated by a public utility as defined in Idaho Code Section 61-129.

RACETRACK: A structure or portion, used for racing vehicles or animals for recreation or profit and that may include accessory uses and structures normally associated with this activity.

RADIO AND TELEVISION BROADCASTING STATION: Broadcasting and other communication services accomplished through wired or wireless electronic mechanisms (except for separately listed uses below). Examples include radio and television recording studios; radio, radar and/or television towers (defined as structures for the transmission of broadcasting of radio, TV, or radar signals); switching centers; and cable transmitting stations.

RAILROAD SWITCHING YARD: An area where the process of putting railcars in a specific order (as in a classification yard), placing railcars for loading or retrieving empties (industrial switching), or the process of adding or removing railcars from a train at an intermediate point. This includes the movement of cars from one point to another within the limits of an individual plant, industrial area, or a rail yard.

RAINWATER HARVESTING: The capturing, storing, and conserving rainwater for recharging groundwater and/or providing water for non-potable uses.

RECREATION ITEM, PERSONAL: The term personal recreation item shall include, but not be limited to, bus, boat, snowmobile, horse trailer, and all-terrain vehicle.

RECREATIONAL FACILITY, ACTIVE: Recreational opportunity involving moderate to high intensity use which may require modification of natural landforms and the provision of service facilities, playing fields or equipment. Examples include, but are not limited to: playground equipment, sports fields, surfaced courts, volleyball courts, swimming pools, skateparks,

multipurpose centers and open play areas.

RECREATIONAL FACILITY, PASSIVE: Recreational opportunity occurring in a natural setting requiring minimal development or facilities and providing areas for informal, self-directed activities for individuals or small groups. Examples include but are not limited to: trails; pathways; picnic shelters; park bench style seating; interpretive signage and kiosks for educational purposes; community gardens; golf courses; and structures, streets, and parking areas accessory to these uses.

RECREATIONAL VEHICLE PARK: A premises upon which two (2) or more parking sites are located, established, or maintained for occupancy by recreational vehicles for temporary use for recreation or vacation purposes.

RECREATIONAL VEHICLE: A portable structure primarily designed as temporary living accommodation for recreational, camping, and travel use and as defined in Idaho Code Section 49-119.

RECYCLING CENTER: An establishment that is not a junkyard and in which recoverable resource materials, such as paper products, glassware, and metal cans, are collected, sorted, flattened, crushed, or bundled within a completely enclosed structure prior to shipment to others who use such resource materials to manufacture new products.

RECYCLING PLANT: An establishment that is not a junkyard and in which recoverable resource materials, such as paper products, glassware, and metal cans, are recycled, reprocessed, and treated to return such products to a condition in which they may be reused for production.

RELIGIOUS LAND USE: A structure or group of structures intended for regular gatherings of people to attend, participate in or conduct religious services and other related activities and associated accessory uses. Associated accessory uses may include religious instruction classrooms, church offices, counseling programs, youth programs, parking, summer camps, recreational facilities, food bank, or sale of religious items.

REQUIRED YARD: See definition of Yard, Required.

RESEARCH AND DEVELOPMENT FACILITY: An establishment that has facilities or laboratories for scientific research, investigation, testing, or experimentation, but not facilities for the manufacture or sale of products, except as incidental to the main purpose of the facility.

RESIDENTIAL USE: A use listed under the “Residential” category in the Use Table (Section 8-2-23, Table 8-2-23-1).

RESTAURANT: Any eating establishment having kitchen and cooking facilities for the preparation of food and where meals are regularly served to the public for compensation.

RETAIL STORE: The use of a site that offers merchandise to the public for monetary compensation. The use includes, but is not limited to, convenience stores; food stores; apparel and accessories stores; book, computer, and music stores; electronics and appliances; florists; furniture and home furnishings; general merchandise stores; health and personal care stores; hobby, office supplies, stationary, and gift stores; specialty stores, sporting goods; and used merchandise stores.

RIGHT-OF-WAY: See definition of Public Right-of-Way.

ROADSIDE PRODUCE STAND: An establishment where “produce” as defined in this Section, is displayed, and sold to the general public on a seasonal basis. No other commodities may be sold.

ROADWAY: Any public street or approved private road.

RURAL RESIDENCE: Farm development right parcels, non-farm residential lots, and legal non-conforming residential properties (see Section 8-7-4 of the Ada County Code) under two and a half (2.5) acres.

SANITARY LANDFILL: A disposal site employing an engineering method of disposing of solid wastes in a manner that minimizes environmental and health hazards by spreading, compacting, and covering the solid wastes. Solid wastes shall be limited to those outlined in Title 5, Chapter 2 of this code.

SAWMILL/PLANNING MILL: A mill for sawing timber or logs into boards or lumber.

SCENIC CORRIDOR: An area of significant scenic importance to Ada County as a representation of the rural character and general attractive beauty of the County, as designated on an adopted comprehensive plan.

SCHOOL: An institution of learning that offers academic instruction in the courses that are required by the state of Idaho to be taught in public schools. "School" includes kindergarten, elementary, middle, junior high, and senior high. Privately funded schools whose curriculum meets the state of Idaho standards are included in this definition.

SEASONAL EVENT: A temporary event lasting less than thirty (30) calendar days as a principal or accessory use.

SEASONAL FARMWORKER HOUSING: A temporary housing facility constructed for contractors on resource development projects in extractive industries (e.g., oil, pipeline, mining, hydroelectric, agricultural and forestry).

SEASONAL STAND: An ancillary retail use alongside a right-of-way such as fireworks, snow cone, or Christmas tree stands.

SELF-SUPPORTING UNIT: A stand-alone module of a planned community that generates enough revenue, as demonstrated by the approved implementation plan pro forma, to support the construction and operation of appropriate urban public services required to serve each dwelling unit therein.

SEPTAGE TREATMENT AND DISPOSAL FACILITY: A facility that provides for the treatment and disposal of septage and is under private ownership.

SEPTAGE: A general term for the contents removed from septic tanks, portable vault toilets, privy vaults, or wastewater holding tanks receiving wastewater from domestic sources. Nondomestic (industrial) waste may also be present but is not considered part of the definition. This does not include drinking water treatment residuals that may be held in a holding tank.

SETBACK, FRONT: The minimum required distance between the front property line and nearest structure.

SETBACK, INTERIOR SIDE: The minimum required distance between the side property line and nearest structure.

SETBACK, REAR: The minimum required distance between the rear property line and nearest structure.

SETBACK, SIDE STREET: The minimum required distance between the side street (right-of-

way) property line and nearest structure.

SETBACK: The minimum required distance between the property line and the nearest structure.

SHADOW FLICKER: The on and off flickering effect of a shadow caused when the sun passes behind the rotor of a wind turbine.

SHOOTING RANGE: An establishment that allows for the safe practice of shooting firearms and that may include accessory uses and structures normally associated with this activity.

SIGN BACKGROUND AREA: Also referred to as sign face area, measured in square feet and calculated as the width multiplied by the height of a single rectangle, parallel with the ground, that contains all sign elements, and any internally illuminated or backlit panel, fabric, or similar material, but not including the supporting structure.

SIGN COPY: The graphic content of a sign in either permanent or removable letter, pictographic, symbolic, or alphabetic form.

SIGN, ANIMATED: Any sign that uses movement or change of lighting to depict action or to create a special effect, including electronic message boards.

SIGN, BANNER: Any sign of lightweight fabric or similar material that is permanently mounted to a pole or a structure by a permanent frame at one or more edges. Flags mounted to a single pole on one side are not considered banners.

SIGN, BUILDING: A sign that is permanently attached to any part of a building, as contrasted to a freestanding sign.

SIGN, CANOPY: A sign that is a part of, or attached to, an awning, canopy, or other fabric, plastic, or structural protective cover over a door, entrance, window, or outdoor service area. A marquee is not a canopy.

SIGN, FREESTANDING: A sign that is structurally independent of a building and whose background or copy area is wholly supported by a column, pole, foundation, pedestal, or other support structure in or on the ground.

SIGN, INCIDENTAL: A small permanent sign, freestanding or attached to a building, used in addition to the primary sign types for the property, such as wall signs and freestanding signs, and that has a height and scale subordinate to the primary sign types allowed for the property. Examples of typical incidental signs include occupant names or directories, directional information, drive-through menu boards, gas pumps, and parking information. The list of examples does not limit the content of incidental signs. The County will not review the content of incidental signs.

SIGN, INTEGRAL: A permanent attached sign that is embedded, extruded, or carved into the material of a building façade or that is made of bronze, brushed stainless steel or aluminum, or similar material that is permanently attached to the building façade in such a way that it is an architectural detail of the building.

SIGN, PARAPET: A sign attached parallel to, but within one foot (1') of, a parapet, painted on the parapet surface of, or erected and confined on a parapet of any structure, which is supported by such parapet or structure, and which displays only one sign surface.

SIGN, PROJECTING: A sign affixed to a structure or wall in such a manner that its leading edge extends more than one foot (1') beyond the surface of such structure or wall.

SIGN, ROOF: A sign erected and constructed wholly on and over the roof of a structure, supported by the roof structure, and extending vertically above the highest portion of the roof. Parapet signs, as herein defined, are not roof signs.

SIGN, TEMPORARY: Any sign that is designed and intended for use less than twelve (12) months and that is not permanently mounted. Temporary signs are generally constructed of cloth, canvas, light fabric, cardboard, wood, wallboard, metal, or other light materials, with or without frames, and displayed for a limited time only. Temporary signs include banners, feather signs, inflatable devices, post signs, stake signs, and A-frame signs. Examples of common temporary signs include political signs, public demonstrations, grand opening signs, contractor signs, real estate signs, and signs that announce an event such as a carnival, circus, or similar event. The list of examples does not limit the content of temporary signs. The County will not review the content of temporary signs.

SIGN, WALL: A sign attached parallel to, but within one foot (1') of, a wall, painted on the wall surface of, or erected and confined within the limits of an outside wall of any structure, which is supported by such wall or structure, and which displays only one sign surface.

SIGN: A visual display of an object or device that includes elements such as colors, lights, motion, symbols, images, icons, letters, numerals, figures, characters, or combines any of those elements, that a person intends to communicate, advertise, identify, announce, direct, inform, or attract attention, and that a viewer can see and comprehend from a public right-of-way. The term "sign" includes a structure used to support or display a sign.

SMALL WIRELESS FACILITY: Any unstaffed facility used to transmit, receive, distribute, provide, or offer personal wireless communications services, with antennas and associated equipment, that do not exceed the volumes specified below:

1. Each individual antenna, excluding all other wireless equipment associated with the facility, is individually no more than three (3) cubic feet in volume, and all antennas on the structure total no more than six (6) cubic feet in volume; and
2. All other wireless equipment associated with the facility, excluding cable runs for the connection of power and other services, do not cumulatively exceed:
 - a. Twenty-eight (28) cubic feet on all non-pole-type support structures that can support fewer than three (3) providers; or
 - b. Twenty-one (21) cubic feet on all monopoles and pole-type support structures that can support fewer than three (3) providers; or
 - c. Thirty-five (35) cubic feet on all non-pole-type support structures that can support at least three (3) providers; or
 - d. Twenty-eight (28) cubic feet on all monopoles and pole-type support structures that can support at least three (3) providers.
3. The volume of any equipment that is not visible from public spaces at the ground level from two hundred fifty feet (250') or less may be omitted from the calculation of volumetric limits set forth in this definition.

SMALL WIRELESS SUPPORT STRUCTURE: A structure that can support a small wireless facility. Includes, but is not limited to, monopoles, light poles, traffic signal poles, utility poles,

any pole used for adornments, base stations, buildings, water tanks, transmission towers, billboards, and other freestanding self- supporting structures.

SOCIAL HALL: An establishment, or portion thereof, used for social gatherings including, but not limited to, weddings, receptions, dinners, bazaars, banquets, and reunions.

SOCIAL MEETING PLACE: See “event center.”

SOIL/WATER REMEDIATION, ON-SITE: Remediation that occurs on the same site where the contaminated soil or water exists. On-site remediation does not involve removal or transportation of soil or water off site.

SOIL/WATER REMEDIATION: Structures and/or activities that remove contaminants from soil or water.

SOLAR COLLECTOR MOUNTS: Mounting arrangements that hold various devices for the absorption of solar radiation for the heating of water or buildings or the production of electricity, consisting of:

1. **Building Integrated Photovoltaics Mount:** A solar collector system that is integrated into the structure of a building. Common building integrated photovoltaic applications include carports, awnings, and curtain walls.
2. **Ground Mount:** A solar collector system where an array is mounted onto the ground. The most common type of ground mount is a wedge structure constructed from steel supports anchored in concrete footings. The remainder of the structure is built from aluminum or galvanized steel.
3. **Pole Mount:** A solar collector system that consists of an array that is mounted on top of a single steel pole, which is ground mounted. This type of installation can be manually adjustable, so that the pitch of the array at different times of the year can be changed.
4. **Roof Mount:** A solar collector system with an array of solar panels located on the roof of a structure. In most cases this array will be attached directly to the structural members of the building.

SOLAR FACILITY: Any solar collection or other solar device, or any structural design feature of a building whose primary purpose is to provide for the collection, storage or distribution of solar energy for space heating or cooling, water heating or electricity.

Solar collection methods include, but are not limited to, photovoltaic panels, solar thermal collectors, passive solar, and concentrating solar power.

SOUND WALL: A solid concrete or masonry wall designed to create a barrier that protects inhabitants of sensitive land use areas from noise pollution.

SPECIAL EVENT: Any temporary event including, but not limited to, picnics, barbecues, holiday events and parties, dances, concerts, bike rides and races, footraces and walks, auctions and sales, bazaars, sales or marketing events, and harvest festivals and events.

STABLE: A facility that keeps or boards horses for public or private use. Accessory uses include offices, storage areas, educating and training students in equitation, and caring for, breeding, or training horses associated with the stable use.

STACKING: The process of vehicles queuing for a provided service.

STACKING LANE: The space occupied by vehicles queuing for a provided service.

STAFF: Any Ada County officer or employee present during a hearing.

STATE: The State of Idaho.

STORAGE FACILITY, SELF-SERVICE: A structure or group of structures with a controlled access and fenced compound that contains individual, compartmentalized, or controlled units that are leased or sold to store material (including, but not limited to, goods, wares, merchandise, or vehicles). This use may also include an outdoor storage area within the fenced compound.

STORY: Shall be as defined by Ada County Building Code as set forth in Title 7, Chapter 2 of this code, except that any single-story structure, or portion thereof, that exceeds twenty-four feet (24') in height shall be deemed a two-story structure.

STREET FRONTAGE: The linear distance that a property line abuts a public street or approved private road providing access, from one property line intersecting said street to the farthest distant property line intersecting the same street.

STREET ISLAND: A lot and block in a subdivision located in the public street right-of-way. The street island is considered part of the public right-of-way.

STREET KNUCKLE: An extension of a minor street providing access to abutting properties.

STREET, ALLEY: A public means of secondary access to abutting property that is not for general traffic circulation or street frontage.

STREET, ARTERIAL: A street designated as an arterial on the most recent Ada County long range highway and street map. See also definitions of Arterial, Minor and Arterial, Principal.

STREET, COLLECTOR: A street designated as a collector on the most recent Ada County long range highway and street map.

STREET, CUL-DE-SAC: A dead end street provided with a turnaround at its terminus.

STREET, HALF: A portion of the width of a street, usually along the edge of a subdivision, where the remaining portion of the street could be provided in another subdivision.

STREET, HIGHWAY: See definition of Highway.

STREET, INTERSTATE: See definition of Interstate.

STREET, LOCAL: A street used primarily for access to abutting properties.

STREET, MINOR ARTERIAL: A street designated as a minor arterial on the most recent Ada County long range highway and street map.

STREET, PRINCIPAL ARTERIAL: A street designated as a principal arterial on the most recent Ada County long range highway and street map.

STREET, PUBLIC: A street, public road, thoroughfare, alley, highway, or bridge subject to the jurisdiction of a public highway agency.

STREET, SECTION LINE: A section line street as designated on the most recent Ada County long range highway and street map.

STREET: A street, public road, thoroughfare, alley, highway, or a right-of-way that may be open for public use but is not part of a public highway system nor subject to the jurisdiction of a public highway agency.

STRUCTURE: That which is built or constructed, the use of which requires permanent location on the ground, or attachment to something having a permanent location on the ground.

STUDIO: A structure or portion, used as a place of work and/or instruction by an artist or artisan. The term studio shall include, but not be limited to, art, music, gymnastic, dance, martial arts, photography, or video production studios and classrooms. The term studio, as used in this Title, shall not include a single room apartment or dwelling.

SUBDIVISION MODEL HOME/REAL ESTATE SALES OFFICE: A temporary use within a developing subdivision where real estate tours, leasing, and sales occurs.

SUBDIVISION: The division of a lot or parcel of land into two (2) or more lots for the purpose of conveyance of ownership or for building development. "Subdivision" includes any recorded plat.

SUBSTANTIAL COMPLIANCE: A final plat that substantially complies with an approved preliminary plat. Substantial compliance adheres to the standards in 8-6-7.

SWALE: A shallow depression.

SWIMMING POOL: Any structure intended for swimming or recreational bathing that can contain water over two feet (2') in depth. This includes inground and aboveground swimming pools, hot tubs, and spas.

SWIMMING POOL, PRIVATE: A swimming pool that is open only to residents, members, or guests of the building or site where it is located.

TANNERY: A place where animal hides are tanned; the workshop of a tanner.

TECHNICAL SCHOOL: A nonacademic establishment offering courses such as secretarial, computer and data processing, drafting, electronic repair (including radio/TV repair), commercial art, cosmetology, allied health care, real estate, banking, and restaurant operation. Instruction may also include vocational training such as welding and metal fabrication, pipefitting, automobile body and engine repair, construction equipment operation, building trades, truck driving, airplane maintenance, and mechanical and electrical equipment/appliance repair.

TEMPORARY CONSTRUCTION OFFICE: A building or structure that is designed to be made mobile and drawn by a separate vehicle and is used for the purpose of storage or administration on a site while building construction takes place.

TEMPORARY LIVING QUARTERS: A "manufactured home," permitted as a temporary dwelling for a member of the owner's immediate family or owner's employees on the same property as the principal permitted use.

TEMPORARY MOBILE AND LAND-BASED TELECOMMUNICATION TESTING FACILITY: Whip antennas, panels antennas, microwave dishes, and receive-only satellite dishes and related equipment for wireless audio-transmission with low wattage not to exceed 500 watts, from a sender to one or more receivers, such as for mobile cellular telephones and mobile radio system facilities.

TITLE: The Ada County Zoning Ordinance. This term may also be referred to as "Zoning

Ordinance.”

TOWER OR ANTENNA STRUCTURE, COMMERCIAL: A use provided by, or a structure utilized by a public service utility or commercial public telecommunications service under the jurisdiction of the State of Idaho and/or licensed by the Federal Communications Commission to provide commercial public telecommunications services. A commercial tower or antenna structure may include a tower, monopole, antenna hub site, and other antenna support structures or equipment buildings. This does not include non-commercial applications, such as amateur radio operations, private towers, or antenna structures.

TOWER OR ANTENNA STRUCTURE, PRIVATE: An antenna, antenna hub site, antenna support structure, monopole, transmission tower, or temporary mobile and land-based telecommunication testing facility, that is accessory to and solely used by an individual business.

TOWNHOUSE: See Dwelling, Townhouse.

TRAFFIC CONTROL DEVICES: A sign, signal, marking, or other device used to regulate, warn, or guide traffic, placed on, over, or adjacent to a street, highway, private road open to public travel, pedestrian facility, or shared-use path by authority of a public agency or official having jurisdiction, or, in the case of a private road open to public travel, by authority of the private owner or private official having jurisdiction as controlled by the Federal Highway Administration’s Manual on Uniform Traffic Control Devices.

TRANSIT FACILITY: Includes transit or bus shelters, bus terminals, stations, and associated right-of-way. A "transit shelter" means a roofed structure on or adjacent to the right-of-way of a street, which is designed and used primarily for the protection and convenience of bus passengers. Includes accessory vehicle and bicycle parking.

TRANSMISSION TOWER: A lattice-type structure, guyed or self-supporting, used to support antennas. Also called a communication tower or radio tower.

TRANSMISSION LINE: See definition of Electric Transmission Line.

TRANSPORTATION AUTHORITY: The Ada County Highway District, the Idaho Transportation Department, Valley Regional Transit, and any other agency that may succeed to their powers or establish public jurisdiction in the field of transportation. The term transportation authority shall be liberally construed to include all the adopted, approved, or certified plans, rules, regulations, statutes, or laws of the transportation authority.

TRANSPORTATION DEMAND MANAGEMENT: The application of strategies and policies for the purpose of reducing single occupant vehicle trips to optimize use of existing and planned transportation facilities.

TRAVELWAY: The improved surface required within a private road easement.

TRIP: A single or one direction vehicle movement with either the origin or destination inside the subject property.

TRUCK: "Truck" is defined in Idaho Code 49-121, as may be amended from time to time.

TRUCK STOP: A roadside service and fueling station that caters to federal interstate truckers.

UNDUE ADVERSE IMPACTS: Measurable increases in noise, light, odor, visual, or other measurable impacts that diminish use or enjoyment of property or are detrimental to the public

health, safety, and/or welfare.

UNPLATTED: A property that is not included in any subdivision of record in Ada County.

UPLIGHTING: Lighting that is directed in such a manner as to shine light rays above the horizontal plane.

URBAN PUBLIC FACILITIES: Schools, natural and developed open space, library, electricity, telephone, water, wastewater, transportation, law enforcement, fire and paramedic capital facilities provided by a city, taxing district, regulated public utility, or when located in a planned community base district, a provider as allowed by the requirements of Chapter 12 and Chapter 13 of this Title.

URBAN PUBLIC FACILITY, PROGRAMMED: An urban public facility included in the capital improvements program of a municipality, taxing district, planned community provider, or a regulated public utility, scheduled in the relevant entity's capital improvements program for construction within five (5) years from approval of the planned community overlay district which the urban public facility will serve.

URBAN PUBLIC SERVICE, PROGRAMMED: An urban public service included in the capital improvements or service provision program of a municipality, taxing district, planned community provider, or a regulated public utility, scheduled in the relevant entity's capital improvements or service provision program for provision within five (5) years from approval of a planned community overlay district in which the urban public service will be provided.

URBAN PUBLIC SERVICES: Schools, natural and developed open space, library, electricity, telephone, water, wastewater, transportation, law enforcement, fire and paramedic services provided by a city, taxing district, a regulated public utility, or when located in a planned community base district, a provider as allowed by the requirements of Chapter 12 and Chapter 13 of this Title.

URBAN SERVICE PLANNING AREA: The land area within an area of city impact where urban public facilities are available or planned, as provided, and described in the city's comprehensive plan.

USED: Shall include arranged, designed, constructed, altered, converted, rented, leased, or intended to be used.

UTILITIES: Installations for conducting water, sewage, gas, electricity, television, stormwater, and similar facilities providing service to and used by the public.

VALUABLE MINERALS: A mineral substance that can be taken from the earth and that has a value in and of itself separate and apart from the earth and includes, but is not limited to, gravel, sand, clay, building stone, cinders, pumice, scoria, diatomaceous earth, quartz, limestone, marble, gold, silver, copper, lead, zinc, coal, and phosphate.

VARIANCE: A relief from development standards as allowed by Idaho Code Section 67-6516.

VEHICLE: Every device in, upon, or by which any person or property is or may be transported or drawn (e.g., travel trailers) upon a public highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks, as defined in Idaho Code Section 49-123.

VEHICLE IMPOUND YARD: Any portion, piece, division, or parcel of land, excluding fully enclosed buildings, that is used for the storage or holding of distrained vehicles or personal property, or for the care and keeping of vehicles or personal property whether taken into the

custody of the law or for other reasons.

VEHICLE REPAIR, MAJOR: An establishment engaged in major mechanical and body work, repair of transmissions and differentials, straightening of body parts, painting, welding, or other similar work is performed on vehicles. Accessory uses include light vehicle service establishments but not heavy equipment and specialized vehicle sale, rental and service establishments.

VEHICLE REPAIR, MINOR: An establishment where the primary use is the sale, servicing, repair and/or installation of gas, electric, or hybrid motor vehicle accessories, such as: spark plugs, batteries, distributors and distributor parts, tires, brakes, brake fluid, mufflers, tail pipes, water hoses, fan belts, light bulbs, fuses, floor mats, windshield wipers, wiper blades, grease retainers, wheel bearings, and mirrors. Light vehicle repair may also include greasing, lubrication and radiator flushing, minor servicing and repair of carburetors, fuel pumps, oil pumps, water pumps and lines, electrical systems, and minor motor adjustments not involving removal of the head or crankcase or racing the motor.

VEHICLE SALES: An establishment where the principal occupation is the sale, rental, and accessory service of vehicles stored on-site and in operating condition. "Vehicles" include automobiles, motorcycles, All-Terrain Vehicles (ATV), and trucks stored on site. "Vehicles" do not include heavy equipment and specialized vehicle sale, rental, and service establishments. However, specialized vehicles may be sold, rented, and serviced as an accessory use. This use includes an automobile car-sharing agency, defined as a motor vehicle sales and accessory service lot that provides vehicles shared by its members as a means to supplement mass transit facilities.

VEHICLE, COMMERCIAL: Any currently licensed and operable motor vehicle with a gross vehicle weight rating over twenty-six thousand (26,000) pounds and as defined by Idaho Code Section 49-123.

VEHICLE, INOPERABLE: A vehicle that cannot move under its own power or does not meet the minimum legal requirements necessary for the motor vehicle to be operated in a safe and lawful manner upon the roadways and highways in the state of Idaho, as set forth in Idaho Code Chapter 49.

VETERINARY SERVICES: Any structure that is designed or used for the medical or surgical treatment of animals in which veterinary services, including boarding incidental to treatment, are limited to short term care.

WAREHOUSE: A structure used primarily for storing materials including, but not limited to, goods, wares, merchandise, or vehicles.

WASTEWATER TREATMENT SYSTEM, INDIVIDUAL: An installation that collects and treats domestic wastewater from one property and uses, at a minimum, subsurface disposal of effluent and conforms to the rules, regulations, and adopted plans of the health authority.

WATER CONSERVATION MEASURES: The activities, tools, equipment, and methods designed to reduce water demand, improve the efficiency of its use, and reduce loss and waste.

WATER RESTRICTIONS: A constraint placed on water use by Ada County to reduce water demand and prevent water waste.

WATERCOURSE: A natural or man-made channel or conveyance system carrying water. Watercourses may include, but not be limited to, rivers, creeks, streams, lakes, ponds, reservoirs, irrigation ditches, laterals, drains, sloughs, and canals. An on-site irrigation distribution system or

drainage ditch shall not be deemed a watercourse.

WATERWISE: Refers to plants that evolved in regions with lower precipitation, thus requiring less water throughout the growing season than traditional landscape plants.

WELL HOUSE: A structure encasing a well, used to provide domestic water.

WELL, ON SITE: A domestic well that serves one property and is located on the property it serves.

WETLANDS: Official wetlands as listed on the U.S. Fish & Wildlife Service National Wetlands Inventory Map, officially listed by the Army Corp of Engineers, or listed in a current Wetland Delineation Report completed by a licensed professional.

WHOLESALE DISTRIBUTION AND WAREHOUSING: The storage of goods, and the sale of goods to other firms for resale, including activities involving significant storage and movement of products or equipment. This use does not involve manufacturing or production. Examples include: carting; cold storage; distribution facilities (as defined below); dry goods wholesale; express crating; hauling; feed locker plants; fulfillment centers that combine storage with call centers; hardware storage; merchant wholesalers (such as restaurant supply sales); warehouse or produce/fruit/food storage and wholesale structures; wholesale sale of paper supplies, shoes, sporting goods, professional and commercial equipment and supplies; and otherwise preparing goods for transportation. A "distribution facility" means the intake of goods and merchandise, individually or in bulk, the short-term holding or storage of such goods or merchandise, and/or the breaking up into lots or parcels and subsequent shipment off-site of such goods and merchandise. Distribution may be provided to an entity with an identity of interest with the distribution facility or to businesses and individuals unrelated to the distributor. The term "Distribution Facility" also includes a transshipment facility for the temporary holding, storage and shipment of goods or vehicles.

WIND FACILITY TOWER HEIGHT: The distance from the finished grade at the wind generation tower base to the highest point of the tower, including the base pad, mounting structures and blades, but not including lightning rods.

WIND FACILITY, ROOFTOP: A wind facility mounted to a residential, agricultural, or accessory structure.

WIND FACILITY: A wind energy conversion system that converts wind energy into electricity through the use of a wind driven turbine generator, consisting of one or more wind turbines or other such devices and their related or supporting facilities that produce electric power from wind.

WINERY: An establishment for the manufacture or bottling of wine. A winery may include, but is not limited to, the following: a tasting room, barrel rooms, bottling rooms, tank rooms, laboratories, sale of wine, processing structure, and offices.

WOOD, METAL, AND STONE SHOP: Stone cutting, welding, blacksmith, tinsmith, and woodworking shops with accessory enclosed storage. Includes establishments that:

1. cut, shape, and finish marble, granite, slate, and other stone for building and miscellaneous uses, or
2. buy or sell partly finished monuments and tombstones, or
3. transform metal into intermediate or end products (other than machinery, computers, or electronics) through fabricated metal processes, or

4. treat metals and metal formed products fabricated elsewhere. Fabricated metal processes include forging, stamping, bending, forming, and machining, used to shape individual pieces of metal, and other processes (such as welding and assembling) used to join separate parts together.

YARD, FRONT: An area extending across the full width of the property and lying between the front property line and the nearest line of a principal structure.

YARD, REAR: An area extending across the full width of the property and lying between the rear property line and the nearest line of the principal structure.

YARD, REQUIRED: An area that extends along a property line to a depth or width specified in the setback regulations for the district in which the property is located. (See subsection 8-3-2F of this Title for allowed projections into required yards.)

YARD, SIDE: An area extending from the front yard to the rear yard between the side property line and the nearest line of the principal structure.

YEAR-ROUND STREAM: Any stream that flows all year long during years of normal rainfall or any stream used by salmonids.

ZERO LOT LINE: The location of a structure on a lot in such a manner that one or more of the structure's sides rests directly on a lot line.

ZONING CERTIFICATE: A document issued by the Director that certifies that the structure or use meets the requirements of this Title.

ZONING ORDINANCE: The Ada County Zoning Ordinance. This term may also be referred to as "Title."

8-10-3: Acronyms and Abbreviations

ACHD – Ada County Highway District
ACI – Area of City Impact
ADA – Americans with Disabilities Act
ADU – Accessory Dwelling Unit
AFO – Animal Feeding Operation
AU – Animal Unit
AMI – Area of Military Influence
BAT – Boise Air Terminal Airport Influence Areas
BRG – Boise River Greenway
C1 – Neighborhood Commercial
C2 – Community Commercial
CDHD – Central District Health Department
COMPASS – Community Planning Association of Southwest Idaho
CUP – Conditional Use Permit
DEQ – (Idaho) Department of Environmental Quality
ESD – Ecological Site Descriptions
FAA – Federal Aviation Administration
FH – Flood Hazard
HS – Hillside
IDFG – Idaho Department of Fish and Game

IDT – Idaho Department of Transportation
IPUC – Idaho Public Utilities Commission
LO – Limited Office
PC – Planned Community
PUD – Planned Unit Development
R1 – Estate Residential
R2 – Low Density Residential
R4 – Medium Low Density Residential
R6 – Medium Density Residential
R8 – Medium High Density Residential
R12 – High Density Residential
R20 – Very High Density Residential
RP – Rural Preservation
RR – Rural Residential
RSW – Southwest Community Residential
RUT – Rural-Urban Transition.
SPA – Southwest Planning Area
USFWS – United States Fish and Wildlife Service
WUI – Wildland-Urban Interface
VRT – Valley Regional Transit

CHAPTER 11

(RESERVED)

CHAPTER 12

PLANNED COMMUNITY SUBAREA DEVELOPMENT REGULATIONS

SECTION:

- 8-12-1: PURPOSE
- 8-12-2: APPLICABILITY
- 8-12-3: (RESERVED)
- 8-12-4: URBAN PUBLIC SERVICE LEVEL STANDARDS
- 8-12-5: GENERAL STANDARDS
- 8-12-6: APPLICATION SUBMISSION STANDARDS
- 8-12-7: COMPREHENSIVE PLAN AMENDMENT APPLICATION
- 8-12-8: IMPLEMENTATION PLAN APPLICATION
- 8-12-9: ANNEXATION STANDARDS

8-12-1: Purpose. The purpose of this Chapter is to provide processes and development standards for the development of planned communities to allow urban type development within unincorporated Ada County, except as may be modified by Title 9 of this code.

8-12-2: Applicability. This Chapter applies to the development of planned communities within unincorporated Ada County. Planned community developments proposed in an area of city impact may require an application to amend the area of city impact agreement.

8-12-3: (Reserved)

8-12-4: Urban Public Service Level Standards. The planned community implementation plan shall describe how urban public services and additional public services at the service levels identified below will be provided in the planned community. Provided, however, in areas of city impact an urban public service level standard specifically provided in the appropriate area of city impact agreement in Title 9 of this code, if any, shall supersede the specific urban public service level standard provided in this Section.

A. Minimum Urban Public Service Level Standards. Each planned community shall provide all of the following categories of urban public services in accordance with the stated minimum standard for each:

Urban Public Service Category	Minimum Service Level
Urban Public Service Category	Minimum Service Level
Electricity	Electricity service to every buildable property.
Telephone	Telephone service to every buildable property.
Water	1. Drinking water service shall be provided to every buildable property within the planned community by a municipality, a private water company regulated by the Idaho Public Utilities Commission, or a water district established pursuant to Idaho Code Section 42-3201 et seq. 2. Drinking water service shall maintain compliance with all applicable federal, state, and local rules and laws. 3. All residential lots shall have an automated irrigation sprinkler system to minimize water usage and waste. 4. All nonresidential lots shall have pressurized irrigation systems, using reclaimed water when available and permissible under all applicable federal, state, and local rules and laws. 5. All irrigation systems and water uses shall comply with all applicable federal, state, and local rules and laws.
Wastewater treatment	1. A centralized wastewater treatment and reuse service, or connection to an existing system shall be provided to every property within the planned community by a municipality, a private sewer company, or a sewer district established pursuant to Idaho Code Section 42-3201 et seq. 2. Wastewater treatment and reuse service shall maintain compliance with all applicable federal, state, and local rules and laws. 3. If treated wastewater will be used for irrigation, then the irrigated area and the amount of treated wastewater used for irrigation shall be identified in the planned community implementation plan, and shall comply with all applicable

federal, state, and local rules and laws.

4. For specific lots, the Board may waive or alter the centralized wastewater treatment requirement on a case-by-case basis where topography or other considerations make centralized service infeasible.

Law enforcement

One (1) law enforcement officer per one thousand two hundred (1,200) residents.

Fire protection

1. Location within a fire district.

2. Fire protection shall be provided to all areas within the planned community with a response time of five (5) minutes or less for the arrival of the first arriving engine company at a fire suppression incident, as measured from the time the unit acknowledges notification of the emergency. (National Fire Protection Association 1710 Section 4.1.2.1 - 2004 edition).

3. If a new fire station is required for the planned community to meet the response time, then location of the new fire station should comply with the master siting plan of the fire district.

Paramedic services (EMS)

1. Five (5) minutes or less for the arrival of a unit with first responder or higher-level capability at an emergency medical incident, as measured from the time the unit acknowledges notification of the emergency for ninety percent (90%) of the anticipated population of the planned community. (National Fire Protection Association 1710 Section 4.1.2.1 - 2004 edition).

2. Nine (9) minutes or less for the arrival of an advanced life support (ALS) unit at an emergency medical incident, as measured from the time the unit acknowledges notification of the emergency for ninety percent (90%) of the anticipated population of the planned community. (National Fire Protection Association 1710 Section 4.1.2.1 - 2004 edition).

3. If a new emergency services station is required for the planned community to meet the applicable response time, then location of the new emergency services station should comply with the master siting plan of the district.

Schools

1. Sufficient land shall be incorporated into the land use plan for elementary educational facilities to serve the planned community according to the applicable school district standard.

2. Sufficient land shall be incorporated into the land use plan for middle school and high school educational facilities to serve the planned community according to the applicable

school district standards.

3. Elementary school sites shall be within one and a half (1.5) miles of fifty percent (50%) of the elementary age residents of the planned community.

Transportation

1. Planned communities shall be designed to have an internal trip capture of at least fifteen percent (15%), as calculated using the methodology for estimating trip generation at multiuse sites in the latest edition of the ITE "Trip Generation Handbook" and/or any other methodology approved by ACHD, provided, however, that the appropriate standard established by the applicable area of city impact in Title 9 of this code may be used as an alternative.

2. The planned community shall have a comprehensive transportation demand management program for the planned community that will reduce weekday peak period single occupant vehicle trips compared to the forecasted trip generation for the project without transportation demand management strategies. At a minimum, the transportation demand management program shall include: street widths to accommodate transit service; internal street connectivity consistent with ACHD's transportation land use integration plan; land for bus shelters (minimum of a five foot by eight foot [5' x 8'] pad, as appropriate); Americans with disabilities act compliant sidewalks or pathways that are connected to the curb at bus stop locations as determined at the discretion of VRT; carpool and vanpool parking designations at commercial centers; park and ride facilities; lighting; and bicycle facilities. Trip reduction rate generated due to a transportation demand management program shall not be used in the traffic impact study analysis submitted to ACHD and ITD.

3. Level of service on all public roadways shall be determined by the jurisdiction (ACHD or ITD) having authority over the roadways.

Natural and developed open space

1. A minimum of ten (10) acres per one thousand (1,000) population of developed open space based on two and a half (2.5) persons per dwelling unit.

2. A minimum of fifteen percent (15%) of the total gross area of the planned community shall be dedicated to natural open space.

3. A minimum of thirty percent (30%) of the total gross area of the planned community shall be dedicated to natural open

space if the planned community is in the foothills.

4. All-natural open space and developed open space shall be accessible to the public and shall be created and evidenced by recorded easements and plat notes, or other recorded instruments.

Library

Sufficient space shall be incorporated into the land use plan for library services to serve the planned community.

B. Additional Service Standards. Each planned community must provide a minimum of six (6) of the following categories of additional services in accordance with the stated minimum standard for each:

Additional Service Category	Minimum Standard
Developed open space	A minimum of twelve (12) acres per one thousand (1,000) population based on two and a half (2.5) persons per dwelling unit.
Natural open space	A minimum of sixteen and a half percent (16.5%) of the total gross area of the planned community shall be dedicated to natural open space.
Multi-family housing	A minimum of ten percent (10%) of the total number of dwelling units.
Workforce housing	A minimum of fifteen percent (15%) of for sale housing (single-family and multi-family) priced for households earning one hundred twenty percent (120%) of the Ada County household median income or below.
Rental housing	A minimum of thirty percent (30%) of the total rental units for multi-family housing priced for households earning up to eighty percent (80%) of the Ada County household median income.
Green community	1. Water efficiency (e.g., low water plumbing fixtures in homes and buildings; primarily low water or xeric landscaping; limited turf). 2. Energy efficiency (e.g., energy star homes or comparable standard). 3. Materials efficiency (e.g., using less building materials than standard). 4. Green infrastructure/design (e.g., application of reclaimed wastewater; groundwater recharge; less impermeable surface).

Library	1. A minimum standing collection of three and a half (3.5) volumes per resident. 2. Provision of space at agreed upon stages of residential development consistent with one and a quarter (1.25) square feet per resident. 3. Staffing of one (1) full-time employee per one thousand (1,000) residents. 4. One (1) public computer per one thousand (1,000) residents with a minimum of three (3) public computers in any library space.
Schools	1. Donation of land for educational facility beyond that needed to primarily serve the planned community population. 2. Site size and location and donation requirements must be in accordance with adopted school district standards.
Mixed use district	Five thousand (5,000) square feet finished building space per one thousand (1,000) residents (appropriately phased).
Employment	Office Park, industrial park, or other area sufficient for fifty (50) employees.
Walkability	Ninety percent (90%) of dwelling units located within one half (0.5) mile walking distance to neighborhood shops/services and/or developed open space.
Trip capture	At least fifteen and three quarters percent (15.75%) internal trip capture as calculated using the methodology for estimating trip generation at multiuse sites in the latest edition of the ITE "Trip Generation Handbook" and/or any other methodology approved by ACHD.
Other	Must be approved by Director or Board.

C. Waiver. The Board may waive or alter one or more of the public service standards in this Section on a case-by-case basis. The request and justification for such waiver shall be submitted as part of subsection 8-12-7C.7 of this Chapter.

8-12-5: General Standards. The following standards shall be applicable to all planned communities:

A. The planned community shall have a Community Conservation Director responsible for, but not limited to, conservation efforts, environmental and recreational management and environmental education for the community, and implementation of mitigation actions outlined in the wildlife and habitat management plan. The Community Conservation

Director shall have the qualifications required by subsection 8-12-6A6 of this Chapter. The planned community shall have a Community Conservation Advisory Committee including, but not limited to, the Community Conservation Director, a representative from Idaho Department of Fish and Game; Bureau of Land Management; Ada County Development Services; Natural Resource Conservation Service; Ada Soil and Water Conservation District, and the Planned Community Homeowners' Association. Progress reports from the Community Conservation Director will be provided to the Community Conservation Advisory Committee. The Community Conservation Advisory Committee shall review the progress reports and where necessary, recommend to the Community Conservation Director and the Director changes in management direction or alteration of the wildlife and habitat management plan objectives.

- B. The planned community's internal roadway network and connectivity to the regional transportation system shall be designed to conform to Idaho Transportation Department's (ITD) and Ada County Highway District's (ACHD) current access management policies, interim policies, and corridor studies. Cross access easements shall be provided to adjacent properties when determined necessary by ITD, ACHD and/or Ada County.
- C. The planned community's internal trail and pathway network and connectivity to the regional trail and pathway system shall be designed to conform to the Ada County Parks, Open Space and Trails Plan, and the Ada County Ridge to Rivers Pathway Plan, or the applicable city's trailway and path plan(s) if located in an area of city impact.

8-12-6: Application Submission Standards

- A. **Qualifications.** All technical reports and recommendations shall be prepared under the supervision of and signed by a qualified expert in each relevant field based on the following qualifications:
 - 1. **Hazardous Areas, Hydrology, And Soils.** Professional engineer licensed in the state of Idaho;
 - 2. **Economist.** A professional who demonstrates experience in community development, land use, and/or public administration, specifically with regard to land development feasibility, public services provision, public finance policy, and the economic and fiscal impacts of private development. A graduate degree in economics, public finance, or public administration and at least seven (7) years of experience; or a bachelor's degree in economics, public finance, or public administration and at least ten (10) years of experience; or a bachelor's degree and at least fifteen (15) years of experience;
 - 3. **Planner.** A professional who is engaged in professional planning, either currently or in the past, as defined by the American Institute Of Certified Planners (AICP), and who has completed a graduate degree in planning, from a program accredited by the planning accreditation Board (PAB), plus two (2) years of professional planning experience; or a bachelor's degree in planning, from a PAB accredited program, plus three (3) years of professional planning experience; or any other postgraduate, graduate or undergraduate degree plus four (4) years of professional planning experience; or no college degree plus eight (8) years of professional planning experience;
 - 4. **Transportation.** A professional engineer licensed in the State of Idaho;

5. **Historical and Cultural Resource Findings.** Archaeologists, history, and architectural history consultants with submitted documentation that they have demonstrated that they meet the secretary of the interior's 36 CFR 61 qualifications;
6. **Wildlife Habitat Mitigation Plan and Habitat Analysis.** A professional(s) whose experience demonstrates considerable knowledge of planning and conducting field research for wildlife habitat projects, and formulating specific plans to mitigate wildlife habitat impacts. For the wildlife component, a graduate degree in wildlife biology or a closely related field and at least two (2) years of experience; or a bachelor's degree in wildlife biology or a closely related field and at least four (4) years of experience; or a bachelor's degree and at least eight (8) years of experience. For the vegetative component, a graduate degree in botany, plant ecology, or closely related field and at least two (2) years of experience; or a bachelor's degree in botany, plant ecology, or closely related field and at least four (4) years of experience; or a bachelor's degree and at least eight (8) years of experience;
7. **Wetlands.** A professional engineer licensed in the State of Idaho or a certified wetlands specialist;
8. **Slope Stabilization.** A professional engineer licensed in the State of Idaho;
9. **Revegetation.** A licensed landscape architect whose experience demonstrates considerable knowledge in the implementation and execution of slope stabilization, revegetation projects, and vegetation management; and
10. **Groundwater.** An individual or entity identified on the Department of Environmental Quality (DEQ) environmental consulting firms list (available on the DEQ website) or a hydrologist with technical background and experience in planning, conducting, and coordinating complex hydrologic studies in groundwater modeling and analysis.

B. Digital Submissions

1. Digital submissions, in a format approved by the Director, shall accompany all paper submissions; and
2. Digital mapping shall be formatted to be compatible with the County's geographic information system.

C. Mapping. All maps shall have a legend, north arrow, scale, title, and author.

8-12-7: Comprehensive Plan Amendment Application

- A. Purpose.** To analyze the existing conditions of the site and regional impacts from the proposed development to determine the appropriateness of the location and the feasibility of the development's success; to plan for and ensure the availability of urban public services; to create a Planned Community Subarea Comprehensive Plan specific to the subarea.
- B. Process.** All requests for the creation of a Planned Community Subarea Comprehensive Plan shall comply with the following:
 1. **Public Services Scoping Session(s).** Prior to application submission a scoping work session shall be held with Ada County Development Services and may include affected public service providers and regulatory agencies, including, but not limited to, Idaho

Department of Environmental Quality, Idaho Department of Water Resources, Central District Health Department, the Army Corps of Engineers, and military officials if the planned community is within the AMI;

2. **Transportation Scoping Session(s).** Prior to application submission a scoping work session shall be held with Ada County development services and may include affected transportation agencies, including, but not limited to, Ada County Highway District, Idaho Transportation Department, Community Planning Association of Southwest Idaho (COMPASS), and Valley Regional Transit (VRT).

3. **Public Involvement.**

- a. **Purpose.** The purpose of the public involvement sessions is to provide interested members of the public the opportunity to be involved in the review of the proposed planned community subarea comprehensive plan prior to concept finalization.
- b. **Process.** Prior to application submission a minimum of two (2) public involvement sessions shall be held. The Director or their designee, all cities in Ada County, counties with borders contiguous to the proposed planned community, all registered neighborhood associations in Ada County, and all property owners within one mile of the proposed planned community subarea comprehensive plan boundaries, shall be invited to each meeting via mailed notices. Property owners may be invited using alternative forms of notice in compliance with Section 8-6-8 of this Title. In addition, the applicant/owner shall publish a notice of the time and place of the sessions in the official newspaper of general circulation in the County.
 1. **Planning Type Process.** The public involvement sessions shall be a facilitated planning type process where interested parties and the developer can work collaboratively with each other in reviewing the proposed planned community subarea comprehensive plan concepts.
 2. **Location.** The meeting shall be held at one of the following locations:
 - a. On the subject property;
 - b. At a nearby available public meeting place including, but not limited to, fire station, library, or community center; or
 - c. At an office space with suitable meeting facilities.
 3. **Verification.** The application materials shall include a written verification that the public involvement sessions took place.
4. **Application Types.** A comprehensive plan text amendment and zoning ordinance map amendment shall be submitted as described below and in Sections 8-6-14, 8-6-33 and 8-6-34 of this Title.
5. **Transmittals.** In addition to transmittal requirements identified in Section 8-6-8 of this Title, a complete copy of the application shall be provided by Ada County to the providers of the urban public services for the area covered by the planned community subarea comprehensive plan.

C. **Application Requirements.** The following analyses, reports and reviews supporting the proposed planned community subarea comprehensive plan goals and policies shall be

submitted:

- 1. Population.** A population analysis of pertinent historical and future trends of the Boise Metropolitan Area and Ada County as context for the proposed planned community, including such characteristics as total population, household population, household size, household income, age, and gender. The analysis shall include at a minimum:
 - a. A written assessment of population and household demographic trends in the Boise metropolitan area and Ada County as a determinant of planned community design;
 - b. A written assessment of population and household growth projections in the Boise Metropolitan Area and Ada County including consideration of established regional or state projections utilized for public planning purposes; and
 - c. A written assessment demonstrating the adequacy of the location and proposed land uses of the planned community in accommodating demonstrated population household and demographic growth trends in the Boise metropolitan area and Ada County.
- 2. School Facilities and Transportation.** An analysis of public school capacity and associated transportation considerations for the proposed planned community. The analysis shall be developed in coordination with the applicable school district(s) and shall include at a minimum:
 - a. A map depicting existing school facilities within one mile of the planned community boundary, including any school district boundary lines;
 - b. A determination of the specific school district(s) that will provide public education services to planned community residents;
 - c. A written assessment describing potential school enrollment generated by the planned community including detail of elementary, middle, and high school enrollment consistent with enrollment projection standards of the affected school district(s).
 - d. A written assessment describing public school facility needs, if any, within the planned community as a result of anticipated enrollment generated by the planned community consistent with capital facilities planning standards of the affected school district; and
 - e. A written assessment describing public school student transportation needs, if any, from the planned community to school facilities off site consistent with student transportation standards of the affected school district(s), the public-school capacity and transportation.
- 3. Economic Development.** An analysis of the economic base of the area, including, employment, industries, economies, jobs, and income levels. The analysis shall include at a minimum:
 - a. A written assessment demonstrating that the planned community is reasonably supported by economic and market conditions in Ada County and the Boise metropolitan area. This assessment shall include conceptual information about the following:

1. Projected dwelling unit counts, build out/absorption and occupancy in the context of regional growth trends, identified demographic trends and competing development;
 2. Likely residential product types and price ranges in current dollars suitable for development within the planned community as a function of planned community location and physical features, anticipated market conditions, and likely demographics as identified in the population section of the planned community comprehensive plan;
 3. Planned commercial buildings/gross space, if any, and anticipated build out/absorption in the context of regional growth trends, residential development at the planned community, and locational features including transportation and access; and
 4. Planned industrial building/gross space, if any, and anticipated build out/absorption in the context of regional growth trends, industrial land utilizing industry trends, and proximate infrastructure.
- b. A written assessment of current dollar costs associated with both private and public infrastructure and facility improvements required to provide urban public services to the site broken out into private and public categories. This assessment shall include an analysis of unique conditions of the site consistent with the natural resources inventory required by subsection C5a of this Section, which may contribute to an increased cost in providing urban public facilities and urban public services.
4. **Land Use.** An analysis of natural land types, existing land covers and uses, and the intrinsic suitability of lands for uses such as agriculture, forestry, mineral exploration and extraction, preservation, recreations, housing, commerce, industry, and public facilities. Proposed general land uses shall be developed consistent with the natural resource and wildlife inventory analysis as required by subsection C5 of this Section. The analysis shall include at a minimum:
- a. A map depicting existing land uses and zoning within one (1) of the proposed planned community boundary (including interior boundaries, if any).
 - b. A written assessment describing the general categories of existing land uses and zoning within one (1) mile of the proposed planned community boundary (including interior boundaries, if any);
 - c. A map depicting proposed general land uses and densities within the proposed planned community and within one mile of the proposed planned community boundary (including interior boundaries, if any), including intensity of nonresidential uses, and developed and natural open space. Land uses and densities outside of the planned community boundary shall be based on the future land use designations of the applicable comprehensive plan; and
 - d. A written assessment describing the general categories of proposed land uses within the proposed planned community and within one (1) mile of the proposed planned community boundary (including interior boundaries, if any) including conceptual intensity of nonresidential uses, net density, and potential impacts to adjacent

properties as a result of the proposed land uses.

- 5. Natural Resources and Wildlife Inventory.** An analysis including the uses of rivers and other waters, forests, range, soils, harbors, fisheries, minerals, thermal water, beaches, watersheds, and shorelines, and an analysis of existing wildlife and habitat conditions. The analyses shall include at a minimum:

a. Natural Resources Inventory

1. A map depicting, and a written assessment of, the following: topography; wetlands; soils from the most recent soil survey information; prime agricultural land; mineral resources; and rivers and other bodies of water; and
2. A written assessment of the effect the planned community will have on the source, quantity and quality of ground and surface water in the area.

b. Wildlife Habitat Inventory

1. Aerial photography of sufficient quality and scale to show land unit boundaries, geological features, vegetation types, creeks, riparian areas and wetlands, roads, trails, and other landscape features;
2. A map prepared in consultation with Idaho Department of Fish and Game, generally depicting and a written assessment (including methodologies used) of the following:
 - a. Site resources including vegetation/habitat types (including noxious weeds), and wildlife;
 - b. Existing vegetation condition based on ecological site descriptions (ESD) from the latest version of the "Indicators of Rangeland Health;"
 - c. Special status species and threatened and endangered species based on Idaho Fish and Game conservation data, and United States Department of Interior, United States Fish and Wildlife Service (USFWS) information;
 - d. Both current and potential use of big game winter range, and where appropriate pronghorn antelope, based upon Idaho Department of Fish and Game (IDFG) data. Site specific surveys may be used to supplement IDFG data;
 - e. Structure and function of existing wildlife habitats, including connectivity, habitat fragmentation, and wildlife corridors;
 - f. Priority habitat based upon the Idaho Comprehensive Wildlife Conservation Strategy, except, if a planned community is planned adjacent to or in the vicinity of bureau of land management and/or United States forest service managed federal lands, the species lists shall be cross referenced with the respective agency lists; and
 - g. Existing human disturbance to wildlife and habitat as a result of livestock, transportation, recreation, agriculture and development within a minimum of one mile of the planned community boundary.

- 6. Hazardous Areas.** An analysis of known hazards as may result from susceptibility to

surface ruptures from faulting, ground shaking, ground failure, landslides, or mudslides; avalanche hazards resulting from development in the known or probable path of snow slides and avalanches, floodplain, and wildfire hazards. The analysis shall include at a minimum a map and written assessment of known hazards.

- 7. Urban Public Services and Urban Public Facilities.** An analysis showing general plans for urban public services and urban public facilities. The plan may also show locations of civic centers and public buildings. The plan shall be developed in coordination with the affected public service providers and regulatory agencies. The plan shall include, at a minimum:

 - a.** A map depicting existing urban public services and urban public facilities within one (1) mile of the proposed planned community boundary;
 - b.** A written assessment of existing urban public services and urban public facilities within one (1) mile of the proposed planned community boundary, including availability and adequacy to serve the proposed land uses and population, and a description of the impacts to existing levels of service as a result of such utilization;
 - c.** A map depicting proposed urban public services and urban public facilities projected to serve the proposed land uses and population including conceptual location, distribution, extent, and intensity of such, including major system components and any projected additions and/or extensions to existing urban public services and urban public facilities;
 - d.** A written assessment of proposed urban public services and urban public facilities including availability and adequacy to serve the proposed land uses and population, the projected location, distribution, extent, and intensity of such, including major system components and any projected additions, extensions, and improvements to existing urban public services and urban public facilities;
 - e.** A written assessment of water rights detailing the applicability and availability of such, including a description of any applications and/or permits that are required by the Idaho department of water resources; and
 - f.** A determination of reasonable access, per Idaho Department of Environmental Quality (DEQ) policy, issued by DEQ.
- 8. Transportation.** An analysis of impacts to the regional transportation system resulting from the proposed land uses and population prepared in coordination with, as applicable, the Idaho Transportation Department, Ada County Highway District, Community Planning Association of Southwest Idaho, Valley Regional Transit, and any other local jurisdiction(s) having authority over the public highways and streets materially affected by the planned community. The traffic impact study shall be submitted to ITD and ACHD thirty (30) days prior to submission of the planned community subarea comprehensive plan application to the Director.
- 9. Recreation.** An analysis showing the existing system of recreation and natural and developed open space areas, including parks, parkways, trailways, riverbank greenbelts, beaches, playgrounds, and other recreation areas and programs within one (1) mile of the boundaries of the proposed planned community subarea comprehensive plan area. The analysis shall include at a minimum:

- a. A map depicting existing public recreation, open space areas, parks, and trails;
 - b. A written assessment of existing public recreation, open space areas, parks, trails, and programs;
 - c. A map of proposed conceptual, natural, and developed open space, or a reference to the land use section of the planned community comprehensive plan; and
 - d. A written assessment of proposed conceptual natural and developed open space and programs, or a reference to the land use section of the planned community comprehensive plan.
- 10. Special Areas or Sites.** An analysis of areas, sites, or structures of historical, archeological, architectural, ecological, wildlife, or scenic significance. The analysis shall include at a minimum a written assessment of those sites and areas of significance.
- 11. Housing.** An analysis of housing conditions and needs; plans for improvement of housing standards; and plans for the provision of safe, sanitary, and adequate housing, including the provision for affordable and low-cost conventional housing. The analysis shall be developed in accordance with subsection C1 of this Section and shall include at a minimum a written assessment including:
- a. Housing conditions and needs within the region;
 - b. Housing options, including single-family, multi-family, condominiums, apartments, live/work, mixed use units and affordable and low-cost conventional housing; and
 - c. A discussion of how the planned community will provide for the housing needs of the projected population, as identified in subsection C1 of this Section.
- 12. Community Design.** A clear description of the vision of the desired future state of the planned community that provides direction for strategic planning. A general description of the regulations that will be created and utilized for the control of landscaping, building design, tree planting, signs, and suggested patterns and standards of community design, development, and beautification. The analysis shall be developed in consideration of the vision of the planned community comprehensive plan and shall include at a minimum:
- a. A written assessment of the above referenced items; and
 - b. Illustrative examples of the proposed vision for the community.
- D. Required Planned Community Subarea Comprehensive Plan Goals and Policies.** The planned community subarea comprehensive plan text amendment application shall include a proposed planned community subarea comprehensive plan to be used to guide future development taking into account the vision of the proposed planned community and the analysis, reports, and reviews required in subsection C of this Section. The planned community subarea comprehensive plan goals and policies should include, at a minimum, the following elements:
- 1. Population.** Goals and policies addressing population, including at a minimum the desired density for the planned community by subset generally and overall including a minimum net density goal of three (3) residential dwelling units per acre.

2. **School Facilities and Transportation.** Goals and policies describing how public school capacity and associated transportation considerations for the proposed planned community will be addressed including at a minimum:
 - a. Ensure that school facilities are safe and accessible by automobile, transit, walking and bicycling, and require minimal need for school operated busing; and
 - b. Ensure that schools are sited to be complementary to and compatible with surrounding neighborhoods to avoid conflicts with incompatible land uses and/or adverse conditions.
3. **Economic Development.** Goals and policies addressing economic development within the proposed planned community including at a minimum:
 - a. The planned community will provide for a variety of ownership and rental residential units suitable for Ada County population and work force growth;
 - b. The planned community should provide commercial services and dedicated employment use areas on site, unless designed around an existing commercial or employment center, to measurably reduce planned community resident vehicle miles traveled; and
 - c. The planned community shall develop in an economically sustainable and financially self-supporting manner.
4. **Land Use.** Goals and policies addressing land use that are consistent with the vision for the planned community.
5. **Natural Resources.** Goals and policies including the following that at a minimum:
 - a. Protect wildlife habitat by avoiding fragmentation of habitat corridors;
 - b. Protect water quality;
 - c. Protect development from flood hazards;
 - d. Preserve existing healthy trees and rare plants;
 - e. Preserve existing prime farmland, riparian areas, and wetlands;
 - f. Minimize development on areas subject to the regulations of the hillside overlay district; and
 - g. Provide an accessible system of greenways and trails.
6. **Hazardous Areas.** Goals and policies for identifying and avoiding development in hazardous areas.
7. **Urban Public Services.** Goals and policies guiding development in such a way as to provide urban public services and facilities in self-supporting units, and including the following that at a minimum:
 - a. Ensure utility systems are adequate and meet the needs of the residents and businesses;
 - b. Minimize energy consumption and water demands through conservation methods;
 - c. Ensure environmentally sound management of services; and

- d. Meet the required urban service level standards, with, or without, a transition plan.
- 8. **Transportation.** Goals and policies regarding transportation, including the following that at a minimum:
 - a. Ensure ongoing coordination with ITD, ACHD, COMPASS and VRT;
 - b. Establish context sensitive street cross sections that safely convey existing and projected traffic;
 - c. Develop and adopt a menu of traffic calming provisions; and
 - d. Ensure consistency with any adopted regional or local transportation plans, including pedestrian, bicycle transit, corridor plans, and communities in motion.
- 9. **Recreation.** Goals and policies addressing recreation including, at a minimum consistency, with any adopted regional or local plans.
- 10. **Special Areas or Sites.** Goals and policies for protecting areas, sites, or structures of historical, archeological, architectural, ecological, wildlife, or scenic significance.
- 11. **Housing.** Goals and policies supporting a variety of housing.
- 12. **Community Design.** Goals and policies outlining the vision for community design including at a minimum:
 - a. Pedestrian focused design elements such as continuous sidewalks or equivalent provisions for walking and orienting the principal functional entry of each building on a front facade that faces a public space such as a street, square, park, paseo, or plaza;
 - b. A goal for providing two (2) or more community gathering areas sized to meet the needs of the planned community residents;
 - c. A goal of path and trail linkages between all neighborhoods, developed open space, schools, neighborhood shops/services, transit facilities, and alternate modes of transportation and, where applicable, connectivity with nearby public trails and public lands.
- E. **Required Findings.** In order to amend the Ada County Comprehensive Plan to allow a Planned Community Subarea Comprehensive Plan the Board of Ada County Commissioners must make all of the following findings:
 - 1. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately addresses the future housing needs of the Boise metropolitan area and Ada County population growth;
 - 2. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately addresses the educational needs of the proposed population;
 - 3. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan is reasonably supported by economic and market conditions in Ada County and the Boise metropolitan area;
 - 4. The comprehensive plan text amendment demonstrates that the planned community

- subarea comprehensive plan adequately provides for a mixture of land uses including, but not limited to, low-cost housing;
5. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately protects fish, wildlife, and recreation resources;
 6. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately avoids undue water and air pollution;
 7. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan ensures that important environmental features are protected;
 8. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately protects life and property in areas subject to natural hazards and disasters;
 9. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan encourages the protection of prime agricultural, forestry, and mining lands for production of food, fiber, and minerals;
 10. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan ensures that the development is consistent with the physical characteristics of the land;
 11. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan demonstrates that the planned community subarea comprehensive plan adequately addresses urban public services;
 12. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan ensures that adequate transportation facilities and services are provided for the proposed planned community subarea;
 13. The comprehensive plan text amendment demonstrates that the planned community subarea comprehensive plan adequately addresses the needs of the regional transportation network;
 14. Growth in the proposed planned community subarea will not adversely impact existing regional conditions; and
 15. The planned community subarea comprehensive plan text amendment contains the comprehensive plan components required by subsection D of this Section.

8-12-8: Implementation Plan Application

- A. **Purpose.** To develop a plan that specifies future implementation strategies of a planned community; to create a plan that includes mitigation measures, phasing, actions, programs, budgets, ordinance(s), and timing of infrastructure improvements; and to demonstrate how the development of the planned community will comply with the planned community subarea comprehensive plan.
- B. **Process.** All requests for the creation of a planned community implementation plan shall comply with the following:

1. **Time of Submission.** A planned community implementation plan must be submitted to the Director no later than four (4) years after the date of approval of the planned community subarea comprehensive plan. Notwithstanding any other provisions of this Code to the contrary, no time extensions shall be allowed.
2. **Public Services Scoping Session(s).** Prior to planned community implementation plan application submission, a scoping work session shall be required by the Director and consist of Ada County Development Services and may include affected public service providers and regulatory agencies, including, but not limited to, Idaho Department of Environmental Quality, Idaho Department of Water Resources, Central District Health Department, the Army Corps of Engineers, and military officials if the planned community is within the AMI.
3. **Transportation Scoping Session(s).** Prior to planned community implementation plan application submission, a scoping work session shall be required by the Director and consist of Ada County Development Services and may include affected transportation agencies, including, but not limited to, Ada County Highway District, Idaho Transportation Department, Community Planning Association of Southwest Idaho (COMPASS), and Valley Regional Transit (VRT).
4. **Public Involvement Sessions**
 - a. **Purpose.** The purpose of the public involvement sessions is to provide interested members of the public the opportunity to be involved in review of the proposed community design prior to concept finalization.
 - b. **Process.** Prior to application submission a minimum of two (2) public involvement sessions shall be held. At a minimum the Director or their designee; and cities, registered neighborhood associations, and all property owners within one mile of the proposed subarea boundaries shall be invited to each meeting via mailed notices. Property owners within one mile may be notified by alternate means in compliance with subsection 8-6-8B.4 of this Title. In addition, the applicant/owner shall publish a notice of the time and place of the sessions in the official newspaper of general circulation in the County.
 1. **Review Design/Input.** The public involvement sessions shall provide interested parties the opportunity to review the proposed community design and provide input.
 2. **Location.** The meeting shall be held at one of the following locations:
 - a. On the subject property;
 - b. At a nearby available public meeting place including, but not limited to, fire station, library, or community center; or
 - c. At an office space with suitable meeting facilities.
 3. **Verification.** The application materials shall include a written verification that the public involvement sessions took place.
5. **Additional Applications.** A zoning ordinance text amendment application and a zoning ordinance map amendment application creating the planned community district

shall be submitted concurrently with the planned community implementation plan application and development agreement, as outlined in Sections 8-6-17, 8-6-33, and 8-6-34. A preliminary plat application may be submitted concurrently with the planned community implementation plan application.

- 6. Transmittals.** In addition to transmittal requirements identified in Section 8-6-8 of this Title, a complete copy of the application shall be provided by Ada County to the identified providers of urban public services for the proposed planned community. Ada County shall ask those providers to comment on whether the information for their agency is consistent with the information provided by the agency and that the service levels provided in this code can be achieved.

C. Planned Community Implementation Plan Application Requirements. A planned community implementation plan application shall cover the entire boundary of the approved planned community and shall consist of the following material:

- 1. Financing Plan:** Plans to ensure construction of urban public facilities, and long-term operation and maintenance of urban public services. The financing plan, at a minimum, shall include the following for each phase of the planned community through build-out as follows:
 - a.** A brief narrative description, including:
 - 1.** Type of facility or facilities planned, including identification of any affected public service provider;
 - 2.** Description of phasing, including facilities upgrades and expansion of capacity, including anticipated timing of these steps, if applicable;
 - 3.** Description of the entities responsible for ongoing operation and maintenance of each identified facility, and the planned revenue sources anticipated to support facility operation in perpetuity.
 - b.** A plan of construction costs and planned financing for each urban public facility by phase using the below provided example pro forma, including:
 - 1.** Total construction costs and share of costs borne by the owner and partners;
 - 2.** Funding sources by category, including fees, contribution(s) of owner and partners, and borrowing;
 - 3.** Annual cash uses, including facility construction and/or expansion, additional land acquisition, debt retirement, and interest; and
 - 4.** Total required funding.

Pro forma example:

URBAN PUBLIC FACILITY CONSTRUCTION <i>PRO FORMA</i>										
Year	1	2	3	4	5	6	7	[...]		
URBAN PUBLIC FACILITY CONSTRUCTION <i>PRO FORMA</i>										
Year			1	2	3	4	5	6	7	[...]
A.	Sources									
	Fees									
	Owner Equity									
	Borrowing - Financing									
	<i>Total Sources</i>									
B.	Uses									
	Construction									
	Expansion									
	Additional Land									
	Debt Service/ Return on Capital									
	<i>Total Uses</i>									
SURPLUS/DEFICIT										

- c. A plan of operation and maintenance financing for each urban public service using the example pro forma provided below, including:
1. Annual operation and maintenance costs;
 2. Capital renewal and replacement costs (capital reserve account);
 3. Estimated annual revenue, identified by sources;
 4. Estimated annual private funding required, if any, to ensure continuation of urban public services; and
 5. Private funding sources, contribution(s) of owner and partners, and borrowing.

Pro forma example:

URBAN PUBLIC SERVICE REVENUE AND EXPENSE <i>PRO FORMA</i>										
Year	1	2	3	4	5	6	7	[...]		
URBAN PUBLIC SERVICE REVENUE AND EXPENSE <i>PRO FORMA</i>										
Year			1	2	3	4	5	6	7	[...]
A.	Revenue									
	Connection Fees									
	Service Fees									
	Developer Contribution									
	Borrowing - Financing									
	<i>Total Revenues</i>									
B.	Expenses									
	O&M Costs									
	Capital Reserve (Repair and Replacement)									
	Debt Service/ Return on Capital									
	<i>Total Expenses</i>									
SURPLUS/DEFICIT										

2. **Phasing Plan.** The phasing plan shall be developed in consideration of the financing plan and shall include at a minimum:
 - a. A map of anticipated phase line boundaries for the entire planned community;
 - b. A map of each anticipated phase including:
 1. Land use designations, including residential, mixed use, commercial, public/quasi-public, natural open space and developed open space;
 2. Densities and nonresidential intensities;
 3. Anticipated internal street network, including arterials and collectors; and
 4. Regional anticipated internal trail system, including trails and trailheads.
 - c. A written assessment of the sequence of development including:
 1. Anticipated commencement and completion times of each phase;
 2. Distribution of land use designations;
 3. Total area of each phase and anticipated population;
 4. Implementation of urban public services by phase, including a transition plan if required;

5. Description on how each final plat is a self-supporting unit as defined by this Title; and
 6. How nonresidential uses and recreational opportunities will be phased to keep pace with housing.
3. **Wildlife And Habitat Management Plan.** The wildlife and habitat management plan shall utilize the natural resources and habitat inventory of the adopted planned community comprehensive subarea plan to add impact assessment and mitigation components and update it with the following information:
- a. A narrative of potential direct, indirect, and cumulative impacts to natural resources, wildlife, and wildlife habitat within the project area, including potential secondary impacts to all land within one mile of the exterior boundary of the planned community;
 - b. Method (information and/or calculations) used to evaluate impacts (e.g., buffers, mapping analysis, etc.);
 - c. Mitigation goals and measurable objectives with reference to the impact(s) those goals are intended to mitigate;
 - d. A description of natural open space management;
 - e. A description of mitigation activities and implementation measures including actions and methods to meet goals, time line and estimated cost by development phase, management and monitoring plans, financing and funding sources, and alternative/adaptive management strategies; and
 - f. A description of federal and state permitting requirements.
4. **Community Design.** The community design plan shall include a design theme for each phase. A written assessment and illustrations shall be provided, including, but not limited to, conceptual context sensitive cross sections for the internal street network and any associated pedestrian improvements.
5. **Urban Public Services Plan.** A plan showing how the development will meet each of the urban public service levels required in this code by phase, including a transition plan if required.
6. **Transportation.** The previously approved traffic impact study shall be updated with a phasing analysis. This phasing analysis shall include the amount and type of proposed land uses within each phase and the anticipated mitigation measures necessary with each phase. The developer shall submit a comprehensive transportation demand management plan prepared in coordination with ITD, ACHD and VRT.
7. **Transition Plan.** The Board may consider a transition plan that provides for a transition period from rural to urban service levels on a case-by-case basis. In those instances where the development proposes to meet urban public service level standards by providing programmed urban public facilities and/or programmed urban public services, a specific provision in the development agreement must be included, allowing no more than one year after approval of the implementation plan in which to have the specific facilities or services included in a district's capital improvements or service

provision program. This transition plan may include advance payment of taxes for programmed urban public services and/or proportionate share payments for programmed urban public facilities.

D. Findings. In order to approve an implementation plan, the Board must make all of the following findings:

1. The implementation plan complies with the applicable comprehensive plan;
2. The implementation plan demonstrates that urban public services will be provided to the planned community;
3. The implementation plan demonstrates that the phasing of the planned community will maintain the integrity of the planned community at the end of each phase;
4. The implementation plan financing plan demonstrates financial feasibility through planned community build-out;
5. The implementation plan demonstrates that the long-term operations and maintenance associated with urban public services will be adequately funded;
6. The implementation plan adequately mitigates for any identified impacts to natural resources and wildlife;
7. The implementation plan demonstrates that the planned community effectively implements the required standards as found in Section 8-12-5 of this Chapter; and
8. The implementation plan provides for design themes consistent with the community design goals of the planned community subarea comprehensive plan.

8-12-9: Annexation Standards

A. Purpose. To set standards for addition of acreage to a planned community; to allow for the updating of a planned community subarea comprehensive plan and a planned community implementation plan to cover additional land added to the planned community; to describe the application process; and to allow a streamlined process under appropriate conditions.

B. Application Process

1. All applications for the addition of incremental acreage to an existing planned community, which planned community was approved after the effective date hereof, shall be processed in compliance with the processes listed in Sections 8-12-7 and 8-12-8 of this Chapter.
 - a. If, in the discretion of the Director, the addition of acreage to an existing planned community is found to pose minimal effect on the planned community comprehensive subarea plan, the planned community implementation plan, and to the region, then the planned community subarea comprehensive plan amendment application and the planned community subarea implementation plan amendment application may be processed concurrently.
 - b. If, in the discretion of the Director, the addition of acreage to an existing planned community is found to pose material effect on the planned community comprehensive subarea plan, the planned community implementation plan, and to the region, then the planned community subarea comprehensive plan amendment

and the planned community implementation plan amendment applications must be processed sequentially.

2. All applications for the addition of incremental acreage to an existing planned community, which planned community was approved prior to the effective date hereof, require, as a prerequisite, that a planned community subarea comprehensive plan and a planned community implementation plan be created and approved for the planned community. Applications for the addition of acreage shall thereafter be processed in compliance with this Section.

C. Application Requirements

1. The planned community subarea comprehensive plan reports, reviews, and analyses shall be updated in compliance with subsection 8-12-7C of this Chapter. The applicant may use the adopted planned community subarea comprehensive plan goals and policies as appropriate.
2. The planned community subarea comprehensive plan goals and policies shall be updated according to subsection 8-12-7D of this Chapter.
3. The planned community implementation plan shall be updated in compliance with subsection 8-12-8C of this Chapter.

D. Required Findings. In order to add incremental acreage to an existing planned community the Board of Ada County Commissioners must make all of the following findings:

1. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately addresses the future housing needs of the Boise metropolitan area and Ada County population growth;
2. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately addresses the educational needs of the proposed population;
3. The comprehensive plan text amendment demonstrates that the planned community subarea plan is reasonably supported by economic and market conditions in Ada County and the Boise metropolitan area;
4. The comprehensive plan text amendment demonstrates that planned community subarea plan adequately provides for a mixture of land uses including, but not limited to, low-cost housing;
5. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately protects fish, wildlife, and recreation resources;
6. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately avoids undue water and air pollution;
7. The updated comprehensive plan text amendment demonstrates that planned community subarea plan ensures that important environmental features are protected;
8. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately protects life and property in areas subject to natural hazards and disasters;
9. The comprehensive plan text amendment demonstrates that planned community

subarea plan encourages the protection of prime agricultural, forestry, and mining lands for production of food, fiber, and minerals;

10. The comprehensive plan text amendment demonstrates that planned community subarea plan ensures that the land development is consistent with the physical characteristics of the land;
11. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately addresses urban public services;
12. The comprehensive plan text amendment demonstrates that planned community subarea plan ensures that adequate transportation facilities and services are provided for the planned community subarea;
13. The comprehensive plan text amendment demonstrates that the planned community subarea plan adequately addresses the needs of the regional transportation network;
14. Growth in the proposed planned community subarea will not adversely impact existing regional conditions; and
15. The comprehensive plan text amendment demonstrates that planned community subarea plan contains the comprehensive plan components required by subsection 8-12-7D of this Chapter.
16. The implementation plan complies with the applicable comprehensive plan;
17. The implementation plan demonstrates that urban public services will be provided to the planned community;
18. The implementation plan demonstrates that the phasing of the planned community will maintain the integrity of the planned community at the end of each phase;
19. The implementation plan financing plan demonstrates financial feasibility through planned community build out;
20. The implementation plan demonstrates that the long-term operations and maintenance associated with urban public services will be adequately funded;
21. The implementation plan adequately mitigates for any identified impacts to natural resources and wildlife;
22. The implementation plan demonstrates that the planned community effectively implements the required standards as found in Section 8-12-5 of this Chapter; and
23. The implementation plan provides for design themes consistent with the community design goal(s) of the planned community subarea comprehensive plan.

CHAPTER 13

PLANNED COMMUNITIES

In addition to each planned community's specific zoning ordinance listed in this Chapter, please refer to each planned communities' recorded development agreement for the vested date of the applicable - general zoning ordinance.

Article A: Avimor Planned Community

SECTION:

- 8-13A-1: GENERAL PROVISIONS
- 8-13A-2: LAND USE DISTRICTS
- 8-13A-3: ADMINISTRATION

8-13A-1: General Provisions

- A. Short Title.** This Article, as may be amended from time to time, shall be known, cited, and referred to as the AVIMOR ZONING ORDINANCE.
- B. Purpose and Intent.** This Article is adopted to implement the vision, goals and principles of the Avimor Planned Community and the Avimor Specific Plan; to provide a method of land use regulation, as authorized by the Ada County Comprehensive Plan and the Ada County Zoning Ordinance; and to set forth the development standards and administrative procedures for implementing the land use policies of the Avimor Specific Plan, in particular with respect to:
 - 1. The design of quality, mixed use development.
 - 2. Distinctive and effective regulations to guide development.
 - 3. Flexibility and creativity in design and development in response to market demand and site-specific conditions.
 - 4. Creative and innovative land planning that is sensitive to existing environmental conditions.
 - 5. The integration and balance of a variety of land uses.
 - 6. The development of essential public services.
 - 7. Phased and orderly development utilizing consistent criteria.
 - 8. Establishing uses and standards for each residential and nonresidential use.
 - 9. The development review and approval process.
- C. Applicability.** This Article shall govern and control all development throughout the Avimor Planned Community as described in the Avimor Specific Plan, and as shown on the land use district map, and as detailed in the land use design and development standards matrix, and the land use table.
 - 1. The provisions of the Ada County Zoning Ordinance shall govern all standards or processes that are not specifically identified, set forth, or modified by this Article. Amendment of the Ada County Zoning Ordinance shall neither modify nor amend the specific provisions of this Article, or the land use district map, the land use design and development standards matrix, or the land use table adopted pursuant to this Article.

2. Any contradiction, inconsistency, or ambiguity between the requirements of this Article and any other provision of the Ada County Zoning Ordinance shall be governed and controlled by this Article.
3. The provisions of this Article are severable, and if any provision, sentence, clause, section, or any part thereof, is held illegal, invalid, unconstitutional, or inapplicable, it shall not affect or impair any of the remaining provisions, sentences, clauses, sections, or parts of this Article.
4. To the extent that any specific land use is approved as a result of the adoption of the Avimor Specific Plan, including, without limitation, the placement and approval of any utility system or service, such uses shall require no further application or approval.

D. Definitions. The definitions set forth in Section 8-10-2 are generally applicable in the interpretation and construction of this Article; provided, however, that definitions set forth below are unique to this Article and shall be used specifically in the interpretation and construction of this Article. In the event of any conflict between the terms defined in Section 8-10-2 of this Title and the terms defined below, the terms defined below shall control. Subject to the foregoing, any term used in this Article not specifically defined below shall have the same meaning ascribed to that term as per the definitions set forth in Section 8-10-2, and any term not defined herein or in Section 8-10-2 shall be given its plain and ordinary meaning.

ACCESSORY DWELLING UNIT: A fully functional living unit which may be rented for income, provide residence in barter for personal services, or accommodate a family member, and which may be a separate structure on the same lot, a portion of the primary dwelling, or located over a garage, separate or attached to the primary dwelling.

ALLEY: A public or private way affording a secondary means of access to abutting property at the back or side of a property. An alley may also provide required frontage to a public right-of-way.

ARTICLE: This Avimor Zoning Ordinance.

AVIMOR DESIGN REVIEW COMMITTEE OR DESIGN REVIEW COMMITTEE: That certain Design Review Committee established by the developer to review and approve site plans, architecture and landscape designs within the Avimor Planned Community before such plans and designs are submitted to Ada County for development permits.

AVIMOR PLANNED COMMUNITY: That area depicted in the Avimor Specific Plan and on the land use district map, as they may be amended from time to time.

AVIMOR SPECIFIC PLAN: The Avimor Specific Plan consists of the goals, objectives, policies, maps, development standards, administration provisions and other components of the Avimor application for a planned community which has been adopted by the Board, and which shall serve as a guide for development. A copy of the Avimor Specific Plan, as it may be amended from time to time, shall be on file with the Ada County Development Services Department.

COMMUNITY CENTER: That area, building or facility which is intended to include the recreational and community service uses that will form the social hub of the Avimor Planned Community, and which may include for lease office(s) and/or retail space(s).

COMMUNITY SERVICE DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map, which designation identifies sites for utilities and public structures, services or facilities outside of the Village Center District, including, without limitation, schools, fire, police, EMS and restricted commercial uses that are compatible with open space or recreation, such as landscape nursery, bicycle or recreational sales, rental and repair, or such other uses that are determined by the Director to be in conformity with the Avimor goal, objectives and policies.

DEVELOPMENT PERMITS: Those applications and permits required for approval by Ada County including, without limitation, master site plan approval, zoning certificate, grading permit, and building permit, as may be required pursuant to this Article or the Ada County Zoning Ordinance.

DWELLING, LIVE/WORK: A building that offers the opportunity for the occupant to live and work in the same building with distinctly separate space for each activity.

DWELLING, LOFT HOUSING: A dwelling unit located above a nonresidential use.

FLOOR AREA RATIO: The ratio of total building floor area to the total land area of the parcel where the building is located.

FOOD VEHICLE OR TRAILER CONCESSIONS: Unit is licensed as a mobile food establishment with the Health Authority. Unit from which food and beverages are sold. Includes permanent and semi- permanent vehicle or trailer and is a self-sufficient vehicle or trailer.

FOOTHILLS OPEN SPACE DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map, which designation identifies land retained as natural open space for the preservation of sensitive habitat, natural features and/or hillside areas free of development or structures other than wildlife habitat improvements, trails and trailhead parking, recreational improvements, agricultural uses, utilities, utility facilities, roadways, drainage facilities or other accessory uses or approved conditional uses.

FOOTHILLS RESIDENTIAL DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map, which designation identifies clustered, low to medium density residential housing areas.

LAND USE DESIGN AND DEVELOPMENT STANDARDS MATRIX: The table of design and development standards and regulations for structures and site improvements specific to the Avimor Planned Community, as detailed in Section 8-13A-2, Table 8-13A-1 of this Article.

LAND USE DISTRICT: The specific districts within the Avimor Planned Community where designated land uses are regulated. See definitions of Community Service District, Foothills Residential District, Foothills Open Space District, Village Center District, Village Residential District, Village Open Space District.

LAND USE DISTRICT MAP: The map depicting the boundary of the Avimor Planned Community and the land use districts within such boundary, as detailed in Section 8-13A-2, Figure 8-13A-1 of this Article.

MIXED USE: The integration of different uses, including, without limitation, workspace, such as office and retail, dwellings, shopping, schools, restaurants, entertainment, parks, and civic buildings, all within close proximity and often within the same buildings.

MODEL HOME COMPLEX/SALES CENTER: One (1) or more dwellings or group of dwellings which is/are shown to prospective buyers, which may include parking, signage, fenced visitor "capture" area(s) and sales office(s).

PHASE: A development area within the Avimor Planned Community designated as such on a subdivision plat.

SELF-SUFFICIENT VEHICLE OR TRAILER: Unit is equipped for preparing perishable Potentially Hazardous Food/Temperature Controlled for Safety (PHF/TCS) foods, cooking, hot and cold storage, dry storage, utensil washing, hand washing etc., on the unit with self-contained potable water supply and wastewater storage. Pressurized hot and cold water is required in mobile unit.

SUBSTANTIAL CONFORMANCE: A final plat shall be deemed to be in substantial conformance to a preliminary plat provided that the final plat represents no increase in the number of lots as approved for the preliminary plat, provided that the density and lot dimensions meet the standards of the applicable land use district, and provided that roadway alignments conform to those depicted on the preliminary plat.

VILLAGE CENTER DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map, which identifies a mixed-use core of the community.

VILLAGE OPEN SPACE DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map, which identifies lands which shall remain open and free of development or structures other than wildlife habitat improvements, trails and trailhead parking, recreational improvements, utilities, roadways, drainage facilities or other uses as approved through the conditional use process.

VILLAGE RESIDENTIAL DISTRICT: The land use designation described on the land use design and development standards matrix and depicted on the Land Use District Map which identifies a central single-family neighborhood of diverse housing types.

8-13A-2: Land Use Districts

A. Land Use Districts. All areas within the Avimor Planned Community are divided into land use districts, and the use of each lot, parcel or tract of land is defined by the standards of its applicable land use district. The land use districts and the statement of purpose for each are as follows:

- 1. Village Center District (VC).** It is the purpose of the Village Center Land Use District to provide for civic, commercial, retail and office uses, and for higher density residential uses in a mixed-use village environment, located at the primary entrance and focal point of the community, in conformity with the Avimor goal, objectives and policies.
- 2. Village Residential District (VR).** It is the purpose of the village residential land use district to provide for predominantly single-family residential uses, in flat land or

moderately sloped areas, at densities between three and one half (3.5) and eight (8) units per acre in conformity with the Avimor goal, objectives and policies.

3. **Foothills Residential District (FR).** It is the purpose of the foothills residential land use district to provide for larger lot, single-family residential uses in hillside and valley areas at densities ranging from one half (0.5) to two (2) units per acre in conformity with the Avimor goal, objectives, and policies.
4. **Community Service District (CS).** It is the purpose of the community service land use district to provide for utilities and public structures, services or facilities outside of the village center district, including, without limitation, schools, fire, police, EMS, and restricted commercial uses that are compatible with open space or recreation, such as landscape nursery, bicycle or recreational sales, rental and repair, or such other uses that are determined by the Director to be in conformity with the Avimor goal, objectives and policies.
5. **Foothills Open Space District (FOS).** It is the purpose of the foothills open space land use district to provide for preservation of riparian corridors of natural watercourses, steep hillsides, and major ridges above the three thousand five-hundred-foot (3,500') elevation, view corridors and wildlife habitat in conformity with the Avimor goal, objectives, and policies.
6. **Village Open Space District (VOS).** It is the purpose of the village open space land use district to provide for natural and improved open spaces, including, without limitation, riparian corridors of natural watercourses, parks and play fields, and wetlands and drainage facilities in conformity with the Avimor goal, objectives, and policies.

B. Land Use Design and Development Standards Matrix. All structures and site improvements within the various land use districts shall meet the design and development standards of Table 8-13A-1 of this Section unless otherwise specified.

TABLE 8-13A-1

AVIMOR PLANNED COMMUNITY LAND USE DESIGN AND DEVELOPMENT STANDARDS MATRIX

Land Use District	Design Principles	Land Type/ Location	Uses	Density ¹	Height ²	Lot Size/ Coverage ³
Village Center	- Centrally located civic, commercial, retail, office - Mixed use⁶ - Most intense housing - Neighborhood scale commercial - Pedestrian orientation - Buildings relate to street - Shared use parking encouraged for commercial/community	Flat land areas See land use district map, figure 8-13A-1 of this Section	Retail, office and service with residential¹⁴ uses at a minimum of 25% of gross building square footage for the entire village center district See land use table, table 8-13A-2 of this Section	3.5 dwelling units per acre minimum where residential uses proposed Floor area ratio shall be a minimum	40'	Size: 1,500 sq. ft. minimum Coverage: No maximum

	uses			of 0.3 There shall be no maximum floor area ratio No more than 1 accessory dwelling unit per residential lot		
Village Residential	Diverse housing types and income levels Pedestrian orientation	Flat land or gently sloped areas 0–8% slope typical⁷ See land use district map, figure 8-13A-1 of this Section	See land use table, table 8-13A-2 of this Section	3.5 dwelling units per acre minimum; 8 dwelling units per acre maximum No more than 1 accessory dwelling unit per residential lot	35'	Size: Attached: 1,500 sq. ft. minimum Detached: 3,500 sq. ft. minimum Coverage maximum: Attached: 80% Detached: 60%
Foothills Residential	Residential transition from village uses to foothills open space Grade adaptive housing encouraged	Moderate hillside areas – 5–25% slopes typical See land use district map	See land use table, table 8-13A-2 of this Section	0.5 dwelling units per acre minimum; 2 dwelling units per acre maximum No more than 1 accessory dwelling unit per residential lot	35'	Size: 9,000 sq. ft. minimum Coverage maximum: 45%
Community Service	Structures or facilities providing community	Generally throughout	See land use table, table 8-13A-2 of	n/a	40'	Size: 1,500 sq.

	services outside of the village center district	the planned community where community services uses are needed See land use district map, figure 8-13A-1 of this Section	this Section			ft. minimum Coverage: No maximum
Foothills Open Space	Preservation of natural features, wildlife habitat and view corridors	Steep hillside areas with slopes exceeding 25% See land use district map, Figure 8-13A-1 of this Section	See land use table, table 8-13A-2 of this Section	n/a	n/a	n/a
Village Open Space	Preservation of sensitive areas, scenic corridors and wildlife habitat, and cultural sites but with public or private recreational open spaces	Varied: riparian corridors, moderate slopes, unique natural features See land use district map, Figure 8-13A-1 of this Section	See land use table, table 8-13A-2 of this Section	n/a	n/a	n/a

Land Use District	Frontage ⁴	Minimum Setbacks ⁵	Streets/Parking	Design Standards	Landscaping/Open Space ¹²
Village Center	20' Corner lot: 25' Flag lot: 20' ⁸	No minimum setbacks	Public streets: ACHD approved standards Parking requirement per 8-3-10 of this Title On street parallel or diagonal parking with parking	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design and development standards for the following design elements: green design standards, water conservation,	Open space: n/a Landscape: - Residential uses subject to standards applied by Avimor design review committee - Community and commercial/industrial uses subject to requirements of 8-3-7 of this Title

			reduction by approval of a parking budget for nonresidential uses ¹³	energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	
Village Residential	30' Corner lot: 35' Flag lot: 20'⁸	Front: 10' for all structures except: - 8' for alley loaded residences - 20' for all residential garages⁹ Side: Attached 0' Detached 5' Zero lot line: 10' between living area on adjacent lots¹¹ Street side: 10' Rear: 15' except: 5' for alley loaded residential garages¹⁰	Public streets: ACHD approved standards Parking requirement per 8-3-10 of this Title	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design and development standards for the following design elements: green design standards, water conservation, energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	Open space: n/a Landscape: - Residential uses subject to standards applied by Avimor design review committee - Community and commercial/industrial uses subject to requirements of 8-3-7 of this Title
Foothills Residential	40'⁸ Corner lot: 45' Flag lot: 20'⁸	Front: - Living 15' - Garage 20'⁹ Side: - Minimum 5' - Cumulative 15' minimum Street side: 10' Rear: - Living 20' - Garage 5'¹⁰	Public streets: ACHD approved standards Parking requirement per 8-3-10 of this Title	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design and development standards for the following design	Open space: n/a Landscape: - Residential uses subject to standards applied by Avimor design review committee - Community and commercial/industrial uses subject to requirements of 8-3-7

				elements: green design standards, water conservation, energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	of this Title
Community Service	20'	Front: 10' Side: 10' Rear: 10' - except for any parcel located adjacent to a residential district where setback to any common boundary with a residential lot shall be 30'	Parking requirement per 8-3-10 of this Title	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design and development standards for the following design elements: green design standards, water conservation, energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	Open space: n/a Landscape: All uses subject to requirements of 8-3-7 of this Title
Foothills Open Space	n/a	For structures and improvements permitted within the district, there shall be no minimum setback except	Public streets: ACHD approved standards Parking requirement per 8-3-10 of this Title except as	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design	Open space designated for all areas unoccupied by building lots, structures, streets, or parking lots, except as otherwise specified in 8-3-9 of this Title

		for any parcel located adjacent to a residential district where setback to any common boundary with a residential lot shall be 30'	set forth in note 14	and development standards for the following design elements: green design standards, water conservation, energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	Landscape: All uses subject to requirements of 8-3-7 of this Title
Village Open Space	n/a	For structures and improvements permitted within the district, there shall be no minimum setback except for any parcel located adjacent to a residential district where setback to any common boundary with a residential lot shall be 30'	Public streets: ACHD approved standards Parking requirement per 8-3-10 of this Title except as set forth in note 14	The development standards and design guidelines set forth in subsection B-13 of the Avimor specific plan are hereby incorporated by this reference and shall constitute the design and development standards for the following design elements: green design standards, water conservation, energy conservation, site design, grading and drainage, architecture, landscape, fences and walls, lighting, signage, and wildlife. The relevant development standards and design guidelines shall be applied to uses within this land use district as appropriate.	Open space designated for all areas unoccupied by building lots, structures, streets, or parking lots, except as otherwise specified in 8-3-9 of this Title Landscape: All uses subject to requirements of 8-3-7 of this Title

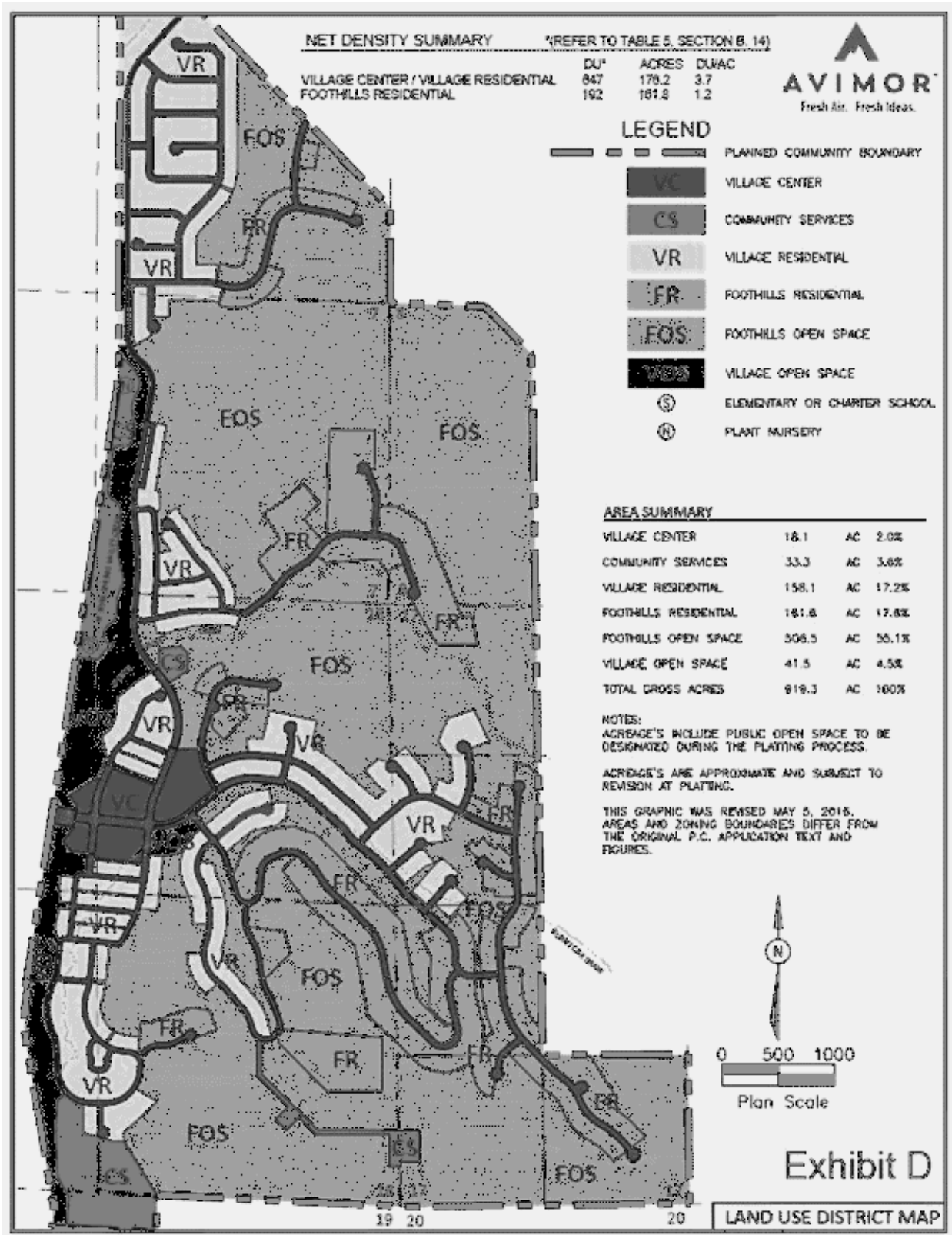
Notes:

1. The height of any structure shall be measured at:
 - The top of parapet for flat roof structures.
 - The midpoint average between the eaves and roof peak for pitched roof structures.

- From finished grade at any point under the structure for grade adapted, or stepped foundations, or engineered building pad.
 - Height exception for: cell towers, chimneys, church spires or belfries, radio tower, water tanks, elevator bulkheads, windmills.
2. The term “coverage” is defined as the footprint of a structure at the foundation wall, including covered areas: porches, entries and patios. Driveways and walks are excluded.
 3. Frontage requirements may be met by frontage on an alley.
 4. Encroachments:
 - Eaves, fireplaces, or other architectural features may project up to 2 feet into a side yard setback.
 - Open porches may project up to 5 feet into a front yard setback.
 - Open structures (porches, patios, balconies, and similar architectural features) may project up to 10 feet into a rear yard setback.
 5. Mixed use: The integration of different uses, including, without limitation, work space such as office and retail, dwellings, shopping, schools, restaurants, entertainment, parks, and civic buildings, all within close proximity and often within the same buildings.
 6. Slope is calculated as the average grade across a parcel of land.
 7. Frontage for flag lots shall be 20 feet and shall apply in all land use districts notwithstanding the specified frontage.
 8. Front setbacks shall be measured from back of sidewalk or property line, whichever is closer. The 20-foot garage setback is measured from face of the garage door to back of sidewalk. The setback for a side entry garage may be reduced to the same as the living area setback, except when access is from a side street.
 9. The setback for an accessory dwelling unit over a garage shall be the same as for the garage itself.
 10. Zero lot line development in the village residential land use district shall only be permitted on lots platted for such purpose which plat designates the permissible building envelope for each zero lot line lot.
 11. Open space: Land or water left in an undisturbed natural condition and unoccupied by building lots, structures, streets, or parking lots, except as otherwise specified in 8-3-9 of this Title.
 12. The amount of land dedicated to parking lots may be reduced by approval of a parking budget using shared parking, differential time use, 1 stop multiple use, and on street parking. The Director shall have the authority to approve such a parking budget with different parking requirements than are set forth in the ordinances, after determining that adequate parking is provided for the proposed uses. The uses upon which the parking budget is approved shall not be changed without the Director's approval. Diagonal on street parking may be approved by ACHD consistent with pedestrian safety.
 13. Village center land use district may include the following residential uses: duplexes, single-family attached, live/work units, lofts, multi-family, and townhouses.
 14. The parking requirements set forth in Section 8-3-10F, table 8-3-10B of this Title for public recreation facility or open space as set forth therein, are hereby modified so that no parking shall be required for any use except for those open space uses specified in subsection 8-3-9C.3 of this Title.

C. Land Use District Map. The land use districts are established by and depicted on the Land Use District Map as set forth in Figure 8-13A-1 of this Section. Land use district boundaries are general and shall be refined during the detailed site planning process. The exact location of the land use district boundaries shall be established during subdivision platting and shall be described by metes and bounds and identified on the preliminary and final subdivision plats.

Figure 8-13A-1 Land Use District Map



D. Land Use Regulations. Land use eligibility for each land use district is set forth in table 8-13A-2 Avimor Planned Community Land Use Table of this Section.

1. The land use table designates uses as: principal permitted uses (P), conditional uses (C), or prohibited uses (-).
2. Principal permitted uses shall be allowed anywhere within a land use district upon the platting of the property and designation of the land use district for the property where the use is proposed; the issuance of a zoning certificate; and the issuance of a building permit.
3. Any conditional use not approved as part of the Avimor Specific Plan shall be allowed only upon the issuance of a conditional use permit.
4. When a proposed use is not identified by this Article as a principal permitted use, a conditional use or an accessory use, but such use is not specifically designated as a prohibited use, such shall be evaluated and determined by the Director pursuant to the Ada County Zoning Ordinance.
5. Agricultural uses, including the grazing of livestock within the Foothills Open Space District, shall not materially interfere with the district's open space function or any other use permitted therein under this Article, as evaluated and determined by the Director in Section 8-13A-3 of this Article.

*TABLE 8-13A-2
AVIMOR PLANNED COMMUNITY LAND USE TABLE*

Use Category	Land Use Districts						
	Village Center	Village Residential	Foothills Residential		Community Service	Foothills OS	Village OS
Residential:							
	Accessory dwelling unit	P	P	P	-	-	-
	Bed and breakfast establishment	P	C	C	-	-	-
	Duplex/dwelling, single-family attached	P	P	P	-	-	-
	Dwelling, live/work	P	P	C	-	-	-
	Dwelling, loft	P	-	-	-	-	-

	Dwelling, multi-family	P	P	-	-	-	-
	Dwelling, single-family detached	-	P	P	-	-	-
	Dwelling, townhouse	P	P	-	-	-	-
	Group daycare facility	P	P	P	-	-	-
	Home occupations	P	P	P	-	-	-
	Model home complex/sales center	-	P	P	-	-	-
Community:							
	Adult respite care center	P	C	-	-	-	-
	Auditoriums, community theaters, museum, art gallery, library, post office/studio	P	-	-	-	-	-
	Campground, recreational vehicle park	P	-	-	P	-	-
	Church or place of religious worship	P	P	-	-	-	-
	Community garden	P	P	-	P	-	P
	Daycare center	P	C	-	-	-	-
	Greenhouse; nursery, retail; nursery, wholesale	P	C	-	P	-	-
	Nursing facility, skilled	P	-	-	-	-	-
	Public safety; fire, police, EMS	P	C	-	P	-	-

	Recreational area, play field and facilities, including school fields	P	P	P	P	P	P
	Recreational buildings, public or private, indoor	P	P	P	C	-	-
	Residential care facility	P	C	-	-	-	-
	School, public or private: kindergarten, elementary	P	C	C	P	-	-
	School, public or private: middle, junior high, and senior high	C	C	-	C	-	-
Commercial/industrial:							
	Animal clinic, animal hospital or veterinary office	P	-	-	-	-	-
	Automotive service, gas station, car wash,	P	-	-	-	-	-
	Convenience store with gas pumps						
	Bank/financial institution, including drive-up window service	P	-	-	-	-	-
	Bar/brewpub	P	-	-	-	-	-
	Dwelling, live/work	P	P	C	-	-	-
	Equestrian facility	-	-	C	C	C	C
	Food vehicle/trailer concessions	P	-	-	-	-	P
	Grocery store/pharmacy	P	-	-	-	-	-

	Health club, spa	P	-	-	-	-	-
	Hotel or motel	P	-	-	-	-	-
	Laundromat/dry cleaning	P	-	-	-	-	-
	Liquor store/wine shop	P	-	-	-	-	-
	Movie theaters/ entertainment complex	P	-	-	-	-	-
	Office: professional, business, medical, dental	P	-	-	-	-	-
	Outdoor markets/community events/sales events	P	P	P	P	P	P
	Recycling center	C	-	-	-	-	-
	Restaurant/bakery/coffee shop, including drive- through	P	-	-	-	-	-
	Retail store	P	-	-	-	-	-
	Social hall, club or lodge	P	-	-	-	-	-
	Storage facility, self-service	P	-	-	-	-	-
	Temporary construction office/temporary construction yard	P	P	P	P	P	P
	Transit facility/park and ride lot	P	-	-	P	-	-

	Utilities: substation, gas regulator station, telecommunication tower or facility	C	C	C	P	C	-
	Utilities: well field, water and wastewater treatment facilities	C	C	C	P	C	-

8-13A-3: Administration. This Section defines the review and approval process for the development of the Avimor Planned Community in accordance with the provisions of the Avimor Specific Plan and the Ada County Zoning Ordinance.

It shall be the duty of the Director to administer the provisions of this Article for the development of the Avimor Planned Community. The Director shall interpret the provisions of this Article and make decisions on land use issues not specifically addressed by the Avimor Specific Plan or this Article.

The Director, Commission, and/or Board, as the case may be, shall base their approvals or disapprovals upon compliance with the provisions of this Article and the goals and policies and purpose and intent of the Avimor Specific Plan.

A. Avimor Specific Plan Compliance. All development within the Avimor Planned Community shall conform to the Avimor Specific Plan as it may be amended from time to time.

1. Each phase of the development that is compliant with the Avimor Specific Plan shall be subject only to the applicable preliminary and final plat subdivision regulations of this Article.
2. Modifications of the Avimor Specific Plan may be submitted, reviewed and approved concurrently with a subdivision preliminary plat.

B. Overlay Districts. Development proposals within the Avimor Planned Community shall be subject to and shall comply with the requirements of applicable overlay districts.

C. Land Divisions. The subdivision of land, or the adjustment of parcels within the Avimor Planned Community, shall conform to the Avimor Specific Plan and the applicable procedures and specifications of the Ada County Zoning Ordinance, except that the provisions of subsection 8-6-25C.2 of this Title shall not apply to subdivision platting in Avimor; provided, however, that no neighborhood meetings shall be required for a subdivision application unless the preliminary plat proposes a modification of the Avimor Specific Plan as may be amended from time to time.

D. Development Permits. Development applications shall be reviewed, and development permits shall be issued pursuant to the applicable procedures and specifications of this Code subject to the modifications set forth herein. Development permits shall not be issued prior to the approval of a subdivision application for a phase or portion of a phase. No development permits shall be issued for any use until such time as the applicant has provided to the County a letter of approval issued by the Avimor Design Review

Committee evidencing the determination of the Avimor Design Review Committee that the use and application comply with the design standards for the Avimor Planned Community. The development permits shall be reviewed and issued as follows:

- 1. Master Site Plan.** Master site plan approval shall be required pursuant to the procedures of 8-6-19 of this Title regarding master site plan approval for all uses except as modified herein.
 - a.** Notwithstanding the provisions of subsections 8-6-19B.2 and B.3 of this Title, all land uses within the Avimor Planned Community shall obtain master site plan approval except for those designated as residential uses on the land use table, community events, and food vehicle/trailer concessions which have a separate approval process outlined in subsections D5 and D6, respectively of this Section.
 - b.** The Director shall apply those standards set forth in subsection 8-6-19G of this Title, to the extent that those standards do not conflict with the provisions of the land use design and development standards matrix. For purposes of master site plan approval, compliance with this Article and the Avimor Specific Plan shall constitute compliance with subsections 8-6-19G, of this Title and an applicant for master site plan approval shall not be required to comply with the standards set forth in those subsections.
 - c.** In the event of any conflict between the standards set forth in subsection 8-6-19G of this Title and the land use design and development standards matrix, the land use design and development standards matrix shall control.
 - d.** In order to approve an application for master site plan approval, the Director shall make the following findings:
 - 1.** The master site plan complies with this Article, the Ada County Zoning Ordinance and is in accordance with the Avimor Specific Plan;
 - 2.** The proposed landscaping meets the requirements of Section 8-3-7 of this Title;
 - 3.** The proposed parking and loading spaces meet the requirements of Section 8-3-10 of this Title;
 - 4.** The proposed lighting plan meets the requirements of Section 8-3-8 of this Title; and
 - 5.** The proposed master site plan complies with the land use design and development standards matrix.
- 2. Zoning Certificate.** A zoning certificate shall be required for all uses and shall be issued in conformance with the requirements of the Ada County Zoning Ordinance.
- 3. Building Permit.** Building permits shall be issued in accordance with Title 7, Chapter 2 of this Code, or the same may be amended or retitled from time to time, for all uses as applicable. When a single-family dwelling has a garage or private living quarters that is semi-detached only, one (1) building permit is required for both the single-family dwelling and the semi-detached garage or private living quarters.
- 4. Grading Permits.** Grading permits shall be issued in accordance with Title 7, Chapter 2 of this Code, or as the same may be amended or retitled from time to time and/or the

Ada County Zoning Ordinance as applicable.

- 5. Community Events.** For events that: a) are open to the public and/or persons who are not residents of Avimor and b) have an expected attendance of three hundred (300) people or more, Avimor must adhere to the following procedure:
 - a. Notify Avimor residents of the upcoming event by posting a notice in the community center and sending an electronic notice via e-mail or website portal indicating the date, time, and nature of the event. The notice will be given at least ten (10) days before the event, but not more than twenty-five (25) days before the event.
 - b. At least ten (10) days prior to the event, Avimor will submit to Ada County Development Services letters from the Eagle Fire Protection District, Ada County Sheriff's Office, Central District Health Department, and the Ada County Highway District setting forth their respective approval of the event.
 - c. Apply for and obtain a zoning certificate after submittal of the approval letters specified in subsection D5b of this Section.
 - d. For all smaller events, even those open to the public or nonresidents, no approval is required.
- 6. Food Vehicle/Trailer Concessions.** Except as outlined in subsection D6d of this Section, prior to any operation, a zoning certificate shall be obtained from Ada County Development Services. When applying for the zoning certificate, the following shall be submitted to the Ada County Development Services' Office:
 - a. Complete Ada County Development Services application form;
 - b. Copy of Central District Health Department current mobile food establishment license; and
 - c. Scaled site plan showing all property lines, location of food vehicle/trailer concessions, suitable off-street parking, and ADA accessibility.
 - d. For all food vehicle/trailer concessions that are part of an Avimor community event, a zoning certificate from Ada County Development Services is not required; however, approval from the Central District Health Department is still required.

Article B: Cartwright Ranch Planned Community

SECTION:

8-13B-1:	SHORT TITLE
8-13B-2:	PURPOSE AND INTENT
8-13B-3:	APPLICABILITY
8-13B-4:	DEFINITIONS
8-13B-5:	LAND USE DISTRICTS
8-13B-6:	ADMINISTRATIVE REGULATIONS
8-13B-7:	SETBACKS; STRUCTURAL AND SPATIAL REQUIREMENTS
8-13B-8:	LANDSCAPING REQUIREMENTS
8-13B-9:	OPEN SPACE REQUIREMENTS

8-13B-10:	STREET FRONTAGE AND ACCESS REQUIREMENTS
8-13B-11:	SIGN REQUIREMENTS
8-13B-12:	ON AND OFF STREET PARKING REQUIREMENTS
8-13B-13:	STANDARDS FOR ENERGY AND WATER CONSERVATION
8-13B-14:	GRADING REQUIREMENT
8-13B-15:	DESIGN STANDARDS FOR STRUCTURES AND SITE IMPROVEMENTS
8-13B-16:	AMENDMENTS

8-13B-1: Short Title

This Article shall be known, cited, and referred to as the CARTWRIGHT RANCH PLANNED COMMUNITY ZONING ORDINANCE.

8-13B-2: Purpose and Intent

Generally, this Article is enacted with the purpose and intent of promoting, on behalf of the Cartwright Ranch planned community, public health, safety, comfort and general welfare; to conserve and control the population density and to facilitate adequate and economical provisions for public improvements, all in accordance with the Cartwright Ranch Comprehensive Plan for the desirable future physical development of Cartwright Ranch, all as authorized by the Ada County Comprehensive Plan, the Ada County Zoning Ordinance, the state legislature, and the constitution of the state.

Specifically, the purpose and intent of this Article is to set forth the development standards and administrative procedures for implementing the land use policies of the Cartwright Ranch Comprehensive Plan. This Article shall be consistent with the adopted Cartwright Ranch Comprehensive Plan. Furthermore, it is the purpose of this Article to:

- A. Provide for the design of quality, mixed use development within the Cartwright Ranch planned community;
- B. Provide distinctive, efficient and effective regulations to guide development in Cartwright Ranch;
- C. Encourage flexibility and creativity in Cartwright Ranch's design and development in order to respond to market demand and site-specific conditions while enhancing the economic viability and quality of Cartwright Ranch;
- D. Provide for the integration and balance of a variety of uses in Cartwright Ranch;
- E. Provide flexibility for reconfiguration of residential and nonresidential uses and/or population density as long as these reconfigurations do not conflict with the overall intent of the Cartwright Ranch Comprehensive Plan and this Article; and
- F. Identify and define standards for uses that may occur in each of the land use categories.

8-13B-3: Applicability

- A. **Development And Administration.** This Article governs the development and administration of Cartwright Ranch, as shown on the Cartwright Ranch land use map found in the Cartwright Ranch Comprehensive Plan. Where this Article specifically references other Sections of this code, such other Sections of this code shall apply and govern. This

Article shall not apply to any land not incorporated within the Cartwright Ranch boundary. The approved Cartwright Ranch Comprehensive Plan, as it may be amended, is now a part of the Ada County Comprehensive Plan.

- B. Flexibility.** The development standards and design guidelines contained in the Cartwright Ranch development plan and Cartwright Ranch Comprehensive Plan are intended to depict the general nature and relative intensity of residential and nonresidential development in Cartwright Ranch, while allowing sufficient flexibility at the time of platting so that the overall goals and policies and purpose and intent of Cartwright Ranch can be achieved. The configuration and densities of development parcels and phases may be altered from those shown on Cartwright Ranch Comprehensive Plan to accommodate market, financing, site, engineering, development and other conditions and revisions to the project's implementation strategy providing that the reconfiguration is in accordance with the Cartwright Ranch Comprehensive Plan and this Article.
- C. Conflict Of Laws.** If conflict arises between this Article and this code, the provisions of this code shall apply. Notwithstanding, where this Article states definitions, standards, or other provisions specific to Cartwright Ranch, those provisions in this Article shall apply.

8-13B-4: Definitions

The following definitions are specific to Cartwright Ranch and shall be used in the interpretation and construction of this Cartwright Ranch Zoning Ordinance in lieu of definitions in other Sections of this code. Any term used in this Article not defined herein, shall have the meaning set forth in 8-10-2 of this Title. Any term not defined herein or in 8-10-2, shall have its plain and ordinary meaning.

AGRICULTURAL OPERATION: The growing of cultivated crops, fruit trees, berry bushes, grazing, pasturage, raising of domestic livestock, horticulture, floriculture, viticulture, and the necessary accessory uses for packing, treating or storing of produce. The operation of any accessory uses to agricultural purposes shall not include a commercial packing facility, feedlot or stockyard, the commercial feeding of garbage or offal to swine or other animals, a slaughterhouse, the operation of a fertilizer works, nor plants for the reduction of animal matter.

AGRICULTURAL OUTBUILDING: Any building or structure used for storage or shelter of farming materials, equipment, supplies, products or animals.

CARTWRIGHT RANCH COMPREHENSIVE PLAN: The Cartwright Ranch Comprehensive Plan consists of the vision statement for Cartwright Ranch, a list of coordinated goals, objectives and policies for the development, a conceptual land use map, and illustrations depicting proposed street, trail and path cross sections. The Cartwright Ranch Comprehensive Plan is a part of the Ada County Comprehensive Plan.

CARTWRIGHT RANCH DEVELOPMENT PLAN: The Cartwright Ranch development plan generally includes: a) a natural features map and analysis; b) a narrative describing the proposed land uses and design of the project; c) a map showing existing land uses within one (1) mile of the project site; d) a narrative assessment of development and population trends in Ada County; e) a transportation and mobility plan; f) a community services and utilities plan; g) an open space, parks and trails plan; h) a wildlife mitigation plan; i) narrative and examples of proposed central design concepts; j) a phasing plan; k) a letter from the Boise School District indicating school capacities and facility needs; and l) a stormwater management plan and narrative. The Cartwright Ranch

development plan is attached as an exhibit to the Cartwright Ranch Comprehensive Plan.

CARTWRIGHT RANCH LAND USE MAP: The conceptual land use map included as figure B3 in the Cartwright Ranch Comprehensive Plan.

CARTWRIGHT RANCH OR CARTWRIGHT RANCH PLANNED COMMUNITY: The property depicted on the Cartwright Ranch zoning map, as amended from time to time.

CARTWRIGHT RANCH PROPERTY OWNERS' ASSOCIATION: The Idaho nonprofit or profit corporation whose members or stockholders consist exclusively of property owners within Cartwright Ranch and whose purpose is to provide for the administration and governance of the affairs of Cartwright Ranch.

CLINIC: A building, other than a hospital, used by one or more licensed physicians, dentists or licensed healthcare professionals for the purpose of receiving and treating patients.

COMMERCIAL USE: The purchase, sale or other transaction involving the handling or disposition of any Article, substance or commodity for livelihood or profit, or the ownership or management of office buildings, offices, civic, recreational or amusement enterprises or the maintenance and use of offices by professions and trades rendering services including all advertising, events and other activities associated with such commercial use.

CONVALESCENT HOME: A home, place or institution licensed by the Idaho state department of health and welfare as a nursing home or assisted care facility that operates or maintains facilities providing convalescence or chronic care or both for a period in excess of twenty-four (24) consecutive hours for three (3) or more patients not related by blood or marriage to the operator, said patients who by reason of illness or infirmity are unable to properly care for themselves.

DESIGN GUIDELINES: The design guidelines are established pursuant to the recorded conditions, covenants and restrictions for Cartwright Ranch, as they are amended from time to time. The design guidelines address the following, including, but not limited to, building plans, site development and grading plans, landscaping plans, elevations, and parking recommendations prior to submission to the County. The design review committee enforces the design guidelines.

DESIGN REVIEW COMMITTEE: The design review committee for Cartwright Ranch shall be formed and shall operate according to the requirements established in the recorded covenants, conditions and restrictions for Cartwright Ranch as they may be amended from time to time. The design review committee shall be responsible for reviewing, including, but not limited to, building plans, site development and grading plans, landscaping plans, elevations, and parking recommendations prior to submission of a building permit application to Ada County.

FAMILY DAYCARE HOME: A home, place or facility providing daycare for six (6) or fewer children.

HEALTH CLUB FACILITY: Any facility providing exercise services to its customers.

LOT DEPTH: The mean horizontal distance between the front and the rear lot lines.

LOT LINE, FRONT: The line separating the lot from the principal street on which it fronts.

LOT LINE, REAR: The lot line opposite and most distant from the front lot line. Where the lot is irregular and the lot lines converge, the rear lot line shall be deemed to be a line at a point where the side lot lines are not less than ten feet (10') apart.

LOT LINE, SIDE: Any lot line other than a front or rear lot line. A side lot line separating a lot from a street is also called a side street or flanking street lot line. A side lot line separating a lot from another lot or lots is also called an interior side lot line.

LOT LINES: The property lines bounding the lot.

LOT WIDTH: The mean width of the lot measured at right angles to its depth, provided however, that the minimum lot width required for each lot type shall be measured at a distance from the front line equal to the required least depth of the front yard, except in the case of a flag lot, where the flag portion of the lot is not included in the width calculation and width is measured at a distance from the end of the flag equal to the required depth of the front yard.

MODEL HOME: A single-family dwelling or a unit within a duplex or multi-family dwelling which is shown to prospective buyers of lots or dwellings for the purpose of promoting the retail sale of lots or dwellings within Cartwright Ranch.

MULTI-FAMILY DWELLING: A building or portion thereof designed for or used by three (3) or more families or housekeeping units.

PARK AND RIDE FACILITY: Facility designed to allow Cartwright Ranch residents to park their vehicles in order to car pool or ride in a van or bus to various locations throughout the Treasure Valley, usually to work.

PARKING AREA OR LOT: An open area, other than a street or public way, to be used for the storage of operable passenger automobiles and commercial vehicles, of occupants or users of the use for which the parking area is developed and is necessary and accessory.

PARKING STRUCTURE: A structure designed and used for vehicular parking and located near the building it serves.

PUBLIC STRUCTURE: Any structure designed for the benefit and use of the public.

RETAIL STORE: A store that sells commodities in small quantities to consumers, such as a general store, hardware store, bookstore, etc.

ROOMER OR BOARDER: Person paying remuneration for eating and sleeping within a residence.

SERVICE STATION: A filling station or business enterprise using the premises primarily to sell and supply motor fuel and lubricating oils and grease to on premises trade, including the sale of tires, batteries, automotive accessories, together with other related services, including minor motor vehicle repair. May also include convenience retail use, not to include a drive-in establishment.

SETBACK: The space on a lot required to be left open, either by the front, side and rear yard requirements of this Article, or by the delineation on a recorded plat map, or recorded covenants.

STORAGE STRUCTURE: Any facility or structure used for the storage or parking (long term or short term) of, without limitation, vehicles, agricultural and recreational vehicles, boats and other watercraft, snowmobiles, equipment, and machinery.

TEMPORARY SALES OFFICE: That particular sales office(s), wherever located, used primarily for the wholesale or retail sales of property or lots located within Cartwright Ranch.

TOWN CENTER: That portion of Cartwright Ranch that is intended to include the commercial, recreational and community service uses that will form the social hub of the community.

UTILITY: Any person, entity or municipal department, duly authorized to furnish to the public or Cartwright Ranch residents under public regulation or otherwise, sewer, electricity, gas, steam, telephone, transportation, water, cable television or other services.

8-13B-5: Land Use Districts

The purpose of this Section is to implement the Cartwright Ranch Comprehensive Plan. The Cartwright Ranch Comprehensive Plan depicts the general nature and relative intensity of residential and nonresidential development and uses are subject to the appropriate flexibility and other standards discussed elsewhere in this Article.

A. Land Use Districts

1. **PC District.** Cartwright Ranch shall consist of a single base land use district, which shall be called the Cartwright Ranch PC district. The purpose of this district is to provide regulations and standards for development of residential and commercial uses in a variety of typologies including, but not limited to, single-family detached dwellings, zero lot line developments of single-family detached, single-family attached dwellings, duplexes and multiple-family dwellings including, but not limited to, townhouses and condominiums, and commercial and office uses, where a central wastewater collection and treatment system and community water system are provided.
2. **Commercial Overlay District.** Cartwright Ranch includes a commercial overlay district, as depicted on the Cartwright Ranch land use map, which shall be called the Cartwright Ranch commercial overlay district. Within the Cartwright Ranch commercial overlay district, the total lots must accommodate up to twenty thousand (20,000) square feet of space for commercial uses until there are a total of twenty thousand (20,000) square feet of commercial uses within Cartwright Ranch, unless permitted otherwise by the Board of County Commissioners. Notwithstanding the above restriction, residential units are permitted above the ground floor of commercial uses within the Cartwright Ranch commercial overlay district.

B. Lot Types

1. **View Lots.** View lots generally occur on the site's moderately sloped hillsides located to the south and west of the Town Center. View lots vary substantially in size and configuration to respond to existing topography and to minimize visual impacts. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
2. **Traditional Lots.** Traditional lots provide two (2) functions. Some are buffers between different uses and are larger lots in an open rural setting. These lots are used to transition between adjoining properties and development or open space and development. They also transition between different lot types within the development. In sum, traditional lots are intended to provide a transition from farm to village character. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
3. **Village Lots.** Village lots are reminiscent of the "in town" areas traditionally found in Idaho's agricultural towns and villages. These lots and the homes built on them are intended to form a close-knit residential village with strong pedestrian and community orientation that is found in some of the great older neighborhoods of Boise (such as the

north end). Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.

- 4. Townhome Lots.** Townhome lots are the community's smallest lots and are intended to provide alternative, attached, or smaller detached homes that may appeal to seniors, empty nesters, first time buyers, and/or single parents who prefer a small home with limited yard area. Townhome lots also include commercial uses. Townhome lots are intended to be located in or within convenient walking distance of the Town Center. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
 - 5. Developed Open Space Lots.** Developed open space lots within the project are intended to provide both active and passive recreational opportunities. Developed open space lots may include neighborhood and community parks, community gardens, the Dry Creek greenbelt path, the project wide trail system, ponds, wetlands, creeks, and riparian areas. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
 - 6. Natural Open Space Lots.** Natural open space lots within the project are intended to provide both active and passive recreational opportunities as well as wildlife or natural open areas. Natural open space lots may include the project wide trail system, ponds, wetlands, creeks, riparian areas and designated wildlife areas. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
 - 7. Community Center Lots.** Community Center lots within Cartwright Ranch will be used for the Community Center, community pool, post office, and other civic and community service uses. Dimensional standards and allowed uses are set forth in the tables in figures 8-13B(a) and 8-13B(b) of this Section.
- C. Application of Zoning Restrictions to Lot Types.** The lot type shall be designated for each lot on each preliminary plat and final plat in Cartwright Ranch and the zoning restrictions imposed by this Article shall attach to each lot at the time of recording of the final plat. The restrictions applying to any lot shall change without further action in the event the lot is replatted to a different lot type. In addition to any other restriction imposed by this Article, final plats in Cartwright Ranch may designate building envelopes within lots. No structure may be constructed outside of a designated building envelope unless the lot is replatted in accordance with this code.
- D. Use of Unplatted Property.** Unplatted property within Cartwright Ranch is intended to be used for its historic agricultural and other uses, as well as certain other uses in furtherance of the agricultural operations and goals and objectives of the Cartwright Ranch Comprehensive Plan. It is the ultimate intent that all property within Cartwright Ranch be platted and divided into different lot types. Notwithstanding 8-2-22 of this Title, any improvements associated with the uses specified in figure 8-13B(b) of this Section may be developed and constructed on any unplatted property within Cartwright Ranch. All uses of the unplatted property shall be consistent with this Article and the Cartwright Ranch Comprehensive Plan.
- E. Purpose of Cartwright Ranch Land Use Map.** The Cartwright Ranch land use map

contained within the Cartwright Ranch Comprehensive Plan depicts the general nature and relative intensity of residential and nonresidential development and uses by neighborhood and lot type, subject to the appropriate flexibility and other standards discussed in subsection 8-13B-3B of this Article and elsewhere in this Article.

F. Allowed Uses Within Land Use Districts. Within the Cartwright Ranch PC district described above, uses shall be allowed on lot types as set forth in the table in figure 8-13B(b) of this Section. Uses that are not specifically listed but are determined by the Director to be similar to listed permitted or conditional uses are also, respectively, permitted or conditionally permitted. All other uses are prohibited.

CARTWRIGHT RANCH
FIGURE 8-13B(a) LAND USE SUMMARY TABLE

Lot Characteristics	View Lots	Traditional Lots	Village Lots	Townhome Lots ⁶	Community Center Lots	Developed Open Space Lots	Natural Open Space Lots
Dimensions:							
Lot size (minimum)		8,000 sq. ft.	6,000 sq. ft.	3,200 sq. ft.	1,200 sq. ft.	1,600 sq. ft.	See noted
Lot depth (minimum)		100'	100'	80'	60'	40'	See noted
Lot width (minimum)		80'	60'	40'	20'	40'	See noted
Lot frontage (flag)		30'	30'	30'	0'	0'	See noted
Setbacks:							
Front yard to living space (minimum)		20'	20'	10'	10'	20'	See noted
Front yard alley loaded garage (minimum)		n/a	10'	10'	10'		
Front yard street loaded garage (minimum)		20'	20'	20'	20'		
Side yard interior lot ⁵ (minimum)		3'	3'	3'	0'	20'	See noted
Alley side yard ⁵ (minimum)		3'	3'	3'	0'	20'	See noted
Street side yard lot ⁴ (minimum)		13'	13'	13'	13'	30'	n/a
Minimum separation between buildings		15'	10'	10'	10'	n/a	n/a
Rear yard (main structure) (minimum)		20'	20'	10'	10'	20'	See noted
Rear yard (garage, storage or garden structures) (minimum)		10'	10'	10'	10'	n/a	See noted
Others:							
Maximum building height		35'	35'	40'	45'	45'	45'
Building coverage (maximum)		50%	60%	70%	85%	100%	n/a

Impervious surface coverage (maximum)	70%	80%	90%	100%	100%	n/a	n/a
Parking	See notes a and b	See notes a and b	See notes a and b	See notes a and b	See note a	See noted	See noted

Notes:

1. With resident family and not to exceed 2 persons.
2. Excluding drive-through.
3. Provided actual dry cleaning is done off site.
4. Only from corner property line.
5. Minimum setback is permitted only when minimum separation to adjoining buildings is maintained.
6. Single buildings permitted on multiple lots.
7. Standards in this Article shall apply in lieu of County standards for multi-family development.
 - a. Per Ada County standards.
 - b. Includes garaged spaces.
 - c. If use is determined not to be accessory, it is conditional.
 - d. None.

• - Principal permitted use.

A - Accessory use.

C - Conditional permitted use.

Blank - Blank space denotes use is not permitted.

In the event of a conflict between the land use summary table and the text of this Article, the text shall prevail.

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FIGURE 8-13B(b) LAND USE SUMMARY TABLE

Cartwright Ranch PC District								
Allowed Uses	View Lots	Traditional Lots	Village Lots	Townhome Lots	Community Center Lots	Developed Open Space Lots	Natural Open Space Lots	
Residential:								
Accessory structure, attached or detached	A	A	A	A				

	Condominium	•	•	•	•			
	Convalescent home				•			
	Duplex dwelling				•			
	Model home	•	•	•	•			
	Multi- family dwelling ⁶	•	•	•	•			
	Rental apartment	•	•	•	•			
	Single-family dwelling	•	•	•	•			
	Storage structure	A	A	A	A	A	A	C
	Temporary sales office	•	•	•	•	•		
Business:								
	Bank branch office ²				•	•		
	Bar				•			
	Bed and breakfast establishment	C	C	C	•			
	Clinic				•			
	Dry cleaning and laundry ^{2,3}				•			
	Home occupation	A	A	A	A			

	Office: business and professional		•	•	•	•		
	Park and ride facility				•	•		
	Parking area or lot				•	•	•	C
	Parking structure				•			
	Personal service retail				•			
	Restaurant ⁴				•	•		
	Retail store ²				•			
	Roomer or boarder ¹	A	A	A	A			
	Service station				C			
	Spa or health retreat			•	•	•		
	University related research/ cultural facility				•	•		
	All other retail and commercial uses compatible with stated uses				C			
Community support uses ⁶ :								
	Cell tower	C	C	C	C	C	C	C

	Community center			•	•	•		
	Family daycare home	•	•	•	•			
	Fire protection, law enforcement and emergency medical facility			•	•	•		
	Group daycare home				•			
	Health club facility	C	C	•	•	•		
	Library			•	•	•		
	Place of public worship			•	•	•		
	Public structure	C	C	C	C	•	A ^c	A ^c
	School, public or private	•	•	•	•	•		
	Social hall, club or lodge			•	•	•		
	Utility structure, except cell tower	C	C	C	C	•	•	•
Agriculture:								
	Agricultural operation	C	C	C	C	C	•	C
	Agricultural outbuilding				•		•	•

	Nursery, retail or greenhouse				C			
Recreation:								
	Golf practice facility					•	•	
	Park	•	•	•	•	•	•	C
	Recreation facility					•	•	
	Swimming pool	A	A	A	•	•	•	
	Tennis court	A	A	A	•	•	•	
	Trail					•	•	•

Notes:

1. With resident family and not to exceed 2 persons.
2. Excluding drive-through.
3. Provided actual dry cleaning is done off site.
4. Only from corner property line.
5. Minimum setback is permitted only when minimum separation to adjoining buildings is maintained.
6. Single buildings permitted on multiple lots.
7. Standards in this Article shall apply in lieu of County standards for multi-family development.
 - a. Per Ada County standards.
 - b. Includes garaged spaces.
 - c. If use is determined not to be accessory, it is conditional.
 - d. None.

• - Principal permitted use.

A - Accessory use.

C - Conditional permitted use.

Blank - Blank space denotes use is not permitted.

In the event of a conflict between the land use summary table and the text of this Article, the text shall prevail.

8-13B-6: Administrative Regulations

- A. Preliminary Plat.** Prior to approval of any preliminary plat for Cartwright Ranch, the Board must determine that the plat complies with this Cartwright Ranch Zoning Ordinance and is in accordance with the Cartwright Ranch Comprehensive Plan.
- B. Building Permits and Grading Permits.** Building permits and grading permits within Cartwright Ranch shall be issued in accordance with the Ada County Building Code ordinance; provided, however, that no building or grading permit shall be issued to an applicant until such time as the applicant has provided to the county: 1) a decision issued by Cartwright Ranch design review committee in conformance with the Cartwright Ranch design guidelines approving or denying the proposed building, site, or landscape improvements for which the building permit or grading permit is being sought; 2) a permit from the applicable sewer authority; and 3) proof of payment of applicable impact fees to the Ada County highway district. If the Cartwright Ranch design review committee denies a proposed improvement (which decision must include a written explanation for the denial) or fails to respond within a reasonable period of time, then Ada County may issue a permit if the Director determines, in the exercise of his or her discretion, that the committee's decision is illegal or improper.
- C. Zoning Certificate.** A zoning certificate shall be required for all uses within Cartwright Ranch and shall be issued in conformance with the requirements of the Ada County Zoning Ordinance.
- D. Conditional Uses.** Conditional uses within Cartwright Ranch may only be permitted with a conditional use permit issued in accordance with the conditional use standards in the Ada County Zoning Ordinance.
- E. Accessory Uses.** Accessory uses within Cartwright Ranch shall be reviewed in accordance with the procedures of the Ada County Zoning Ordinance.
- F. Public Community Event Permit Approval Process.** Public community events within Cartwright Ranch shall require approval by the Cartwright Ranch property owners' association and shall otherwise be exempt from any Ada County approval requirements.

8-13B-7: Setbacks; Structural and Spatial Requirements

See Section 8-13B-5, figure 8-13B(a) of this Article.

8-13B-8: Landscaping Requirements

- A. Applicability.** Except as set forth in this Article, Cartwright Ranch shall be exempt from the landscaping requirements of this Title.
- B. Standards**
 - 1.** All landscaping on individual lots within Cartwright Ranch shall conform to the following standards:
 - a.** Landscape improvements shall incorporate, rehabilitate, and enhance the existing site, incorporate indigenous species, and minimize areas of intensive irrigation.
 - b.** Landscape plantings should consist of at least two (2) different varieties and types in order to create a more unified rather than fragmented landscape.

- c. Landscaping will be used to establish a clear and logical orientation to the neighborhoods and open space areas within Cartwright Ranch, including the following areas:
 - 1. Entry areas from Cartwright Road to the community will be characterized by open, country roads lined with native grasses punctuated by select plantings of deciduous tree groves that will reinforce the entries as community gateways.
 - 2. Riparian areas along Dry Creek will be characterized by naturalistic placement of trees and shrubs that will enhance and replicate the existing riparian environment while providing wildlife habitat.
 - 3. Natural open space lots will remain in their natural state or selectively enhanced as appropriate to the land and wildlife management parameters of the project.
 - 4. Town Center lots will include traditional street trees in planting strips and medians with front and rear yard domestic gardens in residential and commercial lots.
 - 5. View lots will include irrigated landscape envelopes that contrast with enhanced native shrubs and grasses outside those envelopes.
- 2. All landscaping improvements within the right of way of local, collector and arterial streets within Cartwright Ranch shall conform to the standards in sub-element F5 (roadway design) and sub-element F9 (landscape standards) of the Cartwright Ranch development plan, and shall conform to the following standards:
 - a. Along streets with curb, gutter and sidewalk, trees shall be provided with a minimum spacing of fifty feet (50').
 - b. Along streets without curb, gutter and sidewalk, other plantings shall be provided as appropriate with the topography and site.
- C. Process.** No final plat shall be approved until such time as the applicant has provided a landscape plan to Ada County, for review and approval, of proposed landscaping within road rights of way or common areas. The landscape plan shall contain the following:
 - 1. The location, size, and type of all proposed landscaping materials (including specific references as to the species of plant materials), and verification that minimum landscaping requirements have been satisfied. All plants shall be shown at seventy five percent (75%) mature growth.
 - 2. Existing vegetation to be saved shall be identified on the landscaping plan along with protection measures to be used during grading and construction.

8-13B-9: Open Space Requirements

- A. Purpose.** The purpose of this Article is to encourage well designed open space at Cartwright Ranch.
- B. Applicability.** These regulations shall apply to open space lots within Cartwright Ranch.
- C. General Regulations**
 - 1. **Preliminary Plat.** In approving each preliminary plat within Cartwright Ranch, the

Board shall determine that the plat is in accordance with the open space parks and trails plan, which is part of the Cartwright Ranch development plan attached to the Cartwright Ranch Comprehensive Plan, with consideration of the flexibility provisions of this Article and the plan.

2. **Allowed Open Space Uses.** Allowable uses on open space lots shall include, but not be limited to, the uses set forth in Section 8-13B-5, figure 8-13B(b) of this Article and otherwise described in this Article.

D. Design Standards

1. The design shall be consistent with Cartwright Ranch Comprehensive Plan and other adopted regional or local open space and recreation plans including the Ada County ridge to rivers pathway plan.
2. All open space lots shall be accessible to residents of Cartwright Ranch.
3. The number of private or public roadways that divide open space lots shall be limited to those necessary for proper traffic circulation, and the roadways shall not detract from the efficient use of the open space.
4. Open space lots shall be free of all structures, except those that enhance the use of the open space including, but not limited to, structures related to outdoor recreational use, structures of historic and/or cultural significance, educational buildings, well houses, utilities, infrastructure and facilities, and stormwater retention basins.
5. No more than ten percent (10%) of the total open space in Cartwright Ranch shall be impervious surface.
6. Open space lots shall be connected to open space areas on neighboring properties wherever possible including provisions for pedestrian walkways to create linked walkway or pathway systems.

8-13B-10: Street Frontage and Access Requirements

See Section 8-13B-5, figure 8-13B(a) of this Article.

8-13B-11: Sign Requirements

- A. **Applicability.** Except as set forth in this Article, Cartwright Ranch shall be exempt from the sign requirements of this Title.

B. Standards

1. All signs within Cartwright Ranch shall conform to the following standards:
 - a. Freestanding signs should be in proportion/scale to the surrounding elements.
 - b. Identification signs will be provided at project entrances and appropriately illuminated by indirect and screened or ground mounted lighting.
 - c. Commercial signs shall be small and subdued to respect the residential character of the community; maximum commercial sign size is thirty-two (32) square feet per side.
 - d. The following signs are prohibited:
 1. Signs that constitute a hazard to traffic or pedestrians;

2. Signs located within any stream or drainage channel;
3. Mobile signs or portable signs; balloons, flags, or kite style signs;
4. Inflatable signs;
5. Signs that produce odor, sound, smoke, flame, or other emissions;
6. Signs that imitate or simulate official signs or that use yellow or red blinking or intermittent lights resembling danger or warning signals;
7. Signs using strobe lights or individual light bulbs exceeding seventy-five (75) watts;
8. Signs on public property or right of way or signs attached to utility poles, streetlights, fences, barns, sheds, or similar structures; and
9. Roof signs and billboards.

8-13B-12: On and Off-Street Parking Requirements

All parking shall meet Federal Americans with Disabilities Act (ADA) requirements and shall be in accordance with the parking provisions of this Title, except as set forth in Section 8-13B-5, figure 8-13B(a) of this Article or elsewhere in this Article.

8-13B-13: Standards for Energy and Water Conservation

A. All development within Cartwright Ranch shall conform to the following standards:

1. Indoor Water and Energy Use

- a. Water heaters will be energy star qualified or have equivalent performance specifications.
- b. Cooling equipment will consist of energy star qualified air conditioning unit or heat pump or have equivalent performance specifications.
- c. Heating equipment will consist of Energy Star qualified gas furnace, heat pump or boiler or have equivalent performance specifications.
- d. At least three (3) energy star labeled light fixtures or energy star labeled compact fluorescent light bulbs will be installed.
- e. Windows will be energy star qualified or have equivalent performance specifications.

2. Outdoor Water and Energy Use

- a. Turf areas will be zoned separately from other planted beds, based on watering needs. A timer/controller will activate valves for each watering zone.
- b. View lots will concentrate irrigated landscaping within landscape envelopes.

8-13B-14: Grading Requirements

Grading within Cartwright Ranch shall be in conformance with this Title and Title 7, Chapter 2, "Building Codes," of this code. Grading on slopes greater than fifteen percent (15%) shall comply with the hillside adaptive grading standards found in Cartwright Ranch Comprehensive Plan policies CR 5.3-2, CR 6.1-1, and 12.1-2.

8-13B-15: Design Standards for Structures and Site Improvements

- A. All structures and site improvements within Cartwright Ranch shall be consistent with Cartwright Ranch Comprehensive Plan objectives CR 8.3 and CR 12.2, and the following standards:
1. The visual bulk of hillside residential development should be reduced so structures do not stand out prominently when seen from a distance.
 2. Building form should conform to site topography and not overshadow natural site features.
 3. Step structures with slope and cut into hillsides should be utilized to reduce visual bulk.
 4. Building height should be minimized on highly visible ridge areas by avoiding multi-story houses that "skyline" on ridges and by locating residential buildings so as not to impact views near ridges.
 5. No adjacent single-family detached home will be permitted to have the same plan, elevation, or color.
 6. Homes in village lots shall provide rear entry garages where access is provided.
 7. Wood shake roofs are prohibited.
 8. On view lots, building materials and color schemes should blend with the natural landscape of earth tones and grassland vegetation but minimize fuel potential for wildfires.
 9. Buildings, accessory structures, fences, etc., shall be oriented to minimize impact on views and adjacent uses.
 10. Mechanical equipment on roofs, aboveground transformers, satellite dishes, active solar panels, utility equipment and loading, service and storage areas shall be screened from view from the streets, pathways, public areas, and adjacent uses.
 11. Trash enclosures and maintenance structures shall be designed to be compatible in style, materials and colors with the main building and shall be of masonry type construction.

8-13B-16: Amendments

Amendments to this Article shall be in accordance with Section 8-6-33 and 8-6-34 of this Title.

Article C: Dry Creek Ranch Planned Community

SECTION:

8-13C-1:	SHORT TITLE
8-13C-2:	PURPOSE AND INTENT
8-13C-3:	APPLICABILITY
8-13C-4:	DEFINITIONS
8-13C-5:	LAND USE DISTRICTS
8-13C-6:	LAND USE REGULATIONS
8-13C-7:	ADMINISTRATIVE REGULATIONS
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8-13C-9:	OPEN SPACE

8-13C-10:	SIGN REQUIREMENTS
8-13C-11:	ON AND OFF STREET PARKING
8-13C-12:	STANDARDS FOR ENERGY AND WATER CONSERVATION
8-13C-13:	GRADING REQUIREMENTS
8-13C-14:	DESIGN STANDARDS FOR STRUCTURES AND SITE IMPROVEMENTS
8-13C-15:	FRONTAGE AND ACCESS
8-13C-16:	EASEMENTS
8-13C-17:	LANDSCAPING
8-13C-18:	AMENDMENTS

8-13C-1: Short Title

This Article shall be known, cited and referred to as the DRY CREEK RANCH PLANNED COMMUNITY ZONING ORDINANCE.

8-13C-2: Purpose and Intent

Generally, this Article is enacted with the purpose and intent of promoting, on behalf of the Dry Creek Ranch Planned Community, public health, safety, comfort and general welfare; to conserve and control the population density and to facilitate adequate and economical provisions for public improvements, all in accordance with the Dry Creek Ranch Comprehensive Plan for the desirable future physical development of the Dry Creek Ranch Planned Community; all as authorized by the Ada County Comprehensive Plan, the Ada County Zoning Ordinance, the State statutes and the Constitution of the State.

Specifically, the purpose and intent of this Article is to set forth the development standards for implementing the land use policies of the Dry Creek Ranch Comprehensive Plan. This Article shall be consistent with the adopted Dry Creek Ranch Comprehensive Plan. Furthermore, it is the purpose of this Article to:

- A. Provide for the design of quality, mixed use development within the Dry Creek Ranch Planned Community;
- B. Provide distinctive, efficient, and effective standards to guide development in the Dry Creek Ranch Planned Community;
- C. Allow flexibility and creativity for reconfiguration of residential and nonresidential uses and/or population density as long as these reconfigurations do not conflict with the Dry Creek Ranch Comprehensive Plan and this Article;
- D. Provide for the integration and balance of a variety of uses in the Dry Creek Ranch Planned Community; and
- E. Identify and define standards for uses which may occur in each of the land use categories.

8-13C-3: Applicability

This Article governs the development of the Dry Creek Ranch Planned Community, as shown on the Dry Creek Ranch Land Use Map found in the Dry Creek Ranch Comprehensive Plan. Where this Article specifically references other Sections of this Code, such other Sections of said Code shall apply and govern. This Article shall not apply to any land not incorporated within the Dry Creek Ranch Planned Community boundary. Land outside the Dry Creek Ranch Planned

Community may be annexed per the Dry Creek Ranch development agreement and this Code, as applicable.

- A. Scope And Content.** For the purpose of administration and enforcement, the Dry Creek Ranch Planned Community Land Use Map as adopted by Ada County shall be considered as the official land use map.
- B. Flexibility.** The development standards contained in the Dry Creek Ranch Comprehensive Plan and this Article depict the general nature and relative intensity of residential and nonresidential development in the Dry Creek Ranch Planned Community, while allowing sufficient flexibility at the time of detailed planning and platting so that the overall goals, and policies of the Dry Creek Ranch Comprehensive Plan can be achieved. The configuration and densities of development parcels and phases may be altered to accommodate site and other conditions and revisions to the project's implementation strategy providing that the reconfiguration does not conflict with the land use map, specific restrictions contained within Section 8-13C-5 of this Article, or the Dry Creek Ranch Comprehensive Plan and this Article.

8-13C-4: Definitions

The following definitions shall be used in the interpretation of the Dry Creek Ranch Zoning Ordinance. Any term used in this Article not defined herein, shall have the meaning set forth in Chapter 10 of this Title. Any term not defined herein or in Chapter 10 of this Title, shall have its plain and ordinary meaning.

ACTIVE ADULT COMMUNITY: An age-restricted development, which may be in any housing form, including detached and attached dwelling units, apartments, condominiums, and residences, offering private and semi-private rooms.

ALLEY, DRY CREEK RANCH: A service roadway that may be public or private, providing a means of access to an abutting property and may be utilized for general traffic circulation. An alley may also provide required frontage to a building lot.

BULK: A building's shape, size, and mass. Often expressed and determined by its floor area ratio (FAR).

BUSINESS PARK: A development on a tract of land that contains a number of separate office structures, with accessory and supporting uses, and open space designed, planned, constructed, and managed on an integrated and coordinated basis.

COMMON DRIVEWAY: An access shared by adjacent property owners that is privately owned and maintained.

COMMUNITY CENTER: A structure or structures utilized for recreational, social, educational, and cultural activities by Dry Creek Ranch residents.

COMMUNITY INFORMATION CENTER: A temporary structure, administrative facilities, and parking area principally used as an information pavilion and/or office for the sale of homes in the community.

DESIGN GUIDELINES: Sub-Element F-9 of the currently adopted Dry Creek Ranch Development Plan on file with the Ada County Development Services Department.

DESIGN REVIEW COMMITTEE (DRC): The Design Review Committee for the Dry Creek

Ranch Planned Community created in accord with the requirements established in the recorded covenants, conditions, and restrictions for the Dry Creek Ranch Planned Community.

DRUGSTORE: A store where the primary business is the filling of medical prescriptions and the sale of drugs, medical devices and supplies and nonprescription medicines but where non-medical products may be sold as well.

DRY CREEK RANCH COMPREHENSIVE PLAN: The Dry Creek Ranch Comprehensive Plan consists of the vision, goals, objectives, policies, and maps as adopted by the Board, and serves as a guide for development of the Dry Creek Ranch Planned Community. The Dry Creek Ranch Development Plan and economic impact analyses are included as addenda to the Dry Creek Ranch Comprehensive Plan. A copy of the approved Dry Creek Ranch Comprehensive Plan with addenda is on file with the Ada County Development Services Department.

DRY CREEK RANCH DEVELOPMENT PLAN: The Dry Creek Ranch Development Plan includes: a) a natural features map and analysis; b) a narrative describing the proposed land uses and design of the project; c) a map showing existing land uses within one (1) mile of the project site; d) a narrative assessment of development and population trends in Ada County; e) a transportation and mobility plan; f) a community services and utilities plan; g) an open space, parks and trails plan; h) a wildlife mitigation plan; i) narrative and examples of proposed central design concepts; j) a phasing plan; k) a letter from West Ada School District indicating school capacities and facility needs; and l) a stormwater management plan and narrative. The Dry Creek Ranch Development Plan is on file with the Ada County Development Services Department.

DRY CREEK RANCH LAND USE MAP: A map identifying land use designations and/or land use districts within the Dry Creek Ranch Planned Community and found in the Dry Creek Ranch Planned Community Comprehensive Plan.

DRY CREEK RANCH, OPEN-SPACE: See definition of open-space.

DRY CREEK RANCH OR THE DRY CREEK RANCH PLANNED COMMUNITY: That area depicted as such on the Dry Creek Ranch Land Use Map and Ada County Zoning Map.

DRY CREEK RANCH PROPERTY OWNERS' ASSOCIATION: The Idaho nonprofit or for-profit corporation whose members or stockholders consist exclusively of property owners within the Dry Creek Ranch Planned Community and whose purpose is to provide for the administration and governance of the affairs of the Dry Creek Ranch in accordance with the covenants and restrictions of Dry Creek Ranch.

DWELLING, ACCESSORY: a) An independent dwelling unit that has been added onto or created within a single-family dwelling; b) A dwelling unit that is located in a completely separate structure on the same lot as the principal dwelling and is subordinate to the principal dwelling, such as a guesthouse.

DWELLING, LIVE/WORK: A residential use type that combines a dwelling and a commercial space under single ownership in a structure.

DWELLING, LOFT: A residential dwelling unit located above a non-residential use.

FENCE, OPEN: A fence constructed with openings between the materials used in its construction.

FENCE, SOLID: A fence, including gates, constructed of solid material, wood or masonry through which no visual images may be seen.

FIRE DEPARTMENT: The Eagle Fire District.

FLOOR AREA RATIO (FAR): The sum of the horizontal areas of the several floors inside the exterior walls of a building or portion thereof, divided by the lot area.

FRONTAGE, DRY CREEK RANCH: That side of a lot abutting either a public or private street or alleyway.

GREENWAY:

- A. A linear open space established along either a natural corridor, such as waterway, ridgeline, scenic roadway or other route;
- B. Any natural or landscaped course for pedestrian, equestrian or bicycle passage;
- C. An open-space connector linking parks, community gardens, natural spaces, cultural features or historic sites with each other and with populated areas;
- D. Locally, certain strip or linear parks designated as a parkway or greenbelt; or
- E. Any man-made linear open space along a canal, lateral or ditch. Greenways shall be considered "developed open space."

HEALTH CLUB FACILITY: An establishment that provides facilities for aerobic exercise, running and jogging, exercise equipment, game courts, swimming facilities, saunas, therapeutic massage, lockers, showers, personal training and nutritional services and products.

HOSPITAL, LARGE ANIMAL: Any building or portion thereof designed or used for the care of the following animals: cattle, sheep, goats, horses, hogs, large exotic cats, or similar animals.

HOSPITAL, SMALL ANIMAL: Any building or portion thereof designed or used for the care of the following animals: dogs, cats, primates, birds, waterfowl, reptiles, rodents, and similar animals.

LANDSCAPE PLAN: A component of a development plan on which are shown: proposed landscape species (such as number, spacing, size at time of planting and planting details); proposals for protection of existing vegetation during and after construction; proposed treatment of hard and soft surfaces; proposed decorative features; grade changes and buffers and screening devices.

LARGE ANIMAL GROOMING: Any building or portion thereof designed or used for the grooming of the following animals: cattle, sheep, goats, horses, hogs, large exotic cats, or similar animals.

LOT, CORNER: A lot or parcel abutting upon two (2) or more streets at their intersection or upon two (2) parts of the same street, such streets or parts of the same street forming an interior angle of less than one hundred thirty-five degrees (135°). The point of intersection of the street lines is the "corner."

LOT, FLAG: A lot where access to the public or private road is by a private right-of-way or driveway. Minimum lot frontage for flag lots shall be as specified in Section 8-13C-5, table 8-13C-5D of this Article.

MEW: Dwelling units built around a common open space area or court where the units face the open space area and are generally not accessed from a public street.

MODEL HOME: A single-family dwelling which is shown to prospective buyers of lots or

dwelling for the purpose of promoting the retail sale of lots or dwellings within Dry Creek Ranch.

OPEN-SPACE: An open area used for passive or active recreation by the residents of Dry Creek Ranch or for conservation.

OPEN-SPACE, DEVELOPED: An open area for human activities that range from recreation activities to pastimes. Developed open space includes those parcels of property, such as roadway medians, which are improved and landscaped. Parks, pathways, and trailways shall be considered developed open space.

OPEN-SPACE, NATURAL: An open space area generally not occupied by any structures. These open spaces may include pathways, and trailways with or without pavement, wayfinding and/or interpretative signage.

PARKWAY: A landscaped area located between the edge of a street section or curb and a sidewalk dedicated to separate pedestrian and vehicular traffic.

PATHWAY: A clear way for pedestrians; equestrians or bicyclists that may or may not be improved.

RESTAURANT, OUTDOOR: Any part of a food establishment located outdoors, not used for any other purposes, open to the sky, with the exception that it may have retractable awning or umbrellas and may contain furniture including: tables; chairs; railings and planters.

SHOPPING CENTER, CONVENIENCE COMMERCIAL: A small shopping center that typically features an approximately two thousand five hundred (2,500) square foot groceries/sundries store as an anchor tenant and may also provide other services such as gasoline sales, dry cleaners, coffee shop, dentist office, beauty shop, day care, etc. A convenience shopping center may have an average building area ranging from fifteen thousand (15,000) to thirty-five thousand (35,000) square feet and occupy one (1) to three (3) acres.

SHOPPING CENTER, NEIGHBORHOOD COMMERCIAL: A moderate sized shopping center planned and developed as a unit, typically composed of a grocery up to sixty thousand (60,000) square feet in size, and usually containing additional smaller tenants serving a local market area. A neighborhood shopping center may have a gross floor area ranging from thirty-five thousand (35,000) to one hundred thousand (100,000) square feet and may occupy up to ten (10) acres.

SMALL ANIMAL GROOMING: Any building or portion thereof designed or used for the grooming of the following animals: dogs, cats, primates, birds, waterfowl, reptiles, rodents and similar animals.

STABLE, BOARDING: A structure designed for the feeding, housing, and exercising of horses not owned by the owner of the premises for which the owner of the premises may receive compensation.

STABLE, PRIVATE: A detached accessory building or structure for the keeping of one (1) or more horses or cows owned and used by the occupant of the premises and not for remuneration, hire or sale.

STREET, ISLAND, DRY CREEK RANCH: A landscape island located within or surrounded by public or private street right-of-way.

STREET, KNUCKLE, DRY CREEK RANCH: An expansion of a local street typically around curves providing access to abutting properties and enlarged turning movement.

STREET, PRIVATE, DRY CREEK RANCH: A street approved by Ada County, which provides both access and street frontage for individual lots. Private streets are to be owned and maintained by the Dry Creek Ranch Property Owners' Association.

SUBSTANTIAL CONFORMANCE, DRY CREEK RANCH: A final plat located within the Dry Creek Ranch Planned Community shall be deemed to be in substantial conformance to an approved preliminary plat provided that the final plat represents no increase in the number of buildable lots as approved for the preliminary plat and a twenty-five percent (25%) or less deviation in the dimensional standard shown on the preliminary plat, provided that the density and lot dimensions meet the standards of the base zoning district. Unless required by a public highway agency, public utility, or Federal or State agency, deviations greater than twenty-five percent (25%) or more of any dimensional standard shown on the preliminary plat shall not be deemed in substantial conformance.

TREES, CLASS I, II, III: The classes of trees are defined for the purposes of this Title by the publication Tree Selection Guide for Streets and Landscapes Throughout Idaho. In general, Class I trees are smaller ornamental trees, Class II trees are medium/large trees appropriate for street tree planting, and Class III trees are very large trees.

WATER TOWER: A water storage facility, usually above ground.

XERISCAPE: Landscaping that is characterized by the use of vegetation that is drought tolerant or of low water use in character.

8-13C-5: Land Use Districts

The purpose of this Section is to implement the Dry Creek Ranch Comprehensive Plan. These districts are intended to provide appropriate density for residential, commercial, open space and other development based on the Dry Creek Ranch Comprehensive Plan. The Dry Creek Ranch Comprehensive Plan depicts the general nature and relative intensity of residential and nonresidential land use districts subject to the appropriate flexibility discussed elsewhere in this Article.

- A. Land Use Districts.** It is the purpose of these districts to provide regulations and standards for development of residential; mixed-use; commercial; village center development in a variety of typologies including but not limited to single-family detached dwellings; zero-lot line developments of single-family detached dwellings; single-family attached dwellings, duplexes, townhouses and multi-family dwellings; office; retail; and neighborhood commercial where a municipal wastewater collection and treatment system and community water system are provided. A general description of the allowed uses within each district is provided below. For a detailed list of allowed uses see Section 8-13C-6, tables 8-13C-6A and 8-13C-6B of this Article and for dimensional standards see table 8-13C-5D of this Section.

The Dry Creek Ranch Planned Community is divided into the following land use districts as shown on the land use map contained in the Dry Creek Ranch Comprehensive Plan and in Figures B-3.a, B-3.b, and B-3.c of the Dry Creek Ranch Development Plan.

Gross and net density calculations for individual development areas within the project may be calculated with decimal figures. Gross and net density calculations for the entire property shall be rounded to the nearest whole number.

Equestrian District. The Equestrian District allows for a gross density between one half (0.5) and dwelling units per acre. This district may include single-family detached dwellings.

Hillside District. The Hillside District allows for a gross density between one and a half (1.5) and five and a half (5.5) dwelling units per acre. This district may include single-family detached dwellings, single-family attached dwellings, duplexes, and townhouses.

Low Density District. The Low-Density District allows for a gross density between two and a half (2.5) and four (4) dwelling units per acre. This district may include single-family detached dwellings, single-family attached dwellings, duplexes, and townhouses.

Medium Density District. The Medium Density District allows for a gross density between four (4) and seven (7) dwelling units per acre. This district may include single-family detached dwellings, single-family attached dwellings, duplexes, and townhouses.

Mixed-Use District. The Mixed-Use District provides for a wide range of commercial, office, retail, industrial, and residential uses that allow property owners the flexibility to respond to the long-term evolution of development trends. All uses and structures will be sited and designed to be compatible with one another with a variety of complementary and integrated uses such as: various single-family and multi-family residential uses with gross densities of one (1) to twenty (20) dwelling units per acre. A minimum of twenty five percent (25%) of the Mixed-Use District shall be devoted to multi-family residential uses at a density range of between seven (7) to twenty (20) dwelling units per acre. Only fifty percent (50%) of the Mixed-Use District shall be residential uses. Other permitted uses include civic, office (including a business park), neighborhood retail, public and quasi-public use, and recreation in a compact, urban form. This district is intended to provide creativity and flexibility in planning and design of buildings and encourages both vertical and horizontal mixing of uses.

Village Center District. The Village Center Districts allow uses that promote the farm-to-table concept of Dry Creek, including community gardens, orchards, and small-scale nurseries that may take advantage of existing geothermal resources in the community. The Village Center Districts will also provide recreational opportunities, including riding arenas, sports fields, amphitheaters, clubhouses, and pools, as illustrated in the Dry Creek Ranch Development Plan. The Village Center District will also allow for limited commercial uses, as further set forth in Section 8-13C-6, table 8-13C-6B of this Article.

Park District. The Park District allows for the ability to provide developed open space, including active and passive uses. Areas designated as park areas are intended to provide both active and passive recreational opportunities. Park area uses include, but are not limited to: neighborhood and community parks; trail systems; greenbelts along Dry Creek and Spring Valley Creek; parkways; village park(s); community gardens; outdoor amphitheaters and interpretative centers.

Institutional/School Site District. The Institutional/School Site District allows a public-use, such as a religious building; library; public or private school; hospital; or government-owned or operated building, structure or land used for public purpose.

Natural Open Space District. The Natural Open Space District allows for protection of natural or enhanced areas that are environmentally sensitive areas with characteristics such

as steep slopes, habitat or areas of significant biological productivity or uniqueness that have been designated for protection. This district shall be thought of as natural open space for the Dry Creek Ranch Planned Community. However, paths; trails, both paved and unpaved; along with interpretative signage shall be allowed within this district.

Commercial District. The Commercial District allows for neighborhood or convenience commercial opportunities that will serve residents of the Dry Creek Ranch Planned Community and other surrounding developments.

TABLE 8-13C-5D
DRY CREEK RANCH DIMENSIONAL STANDARDS BY LAND USE DISTRICT

Dimensional Standards		Land Use Designations - Single Family Residential			
		Equestrian	Hillside	Low	Medium
Density (dwelling units/gross acre)		0.5 - 3.5	1.5 - 5.5	2.5 - 4.0	4.0 - 7.0
Minimum lot size:					
	Single-family detached dwelling	13,000 sq. ft.	8,000 sq. ft.	8,000 sq. ft.	4,000 sq. ft.
	Other principal structure	13,000 sq. ft.	8,000 sq. ft.	8,000 sq. ft.	4,000 sq. ft.
Minimum lot frontage ¹ :					
	Interior lot	30' ²	15' ³	15' ³	15' ³
	Corner lot	35'	18'	18'	18'
Minimum setbacks:					
	From front property line:				
	Dwelling or principal structure	15'	10'	10'	10'
	Garage	20'	15'	15'	15'
	From rear property line:				
	Dwelling or principal structure	10'	10'	10'	10'
	Garage	10'	10'	10'	10'
	From interior side property line ⁴ :				

	Detached dwelling or principal structure or garage	5'	5'	5'	3'
	Attached dwelling or principal structure or garage	0'	0'	0'	0'
	From street side property line:				
	Dwelling or principal structure or garage	10'	10'	10'	10'
Maximum coverage		No maximum	No maximum	No maximum	No maximum
Maximum impervious surface		No maximum	No maximum	No maximum	No maximum
Maximum floor area ratio		No maximum	No maximum	No maximum	No maximum
Maximum structure height		40'	40'	40'	40'

Notes:

1. See Section 8-13C-15 of this Article for minimum frontage when served by a common driveway.
2. Minimum frontage for flag lots shall be fifteen (15') feet.
3. Minimum frontage for flag lots shall be ten (10') feet.
4. A minimum distance of 6 feet shall be required between structures on adjacent lots.

Dimensional Standards	Land Use Designations						
	Mixed Use	Village Center	Park		Institutional / School Site	Natural Open Space	Commercial
Density (dwelling units/gross acre)		1.0 - 20.0	n/a	n/a	n/a	n/a	n/a
Minimum lot size:							
	Single-family detached dwelling	1,200 sq. ft.	n/a	n/a	n/a	n/a	n/a
	Other principal structure	1,200 sq. ft.	n/a	n/a	n/a	n/a	n/a
Minimum lot frontage ¹ :							
	Interior lot	0'	0'	0'	20'	0'	0'
	Corner lot	0'	0'	0'	20'	0'	0'
Minimum setbacks:							
	From front property line:						
	Principal structure	0'	0'	n/a	20'	n/a	0'
	Accessory structure	0'	0'	n/a	20'	n/a	0'
	From rear property line:						
	Principal structure	0'	0'	n/a	20'	n/a	0'
	Accessory structure	0'	0'	n/a	20'	n/a	0'

	From interior side property line	0'	0'	n/a	10'	n/a	0'
	From side street property line	6'	6'	n/a	15'	n/a	n/a
	From side property line adjacent to alley:						
	Dwelling or principal structure	10'	10'	n/a	n/a	n/a	n/a
	Garage	0'	0'	n/a	n/a	n/a	n/a
Maximum coverage		No maximum	No maximum	No maximum	No maximum	No maximum	No maximum
Maximum impervious surface		No maximum	No maximum	15%	No maximum	10%	90%
Maximum floor area ratio		No maximum	No maximum	No maximum	No maximum	No maximum	No maximum
Maximum structure height		60'	60'	60'	60'	65'	65'

Note:

1. See Section 8-13C-15 of this Article for minimum frontage when served by a common driveway.

8-13C-6: Land Use Regulations

Tables 8-13C-6A through 8-13C-6B of this Section list allowed uses within each land-use district. Approval of these uses shall follow the approval process outlined in Section 8-13C-7 of this Article.

TABLE 8-13C-6A**ALLOWABLE USES IN THE DRY CREEK RANCH LAND USE DISTRICTS**

Principal permitted (P); accessory (A); conditional (C); or prohibited (-) use

Use	Equestrian	Hillside	Low	Medium
Accessory structure	A	A	A	A
Active adult community	C	P	P	P
Agricultural structure	A	-	-	-
Agricultural use	P	-	-	-
Amusement or recreation facility, indoor	C	C	C	C
Amusement or recreation facility, outdoor	C	C	C	C
Animal boarding with outside runs	C	-	-	-
Animal clinic, animal hospital or veterinary office	C	C	C	C
Automobile, major repair	-	-	-	-
Bar, brew pub or nightclub	-	-	-	-
Bed and breakfast establishment	C	C	C	C
Brewery or distillery	-	-	-	-
Business park	-	-	-	-
Car wash	-	C	C	C
Church or place of worship	C	C	C	C
Clinic, medical	-	C	C	C
Club, lodge, or social hall	-	C	C	C
Community center	P	P	P	P

Community information center	P	P	P	P
Daycare facility (more than 12 children)	C	C	C	C
Daycare home, family (6 or fewer children)	A	A	A	A
Daycare home, group (7 - 12 children)	A	A	A	A
Drive up window service	-	-	-	-
Drugstore	-	-	-	-
Duplex or single-family attached dwelling	-	P	P	P
Dwelling, accessory	A	A	A	A
Dwelling, caretaker for an approved use	A	A	A	A
Dwelling, live/work	-	-	-	-
Dwelling, loft	-	-	-	-
Dwelling, multi-family	-	-	-	-
Dwelling, secondary attached or detached	A	A	A	A
Dwelling, single family attached	-	P	P	P
Dwelling, single family detached	P	P	P	P
Farm, garden, lumber, or building supply store	-	-	-	-
Fence, open (no barbed wire)	P	P	P	P
Fence, solid	P	P	P	P
Gasoline or diesel fuel sales facility	-	-	-	-
Health club facility	-	C	C	C

Home occupation	A	A	A	A
Hospital	-	-	-	-
Hospital, large animal	C	-	-	-
Hospital, small animal	C	C	C	C
Hotel or motel	-	-	-	-
Kennel, commercial	-	-	-	-
Kennel, hobby	A	A	A	A
Large animal grooming	C	C	C	C
Laundromat	-	-	-	-
Model home	P	P	P	P
Nursery, wholesale or retail	C	C	C	C
Nursing facility, skilled	C	C	C	C
Off-street parking facility	P	P	P	P
Office, related to an approved use	A	A	A	A
Office, temporary construction	A	A	A	A
Outdoor storage	A	A	A	A
Package and letter delivery service	-	-	-	-
Personal, business or professional services	-	-	-	-
Portable classroom	-	-	-	-
Public or quasi-public use ¹	C	C	C	C
Radio and television broadcasting station	-	-	-	-
Recycling center	-	-	-	-
Research and development facility	-	-	-	-

Residential care facility	C	C	C	C
Restaurant or eating place	-	-	-	C
Restaurant, outdoor	-	-	-	C
Retail sales, relating to an approved use	A	A	A	A
Retail store	-	C	C	C
School, public or private	C	C	C	C
School, university	-	C	C	C
School, vocational or trade	C	C	C	C
Shopping center, convenience commercial	-	-	-	-
Shopping center, neighborhood commercial	-	-	-	-
Signs, non-accessory, off premises	-	-	-	-
Small animal grooming	C	C	C	C
Stable, boarding	P	-	-	-
Stable or riding arena, commercial	P	-	-	-
Stable, private	P	-	-	-
Storage facility, self service	-	-	-	-
Studio	C	C	C	C
Swimming pool, private	-	A	A	A
Swimming pool, public	P	P	P	P

Tower or antenna structure, commercial	C	C	C	C
Tower or antenna structure, private	A	A	A	A
Transit facility	C	P	P	P
Water tower	P	P	P	P
Winery	C	C	C	C

Note:

1. Wells, potable water, and wastewater treatment facilities are required infrastructure considered in connection with the approval of the Dry Creek Ranch Zoning Ordinance and development plan. Accordingly, no conditional use review is required in connection with the construction of these facilities. Administrative, staff- level review of site plans associated with such facilities will be required at the time of building permit.

TABLE 8-13C-6B

ALLOWABLE USES IN THE DRY CREEK RANCH LAND USE DISTRICTS

Principal permitted (P); accessory (A); conditional (C); or prohibited (-) use

Use	Mixed Use	Village Center	Park	Natural Open Space	Institutional/ School Site	Commercial
Accessory structure	A	A	A	A	A	A
Active adult community	P	P	-	-	-	-
Agricultural structure	A	A	P	-	A	A
Agricultural use	P	P	P	-	-	-
Amusement or recreation facility, indoor	C	P	-	-	-	P
Amusement or recreation facility, outdoor	C	P	P	-	P	C

Animal boarding with outside runs	C	C	-	-	-	P
Animal clinic, animal hospital or veterinary office	P	P	-	-	-	P
Automobile, major repair	C	-	-	-	-	C
Bar, brew pub or nightclub	P	P	-	-	-	P
Bed and breakfast establishment	P	C	-	-	-	P
Brewery or distillery	P	P	-	-	-	P
Business park	C	-	-	-	C	P
Car wash	A ¹	-	-	-	-	P
Church or place of worship	P	P	-	-	C	P
Clinic, medical	P	P	-	-	-	P
Club, lodge or social hall	P	P	C	-	C	P
Community center	P	P	P	-	-	P
Community information center	P	P	P	-	C	P
Daycare facility (12 or more children)	P	P	-	-	-	P
Daycare home, family (6 or fewer children)	A	A	-	-	-	A

Daycare home, group (7 - 12 children)	A	A	-	-	-	A
Drive up window service	C	-	-	-	-	C
Drugstore	P	-	-	-	-	P
Duplex or single-family attached dwelling	P	-	-	-	-	-
Dwelling, accessory	A	-	-	-	-	-
Dwelling, caretaker of an approved use	A	-	-	-	-	A
Dwelling, live/work	P	P	-	-	-	P
Dwelling, loft	P	-	-	-	-	P
Dwelling, multi-family	P	-	-	-	-	C
Dwelling, secondary attached or detached	A	-	-	-	-	A
Dwelling, single family attached	P	-	-	-	-	-
Dwelling, single-family detached	P	-	-	-	-	-
Farm, garden, lumber, or building supply store	C	C	-	-	-	P

Fence, open (no barbed wire)	A	A	A	A	A	A
Fence, solid	A	A	A	A	A	A
Gasoline or diesel fuel sales facility	C	-	-	-	-	P
Health club facility	P	P	-	-	-	P
Home occupation, large	A	A	-	-	-	-
Home occupation, small	A	A	-	-	-	-
Hospital	P	-	-	-	-	P
Hospital, large animal	C	-	-	-	-	P
Hospital, small animal	P	-	-	-	-	P
Hotel or motel	C	-	-	-	-	P
Intermediate care facility	P	-	-	-	-	P
Kennel, commercial	P	-	-	-	-	P
Kennel, hobby	A	-	-	-	-	-
Large animal grooming	P	-	-	-	-	P
Laundromat	P	-	-	-	-	P
Model home	P	-	-	-	-	P
Nursery, wholesale or retail	P	P	-	-	-	P
Nursing facility, skilled	P	-	-	-	-	P

Off-street parking facility	P	P	P	P	P	P
Office, related to an approved use	A	A	-	-	A	A
Office, temporary construction	P	P	-	-	A	P
Outdoor storage	P	P	-	-	A	P
Package and letter delivery service	P	P	-	-	-	P
Personal, business or professional services	P	P	-	-	-	P
Portable classroom	-	-	-	-	A	-
Public or quasi-public use	P	P	P	C	P	P
Radio and television broadcast station	C	-	-	-	-	C
Recycling center	C	-	-	-	-	P
Research and development facility	P	-	-	-	-	P
Residential care facility	P	-	-	-	-	C
Restaurant or eating place	P	P	-	-	-	P
Restaurant, outdoor	P	P	-	-	-	P

Retail sales relating to an approved use	A	A	-	-	-	A
Retail store	P	P	-	-	-	P
School, public or private	P	-	-	-	P	P
School, university	P	-	-	-	P	P
School, vocational or trade	P	-	-	-	P	P
Shopping center, convenience commercial	P	P	-	-	-	P
Shopping center, neighborhood commercial	P	P	-	-	-	P
Signs, non-accessory, off premises	C	C	-	-	C	P
Small animal grooming	P	P	-	-	-	P
Stable, boarding	P	-	-	-	P	P
Stable or riding arena, commercial	P	P	-	-	P	P
Stable, private	P	-	-	-	P	P
Storage facility, self service	P	-	-	-	P	P
Studio	P	-	-	-	-	P
Swimming pool, private	A	A	A	-	A	A

Swimming pool, public	P	P	P	-	P	P
Tower or antenna structure, commercial	C	C	C	C	C	C
Tower or antenna structure, private	A	A	-	-	A	A
Transit facility	P	P	P	-	P	P
Water tower	P	P	P	P	P	P
Winery	P	P	-	-	-	P

Note:

1. Accessory to gasoline or diesel fuel sales facility.

8-13C-7: Administrative Regulations

- A.** Principal permitted uses shall be reviewed in accordance with the specific use standards in Chapter 5 of this Title and Section 8-13C-8 of this Article; the master site plan standards of 8-6-19 of this Title, unless specifically exempt under subsection 8-6-19B.2 of this Title; and with the Dry Creek Ranch Comprehensive Plan.
- B.** Accessory uses shall be reviewed in accordance with the procedures in Chapter 6 of this Title; the specific use standards in Chapter 4 of this Title and Section 8-13C-8 of this Article; the accessory use regulations of Chapter 4 of this Title and table 8-13C-7¹ of this Section; and with the Dry Creek Ranch Comprehensive Plan.
- C.** Conditional uses shall be approved in accordance with the procedures in Chapter 6 of this Title; the specific use standards in Chapter 4 of this Title and Section 8-13C-8 of this Article; the conditional use regulations of 8-6-15 of this Title; and with the Dry Creek Ranch Comprehensive Plan.
- D.** The development of any allowable use within the Dry Creek Ranch Planned Community requires a zoning certificate in accordance with Sections 8-6-32 of this Title. A zoning certificate will not be issued until such time as the applicant has provided to the County a design review letter issued by the Dry Creek Ranch Design Review Committee (DRC) stating that the plan complies with the design guidelines of the Dry Creek Ranch Comprehensive Plan. Ada County may issue a zoning certificate if the DRC fails to respond to an application within a reasonable period of time.
- E.** Prior to approval of any preliminary plat for Dry Creek Ranch, the Board must find that the plat is in accordance with the Dry Creek Ranch Comprehensive Plan.

- F. Building permits and grading permits shall be issued in accordance with Ada County Building Code; provided however, that no building or grading permit shall be issued to an applicant until such time as the applicant has provided to the County: 1) a design review letter issued by the Dry Creek Ranch Design Review Committee recommending approval, denial, or conditional approval, of the proposed building improvements and/or grading for which the building permit or grading permit is being sought.

TABLE 8-13C-7¹

ACCESSORY USES AND REQUIRED APPROVAL

Accessory Use	Required Approval	
	Zoning Certificate	Administrative Approval
Accessory structure (over 1,500 sq. ft.)	Yes	Yes
Accessory structure (under 1,500 sq. ft.)	Yes	No
Car wash	Yes	Yes
Dwelling, accessory	Yes	Yes
Dwelling, secondary attached or detached	Yes	Yes
Fence, open (no barbed wire)	No	No
Fence, solid	No	No
Home occupation, large	Yes	Yes
Home occupation, small	Yes	No
Tower or antenna structure, private	Yes	Yes

Note:

1. This table supplements Section 8-6-11, table 8-2-23 of this Title.

8-13C-8: Specific Use Standards

The purpose of this Section 8-13C-8 is to provide specific standards for all uses as set forth in Section 8-13C-6, tables 8-13C-6A and 8-13C-6B of this Article that are not listed in Chapter 4 of this Title or where the specific use standards differ from those standards found in Chapter 4 of this Title. These standards are in addition to the requirements of Chapter 4 of this Title.

8-13C-8-1: Amusement or Recreation Facility, Outdoor

A. General Standards

1. All structures or outdoor recreation areas shall maintain a minimum setback of twenty feet (20') from all abutting residential districts.
 2. Any outdoor speaker system associated with the amusement or recreation facility shall comply with the noise regulations of Section 5-13-3 of this Code.
 3. All outdoor activities and events shall be scheduled so as to complete all activity before or as near to nine thirty o'clock (9:30) P.M. as practical. Illumination of the outdoor amusement or recreation facility shall not be permitted after ten o'clock (10:00) P.M. except to conclude a scheduled event that was in progress before ten o'clock (10:00) P.M. and circumstances prevented concluding before ten o'clock (10:00) P.M. All illumination shall be terminated no later than one (1) hour after conclusion of the event.
- B. Golf Driving Range.** Accessory sales and rental of golf equipment shall be allowed. The golf driving range shall be designed to protect abutting property and roadways from golf balls.
- C. Swimming Pool.** Any outdoor swimming pool shall be completely enclosed within a six-foot (6') barrier that meets the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this Code.

8-13C-8-2: Bar, Brewpub, or Nightclub

- A. The facility shall comply with all Idaho Code regulations regarding the sale, manufacturing, or distribution of alcoholic beverages.
- B. The bar, brewpub, or nightclub shall not be located within five hundred feet (500') of a church or school property.
- C. For properties abutting a residential district, no outside activity or event shall be allowed on the site, except as provided for in 8-6-29, "Temporary Use," of this Title.

8-13C-8-3: Bed and Breakfast Establishment

- A. The minimum property size for a bed and breakfast establishment shall be one-half (1/2) acre.
- B. Any such facility shall be an owner-occupied dwelling. For the purposes of this subsection, an "owner" shall be defined as a person with a fifty percent (50%) or greater interest in the bed and breakfast establishment.
- C. If remodeling an existing structure, the exterior appearance of the structure shall be that of a single-family dwelling. Fire escapes and other features may be added to protect public safety; however, structural alterations may not be made that would prevent future use of the structure as a single-family dwelling.
- D. No more than ten (10) occupants (including, but not limited to, the owner, the owner's family, and any resident or nonresident employees) shall be permitted to occupy the facility at any one (1) time (daytime, evening, or night).
- E. The maximum stay shall be two (2) weeks for any guest.
- F. Only business signs referring solely to a principal permitted use of the bed and breakfast are permitted.

8-13C-8-4: Business Park

There are no additional standards for this specific use.

8-13C-8-5: Car Wash

- A. All businesses providing self-service or drive-through car wash facilities shall identify the stacking lane and wash location on the master site plan.
- B. If within the Mixed-Use District, a car wash facility shall be allowed only as an accessory use to a gasoline or diesel fuel sales facility. The car wash facility shall be limited in capacity to a single vehicle.
- C. A one-hundred-foot (100') separation shall be maintained between any car wash facility and any residential district.
- D. Any outdoor speaker system associated with the car wash shall comply with the noise regulations of Section 5-13-3 of this Code.
- E. Vehicle stacking lanes shall be available on the property but outside the car wash facility entrance. Stacking lanes shall have sufficient capacity to prevent obstruction of the public right- of-way by patrons. Such stacking lanes shall be separate from areas required for access and parking. The stacking lanes shall not be located within ten feet (10') of any residential district.

8-13C-8-6: Community Center

All structures shall meet the minimum required setbacks for the applicable land use district.

8-13C-8-7: Community Information Center

There are no additional standards for this specific use.

8-13C-8-8: Drugstore

The applicant or owner shall secure and maintain the proper license(s) from the State of Idaho.

8-13C-8-9: Dwelling, Accessory

- A. An accessory dwelling unit (ADU) shall not be larger than twenty percent (20%) of the lot area and the ADU shall not have more than one (1) bedroom. Where practical, the twenty percent (20%) size standard may be altered to accommodate logical expansions or internal conversions. Examples of this include, but are not limited to, the addition of a second floor to a detached garage or the separation of a basement as an accessory unit.
- B. ADUs shall meet all of the dimensional requirements of the land use district and requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this Code.
- C. The design of the ADU shall be compatible with the existing neighborhood by taking into account height, bulk, and site location, and incorporating materials, colors and a design motif that is compatible with and complements the architectural theme and style of the principal dwelling unit. The principal and the ADU shall be designed to portray the character of a single-family dwelling. Only one (1) entrance to the structure may be located on the front building elevation of the house unless multiple entrances are already in existence.

- D. Off-street parking shall be provided as per Section 8-3-10 of this Title, in addition to the required off-street parking for the principal permitted dwelling. The driveway apron (driveway space within the front yard setback) may be utilized for this requirement.
- E. Input from adjacent property owners should be considered in the design and siting of an ADU in order to maintain privacy between adjacent housing units.

8-13C-8-10: Dwelling, Live/Work

- A. The living space shall contain at least four hundred (400) square feet of gross floor area.
- B. The living space shall include a bedroom, closet, bathroom and kitchen. The bedroom shall be for the exclusive use of the living space. All other spaces may be shared with the workspace.
- C. The live/work unit shall meet all of the requirements of the Ada County Building Code as set forth in Title 7, Chapter 2 of this Code.
- D. A minimum of eighty (80) square feet of outdoor open space shall be provided for each living space. This requirement can be satisfied through porches, patios, decks, and/or yards. Required property setback, landscaping, entryway, and other access ways shall not count toward this requirement.
- E. Off-street parking shall be provided as per Section 8-3-10 of this Title, in addition to the required off-street parking for the dwelling.
- F. The commercial space activities shall be compatible with residential use with respect to noise, smoke, vibration, smell, electrical interference, and fire hazard; and may include such uses as professional services and offices; and the creation, display and sale of art, craftwork, jewelry, fabrication of cloth goods; and similar activities.
- G. The live/work unit shall comply with the design guidelines of the Dry Creek Ranch Comprehensive Plan.
- H. The design of the live/work unit shall be compatible with the existing neighborhood by taking into account height, bulk, and site location; and incorporating materials, colors and a design motif that is compatible with and complements the architectural theme and style of the vicinity.

8-13C-8-11: Fence, Open

- A. No fence, hedge, wall, latticework, or screen shall violate the "clear vision triangle" requirements at a street intersection.
- B. No fence, wall, latticework, or screen shall be erected over three feet (3') in height within the required front yard.
- C. No fence, wall, latticework, or screen on the perimeter boundary or within any required setback area shall exceed a height of six feet (6'), unless approved by a variance by the Board or as part of an approved use.
- D. Where any fence or wall is required by this Title to protect adjacent properties, said fence or wall shall be kept free from advertising and graffiti and maintained in good repair.

8-13C-8-12: Fence, Solid

- A. No sight-obscuring fence, hedge, wall, latticework, or screen shall violate the "clear vision triangle" requirements at a street intersection.
- B. No fence, wall, latticework, or screen shall be erected over three feet (3') in height within the required front yard.
- C. No fence, wall, latticework, or screen on the perimeter boundary or within any required setback area shall exceed a height of six feet (6'), unless approved by a variance by the Board or as part of an approved use.
- D. Where any sight-obscuring fence or wall is required by this Title to protect adjacent properties, said fence or wall shall be kept free from advertising and graffiti and maintained in good repair.

8-13C-8-13: Health Club Facility

The facility shall comply with all County and State regulations relative to such use.

8-13C-8-14: Hospital

- A. The use shall have frontage on an arterial or collector street.
- B. Accessory retail uses including, but not limited to, retail shops, food or beverage service, and personal service shops, may be allowed if designed to serve patrons of the hospital and their visitors only.
- C. The use shall comply with the Flood Hazard Overlay District as set forth in 8-2-28 of this Title.

8-13C-8-15: Hospital, Large Animal

The facility shall comply with all County and State regulations relative to such use.

8-13C-8-16: Hospital, Small Animal

The facility shall comply with all County and State regulations relative to such use.

8-13C-8-17: Public or Quasi-Public Use

- A. **Minimum Setbacks; Compatibility.** All structures shall meet the minimum required setbacks for the applicable base district, except within a residential district where there shall be a minimum setback of thirty-five feet (35') from any public street and twenty-five feet (25') from any other property line. Structures shall be designed and constructed to be compatible with the surrounding properties.
- B. **Public Recreation Facilities.** The standards as set forth for amusement and recreation facilities shall apply for all public recreation facilities.
- C. **Storm Drainage and Storm Detention Facilities.** A storm drainage facility and/or storm detention facility that are an accessory use to a roadway on the same property shall be exempt. For the purposes of this standard, the contiguous parcel regulations of Section 8-3-2D of this Title shall not apply.
- D. **Underground Utilities.** Underground utilities within an easement or within a public street

right-of-way shall not require additional approval.

E. Power Distribution Facilities.

1. Electric distribution lines shall be principal permitted uses. Master site plan approval is not required.
2. Electric sub-transmission lines shall be principal permitted uses. Master site plan approval shall be required.
3. Electric transmission lines and substations shall require conditional use approval.
4. All electric transmission, sub-transmission, and distribution line rights-of-way shall be exempt from the landscaping regulations 8-3-7 of this Title.
5. Electric substations and other utility structures shall be deemed outdoor storage areas and shall meet the standards in Section 8-4-49 of this Title.
6. Towers for the purpose of communicating from the substation to remote devices shall be deemed an accessory use to an approved substation, provided that the pole and antenna are no taller than the existing towers.
7. All wire fences, metal structures, and metal objects shall be grounded as required by Section 8-3-20 of this Title.

8-13C-8-18: Restaurant or Eating Place

No additional standards are required for this specific use.

8-13C-8-19: Restaurant, Outdoor

No additional standards are required for this specific use.

8-13C-8-20: Retail, Lifestyle Center

No additional standards are required for this specific use.

8-13C-8-21: Retail Sales, Retailing to an Approved Use

Accessory retail sales shall be allowed for an approved commercial use. The area devoted to retail sales shall not occupy more than forty percent (40%) of the gross floor area of the approved use.

8-13C-8-22: School, Public or Private

- A. Locations for public school sites shall be determined in conformance with the Dry Creek Ranch Land Use Map. The following location criteria shall apply unless in conflict with the applicable comprehensive plan:
 1. Elementary schools shall take access off a public street, unless otherwise approved by the applicable school district and ACHD.
 2. No school shall be located in a floodplain or adjacent to a hazardous land use.
- B. All structures shall meet the minimum setbacks of the Institutional/School Site Land Use District.
- C. Accessory uses including, but not limited to, daycare centers, community services, social services, meeting facilities for clubs and organizations, and administrative offices for the individual school facility may be allowed.

8-13C-8-23: School, Vocational or Trade

No vocational or trade school shall be located in a floodplain or adjacent to a hazardous land use.

8-13C-8-24: School, University

No university school shall be located in a floodplain or adjacent to a hazardous land use.

8-13C-8-25: Shopping Center, Community Commercial

No additional standards are required for this specific use.

8-13C-8-26: Shopping Center, Convenience Commercial

No additional standards are required for this specific use.

8-13C-8-27: Shopping Center, Neighborhood Commercial

No additional standards are required for this specific use.

8-13C-8-28: Shopping Center, Regional Commercial

No additional standards are required for this specific use.

8-13C-8-29: Stable, Private

No additional standards are required for this specific use.

8-13C-8-30: Water Tower

No additional standards are required for this specific use.

8-13C-8-31: Winery

- A. The facility shall comply with all Idaho Code regulations regarding the sale, manufacturing, or distribution of alcoholic beverages.
- B. The winery shall not be located within five hundred feet (500') of a church or school property.
- C. For properties abutting a residential district, no outside activity or event shall be allowed on the site, except as provided for in 8-4-73, "Temporary Uses," of this Title.

8-13C-9: Open Space

- A. **Purpose.** The purpose of this Article is to encourage well- designed open space within the Dry Creek Ranch Planned Community and to provide standards for dedicated open space areas as specified in the Dry Creek Ranch Comprehensive Plan and/or uses approved as part of a development application.
- B. **Applicability.** The following regulations shall apply to open space lots created within the Dry Creek Ranch Planned Community.
- C. **General Regulations**
 - 1. **Plat Approval:** In approving each preliminary plat within Dry Creek Ranch, the Board shall determine that the plat is in accordance with the open space plan as was approved with the Dry Creek Ranch Comprehensive Plan with consideration of the flexibility provisions of this Article and the plan.
 - 2. **Allowed Open Space Uses:** Allowable uses on lands designated as in the "Park District" or "Natural Open Space District" shall include the uses set forth in Section 8-13C-6, table 8-13C-6B of this Article.
 - 3. **Restrictions For Permanent Open Space:** All open space lots in the "Park District" or "Natural Open Space District" shall be dedicated open space protected by either a deed

restriction or a conservation easement prepared subject to the regulations of Idaho Code Section 55-2105.

D. Design Standards. The provision, development and use of open space shall be in conformance with this Article and the Dry Creek Ranch Comprehensive Plan.

- 1. Consistency.** The design shall be consistent with the Dry Creek Ranch Comprehensive Plan.
- 2. Accessibility.** The dedicated open space shall be easily accessible to residents of Dry Creek Ranch as deemed appropriate by the Dry Creek Ranch Wildlife Management Plan.
- 3. Roadways.** The number of private or public roadways that divide the dedicated open space shall be limited to those necessary for proper traffic circulation, and the roadways shall not detract from the efficient use of the open space.
- 4. Structures.** The dedicated open space shall be free of all structures, except those that enhance the use of the dedicated open space including, but not limited to: structures related to outdoor recreational use; structures of historic and/or cultural significance, educational buildings; way-finding or informational signage; parking facilities; well houses; and utility infrastructure and facilities.
- 5. Stormwater Basins.** Stormwater retention or detention basins designed and approved as part of the stormwater management system for the property may be located within the dedicated open space.
- 6. Impervious Surface.** Please see Section 8-13C-5, table 8-13C-5D of this Article for maximum coverage for impervious surfaces per land use district.
- 7. Additional Standards for Open Space in the "Park District" or "Natural Open Space District"**
 - a. Width.** The dedicated open space shall be an appropriate width as determined by the Director and may include natural open space, a trail system, pathway network, greenways, parkways, pocket parks, recreational fields or pocket parks for active or passive recreational use or linear open spaces.
 - b. Neighboring Properties.** The dedicated open space shall be connected to open space areas on neighboring properties wherever possible including provisions for pedestrian walkways to create linked walkway or pathway systems.
 - c. Parking Spaces.** The dedicated open space shall have the required number of automobile and bicycle parking spaces as set forth in this Title.
 - 1.** Parking areas shall have safe and convenient access from an abutting public street or other rights-of-way or easements capable of accommodating pedestrian, bicycle, or vehicle traffic.
 - 2.** Required parking areas for outdoor amusement or recreation facilities may be included in calculating the amount of dedicated open space.
 - d. Alternative Open Space Plan.** Following recommendations from the DRC, the Director may approve, or recommend approval of, an alternative open space plan

when the overall design as proposed by the applicant, meets or exceeds the requirements of this Article and the Dry Creek Ranch Comprehensive Plan and shall not be detrimental to the public health, safety and welfare.

8-13C-10: Sign Requirements

Signs are allowed throughout the Dry Creek Ranch Planned Community and shall be in conformance with this Article, the Dry Creek Ranch Comprehensive Plan, and the provisions of 8-3-12 of this Title.

8-13C-11: On and Off-Street Parking

All parking shall meet Federal Americans with Disabilities Act (ADA) requirements and shall be in accordance with the provisions of 8-3-10 of this Title, except as follows:

A. Improvements

1. Except as otherwise provided in this Section, all off-street parking areas shall be improved as an approved pavement design and parking layout prepared by a licensed civil engineer in the State of Idaho. This standard shall not apply to temporary uses, the education center, or temporary construction offices.
2. When a bumper overhangs onto a landscape area, with properly designed ground coverage or lawn area, the parking stall dimensions may be reduced two feet (2') in length. If parking is adjacent to the sidewalk, the parking dimensions may also be reduced by two feet (2') in length if the width of the sidewalk is increased by two feet (2').
3. Parking spaces and access lanes shall be marked including handicapped symbols and signs per ADA and the Manual on Uniform Traffic Control Devices standards.
4. All lighting provided to illuminate a parking area shall comply with the lighting standards provided in 8-3-8 of this Title and the Dry Creek Ranch Comprehensive Plan.

B. Alternative Plan

1. Following recommendation from the DRC, the Director may approve, or recommend approval of, an alternative off-street parking and loading plan, when the overall design, as proposed by the applicant, meets or exceeds the intent and the requirements of this Article and shall not be detrimental to the public health, safety, and welfare.

C. Required Number of Off-Street Parking. See Section 8-3-10 of this Title. The required parking for clubs, lodges and social halls may be provided by on-street parking located within one-eighth (1/8) mile of the lot on which the club, lodge, or social hall is located.

8-13C-12: Standards for Energy and Water Conservation

- A. Development standards for energy and water conservation shall be consistent with the Dry Creek Ranch Design Guidelines, as located within the Dry Creek Ranch Comprehensive Plan.
- B. Energy Conservation: All new construction shall meet or exceed the requirements of the Energy Conservation Code as set forth in Title 7, Chapter 2 of this Code.
- C. Water Conservation: All landscaping shall comply with the water conservation requirements of Section 8-13C-17 of this Article.

8-13C-13: Grading Requirements

All grading shall be in conformance with this Article and Title 7, Chapter 2, "Building Codes," of this Code. Grading on slopes greater than fifteen percent (15%) shall comply with 8-2-30 of this Chapter.

8-13C-14: Design Standards for Structures and Site Improvements

The design standards for structures and site improvements shall be in conformance with this Article and the Dry Creek Ranch Comprehensive Plan.

8-13C-15: Frontage and Access

Development shall only be approved on a property that meets the minimum dimensional standards of Section 8-13C-5, table 8-13C-5D of this Article. Access shall be taken from the required frontage unless the property also has frontage on an alley, an approved private road, or an approved common driveway.

A. Alleys

1. Alleys may be permitted in all land use districts within the Dry Creek Ranch Planned Community.
2. The width of an alley shall typically be twenty feet (20') but shall not be less than sixteen feet (16') and shall be paved.
3. Alley intersections and sharp changes in alignment should be avoided, but where necessary, corners will be cut off sufficiently to permit safe vehicular movement.
4. Dead-end alleys shall be permitted, with written approval from the applicable fire district.
5. Alleys may count as required lot frontage in all residential zones.
6. Alleys may be public or private. If private, the alley must be owned and maintained by the Dry Creek Ranch Property Owners' Association.
7. An alley may intersect an alley.
8. An alley may curve and/or turn.

B. Common Driveways

1. Common driveways may be permitted in all land use districts within the Dry Creek Ranch Planned Community.
2. A three foot (3') wide landscaped area shall be constructed and maintained between the common driveway and lots which do not utilize the common driveway.
3. The street frontage requirement of each flag lot served by the common driveway may be reduced to five feet (5').
4. All individual private driveways, on lots that are contiguous to the common driveway, shall originate from the common driveway, not the public street, unless existing site conditions preclude this design. On arterials and collector street, all lots or parcels within the subdivision that abut the lot or parcels that have reduced street frontage and contain the common driveway shall take access from the common driveway to minimize access points, unless the parking for an existing dwelling cannot be reasonably reconfigured to take access from the common driveway.

5. A perpetual ingress/egress easement and maintenance agreement shall be recorded and provided with the final plat application. The easement shall be delineated on the final plat or recorded by a separate document.
6. The common driveway and all necessary support utilities shall be constructed concurrently with public improvements.

8-13C-16: Easements

Easements shall be provided for utilities, drainage and irrigation outside of public street rights-of-way as needed. The width of said easement will be determined by the land use and negotiated with the entity(ies) responsible for the construction and/or maintenance of the utility.

8-13C-17: Landscaping

A. General Requirements

1. All landscaping shall be in conformance with this Article, and the Dry Creek Ranch Comprehensive Plan.
2. All landscape areas shall be served with an automatic underground irrigation system with the exception of those lots in the hillside portions of Dry Creek Ranch. The irrigation system shall comply with the following design criteria:
 - a. The irrigation system shall be designed to provide appropriate spacing to avoid overspray onto impervious surfaces such as sidewalks, driveways, and parking areas.
 - b. Sprinkler heads irrigating lawn or other high-water-demand areas shall be circuited so that they are on a separate zone or zones from those irrigating trees, shrubs, or other reduced- water-demand areas.
3. All developed lots shall use low water and drought tolerant grasses and shrubs, including xeriscape where appropriate.
4. Non-potable water shall be the first source of irrigation water for common area irrigation where available.
5. All non-residential development shall be provided with a pressurized irrigation system.
6. Landscape irrigation systems shall be designed to meet the needs of the plants in the landscape.
7. Landscape irrigation systems shall be equipped with automatic controller with operational flexibility to adjust for seasonal water conservation and temporary water shortage restrictions.
8. Landscape street buffer requirements shall be as follows:
 - a. Abutting State Highway 55: Fifty feet (50');
 - b. Abutting minor and major arterials: Thirty feet (30');
 - c. Abutting collectors: Twenty feet (20').
9. No final plat shall be approved until such time as the applicant has provided a landscape plan to Ada County, for review and approval. In addition to those standards set forth in 8-3-7 of this Title, the landscape plan shall contain the following:

- a. The location, size, and type of all proposed landscaping materials (including specific references as to the species of plant materials), and verification that minimum landscaping requirements have been satisfied. All plants shall be shown at seventy five percent (75%) mature growth.
- b. Existing vegetation to be saved shall be identified on the landscaping plan along with protection measures to be used during grading and construction.

8-13C-18: Amendments

Amendments to this Article shall be in accordance with 8-6-33 and/or 8-6-34 of this Title as applicable.

Article D: Hidden Springs Planned Community

SECTION:

8-13D-1:	SHORT TITLE
8-13D-2:	DEFINITIONS
8-13D-3:	PURPOSE AND INTENT
8-13D-4:	APPLICABILITY
8-13D-5:	PERMITTED RESIDENTIAL AND NONRESIDENTIAL USES
8-13D-6:	DEVELOPMENT AND DESIGN GUIDELINES
8-13D-7:	ADMINISTRATIVE / OTHER REGULATIONS
8-13D-8:	AMENDMENTS
8-13D-9:	VISION STATEMENT
8-13D-10:	DESIGN REQUIREMENTS

8-13D-1: Short Title

This Article shall be known, cited, and referred to as the HIDDEN SPRINGS PLANNED COMMUNITY ZONING ORDINANCE.

8-13D-2: Definitions

The following definitions shall be used in the interpretation and construction of the Hidden Springs Planned Community Zoning Ordinance; words used in the present tense include the future; the singular number shall include the plural and the plural the singular; the word "building" shall include the word "structure," the word "used" shall include "arranged," "designed," "constructed," "altered," "converted," "rented," "leased," or "intended to be used," and the word "shall" is mandatory and not directory. Any term used in this Article not defined herein, shall have the meaning set forth in Chapter 10 of this Title. Any term not defined herein or in Chapter 10 of this Title, shall have its plain and ordinary meaning.

ACCESSORY APARTMENT OR GUEST HOUSE: A fully functional living unit including a kitchen, bathroom, etc., which may be rented for income, provide residence in barter for personal services, or accommodate a family member who wishes to live in a separate structure on the same lot.

ACCESSORY USE OR STRUCTURE: A use, building or structure that is customarily incidental and subordinate to the principal permitted use or approved administrative permit use, and is conducted or located upon the same lot.

ADMINISTRATIVE: Pertaining to the performance of executive duties or directing the execution, application or conduct of duties of an office, business, or institution.

ADMINISTRATIVE PERMIT: A permit issued by the Director for administrative permit uses specified in subsection 8-13D-7 of this Article.

ADMINISTRATIVE PERMIT USE: A use or occupancy of a structure, or a use of land, permitted only upon issuance of an administrative permit and subject to the limitations and conditions specified therein.

AFFECTED PERSON: Same meaning as is ascribed to such term by Idaho Code Section 67-6521, as amended from time to time.

AGRICULTURAL COMMERCIAL OVERLAY: Those areas depicted upon the Hidden Springs zoning map where agricultural commercial uses, as detailed in subsection 8-13D-5C2 of this Article, are permitted.

AGRICULTURAL COMMERCIAL USE: Those principally permitted and administrative permit agricultural commercial uses described in subsection 8-13D-5C2 of this Article.

AGRICULTURAL CONSERVATION AREA: That area depicted upon the Hidden Springs master land use plan map.

AGRICULTURAL OUTBUILDINGS: Any building or structure which is used for storage or shelter of farming materials, equipment, supplies, products, or animals.

AGRICULTURAL SERVICE ESTABLISHMENT: An establishment primarily engaged in performing animal husbandry or horticultural services, including agricultural milling and processing, harvesting, agricultural land preparation, irrigation and farm equipment sales and service, veterinary services, boarding or training of horses, and agricultural produce stands.

AGRICULTURE AND AGRICULTURAL OPERATIONS: The growing of cultivated crops, fruit trees, berry bushes, grazing, pasturage, raising of domestic livestock, horticulture, floriculture, viticulture, and the necessary accessory uses for packing, treating, or storing of produce. The operation of any accessory uses to agricultural purposes shall not include a commercial packing facility, feedlot or stockyard, the commercial feeding of garbage or offal to swine or other animals, a slaughterhouse, the operation of a fertilizer works, nor plants for the reduction of animal matter.

ALLEY: A public or private way affording only secondary means of access to abutting property at the back or side of a property.

ANIMAL CLINIC OR VETERINARY OFFICE: Any building or portion thereof designed or used for the care or treatment of cats, dogs, or other animals in which veterinary services including clipping, bathing, boarding, and other services are rendered to dogs, cats and other small animals and domestic pets. Small animal hospital or veterinary hospital is the same as a small animal or veterinary clinic, the distinction being that in the case of an animal hospital there is a licensed veterinarian on the premises.

APPLICANT: Any owner or person with a proprietary interest in real property within the boundaries of the Hidden Springs Planned Community who submits any application under this Article.

ARTICLE: This Hidden Springs Planned Community Zoning Ordinance.

BASEMENT: That portion of a building between the floor and ceiling which is partly below and partly above grade, but so located that the vertical distance from grade to the floor below is less than the vertical distance from grade to ceiling. A basement, when used for dwelling purposes,

shall be counted as a story for purposes of height measurement, and as a half-story for purposes of side yard determination.

BARN: Any structure used to house domestic livestock.

BED AND BREAKFAST ESTABLISHMENT: A building where meals and/or lodging are provided for compensation to three (3) or more persons, but not more than twelve (12) persons, and who are not members of the householder's family.

BOARD: The Board of County Commissioners of Ada County, Idaho.

BOARD CHAIRMAN: Chairman of the Ada County Board of County Commissioners.

BOARDER: See definition of Roomers and Boarders.

BUILDING: Any structure securely affixed to the land, and having a roof supported by columns or walls, and entirely separated on all sides from any other structure by space or by walls in which there are no communicating doors, windows, or openings, which is designed or intended for the shelter, enclosure or protection of persons, animals, chattels, or property of any kind.

Building Coverage: The total allowable percentage of a lot that may be covered by a building or buildings.

Building Envelope: Areas of land within which all site disturbances (construction of buildings, sitework, etc.) shall be conducted.

Building Height: The vertical distance from the average contact ground level at the front wall of the building to the highest point of the coping of a flat roof or to the deck line of a mansard roof, or to the mean height level between eaves and ridge for gable, hip, or gambrel roofs.

Building Massing: The three-dimensional (3-D) bulk and scale of a building.

Building Site: The ground area of a building or group of buildings together with all open spaces as required by this Article.

CAFE: See definition of Restaurant.

CLINIC: A building, other than a hospital, used by one or more licensed physicians, dentists, or licensed health care professionals for the purpose of receiving and treating patients.

CLUB, LODGE OR SOCIAL HALL: The social use of a building or of any premises by a profit or nonprofit association.

CLUSTER DEVELOPMENT OR CLUSTERING: Clustering of buildings, garages, and drives to minimize site disruption and/or maximize open space. Clustering techniques may include, but are not limited to, shared driveways, key or flag lots, and cul-de-sacs.

COMMERCIAL STABLE AND RIDING SCHOOLS: For profit stables and horse-riding schools.

COMMERCIAL USE: The purchase, sale or other transaction involving the handling or disposition of any article, substance or commodity for livelihood or profit, or the ownership or management of office buildings, offices, recreational or amusement enterprises or the maintenance and use of offices by professions and trades rendering services including all advertising, events and other activities associated with such commercial use.

COMMISSION: The Planning and Zoning Commission of Ada County, Idaho.

COMMON AREAS: Those areas which are used, owned, or managed jointly by a group of residences, businesses, or association(s). Common areas include, but are not limited to, open spaces, parking areas, pathways, and parks.

COMMUNITY CENTER: That portion of Hidden Springs more particularly described in subsection 8-13C-5C3 of this Article which is intended to include the recreational and community service uses that will form the social hub of the community.

COMMUNITY EVENT: Any temporary event within Hidden Springs including, without limitation, picnics, barbecues, holiday events and parties, dances, concerts, bike rides and races, foot races and walks, auctions and sales, bazaars, sales or marketing events and harvest festivals and events.

COMMUNITY EVENT, PRIVATE: Any event for or by Hidden Springs residents and/or owners and their respective guests, in which participation is by invitation only and not by public advertisements; provided however, all real estate sales and marketing events and activities including, without limitation, model homes being advertised and open to the general public and real estate "open houses" advertised to the general public, normal and customary educational, religious and other activities conducted at schools and churches and commercial uses and activities on the premises of commercial businesses advertised to the general public shall be classified as private community events and not as public community events.

COMMUNITY EVENT, PUBLIC: Any event for the public at large which is advertised to the general public other than private community events described above.

CONDOMINIUM: A condominium within Hidden Springs shall have the same meaning as set forth in Idaho Code Section 55-101B, as the same is amended and modified from time to time, and as further defined and described in the Idaho Condominium Property Act.

CONVALESCENT HOME: A home, place or institution licensed by the Idaho State Department of Health and Welfare as a nursing home which operates or maintains facilities providing convalescence or chronic care or both for a period in excess of twenty-four (24) consecutive hours for three (3) or more patients not related by blood or marriage to the operator, said patients who by reason of illness or infirmity are unable to properly care for themselves.

CORRAL: See definition of Paddock, Pasture or Corral.

COUNTY: Ada County, Idaho.

DEDICATION: The setting apart of land or interests in land for public use, charitable, religious, or educational purposes, including the granting of any and all conservation easements.

DIRECTOR: The Ada County Director of Development Services or an authorized representative thereof.

DOMESTIC LIVESTOCK: Horses, cattle, dairy animals, sheep, goats, and other grazing animals, excluding swine. It shall also include rabbits and domestic birds, excluding chickens. Domestic livestock also excludes such birds as are caged and housed inside the dwelling and are not raised for commercial use.

DRAINAGE: The removal of excess waters from land by means of surface or subsurface conduits.

DRIVE-IN ESTABLISHMENT: An establishment, other than a service station or truck stop, which is designed to encourage or permit customers to receive services, obtain goods, or be

entertained, while remaining in their motor vehicles.

DUPLEX: A building of no more than two (2) stories in height designed for or used by two (2) families or housekeeping units.

DWELLING: Any building or portion thereof designed or used as the residence or as separate living quarters of one or more persons, but not including a tent, trailer or a room in a hotel, motel, or bed and breakfast establishment.

DWELLING, MULTI FAMILY: A building or portion thereof designed for or used by three (3) or more families or housekeeping units.

DWELLING SINGLE-FAMILY: A building designed for or used exclusively for residence purposes by one family or housekeeping unit.

EASEMENT: A right to use, falling short of ownership, and usually for a certain stated purpose.

EMPLOYMENT CENTERS: The contemplated Hidden Springs employment facilities more particularly described in subsection 8-13D-5C6 of this Article.

ENGINEER, COUNTY: That licensed professional engineer appointed by the Board.

EQUESTRIAN CENTER: The Hidden Springs equestrian facility more particularly described in subsection 8-13D-5C4 of this Article.

ESSENTIAL PUBLIC SERVICES: As provided in the Ada County Comprehensive Plan these shall include, but are not limited to, water systems, public safety services, wastewater collection and treatment systems, storm water detention and drainage facilities and structures, public schools, streets, roads, and open space.

FAR: Floor to Area Ratio.

FEMA: Federal Emergency Management Agency.

FAMILY: A person living alone, or two (2) or more persons living together as a single housekeeping unit, in a dwelling unit, as distinguished from a group occupying a bed and breakfast establishment, boarding house, lodging house, motel or hotel.

FAMILY DAY CARE HOME: "Family day care home" shall have the same meaning as ascribed to it in Idaho Code Section 39-1102, as amended from time to time.

FARM/RANCH LOTS: Lots as more particularly described in subsection 8-13C-5B1 of this Article.

FLOOD PLAIN: In this Article, flood plain refers to the 100-year flood plain as defined by the Federal Emergency Management Act ("FEMA"), and as otherwise defined in this Title.

FREESTANDING GARAGE OR STORAGE STRUCTURE: An enclosed building designed for private storage or parking of noncommercial vehicles.

GRADE: The elevation of the finished surface of the ground adjacent to the midpoint of any exterior wall of a building or structure.

GRAIN STORAGE FACILITY: Any facility used to store any harvested crop.

GREENHOUSE: A building whose roof and sides are made largely of transparent or translucent material and in which the temperature and humidity can be regulated for the cultivation of plants,

for private use or public sale.

GROUP DAY CARE FACILITY: Group day care facility shall have the same meaning as ascribed to it in Idaho Code Section 39-1102, as amended from time to time.

GUEST HOUSE: See definition of Accessory Apartment.

HEALTH CLUB FACILITY: Any facility providing exercise services to its customers.

HIDDEN SPRINGS DESIGN REVIEW COMMITTEE OR DESIGN REVIEW COMMITTEE: That certain design review committee (DRC) referenced in the design guidelines approved as a part of the Hidden Springs Specific Plan.

HIDDEN SPRINGS GREENWAY: That area adjacent to Dry Creek, which is dedicated to, and for the use of the public.

HIDDEN SPRINGS HOMEOWNERS' ASSOCIATION: The Idaho nonprofit or profit corporation whose members or stockholders consist exclusively of property owners within Hidden Springs and whose purpose is to provide for the administration and governance of the affairs of Hidden Springs.

HIDDEN SPRINGS MASTER LAND USE PLAN: See definition of Master Land Use Plan.

HIDDEN SPRINGS OR HIDDEN SPRINGS PLANNED COMMUNITY: That area depicted on the Hidden Springs Zoning Map, as amended from time to time.

HIDDEN SPRINGS SPECIFIC PLAN: The Hidden Springs Specific Plan consists of the goals, objectives, policies, maps (such as sketch plan maps), development standards/administration provisions and other components of the Hidden Springs application for a planned rural community which have been adopted by the Board, and which shall serve as a guide for development. A copy of the approved Hidden Springs Specific Plan is on file with the Ada County Development Services Department.

HIDDEN SPRINGS ZONING MAP OR ZONING MAP: Map depicting the Hidden Springs Planned Community boundary and the zoning districts and overlay districts within this boundary.

HOME OCCUPATION: An accessory use to a dwelling unit for gainful employment involving the manufacture, provision, or sale of goods and/or services.

KENNEL: Any facility used for the boarding or training of domestic animals.

LARGE LOTS: Lots as more particularly described in subsection 8-13D-5B3 of this Article.

LODGE: See definition of Club, Lodge or Social Hall.

LOT: A parcel of land which meets any of the lot requirements of this Article for use, design and dimensional standards and is for transfer of ownership or development, including, but not limited to, condominiums. Such parcel of land may be developed if it complies with all applicable provisions of this Article.

LOT, DEPTH: The mean horizontal distance between the front and the rear lot lines. Where the lot is irregular and the lot lines converge, the rear lot line shall be deemed to be a line at a point where the side lot lines are not less than ten feet (10') apart.

LOT LINE, FRONT: The line separating the lot from the principal street on which it fronts. **Lot Line, Rear:** The lot line opposite and most distant from the front lot line.

LOT LINE, SIDE: Any lot line other than a front or rear lot line. A side lot line separating a lot from a street is also called a side street or flanking street lot line. A side lot line separating a lot from another lot, or lots is also called an interior side lot line.

LOT, LINES: The property lines bounding the lot.

LOT, WIDTH: The mean width of the lot measured at right angles to its depth, provided however, that the minimum lot width required in each district shall be measured at a distance from the front line equal to the required least depth of the front yard.

MASTER DEVELOPER: Grossman Family Properties, or its assigns.

MASTER LAND USE PLAN: The Plan contained within the Hidden Springs Specific Plan which depicts residential uses, nonresidential uses, and nonresidential overlays.

MEETING HALL: See definition of Community Center.

MODEL HOME: A single-family dwelling or a unit within a duplex or multi-family dwelling which is shown to prospective buyers of lots or dwellings for the purpose of promoting the retail sale of lots or dwellings within Hidden Springs.

NURSERY: Land and/or greenhouses used to raise flowers, shrubs, and plants, for private use or public sale on site. The combined floor area for all structures used for retail sales may not exceed two thousand (2,000) square feet.

OPEN SPACE: The area depicted on the Hidden Springs Master Land Use Plan as described in subsection 8-13D-5C5 of this Article which shall remain open and free of development other than wildlife habitat improvements, trails, other recreational improvements, and agricultural uses; provided however, that changes in the boundaries of the open space are acceptable as long as the total acreage of the open space does not decrease below eight hundred ten (810) acres.

PADDOCK, PASTURE OR CORRAL: A small enclosure near a stable where horses are exercised.

PARCEL: A contiguous unit of land owned by, or recorded as, the property of the same person or persons.

PARCEL BOUNDARY ADJUSTMENT: The division for conveyance of a lot or parcel of land for the purpose of adjusting the boundary between parcels where: the dimensions of the parcels are not reduced below the minimum dimensional standards for its applicable zone; there is no increase in the original number of parcels; and, no easements, public streets, private streets or publicly dedicated areas are affected. A parcel boundary adjustment shall not move or affect the location of any platted lot line.

PARK AND RIDE FACILITY: Facility designed to allow Hidden Springs residents to park their vehicles in order to carpool or ride in a van or bus to various locations throughout the Treasure Valley, usually, however, to work.

PARKING AREA (PRIVATE): An open area, other than a street or public way, designed, arranged, and made available for the storage of private passenger automobiles of occupants of the building or buildings for which the parking area is developed and is necessary and accessory.

PARKING AREA OR LOT (PUBLIC): An open area, other than a street or public way, to be used for the storage, for limited periods of time, of operable passenger automobiles and commercial

vehicles, and available to the public, whether for compensation, free, or as an accommodation to clients or customers.

PARKING SPACE: A usable space within a public or private parking area or a building of not less than one hundred eighty (180) square feet, either within a structure or in the open for the parking of motor vehicles.

PARKING STRUCTURE: A structure designed and used for vehicular parking and located near the building which it serves.

PASTURE: See definition of Paddock, Pasture or Corral.

PERSONAL SERVICE: Retail oriented towards personal services.

PHASED DEVELOPMENT: Each individual phase of development as such phase is submitted for preliminary plat and/or final plat approval.

PLAT, FINAL: The drawing, map or plan of a subdivision or other tract of land, or a replatting of such, including certifications, descriptions and approvals and containing those elements and requirements set forth in subsection 8-13D-6C2d of this Article.

PLAT, PRELIMINARY: A preliminary plat of a subdivision containing the elements and requirements set forth in subsection 8-13D-7C2a through 8-13D-7C2c of this Article.

PRINCIPAL PERMITTED USE: The main use of land or a building as distinguished from a subordinate or accessory use.

PUBLIC AND COMMUNITY SUPPORT USES: Public and community support uses shall include, without limitation, community centers, post office facilities, churches, schools, public structures, recreational and health club facilities and day care facilities.

PUBLIC RIGHT OF WAY: A right of way open to the public.

PUBLIC STRUCTURE: Any structure designed for the benefit and use of the public.

PUBLIC UTILITY: Any person, entity, or municipal department, duly authorized to furnish to the public under public regulation, electricity, gas, steam, telephone, transportation, water, cable television or other services.

PUBLIC UTILITY STRUCTURE: Any structure utilized by a public utility.

RANCH LOTS: See definition of Farm/Ranch Lots.

RECREATION FACILITY: A commercial or nonprofit swimming pool, park, fitness center, public gathering place or other use designed for amusement or recreation.

REGULAR LOTS: Lots as more particularly described in subsection 8-13D-5B4 of this Article.

RESTAURANT: Any building, or part thereof, other than a bed and breakfast establishment, where meals and/or beverages are provided for compensation, including, among others, such uses as cafe, cafeteria, coffee shop, lunchroom, tearoom, soda shop and dining room.

RETAIL STORE: A store which sells commodities in small quantities to consumers, such as a general store, hardware store, bookstore, etc.

ROAD: See definition of Street.

ROADSIDE STAND: A booth or stall temporarily located on a farm or other lot from which

produce, and farm products are sold to the general public.

ROOMERS OR BOARDERS: Persons paying remuneration for eating and sleeping within a residence.

RURAL LOTS: Lots as more particularly described in subsection 8-13D-5B2 of this Article.

SCHOOL, PUBLIC OR PRIVATE: An institution of learning either publicly or privately supported.

SERVICE STATION: A filling station or business enterprise using the premises primarily to sell and supply motor fuel and lubricating oils and grease to on premises trade, including the sale of tires, batteries, automotive accessories, together with other related services, including minor motor vehicle repair. May also include convenience retail use, not to include a drive-in establishment.

SETBACK: The space on a lot required to be left open, either by the front, side, and rear yard requirements of this Article, or by the delineation on a recorded plat map, or recorded covenants.

SHARED DRIVEWAYS: A twenty-foot (20') wide private shared access that serves no less than two (2) nor more than four (4) single- family parcels or lots.

SIGN: Any structure or natural object, such as a tree, rock, bush and the ground itself, or part thereof or device attached thereto or painted or represented thereon, which shall be used to attract attention to any object, product, place, activity, person, institution, organization or business or which shall display or include any letter, word, model, banner, flag, pennant, insignia, device or representation used as, or which is in the nature of an announcement, direction or advertisement. For the purpose of this definition, the word "sign" does not include the flag, pennant or insignia of any nation, state, city or other political unit, or any political, educational, charitable, philanthropic, civic, professional, religious or like campaign, drive, movement or event.

SITE DISTURBANCE: Any change in the natural character of Hidden Springs as it exists at the date of adoption of this Article, such as occurs during construction, landscaping, etc.

SKETCH PLAN: A less detailed development elaboration than a preliminary plat used in conjunction with a preapplication conference as described in subsection 8-13D-6B of this Article. A sketch plan may include maps, charts, goals, objectives, policies, and other information.

SLOPE: The number of feet rise or fall per one hundred feet (100') horizontal distance, divided by one hundred (100) and expressed as a percentage.

SOCIAL HALL: See definition of Club, Lodge or Social Hall.

STABLE: A structure used or designed for the keeping, boarding, riding and/or care of horses.

STORAGE FACILITY OR STORAGE STRUCTURE: Any storage facility or structure used for the storage or parking (long term or short term) of, without limitation, vehicles, agricultural and recreational vehicles, boats and other watercraft, snowmobiles, equipment, and machinery.

STORY: That portion of a building included between the surface of any floor and the surface of the floor above it, or if there is no floor above, then the space between the floor and the ceiling next above it. Any portion of a story exceeding fourteen feet (14') in height shall be considered as an additional story for each fourteen feet (14') or fraction thereof. If the finished floor level directly above a basement or cellar is more than six feet (6') above grade, such basement or cellar shall be considered a story.

STREET: A public right of way officially accepted by the Ada County Highway District or other appropriate government agency. The term "street" shall include "avenue," "drive," "circle," "road," "parkway," "boulevard," "highway," "thoroughfare," or any other similar term.

STREET, CUL-DE-SAC: A dead end street provided with a turnaround at its terminus. **Street, Island:** A block in a subdivision located in the street.

STREET, MAJOR: A major street is a thoroughfare that is or will be used for fast and/or heavy traffic, when designated as such by the Ada County Highway District or Director.

STREET, PRIVATE: Any parcel of land used for a street, road, lane or way or similar designation, which is not maintained by, or dedicated to the Ada County highway district or other appropriate government agency and used exclusively for the benefit of private individuals or associations.

STRUCTURAL ALTERATION: Any change in the structural members of a building, such as walls, columns, beams, or girders.

STRUCTURE: Anything constructed, the use of which requires permanent location on the ground, or attachment to something having a permanent location on the ground, provided fences not exceeding forty-eight inches (48") in height shall not be deemed a structure.

SUBDIVISION: A. Lot or Parcel Division: The division of a lot or parcel of land into two (2) or more sublots or subparcels for the purpose of transfer of ownership, or for building development.

A. Exceptions: The following divisions of land shall not constitute a subdivision:

1. Parcel boundary adjustment as provided in this Article.
2. A court decree dividing a lot or parcel of land into separate, distinct ownership in the distribution of property provided that such lot or parcel provides for proper access to streets as enunciated in this Title.
3. The division of land as a result of condemnation, as defined and allowed in the Idaho Code.
4. The expansion or acquisition of street rights of way by a public agency, in compliance with an adopted general development plan.
5. A conveyance of raw land as contemplated in subsection 8-13D-4E of this Article.

SURVEYOR, COUNTY: That licensed professional land surveyor appointed by the Board to check plats and monuments for compliance with platting and surveying laws, provide for surveying monument records and make such surveys, descriptions, maps and plats as ordered by the Board.

SWIMMING POOL: A receptacle for water or an artificial pool of water having a depth at any point of more than two feet (2') intended for the purpose of immersion or partial immersion therein of persons.

TAVERN OR LOUNGE: A building where alcoholic beverages are sold for consumption on the premises, not including restaurants.

TEMPORARY LIVING QUARTERS: See definition of Accessory Apartment or Guesthouse.

TEMPORARY SALES OFFICE: That particular sales office(s), wherever located, used primarily for the wholesale or retail sales of property or lots located within Hidden Springs.

TOT LOTS: Any playground facility designed for use by children five (5) years of age and younger.

TOWNHOME LOTS: Lots as more particularly described in subsection 8-13D-5B6 of this Article.

UNPLATTED PROPERTY USE: Those principally permitted and administrative permit uses described in subsection 8-13D-5C7 of this Article.

USE: The purpose for which land or a building thereon is designated, arranged, or intended, or for which it is occupied or maintained, let, or leased.

UTILITIES: Facilities for service to and used by the public.

VEHICLE: Every device in, upon or by which any person or property is or may be transported or drawn upon a public highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks.

VILLAGE COMMERCIAL OVERLAY: Those areas depicted upon the Hidden Springs zoning map where village commercial uses, as detailed in subsection 8-13D-5C1 of this Article, are permitted.

VILLAGE COMMERCIAL USE: Those principally permitted and administrative permit use village commercial uses described in subsection 8-13D-5C1 of this Article.

VILLAGE HOME LOTS: Lots as more particularly described in subsection 8-13D-5B5 of this Article.

WASTEWATER COLLECTION AND TREATMENT SYSTEM: An installation which collects and treats domestic wastewater and utilizes at a minimum subsurface disposal or effluent and which conforms to the rules, regulations and adopted plans of the health authority.

WATER SUPPLY SYSTEM: An approved water supply system which provides a domestic water supply meeting local, state, and federal drinking water standards and fire flow requirements.

WILDLIFE AREA: An area specifically designated for wildlife and big game winter range.

8-13D-3: Purpose and Intent

Generally, this Article is enacted with the purpose and intent of promoting, on behalf of the Hidden Springs planned community, public health, safety, comfort and general welfare; to conserve and control the population density and to facilitate adequate and economical provisions for public improvements, all in accordance with the Hidden Springs specific plan for the desirable future physical development of Hidden Springs; and to provide a method of administration, all as authorized by the Ada County comprehensive plan, the Ada County Zoning Ordinance, the state legislature, and the constitution of the state.

Specifically, the purpose and intent of this Article is to set forth the development standards and administrative procedures for implementing the land use policies of the Hidden Springs specific plan. Furthermore, it is the purpose of this Article to:

- A. Provide for the design of quality, mixed use development within the Hidden Springs planned community;
- B. Provide distinctive, efficient, and effective regulations to guide development in Hidden Springs;

- C. Encourage flexibility and creativity in Hidden Springs' design and development in order to respond to market demand and site-specific conditions while enhancing the economic viability and quality of Hidden Springs;
- D. Encourage creative and innovative land planning and design processes throughout Hidden Springs which are sensitive to existing environmental conditions;
- E. Provide for the integration and balance of a variety of uses in Hidden Springs;
- F. Establish responsibility for the development of essential public services throughout Hidden Springs and the specific mechanisms by which they will be provided, created, and financed;
- G. Provide for phased and orderly development of Hidden Springs utilizing consistent criteria;
- H. Provide flexibility for reconfiguration of residential and nonresidential uses and/or population density as long as these reconfigurations do not conflict with the overall intent of the Hidden Springs specific plan and this Article;
- I. Establish the permitted uses and minimum standards for each category of residential and nonresidential use;
- J. Identify and define standards for uses which may occur in each of the land use categories;
- K. Establish a review and approval process for the development of Hidden Springs.

8-13D-4: Applicability

This Article governs the development and administration of the Hidden Springs planned community, as shown on the Hidden Springs zoning map and the Hidden Springs master land use plan. Where issues arise that are not covered under this Article, or where this Article specifically references other sections of this code, such other sections of this code shall apply and govern. This Article shall not apply to any land not incorporated within the Hidden Springs planned community boundary.

- A. Scope and Content.** This Article shall consist of the text hereof and the Hidden Springs zoning map, identified herewith, which zoning map is now filed in the office of the recorder of Ada County and in the Ada County development services department. For the purpose of administration and enforcement, the zoning map in the Ada County development services department shall be considered as an official zoning map. Any and all amendments to the Hidden Springs zoning map shall be made concurrently on the zoning map in the Ada County development services department and made concurrently with the amendment being recorded with the Ada County recorder.

The approved Hidden Springs specific plan, as it may be amended, is now filed in the office of the Ada County development services department.

- B. Flexibility.** The development standards and design guidelines contained in the Hidden Springs specific plan, including, without limitation, the master land use plan, and this Article are intended to depict the general nature and relative intensity of residential and nonresidential development in Hidden Springs, while allowing sufficient flexibility at the time of detailed planning and platting so that the overall goals and policies and purpose and intent of the Hidden Springs planned community can be achieved. The configuration and densities of development parcels and phases may be altered from those shown on the

Hidden Springs master land use plan to accommodate market, financing, site and other conditions and revisions to the project's implementation strategy providing that the reconfiguration does not conflict with the zoning map, specific restrictions contained within subsection 8-13D-5E of this Article, or the general intent of the Hidden Springs specific plan and this Article. Residential uses and density may also be transferred between development parcels as depicted on the master land use plan providing this transfer does not conflict with the zoning map, specific restrictions contained within subsection 8-13D-5E of this Article, or the general intent of the Hidden Springs specific plan and this Article. The responsibility for such interpretation shall rest with the Director.

- C. Conflict of Laws.** In their interpretation and application, the provisions of this Article shall be exclusive requirements under this code for development within Hidden Springs.
- D. Codification.** This Article shall be codified in this code.
- E. Phased Development.** This Article is intended to regulate all development and improvement of Hidden Springs but is not intended to regulate the bulk sale and conveyance of raw land to subdevelopers. Subdevelopers intending to develop land within Hidden Springs, or any portion thereof, are subject to the Hidden Springs specific plan and this Article.
- F. Changes To Hidden Springs Property Boundary.** From time to time, the Hidden Springs property boundary may change due to additions of property into, or transfer of property out of, the Hidden Springs planned community. To the extent any maps or figures contained within this Article contain an outline of the boundary of the Hidden Springs planned community, such depiction shall be for illustrative purposes only.
- G.** Since the adoption of the maps and acreages set forth in this Article, the County has approved the following applications adjusting the boundaries of the Hidden Springs planned community:
 - 1. File no. 05-17-PBA (Forsythe property boundary adjustment).
 - 2. Project no. 200700159-PBA (Rebecca Gillet property boundary adjustment).
 - 3. Project no. 20070208-2C-ZOA-PBA (removing 23 acres from Hidden Springs planned community boundary and adding the acres to the Cartwright Ranch planned community).

Notes

- 1. See Section 8-13D-12 of this Article.

8-13D-5: Permitted Residential and Nonresidential Uses

A. Zoning

- 1. Zoning Districts.** For purposes of this Article, the Hidden Springs Planned Community is hereby divided into the following zoning districts and overlay districts as shown on the Zoning Map:

Zoning Districts		
	HS-R	Hidden Springs Residential Zone
	HS-V	Hidden Springs Village Zone
Overlay Districts		
	HS-VC	Hidden Springs Village Commercial
	HS-AC	Hidden Springs Agricultural Commercial
	HS-EC	Hidden Springs Employment Center

2. Allowed Uses Within Zoning Districts. Within the zoning districts and overlay districts described above, the following uses shall be allowed:

a. Hidden Springs Residential Zone (HS-R) Allowed Uses

(1)	Farm/ranch lots		(See subsection 8-13D-5B1)
(2)	Rural lots		(See subsection 8-13D-5B2)
(3)	Large lots		(See subsection 8-13D-5B3)
(4)	Regular lots		(See subsection 8-13D-5B4)
(5)	Village home lots		(See subsection 8-13D-5B5)
(6)	Town home lots		(See subsection 8-13D-5B6)
(7)	Equestrian center		(See subsection 8-13D-5C4)
(8)	Open space/parks		(See subsection 8-13D-5C5)
(9)	Unplatted property use		(See subsection 8-13D-5C7)
(10)	Community event, private and public		(See subsection 8-13D-7G)
(11)	Essential public services		(See subsection 8-13D-2)

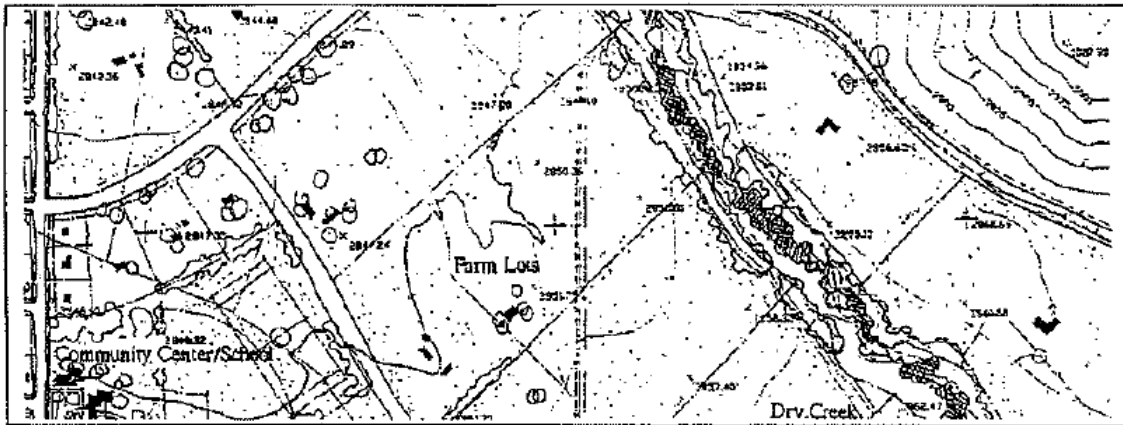
b. Hidden Springs Village Zone (HS-V) Allowed Uses

(1)	Regular lots		(See subsection 8-13D-5B4)
(2)	Village home lots		(See subsection 8-13D-5B5)
(3)	Town home lots		(See subsection 8-13D-5B6)
(4)	Community center/school		(See subsection 8-13D-5C3)
(5)	Open space/parks		(See subsection 8-13D-5C5)
(6)	Unplatted property use		(See subsection 8-13D-5C7)

(7)	Community event, private and public	(See subsection 8-13D-7G)
(8)	Essential public services	(See subsection 8-13D-2)

- c. **Hidden Springs Village Commercial Overlay (HS-VC) Allowed Uses** Those uses allowed pursuant to subsection 8-13D-5C1 of this Section.
 - d. **Hidden Springs Agricultural Commercial Overlay (HS-AC) Allowed Uses** Those uses allowed pursuant to subsection 8-13D-5C2 of this Section.
 - e. **Hidden Springs Employment Center Overlay (HS-EC) Allowed Uses** Those uses allowed pursuant to subsection 8-13D-5C6 of this Section and approved pursuant to the requirements of subsection 8-13D-7G of this Article.
3. **Purpose of Zoning Map and Master Land Use Plan.** While the Zoning Map depicts the zoning districts' and overlay districts' boundaries within Hidden Springs, the Master Land Use Plan contained within the Specific Plan depicts the general nature and relative intensity of residential and nonresidential development and uses within these zoning districts and overlay districts subject to the appropriate flexibility and other standards discussed in subsection 8-13D-4B and elsewhere in this Article.
- B. **Residential Uses.** The following is a detailed description of all residential lots, including their principal permitted uses, accessory uses, administrative permit uses, prohibited uses, characteristics, standards, and special conditions.

1. Farm/Ranch Lots



Plan view illustrative of farm/ranch lots.

- a. **Description.** Farm/ranch lots are "agricultural style" lots adjacent to the agricultural operations or open space in the most visible portions of the Dry Creek Valley and adjoining hillsides. The lots are intended to provide unique residential experiences in conjunction with carefully controlled agricultural operations.
- b. **Principal Permitted Uses**
Agricultural operations (farming, grazing and/or gardening) as defined herein.
Family daycare home.
Parks.

School.

Single-family dwellings of a permanent nature and their accessory structures.

Temporary sales offices and model homes.

c. Accessory Uses

Accessory apartment (maximum 1 unit). Agricultural outbuildings.

Freestanding garages or storage structures. Home occupations.

Roomers or boarders with a resident family (not more than 2). Swimming pools and tennis courts.

d. Uses Requiring an Administrative Permit

Bed and breakfast establishments.

Clubs, lodges, and social halls.

Nurseries, grain storage facilities and related agricultural structures.

Public structures. Public utility structures.

Roadside stands that sell agricultural products produced within the project.

Shop for repair of personal machinery, equipment and vehicles used for agricultural purposes.

e. Prohibited Uses

All uses not specifically identified.

f. Lot Characteristics

1. Dimensions

Minimum lot size: one and a half (1.5) acres.

Minimum lot depth: one hundred fifty feet (150').

Minimum lot width: one hundred fifty feet (150').

Minimum lot frontage: one hundred feet (100'), (fifty feet 50'] for flag lots).

2. Setbacks

Front yard setback: thirty feet (30').

Side yard setback: three feet (3') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be twenty-three feet (23').

Rear yard setback: thirty feet (30') or ten feet (10') for garage.

3. Buildings

Maximum building height: thirty-five feet (35').

Maximum building coverage: fifteen percent (15%) of lot.

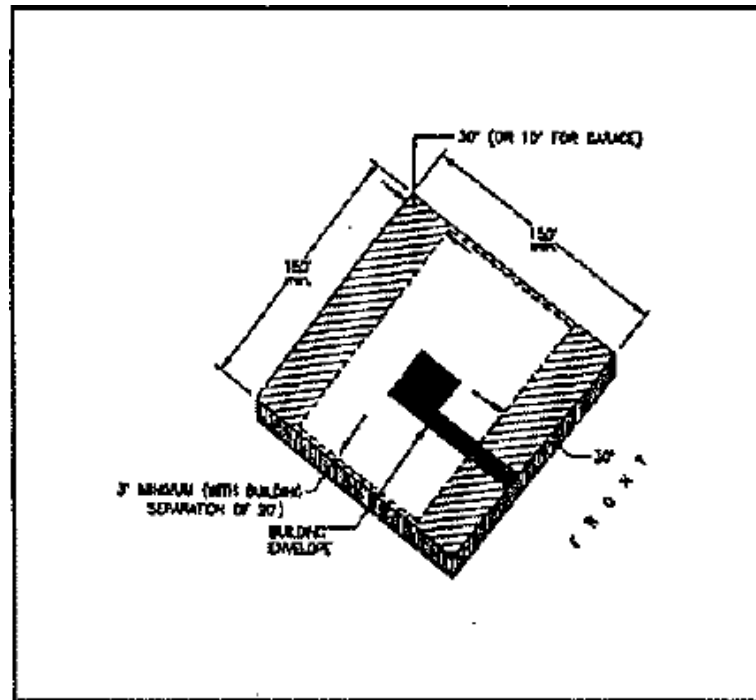
g. Special Conditions

1. Building Envelopes. Shall be designated on every farm/ranch lot. All site disturbance (construction of buildings, site work, etc.) shall be contained within this envelope.

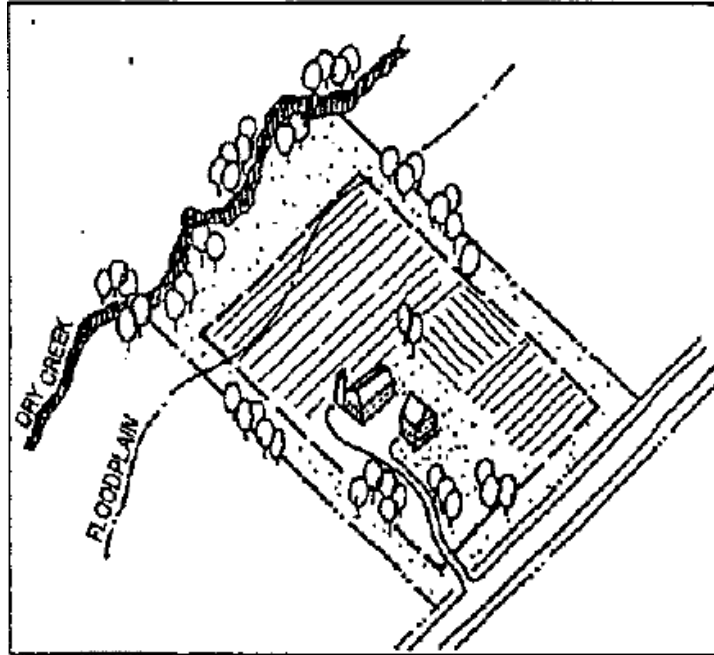
2. Garages. Shall be screened and/or not prominent or highly visible from adjoining street.

3. Houses And Accessory Structures. Shall be sited to minimize grading and shall be compatible with existing topography. Site grading is limited to building envelopes or the area within lot setbacks, whichever is more constraining.

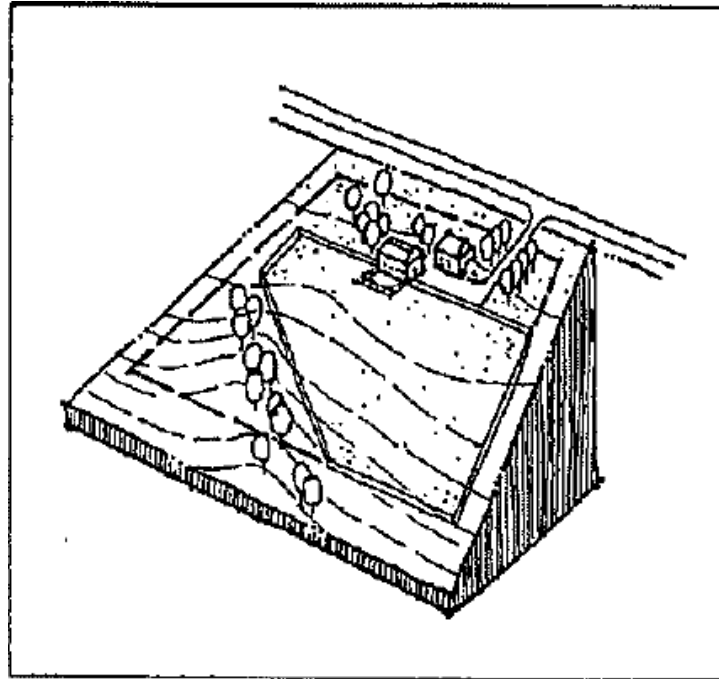
4. **Building Massing.** Shall step with the natural grade to minimize exposed building facade on the "downhill" portion of the lot to two (2) stories plus roof. The "downhill" portion may be either street side or rear of the lot.
5. **Floodplain.** Significant portions of the farm lots located along the valley floor fall within the 100-year floodplain. Development of these lots shall comply with all FEMA and local floodplain regulations.
6. **Roadway.** Farm/ranch lots fronting on Dry Creek Road or Cartwright Road shall set back buildings as far as possible from these main roadways. Additional techniques such as shared driveways, meandering driveways, rear entry garages, agricultural style buildings, barns, etc., shall be employed to maintain rural character along these roadways.



Typical farm/ranch lot layout.

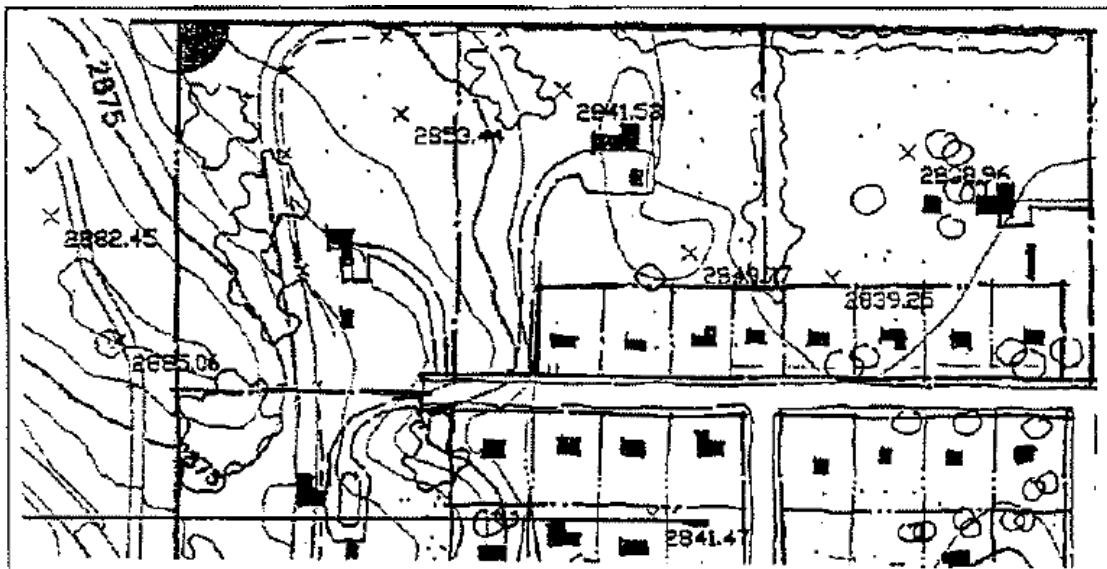


Typical farm lot in valley
at Dry Creek.



Typical ranch lots on hillside.

2. Rural Lots



Plan view illustrative of rural lots.

- a. **Description.** Rural lots are large lots intended to provide a transition from farm lots to the village homes in the village center. They also provide a large lot buffer between the village center and larger residential lots and agricultural uses which adjoin the project site. These lots are intended to provide a high degree of flexibility in transitioning from farm to village character.

b. Principal Permitted Uses

Family daycare home.

Parks.

School.

Single-family dwellings of a permanent nature and their accessory structures.

Temporary sales offices and model homes.

c. Accessory Uses

Accessory apartment (maximum 1 unit).

Freestanding garages or storage structures.

Hobby greenhouses.

Home occupations.

Roomers or boarders with a resident family (not more than 2). Swimming pools and tennis courts.

d. Uses Requiring an Administrative Permit

Bed and breakfast establishments.

Clubs, lodges, and social halls.

Public structures.

Public utility structures.

Roadside stands offering agricultural products produced within the project.

e. Prohibited Uses

All uses not specifically identified.

f. Lot Characteristics

1. Dimensions

Minimum lot size: one and a half (1.5) acres.

Minimum lot depth: one hundred fifty feet (150').

Minimum lot width: one hundred fifty feet (150').

Minimum lot frontage: one hundred feet (100'), (fifty feet [50'] for flag lots).

2. Setbacks

Front yard setback: thirty feet (30').

Side yard setback: three feet (3') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be twenty-three feet (23').

Rear yard setback: thirty feet (30') or ten feet (10') for garage.

3. Buildings

Maximum building height: thirty-five (35') feet.

Maximum building coverage: fifteen (15%) percent of lot.

g. Special Conditions

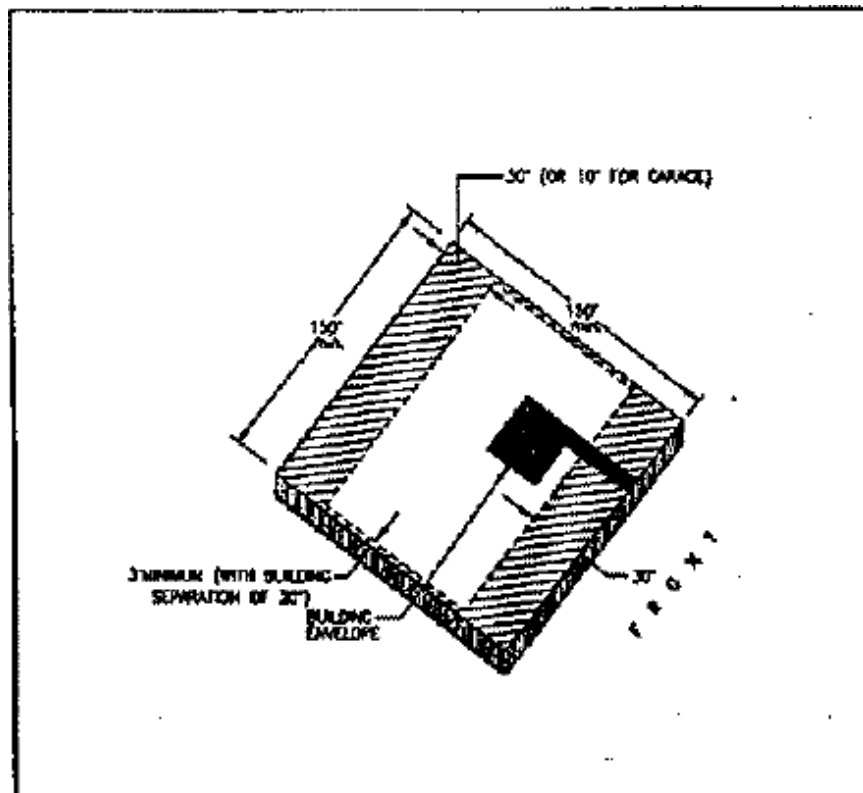
1. Building Envelopes. Shall be designated on every rural lot. All site disturbance (construction of buildings, site work, etc.) shall be contained within this envelope.

2. Garages. Shall be screened and/or not prominent or highly visible from adjoining street.

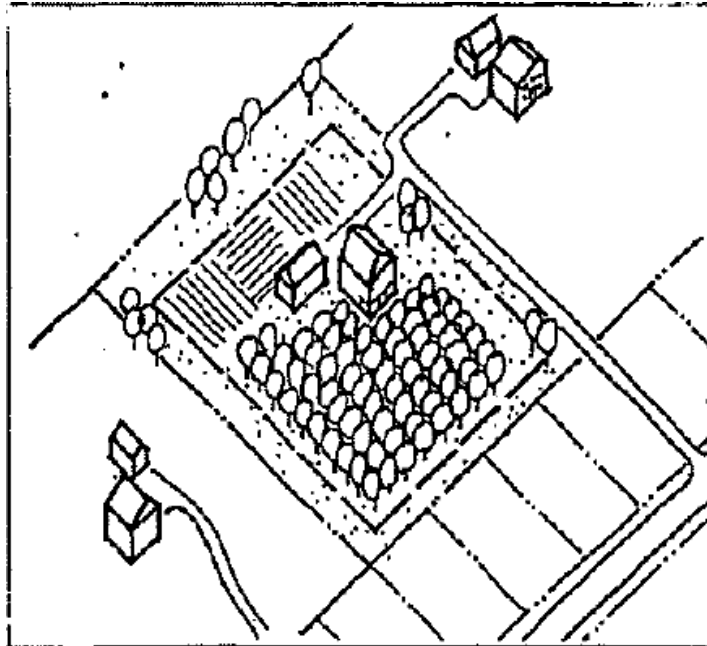
3. Houses and Accessory Structures. Shall be sited to minimize grading and

shall be compatible with existing topography. Site grading is limited to building envelopes or the area within lot setbacks, whichever is more constraining.

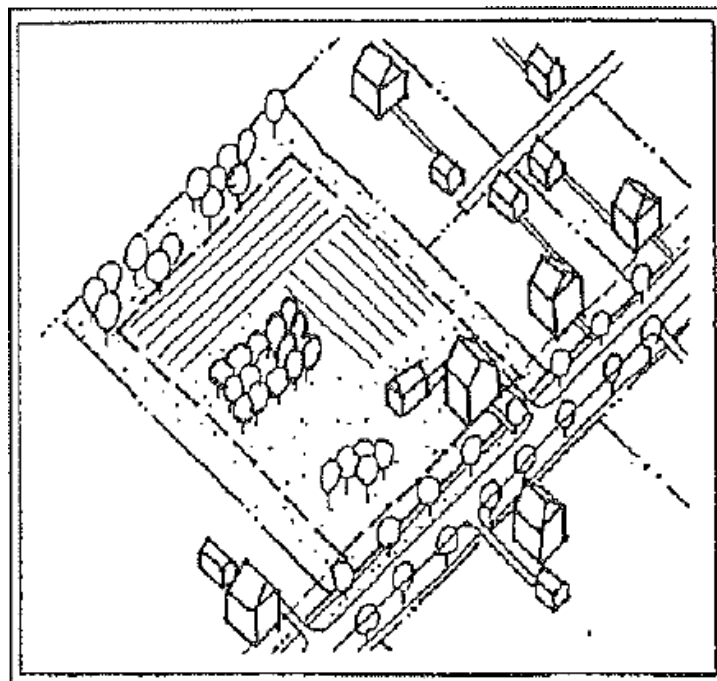
4. **Twenty Foot Build to Street Edge.** Rural lots fronting on Dry Creek Road or Seaman's Gulch Road are intended to provide a smooth transition from farm lots to village homes. Rural lots which directly front onto these main roads shall have their primary residential building located within five feet (5') of the front yard setback line to begin to establish the street "edge" near the village center. Rural lots away from the village center and/or off these main streets shall be set back farther and utilize techniques such as shared driveways, meandering driveways, rear entry garages, agricultural style buildings, barns, etc., to maintain rural character.



Typical rural lot layout.

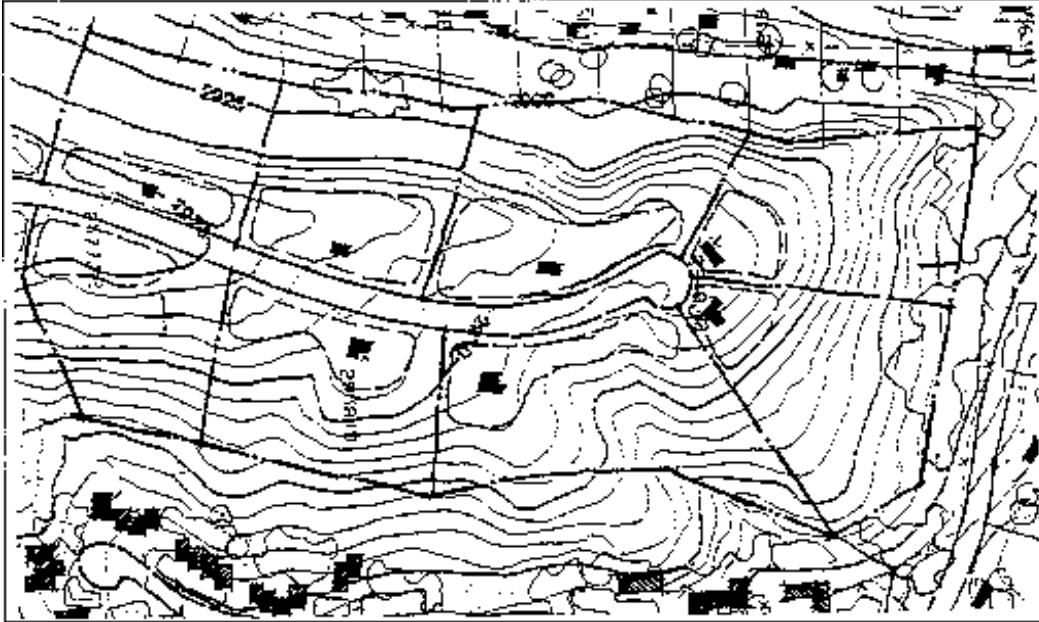


Rural lot near town center
on Seaman's Gulch Road.



Rural lot behind village lots.

3. Large Lots



- a. **Description.** Large lots are spacious lots generally intended to be developed on the moderately sloped hillsides within the project site. These lots vary in size and tend to be irregular in configuration in order to minimize visual impact and conform to existing topography.
- b. **Principal Permitted Use**
 - Family daycare home.
 - Parks.
 - Schools.
 - Single-family dwellings of a permanent nature and their accessory structures.
 - Temporary sales offices and model homes.
- c. **Accessory Uses**
 - Accessory apartment (maximum 1 unit).
 - Freestanding garages or storage structures.
 - Hobby greenhouses.
 - Home occupations.
 - Roomers or boarders with a resident family (not more than 2).
 - Swimming pools and tennis courts.
- d. **Uses Requiring an Administrative Permit**
 - Agricultural operations.
 - Bed and breakfast establishments.
 - Health club facilities.
 - Public structures.
 - Public utility structures.
 - Roadside stands.

e. Prohibited Uses

All uses not specifically identified.

f. Lot Characteristics

1. Dimensions

Minimum lot size: one half (1/2) acre.

Minimum lot depth: one hundred twenty feet (120').

Minimum lot width: one hundred feet (100').

Minimum lot frontage: fifty feet (50'), (thirty feet [30'] for flag lots).

2. Setbacks

Front yard setback: twenty feet (20').

Side yard setback: three feet (3') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be eighteen feet (18').

Rear yard setback: twenty feet (20') or ten feet (10') for garage.

3. Buildings

Maximum building height: thirty-five feet (35').

Maximum building coverage: thirty percent (30%) of lot.

g. Special Conditions

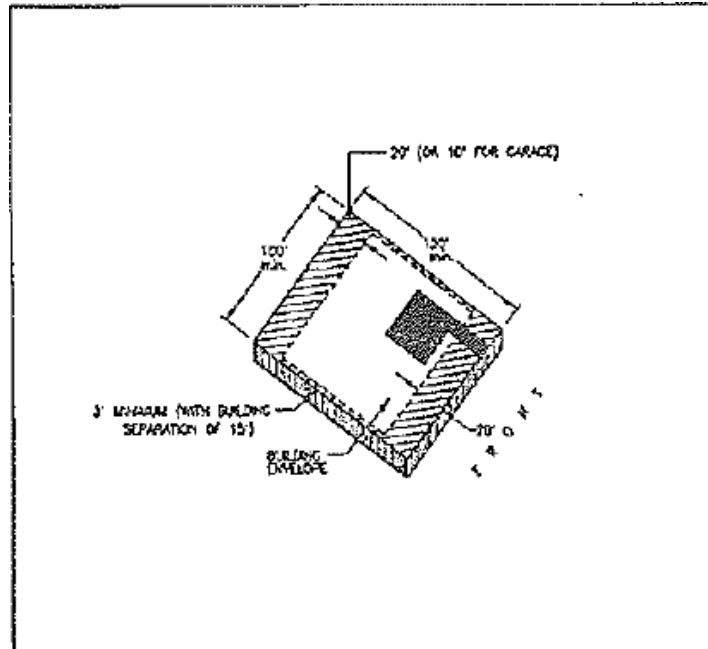
1. Building Envelopes. Shall be designated on every large lot. All site disturbance (construction of buildings, site work, etc.) shall be contained within this envelope.

2. Garages. Shall be side or rear entry. Garage doors shall not directly face the street.

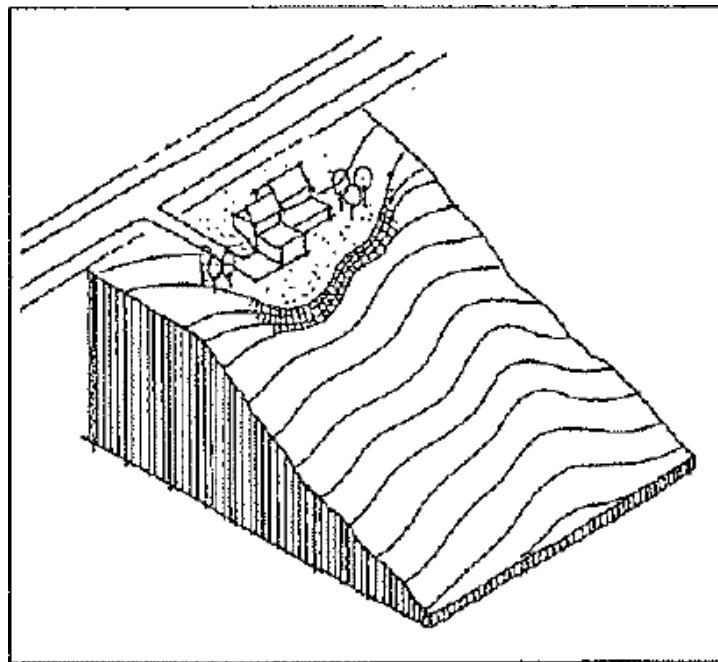
3. Houses And Accessory Structures. Shall be sited to minimize grading and shall be compatible with existing topography. Site grading is limited to building envelopes or the area within lot setbacks, whichever is more constraining.

4. Sloped Banks. Facing the street shall not exceed a three to one (3:1) gradient. Slopes shall not exceed seven feet (7') in height without a horizontal terrace of a minimum depth of five feet (5').

5. Building Massing. Shall step with the natural grade to minimize exposed building facade on the "downhill" portion of the lot to two (2) stories plus roof. The "downhill" portion may be either street side or rear of the lot.

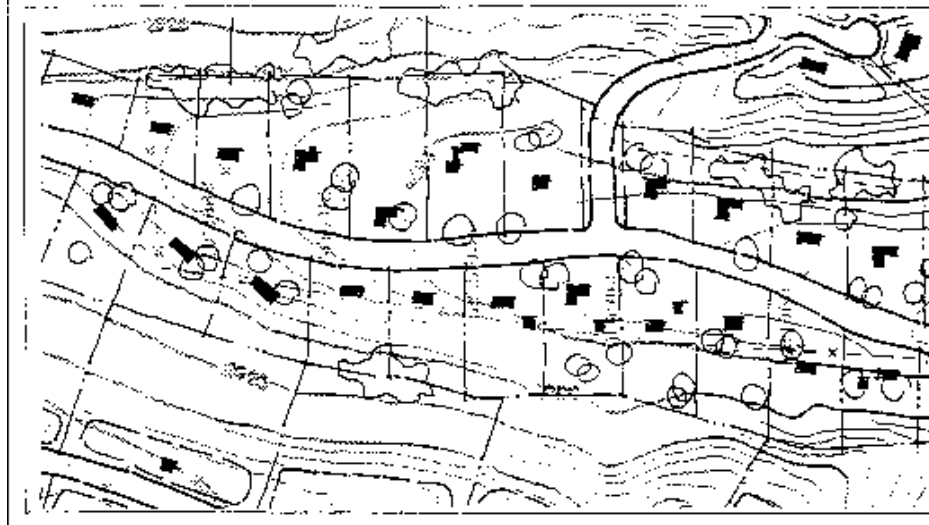


Typical large lot layout.



Grading at hillside lot.

4. Regular Lots



- a. **Description.** Regular lots are generally intended to be developed in the relatively flat "coves" and "side valleys" which are not as visible as the main floor of Dry Creek Valley. These lots offer a more typical residential site size and configuration to meet the portion of the market which may not be attracted to the more unique lot types offered elsewhere in the project.
- b. **Principal Permitted Uses**
 - Family daycare home.
 - Parks.
 - Schools.
 - Single-family dwellings of a permanent nature and accessory structures.
 - Temporary sales office and model homes.
- c. **Accessory Uses**
 - Accessory apartment (maximum 1 unit).
 - Freestanding garages or storage structures. Hobby greenhouses.
 - Home occupations.
 - Roomers or boarders with a resident family (not more than 2).
 - Swimming pools and tennis courts.
- d. **Uses Requiring an Administrative Permit**
 - Agricultural operations.
 - Bed and breakfast establishments.
 - Health club facilities.
 - Public structures.
 - Public utility structures.
- e. **Prohibited Uses**
 - All uses not specifically identified above.
- f. **Lot Characteristics**
 1. **Dimensions**

Minimum lot size: twelve thousand (12,000) square feet.
Minimum lot depth: one hundred twenty feet (120').
Minimum lot width: one hundred feet (100').
Minimum lot frontage: fifty feet (50'), (thirty feet [30'] for flag lots).

2. Setbacks

Front yard setback: twenty feet (20'). For side entry garages, minimum front setback is ten feet (10').

Side yard setback: three feet (3') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be eighteen feet (18').

Rear yard setback: twenty feet (20') or ten feet (10') for garage.

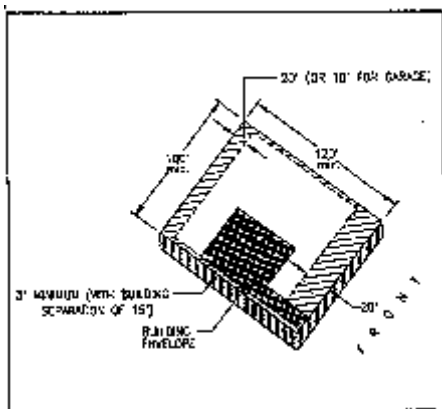
3. Buildings

Maximum building height: thirty-five feet (35').

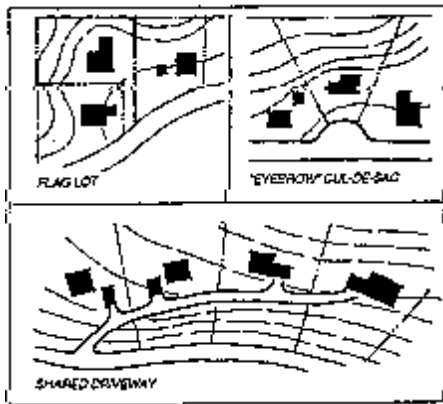
Maximum building coverage: forty-five percent (45%) of lot.

g. Special Conditions

1. **Garages.** Side or rear entry garages are encouraged where lot widths and depths permit. To encourage side entry garages, the front setback is ten feet (10') from the front property line. Where garage doors directly face the street, efforts shall be made to minimize their visual impact with architectural or site treatments.
2. **Houses and Accessory Structures.** Shall be sited to minimize grading and shall be compatible with existing topography. Site grading is limited to building envelopes or the area within lot setbacks, whichever is more constraining.
3. **Building Massing.** Shall step with the natural grade to minimize exposed building facade on the "downhill" portion of the lot to two (2) stories plus roof. The "downhill" portion may be either street side or rear of the lot.
4. **Clustering.** Wherever site and access conditions permit clustering of buildings, garages and drives are encouraged to minimize site disruption and maximize open space. Clustering techniques may include shared driveways, key or flag lots, eyebrow cul-de-sacs, etc.

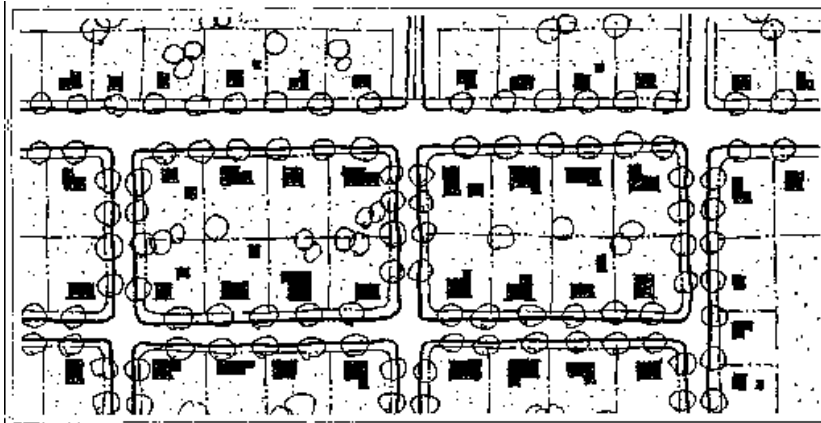


Typical regular lot



Clustering examples.

5. Village Homes



Plan view illustrative of village lots.

- a. **Description.** Village home lots are smaller rural lots that are reminiscent of the "in town" lots traditionally found in Idaho's agricultural towns and villages. They are intended to provide a close-knit residential village with strong pedestrian and community orientation that is found in some of the great older neighborhoods of Boise (such as the North End).
- b. **Principal Permitted Uses**
 - Family daycare home.
 - Parks.
 - Schools.
 - Single-family dwellings of a permanent nature and their accessory structures, including condominiums.
 - Temporary sales offices and model homes.
 - Townhomes (as defined in subsection B6 of this Section).
- c. **Accessory Uses**
 - Accessory apartment (maximum 1 unit).
 - Freestanding garages or storage structures.

Home occupations.

Roomers or boarders with a resident family (not more than two [2]).

Swimming pools.

Tennis courts.

d. Uses Requiring an Administrative Permit

Agricultural operations.

Bed and breakfast establishments.

Health club facilities.

Public structures.

Public utility structures.

Roadside stand.

e. Prohibited Uses

All uses not specifically identified.

f. Lot Characteristics

1. Dimensions

Minimum lot size: three thousand two hundred (3,200) square feet.

Minimum lot depth: eighty feet (80').

Minimum lot width: forty feet (40'), (sixty feet [60'] typical).

Minimum lot frontage: thirty (30') feet.

2. Setbacks

Front yard setback: ten feet (10').

Side yard setback: three feet (3') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be thirteen feet (13').

Rear yard setback: ten feet (10'), (zero feet (0') for garage, accessory, or storage structure).

3. Buildings

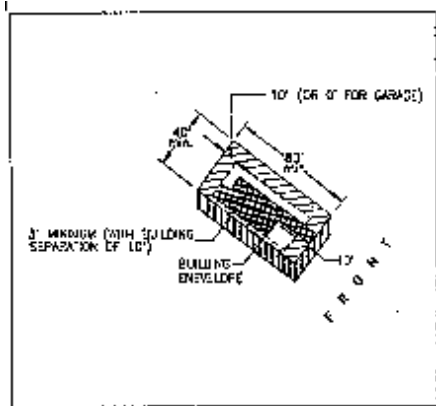
Maximum building height: forty feet (40').

Maximum building coverage: seventy percent (70%) of lot.

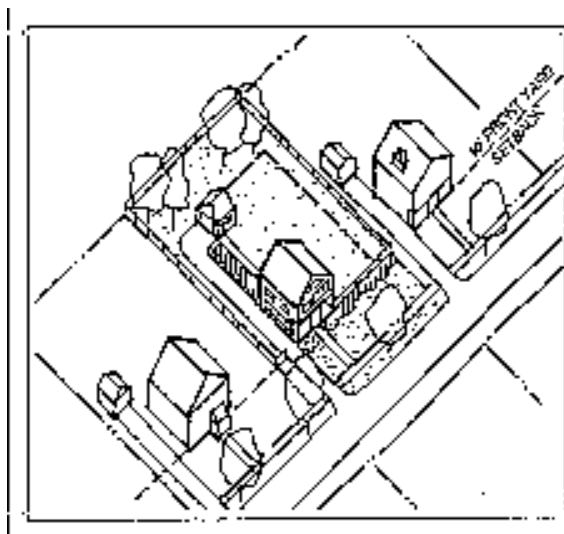
g. Special Conditions

1. Garages. Rear entry garages off alleys or front entry garage structures located behind the main residential building are encouraged.

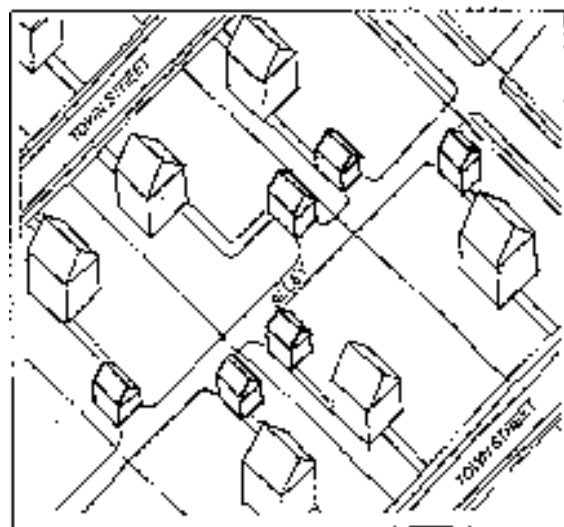
2. Front Porches. Village homes are encouraged to provide usable front porches along the majority of their street side facades. These porches should receive special architectural treatment and be of sufficient depth and width to encourage use as an outdoor living space.



Typical village lot layout.

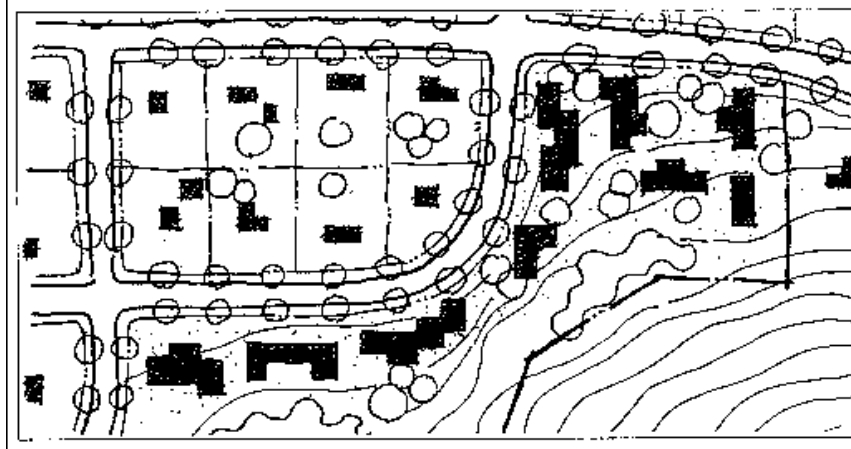


Develop 10' build-to-street edge.



Garages shall be accessed from rear of lot.

6. Town Homes



Plan view illustrative of town homes.

- a. **Description.** Town home lots are the densest residential product envisioned at Hidden Springs. The town home lots are generally intended to provide an alternative, attached-style unit which may appeal to seniors, empty-nesters, first-time buyers, and single parents who prefer an attached product with limited yard area. Town home lots are intended to be located in or within convenient walking distance of the town center.
- b. **Principal Permitted Uses**
 - Single-family dwellings of a permanent nature and their accessory structures, including condominiums.
 - Duplex and multi-family dwellings of a permanent nature and their accessory structures, including condominiums.
 - Temporary sales offices and model homes or units.
 - Family day care home.
 - Parks. Schools.
 - Village homes (as defined in subsection 8-13D-5B5 of this Section).
- c. **Accessory Uses**
 - Home occupations.
 - Freestanding garages or storage structures.
 - Temporary living quarters.
 - Fitness and health facilities (for use by town home residents).
 - Parking area or lot.
- d. **Uses Requiring an Administrative Permit**
 - Public utility structures.
 - Public structures.
 - Bed and breakfast establishments.
 - Individual swimming pools and tennis courts.
 - Clubs, lodges and social halls.
 - Agricultural operations.

e. Prohibited Uses

All uses not specifically identified above.

f. Lot Characteristics

1. Dimensions

a) Single-Family:

Minimum Lot Size: one thousand two hundred (1,200) square feet.

Minimum Lot Depth: sixty (60') feet.

Minimum Lot Width: twenty feet (20'). Minimum Lot Frontage: twenty feet (20').

2. Setbacks

Front Yard Setback: ten feet (10').

Side Yard Setback: zero feet (0') minimum from lot line with ten feet (10') minimum separation from adjoining buildings. For corner lots, minimum side yard setback from corner lot line shall be thirteen feet (13').

Rear Yard Setback: ten feet (10'), (zero feet (0') for garage, accessory, or storage structure with alley).

3. Buildings

Maximum Building Height: forty feet (40').

Maximum Coverage: eighty-five percent (85%).

Maximum Units Per Building: twelve (12).

Parking: two (2) spaces per unit (includes garage spaces).

g. Special Conditions

1. Multi-Family or Attached Home Density. Shall be sixteen (16) DU/acre maximum.

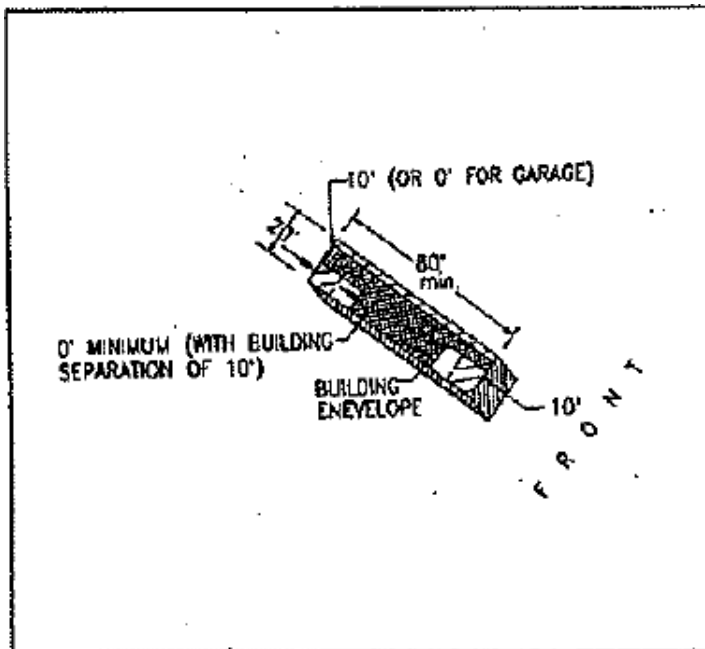
2. Buildings. Shall respect existing drainage patterns. Building massing must step with the natural grade.

3. Surface Parking Areas. Shall be landscaped and terraced with the natural grade.

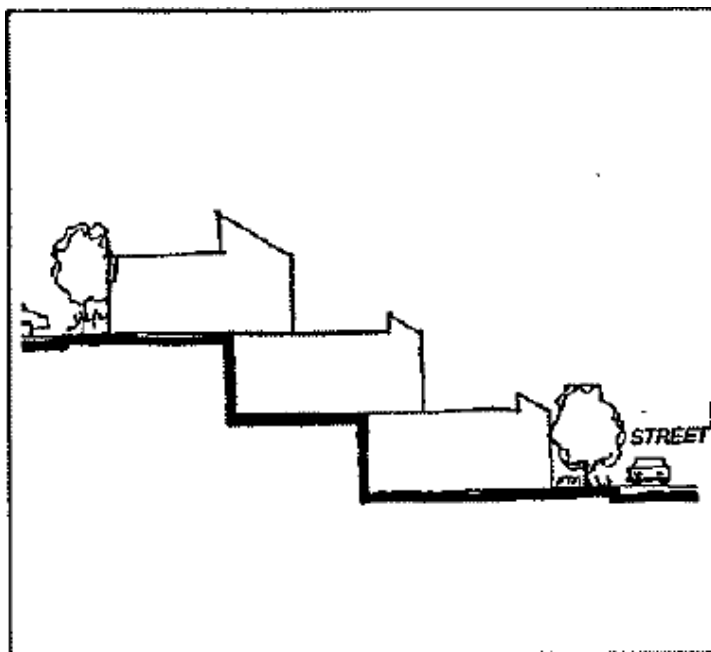
4. Landscaped Outdoor Common Areas. Shall be incorporated into the site plan.

5. Ground Floor Units. Are encouraged to have patios to provide a private outdoor space. Upper floor units are encouraged to have porches or balconies.

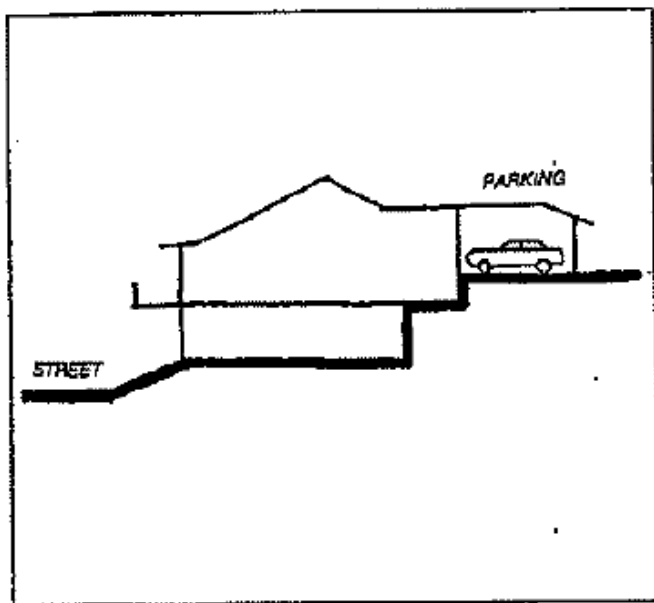
6. Garages. Are encouraged to be incorporated into the building massing.



Typical town home lot layout.



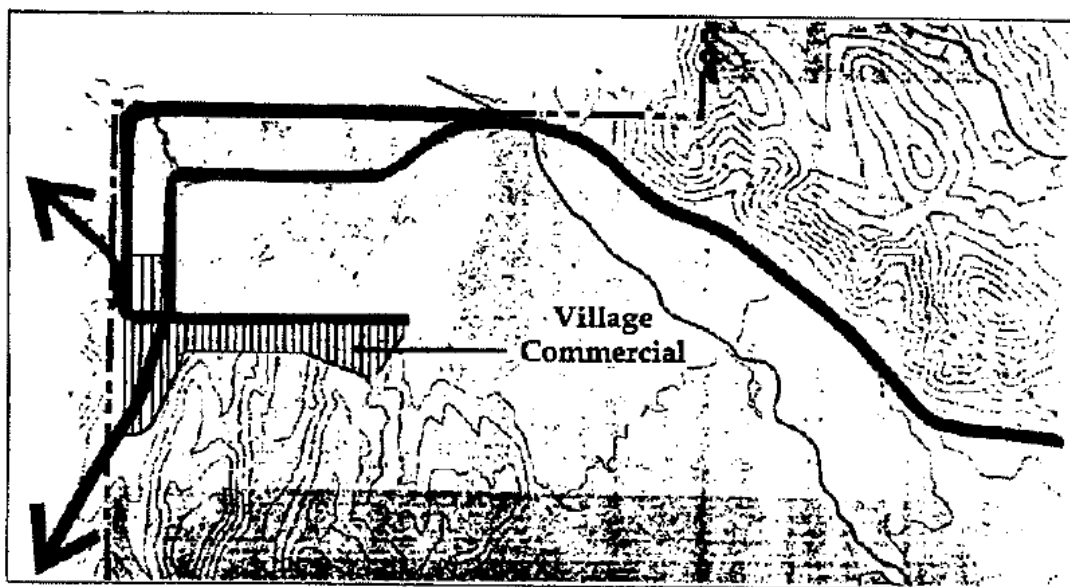
Step buildings with natural grade.



Incorporate garage into building massing.

C. **Nonresidential Uses.** The following is a detailed description of all nonresidential uses including principal permitted uses, administrative permit uses, accessory uses, prohibited uses, characteristics, standards, and special conditions.

1. **Village Commercial**



Plan view illustrative of Village Commercial Overlay Zone.

a. Description. The Village Commercial Overlay is generally intended to provide for neighborhood businesses that are compatible with the adjoining village home residential uses, and service the residents of Hidden Springs, Dry Creek Valley, and other nearby areas. The total cumulative commercial development in the Village Commercial Overlay shall not exceed fifty thousand (50,000) GSF of interior building area, (excluding public and community support uses), and only shall occur in the Hidden Springs Village Commercial Overlay (HS-VC) District.

b. Principal Permitted Uses

Bank branch offices (including automated tellers) excluding drive-thru service.

Clinics (medical or dental).

Dry cleaning and laundering facility (provided actual dry cleaning is done off-site).

Offices (business, professional, real estate, etc.).

Personal service retail.

Restaurants, cafes, confectioneries, or soda fountains (excluding drive-in establishments).

Retail stores, (including general stores, hardware stores, bookstores, etc.).

Guest houses and bed and breakfast establishments.

Fire protection, law enforcement and emergency medical facilities.

Group day care facility.

Public or private parking area or lot. Park and ride facility.

Health club facility.

Parks.

Storage facilities or storage structures.

c. Uses Requiring an Administrative Permit

Any commercial or retail use compatible with principal permitted uses.

Clubs, lodges, or social halls.

Places of public worship.

Service stations.

Taverns.

Public utility structures.

Public structures.

Roadside stand.

d. Prohibited Uses. All nonresidential uses not specifically identified.

e. Minimum Standards

1. Dimensions

Minimum Lot Size: three thousand two hundred (3,200) square feet.

Minimum Lot Depth: eighty feet (80').

Minimum Lot Width: forty feet (40').

2. Setbacks

Front Yard Setback: zero feet (0').

Side Yard Setback: zero feet (0') to adjoining commercial, ten feet (10') to adjoining residential, ten feet (10') for corner lots.

Rear Yard Setback: ten feet (10'), (zero feet (0') for freestanding garage or storage structure with alley).

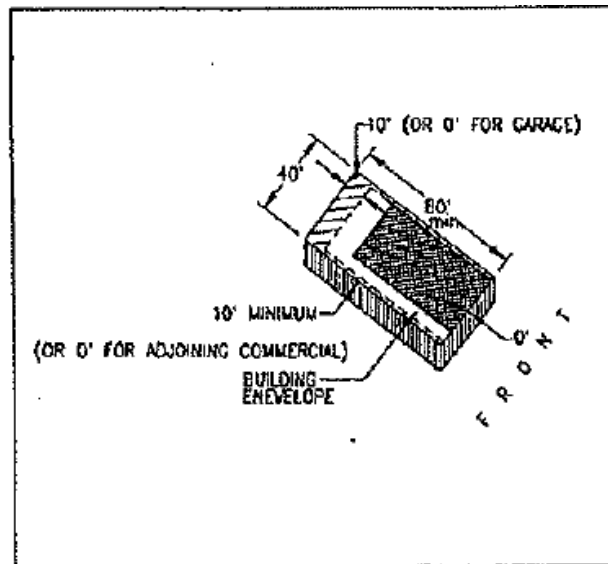
3. Buildings

Maximum Building Height: forty feet (40'), (not including vertical elements of less than one hundred (100) square feet for community use facilities).

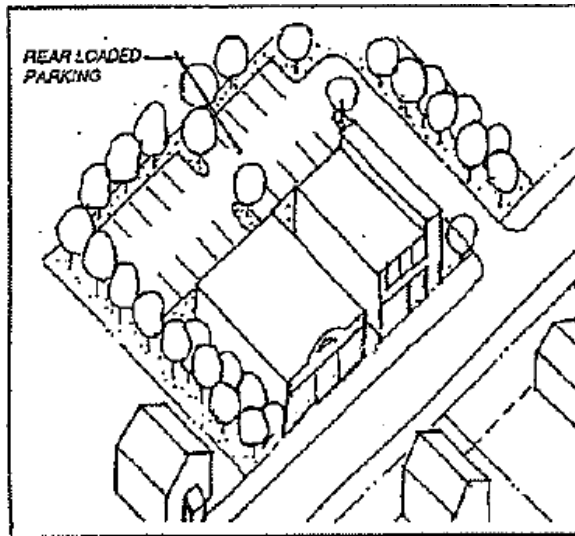
Maximum Building Coverage: eight five percent (85%) of lot. Buildings may be developed as commercial condominiums.

f. Special Conditions

1. **Parking.** For village commercial uses shall be provided on- street or in rear yards adjacent to or behind the commercial buildings. Parking for the first one thousand (1,000) square feet of interior building area is assumed to be accommodated on-street within the village center, and off- street parking beyond the first one thousand (1,000) square feet of interior building area shall be provided at a minimum of one space per one thousand (1,000) square feet of interior building area. No front yard parking will be permitted.
2. **Loading Facilities.** For commercial uses shall be thoroughly screened and buffered from adjoining residential uses.
3. **Village Commercial Buildings.** Shall receive special architectural treatments to make them residential in scale, mass, and design and thus compatible with adjoining residential uses.

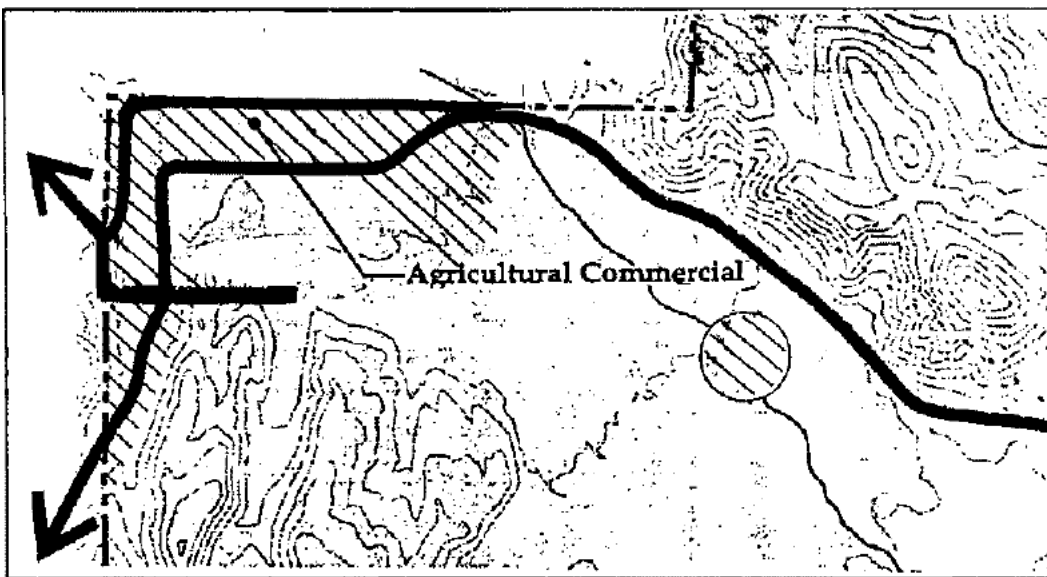


Typical village commercial
lot layout.



Typical building and parking layout.

2. Agricultural Commercial



Plan view illustrative of Agricultural Commercial Overlay Zone.

- a. **Description.** The Agricultural Commercial Overlay is generally intended to provide for agriculturally oriented and other businesses that are compatible with adjoining residential and agricultural land uses, and service the residents of Hidden Springs, Dry Creek Valley, as well as those of nearby areas. The total cumulative commercial development in the Agricultural Commercial Overlay shall not exceed fifty thousand (50,000) GSF of interior building area, (excluding public and community support uses) and shall only occur in the Hidden Springs Agricultural Commercial (HS-AC) District.

b. Principal Permitted Uses

Agricultural operations, including agricultural outbuildings.
Roadside stands offering for sale agricultural products.
Farm machinery sales (excluding repair).
Feed, seed, and fertilizer stores.
Other agriculturally related retail stores (including farm apparel, etc.).
Retail store.
Animal clinics and veterinary offices.
Offices.
Guest houses and bed and breakfast establishments.
Group day care facility.
Community centers.
Schools.
Parks.
Health club facilities.
Park and ride facility.
Public or private parking area.
Temporary sales offices.
Temporary construction facilities.

c. Uses Requiring an Administrative Permit

Any commercial or retail use compatible with the principal permitted uses.
Commercial greenhouses, nurseries.
Grain storage structures.
Places of public worship.
Clubs, lodges, or social halls.
Public utility structures.
Public structures.
Fire protection, law enforcement and emergency medical facilities.
Storage facilities or storage structures.

d. Prohibited Uses. All uses not specifically identified.

e. Minimum Standards

1. Dimensions

Minimum Lot Size: one half (1/2) acre.
Minimum Lot Depth: one hundred twenty feet (120').
Minimum Lot Width: one hundred feet (100').

2. Setbacks

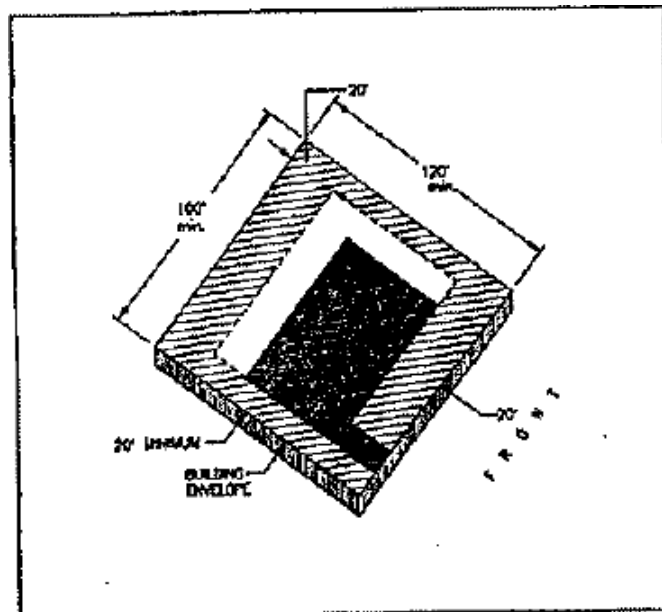
Front Yard Setback: twenty feet (20').
Side Yard Setback: twenty feet (20') minimum from lot line. For corner lots, minimum side yard setback from corner lot line shall be thirty feet (30').
Rear Yard Setback: twenty feet (20').

3. Buildings

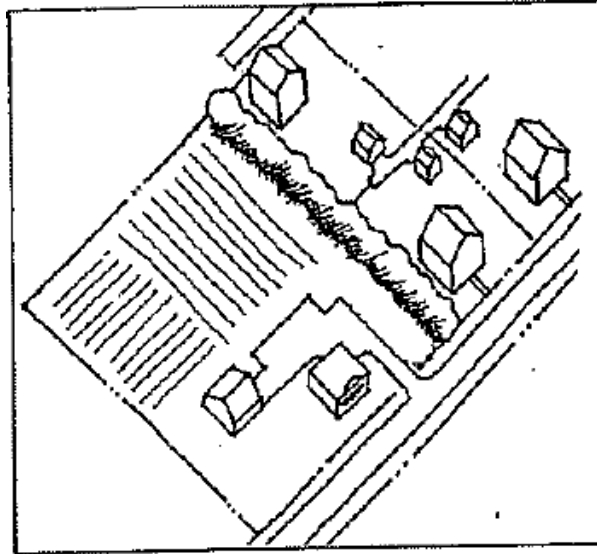
Maximum Building Height: forty-five feet (45').
Maximum Building Coverage: thirty percent (30%) of lot.

f. Special Conditions

- 1. Building Envelopes.** Shall be designated on all rural and farm lots underlying the Agricultural Commercial Overlay. Commercial buildings must be located within this envelope. Additional site disturbance shall be contained within this envelope except for a maximum of five thousand (5,000) square feet of additional disturbance which is permitted contiguous to, but outside the building envelope to accommodate parking for commercial uses.
- 2. Parking.** For agricultural commercial uses shall be provided either to the side or rear of commercial buildings. Parking for the first one thousand (1,000) square feet of interior building area is assumed to be accommodated on-street within the village center, and off-street parking beyond the first one thousand (1,000) square feet of interior building area shall be provided at a minimum of one space per one thousand (1,000) square feet of interior building area. No front yard parking will be permitted.
- 3. Loading Facilities.** For commercial uses shall be thoroughly screened and buffered from adjoining residential uses.
- 4. Architectural Treatments.** Agricultural commercial uses near the town center shall receive architectural treatments that make them residential in scale, mass, and design, and compatible with adjoining residential uses.

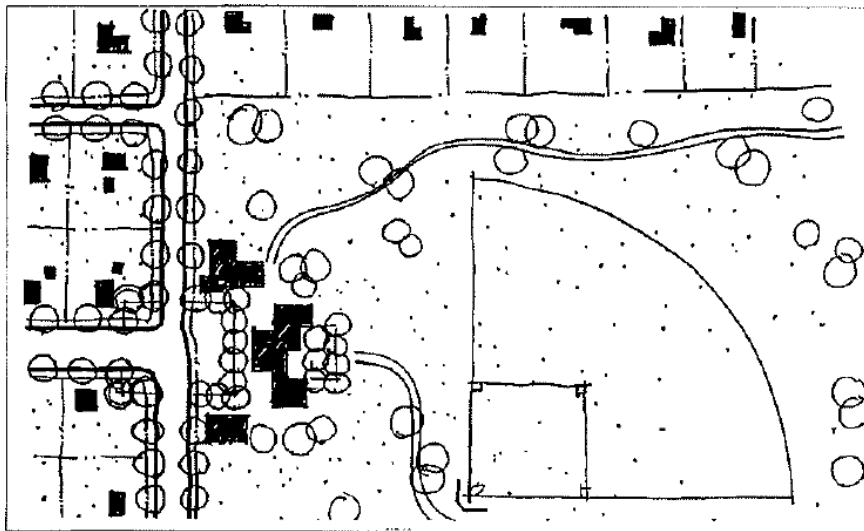


**Typical agricultural commercial
lot layout.**



Screen loading facilities and parking from adjoining residential uses.

3. Community Center/School



Plan view illustrative of community center.

- a. **Description.** The community center is generally intended to include the recreational and community service uses that will form the social hub of the community and shall only occur in the Hidden Springs Village Zone (HS-V).
- b. **Principal Permitted Uses**
 - Public and private schools and accessory structures.
 - Community center/meeting hall and accessory structures.
 - Recreation facility and accessory structures.

Indoor and outdoor swimming pools and spas, and accessory structures.
Tennis courts.
Playfields and playgrounds/tot lots.
Golf practice/putting facilities.
Clubs, lodges, or social halls.
Group day care facility.
Health club facilities.
Park and ride facilities.
Public and private parking area.

c. Uses Requiring an Administrative Permit

Places of public worship.
Restaurants and cafes.
Public utility structures.
Public structures.
Agricultural operations.

d. Prohibited Uses. All uses not specifically identified above.

e. Minimum Standards

1. Dimensions

Minimum Lot Size: one and a half (1.5) acres.
Minimum Lot Depth: one hundred fifty feet (150').
Minimum Lot Width: one hundred fifty feet (150').

2. Setbacks

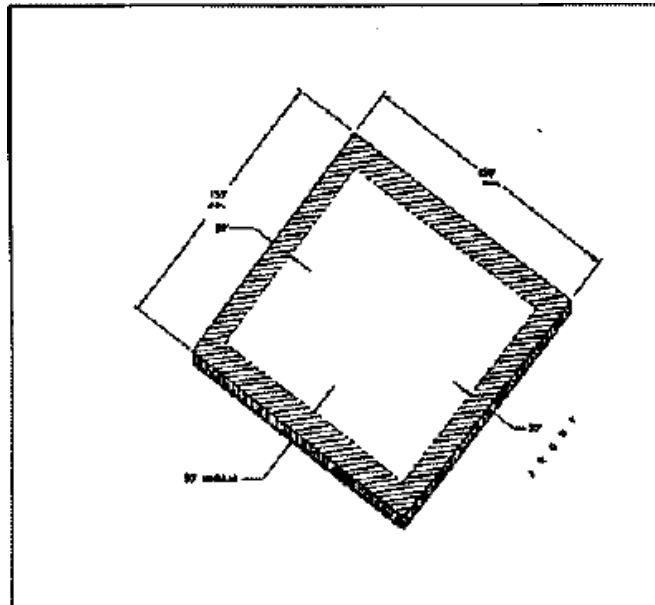
Front Yard Setback: twenty feet (20').
Side Yard Setback: twenty feet (20') minimum. For corner lots, minimum side yard setback from corner lot line shall be thirty feet (30').
Rear Yard Setback: twenty feet (20').

3. Buildings

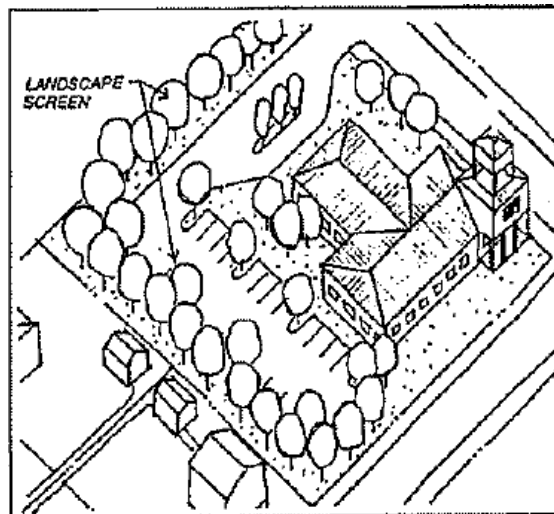
Maximum Building Height: forty-five feet (45').
Maximum Building Coverage: fifty percent (50%) of lot.

f. Special Conditions

- 1. Parking.** Parking for the first one thousand (1,000) square feet of indoor use area is assumed to be accommodated on-street within the village center, and off-street parking beyond the first one thousand (1,000) square feet of interior building area shall be provided at a minimum of one space per one thousand (1,000) square feet of interior building area.
- 2. Loading Facilities.** For the community center shall be thoroughly screened and buffered from adjoining residential uses.
- 3. Building Massing.** Is encouraged to be broken into a complex of smaller structures that are compatible in relative scale and size with adjoining residential uses.

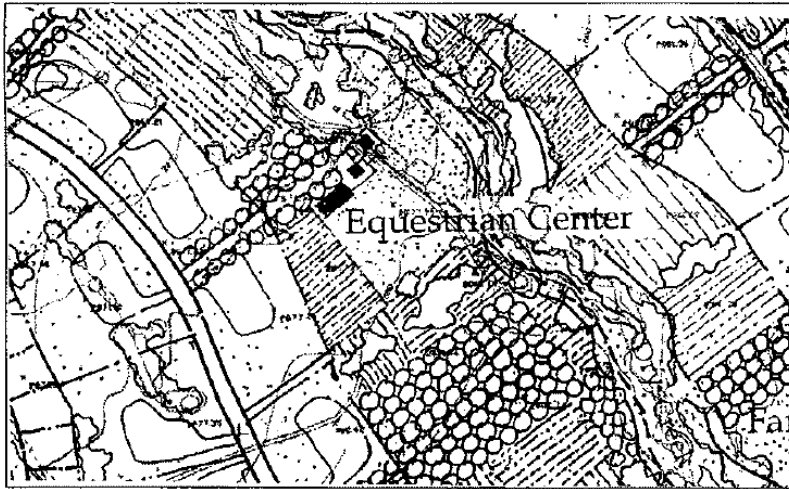


Community center lot layout.



Screen parking from adjacent uses.

4. Equestrian Center



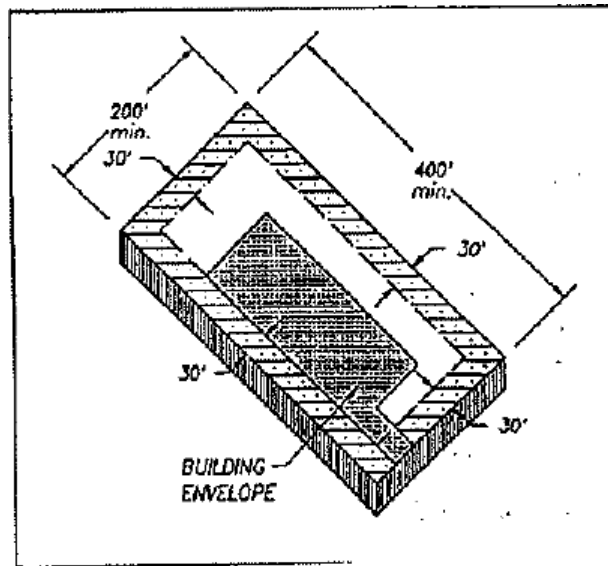
Plan view illustrative of equestrian center.

- a. **Description.** The equestrian center is generally intended to include equestrian uses and facilities to serve residents of the project who own and wish to board horses.
- b. **Principal Permitted Uses**
 - Animal clinic or veterinary office.
 - Commercial stable and riding arena.
 - Equestrian-related retail store.
 - Office(s) and residence for operator/caretaker of equestrian facilities.
 - Paddocks, pastures, and corrals.
 - Public and private parking area.
 - Restaurant, cafe.
- c. **Uses Requiring an Administrative Permit**
 - Agricultural operations.
 - Clubs, lodges, or social halls.
 - Public structures.
 - Public utility structures.
 - Storage structures.
 - Tavern.
- d. **Prohibited Uses.** All uses not specifically identified above.
- e. **Minimum Standards**
 - Minimum Lot Size: two (2) acres.
 - Minimum Lot Depth: None.
 - Minimum Lot Width: None.
 - Building setback: thirty feet (30') from property or parcel boundary. Ten feet (10') between paddock or corral fencing and property or parcel boundary.
 - Maximum Building Height: forty-five feet (45') with a special tower element of less than one hundred (100) square feet permitted to maximum of fifty feet (50').
 - Maximum Building Coverage: ten percent (10%) of lot.

Parking Requirements: One off-street space for every four horses boarded on site; one space per on-duty employee/caretaker.

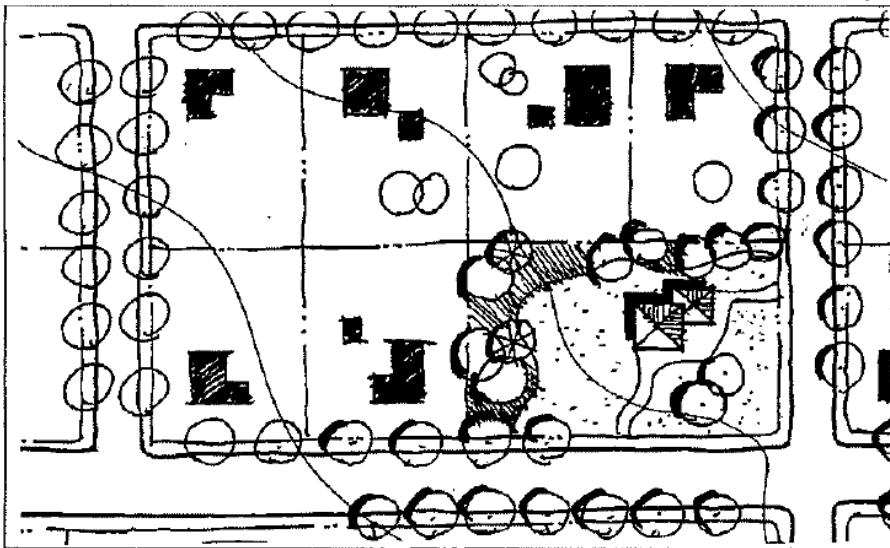
f. Special Conditions

Building shall be sited with respect to existing drainage patterns. Building massing and pastures shall step with the natural grade. Service, loading and maintenance facilities shall be completely screened from roads and residents.



Equestrian center lot layout.

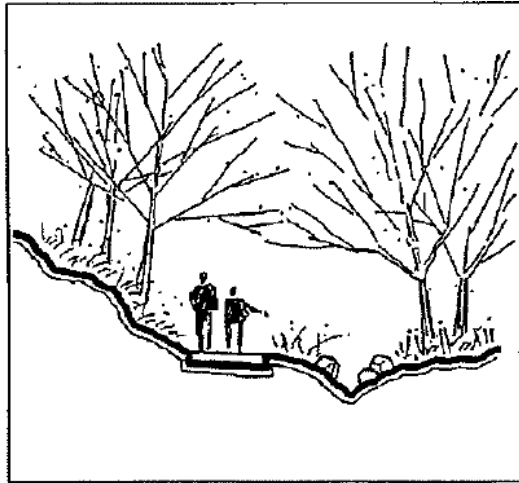
5. Open Space and Parks



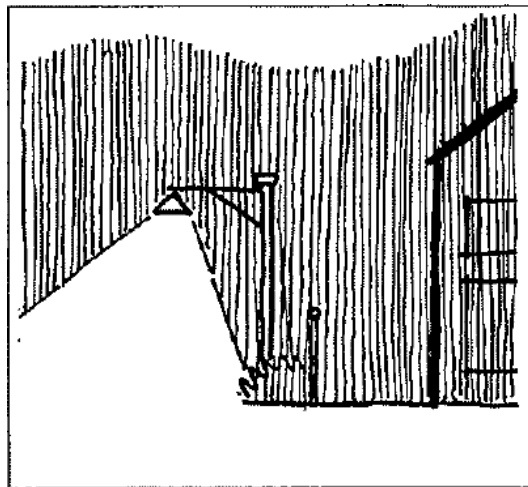
Plan view illustrative of community park.

- a. **Description.** Areas within the project designated as open space areas or parks are intended to provide both active and passive recreational opportunities as well as educational facilities, agricultural and wildlife areas. Open space areas include neighborhood and community parks, the Hidden Springs Greenway, the project-wide trail system, designated wildlife areas, and the agricultural conservation area in the valley floor.
- b. **Principal Permitted Uses**
 - A recreational facility (in a community park only) including a maximum of two thousand five hundred (2,500) square feet pavilion-type space.
 - Park structures, gazebos, restrooms, and concession facilities.
 - Playfields and playgrounds, tot lots, tennis courts, swimming pools, etc.
 - Trails (pedestrian, bike, and equestrian).
 - Agricultural outbuildings.
 - Agricultural operations (farming, grazing and/or gardens).
 - Schools, public or private.
 - Park and ride facility.
 - Public parking area (associated with open space or park use).
- c. **Uses Requiring an Administrative Permit**
 - Public utility structures.
- d. **Prohibited Uses.** All uses not specifically identified.
- e. **Uses Requiring an Administrative Permit (which may only occur in the Agricultural Conservation Area)**
 - Nurseries.
- f. **Minimum Standards**
 - Setback For Buildings/Fields/Play Equipment from All Lot Lines: Ten feet (10').
 - Maximum Building Height: 35 feet with special vertical element or landmark of less than one hundred (100) square feet (footprint) permitted to exceed 60 feet.
 - Parking: None shall be required for park or open space areas; parking for other principal permitted uses or administrative permit uses shall be in accordance with this Title. Parking areas may serve multiple or joint uses while satisfying the parking requirements for only one of the multiple or joint uses in question.
- g. **Special Conditions**
 - Trails and play fields shall be sited with respect to existing drainage patterns.
 - Service and maintenance facilities shall be completely screened from adjacent uses.

Site lighting shall be low intensity and utilize cut- off luminaires to minimize glare and impacts to surrounding residential areas.

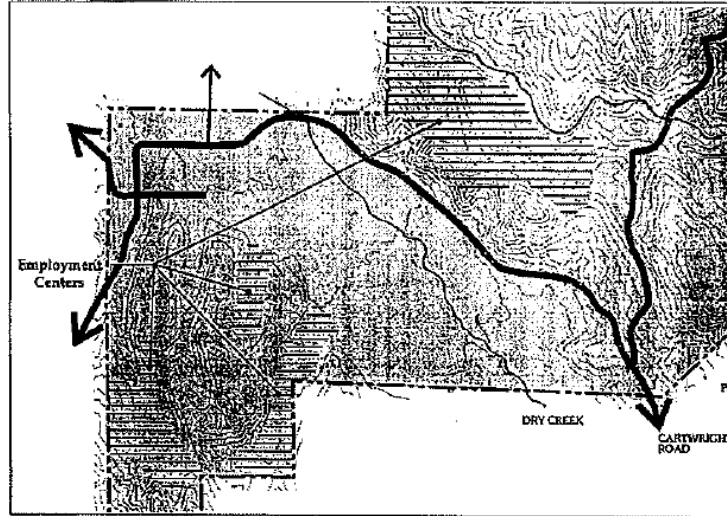


Trails with respect to
existing drainage.



Use of cut-off luminaires in
site lighting.

6. Employment Centers



Plan view of potential employment center sites.

- a. **Description.** The employment center overlay is intended to accommodate commercial, office and institutional uses which may be incorporated into one or more of four (4) relatively "hidden" side valleys or coves within the project site for the purpose of providing employment for residents of Hidden Springs and nearby areas and shall only occur in the Hidden Springs employment center overlay (HS-EC) district. All principal permitted uses set forth below shall be subject to the employment center approval process in subsection 8-13D-7G of this Article.
- b. **Principal Permitted Uses**
 - Any use or building incidental to the employment center use that does not alter the overall character of the project.
 - Convalescent home.
 - Health club facility.
 - High technology corporate headquarters and research facilities.
 - Parking structures and covered parking.
 - Parks.
 - Private and public parking area.
 - Public structures.
 - Public utility structures.
 - Spas and health retreats.
 - University related research centers and cultural facilities.
 - Other similar uses which are relatively self-contained and low in development intensity yet provide employment opportunities.
- c. **Prohibited Uses**
 - Any use which does not meet the compatibility criteria described in subsection 8-13D-7G of this Article.
- d. **Minimum Standards**

1. Density

Maximum density: (0.30) FAR.

Maximum building coverage: thirty percent (30%) of lot.

Minimum open space: thirty percent (30%) of lot.

2. Setbacks

Front yard setback: fifty feet (50'), (ten feet (10') for parking).

Side yard setback: twenty feet (20').

Rear yard setback: zero feet (0').

3. Buildings

Maximum building height: forty-five feet (45').

Maximum interior building area building: fifty thousand (50,000) square feet.

4. Parking

Minimum of one (1) space per one thousand (1,000) square feet of interior building area.

e. Special Conditions

Building envelopes shall be designated for all employment center uses and all buildings. Parking and site disturbance shall be contained within this envelope.

Building should be sited with respect for existing site drainage patterns.

Building massing shall step with natural grade.

Surface parking areas should be terraced with natural grade and landscape screened from view of adjacent residents.

Service and loading facilities shall be screened from view of adjacent residents.

7. Unplatted Property

a. Description. The unplatted property within Hidden Springs is that property which has not been platted. This area is intended to be used for its historic agricultural and other uses, as well as certain other uses which are in furtherance of the agricultural operations and goals and objectives of the Hidden Springs specific plan. It is the ultimate intent that all property within Hidden Springs be platted. Notwithstanding 8-2-22 of this Title, any improvements associated with the uses specified below may be developed and constructed on any unplatted property within Hidden Springs. All uses of the unplatted property shall be consistent with this Article and the specific plan.

b. Principal Permitted Uses

Agricultural operations (farming, grazing and/or gardens).

Agricultural outbuildings and crop storage facilities.

Community events (public or private).

Essential public services.

Public utility structures.

Temporary construction facilities.

Temporary sales offices.

Trails (pedestrian, bike, and equestrian).

c. Uses Requiring an Administrative Permit

Playfields and playgrounds.

Schools.

d. Uses Requiring an Administrative Permit (Which May Only Occur in the Agricultural Conservation Area)

Nurseries.

e. Prohibited Uses. All uses not specifically identified.

D. Land Use Summary Table: Figure 8-13D-5D (land use summary table) of this Section is a summary of all residential and nonresidential uses and characteristics within the Hidden Springs planned community, including, principal permitted uses, accessory uses, administrative permit uses, prohibited uses, and lot characteristics.

Figure 8-13D-5D

Figure 8-31A-3D Land Use Summary Table.

HIDDEN SPRINGS									
Figure 8-31A-3D Land Use Summary Table.									
Land Use	General	Community Support Uses (1)	Agriculture	Recreation	Industrial	Other	Subtotal	Land Use	Land Use
Residential Single-Family (1)									
Residential Medium-Density (2)									
Residential High-Density (3)									
Residential Medium-Density (4)									
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Residential Medium-Density (212)									
Residential Medium-Density (213)									
Residential Medium-Density (214)									

E. Specific Restrictions for the Phased Development of Hidden Springs:

1. Total residential units shall not exceed one thousand thirty-five (1,035), excluding accessory use or employment center uses.
2. Total village commercial use shall not exceed fifty thousand (50,000) gross square feet of interior building area, not including public and community support uses;
3. Total agricultural commercial use shall not exceed fifty thousand (50,000) gross square feet of interior building area not including public and community support uses;
4. The open space area depicted on the Hidden Springs master land use plan shall remain open and free of development other than wildlife habitat improvements, trails, and other recreational improvements, agriculture, and agricultural operations and outbuildings; provided however, that minor changes in the boundaries of the open space areas are acceptable as long as the total acreage of the open space areas does not decrease below eight hundred ten (810) acres. The Director shall be responsible for monitoring compliance with the foregoing specific restrictions. The Director shall develop and maintain a mechanism to ensure compliance with the specific restrictions set forth above.

8-13D-6: Development and Design Guidelines

The specific development and design guidelines approved as a part of the Hidden Springs specific plan are incorporated herein by this reference.

8-13D-7: Administrative/Other Regulations

- A. Intent.** The review and approval process established hereunder for the development of Hidden Springs planned community embodies the intent of the Hidden Springs specific plan and the Ada County Zoning Ordinance.

It shall be the duty of the Director to administer the provisions of this Article for the development of Hidden Springs. The Director shall have the authority to interpret the provisions of this Article and make decisions on land use issues not specifically addressed by the Hidden Springs specific plan and/or this Article.

No phase of Hidden Springs shall be approved unless essential public services for such phase, as specified in the Hidden Springs specific plan and this Article, are provided to support the phase as it proceeds.

The Director, Commission, and/or Board, as the case may be, shall base their approvals or disapprovals upon compliance with the provisions of this Article and the goals and policies and purpose and intent of the Hidden Springs specific plan.

- B. Preapplication Conference.** Any applicant seeking plat, accessory use, administrative permit use or employment center use approval, or any other application required pursuant to this Article may request a preapplication conference with the Director to clarify the requirements, standards and policies identified in this Article. The preapplication conference should be held as soon as is practicable after the request by the applicant. At this conference, the applicant may present sketch plans describing the general nature and intent of their proposed development. The purpose of the preapplication meeting is to determine whether the applicant's proposed development is consistent with the intent of

this Article. If deemed consistent, the applicant may proceed directly with preparation and submittal of an application. If the proposed development is deemed not clearly consistent or if significant issues are raised, the Director shall identify such issues in writing within ten (10) days of the conference and shall encourage the applicant to submit revised sketch plans and schedule another preapplication conference prior to formal submittal of an application. The Director shall furnish written comments and recommendations to assist the applicant in preparing the next submittal. The submission, review, and the Director's written comments and recommendations of any plat, accessory use, administrative permit use or employment center use shall in no way be interpreted as official approval or to mean that such review satisfies the requirements of the submission of a preliminary plat or approval of any other application. The Director's written comments and recommendations shall be nonbinding on the decision made by the Director, Commission and/or Board.

C. Hidden Springs Subdivision Procedures

1. Preliminary Plat and Final Plat Procedures. These regulations are adopted for the purpose of protecting property and furthering the health, safety, and general welfare of the people of Hidden Springs, and to provide uniform standards for the subdivision of land. Subject to subsection 8-13D-4E of this Article, these regulations shall apply to the subdivision of all land within Hidden Springs. It shall be unlawful hereafter to make a subdivision of land, as defined by this Article, or any part thereof, until plans therefor are submitted to the Director and recommended by the Commission and approved by the Board.

a. Procedure for Preliminary Plat Approval by the Commission. Applications for a preliminary plat shall comply with the Hidden Springs specific plan and this Article. The procedure for approval of preliminary plats shall be as follows:

- 1.** An applicant shall file an application for approval of a preliminary plat showing proposed improvements and other supplementary material as required in subsection C2 of this Section. All persons submitting applications for a preliminary plat shall be required to submit to the Director an application upon the form(s) provided by the development services department and accompanied by an application fee as established in subsection 8-6-5 of this Title. No application shall be considered as accepted by the Director, nor shall the time limits hereinafter set out for action commence to run, unless it is complete with all the required information.
- 2.** An electronic submission of the preliminary plat application and all supplementary material shall be filed with the Director. All materials shall be collated.
 - a.** Upon receipt of the required application materials, the Director shall transmit a copy of the application to applicable agencies or jurisdictions for review and comments.

i. Agencies to which the Director shall transmit applications include:

Central District Health Department
Ada County Engineer
Ada County Highway District

- ii. The Director may refer such applications to agencies that have a jurisdictional interest. The Director shall maintain a list of agencies for this purpose.

3. Within the time given below the Commission shall act on the application:

b. The Commission shall make a written recommendation to the Board based upon findings of fact and conclusions of law.

5. Recommendation of approval of a preliminary plat shall not constitute approval of the final plat; rather, it shall be deemed an expression of approval of the layout and other information shown on the plat submitted.

2. Within the time given below the Board shall act on the application:

3. The action of the Board shall be noted on two (2) copies of the preliminary plat. One copy shall be returned to the applicant and one copy retained by the Director.

final plat.

5. The term of approval of the preliminary plat by the Board shall not exceed twenty-four (24) months. Failure to submit an acceptable final plat within the twenty-four (24) month period will result in the approval of the preliminary plat becoming null and void. Provided, however, that the applicant may request, and the Board may authorize, a time extension pursuant to the provisions of, and limitations set forth in, Section 8-6-10 of this Title.

c. **Procedure for Final Plat Approval by the Board.** Following the approval of the preliminary plat by the Board, the final plat shall be submitted to the Director for the Board's approval and signature. The procedure for approval of the final plat shall be as follows:

1. The final plat shall conform to the preliminary plat as approved, and if desired by the applicant, it may constitute the entire preliminary plat or any portion (phase) thereof; provided, however, that such portion (phase) conforms to all requirements of the approval.
2. The final plat and other documents required for approval shall be prepared as specified herein. The final plat shall be submitted to the Director within the time allowed in subsection C1b(5) of this Section from the Board's approval of the preliminary plat; otherwise, such approval shall expire. The Board may authorize time extensions in accordance with Section 8-6-10 of this Title. Provided, however, that where developments are made in successive contiguous portions (phases) in any orderly and reasonable manner, without material changes or departures from the preliminary plat, such portions (phases), if submitted within successive two (2) year intervals, may be considered for final plat approval.
3. The final plat, properly executed and approved as required by law, shall be presented to the Board by the Director. The Board shall review said plat and any recommendations made by the Director. When approved by the Board, said plat shall be signed by the chairman of the Board and a notation made in the minutes of the meeting. Any exceptions or conditions relating to said approval shall be noted in the minutes.
4. The Board shall act on the application:
 - a. Within thirty (30) days after receipt of an acceptable final plat.
 - b. If approved, the Board shall adopt findings of fact and conclusions of law and shall state its approval and the conditions of approval, if any, or if disapproved, state its disapproval and the reasons therefor in writing based on findings of fact and conclusions of law.
5. Final plat and covenants shall be filed with and recorded by the Ada County recorder within one year after written approval by the Board. Provided, however, that the applicant may request, and the Board may authorize, a time extension pursuant to the provisions of, and limitations set forth in, Section 8-6-10 of this Title. No plat or dedication, or any instrument passing title to any portion thereof, shall be offered for recording unless approved in accordance

with this Article.

d. Procedure for Simultaneous Approval of the Preliminary Plat and Final Plat by the Board. Following the recommendation of the preliminary plat by the Commission, the preliminary plat shall be submitted to the Board for approval, and a final plat shall be submitted to the Board for approval and signature. The procedure of simultaneous approval by the Board of the preliminary plat and the final plat shall be as follows:

1. The preliminary plat shall conform to the preliminary plat as recommended by the Commission, and if desired by the applicant, it may constitute the entire preliminary plat or any portion (phase); provided, however, that such portion (phase) thereof conforms to all requirements of the approval.
2. The final plat and other documents required for approval shall be prepared as specified herein. The final plat shall be submitted to the Director.
3. The preliminary plat and the final plat, properly executed as required by law, shall be presented to the Board by the Director. The Board shall review said plats and any recommendations made by the Director. The Board shall act within thirty (30) days after review of the plats. When approved by the Board, the final plat shall be signed by the chairman of the Board and a notation made in the minutes of the meeting. Any exceptions or conditions relating to said approval shall be noted in the minutes. If approved, the Board shall state its approval and the conditions of approval, if any, or if denied, state its denial and the reasons therefor in writing, based on findings of fact and conclusions of law.

2. Specifications for Preliminary and Final Plats

a. Preliminary Plat Application. The application shall contain all the information specified in this Section.

1. The applicant shall submit evidence of proprietary interest in the land to be subdivided. Evidence acceptable to the Director shall be a deed record, or, when the occasion demands, a land contract, or a current option to purchase, or written authority in recordable form authorizing the applicant to act as agent for the true owners of said property. Notwithstanding the foregoing, the Director may require additional evidence of proprietary interest from the applicant or his agent.
2. Information required on application forms as provided by the Director.
3. Such proposed restrictive covenants as are required to ensure continuing conformance with the standards set forth in this Article, including, but not limited to, building setback lines, wildfire prevention requirements, and energy conservation standards, measures, and suggestions.

b. Preliminary Plat Specifications

1. Drawing Specifications: All mapped information shall be prepared in a neat and legible manner and drawn to a scale of not less than one hundred feet (100') to the inch. A smaller scale or different size may be used for large developments with prior written approval from the Director. Limits of the drawing shall

include an area not less than one hundred feet (100') beyond boundaries of the proposed development. All maps shall show:

- a. The subdivision boundary which shall be based on an actual field survey. The stamp of the licensed professional land surveyor shall certify the boundary survey on the plan.
- b. The name of the owner, person and firm responsible for the drawing.
- c. The name of the proposed subdivision.
- d. The date, graphic scale, true north arrow, vicinity map and section, township, and range.
- e. Ties to all controlling corners.
- f. The names of adjoining subdivisions.
- g. The proposed public street and private road names, street right of way lines, and street centerlines, and the location of proposed shared driveways.
- h. The lot layout with lot and block numbers and approximate dimensions of each lot.
- i. Areas of special use, i.e., parks, schools, open space, etc., and in residential plats all parcels intended for other than residential use shall be indicated by appropriate labeling.
- j. Location, width, direction of slope, and names of existing public streets and private roads.
- k. Important features, such as the following: outline of existing buildings, watercourses, power lines, telephone lines, railroad lines, any existing easement, municipal boundaries, and section lines.
- l. The minimum setbacks from the front, the side, and the rear lot lines.
- m. Contour lines based on USGS datum with intervals of not more than five feet (5') for parcels with a general slope of greater than five percent (5%) or intervals of not more than two feet (2') for parcels with a general slope of less than or equal to five percent (5%), which contour lines shall extend a minimum of one hundred feet (100') beyond the proposed development boundary, and if the proposed development is bordered by a drainage channel, extending the additional distance necessary to show the far side of the drainage facility.
- n. The proposed offsite improvements pertaining to streets, water supply system, wastewater collection and treatment system, fire protection facilities and other essential public services.
- o. Location and identification of all potentially dangerous areas, including geologically hazardous areas, areas subject to inundations or flood hazard, and areas of high groundwater.

c. Preliminary Plat Supplemental Data

1. Percolation tests, approximate location of any areas of fill, and water table data as required by the County Engineer. The elevations of all corner points on the boundaries of the proposed plat, subdivision, or dedication. Contours when required by the County Engineer with intervals of five feet (5') or less referenced to such datum acceptable to the County Engineer.
 2. When drainage course and irrigation facilities are involved a topographical plan showing existing course, distance, dimensions, and proposed improvements including sewers, storm drains, catch basins, pumps, and seepage beds shall be provided. Documentary evidence of consent to re-routings by all interested landowners affected and having rights to and in such facilities shall also be provided.
 3. A reference table of lot numbers and lot types, as defined in subsection 8-13D-5A2 of this Article must be provided.
 4. Any other supplementary data deemed necessary by the Director based on the location; type of proposed development; or request or recommendation of another agency.
- d. Final Plats.** The final plat shall be prepared as provided by, and include the items required by, Idaho Code, Title 50, Chapter 13, related state law and the following additional requirements.
1. The final plat, drawing page(s) and signature page shall be drawn on eighteen inch by twenty-seven inch (18" x 27") sheets. No information, except for a borderline, shall be any closer to the edge of any sheet than three and one-half inches (3 1/2") at the left edge and a half inch (1/2") on all other edges. The letters, numbers, and notes shall be of such size and scale to clearly show on the microfilm copies, reproducible copies, and prints of the recorded documents.
 2. The drawings page(s) shall show exterior boundary and lot lines, right of way lines, streets, street islands, existing and new easements, all accurately dimensioned with bearings to the nearest one second and distances to the nearest one-hundredth (1/100) of a foot. The dimensions shall provide a minimum lot and boundary survey closure of one to ten thousand (1:10,000). The drawing page(s) and owner's certificate shall show or contain all related curve data including radius, length, central angle, long chord, and long chord bearing.
 3. Permanent monuments, magnetically detectable, marked with the license number of the surveyor, shall be set for:
 - a. All lot corners and the exterior boundary corners.
 - b. Centerline angle points, point of curvatures (PCs), point of tangencies (PTs), intersecting street centerlines, and places where centerline changes directions.
 - c. Street islands; radius points for cul-de-sacs; and property controlling corners that control the location of the boundary.

- d. In places which are impossible or impractical to set the monument, a witness corner or reference monument shall be set and dimensioned accordingly. Such monument shall be of the same size and marking required for the monument it is replacing. A witness corner monument shall be set on the lot line or property line. A reference monument shall be set with a bearing and distance tie to the actual corner.
 - e. All monuments found, existing or accepted and used in the survey shall be marked with the license number of the survey.
4. The plat shall show:
- a. Two (2) primary control points, approved by the County Surveyor and "ties" to such control points. Primary control points must be public land survey corners or officially recognized corners with corner perpetuation and filing number shown.
 - b. The approved street names. All street names shall be approved by the Ada County Street Name Committee.
 - c. Location, dimensions, and purpose of any easements.
 - d. Location, description, and size of monuments that are set or found.
 - e. Title, including subdivision name and general location description, and date.
 - f. Owner's certificate shall contain a statement of dedication of easements and private roads. Private roads may be shown as a lot or an easement.
 - g. The right of way width from centerline of each street or other right of way.
 - h. Name and location of adjoining subdivisions. Other areas show as "unplatted."
 - i. Building envelopes.

3. Required Improvements and Certificates Showing Compliance

- a. **Monument And Plat Requirements:** The requirements of the Idaho Code regarding plats and monuments shall be met and any work required to be performed on the property to meet such requirements shall be verified by the County Surveyor prior to certification of the plat by him. The provisions of such sections as to monuments, stakes and other markings shall be considered minimum requirements, and the County Surveyor may establish higher reasonable requirements for Hidden Springs planned community by filing a written specification under this section with the Board; said written specifications shall become effective under this section only when approved by the Board. Any such specifications shall be consistent with those applicable for plats in other portions of Ada County.
- b. **Streets And Other Improvements:** Streets and other improvements, as hereinafter listed and as applicable, including, but not limited to, a domestic water supply system and wastewater collection and treatment system, public thoroughfare and easement signage and landscaping, trails, sidewalks, off street public and private

parking areas and traffic control facilities shall be installed in each new development at the applicant's expense, unless a political subdivision is created or exists, in which case said improvements would be made and maintained by the political subdivision, all in accordance with the minimum standards set forth in this Article, prior to the acceptance of any final plat for filing. In addition, prior to the acceptance of any final plat for filing, the applicant must prove adequate mechanisms exist for operations and maintenance of such public improvements. Public street improvements shall be in accordance with figures 8-13D-7C3b of this Section, the specific plan and this Article; provided that alternative public street improvements may be designed and constructed if approved by the Ada County Highway District in accordance with its rules, regulations, policies and procedures. Private street and road improvements shall be considered, reviewed, and approved in conjunction with the approval of plats pursuant to this Article. Private street and road improvements shall comply with, and be approved pursuant to, the following criteria:

1. Private streets are to be named in accordance with the provisions of the Ada County uniform street name ordinance.
2. Private streets shall originate at a public right of way and terminate at a forty-five foot (45') cul-de-sac or other approved turnaround area.
3. Shared driveways shall originate at a public right of way or private road easement. The design and construction standards shall be approved by the engineer of record and the applicable fire district.
4. Private street and shared driveway access shall be guaranteed by a recorded perpetual use easement to be noted on the final plat.
5. Construction Standards:

	Private Streets		Shared Driveways
	1 to 4 lots	>4 lots	
Minimum right of way width	30'	30'	n/a
Minimum improved width	20'	24'	20'
6" of $\frac{3}{4}$ " crushed gravel, compacted	X	X	X

2% slope from centerline	X	X	X
Improved surface (minimum)	Pavement of asphalt or concrete. If concrete, pavement shall consist of a 4" slab on 4" of $\frac{3}{4}$ " gravel base course. If asphalt, pavement shall consist of	Pavement of asphalt or concrete. If concrete, pavement shall consist of a 4" slab on 4" of $\frac{3}{4}$ " gravel base course. If	n/a
	a minimum of 2" machine laid asphalt with 6" of $\frac{3}{4}$ " gravel base course or 1 $\frac{1}{2}$ " thick bituminous surface treatment on 6" of $\frac{3}{4}$ " gravel base course.	asphalt, pavement shall consist of a minimum of 2 $\frac{1}{2}$ " machine laid asphalt with 6" of $\frac{3}{4}$ " gravel base course.	

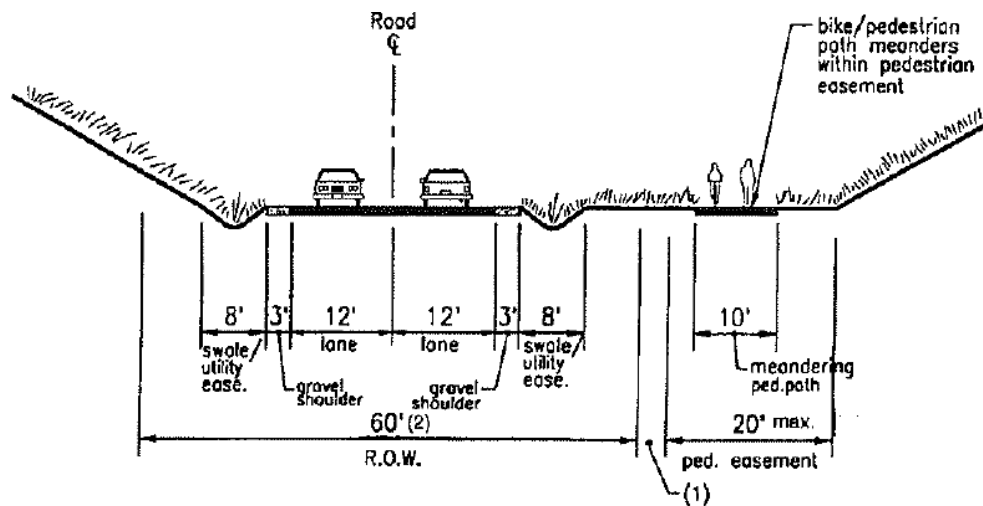
FIGURE 8-13D-7C3b STREET IMPROVEMENTS

Road Type	ROW	Total Pavement Width	Travel Lanes	Shoulder Width (ea)	Turn Lane/ Median	Parking (Left)	Sidewalk/ Bike Path	Setback To Path (1)	Curb Type
Rural collector - typical	60'	24'	2@12'	3'	None	None	10'	n/a	None
Rural collector - with turn lane	60'	36'	2@12'	3'	12'	None	10'	n/a	None
Rural collector - constrained	46'	24'	2@12'	3'	None	None	8'	n/a	None
Dry Creek Bridge crossing	60'	26'	2@13'	0'	None	None	10'	n/a	6" vertical

Road Type	ROW	Total Pavement Width	Travel Lanes	Shoulder Width (ea)	Turn Lane/ Median	Parking (Left)	Sidewalk/ Bike Path	Setback To Path (1)	Curb Type
Rural residential - typical	50'	22'	2@11'	3'	None	None	8'	n/a	None
Rural residential - constrained	40'	22'	2@11'	0'	None	None	8'	n/a	12" ribbon
Village street - primary	72'	50'	2@12'	0'	10'	8'	5'	6'	6" vertical
Village street - residential	56'	34'	2@10'	0'	None	7'	5'	6'	6" vertical
Village alley	20'	16'	n/a	2'	None	None	None	n/a	None

Note:

(1) Distance measured from face of curb.

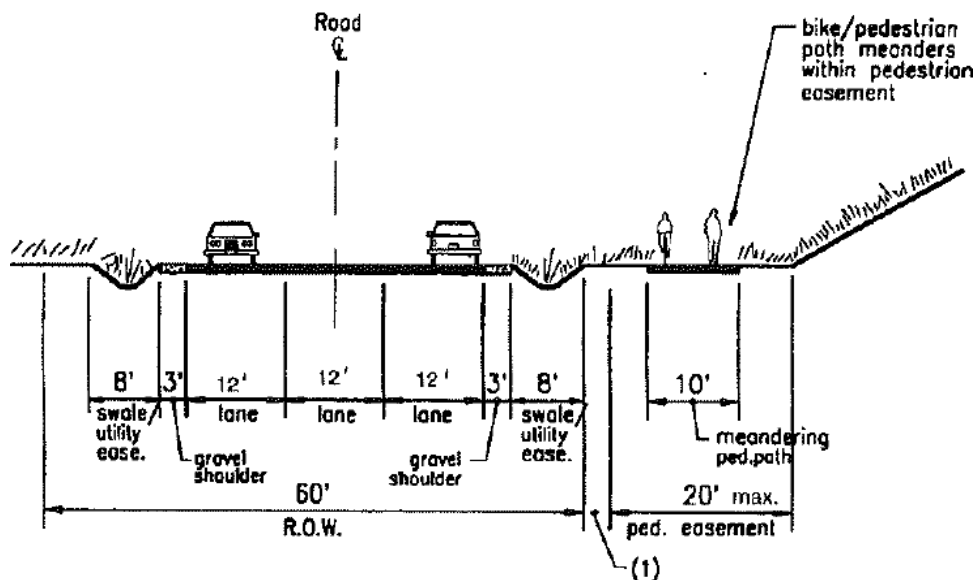


Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

(2) The ROW shall be eighty (80') feet for Cartwright Road southeast of its intersection with Dry Creek Road and for Dry Creek Road from its eastern terminus westward to and including the Dry Creek Bridge.

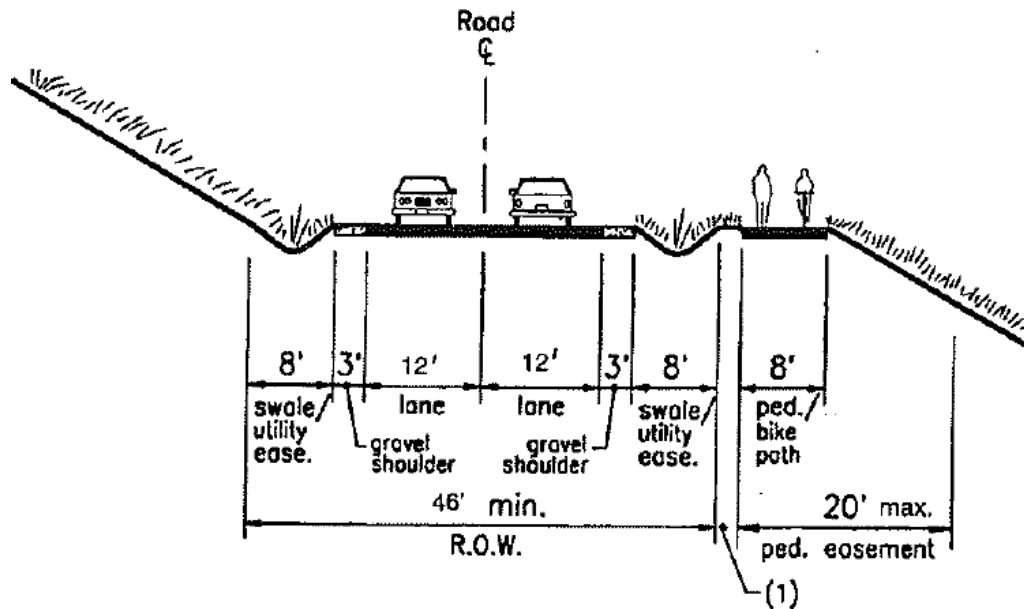
Rural Collector - Typical (Seaman's Gulch Road, Dry Creek Road, And Lower Cartwright Road):	Rural collectors serve to collect traffic from and distribute traffic to village streets and rural residential roadways throughout the project. They will also serve to accommodate through traffic - although through traffic will be discouraged to help maintain the rural character and minimize environmental impact to the Dry Creek Valley. The typical section includes a sixty-foot (60') right of way with two (2) 12-foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8-foot maximum width grass swales. A single ten-foot (10') pedestrian/bicycle path will meander in a pedestrian easement generally parallel to the right of way but not always contiguous to the right of way.
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Note:

(1) Pedestrian easement may or may not be contiguous. (Typical)

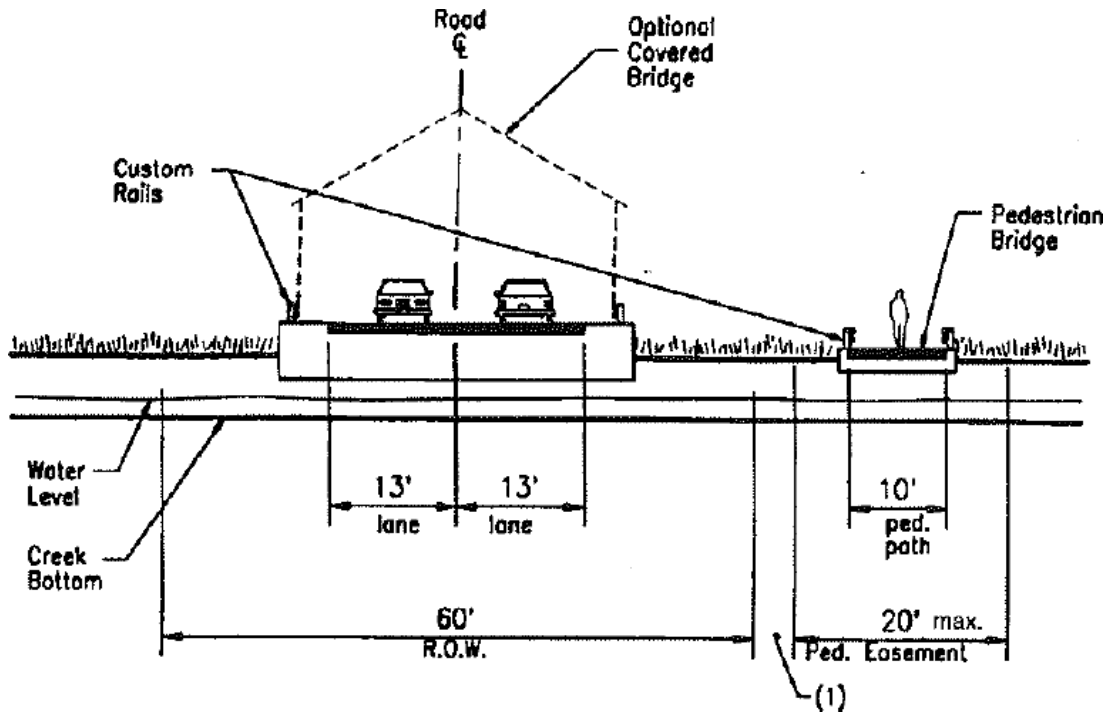
Rural Collector - With Turn Lane	For rural collectors where turn lanes are needed, a twelve-foot (12') center turn lane will be added as necessary to accommodate turning movement into project roadways. The Section will also include travel lanes of twelve feet (12'). Otherwise, the Section will remain the same as the typical rural collector.
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Note:

(1) Pedestrian easement may or may not be contiguous. (Typical)

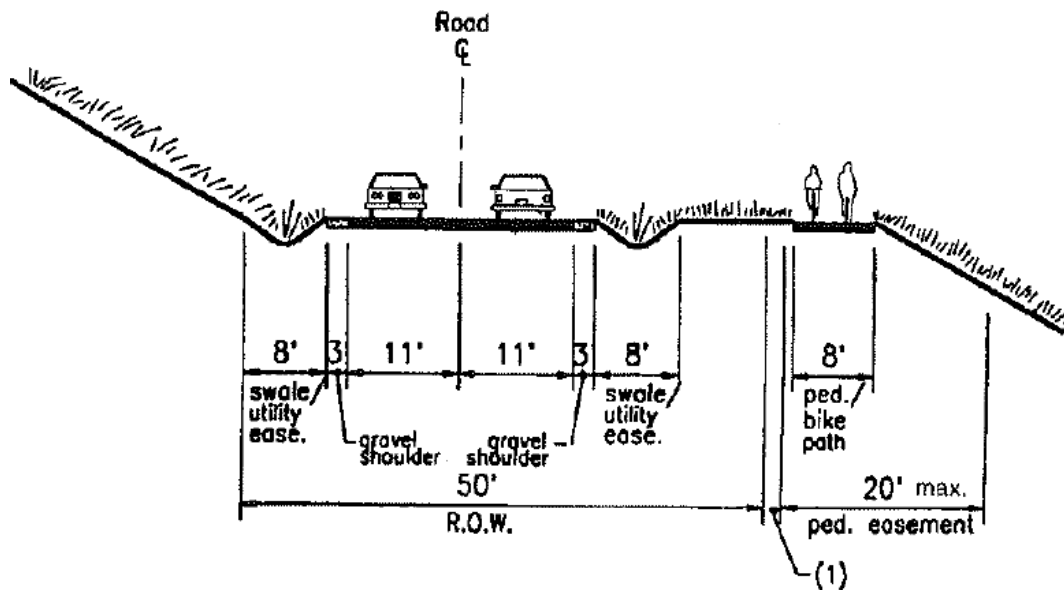
Rural Collector - Constrained (Upper Cartwright Road):	The rural collector constrained section mainly occurs in the upper portion of Cartwright Road. In order to maintain the visual character and minimize the site disturbance, this section has been narrowed. The typical section includes a forty-six foot (46') right of way with two (2) 12- foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8-foot maximum width grass swales. A single eight foot (8') shared pedestrian/bicycle path will be approximately parallel to the right of way in a separate pedestrian easement.
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Note:

(1) Pedestrian easement may or may not be contiguous. (Typical)

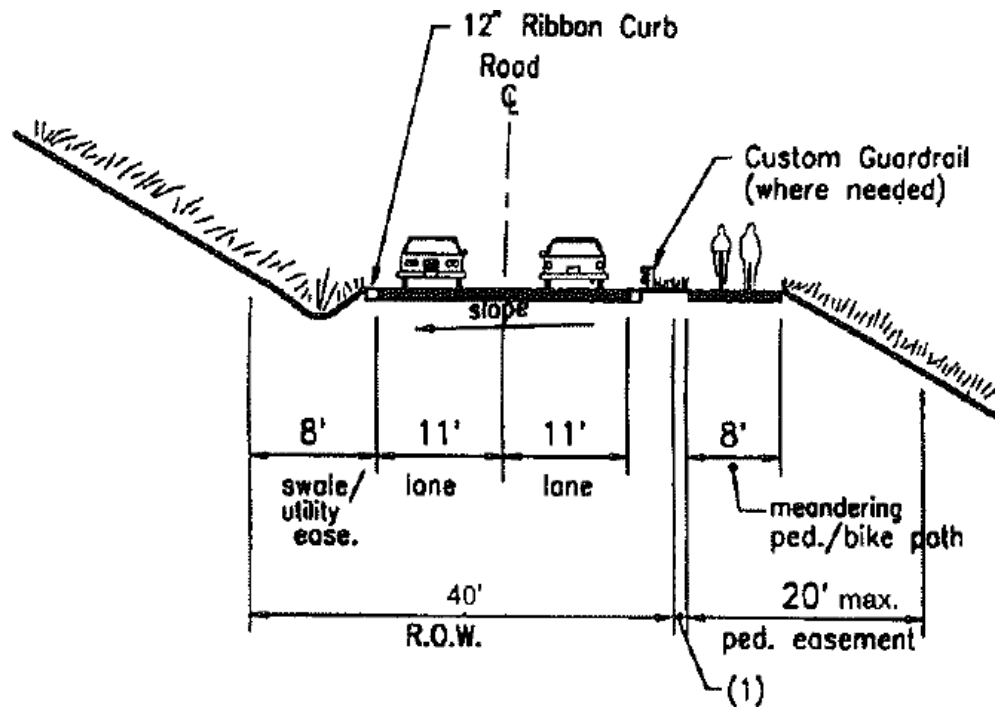
Dry Creek Bridge Crossing:	The Dry Creek Bridge Crossing will provide enhanced capacity, safety and the addition of a separate bicycle/pedestrian facility across Dry Creek. The bridge can also serve as a primary visual identity element for the project and may become a "covered bridge" with appropriate vertical clearance and architectural style. The bridge crossing will remain in its current location. Bridge width and associated grading should be kept to a minimum to prevent impact to the riparian corridor. The typical section includes a thirty-two foot (32') wide bridge surface with two (2) 13-foot travel lanes. A single ten-foot (10') pedestrian/bicycle path will be accommodated in a separate pedestrian/bicycle bridge crossing.
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Note:

(1) Pedestrian easement may or may not be contiguous. (Typical)

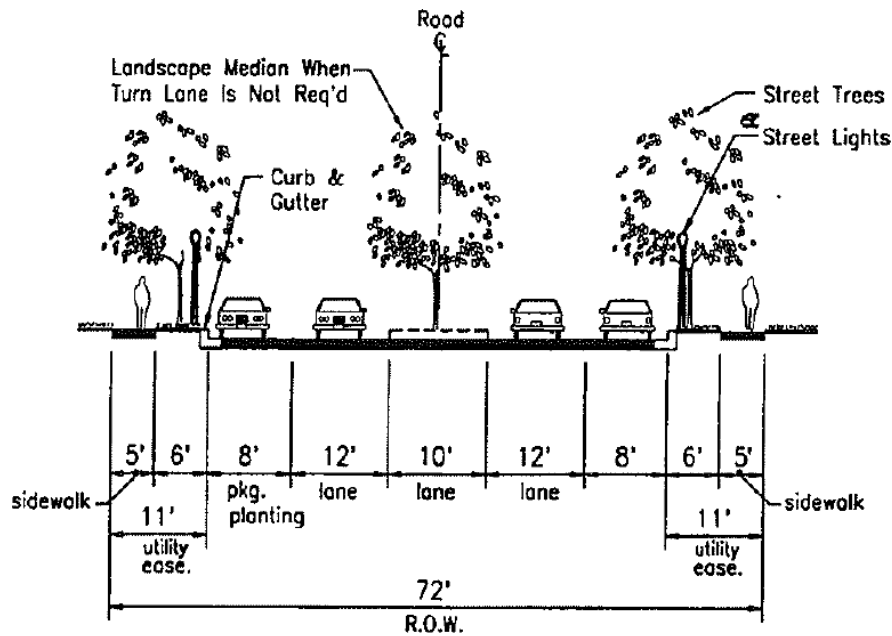
Rural Residential - Typical:	Rural residential streets include most of the roadways in Hidden Springs and will serve to carry local traffic to/from individual homesites. These roadways will be located and designed to discourage through traffic and maintain low vehicular speeds. The typical section includes a fifty-foot (50') right of way with two (2) 11-foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8-foot maximum width grass swales. A single eight foot (8') shared pedestrian/bicycle path will meander beyond the ROW in a pedestrian easement as necessary.
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Note:

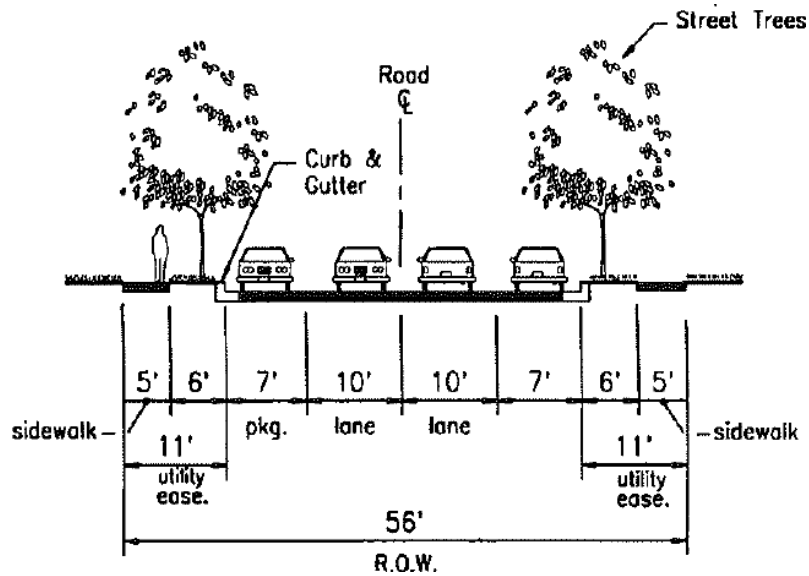
(1) Pedestrian easement may or may not be contiguous. (Typical)

Rural Residential - Constrained:	Constrained rural residential streets occur in steeply sloped areas that cannot handle the width required for the typical rural residential section. This section includes a forty-foot (40') right of way with two (2) 11-foot travel lanes, no stabilized shoulders (but a 12-inch ribbon curb included in the 11-foot travel lane) and one grass swale on the uphill side of the street. An eight-foot (8') pedestrian/bicycle path will be located on the downhill side of the street with a wood guardrail separating it from the street for safety purposes.
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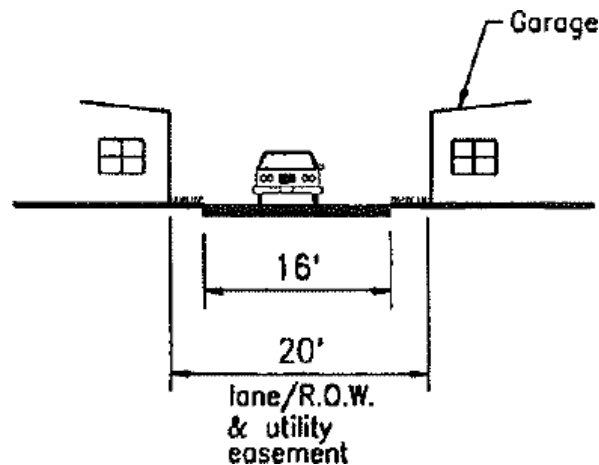
Village Street - Primary (Seaman's Gulch Road, Dry Creek Road and McFarland Road Within the Village Center):

Primary village streets will serve as the "main streets" of the village center and will accommodate the potential for commercial uses, community center, school, and village residential uses along their frontage. Village streets should establish a comfortable environment for pedestrians with slower vehicular speeds, frequent vehicular stops, on street parking and tree lined sidewalks. The typical section includes a seventy-two foot (72') ROW with two (2) 12-foot travel lanes, one 10-foot turn lane (where necessary) or planted median, two (2) 8-foot parallel parking lanes, and five foot (5') sidewalks set back from the curb with a five foot six inch (5'6") tree lawn on both sides of the street and within the right of way.



Village Residential (All Other Streets Within the Village Center):

Residential village streets should also establish a comfortable pedestrian environment with slow vehicular speeds, frequent vehicular stops, on these streets should be low enough to eliminate the need for turn lanes. The typical section includes a fifty-six foot (56') right of way with two (2) 7-foot parallel parking lanes and five foot (5') sidewalks set back from the curb with a five foot six inch (5'6") tree lawn.



Village Alley:

Alleys will be created to eliminate driveways on village streets. Fewer driveways on village streets means more on street parking, more resident interaction, less utilitarian infrastructure, and no unsightly garages lining residential streets. Alleys will also be used for utility easements, trash collection, and emergency vehicular access. The typical alley section includes a sixteen-foot (16') paved lane with two foot (2') shoulders on each side.

- a. **General Development Standards.** The standards and specifications for each general type of use shall be as set forth in the Hidden Springs specific plan and this Article.
- b. **Acceptance of Improvements by County.** Where an acceptable surety arrangement is deposited as provided in subsection C3e of this Section and the work thereby guaranteed has been completed, notice in writing of such completion, together with sets of prints of the "as built" plans and specifications for all improvements, and requests for the return of the surety arrangement shall be given in duplicate to the Director, who shall give one copy thereof to the County Engineer for verification and certificate of completion of work. Upon the Director receiving said certificate as provided in subsection C3g of this Section, the Director shall give notice to the County clerk to release the sureties heretofore deposited with said County clerk in the manner and to the extent as provided for in the surety agreement referred to in subsection C3e of this Section and commensurate to the extent of the acceptance by the County Engineer of the work, or other improvements called for in the surety agreement.
- c. **Deposit for Completion of Required Improvements.** An applicant or other interested party, in lieu of completion of the required minimum street and other improvements required by subsection C3b of this Section, or any portion thereof, may deposit with the County clerk a surety bond or performance bond, or a certified check or a cashier's check drawn on a bank qualified to do business in the state, or a cash deposit, or an acceptable letter of credit, certificate of deposit, or assignment of funds on deposit in a bank or building and loan association, qualified to do business in the state, and the amount of such surety called for to be equal to not less than one hundred twenty percent (120%) of the cost of required improvements according to the estimate reviewed and approved by the Ada County Engineer, and in all cases such surety shall be drawn in favor of, and payable to the order of the County of Ada, in accordance with the provisions contained in the surety agreement by and between the guarantor and the County of Ada. Such surety agreement shall contain suitable provisions requiring the applicant to construct all improvements.
- d. **Notice of Installation.** The applicant shall be required to give the County Engineer two (2) days' advance notice of any and all construction of required improvements.
- e. **Certificates.** Provisions requiring compliance by the applicant prior to recording of final plat shall be:
 - 1. A certificate by the County Engineer certifying that the applicant has complied with one of the following alternatives:
 - a. All improvements have been installed in accordance with the requirements of this Article and with the action of the Board giving conditional approval of the preliminary plat; or
 - b. An acceptable surety arrangement has been posted, which is available to the County, and in sufficient amount to assure such completion of all required improvements.

2. Such other certificates, affidavits, endorsements, or deductions as may be required by the Commission in the enforcement of this Article.
 3. Protective covenants in form for recording if required.
 4. **Dedication of Streets.** All public streets shall be done in accordance with the provisions of this Article and the Ada County Highway District's rules, regulations, policies, and procedures.
- D. Parcel Boundary Adjustment.** The Director may approve the adjustment of platted or unplatted parcel boundary lines. The approval process shall be as follows:
1. **Application.** All owners of parcels involved in parcel boundary adjustment shall submit a completed standard application to the Director.
 2. **Tentative Approval.** The Director shall apply the following standards to determine whether or not approval of the proposed parcel boundary adjustment will be granted:
 - a. A parcel boundary adjustment shall not reduce the parcel site below the minimum dimensional standards prescribed by this Article.
 - b. A parcel boundary adjustment shall not increase the original number of parcels.
 - c. A parcel boundary adjustment shall not change or move any public streets, private streets, easements, or publicly dedicated areas in any manner.
 3. **Final Approval.** Upon tentative approval of the application by the Director, the applicant shall:
 - a. Cause the property to be surveyed and a record of survey recorded;
 - b. Execute and record the necessary deeds to accomplish the parcel boundary adjustments as approved;
 - c. Obtain new tax parcel numbers from the Ada County Assessor; and
 - d. Provide copies of the recorded record of survey, recorded deeds, and the new tax parcel numbers to the Director.
 4. **Certificate Of Approval Issuance.** Upon determination by the Director that the final parcel boundary adjustment is in conformance with this Section, a certificate of approval shall be issued.
 5. **Required Fees.** All required fees must be paid in accordance with 8-6-5 of this Title.
- E. Administrative Permit Use Approval Process.** Both the residential use and nonresidential use categories listed in subsections 8-13D-5B and C of this Article, respectively, contain acceptable administrative permit uses. The development of any administrative permit use requires an administrative permit. Administrative permit uses contained within subsections 8-13D-5B, and C of this Article are approved as follows:
1. **Approval Required by The Director.** In view of the potential impact upon adjacent property from an administrative permit use, the granting of such a permit shall be subject to review and approval by the Director.
- The applicant shall submit an application, as provided by the Director, and pay a fee to the Director in accordance with the provisions contained in this Article. The fee

schedule for administrative permits shall be proposed by the Director and approved by the Board.

2. Information Required on Application. The application for an administrative permit shall include the following information and materials:

- a. A vicinity map at a scale of three hundred feet (300') per one inch (1").
- b. A statement describing the project in narrative form.
- c. A general description of how adjacent and neighboring properties will be protected from adverse effects, if any, prompted by the proposed development.
- d. A statement setting forth the maximum overall gross floor area and, if applicable, the floor area ratio proposed, and the maximum gross floor area and floor area ratio proposed for each use in the proposed development.
- e. A statement setting forth the number of parking spaces, and the general location and character, whether surface or structured, thereof, if applicable.
- f. A statement of the improvements, public or private, on or off site, proposed for construction or dedication, and an estimate of the timing of providing such improvements.
- g. A conceptual design plan, at an acceptable scale, showing, to the extent applicable, the location and arrangement of all proposed uses, the proposed traffic circulation plan including points of access, parking areas, major streets and major pedestrian, bike, or other recreational paths, all proposed major open space and landscaped areas, and the approximate location of all proposed community and public facilities.
- h. Such additional information as the Director may require, or the applicant may desire to submit, in order to facilitate review and consideration of the administrative permit use.

3. Notices And Meetings. The Director shall mail notices to property owners within three hundred feet (300') of the external lot line of the property under consideration, and fifteen (15) days shall be allowed for response to said notice.

It shall be the sole duty of the applicant and not that of Ada County to provide notice and opportunity for a meeting at least fourteen (14) days prior to the administrative permit decision before the Director to review the proposed project to all residents within three hundred feet (300') of the exterior boundary of the application parcel, and to all applicable community associations within the Hidden Springs planned community. Such meeting or opportunity for a meeting shall take place not more than six (6) months before submittal of the application. Verification of a meeting, or that an opportunity for a meeting was provided, shall be submitted in writing by the applicant to the Director.

4. Approval/Findings. The Director shall consider the following criteria in determining whether to approve, approve with conditions, or deny said administrative permit:

- a. The proposed administrative permit use is designed to mitigate any substantial adverse impacts, hazard or nuisance, or other material detriment to surrounding lands;

- b. The site is of sufficient size to accommodate the proposed use and all yards, open spaces, walls, fences, parking, loading areas, landscaping and design standards as are required by this Article are met;
 - c. The proposed development is designed in accordance with public facilities, services, transportation systems and essential public services which are adequate for the development proposed, and which are available, or reasonably probable to be achieved, prior to use and occupancy of the development; and
 - d. The proposed use substantially complies with the Hidden Springs specific plan and this Article.
- 5. Conditions.** An application for an administrative permit shall be approved by the Director contingent upon acceptance and observance of specified conditions including, but not limited to, the following:
- a. Conformity to approved conceptual design plans;
 - b. Performance standards, related to the emission of noise, vibration, glare and other potentially adverse impacts;
 - c. Limits on time of day for the conduct of specified activities;
 - d. The period within which the permit shall be exercised or otherwise lapse;
 - e. Guarantees as to compliance with the terms of the approval;
 - f. A continuous obligation to maintain adequate housekeeping practices to prevent the creation of a nuisance;
 - g. Performance standards, which protect the public health, safety and welfare and mitigate adverse effects on surrounding property.
- 6. Application Time Frame.** An application for an administrative permit shall be acted upon by the Director within not more than sixty (60) days following acceptance of the application. Administrative permit uses may only be granted as allowed by this Article.
- 7. Amendments.** Once an administrative permit has been approved, the applicant may seek an amendment using the same procedures as an initial administrative permit use application.
- F. Accessory Use Provisions.** The Director shall make the determination as to whether a building, structure or use is accessory to a principal permitted use or administrative permit use and may issue zoning certificates if a use is determined to be accessory and would otherwise comply with this Article.

The determination of whether a building, structure or use is accessory shall be based upon the relationship of the building, structure or use to the principal permitted use or administrative permit use. Specifically, it must be habitually or commonly established as reasonably incidental to the principal permitted use or administrative permit use and located and conducted on the same premises as the principal permitted use or administrative permit use. In determining whether it is accessory, the following factors shall be used:

- 1. The size of the lot in question;

2. The nature of the principal permitted or administrative permit use;
3. The zoning and land use on adjacent lots;
4. The actual incidence of similar accessory uses in the area; and
5. The potential for adverse impact on adjacent property.

The applicant shall submit an application on an approved form together with the established fee. The Director, after reviewing said application, shall approve, approve with conditions, or deny said application within sixty (60) days of his acceptance of the application.

G. Employment Center Approval Process. The Hidden Springs zoning map and subsection 8-13D-5C6 of this Article provide for "employment center" overlay districts. These employment center overlay districts and the permitted and accessory uses are consistent with the overall goals and policies and purposes and intent of the Hidden Springs specific plan and this Article. The exact impacts of the employment center uses are difficult to determine until the specific use is identified and evaluated. As part of the application for an employment center use being considered in the Hidden Springs planned community, additional studies, and analysis of the specific use as well as a public hearing before the Commission are required.

1. **Application Submittal.** The applicant shall submit an application to the Director in accordance with the provisions contained in this Article. The fee schedule for employment center permits shall be proposed by the Director and approved by the Board. The Director shall set the date for a public hearing and the notice of hearing shall be given in accordance with subsections G2 and G3 of this Section.
2. **Date Of Application.** The date of application shall be the date that the Director accepts a complete application including payment of the required fee and all of the information in the manner as required by this Article. The date for the required public hearings shall be fixed by the Director, within a reasonable time thereafter, and in no case later than sixty (60) days after receipt of the application in its due form. Hearing and notice procedures shall be governed by 8-6-8 of this Title, and Idaho Code Section 67-6501 et seq., as shall be amended from time to time and by such rules and procedures as the Commission and the Board may adopt pursuant to this Article and this Title.
3. **Hearings.** At every public hearing before the Commission, the Commission shall hear all interested persons, or their representative. The Commission shall receive, investigate, hear, and take action upon every application received. In acting upon the applications involving property, the Commission may require reasonable conditions of approval that it deems necessary to protect the public health, safety and welfare and prevent adverse impacts on surrounding parties. Action of the Commission shall be documented.
4. **Information Required on Application.** The application for an employment center use permit shall include the information and materials required for an administrative permit application and such other information as the Director shall identify in the preapplication conference as described in subsection B of this Section.
5. **Approval/Findings.** An application for an employment center use permit may be approved only if the evidence at the hearings establishes that the proposed employment

center use:

- a. Utilizes site planning and general building massing and architecture themes that maintain or enhance the rural character of the Dry Creek Valley and surrounding areas;
 - b. Maintains or enhances the natural environmental qualities of the land and does not disrupt existing environmental systems;
 - c. Minimizes the visual impact of development by capitalizing on the site's existing landforms and supplemental grading and landscaping;
 - d. Connects to the project wide network of roadways, paths, and trails in an integrated manner;
 - e. Augments community water and sanitary wastewater collection and treatment systems sufficiently to support the proposed use without impacting the quality of service to residential and commercial uses within the community;
 - f. Is designed to mitigate any substantial adverse impacts, hazard or nuisance, or other material detriment to surrounding lands;
 - g. Is of sufficient size to accommodate the proposed use;
 - h. Is designed in accordance with public facilities, services, transportation systems and essential public services which are adequate for the development proposed, and which are available, or reasonably probable to be achieved prior to use and occupancy of the development; and
 - i. Is consistent with the general intent of the Hidden Springs specific plan.
- 6. Employment Center Use Permit Granted.** The granting of an employment center use permit shall be subject to compliance with the Hidden Springs specific plan and this Article. Employment center uses may only be granted as allowed by this Article.
- 7. Employment Center Use Permit Approval.** An application for an employment center use permit shall be approved by the Commission contingent upon acceptance and observance of specified conditions including, but not limited to, the following:
- a. Conformity to approved conceptual design plans;
 - b. Performance standards, related to the emission of noise, vibration, glare, and other potentially adverse impacts;
 - c. Limits on time of day for the conduct of specified activities;
 - d. The period within which the permit shall be exercised or otherwise lapse;
 - e. Guarantees as to compliance with the terms of the approval;
 - f. A continuous obligation to maintain adequate operational practices to prevent the creation of a nuisance; and
 - g. Performance standards, which protect the public health, safety and welfare and mitigate adverse effects on surrounding property.
- 8. Amendments.** Once an employment center use permit has been approved, an applicant

may seek an amendment using the same procedures as an initial employment center application.

H. Building Permits. Building permits and grading permits shall be issued in accordance with the Ada County Building Code ordinance; provided, however, that no building or grading permit shall be issued to an applicant until such time as the applicant has provided to the county a certificate issued by the Hidden Springs design review committee approving the proposed building improvements and/or grading for which the building permit or grading permit is being sought.

I. Public Community Event Permit Approval Process. The holding of a public community event requires a public community event permit. Public community event permits are approved as follows:

- 1. Approval Required by The Director.** In view of the potential impact upon adjacent property from a public community event, the granting of such a permit shall be subject to review and approval by the Director. The applicant shall submit an application, as approved by the Director, and pay a fee to the Director in accordance with the provisions contained in this Article.
- 2. Information Required on Application.** The application for a public community event permit shall include the following information and materials:
 - a. Time, place, duration, and location of event;
 - b. Nature of event;
 - c. Estimated attendance;
 - d. Prior to submittal of a public event permit application, the applicant shall submit written approval of the event plan from the following agencies to development services (the approval may be either on agency letterhead referring to the approved plan or may be written/stamped upon a copy of the approved plans):
 1. Central District Health Department,
 2. Ada County Sheriff,
 3. North Ada County Fire and Rescue District;
 - e. Sanitary facilities to be provided, if any;
 - f. Traffic and parking management plans, if any;
 - g. Special security measures, if any;
 - h. Name, address, and telephone number of event holder.
- 3. Approval/Findings.** The Director shall consider the following criteria in determining whether to approve, approve with conditions, or deny said permit:
 - a. The proposed site is of sufficient size to accommodate the event; and
 - b. The proposed sanitary facilities, traffic and parking plan, security measures, and fire protection and/or prevention measures are adequate for the proposed event.
- 4. Time Frame.** An application for a public community event permit shall be submitted

at least twenty-five (25) days prior to the scheduled event. The Director shall accept or reject the application for good cause shown, in writing, within five (5) days. Once the application has been formally accepted the Director shall act upon the application within five (5) days.

- J. Signs.** Signs are allowed throughout Hidden Springs. 8-3-12 of this Title shall not be applicable to signs within Hidden Springs. The design review committee shall have exclusive authority to approve all temporary signs within Hidden Springs. Temporary signs shall be those with a dimension of eighteen (18) square feet or less in sign fascia and shall be in existence for a period of one hundred eighty (180) days or less. The Director shall review and approve or deny a sign in accordance with the design guidelines as set forth in Section 8-13D-10-6 of this Article.
- K. Appeals.** Actions taken by the Director or Commission to approve or deny any plat application, administrative permit use application, public community event permit application, sign application, or accessory use determination and including any condition of approval or denial thereof, may be appealed to the Board by the applicant or any adversely affected, or aggrieved person.
- L. Expenses For Processing Applications.** All expenses necessary to provide the data required hereunder for processing and/or qualifying an application shall be paid by the applicant through the fee schedule process referenced herein.
- M. Violations And Penalties.** Each violation of this Article set forth herein shall be a misdemeanor. Each violation for each day it shall continue shall constitute a separate offense, and each violation shall be punishable as provided in Section 18-113, Idaho Code as it may from time to time be amended and/or retitled.

Whenever the Director shall determine that a violation of these regulations has occurred, or is about to occur, he shall notify the Board of such violation and recommend action that should be taken. Upon determination of a violation, whether or not a recommendation has been received from the Director, the Board may request the Ada County prosecuting attorney to commence action, criminal or civil, to correct the violation and to punish the same.

In the event any action is taken in violation of a provision hereof, the proper authorities of the County, in addition to other remedies, may institute any appropriate action or proceeding to prevent such unlawful development of land, to restrain, correct or abate such violation, or to prevent any illegal act, conduct, business or use in or about such premises.

8-13D-8: Amendments

This Article and/or the specific plan shall be amended in the same manner as provided in this Title for amendments to the Ada County Zoning Ordinance. The specific plan shall be amended by resolution of the Board.

8-13D-9: Specific Plan

8-13D-9-1: Vision Statement

Vision. The primary vision of Hidden Springs is the creation of a rural community in the tradition of small towns spread throughout Idaho. In accomplishing this goal, the traditional character of the Dry Creek area will be maintained, while allowing for low density residential development. In

addition, development of the Hidden Springs community is intended to provide residents with a clear sense of place. The Hidden Springs plan includes a small Village Center; a general store; a school site; fire and sheriff facilities; playing fields; and recreation facilities.

Another principal element of the Hidden Springs vision is an emphasis on protecting and enhancing the natural environment. Plans for development are based on careful analysis of the physical and ecological characteristics of the land. Design standards and guidelines will ensure that only a very small fraction of the land is ever developed or disturbed and that homes will be compatible with the environmental systems of the area.

Perhaps most importantly, Hidden Springs has been conceived as an integrated rural planned community with requisite maintenance and operating entities and established development standards and design guidelines. When people make the choice to live in Hidden Springs it will be with a vision of what the community and its surroundings will be like both now and in the future.

Major Plan Elements

Traditional Village Center. The Village Center is envisioned as a rural community center built around a general store, small scale shops and restaurants, a community center, recreation facilities and other appropriate commercial and community amenities. The Village Center will also include a fire station and sheriff's office.

Density and Community Diversity. Hidden Springs specific plan assumes one thousand thirty-five (1,035) units on one thousand seven hundred sixty-five (1,765) acres, for an overall density of about one unit per one and seven-tenths (1.7) acres. A range of housing types and prices, from farm/ranch lots to townhomes will offer a diversity of living options from rural to traditional north end style housing. This concept promotes community diversity by offering a variety of housing opportunities for first time buyers through large families to empty nesters.

Traffic Reduction. Hidden Springs is planned and designed to reduce reliance on the automobile and to minimize and contain vehicle trips, by:

- Providing a general store, schools, and on-site recreation that will keep trips from going outside the project area.
- Directing traffic southwest to State Street via Gary Lane and westward to Highway 55 and Eagle Road.
- Providing a park and ride lot in the Village Center.
- Creating an extensive pedestrian and bicycle path system.
- Incorporating advanced technology to encourage and support telecommuting.

Trails and Greenbelt

- Hidden Springs will initiate and provide the foundation for major additions to the Boise foothills trail system, including:
- A publicly accessible greenbelt system for all of Dry Creek Valley, from Bogus Basin Road to Eagle, for both public recreation and wildlife habitat protection.
- Public access along Dry Creek, the western foothills, and to trail systems beyond.
- In addition, Hidden Springs will feature a comprehensive internal pedestrian and bicycle

path system to encourage nonmotorized transportation and on-site recreation.

Wildlife

- The plans for Hidden Springs place strong emphasis on promoting wildlife, including:
- The conservation and enhancement of large upland and riparian areas as wildlife habitat or migration corridors.
- Attention to both game and nongame wildlife needs.
- A unique set of development standards and design guidelines prepared to minimize conflicts between wildlife and development through landscape design and domestic pet controls.
- Conservation and enhancement of the Dry Creek greenbelt corridor.

Design And Development Standards

- Plans and designs for Hidden Springs have been built from the ground up with sensitivity to the site's unique qualities and character. The built community will be based on standards including:
- Tucking new development into coves and avoiding "ridge chopping" construction techniques.
- Locating roads to follow natural contours and approach development from draws and the rear to minimize visual impacts of road cuts.
- Designating building envelopes to ensure maintenance of the rural character and to minimize visual impacts of development.
- Designing landscape envelopes around homes to ensure the predominance of the indigenous vegetation and reduce water usage.

Water Conservation. A water conservation program will be employed to reduce water requirements for homes built in Hidden Springs compared with conventional development with similar types of homes in the Boise area. The conservation program will include:

- A Xeriscape or low water consumption approach to new installed landscape.
- Limitation to areas to be landscaped.
- Use of advanced irrigation technology.
- Building design requirements for low flow or low water use fixtures.
- Educational materials provided to all homeowners.

8-13D-9-2: Objectives and Policies

Community Goals, Objectives and Policies. The goals, objectives and policies for the community of Hidden Springs are as follows:

1. Create a rural community and a traditional Village Center.
2. Preserve and enhance the rural character of Hidden Springs in general and for the project site in particular.

3. Conserve and enhance wildlife habitat and migration corridors.
4. Maintain and enhance the natural environmental qualities of the land, and air and water quality.
5. Implement trip reduction strategies to reduce vehicular trip generation and minimize the number of vehicle trips outside the community.
6. Direct traffic to existing collector, state highways, and arterial streets to the south and west.
7. Provide for a mix of housing types and densities and commercial activities in order to provide for a strong and diverse community.
8. Minimize negative visual impacts of new development.
9. Provide a network of public and private paths for bicycles, pedestrians and, where appropriate, equestrians, to allow ease of movement around the community.
10. Provide for an irrigation delivery system for agricultural land and common areas.
11. Provide a publicly accessible greenbelt area and path along Dry Creek within the project site and on-site trails which link to the foothills regional trail system.
12. Ensure that the community has all essential public services and mechanisms in place to maintain and operate such systems.
13. Establish project, site and building design guidelines that will minimize the threat and assist in the control of wildfires.
14. Provide sites for schools, a fire station and law enforcement facilities.
15. Create parks, playing fields and recreational facilities.
16. Establish a community association with appropriate responsibilities for maintenance, management, and governance of Hidden Springs.

8-13D-9-3: Population and Development Trends

The following table documents population estimates and projections for Ada County and planning areas within the County. These numbers have been adopted by the Ada Planning Association as the basis for planning activities in Ada County. Future population increases for Ada County have been forecast at an average annual rate of approximately three percent (3%). The rate of growth for 1990-1995 three and eight-tenths percent (3.8%), is considerably greater than the two percent (2%) average rate seen between 1980 and 1990.

Growth Patterns. The number of households continues to increase dramatically, surpassing population growth. This rapid growth pattern reflects a decrease in persons per household. Increase for the period 1990-1995 is estimated to be approximately forty-eight thousand two hundred four (48,204) people for a 1995 estimated population of two hundred fifty-three thousand nine hundred fifty-four (253,954). Ada Planning Association (APA) data projects that between 1995 and 2000, thirty-six thousand (36,000) new residents can be expected for a total of two hundred ninety thousand (290,000).

Hidden Springs is located within the Ada Planning Association Area called Rural. More specifically it is located mostly within the Traffic Zone 211 which lies north of Hill Road and

between Pierce Park and Seaman's Gulch Roads. The data for Traffic Zone 211 shows population doubling and households increasing by approximately one hundred percent (100%) from 1990 to 1995.

Alternative Plans. Ada County, the City of Boise and other local agencies have been moving forward in their evaluation of a land use plan for the foothills area, which covers the foothill area from Lucky Peak west to Highway 55 and includes the Dry Creek Valley and Hidden Springs. The Ada County Comprehensive Plan has been updated and adopted. The County anticipates consideration of the foothills plan in 1997.

Residential Development Patterns. Residential development in the Dry Creek Valley has historically been farm and ranch related. Since the mid-1980's however, significant numbers of rural residential homes on sites ranging from one to twenty-five (1–25) acres have been constructed. The pattern of rural residential construction along Dry Creek on the west side of Highway 55 is very extensive. Homes in that area are generally on lots from one-fourth (1/4) acre to five (5) acres. Demand for residential lots in Dry Creek to the east of Highway 55, which includes the Hidden Springs vicinity, is reported by property owners and realtors to be very high, although supply to this point has been limited to lot splits and small subdivisions.

Rapid growth in the Boise area is resulting in new development in a number of areas that have previously been predominantly rural. Hidden Springs, if built out completely in a fifteen (15) year period through 2010, would accommodate three percent (3%) of the population growth projected for Ada County.

Development Rationale and Justification. Hidden Springs is intended to accommodate and respond to the continued population growth Ada County is anticipated to experience. The Dry Creek Valley is identified in the current draft (and all previous drafts) of the city of Boise foothills plan as an area appropriate for development and urban densities. The physical and environmental characteristics of the Dry Creek Valley as well as the location of the valley in relation to existing and anticipated transportation networks make the area an appropriate place to accommodate planned community growth needs. Hidden Springs is also closer to the primary employment centers than much of the residential development occurring on prime farmland on the urban fringes.

Hidden Springs, at build-out, projects a total population of two thousand five hundred eighty-eight (2,588), with school enrollment at five hundred eighteen (518). The project will provide a unique rural community and development alternative that is otherwise not available in Ada County.

8-13D-9-4: Population Projections

Ada County Population Projections By Planning Area						
Planning Area	1990 US Census	1995	2000	2005	2010	2015
Ada County Population Projections By Planning Area						
Planning Area	1990 US Census	1995	2000	2005	2010	2015
Airport	749	814	821	786	734	662
Central Bench	35,713	39,635	40,759	40,451	40,723	41,417
Eagle	5,970	8,517	11,474	11,616	12,161	13,387
Garden City	6,620	8,536	9,559	9,722	10,135	10,707
Kuna	2,418	3,015	3,352	3,295	3,528	3,973
Meridian	12,412	21,251	30,049	31,331	35,571	40,607
North River						
Downtown	3,022	3,025	3,403	3,873	4,031	4,059
East End	5,925	6,677	6,993	6,986	7,203	7,470
Foothills	7,679	8,910	9,949	10,547	11,335	12,172
North End	15,645	16,910	17,453	17,198	17,549	17,993
Northwest	9,886	13,958	14,690	16,379	16,691	17,163
Southeast	21,742	29,892	34,536	36,891	40,910	46,014
Southwest	20,090	21,255	24,570	28,089	29,745	32,749
West Bench	44,304	55,571	62,593	65,995	69,961	74,344
Rural County	13,575	15,988	19,754	24,682	32,564	41,123
Total	205,750	253,954	289,955	307,841	332,841	363,840

	1990		1995		2000	
TAZ #211	Population Households		Population Households		Population Households	
	156	59	308	122	447	182

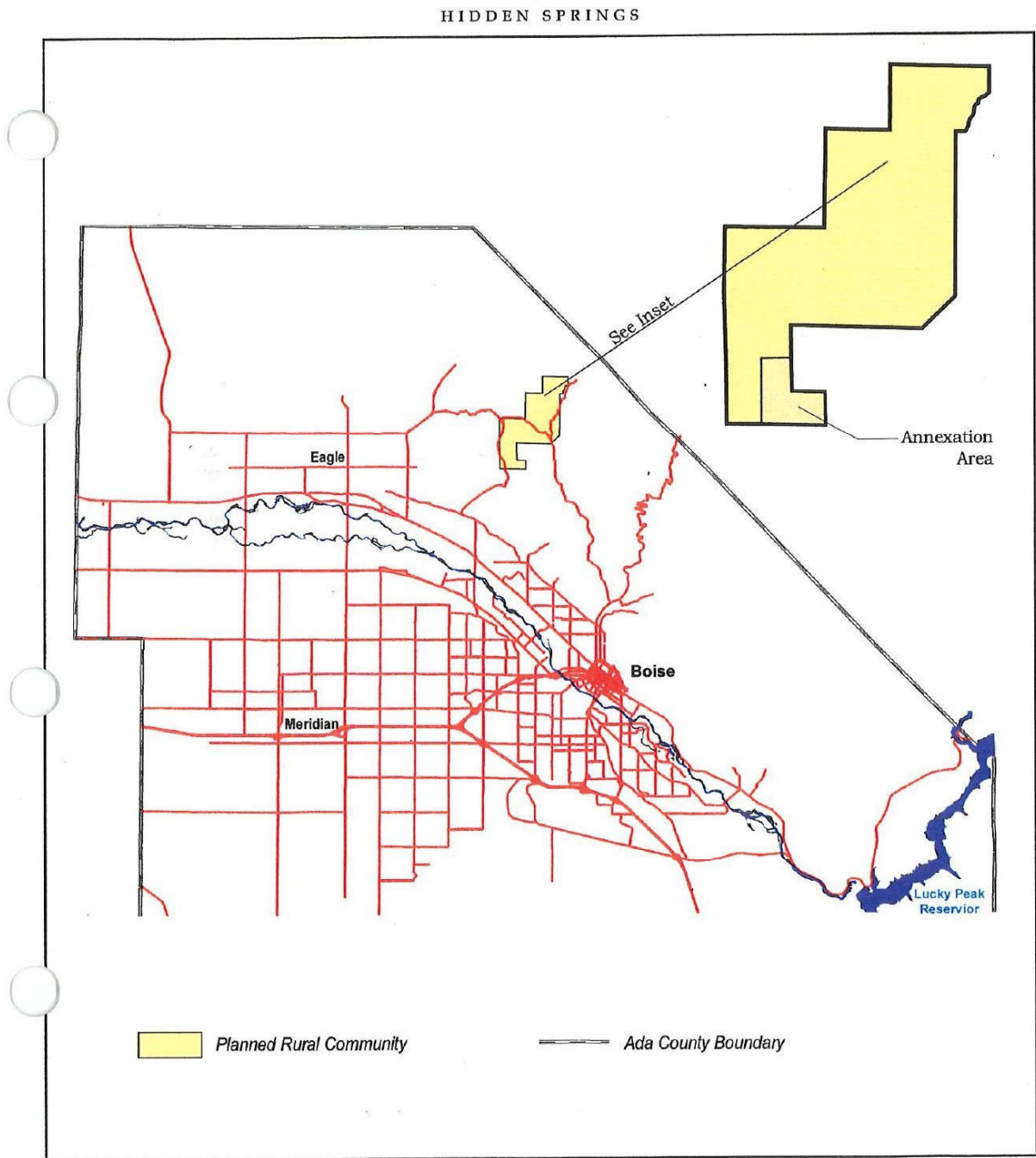
Source: Ada Planning Association, 1995 Preliminary Projections

8-13D-9-5: Existing Conditions Overview

The predevelopment conditions section of this specific plan is a comprehensive overview of the existing conditions at Hidden Springs. This information has been compiled through the efforts of a team of planning and technical consultants that represent a wide range of expertise. Combining national experience with a strong local familiarity in their respective fields, these planners, landscape architects, engineers, archaeologists, geologists, economists, attorneys, and natural resource specialists have all integrated their work to develop the background reports, maps and diagrams included herein. Each piece of information was developed through extensive agency coordination, field review, public input, and background research by the individual team members.

As part of this process, much of the critical existing natural, cultural, and environmental components of Hidden Springs have been mapped and diagrammed through computer technology and a database available in geographic information systems (GIS). This material was subsequently overlaid and composited into an analysis that identified the opportunities and limitations at Hidden Springs, providing the foundation for many of the critical land use strategies for the planning and development of Hidden Springs.

8-13D-9-6: Vicinity Map



Vicinity Map

April 1999

Figure 2-A

8-13D-9-7: Historical Overview

A History of Dry Creek Valley, 1860s to 1940s. The south fork of Dry Creek flows into a valley about a half (1/2) mile wide and two (2) miles long. Cottonwoods dot the creek bed and sage-covered sandstone hills surround the green valley floor. The Dry Creek area includes the region east from present day Highway 55, to Stewart Gulch and north from Hill Road to the Boise County line.

Boise Basin gold discoveries in 1863 brought hundreds of miners pouring into the region. Miners from played out Oregon and California gold camps came through Payette Valley, Horseshoe Bend, and by the new city of Boise, which was platted that year. It was situated next to the U.S. Army fort site selected by Major Pinckney Lugenbeel at the crossroads of the Oregon Trail and the road to the Boise Basin gold mines. Idaho Territory was established that year, with Boise named as its capital in 1864. Idaho first included what is now Montana and almost all of Wyoming. With the creation of Montana Territory in 1864 and Wyoming Territory in 1868, Idaho received its permanent boundaries. **(1)**

Boise became the major distribution site for Basin mining supplies and fresh produce. Many miners found it more profitable to make a living by raising livestock and some vegetables to sell to their counterparts and local soldiers, rather than mining the elusive gold. Small communities appeared throughout the Boise Basin as new settlers made their homes along creeks and rivers. There they could easily raise stock and crops and had ready access to local markets.

The Dry Creek Valley was one such community. It was centrally located near roads leading to the Boise Basin mines and the Boise Army barracks. An 1863 branch of the Oregon Trail passed nearby. Dry Creek's location, natural pastureland and rich soil made it a desirable setting. The creek and natural springs provided plentiful water for the stock and crops. For a short time in Dry Creek Valley, a stage station and stone hotel served travelers on their way to Boise Basin. **(2)**

Homestead records and deeds document eight land claims in Dry Creek Valley by 1864. One of the earliest settlers was P. L. Schick, who homesteaded what is now the Hidden Springs property in late 1864 with George Banker. They started out with five (5) horses, one wagon, one plow, and a harrow. Eventually Schick bought out Banker's interest in the property. Schick's assets, listed in the 1890 Ada County Assessor's records, show a man of substantial means:

money on deposit	\$700.00
2 vehicles	75.00
harness	25.00
55 stock horses	1,100.00
3 cows	60.00
7 cattle	84.00
7 hogs	20.00 (3)

Schick and his family raised stock and farmed in the area until at least 1907. Transportation networks in the region developed rapidly. In 1869 Alexander Rossi and A. H. Robie built a toll road from their Shafer Creek lumber mill, located near present-

day Horseshoe Bend. The road ran to mining areas near Sinker Creek in Owyhee County. The road continued to make Dry Creek Valley a thoroughfare for many people. Rossi and Robie's mill supplied building materials for Boise, Silver City, and other mining communities. The toll rates were two dollars fifty cents (\$2.50) for one wagon and a span of horses or cattle and fifty cents (\$0.50) for each additional span. (4)

Rossi and Robie ran the toll road until 1881, when Thomas Healy was granted a license to maintain the road "...from the crossing of Dry Creek to what is known as the Rossi Mill at Shafer Creek." (5) Healy typified many settlers of the Boise Valley. He first tried his hand at prospecting in Silver City and Atlanta. When that venture was not successful, he moved to Boise and formed a partnership with Frank Bailey to buy the Rossi sawmill. He maintained and ran the toll road until he sold it to Boise County in 1907. It was first called the Rossi Toll Road and eventually became known as Healy Toll Road. Toll rates dropped by 1884 to fifty cents (\$0.50) for one wagon and a span of horses or cattle, with each additional stock or wagon an additional twenty-five cents (\$0.25). A single horse or vehicle costs twenty-five cents (\$0.25). Rates stayed at the same price until the toll road was sold. Thomas Healy remained in the Dry Creek Valley until his death in 1925. (6)

By 1873, the area residents were raising and marketing hay and oats for the local Boise market. One local farmer threshed ninety-six (96) bushels of oats, grown on one acre of land. By the winter of 1873 hay was selling for thirty-five dollars (\$35.00) to forty dollars (\$40.00) a ton, so it became more profitable for Dry Creek Valley farmers to raise hay than grain. (7) The newspapers also mentioned the potential of farming in Dry Creek Valley. They described the Hidden Springs property, which was now a farm under the ownership of A.J. Wyatt, in detail.

His farm comprises one hundred sixty (160) acres, about one hundred forty (140) acres lying on the west side of the creek, all in one field, with the exception of five acres adjoining his house, fenced in for orchard and garden purposes. His house is on the same side of the creek, with a running spring and milk house nearby, and another small house where a tenant or hired men may occupy. The creek runs fifteen or twenty inches of water the driest time of the year, formed from springs at the source and along the banks, which increases it to two or three times the amount during the fore part of the season. (8) From this land Mr. Wyatt was able to produce one hundred eighty (180) tons of hay planted on seventy-five to eighty (75-80) acres. Local markets remained strong for hay and oat crops. Some farmers started planting fruit orchards, consisting mainly of peaches and apricots. (9)

By 1873, Dry Creek Valley had enough families with children to support a school. In 1878 the school housed twenty-nine (29) children between the ages of five (5) and twenty one (21). The valley's early population supported a second school by 1918, the Stack Rock school. The Stack Rock community consisted of ten (10) families located north of Dry Creek Valley. At one time nineteen (19) students attended the Stack Rock School.

(10) Both schools served as the cores of community social life. Unlike other small agricultural settlements, Dry Creek Valley did not support a store or a church. Social exchange occurred through shared farming tasks, visiting neighbors and school activities.

Dry Creek Valley agriculturists practiced dry farming supplemented by readily available water. Farmers used ditches from the creek to irrigate their crops. Other farmers took advantage of local artesian wells. Although the Dry Creek Valley residents did experience some drought years, they managed to make a basic living from dry farming. Large-scale irrigation never occurred in Dry Creek Valley. An 1889 newspaper account discusses the need for irrigation:

On Dry Creek, the difficulty is more serious, as there is really but little water flowing in the creek this season, and the greater portion of it is absorbed by the sand before it reaches the farms to be supplied. This state of things proves the necessity of some arrangement by which the waters of the streams could be held in reservoirs and distributed as needed. (11)

Dry Creek Valley continued to support stockmen and farmers through the turn of the century. Census records from 1870 to 1920 indicate that the majority of Dry Creek residents made a living by growing oats, barley and grain. They also raised horses, cattle, hogs and turkeys. Fruit production flourished until the 1930s. Peaches, prunes and cherries were successfully grown throughout the valley. The 1910 census indicated that farming remained the main occupation of almost all Dry Creek Valley family members. (12)

Basque Influence: A small knot of Basque families began to make Dry Creek Valley their home by 1910. Basques began immigrating to California in the 1860s from Spain. By the late 1870s many Basque men had worked their way north to Nevada, Oregon and Idaho working as herders for the expanding sheep industry. Some Basques eventually purchased their own farms and ranches. They offered jobs, homes and moral support to other Basques coming into the country. The Echeverria family exemplified this pattern. Pedro Echeverria arrived in the United States in 1900. In 1910 he owned property in Dry Creek Valley. Family members and other Basques worked as laborers on his farm. Yladio Echanove came to the U.S. in 1911 and was listed on the 1920 census as a boarder with the Echeverria family. Eventually the Echanove family bought the Echeverria property. Members of the Echanove family currently live in Dry Creek Valley. (13)

After 1900, local newspapers seldom mentioned the Dry Creek area beyond notices of births, deaths, and club meetings. Dry Creek Valley's heyday had ended. When the 1860s' mining boom ended, transportation routes changed and Dry Creek Valley was no longer centrally located. Only Boise City remained as the main market for local farmers. Dryland wheat production boomed in other southern Idaho communities from 1910 to 1923, but Dry Creek Valley farmers never participated in any large-scale crop production. The area also lay outside lands included in the federally funded Boise Irrigation Project, which promoted intensive cultivation of row crops. Dryland farmers had to compete with the increased production and higher quality of irrigated hay and grain. Aggressive promotion of irrigated lands and new communities caused settlement to shift to the river valley floor, rather than up in the drier hills. There were still families who eked out a living in Dry Creek Valley, continuing to farm small acreages and raise horses and cattle. (14)

A long-term agricultural depression and the onset of the Great Depression made life difficult for most Dry Creek farmer stockmen. Several families moved away. Some older students dropped out of school and worked to help their parents and siblings. The number of Dry Creek Valley school students was cut in half during the 1930s, and its population never grew again. Natural disasters also threatened Dry Creek Valley during the 1930s, particularly range fires and insect invasions. The community pulled together to fend off these disasters. When the cheat grass-covered hills turned into flames, local farmers used their field plows to create fire breaks around everyone's property. The "Mormon Cricket" invasion of the late 1930s swept through the area, but Dry Creek Valley crops escaped relatively unscathed. Anastasio Ostolasa remembered farm families beating on pots and pans to scare away the ravenous crickets. (15)

"Gentleman Farmers:" "Gentleman farmers" from Boise also bought some Dry Creek Valley farms for country living or for increased acreage. Fred Parsons, who bought the former Schick property and adjacent acreages in the 1930s, was a retired cashier from Pacific National Bank. His wife Anna Moore came from the well-known Christopher Moore family, president of Idaho First National Bank. Parsons dabbled in agriculture and livestock and hired the Ostolasa family to

oversee the operation of his Dry Creek Valley farm. Constantino Ostolasa had previously worked at the nearby Spring Valley Ranch. The Parsons lived on their Dry Creek Valley property and soon made improvements to it. A young Anastasio Ostolasa helped his father Constantino plant locust trees, which still shade the lane and dwellings. In the 1940s Parsons sold his Dry Creek Valley holdings to Jack Dechambeau of Eagle, who used it to supplement his rangeland and feed. Anastasio Ostolasa brought his war bride from Oregon to the farm and worked for the Dechambeaus. He continued to live on the property until his recent death in August 1996. His sisters and wife continue to live on the property. (16)

The Second World War and increased agricultural mechanization took its toll on the Dry Creek Valley population. America's involvement in the war took many people out of rural communities to contribute to the war effort. The war had broadened the world for many farm boys and girls and introduced them to other ways of life and people.

With tractors and harvesters, it took fewer family members and hired hands to operate a farm. Dry Creek Valley farmers' small acreages could barely compete with larger corporate operations. Both local schools were closed by the 1940s, and students rode the bus to Boise schools.

While many people left rural communities like Dry Creek Valley, still others returned to continue an agricultural lifestyle. Today there are still relatives of early Dry Creek Valley homesteaders who make a portion of their living from the land, despite continuing ups and downs in the agricultural business. More recent landowners moved there to simply enjoy the rural setting, within relatively easy access to the amenities of city life. The Dry Creek Valley remains a quiet oasis in Southwestern Idaho's sagebrush hills.

End Notes:

- (1) "The Idaho-Montana Boundary Legend," Idaho State Historical Society (hereafter ISHS) Reference Series, No. 156. Revised January 1966.
- (2) "Local Brevities," *Idaho Tri-Weekly Statesman*, 20 September 1873, p. 3.
- (3) Assessment Rolls, Ada County, Idaho, 1890, p. 239. On microfilm at the ISHS, Boise.
- (4) *Idaho Tri-Weekly Statesman*, 23 October 1869, p. 3.
- (5) Ada County Commission Records, 1881, Book A, p. 141-142. On microfilm at the ISHS, Boise.
- (6) *The Idaho Statesman*, 1925. See also *The Idaho World*, February 1907, p. 6.
- (7) See the *Idaho Tri-Weekly Statesman*, 9 September 1873, p. 3; see also 3 January 1874, p. 3.
- (8) "A. J. Wyatt's Farm," *Ibid.*, 20 September 1873.
- (9) *Ibid.*, p. 3.
- (10) *Ibid.*, 21 June 1878, p. 3. See also The Edith S. Hayes Collection, MS 492, ISHS Archives, Boise; Dorothy Stiff Wyman, *Light Upon the Mountain* (Bend, Oregon: Maverick Publications, 1989), p. 19; and field notes of conversation with Anastasio Ostolasa, 13 July 1994, in authors' personal files.
- (11) See the following article in "Fifty Years in the *Statesman*," *Idaho Daily Statesman*,

3 September 1939, p. 8: "Water Supply cause of Row", (September 1889).

(12) U.S. Bureau of the Census, *Thirteenth Census of the United States, 1910 Population*, (Washington, D.C.: Government Printing Office, 1913), p. 282.

(13) Information of Echeverria & Echanove in the "Fourteenth Census of the United States, 1920 Population," on microfilm at the ISHS.

(14) See several issues of the *Idaho Daily Statesman*, 1910, for the changing emphasis to irrigated farming and the introduction of dryland wheat.

(15) For descriptions of the Depression, fires and crickets near Stack Rock, see Dorothy Stiff Wyman's *Light Upon the Mountain*, p. 76. For descriptions of the same in the Dry Creek Valley, see field notes of conversation with Anastasio Ostalosa.

(16) For information on Frank Parsons and his holdings on Dry Creek, see Metzker Map of Ada County, 1936, on file at the ISHS; James H. Hawley, *History of Idaho*, Vol. II (Chicago: Clarke Publishing Company, 1920), pp. 248-249; see also field notes of conversation with Anastasio Ostalosa.

8-13D-9-8: Slopes

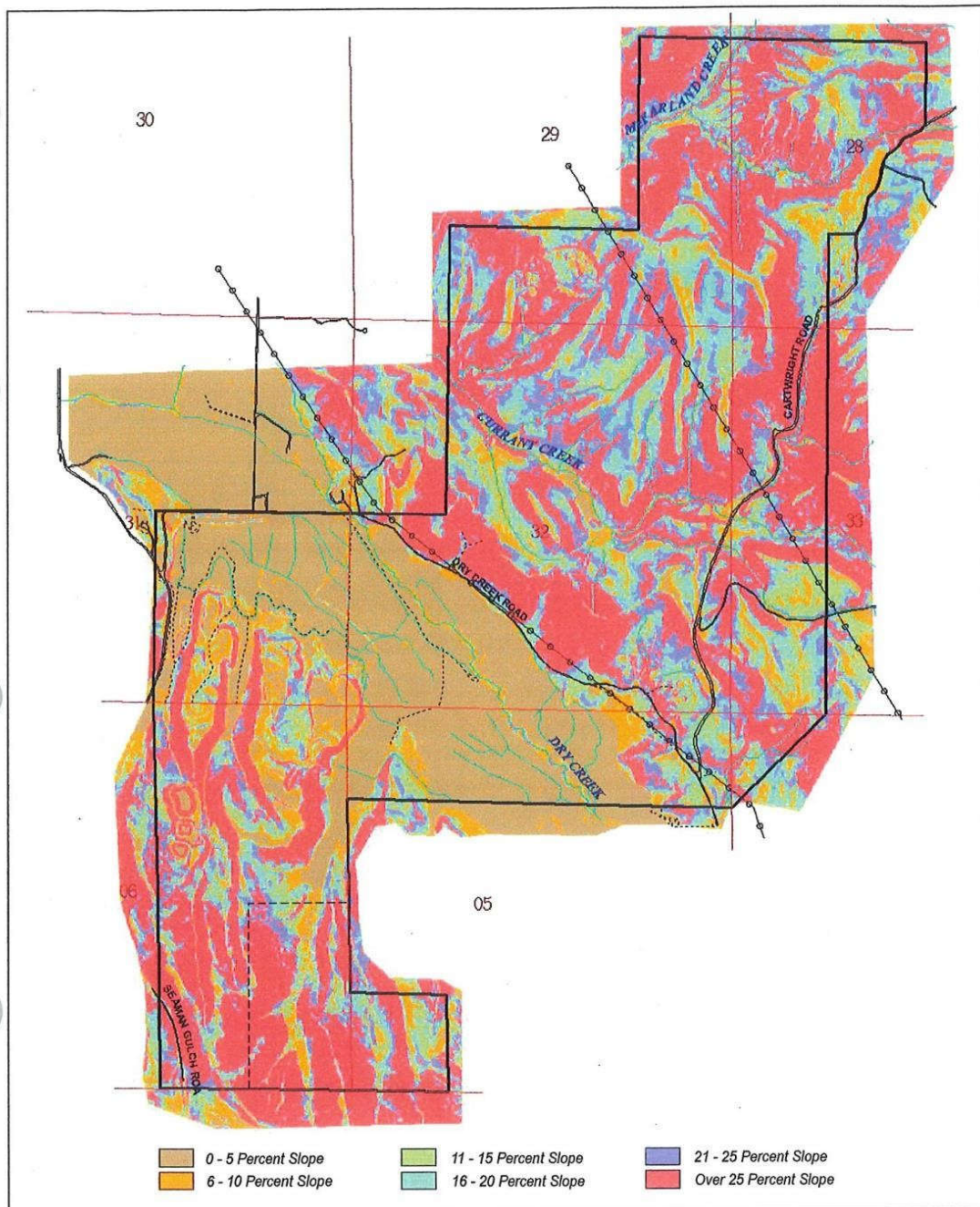
The central portion of the Hidden Springs property is characterized by the relatively flat valley floor and shallow, even slopes that are found throughout the Dry Creek Valley as it runs west toward Highway 55. The creek and valley diagonally bisect the property into two (2) distinct northern and southern portions that are quite different in slope orientation and configuration.

On the southern side of the property, toward the west, the valley floor gradually transitions into moderate slopes as the foothills protrude in finger-like formations into the site. Between these finger ridges are long, narrow valleys and gulches with moderate to steep sides. Most of the ridges in this area have round, flat tops that gradually increase in slope as they move to the south and off the property.

On the northern portion of the property, a more abrupt transition occurs from the valley floor into steep slopes immediately north of Dry Creek Road. Above these wide south-facing slopes are pockets of relatively flat land with a distinct "bowl" formation that runs east to west, parallel to Currant Creek. North of Currant Creek, a broad, moderate south-facing slope continues again north of the power line to a major peak with long backslopes that drop into the McFarland Creek basin. The canyon that runs north and south along the eastern edge of the site, through which Cartwright Road runs, has steep sides that start to diminish and flatten toward the north end of the property.

Much of the slope area in Hidden Springs is less than twenty five percent (25%), which makes for favorable building sites.

HIDDEN SPRINGS



Completed by: Spatial Dynamics, 1999
 Source: Based on topographic data from Ada County and 2 foot contour data developed by Toothman-Orton Engineering for Hidden Springs.

Slope

(Ord. 377, 7-28-1999)

Fig. 2-C



Figure 2-C

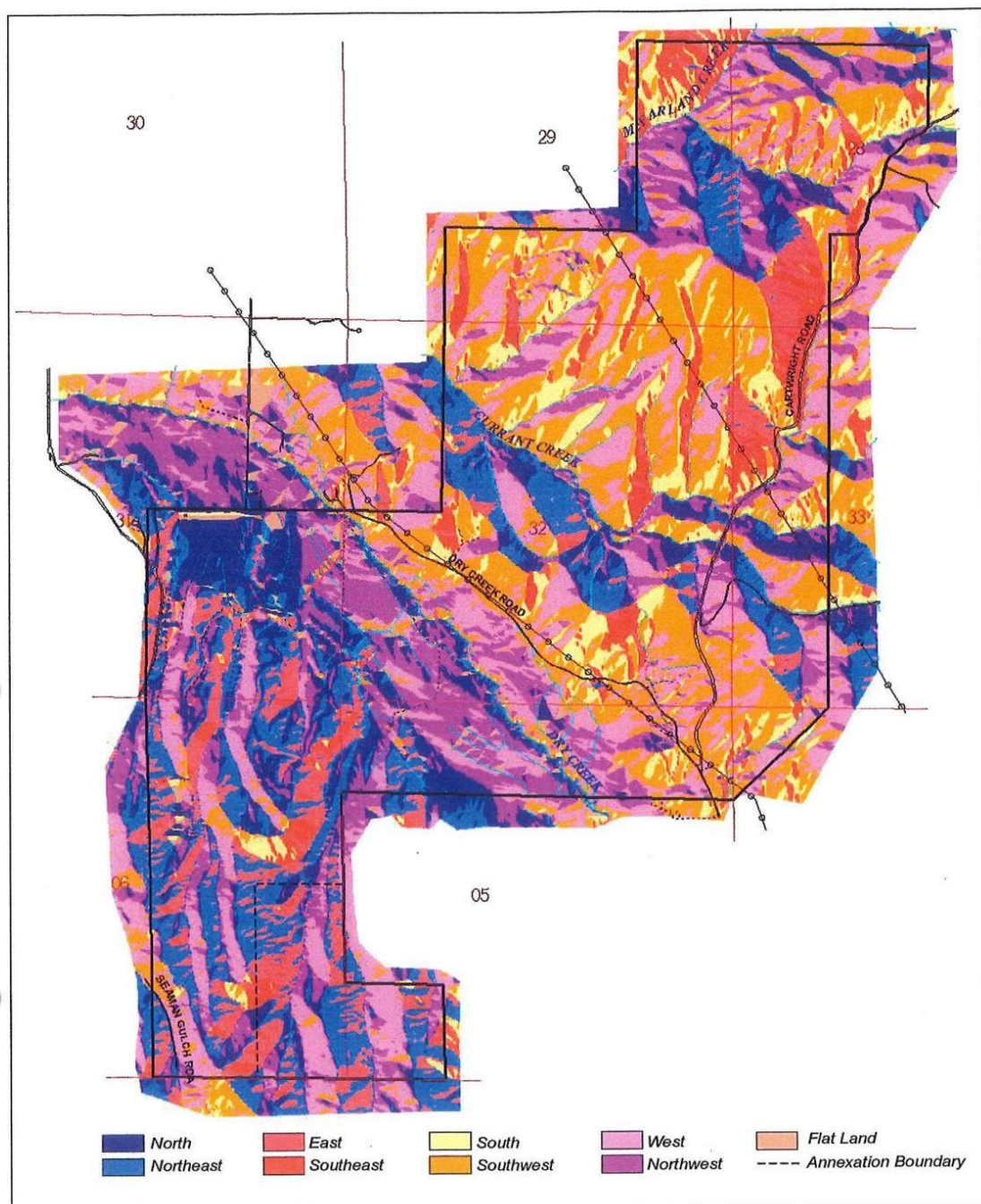
8-13D-9-9: Aspect/Views/Climate

Aspect. The Hidden Springs area is dominated by broad, south and west facing slopes with high solar exposure in the northern portion of the property, north of Dry Creek Road. The exceptions to this condition are pockets of north and east facing slopes within the Currant Creek basin and the north facing slopes that drop into the McFarland Creek basin. The Dry Creek Valley is generally flat and open with varying degrees of solar exposure, depending upon tree cover and proximity to the foothills at the southwest portion of the site. The ridges and narrow valleys of the foothills that run in a north to south direction in the southwest portion of the property create long side slopes with a solar orientation to the east and west. Various pockets of a northern aspect here are attributed to the ends of the ridgelines and certain areas within the narrow gulches, between the ridges.

Views. The views within the Hidden Springs property are generally open, up to the one hundred eighty-degree (180°) range throughout the upper elevations of the site. Hidden Springs is generally not visible from the Boise area. Views from the ridgelines on the southern portion of the site extend into Dry Creek Valley and northward to Bogus Basin.

Climate. The climate and wind patterns of the Hidden Springs property are typical of the Boise region. The temperate climate and four seasons are influenced by storm fronts that originate in the Pacific Ocean. There are occasional winter temperature inversions with extended periods of fog and cold that cause air quality problems. There is an average twelve inches (12”) of precipitation. January precipitation averages one and six tenths (1.6) inches with thirty degree (30°) temperatures. The average July precipitation is one third (0.3) inches with temperatures in the range of eighty (80) to one hundred (100) degrees. It is not uncommon to have twenty (20) to thirty (30) days of no precipitation in the months of July and August. Typically, the area at this elevation receives a total of one and a half (1.5) to two (2) feet of snow during the winter months with snow staying on the ground for an average of five (5) to seven (7) days.

HIDDEN SPRINGS



Completed by: Spatial Dynamics, 1999
 Source: Based on topographic data from Ada County and 2 foot contour data developed by Toothman-Orton Engineering for Hidden Springs.

Aspect

(Ord. 377, 7-28-1999)

Fig. 2-D



Figure 2-D

8-13D-9-10: Geologic Conditions

Geologic Overview. Portions of the geology in the Dry Creek area have been mapped in the past by K.M. Hollenbaugh, 1972; Othberg and Burnham, 1990; Baker, 1991; and Burnham and Wood, 1992. The unconsolidated soil and rock that underlie the Hidden Springs property range in age from Pliocene to Holocene, which is relatively recent in geological time. The Dry Creek area occurs within a transition zone between fluvial (stream deposited) sediments and lacustrine (lake deposited) sediments. Certain geologic events that occurred prior to the emplacement of the known soil and rock in the area greatly influenced the types of deposition and geomorphology that is characteristic of the area today. These earlier events include a long period of granitic intrusions, regional uplift, and volcanism. In addition, evidence of large lake deposition and erosion are evident in the lower elevations along Dry Creek. Wave cut benches are characteristic of the lower foothill elevations along the south side of Dry Creek.

Ancestral streams carrying sediments from the adjacent uplands were also deposited near the lake margins.

Coarse-grained sands were deposited along the stream channels and shores of the lake. Finer sands and silts were carried down the Dry Creek drainage system. The sediments that were deposited are collectively known as sediments of the Idaho Group. Because of the depositional complexity of the sediments in the Boise foothills (which includes the Dry Creek area), recent lithostratigraphic formation name changes within the Idaho Group have been reassigned the Terteling Springs Formation. The formation consists of four (4) distinct lithologic members of which portions are found in the study area.

Objective. The surficial geology shows the deposits within the study area and their general relationships. The geology of an area constitutes the framework which influences the development of other natural features. Soils developed from the weathering of the geologic units and both surface and subsurface water flow are largely controlled by the geologic framework. Successful planning and engineering development depends upon an understanding of the geology of the area, as well as an understanding of physical properties of the soil and rock. The geologic map presented in this report was compiled from known map sources and field reconnaissance and is a preliminary guide to geologic units and features for the Hidden Springs area.

Faulting And Seismicity. Foothills faulting generally occurs in NW/SE and/or east- west trending normal faults. Distinct separation of foothills and valley floor often make fault traces. The exception in the Dry Creek area is separation of lithologic units or nonconformable lateral extension of rock and soil formations. Splinter faults subparallel and often perpendicular to the primary faults have helped define the present geomorphology of the area. Faulting in the foothills is known to consist of single fault plains a few inches wide or fault zones, several feet to tens of feet wide that are composed of many interconnected fault plains. Field observation collected during preliminary site reconnaissance's imply that Dry Creek may be structurally controlled. Observations include linear correlation of primary structures such as contorted bedding plains, hot springs, and unconformable bedding.

Woodward-Lundgren and Associates identified most foothill faults as inactive. According to Woodward-Lundgren, there has not been historical movement of the major faults in the area within the last five hundred thousand (500,000) years. The U.S. Coast and Geodetic Survey in their Seismic Risk Map (1969) and the Uniform Building Code (1982) assign the area to Zone 2B, indicating moderate potential for earthquake damage. Zone 2 corresponds to a maximum

earthquake intensity of VII on the modified Mercalli intensity scale. Damage in the study area would probably be caused by ground shaking due to fault displacement outside the study area. Miller and Jones (1988) performed a probabilistic estimation of earthquake intensities for Idaho based on the historic seismic record. They concluded that there is better than a ninety percent (90%) probability that the maximum earthquake intensity will be less than VI for the foothills area for a given fifty (50) year period.

Lithologic Map Units. The following lithologic descriptions are characteristic of the geologic units present in the study area.

Biotite Granite And Granodiorite

Areas along the northern and northeastern area of the Hidden Springs property is underlain by intrusive igneous rocks of the Idaho batholith. Biotite granite and granodiorite are the dominant rock types. The granites are typically light gray and medium to coarse-grained. The fracture spacing varies from a few inches to several feet. The granitics vary from slightly weathered to decomposed. Differential weathering of the batholithic rocks have exposed large, rounded outcroppings east of Cartwright Road north of Dry Creek.

Terteling Springs Formation.

The Terteling Springs Formation is a facies assemblage of sediments and sedimentary rock mostly of lacustrine or lakeshore depositional environment. The base of the formation is mapped where these sedimentary deposits rest upon a thick sequence of plagonite tuff and basalt, or upon rhyolite or the granitic rock. The formation is composed of tan to light gray silts, sands, and clays. Induration is moderate, although very dense, silica-cemented sandstone is locally present. The silica cement was precipitated from hydrothermal ground water which moved through fault conduits. Fracturing is not evident in the sand layers. Fracture spacing is not evident in the sand layers. Fracture spacing in the sandstone ranges from six inches (6") to ten feet (10') or more. Some minor amounts of poorly to well-sorted, light gray to tan sand with minor gravel and claystone layer are locally present.

Undifferentiated Basalt.

A volcanic assemblage of tuffs, basalts and ash occurs beneath and interbedded with the Terteling Springs Formation. The low shear strength of portions of this unit are often associated with unstable slopes in the Boise foothills. The unit often contains expansive clays. The volcanic assemblages are identified by dark brown soils with mud- cracked and fissured surfaces.

Intracanyon Terrace Gravel.

Fluvial sand and sandy gravel with subangular cobbles and boulders are characteristic of this lithologic unit. These deposits form terraces along some of the gulches and also flat divides between canyon/gulch near the margins of the foothill-valley environment. Induration and stratification are relatively poor. These deposits represent stream and wave cut action of the Dry Creek drainage.

Quaternary Alluvial Fan Deposits.

This unit is comprised of light gray to tan sand and gravel deposits. The sand and gravel is poorly indurated and poorly stratified. Fracturing is not evident. The deposits are usually located near the mouth of established drainages.

Landslide Deposits.

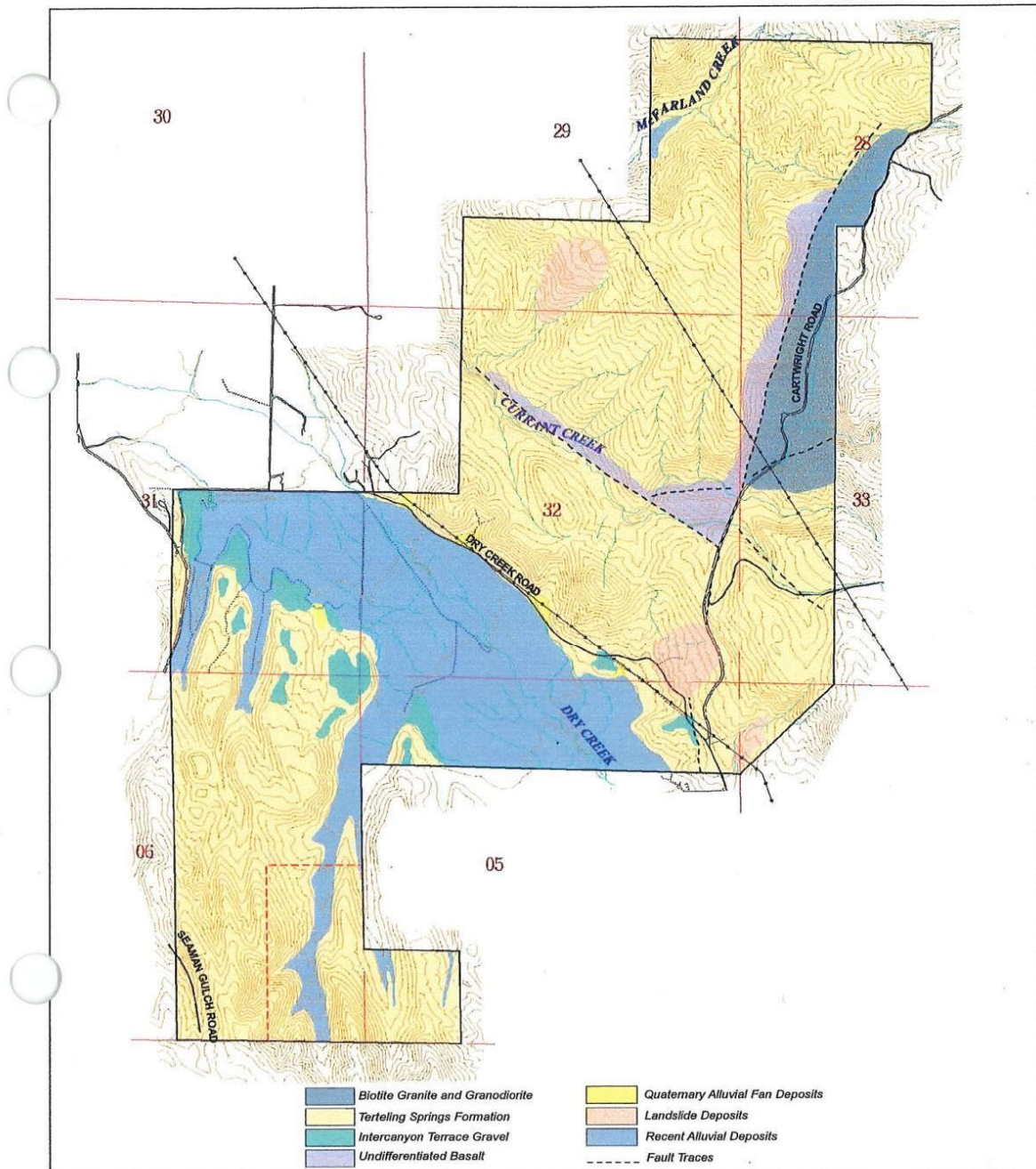
This unit is comprised of unsorted, unstratified rock and soil masses which have been deposited

by slumps, landslides, and debris flows. The particle size may range from clay to large boulders. The ground surfaces are hummocky with flat lobate toes. This unit also includes the scar area from which the soil and rock mass originated and displaced rock units which are not related to faulting. The color is dependent upon the source material. Fractures are not evident. Slope failure is evident in the study area, particularly north of Current Creek.

Recent Alluvium Deposits.

This lithologic unit consists of unconsolidated silt, sand and gravel deposits of the Dry Creek drainage, Currant Creek, and McFarland Creek. Fractures are not evident. This unit also includes recent flood plain deposits along Dry Creek.

HIDDEN SPRINGS



Geologic Conditions

Completed by: Spatial Dynamics, 1999
Source: Field Mapping by KLEINFELDER.

(Ord. 377, 7-28-1999)

Fig. 2-E



Figure 2-E

8-13D-9-11: Soil Conditions

Soil Overview: The surficial soils of the Hidden Springs property are associated with two (2) Idaho soil geomorphic provinces: the Northern Rocky Mountain province and the Malheur-Boise Basin of the High Lava Plains subprovince of the Columbia Intermontane province. The diverse topography throughout the project area has contributed to a highly variable soil morphology. The U.S. Department of Agriculture, Soil Conservation Service has identified twelve (12) soil classifications for the area.

Objective: The recognition and/or prediction of soil behavior with respect to soil morphology is paramount in selecting the correct avenue for land use planning.

Recognition of the diverse soil behavior is useful in adjusting land use, including the urbanization, to the limitations and potentials of natural resources and the environment. Planners and others using the soil data can evaluate the impact of specific land uses on the overall productivity of the survey area or other broad planning areas and on land use patterns.

Soil Units: The U.S. Department of Agriculture, Soil Conservation Service (SCS) has identified twelve (12) soil units for the Hidden Springs property. These units are listed below.

Brent-Ladd	Ladd-Searles
Cashmere	Lankbush-Brent
Drax Loam	Payette-Quincy
Gem Rock	Quincy-Brent
Goose Creek	Searles-Rock
Haw-Lankbush	Vanderhoff

Engineering Soils.

Table And Map: Table 1 provides engineering information related to the use of each soil unit as it relates to building sites, sanitary facilities, construction material and water management. The engineering data is based on SCS test data using known relationships between soil properties and the behavior of soils in various engineering uses. The data presented in the table can be useful in choosing alternative practices or general designs that will overcome unfavorable soil properties and minimize soil-related failures.

However, it is important to understand these data do not eliminate the need for site specific investigations, testing, and analysis.

The accompanying soils map provides a broad perspective of the soils and associated topography as well as the general diversification of the soil morphology for the Hidden Springs property.

This preliminary screening of soils properties provides a relatively normal (without unusual difficulty) geotechnical framework. Within the confines of regulatory oversight, good design practice and good construction technique there are no soils characteristics that would preclude development as planned.

1995 Field Observations and Soils Logs: Table 2: Soil logs provide a summary of the actual soil observations started in 1995, first as excavations for soils logs and also as observation wells for

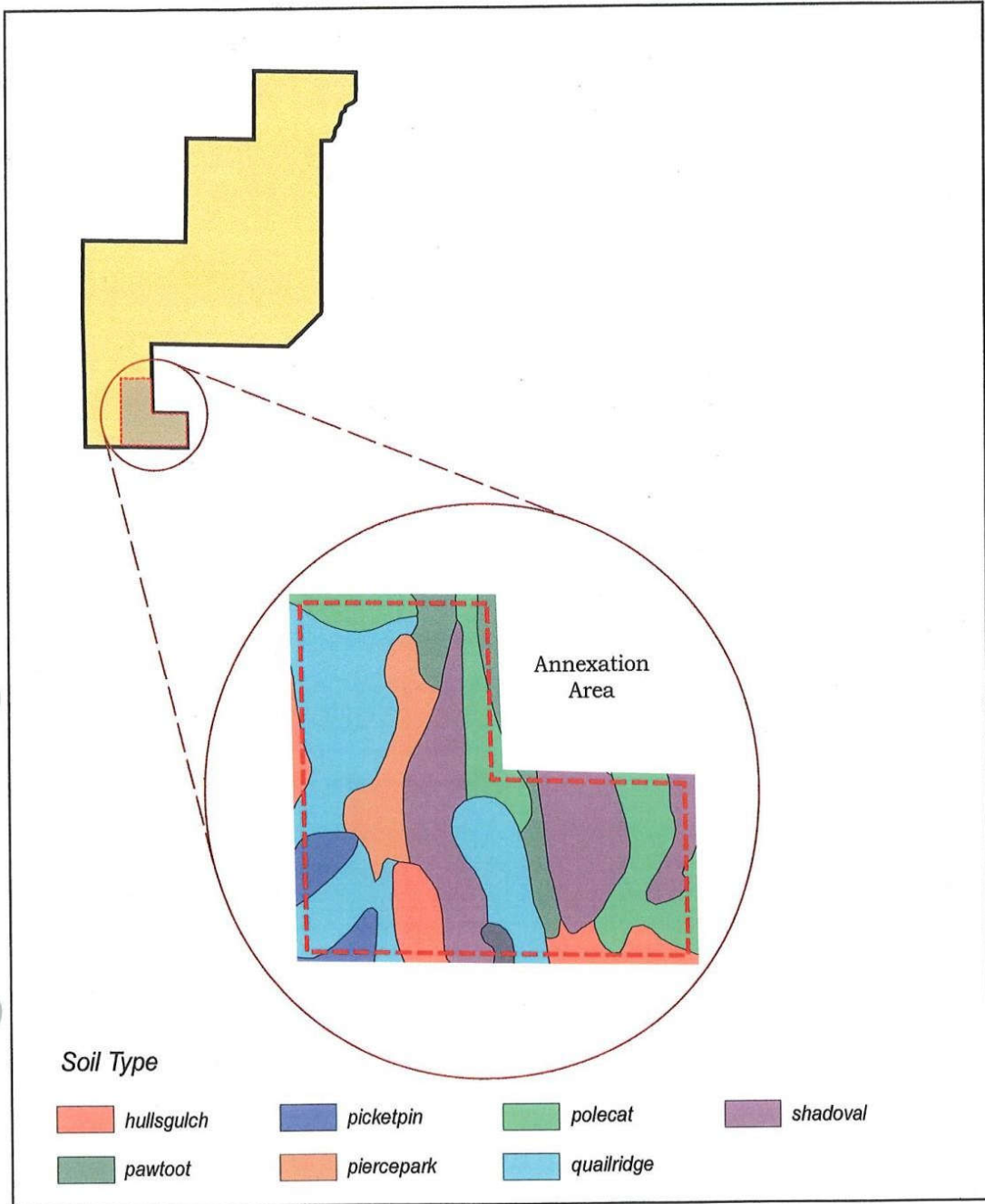
long-term observation of ground water level. Since the first series of observation wells, additional test pits and observation wells have been installed.

Table 3¹ : Ground water depth observation is a log of the depth to ground water at various observation wells and test pits. The soils map shows the approximate locations for the original observation wells and subsequent test pits and new observation wells. Several important conclusions can be drawn from the soil information mentioned above.

- The soils in the valley floor up to the toe of slopes are suited to both individual and community subsurface treatment systems (subject to the normal design constraints).
- Soils classification for the purpose of subsurface treatment systems is C-2.
- The relatively fine-grained soils and substantial depth to ground water at the base of the slopes offer several good options for community subsurface treatment systems.
- The soils characteristics at the base of the slopes should provide for very high, equivalent to tertiary, treatment of domestic wastewater.

One Hundred Twenty Acre Annexation Area. The U.S. department of agriculture natural resources conservation service has identified four (4) soil units for the one hundred twenty (120) acre annexation area, which has been reduced to ninety-seven (97) acres due to the transfer to twenty-three (23) acres to the Cartwright Ranch planned community in 2007. These units are listed below and are characterized in table 1A of this Section:

Pierce Park
Shadoval
Polecat
Quailridge



Soils - Annexation Area

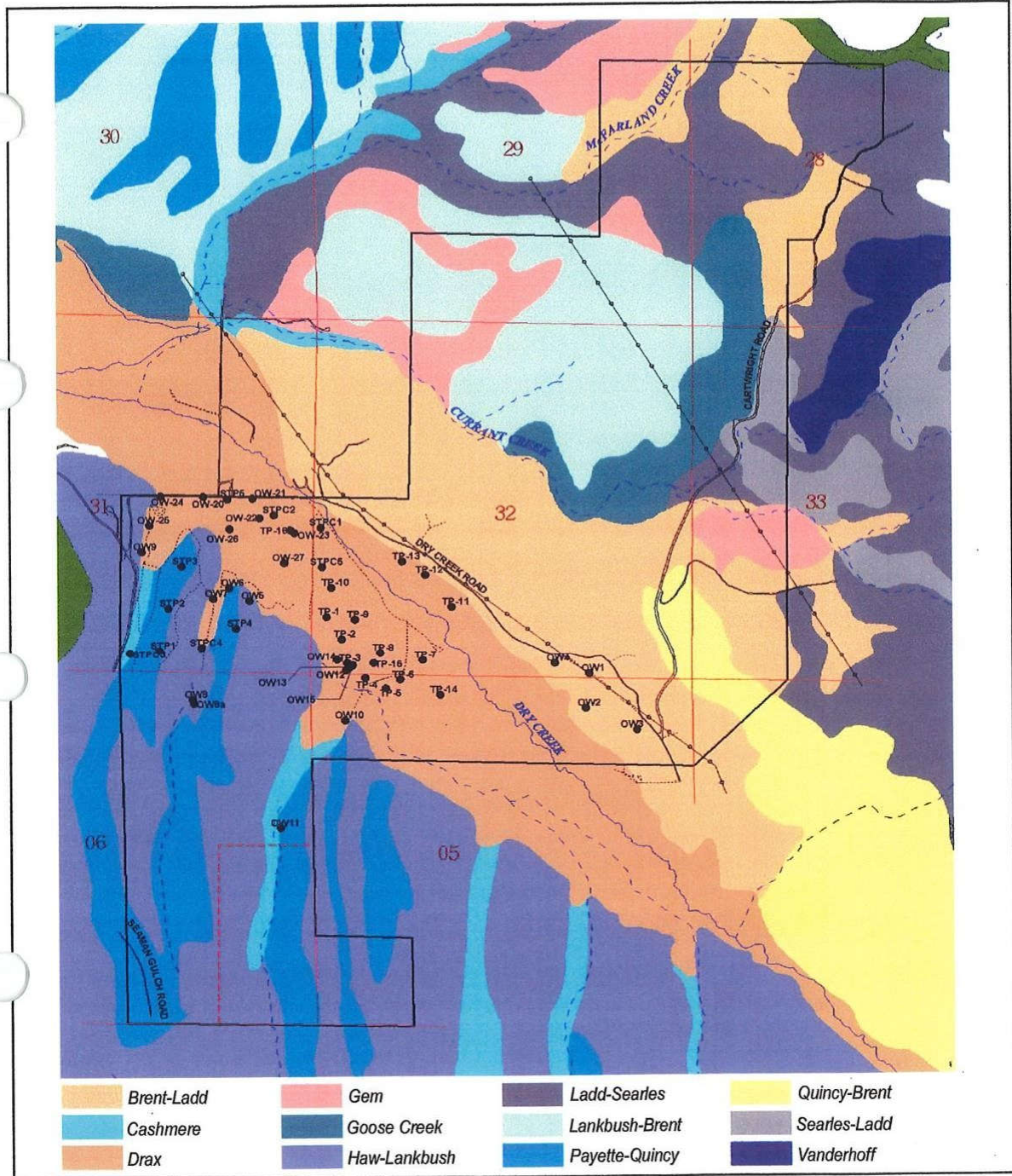
Completed by: Spatial Dynamics, 1999
 Source: "Soil Survey of Boise Front Project, Idaho".
 Interim and Supplemental Report - May, 1997.
 U.S. Dept. of Agriculture, NRCS, Boise City & Ada County

Fig. 2-F-a



Figure 2-F-a

HIDDEN SPRINGS



Completed by: Spatial Dynamics, 1999
 Source: Ada County Soil Survey -
 Natural Resources Conservation Service

Soils

Fig. 2-F-b



Figure 2-F-b

TABLE 1
 ENGINEERING SOILS TABLE

Soil Name	USDA Soil Texture	Unified Soil Classification	Percent Passing Sieve No. (Avg)				Liquid Limit	Plasticity Index	Permeability	Soil Reaction pH	Shrink Swell Potential	Potential Frost Action
			4	10	40	200						
Brent-Ladd	Loam, Silt Loam, Sandy Clay Loam, Gravelly Clay Loam	CL-ML CH-SM GP-SM	70-100	70-90	25-95	5	10-60	NP-25	.02-20	7.4-8.4	Low to Moderate	Low to Moderate
Cashmere	Sandy Loam, Loamy Sand	SM	80-100	80-100	50-75	15-45	20-30	NP-5	2.0-20	6.1-7.8	Low	Moderate
Drax Loam	Loam, Sandy Loam to Silty Clay Loam	CL-ML	100	90-100	85-100	55-90	20-30	5-10	0.2-2.0	6.6-9.0	Low	Moderate
Gem Rock	Gravelly Clay Loam Clay, Clay Loam, Gravelly Silty Clay Loam, Loam, Gravelly Loam, Unweathered Bedrock	SM, CL, CH ML, GM-GC	65-100	55-100	40-100	35-95	20-65	NP-45	0.2-2.0	6.1-9.0	Low to High	Moderate
Goose Creek	Loam, Sandy Loam to Clay	CL-ML, CL	100	100	85-100	55-85	20-40	5-20	0.2-20	6.6-8.4	Moderate	Moderate
Haw-Lankbush	Loam, Sandy Loam, Clay Loam, Sandy Clay Loam, Loamy Sand, Sand	ML, CL-ML, CL, SM-SC, SP-SM	85-100	85-100	45-100	5-90	20-30	NP- 15	0.2-720	6.1- 9.0	Low to Moderate	Moderate
Ladd-Searles	Loam, Gravelly Loam, Clay Loam, Sandy Clay Loam, Sandy Loam, Gravelly Sandy Clayey Loam, Unweathered Bedrock	ML, CL-ML, CL, SM-SC, GM-GC, GP-GC	25-100	25-100	15-100	5-90	20-40	NP-15	0.2-20	6.1-7.3	Low to Moderate	Moderate

Soil Name	USDA Soil Texture	Unified Soil Classification	Percent Passing Sieve No. (Avg.)				Liquid Limit	Plasticity Index	Permeability	Soil Reaction pH	Shrink Swell Potential	Potential Frost Action
			4	10	40	200						
Lankbush Brent	Sandy Loam, Sandy Clayey Loam, Clayey Loam, Loam Sand, Loamy Sand, Silt Gravelly Silt Loam, Gravelly Loam, Clay, Sandy Clay, Gravelly Clay Loam, Sand	CL-ML, CH, GM-GP, SM, SP-SM, SC	40-100	40-100	25-100	5-90	10-60	NP-40	<0.06-20	6.6-9.0	Low to High	Low to Moderate
Payette-Quincy	Sandy Loam, Gravelly Sandy Loam, Coarse Sand, Loamy Sand, Gravelly Loamy Sand	SM, GM-GC, CL-ML, CL-ML, SP-SM	60-100	60-100	35-95	5-75	20-30	NP-10	6.0-720	6.1-8.4	Low	Low to Moderate
Quincy-Brent	Gravelly Loamy Sand, Sandy Loam, Silt Loam, Sandy Clay, Clay Loam, Sand, Gravelly Sand, Gravelly Clay Loam, Gravelly Silt Loam, Gravelly Loam	SM, CL-ML, CH, GP-GM, SP-SM	40-100	40-100	25-100	5-90	10-60	NP-40	<0.06-20	6.1-8.4	Low to High	Low
Searles-Rock	Stony Loam, Gravelly Clay Loam, Cobbly Loam, Unweathered Bedrock	ML, CL-ML, SM-SC	30-80	20-75	20-70	15-55	30-40	NP-15	0.2-2.0	6.6-7.3	Low to Moderate	Moderate
Vanderhoff	Stony Loam, Gravelly Loam, Silt Loam, Sandy Loam, Weathered Bedrock	ML, CL-ML, SM-SC	80-100	60-100	40-100	25-80	20-30	NP-10	0.6-2.0	7.4-9.0	Low	Low

TABLE 1A
ENGINEERING SOILS TABLE

Soil Name	USDA Soil Texture	Unified Soil AASHTO	Percent Passing Sieve No. (Avg)				Liquid Limit	Plasticity Index	Permeability Inch/Hour	Soil Reaction pH	Shrink Swell Potential	Potential Frost Action
			4	10	40	200						
Pierce Park (244)	Course Sandy Loam	SC	100	75–100	50–60	40–50	25–30	5–10	2.0–6.0	6.6–7.8	Low to moderate	Low to moderate
	Sandy Loam	SM										
	Sandy Clay Loam	SC-SM										
	Gravelly Sandy Loam	A1, A2										
Shadoval (315)	Silt loam	CL	100	95–100	85–90	75–85	25–60	5–40	0.6–2.0	6.6–8.4	Low to high	Moderate
	Silty clay Loam	CH										
	Clay Loam	CL-ML A4, A6, A7										
Polecat (316)	Silt loam	CL	100	95–100	90–95	85–90	25–45	5–20	0.6–2.0	6.6–8.4	Low to moderate	Moderate
	Silty clay loam	CL-ML										
	Clay Loam	A4, A6, A7										
Quailridge (358)	Coarse Sandy Loam	SC	0–10	75–100	60–90	50–75	25–50	25–40	2.0–20.0	6.6–7.8	Low to moderate	Moderate
	Sandy Clay Loam	SC-SM										
	Gravelly Sandy Clay Loam	A2, A6										

Table 2
Soils Logs - 1995

Estimated 5% Slope	Pit #OW1	Estimated 3% Slope	Pit # OW2	Estimated 8% Slope	Pit #OW3
0-28"	Clay loam (30% clay), 10YR 3/2, many fine and few medium roots, <u>C-2</u> <u>Design Soil Subgroup</u>	0-36"	Clay loam (28% clay), 10YR 2/2, common fine roots, few medium and course roots, <u>C-</u> <u>1</u>	0-14"	Silty clay loam (30% clay), 10YR 3/2, many fine roots, <u>C-2</u>
28-54"	Clay loam (35% clay), 10YR 3/2, many fine roots <u>C-2</u>	36-56"		14-168"	Very dense silty lake sediments, very slowly permeable to impermeable, gleyed and mottled (mottled are thought to be "relic" and not indicative of present drainage)
66-92"	Silty clay (45% clay), 10YR 3/4, few fine roots, <u>unsuitable</u>		Clay loam (30%+ clay), 10YR 3/2, common fine and few medium roots, <u>C-2</u>		-no free water (water table) to a 168" depth
92-127"	Sandy clay loam, (30% clay), 10YR 4/6, no roots, <u>C-1</u>				
127-168"	Silt loam (15% clay), compacted, 2.5Y 5/4 matrix, 7.5YR 5/6 mottles, no roots, <u>B-2</u> -no free water (water table) to a 168" depth		-soil is saturated below 150", but no free water (water table) to 174"		

Table 2 (cont.)

Estimated 2-3% Slope	Pit #OW7	Estimated 4% Slope	Pit #OW8a	Estimated 4% Slope	Pit #OW8
0-16"	Sandy loam (18% clay), 10YR 3/3, many fine and few medium roots, <u>B-1</u>	0-17"	Silty clay loam (30% clay), 10YR 3/2, many fine and few medium roots, <u>C-2</u>	0-18"	Silt loam (20% clay), 10YR 3/3, many fine roots, <u>B-2</u>
16-34"		17-28"	Silty clay loam (35% clay), 2.5YR 4/2, few fine and medium roots, <u>C-2</u>	18-36"	Silt loam (22% clay), 10YR 3/2, common fine roots, <u>B-2</u>
34-58"	Loamy coarse sand (5% clay), 10YR 3/3, few fine roots, <u>A-2b</u>	28-94+"	Silty loam (15% clay), very compacted lake sediments, 5Y 5/4 matrix, 7.5YR 5/6 mottles appear to be "relic", <u>unsuitable</u>	36-55"	Silt loam (25% clay), 10YR 3/3, common fine roots, <u>B-2</u>
58-82"	Clay loam (30% clay), 10YR 3/4, few fine roots, <u>C-2</u>		-no free water (water table) to 94"	55-168"	Silt loam (20% clay), 10YR 5/4, common fine roots, <u>B-2</u>
82-168"	Sandy clay loam (22% clay), 10YR 4/4, no roots, <u>C-1</u>		-this pit was at the toe of an old land form and is underlain by thick, dense lake sediments		-no free water (water table) to 168"
	Silt loam, (20% clay), 10YR 5/4, no roots, <u>B-2</u>		*no monitoring pipe was installed in this pit.		
	-no mottles or free water (water table to 168"				

Table 2 (cont.)

Estimated 3% Slope	Pit #OW4	Estimated 7% Slope	Pit #OW5	Estimated 3% Slope	Pit #OW6
0-16"	Silty clay loam (35% clay), 10YR 3/4, many fine roots, <u>C-2</u>	0-22"	Silt loam (25% clay), 10YR 3/3, many fine and few medium roots, <u>B-2</u>	0-11"	Silt loam (22% clay), 10YR 3/4, many fine roots, <u>B-2</u>
16-34"	Silty clay loam (30% clay), 2.5Y 4/4, few fine roots <u>C-2</u>	22-41"	Silty clay loam (35% clay), 10YR 3/4, common fine roots, <u>C-2</u>	11-20"	Silty clay loam (35% clay), 10 YR 5/6, common fine roots, <u>C-2</u>
34-51"	Dense, silty lake sediments with 5-10% silty clay loam in fractures, few fine roots, <u>C-2 to unsuitable</u>	41-65"	Silty clay loam (35%+ clay), 10YR 5/4, common fine roots, <u>C-2</u>	20-35"	Sandy clay loam (30% clay), 10YR 5/4, few fine roots, <u>C-1</u>
51-168"	Very dense lake sediments, impermeable layer, <u>unsuitable</u> -no free water to a 168" depth	65-72"	Loamy coarse sand (<5% clay), variegated color, no roots, <u>A-2b</u>	35-52"	Loamy coarse sand (<5% clay), variegated color, no roots, <u>A-2b</u>
		72-90"	Very fine sandy loam (15% clay), 2.5Y 4/4 matrix, 7.5YR 5/4 mottles, no roots, compacted, <u>B-2</u>	52-55"	Thin, weakly cemented hardpan, no roots, <u>unsuitable</u>
		90-110"	Loamy coarse sand (<5% clay), variegated color, no roots, <u>A-2b</u>	55-120"	Silt loam (15% clay), 2.5Y 5/4 matrix, 7.5YR 5/4 mottles, no roots, <u>B-2</u>
		110-168"	Coarse sandy loam (10% clay), 2.5Y 5/4 matrix, 5YR 4/4 mottles, no roots, <u>B-1</u> -no free water, but mottled below 72" (possibly "relic" mottles)	120-180"	Silt loam (10% clay), compacted lake sediments, 2.5Y 5/4, no mottles, no roots, <u>C-2</u> -no free water (water table) to 180" -mottles below 55" appear to be "relic"

Table 2 (cont.)

Estimated 5% Slope	Pit #OW9	Estimated 2-3% Slope	Pit #OW10	Estimated 4% Slope	Pit #OW11
0-8"	Clay loam (30% clay), 10YR 3/3 many fine and few medium roots, <u>C-1</u>	0-28"	Loam (25% clay), 10YR 3/3, common fine and few medium roots, <u>B-2</u>	0-28"	Sandy loam (18% clay), 10YR 4/4, common fine and few medium roots, <u>B-1</u>
8-24"	Clay loam (35% clay), 10YR 4/6 many fine roots, <u>C-2</u>	28-59"	Clay loam (30% clay), 10YR 3/4, few fine roots, <u>C-1</u>	28-70"	Sandy clay loam (25% clay), 10YR 4/6, common fine and few medium roots, <u>C-1</u>
24-36"	Sandy loam (15% clay), 10YR 5/4, common fine roots, <u>B- 1</u>	59-108"	Loam (25% clay), 10YR 5/4, no roots, <u>B-2</u>	70-155"	Sandy loam (10% clay), 10YR 5/4, no roots, <u>B-1</u>
36-75"	Loamy coarse sand (<5% clay), variegated color, no roots, lens of silt loam about 4" thick, <u>A-2b</u>	108-115"	Silt loam (25% clay), 2.5Y 4/4 matrix, 10YR 5/6 mottles, no roots, <u>B-2</u>	155-174"	Silty clay loam (30% clay), 2.5Y 4/4 matrix, 7.5YR 5/6 mottles, no roots, <u>C-1</u>
75-168"	Silt loam (20% clay), 2.5Y 7/4, no roots, slightly compacted, <u>B- 2</u>	115-150"	Silty clay (40% clay), 2.5Y 5/4, no mottles, <u>unsuitable</u>		-no free water (water table) to 174" depth
		150-168"	-free water (water table) at 120" depth		

Notes:

1. See Section 8-13D-21 of this Article.

8-13D-9-12: Surface Water Hydrology

Hydrology Overview. The Dry Creek surface water hydrology system is derived from both artificial and natural sources. The artificial sources are derived through unused irrigation waters and excess water pumped to facilitate the needs of local livestock. The natural recharge sources include seasonal precipitation (average is 0.24 acre-feet per acre during growing season), and discharge of springs and seeps along Dry Creek and its tributaries.

Source fluctuations, especially seasonally, have had an effect on the spatial variation in local hydraulic conditions along the major drainage and have an important role in determining the controlling processes involved with local flood processes, resulting flood features, and subsequent erosional attributes. In addition, ancestral hydraulic processes have contributed to a diverse depositional morphology, especially along Dry Creek.

The principal hydrologic feature in the study area is the Dry Creek drainage basin. The basin drains approximately sixty (60) square miles of intermountain uplands. Gauging station records from

1953 through 1968 show peak discharges range from three thousand five hundred (3,500) to four thousand seven hundred (4,700) acre- feet of water for the basin that includes the Hidden Springs project area. The peak flows appear to be concentrated from February through April. The exception is occasionally January shows moderately high flows.

Floodways. Encroachment on the established floodplain, such as structures and fills, increases the concern of the effects from localized flooding. One aspect of floodplain management involves balancing the economic gain from floodplain development against the resulting increase of flood constraints. Floodway identification is a useful tool to assist local community development in proper floodway management as it relates to land use planning. The floodway delineated in this study was computed from Currant Creek east along Dry Creek using Federal Emergency Management Agency/U.S. Army Corps of Engineers, hydrologic engineering analyst protocol. Peak flood discharges were determined for the ten (10), fifty (50), and one hundred (100)-year events for the Dry Creek drainage. Discharge rates and flow frequency information was obtained from gauging stations located approximately two (2) miles west of the study area. The results of the review show the ten (10), and fifty (50)-year flood events will probably be contained in the present Dry Creek channel. The one hundred (100)-year event will probably overtop the present creek channel up to an average of approximately three hundred feet (300') lateral distance from the creek centroid. The accompanying map shows the flood plain boundary for the ten (10), fifty (50), and one hundred (100)-flood events. The boundary locations are an integral part of effective long- term land use planning.

Natural Springs. The diverse depositional environment associated with Dry Creek has contributed to unique conditions that promote artesian flow at a number of locations along Dry Creek within the Hidden Springs property boundary. Approximately nine (9) natural springs are clustered near the southeast corner of Section 31, the northwest corner of Section 5 and the southwest corner of Section 32, Township 5 North, Range 2 East.

Some diversion of spring flow has been attempted during the past for agricultural purposes, however, for the most part the springs have remained undeveloped. Flow of the springs is often intermittent and depends largely on seasonal precipitation and local water recharge. The most likely explanation for the springs and their historic characteristic is that they are fed by recharge from precipitation, upstream irrigation, and snowmelt from mountainous runoff generally from slopes to the north. Ancient streambeds (visible on current aerial photographs) probably transport the water from upstream surface and subsurface sources. The identification of shallow ground water areas is paramount in effective land use planning, especially during foundation engineering for residential development. The areas that have natural springs present are identified on the accompanying map. Some portions of these springs and the Dry Creek riparian area are wetlands areas.

Surface Water Recharge. Every year some sections of Dry Creek do in fact dry up. Various upstream reaches dry up while other reaches (benefiting from upstream recharge through shallow ground water) continue to flow. These historic characteristics provide a glimpse of the relative complexity and interrelationship between surface water and ground water.

8-13D-9-13: Ground Water

Ground water in the Hidden Springs area is found in permeable sedimentary aquifers and in fractured rock aquifers. The fractured rock aquifers appear to be limited to the slopes on the north side of Dry Creek. Depth to ground water varies, and ranges from a few feet below ground surface

along Dry Creek, to more than one hundred feet (100') below ground surface in upland locations. Tables 2 and 3 provide actual soils logs and ground water depth data for a portion of the valley floor in Hidden Springs.

Hydrogeology. The Hidden Springs area geology is described in detail in a previous report as part of this Section. Ground water characteristics of the local hydrogeologic units are discussed below.

- Alluvium. Recent alluvium in the Dry Creek valley consists of unconsolidated sand, gravel, and silt that has been eroded from nearby uplands and deposited by Dry Creek and tributary streams. Thickness of the alluvium is generally less than fifty feet (50'). Ground water from the alluvium has been tapped by shallow wells for irrigation and domestic use.
- Terteling Springs Formation. The Terteling Springs formation is composed of a layered sequence of lakebed sediments - primarily sand, sandstone, silt, clay, and mudstone. Saturated sand and sandstone layers within the Terteling Springs formation act as productive aquifers. Domestic and irrigation wells within the project area vicinity tap aquifers within the Terteling Springs formation. Clay, silt, and mudstone layers act as aquitards, restricting the movement of ground water. Clay, silt, and mudstone sediments are believed to be the predominant saturated sediments south of Dry Creek.
- Volcanic Rocks. Volcanic rocks within the project area consist primarily of basalt flows. Most of these volcanics have relatively low permeability and are not considered to be significant aquifers, although some ground water production has been reported from basalt aquifers in areas of the foothills.
- Granite. Cretaceous-age granitic rocks of the Idaho Batholith are exposed within the Currant Creek drainage, east of Cartwright Road. These rocks generally have very low porosity and permeability and do not serve as productive aquifers.

Geothermal. Low temperature geothermal wells (85-110°F) have been drilled in the Dry Creek area, both east and west of the Hidden Springs project area. These wells tap aquifers found at depths of less than one thousand feet (1,000'). Warm ground water (>85°F) is likely to be found below about five hundred feet (500') beneath the Dry Creek Valley.

Ground waters with temperatures in excess of eighty-five degrees Fahrenheit (85°F) (i.e., low-temperature geothermal waters) are generally restricted from development for municipal and irrigation uses by the 1982 Idaho Geothermal Resources Act. In addition, water temperatures in excess of eighty-five degrees Fahrenheit (85°F) are not desirable for domestic use due to aesthetics, chemical composition and increased potential for bacterial contamination. As a result, warm ground waters are probably not available nor desirable for Hidden Springs water supply development.

Ground Water Flow. Within the project area, shallow ground water flow likely follows topography, with Dry Creek acting as the drain for ground water from upland areas.

The depth to ground water data and soils logs presented in Tables 2 and 3 confirm the notion that Dry Creek acts as a drain for upstream events. Clearly the shallow ground water flow direction has component vectors both down the valley parallel to Dry Creek and perpendicular toward Dry Creek. It is not clear if deep ground water flow is parallel to Dry Creek, or south toward the Boise River. Local ground water flow in the Hidden Springs area is probably influenced by geologic units and structure, with preferential movement through higher permeability materials in old streambeds and along fault-related fracture paths.

Groundwater Recharge and Discharge. Recharge of the local ground water system is derived primarily from leakage of Dry Creek and its tributary streams and from direct infiltration of precipitation. Additional recharge is derived from infiltration of flood irrigation water diverted from Dry Creek. Total annual ground water recharge has not been determined for the project area but may be substantial during those months when Dry Creek is carrying snowmelt.

Ground water discharge currently occurs at domestic and irrigation wells, at springs, and through streambeds within the gaining reaches of Dry Creek and Currant Creek. Surface water and ground water are generally in direct hydraulic connection in the vicinity of springs and in the gaining reaches of Dry Creek and tributary streams.

During periods without direct runoff of precipitation or snowmelt, the flowing reaches of Dry Creek are probably a reflection of the local water table. Many of these reaches dry up during the summertime, suggesting a seasonal lowering of the local water table at that time.

Aquifer Hydraulics. Deep aquifer hydraulics within the study area are not known and will need to be determined as part of a future test well program. Aquifer hydraulics in the lower Dry Creek area, west of the Hidden Springs project, were calculated following a thirty (30)-day pumping test of a well located approximately two (2) miles southwest of the junction of Highway 55 and Dry Creek Road (Feast, 1991 and Baker, 1991). This well was pumped at an average rate of seven hundred forty-three (743) gallons per minute. Draw down in the pumping well was eight one feet (81') after thirty (30) days of pumping. Draw down in observation wells ranged from three and eight tenths feet (3.8') at a well eight hundred feet (800') from the pumping well to one foot (1') at wells two thousand three hundred (2,300) and three thousand six hundred (3,600) feet from the pumping well. Based upon the response of the observation wells, aquifer transmissivities in the range of thirty-three thousand (33,000) to ninety-two thousand (92,000) ft²/day were calculated. The calculated storage coefficient ranged from six thousandths (0.0006) to eight tenths (0.08), indicating semi-confined conditions.

Given the distance and changes in geologic conditions, the aquifer hydraulic characteristics in the Hidden Springs project area cannot be directly inferred from the characteristics in the Lower Dry Creek area.

Ground Water Quality. Analyses of water samples from wells in the vicinity of the project area are reported by Parlman (1983) and Baker (1991). These analyses include data for both warm water and cold-water aquifers in the Dry Creek Valley. Based on these data, ground water from deep cold-water aquifers in the Hidden Springs project area is anticipated to be good quality for domestic use, with moderate levels of hardness and no water quality parameters in excess of EPA maximum contaminant levels (MCLs). Geothermal aquifers are also anticipated to be of good quality, with the exception of fluoride concentrations which may exceed EPA MCLs.

The shallow alluvial aquifer is often in direct hydraulic connection with the surface water flow of Dry Creek and as a result is not sufficiently protected from surface contaminants for domestic consumption. For that reason, the shallow alluvial aquifer is not as desirable for domestic use as deeper, more protected aquifers of the Terteling Springs Formation. Well logs suggest that clay layers should provide protection from surface and surficial activity for wells tapping aquifers below one hundred feet (100').

Existing Ground Water Development. Existing wells within the project area produce ground water primarily for domestic and stock water uses, with some minor irrigation uses. Wells outside

of the project area produce water for agricultural irrigation and space heating, in addition to domestic and stock water.

Reported well yields in the Dry Creek Valley range from over two thousand (2,000) gallons per minute (gpm) to less than five (5) gpm. In general, the higher yield wells are located in the valley floor, west of the project site. The higher yield wells tap sand aquifers within the Terteling Springs Formation and the lower part of the recent alluvium. The low yield wells are typically located in either the granite foothills north and northeast of the site or in the thick blue clay sediments south of the site.

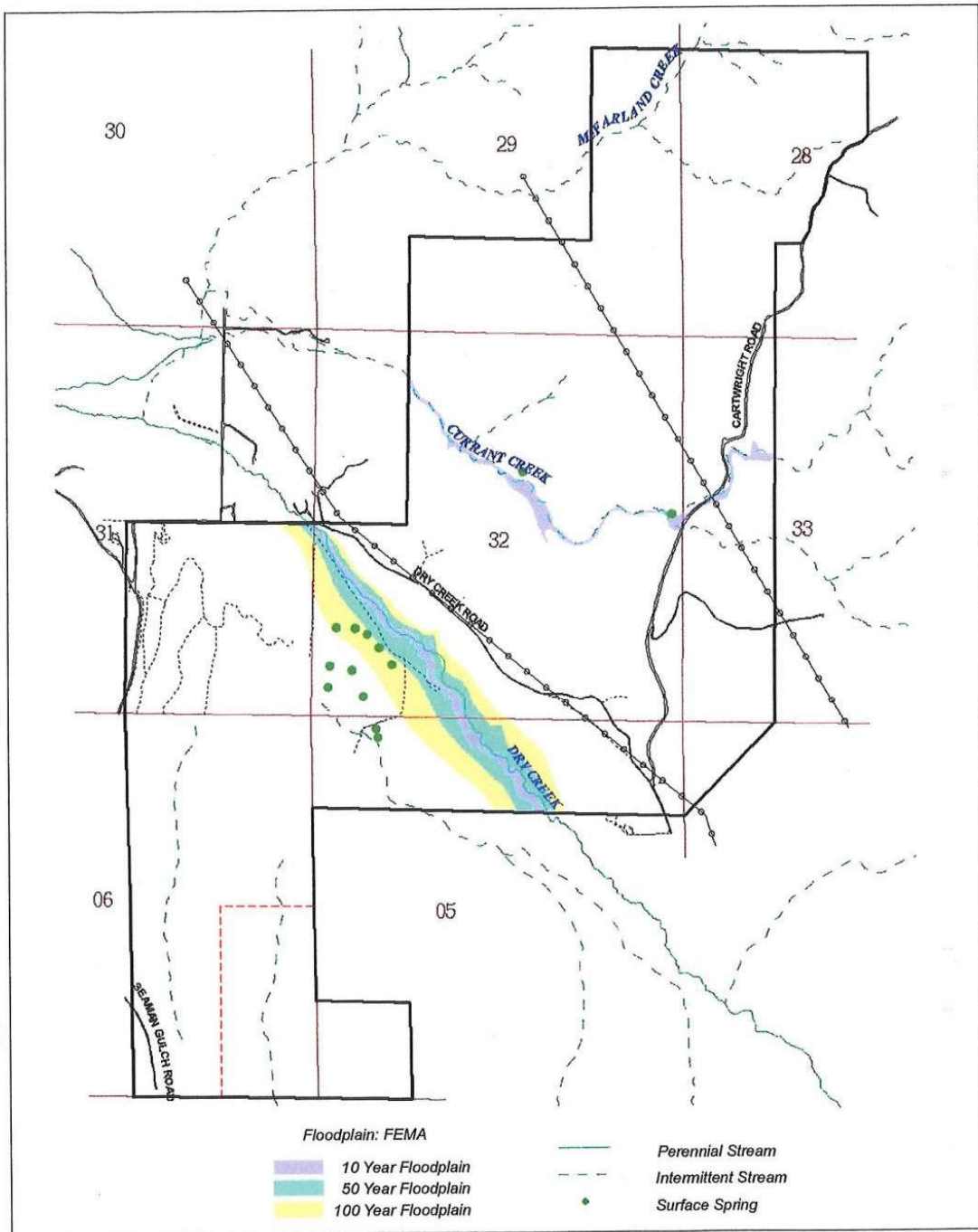
Documented Water Level Declines. There are no long-term ground water hydrographs for wells within the project area. The closest long-term hydrograph is for well 05N-01E-34DBB1, located in the Dry Creek Valley approximately three (3) miles west of the project. This hydrograph has a period of record of nearly thirty (30) years. Baker (1991) evaluated the hydrograph of this well and found no significant decline in recent years.

Table 3
Groundwater Depth Observations

Observation Well Or Test Pit	5-12- 95	5-28- 95	7- 2- 95	8-17- 95	9-23-95		11- 26- 95	1-22- 96	3-9- 96	3-15- 96	4- 7- 96	6-21- 96	6- 23- 96	7-16-96	9- 4- 96
Observation Well Or Test Pit	5-12- 95	5-28- 95	7- 2- 95	8-17- 95	9-23- 95	11- 26-95	1- 22- 96	3-9- 96	3- 15- 96	4-7- 96	6- 21- 96	6-23- 96	7- 16- 96	9-4-96	
OW1-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (167")	
OW2-174	Damp	Damp	Dry	Dry	Dry	Dry	Dry	Damp	–	Damp	–	Damp	–	Dry (172")	
OW3-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (170")	
OW4-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (162")	
OW5-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (153")	
OW6-180	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (178")	
OW7-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (166")	
OW8a-94	Dry	No Pipe													
OW8-169	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (172")	
OW9-168	Dry	Dry	Dry	Dry	Dry	Dry	Dry	Dry	–	Dry	–	Dry	–	Dry (150")	
OW10-168	120	146	141	Damp	Damp	Damp	Dry	Damp	–	114	–	114	–	129" (Bot- 168 Dry)	
OW11-174	Dry	Dry	Dry	Dry	Dry	Dry	–	–	–	–	–	–	–	Dry (171")TP1204 0—72"	
TP2									21	26	30	38	–	42"	
TP3									2	16	18	22	–	17"	
TP4									16	28	26	32	–	32"	
TP5									45	52	57	52	–	60"	
TP6									62	70	60	70	–	77"	
TP7									58	72	62	74	–	82"	

TP8									16	23	–	–	–	33"
TP9									15	23	–	–	–	53"
TP10									29	32	–	–	–	(75") Damp
TP11									>144	>96	–	–	–	59"
TP12									>180	–	–	–	–	–
TP13									>96	–	–	–	–	–
TP14									94	76	–	–	–	77"
TP15									–	–	–	–	–	33"
TP16									31	42	–	–	–	45"OW20688 9"
OW21													61	57"
OW22													50	77"
OW23													49	72"
OW24													60	76"
OW25													110	111"
OW26													56	99"
OW27													48	(55") Dry

HIDDEN SPRINGS



Hydrology/Drainage/Groundwater

Completed by: Spatial Dynamics, 1999
 Source: Surface Hydrology - Ada County
 Digital Basemap, Floodplain - Federal
 Emergency Management Agency (FEMA)
 Springs - Field mapped by _____
 (Ord. 377, 7-28-1999)

Fig. 2-G



Figure 2-G

8-13D-9-14: Geotechnical Characterization

Development of the geotechnical constraints characterization was designed to help recognize factors inherent to natural features which would potentially affect project planning, development and construction. The Boise foothills are prone to some geotechnical constraints which are characterized by slope failure, over-steepened slopes, excess hillside erosion and uncontrolled flooding.

Slope stability and expansive soils associated with the Boise foothill's volcanic assemblage as a geologic unit is known for its potential for both shallow (translational) and deep-seated (rotational) slope failures. The lower stratigraphic sequence of the volcanic assemblage is characteristic of low shear strength, especially along interface clay layers within the lower Terteling Springs Formation. The expansive (swelling) soils are readily recognized by the chocolate brown color and mud-cracked surface, and occurrence of these soils is confined to the outcrop area of the volcanic assemblage. It is believed clayey soils in these areas may have excessive low shear strength when saturated. In addition, the clays tend to have poor drainage, and some are moderately expansive.

Objective. The purpose of this analysis is to identify geotechnical-related constraints associated with the Hidden Springs area and compile the constraint information into a useful nontechnical map form for use by planners to guide future development. The data and maps generated by this study will aid in the formation of planning and development guidelines and construction standards that will:

1. Minimize the detrimental effect of natural constraints to the health, safety, and general welfare of the Hidden Springs project in individual site acquisition and/or development of real property; and
2. Encourage the most beneficial use of selected development areas and productive development of sites within each area.

Geotechnical

Constraint/Slope Maps. The geotechnical hazards map is a compilation and analysis of all available data that may identify potential natural constraints. As such, the natural constraints that have been identified are minor.

The slope map and description included in this Section illustrates and describes areas categorized by the following slopes:

- 0-5 percent
- 6-10 percent
- 11-15 percent
- 16-20 percent
- 21-25 percent
- over 25 percent

Geotechnical Constraints Classification. The following constraint categories have been developed as a general guideline for general planning and development at Hidden Springs.

High Constraints.

Development of these areas will require more detailed study. Characteristic of severe slope failure, high ground water, over-steepened slopes, and rock topple.

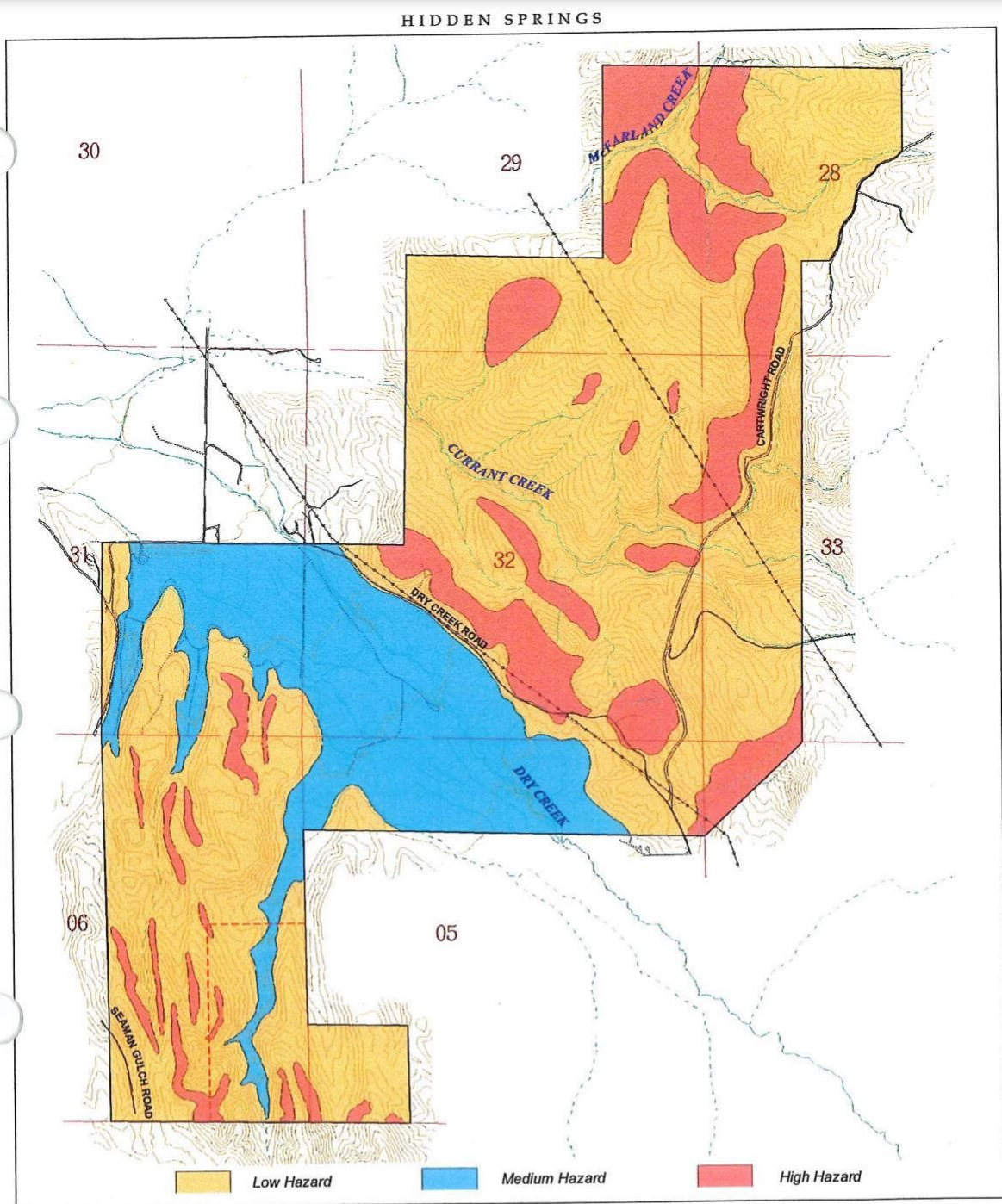
Due to the fact that the basis for this classification is generalized and from secondary sources, the development and platting process as described in Section 4 will require more detailed planning at a site-specific level. At that time, specific building envelopes and lotting criteria will be established to avoid or mitigate identified hazards.

Moderate Constraints.

These areas can be developed with some limitations and/or restrictions. These areas may include ancestral slope failure, steep slopes, some swelling or fat clays. The restrictions placed due to the potential hazards are usually not serious enough to prevent development.

Low Constraints.

These areas can be developed. Little or no development restrictions are associated with these areas. These areas are located primarily south of Dry Creek and Currant Creek.



Geotechnical Hazards

Completed by: Spatial Dynamics, 1999
Source: Field mapping by KLEINFELDER.

(Ord. 377, 7-28-1999)

Fig. 2-H



Figure 2-H

8-13D-9-15: Vegetation

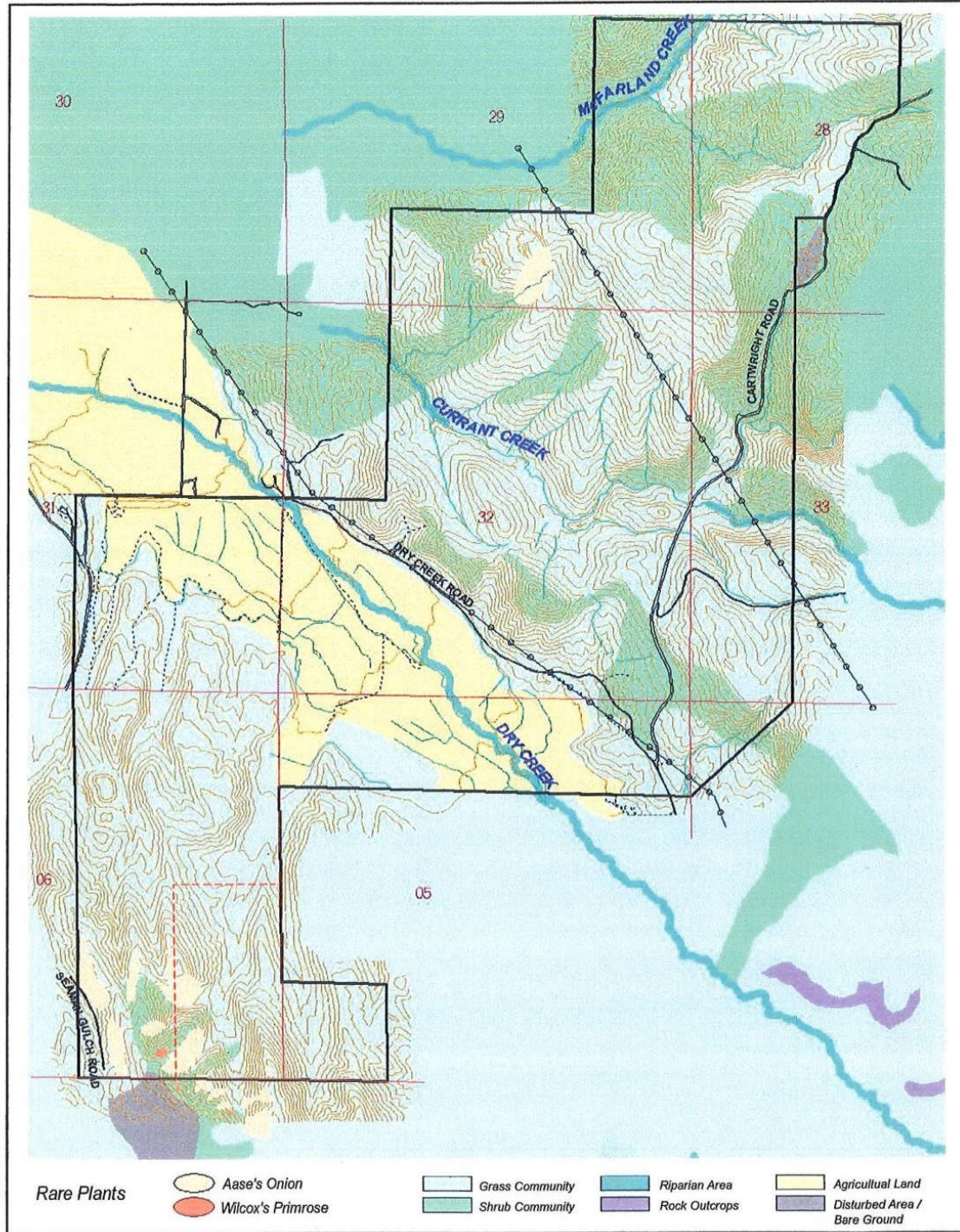
General Vegetation. The Hidden Springs site is composed of three (3) general vegetative zones:

- The moderate to steep slopes, ridges and gulches that are covered with sagebrush grass vegetation;
- The Dry Creek Valley bottomland, which has been converted to agricultural uses; and
- The narrow riparian zones along Currant Creek, McFarland Creek and Dry Creek.

The narrow riparian zones are fairly lush and dominated by large woody species including birch, various willows and red osier dogwood. Hackberry and chokecherry occur in the lower to midslope positions. Forbs includes those that are commonly associated with the foothill's environment. These are miner's lettuce, cleavers, Clematis ligusticifolia, and poa species, sticky geranium, stinging nettle, water pimpernel, cinquefoil and horsetail as well as sedges, grasses, bulrush and alfalfa.

Rare Plants. Rare plants studies were conducted in 1994 and 1999 as part of the site analysis and a report is included in the appendix to this community plan submittal. The reports discuss the isolated populations of Aase's onion that occur in two (2) areas on the upper, south facing slopes north of Dry Creek and at the southern portion of the property above Seaman's Gulch Road. In addition, the 1999 study revealed additional populations of Aase's onion and Wilcox's primrose on or immediately adjacent to the one hundred twenty (120) acre annexation area located at the southern portion of the site, which has been reduced to ninety-seven (97) acres due to the transfer of twenty-three (23) acres to the Cartwright Ranch planned community in 2007.

HIDDEN SPRINGS



Completed by: Spatial Dynamics, 1999
Source: Interpretation of aerial photography
by Spatial Dynamics (1994, 1999)

(Ord. 377, 7-28-1999)

Vegetation

Fig. 2-1



Figure 2-1

8-13D-9-16: Wildlife Resources

Wildlife resources exist on or near the project site. Sitings indicate populations of big game on the property are relatively limited compared to the rest of the foothills area, but small game is abundant. A general overview of these resources follows.

Big Game. A resident herd of mule deer, approximately six to ten (6-10) animals, utilizes the property, most often seen on the slopes north of Dry Creek Road and the agricultural bottoms along the Dry Creek Valley. The property also serves as winter range for another twenty to thirty (20-30) deer, depending on the severity of the winter. More important winter range exists to the east between Rocky Canyon Road and Highway 21, where hundreds of deer are spread out along the foothills in a normal winter. With extreme weather conditions, more animals likely would be pushed down toward the valley bottom from the Boise Ridge and onto the Hidden Springs property. Recent (1986) range fires on the Hidden Springs property have reduced the amount of winter forage for big game by removing valuable shrub species, especially bitterbrush. The 1996 range fire affected only the area south of Dry Creek which has little winter habitat area. Much of the range north of Currant Creek has been taken over by three-awn grass, which has very little forage value for any wildlife species because of its high silica content. The potential exists, however, to rehabilitate the area by plantings of more preferred species of grasses, forbs, and shrubs.

Some elk may winter on the upper portions of the property, especially during severe winters. They too could benefit from range rehabilitation efforts. A few pronghorn antelope, approximately six to eight (6-8) animals, exist in the area. They have favored the agricultural land in the valley bottom, but occasionally venture onto the sagebrush hills.

Upland Game. Upland game including quail, pheasants, mourning doves, chukars and gray (Hungarian) partridge are found in various habitat types on the property. Pheasants are most common nearest the agricultural land, while quail, chukars and partridge are more common in the grassland and sagebrush types. Water sources on the property, including the creeks, seeps, and springs, are important to these upland game species, as well as other nongame wildlife.

Nongame. Raptors, such as red-tailed hawks, ferruginous hawks, Swainson's hawks, northern harriers, and kestrels, hunt over the property, and nest along Dry, Currant and McFarland Creeks. Several owl species also nest and hunt in the area. Great horned owls are known to nest in McFarland Creek. Prairie falcons are known to nest farther to the east, off the property, but may hunt on the sagebrush/grass slopes and riparian areas on the property. Fox, coyote, and other various small mammals are found throughout the property, as are many species of birds that both nest and migrate through the area. Various reptiles and amphibians are found from the valley bottoms to the grassland and shrub slopes. The amphibians would be most closely associated with the riparian areas, seeps, and springs, whereas the reptiles would generally be found in the drier, rockier areas. These species, along with the small mammals, are an important food source for the raptors and mammalian predators.

The most valuable habitat type in terms of numbers of different wildlife species are the riparian areas along Dry Creek, Currant Creek, and McFarland Creek, and in the small seeps and springs. Not only is the water source important, but the greater variety of plant species occurring in these areas means a greater variety of wildlife species. Many species rely on the abundance of shrubs and trees in riparian areas for escape cover, nesting, and food. Riparian areas also serve as important migration and travel corridors because of the cover they provide.

Threatened/Endangered Candidate Species:

The U.S. Fish & Wildlife Service (FWS) has identified a list of endangered, threatened, and candidate species which may occur on the project site. Candidate species have no protection under the Endangered Species Act but are included for early planning consideration. Candidate species could be proposed or listed during the project planning period and would then be covered under the Act. The gray wolf and peregrine falcon are the only officially endangered or threatened species included on the FWS list. The gray wolf was included based on "probable sightings in 1978 and 1981 within 10 km" of the property. Because of the rarity of wolves in Idaho, and especially southern Idaho, it is highly unlikely that a wolf would ever be found on the property. The peregrine falcon was included because of the proximity to the Boise urban hawk site, and it is conceivable that the peregrines may fly over the property occasionally.

The pygmy rabbit, a C2 candidate species, was included as a "possible" occurrence on the property. Since there is little data on the distribution of the pygmy rabbit, it is not conclusive whether it is a resident species. A C2 species is one for which information indicates that a listing proposal may be appropriate, but for which conclusive data on biological vulnerability and threat are not currently available. Priority for listing is lower for C2 species than for C1 species.

Given the above conditions it is not likely that there are threatened or endangered species on the Hidden Springs property.

Sensitive Species. The State of Idaho also has a separate list of "Species of Special Concern." Species occurring in the Boise foothills, and which might be found on the subject property at some time during the year, and their primary habitats, include:

Mammals

- * California Myotis - Sagebrush; feeds along riparian and water, roosts in mines, caves, and rock crevices.
- * Fringed Myotis - Dry pine forests; roosts in buildings.
- * Western Big-Eared Bat - Sagebrush, riparian, open pine forests, mountain shrub; roosts in mines, rock outcroppings, caves, dark buildings.
- * Western Pipistrelle - Cliffs near water; roosts in rocks. Birds
- * Long-Billed Curlew - Open grasslands, marshes.
- * Ferruginous Hawk - Open sagebrush, grassland, cultivated areas, riparian.
- * Swainson's Hawk - Open sagebrush, grassland, cultivated areas.
- * Merlin - Urban areas, riparian.
- * Goshawk - Winters in valley bottoms in riparian zones.
- * Mountain Quail - Riparian areas, dense shrubs.
- * Flammulated Owl - Conifer woodlands, riparian.
- * Northern Pygmy Owl - Dense riparian, mature forest, sometimes in open meadows, swamps, and cultivated areas.

Reptiles And Amphibians

- * Western Ground Snake - Sagebrush.
- * Ringneck Snake - Woodlands, grasslands, shrubby areas, rocky canyons. Since these species are either rare or uncommon, it is difficult to estimate the importance of the

subject property to their distribution.

8-13D-9-17: Cultural Resources

Introduction. As part of the planning and permitting process, an archaeological sensitivity assessment of the Hidden Springs area was conducted. The purpose of the study was to determine areas likely to contain archaeological remains which would be affected by the construction and occupancy of the residential development. An examination of site forms, historic maps, and survey reports resulted in the identification of cultural resources within the project area and the delineation of areas of moderate, moderate to low and low sensitivity for archaeological remains. In general, the project area is expected to have a moderate to low sensitivity for sites based on topographic features, principally steep slopes, and distance to water.

Identified Resources In:

The Project Area. An architectural reconnaissance of the Boise foothills was performed as part of a regional irrigation study (Davis 1990). Three (3) structures in the Dry Creek Valley were recorded as part of that study. These structures include a wood frame hay shed (015216), a wood clapboard house with masonry foundation (015217), and an irrigation headgate structure located on a private ditch (015942). All three (3) structures occur in the Dry Creek flood plain on the Hidden Springs property. Overall, the quantity and nature of the structures suggests that this area received limited historic use associated with farming and livestock.

No prehistoric archaeological resources have been recorded within the Hidden Springs property boundary. A total of six (6) prehistoric and historic sites have been recorded within two (2) miles of the project area. All of these sites, consisting of prehistoric lithic scatters and historic foundations, are located on moderate slopes adjacent to Dry Creek in a portion of the creek with a very narrow flood plain.

Sensitivity Assessment. One of the primary goals of the Hidden Springs project is to be sensitive to any archaeological resources in the project area. A sensitivity assessment has been conducted focused on the relative potential for the various portions of the project area to contain significant prehistoric or historic archaeological resources.

Trends were derived from examining the nature and patterning of known sites within the region, the results of surveys in similar environmental locations including surveys with an absence of cultural resources, and the physiographic and environmental characteristics of the project area. Using these data, the project area was divided into several parts equating to different degrees of archaeological sensitivity. Based on their differences, three (3) classes of sensitivity were defined: moderate, moderate to low, and low.

The Cultural Resources map depicts the range of archaeological sensitivity of the project area. The discussion below outlines the attributes of each of the sensitivity classes.

Moderate Sensitivity. The areas considered to possess moderate sensitivity include the Dry Creek flood plain (M1) and the gentle to modest slopes in the southeastern portion of the study area (M2). Both of these areas have flat to gently sloping topography and proximity to an intermittent stream. The flood plain is covered in recent alluvium and sites within the area are likely to be buried. However, conversations with a local farmer (personal communications, A. Ostalasa) indicate that no cultural materials have been found in this portion of the flood plain, although such materials have been recovered upstream from the project area. The Hidden Springs property has been

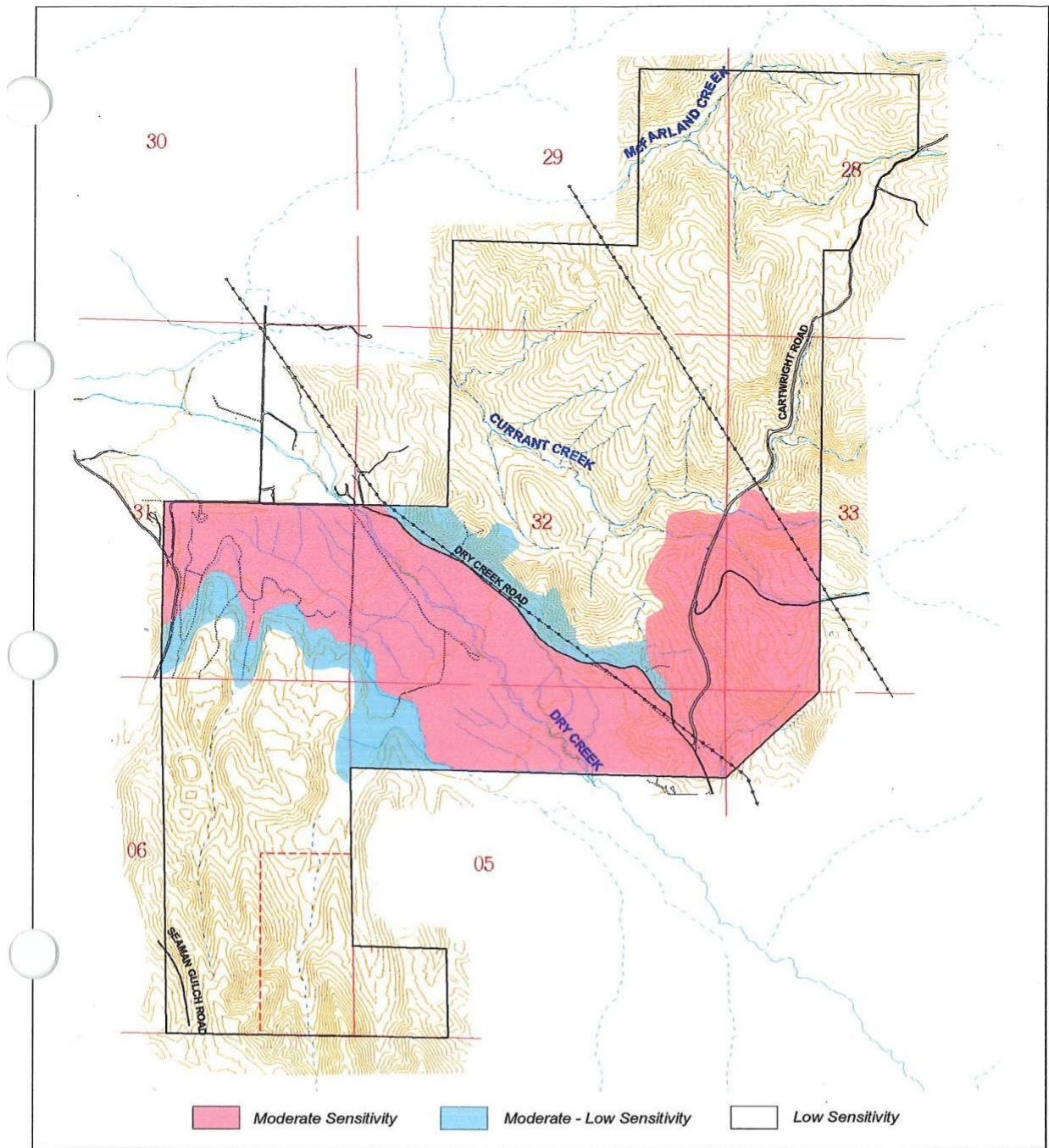
cultivated heavily since the 1800s. Sites that could be found in these areas include seasonal plant collecting and hunting sites and historic sites associated with agriculture and grazing.

Moderate To Low Sensitivity. The areas considered to possess moderate to low sensitivity include the steep slopes adjacent to the Dry Creek flood plain and the mouths of the drainages issuing from the hills into the flood plain. The steep slopes contain some rock outcrops that could have been used as temporary shelters or storage areas. Representing a transitional area between the flood plain and the foothills, this sector is likely to contain a higher density of sites than the foothills, but a lower density than the flood plain. The mouths of the drainages would likely have received prehistoric use for hunting and some plant collecting associated with riparian habitats. These drainages also represent the access corridors to the foothills.

Low Sensitivity. This is the largest portion of the project area, accounting for approximately two-thirds ($\frac{2}{3}$) of the entire area. It contains moderate to steep slopes and ridge tops approximately one-half ($\frac{1}{2}$) to one and one-half ($1\frac{1}{2}$) miles from Dry Creek with narrow intermittent drainages. It corresponds to the low sensitivity zones within the foothills of both the Northeast Boise Foothills project and the Hulls Grove project. In other areas, this zone exhibits low site density. Where sites occur, they tend to be historic and associated with mining, grazing, or other temporary activities.

Prehistoric sites may include very short-term hunting sites and may be represented by isolated artifacts. Sites in this zone are most likely to occur on ridge tops and moderate slopes near the intermittent streams.

HIDDEN SPRINGS



Cultural Resources

Completed by: Spatial Dynamics, 1999
 Source: Field mapping by Science Application
 International Corp and KLEINFELDER.

(Ord. 377, 7-28-1999)

Fig. 2-J

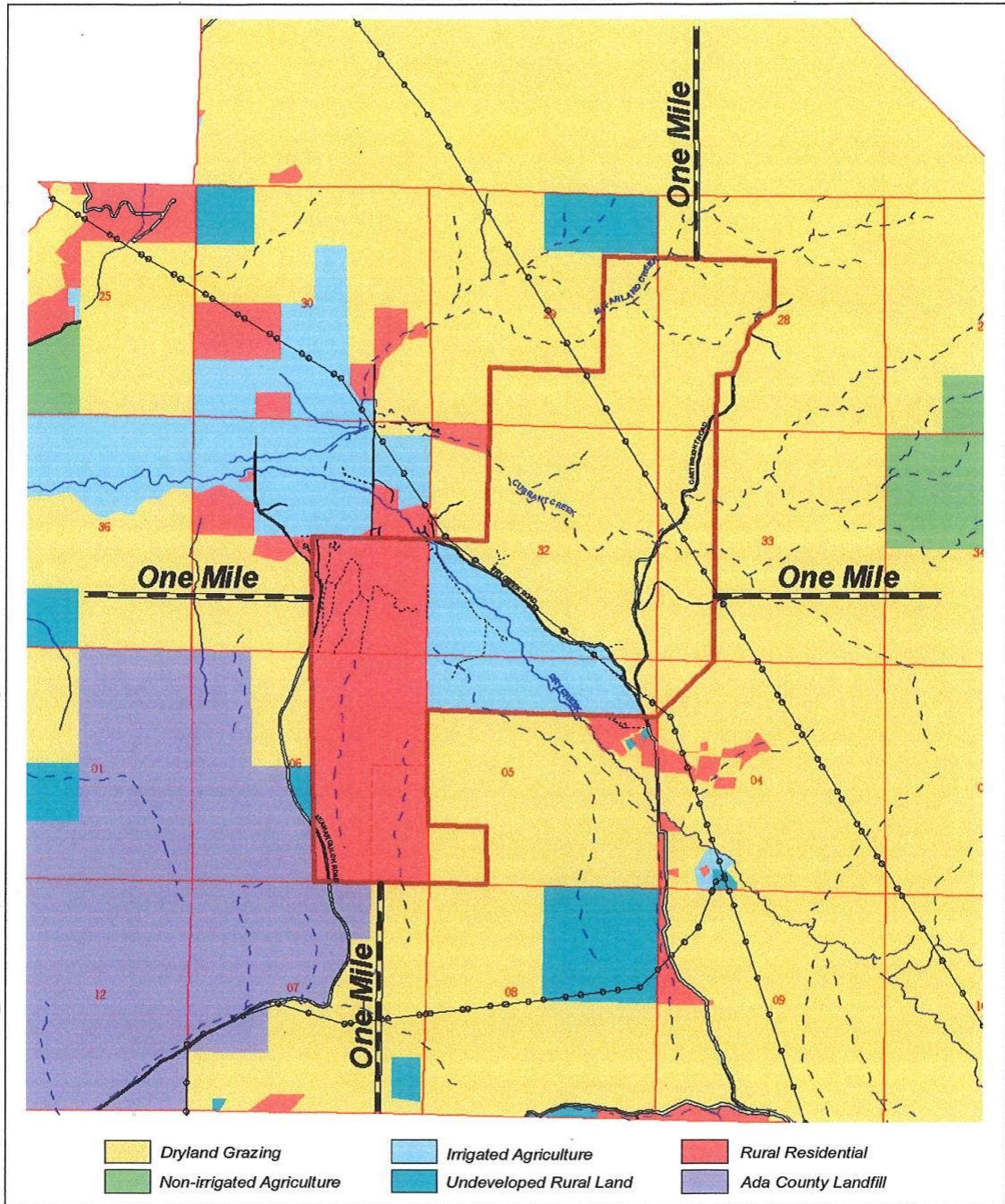


Figure 2-J

8-13D-9-18: Land Use Patterns

Existing land use patterns on-site and within one mile of the Hidden Springs property are consistent with the rural residential and agricultural land uses surrounding the Boise metropolitan area. Specific uses include dry land grazing, both irrigated and non-irrigated agriculture, rural residential (homesites on parcels from one [1] to twenty-five [25] acres), undeveloped rural land and a landfill parcel that is owned by Ada County.

HIDDEN SPRINGS



Land Use Patterns

Completed by: Spatial Dynamics, 1999
Source: Ada County Assessor's records (1998).

(Ord. 377, 7-28-1999)

Fig. 2-K



Figure 2-K

8-13D-9-19: Site Analysis: Summary of Opportunities and Constraints

The analysis of site opportunities and constraints is derived from information presented in the pre-development conditions section of this Plan and summarized in the Site.

Analysis: Opportunities and Constraints map. As such, the site analysis is a composite overlay of the Geographic Information Systems (GIS) resource maps, background reports and field review by the development and planning team. The following outline highlights the natural and cultural factors which either singularly or in combination have presented assets or limitations in the proposed development of Hidden Springs.

Opportunities. Varied Topography: Slopes and landforms that range from shallow, open areas in the Dry Creek Valley floor to the gentle side slopes of the adjacent ridges, into the moderate or steeper slopes of the foothills and gulches provide a great diversity to the Hidden Springs property. These conditions afford the opportunity to sensitively incorporate development into the topography, integrating buildings, roads, and infrastructure to minimize visual impacts and disturbance on the property.

Valley And Hillside Views. The views from the hillsides into the Dry Creek Valley and beyond are dramatic. From the upper slopes at the north side of the property, the views range up to one hundred eighty degrees (180°) toward the Treasure Valley and the Owyhee Mountains. At the south side of the property, the view across Dry Creek Valley features the backdrop of the foothills that immediately rise up to the high ridges, front range and mountains above this valley.

Creeks. The three (3) creeks - Dry Creek, Currant Creek, and McFarland Creek - that run through the Hidden Springs property offer a number of opportunities related to wildlife habitat, trail/greenway corridors and visual amenities.

Access. The close proximity and routing of primary roads to the property from the south and west via State Street, Highway 55, Seaman's Gulch Road, as well as Dry Creek Road from the east offer various routes for convenient vehicular access and traffic distribution.

Ground Water. A ground water resource in the Hidden Springs project vicinity is found in permeable sedimentary aquifers, with reported well yields of up to two thousand (2,000) gallons per minute in the Dry Creek Valley west of the project area. The ground water from cold water aquifers in the Hidden Springs project area is anticipated to be good quality for domestic use, with moderate levels of hardness and no water quality parameters in excess of EPA maximum contaminant levels (MCLs).

Constraints. Steep Slopes: A number of areas throughout the northern and southern portions of the site are constrained by slopes that are in excess of twenty five percent (25%). These slopes are primarily along the sides of the ridgelines that project into the Dry Creek Valley, some of the broad, open slopes at the northern portion of the property and the backslope that extends into McFarland Creek.

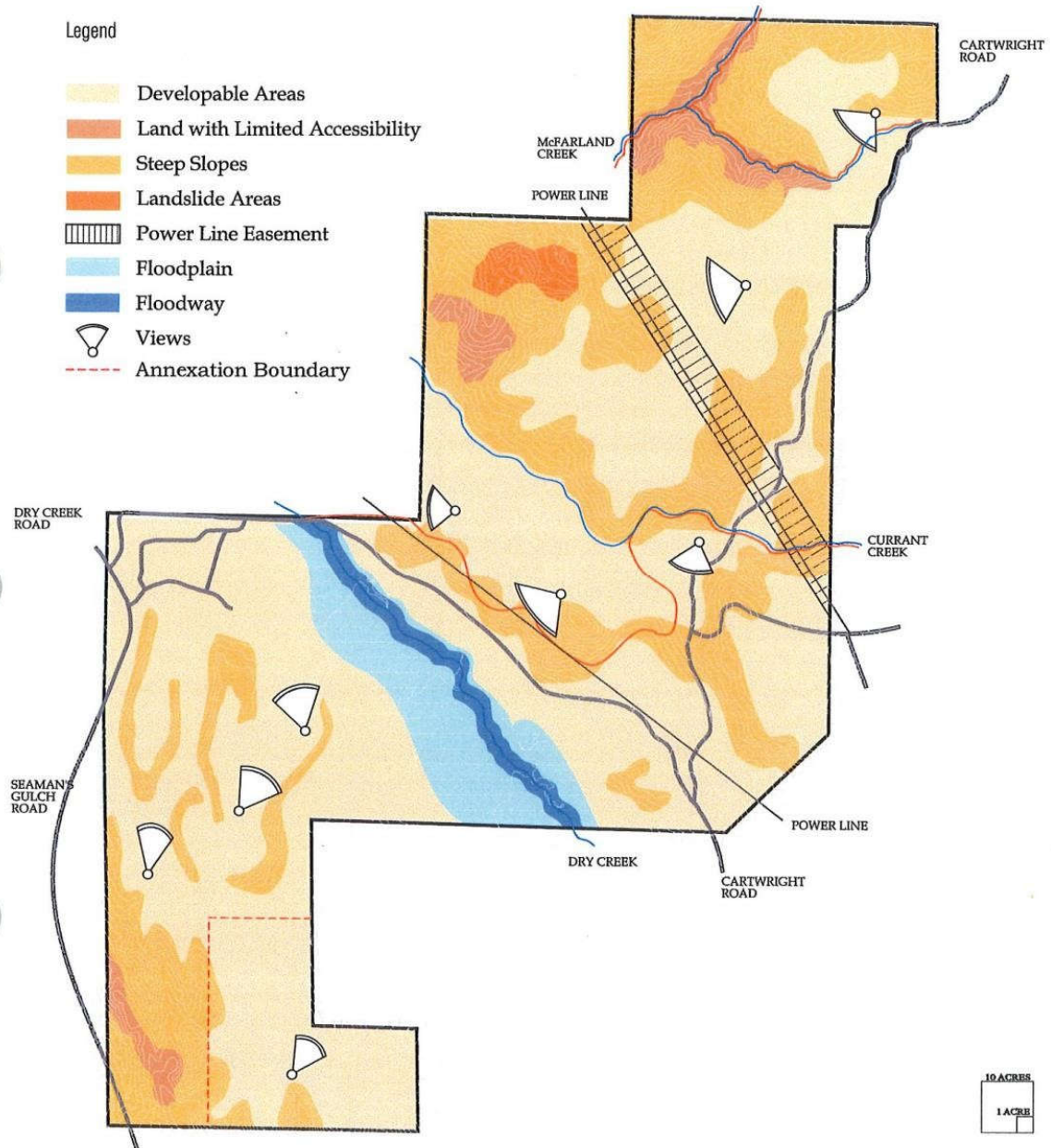
Visually Sensitive Hillsides. Due to the amount and exposure of slope area, including ridgelines, side slopes and exposed hillside areas within the property, there is a significant amount of visually sensitive land.

Power Line. The power line that runs diagonally across the upper end of the northern portion of the site includes a significant easement and setback area that impacts views, reduces access, and restricts land use along this corridor.

Flood Plain. The Dry Creek flood plain and floodway present a constraint related to buildable area and access within the valley floor.

Land With Limited Access. Certain portions of the Hidden Springs property are difficult to access due to steep slopes, ridgelines, stream corridors, lack of easements or adjacent property configurations and geological hazard areas.

Surface Water and Wetlands. Established drainages and springs including Dry Creek, Currant Creek and McFarland Creek should be isolated from all unnecessary construction activity. Road and utility crossings should be planned carefully with appropriate restoration.



Site Analysis: Opportunities and Constraints

Revised: April 1999
(Ord. 377, 7-28-1999)

Fig. 2-M

Figure 2-M

8-13D-9-20: Central Planning Concepts

Plans for Hidden Springs have been under preparation for several years. The plans presented in this document are the result of an extensive period of regional and site- based analysis, a careful consideration of program and design alternatives and the study of other major projects in the country that are known for environmental quality and traditional community values. The plans were refined to reflect the suggestions of numerous public agencies and interest groups (including many neighboring property owners) who are concerned with land use and development in the Dry Creek Valley.

The resulting development strategy seeks to set a distinctive precedent for development in the Dry Creek Valley by establishing a small rural town and agricultural valley floor as the defining identity and amenity for an environmentally sensitive and visually dramatic planned community. The central planning concepts which make up this plan include:

Integrated Community. Hidden Springs will use innovative infrastructure technologies, resource management techniques and financial investment strategies to create a planned community which integrates the unique qualities of its site with responsible development and operations.

- Site disturbance will be minimized through the use of rural roadway designs, shared driveways, building envelope controls on rural residential lots, and a compact and efficient village center core.
- Water will primarily come from United Water Company and be distributed to a reservoir and a comprehensive distribution system. Lots greater than two and a half (2.5) acres in size will be served by individual wells.
- Sewage will be handled primarily through an aerated lagoon biological treatment system. Lots greater than two and a half (2.5) acres in size may employ individual septic treatment systems.
- The sewage treatment system will be managed by a qualified professional entity acceptable to the department of environmental quality and Central health district.
- Stormwater will be captured, dispersed, and treated in a series of grassy swales and retention areas that will naturally filter pollutants and recharge the aquifer.
- On-site commercial and community/recreation facilities will help to capture traffic and minimize the number of trips off site. Park and ride lots and vanpools will help residents get to work without using their automobiles.
- A wildfire prevention and management strategy, developed in coordination with North Ada fire and rescue and BLM will be implemented. Elements include use of noncombustible building materials, fire resistant vegetation, sufficient water supply and pressure, and access to permittee's areas.
- Advanced telecommunication connections to every home will enable residents who choose to work at home to communicate with their employers, schools, libraries, and other information services without leaving the community.
- Extensive trails and bicycle facilities will encourage residents to walk and recreate within the community as well as have access to larger regional systems.
- An active community association will be established to ensure long term maintenance and operations are of the quality of initial improvements.
- The Hidden Springs boundary configuration together with the design and provision of essential public services enhances the ability of Hidden Springs to potentially be annexed

or incorporated.

Maintaining Rural Character. Hidden Springs will maintain the existing rural character of Dry Creek Valley by conserving the agricultural scale and character of uses in the most visible portions of the site and concentrating higher density residential in the village center or more hidden side coves and valleys. The central portion of the valley floor will remain in agriculture under common control. The large south facing slope below the power line will be maintained as a wildlife management area and be enhanced with native vegetation. Above the power line, farm/ranch lots will serve as a buffer to this wildlife management area. The farm/ranch and rural lots will all have designated building envelopes which will allow the majority of the site area of these lots to remain in undisturbed native vegetation and open space. These designated building envelopes create a very low density of isolated homesites which encourages the use of shared driveways, individual wells and on-site septic to minimize the impact of access and development of the homesites. The roadways outside the village center will be maintained as rural cross sections with natural shoulders and grassy swales, rather than urban curb and gutters. Project features such as the general store, community center and residential neighborhood entries will be designed consistent with the site's character.

Minimizing Visual Impact. Where development is proposed, buildings, utilities and roads will be carefully sited and screened to minimize their visual impact from both on-site and off-site adjoining properties. Techniques used to minimize visual impact include:

- Minimizing development in the highly visible valley floor and concentrating development in the more hidden side coves, gulches, and valleys.
- Minimizing development of the highly visible hillsides and keeping development either at the base or top of slopes.
- Siting ridgetop units in saddles and low areas to minimize "skylining" when development occurs at the top of slopes.
- Tucking buildings into topographic folds.
- Orienting roadway views to open space, agricultural parcels, and the creek beds.
- Offsetting building pads to permit views between homes to open space, agricultural fields, and the creeks.
- Using native vegetation in natural massings to blend homes with hillsides.
- Limiting heights, breaking up building massing and facades to minimize the visual scale of structures.

Conserving Natural Systems. Hidden Springs has been carefully planned to minimize impact on the natural systems in Dry Creek Valley and in some cases to enhance or improve natural systems which have been stressed by the existing ranch and grazing operations. Riparian areas will be maintained in their existing configuration or be enhanced.

Greenbelt or open space buffers have been designated between all riparian areas and nearby development. Wildlife corridors and big game winter range management areas have been designated with plans for enhancing these areas with vegetation to improve their ability to support big game winter feeding.

Greenbelt, regional and local trails have been designed to allow both wildlife and humans to move unobstructed throughout Hidden Springs and connect to corridors on adjoining lands. Approximately fifty percent (50%) of Hidden Springs will remain as open space. Existing

vegetation will be maintained through the enforcement of building envelopes and related design guidelines on the rural residential lots. Natural drainageways will be protected through similar design guidelines regulating the grading and drainage of building parcels.

Protecting Water Quality. Water quality is integral to several planning concepts including transportation, water, sewer, and facilities management.

Drainage from the road system will be contained and filtered through grass swales and natural soils where terrain allows. The water system will be metered and managed.

Existing irrigation water rights will be used to continue farming activities and irrigate common areas. Irrigation losses will be minimized through a program of limited and controlled landscaping and planting. Wastewater will be treated primarily through a pressurized subsurface treatment system. All the water quality management features will be designed in accordance with regulatory standards and sited with soils and geology suited to that purpose. The existing springs on the south side of Dry Creek will be integrated into the overall site plan's common areas and agricultural areas. All of these systems will all be integrated into the overall management structure for the area.

These concepts, properly designed, constructed, maintained, and managed, will offer a rare opportunity to have development without sacrificing water quality.

Developing A Distinctive Community. Hidden Springs has also been conceived with the intent of establishing an environment that fosters a high quality of development and strong community interaction amongst its residents. The village center will emulate the small-town character which makes so many of Idaho's rural towns unique. The community will offer homesites with a broad range of size configurations and features. Hidden Springs will encourage a diversity of residents bound together with a common pride and identity in their community. While distinctive in their design and product type, residential neighborhoods will be linked by pathways and trails to the village center allowing the community center and general store to act as community wide gathering places. Recreational facilities such as playing fields, playgrounds, tot lots, trails and other open space features will provide numerous opportunities for residents to interact. Hidden Springs will also sponsor numerous community activities including farmers' markets, community gatherings, family-oriented holiday events and educational sessions to encourage residents to explore the natural environment, meet their neighbors and share in community activities. The schools, general store and produce stand will also meet important community needs, reduce travel requirements, and will provide the community with opportunities for residents to interact with their neighbors. Hidden Springs will provide Ada County and the Boise area with a model planned community that captures the rural character and traditional town values that have historically made Idaho's communities ideal environments to live in and raise a family.

Flexibility. The master land use plan, development standards and design guidelines contained herein are intended to depict the general nature and relative intensity of residential and nonresidential development at Hidden Springs, while allowing sufficient flexibility to permit detailed planning and design as development progresses through market cycles. The configuration of development parcels and phases may be altered from those shown on the master land use plan to accommodate detailed site conditions and revisions to the project's implementation strategy - providing that the reconfiguration does not conflict with the general intent or specific conditions described in this specific plan.

Specific conditions:

1. Residential density may be transferred among development parcels providing this transfer does not conflict with the general intent or conditions provided in Section 8-13D-4 of this Article, nor exceed the total project unit count of one thousand thirty-five (1,035) units. Density transfers will be reflected in plats submitted for each phase.
2. A mix of residential uses is permitted in all development parcels.
3. Total commercial uses shall not exceed fifty thousand (50,000) gross square feet (GSF) of interior building area of village commercial uses and fifty thousand (50,000) gross square feet (GSF) of interior building area of agricultural commercial uses as defined herein. Public and community support uses are not included in these totals.
4. A major portion of the Dry Creek Valley floor will remain in use for agricultural activities.
5. There will be a designation of a major wildlife and winter range area, both north of Currant Creek, south of the power line, and west of Cartwright Road, as well as east of Cartwright Road and north of the power line.
6. The total acreage of the open space areas will not decrease below eight hundred ten (810) acres.

8-13D-9-21: Plan Overview

Introduction: The primary objective of the Hidden Springs plan is to create a rural community in the tradition of Idaho small towns spread throughout the state's rural areas. The project will maintain the traditional character of Dry Creek Valley while allowing for low density residential development. The project will also protect and enhance the site's natural environment including riparian areas, groundwater recharge areas, open space/natural features, wildlife, and winter range areas.

Homesites: The residential program for Hidden Springs is the result of a desire to create a rural community with a variety of housing options for prospective residents. The following overview provides a description of the six (6) residential options:

Farm/ranch lots - These are agricultural style lots intended to preserve rural character in the most visible portions of the Dry Creek Valley. The farm/ranch lots are intended to provide a unique residential opportunity in conjunction with carefully controlled farming or grazing operations.

Rural lots - These are lots which serve as buffers between farm lots and denser residential lots or between the village center and adjoining properties. Rural lots are intended to provide a transition from farm to village character.

Large lots - These are lots which are generally located on the site's moderately sloped hillsides. These lots vary substantially in size and configuration to respond to existing topography and minimize visual impact.

Regular lots - These are lots which generally occur in the side valleys and coves where relatively flat land hidden from distant views can accommodate higher densities. They may also be located in areas where smaller lots are most appropriate.

Village homes - These are reminiscent of the "in town" lots traditionally found in Idaho's

agricultural towns and communities. These lots and homes built on them are intended to form a close-knit residential village with strong pedestrian and community orientation like some of the established neighborhoods of Boise (such as the north and east ends).

Townhomes - These are the community's smallest lots, intended to provide alternative, attached, or smaller detached homes which may appeal to seniors, empty nesters, first time home buyers, and/or single parents who prefer a small unit with limited yard area. Townhome lots are intended to be located in or within convenient walking distance of the village center.

Nonresidential Uses: Commercial support uses are accommodated via three (3) overlay zones as described below:

Village Commercial: This area provides for neighborhood businesses that are compatible with the adjoining village residential uses. It will serve the residents of Hidden Springs, the Dry Creek Valley, and other nearby areas. A general store will be developed in the first phase of the project to initiate this village commercial zone and serve early residents of the project with staples and services.

Agricultural Commercial: This area provides for agriculturally oriented businesses (such as produce stands) that are compatible with agricultural activities and nearby residential uses. Businesses located in this zone will also serve the residents of Hidden Springs, the Dry Creek Valley, and nearby areas.

Employment Centers: Hidden Springs anticipates that certain specialized types of employment centers may be attracted to this project because of its unique setting, rural character, high quality development standards and community values. Hidden Springs would like to reserve the right to incorporate future employment centers and related contemplated uses providing these uses adhere to the rigorous standards for compatibility and consistency described herein.

Other Uses: Public and Other Community Support Uses: Include the Community Center, schools, daycare facilities, post office, recreational facilities, the fire station, and an Equestrian Center. The community will also include a greenbelt along Dry Creek, a series of regional and local trails, and significant areas of open space.

Table 4: Land Use and Density

Land Use	Gross Acreage ¹	Dwelling Units	Percent Of Total Dwelling Units
Residential:			
Farm/ranch lots	53	32	3 percent
Rural lots	94	2	0 percent
Large lots	360	278	27 percent
Regular lots	7	11	1 percent
Village homes	253	696	67 percent
Townhomes	6	16	2 percent
Residential subtotals	773	1,035	100 percent

Nonresidential:			
Open space/parks	963		
Community Center/school	29		
Equestrian Center	0		
Nonresidential subtotals	992		
Totals	1,765		

Note:

1. The gross acreage as adopted by findings by the Board of County Commissioners is one thousand one hundred sixty-three (1,163). The acreage breakdown will be corrected in a future ordinance. This table represents anticipated land uses as of May 2003. The final allocation of uses may vary based on site and market conditions as allowed by this application and zoning ordinance.

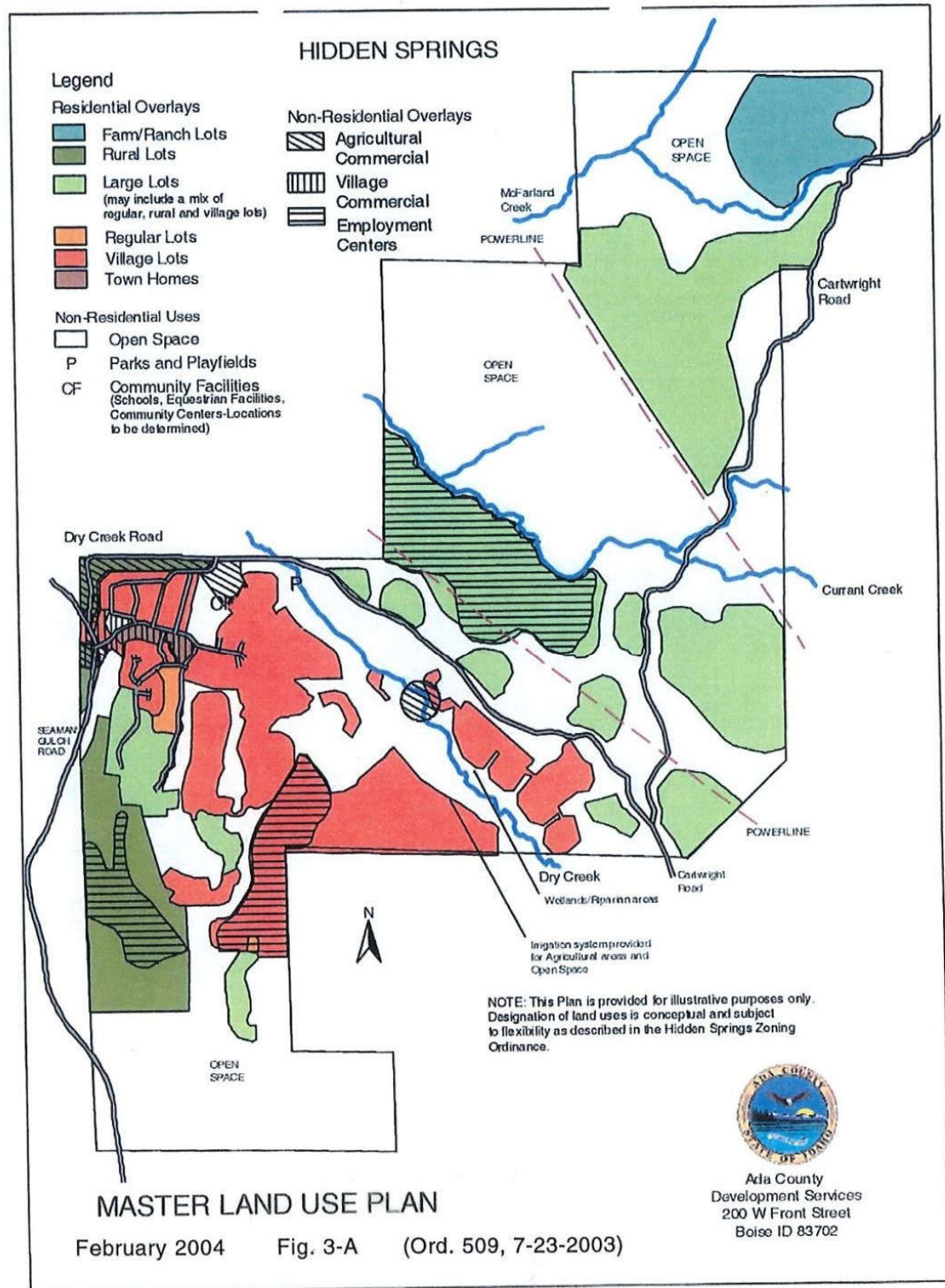


Figure 3-A

8-13D-9-22: Phasing Plan

The phasing plan for the Hidden Springs community outlines the anticipated sequence of development implementation. Initial phases of construction are relatively easier to identify and predict than subsequent phases will undoubtedly be adjusted in response to general economic conditions, market forces and absorption rates. The community is currently projected to take between seven (7) and twelve (12) years to build out.

The phasing plan map identifies the phases and sequence as anticipated at this time. The sequence reflects two (2) primary considerations: one is that a variety of densities and housing types are desirable for inclusion in each phase; another is that infrastructure is planned for development in an economically efficient manner. All land use types are included in each phase, with the exception of the preliminary assumption that townhouse units may not be developed until phases four and five. Phasing is planned in such a way that at the completion of each phase all essential public services needed to meet that and preceding phases are in place and that financing necessary for maintenance and operation of those services is assured. Hidden Springs will be developed in such a way that integrity of the community will be maintained at the end of each phase.

Phase One (1997-1999). Preliminary projections are for the first phase to include a mix of eighty (80) to one hundred sixty-two (162) residential units drawn from the following categories: farm/ranch lots, rural lots, large lots, regular lots, and village home lots. The number of units in each of these categories will be based on market demand and the need to offer potential residents a variety of housing options.

This phase will also include roadway improvements to Seaman's Gulch Road, McFarland Road, and Dry Creek Road south and west of Dry Creek with associated landscape and entry improvements. These improvements are all within the development boundaries. A general store will be constructed near the realigned intersection of Seaman's Gulch and Dry Creek. Utility systems to support this phase will also be constructed including a water reservoir, water distribution lines, sewage treatment system, and the storm water retention areas servicing the phase I development area. A significant portion of the trail system will also be developed.

Subsequent Phases: The rate of development following the initial phase, exact location and number of future phases, and types and number of units to be included in each future phase may be revised based on market demand, regional and national economic conditions, and construction logistics. Analysis at this time indicates that approximately seventy-five (75) to one hundred (100) units per year can be successfully absorbed. A seven (7) to twelve (12) year build out is therefore assumed. The anticipated completion time for each phase is as follows:

TABLE 5: PHASING			
Phase	Year	Residential Units	Land Contained
Phase 1	1997-99	162	184
Phase 2	2000-02	134	58
Phase 3	2003-04	102	24
Phase 4	2005-06	138	41

Phase 5	2007–08	132	62
Phase 6	2009–10	105	40
Phase 7	2011–12	176	195
Phase 8	2013–14	<u>86</u>	<u>169</u>
		1,035	773

Anticipated population levels for each phase can be determined by multiplying the estimated number of persons per unit – two and a half (2.5) – by the number of units anticipated in each phase.

As part of the County review of the Hidden Springs development that will occur every two (2) years, the developer will provide the Director with a summary including: number of residential units and commercial uses platted to date; number of and type of units built by type; quantities and types of commercial and public facilities; a description of all infrastructure and services developed; and an updated outline of future phases.

HIDDEN SPRINGS

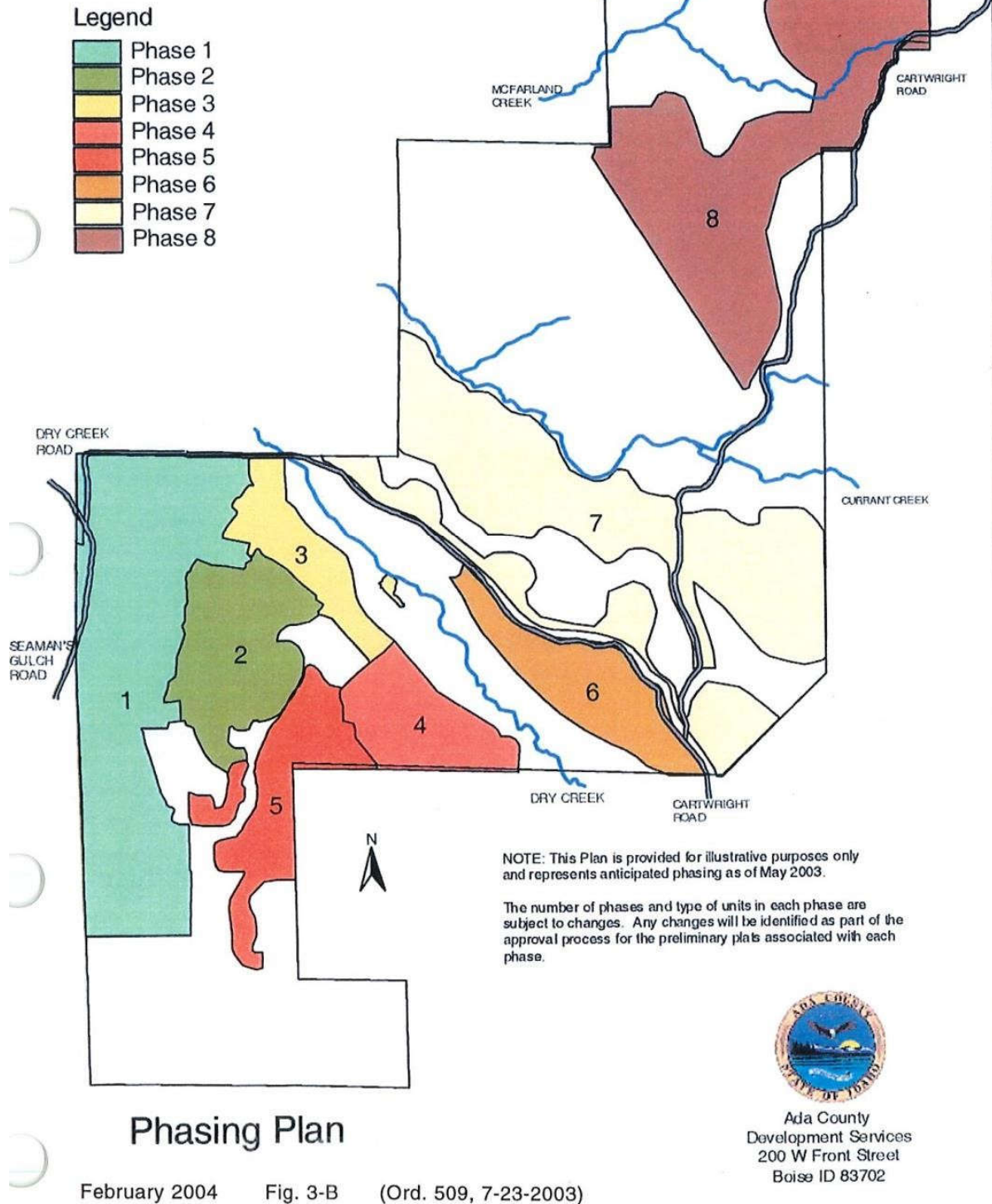


Figure 3-B

8-13D-9-23: Roads and Circulation

Overall Objectives: The design of the vehicular and pedestrian circulation system at Hidden Springs must meet the safety and functional intent of the Ada County Highway District (ACHDs) design standards while not compromising the aesthetic, environmental, and community building goals of the project. The circulation hierarchy and typical cross sections which follow strive to strike a balance between these two (2) requirements. The main objectives of the Hidden Springs circulation system include:

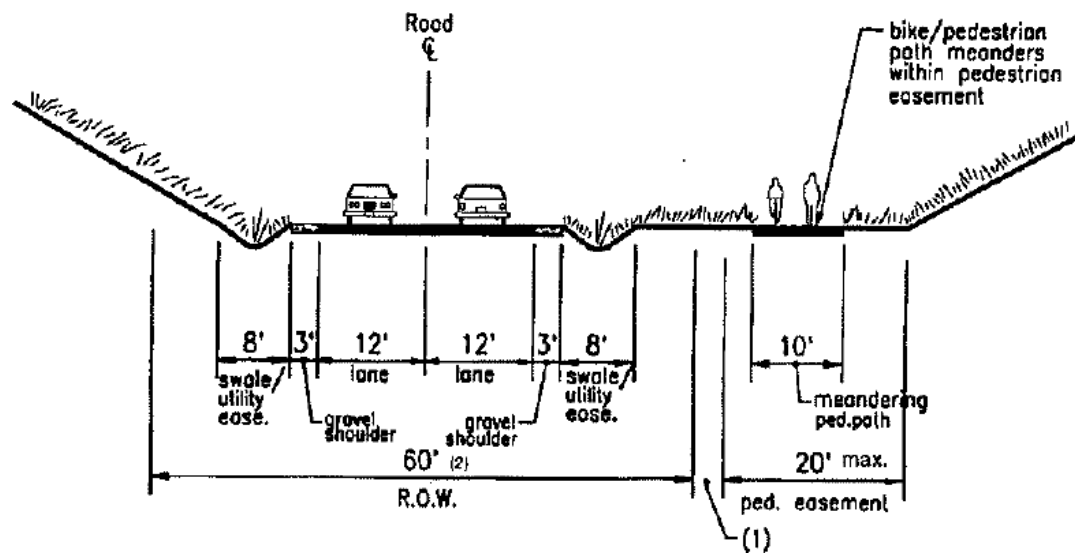
1. Provide a functionally efficient, safe, balanced, network of vehicular, bicycle and pedestrian facilities.
2. Maintain the project's rural character by using rural cross sections wherever possible.
3. Minimize disturbance of existing soils and vegetation.
4. Minimize runoff and associated erosion.
5. Use grassed swales wherever possible to disperse storm water, allow for maximum percolation and remove runoff pollutants.
6. Provide on-street parking throughout the Village Center.
7. Design street cross sections to a level that provides relative ease of vehicular movement, while also affording reduced speeds.
8. Accommodate "through" bicycle traffic on-street and "recreational" bicycle traffic both on street and on shared pedestrian/bicycle paths separated from roadways.
9. Allow sidewalks and shared pedestrian/bicycle paths to meander in pedestrian easements outside the road right of way for maximum design flexibility.

Table 6: Road Standards

Road Type	R.O.W.	Total Pvmnt Width	Travel Lanes	Shoulder Width (ea)	Turn Lane/ Median	Parking (Left)	Sidewalk/Bik e Path	Setback To Path (1)	Curb Type
Rural collector – typical	60'	24'	2@12'	3'	None	None	10'	N/A	None
Rural collector – with turn land	60'	36'	2@12'	3'	12'	None	10'	N/A	None
Rural collector – constrained	46'	24'	2@12'	3'	None	None	8'	N/A	None
Dry Creek Bridge crossing	60'	26'	2@13'	0'	None	None	10'	N/A	6" Vertical
Rural residential – typical	50'	22'	2@11'	3'	None	None	8'	N/A	None
Rural residential – constrained	40'	22'	2@11'	0'	None	None	8'	N/A	12" Ribbon
Village street – primary	72'	50'	2@12'	0'	10'	8'	5'	6'	6" Vertical
Village street – residential	56'	34'	2@10'	0'	None	7'	5'	6'	6" Vertical
Village alley	20'	16'	N/A	2'	None	None	None	N/A	None

Note:

(1) Distance measured from face of curb.

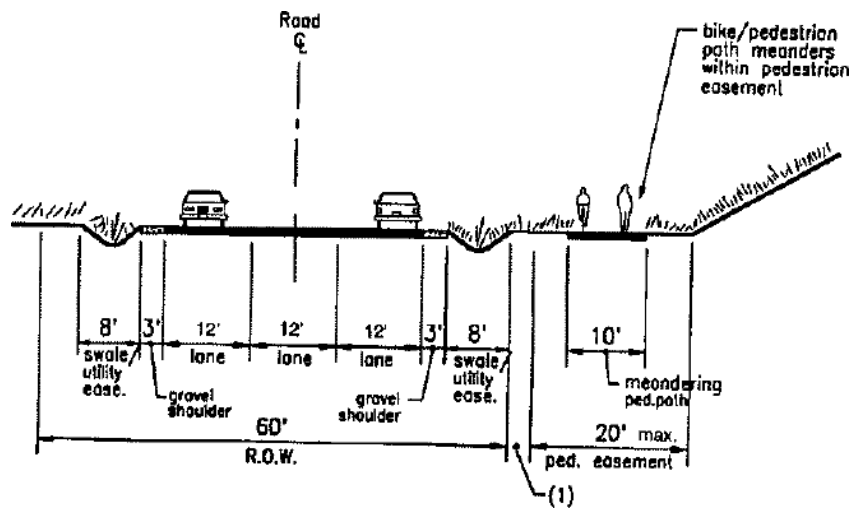


Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

(2) The ROW shall be 80 feet for Cartwright Road southeast of its intersection with Dry Creek Road and for Dry Creek Road from its eastern terminus westward to and including the Dry Creek Bridge.

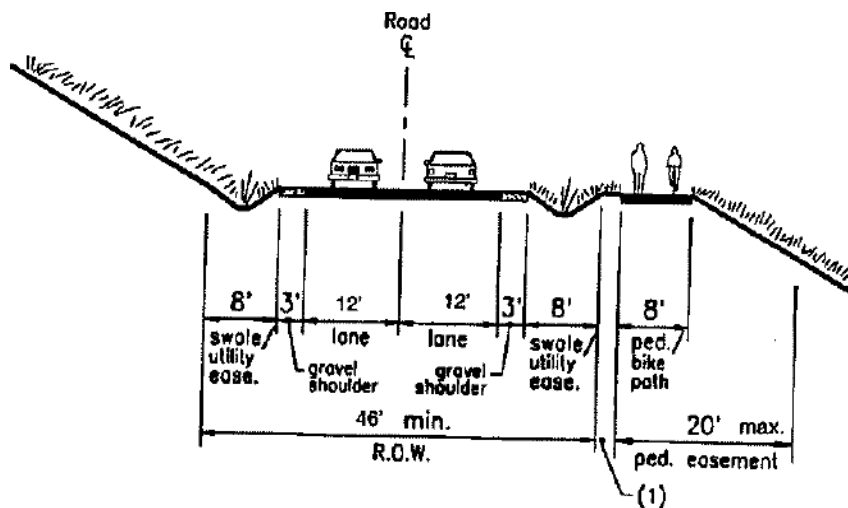
Rural Collector – Typical (Seaman’s Gulch Road, Dry Creek Road, and lower Cartwright Road): Rural collectors serve to collect traffic from and distribute traffic to village streets and rural residential roadways throughout the project. They will also serve to accommodate through traffic – although through traffic will be discouraged to help maintain the rural character and minimize environmental impact to the Dry Creek Valley. The typical section includes a sixty (60') foot right of way with two (2) 12-foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8- foot maximum width grass swales. A single ten-foot (10') pedestrian/bicycle path will meander in a pedestrian easement generally parallel to the right of way but not always contiguous to the right of way.



Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

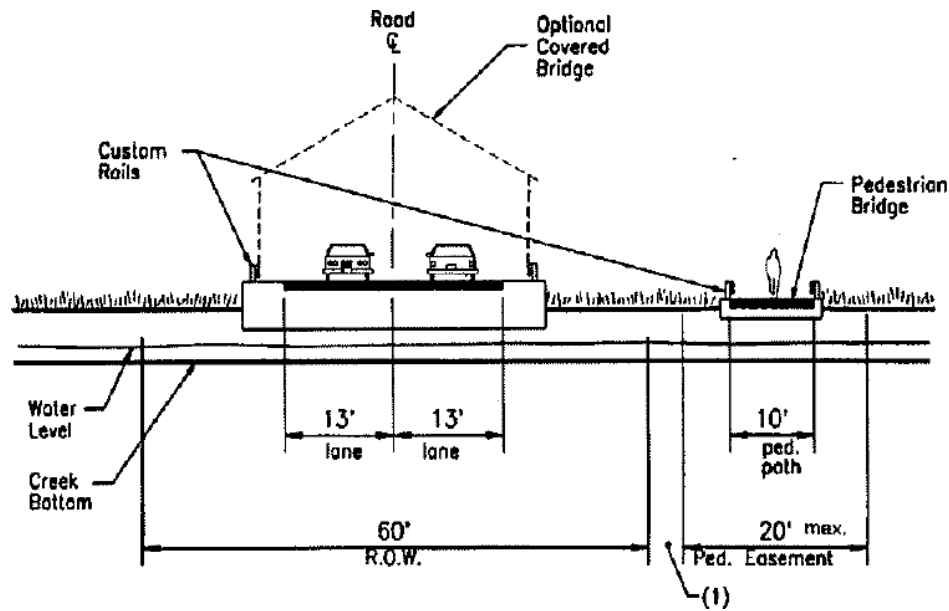
Rural Collector - With Turn Lane: For rural collectors where turn lanes are needed a twelve-foot (12') center turn lane will be added as necessary to accommodate turning movement into project roadways. The section will also include travel lanes of twelve feet (12'). Otherwise, the section will remain the same as the typical rural collector.



Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

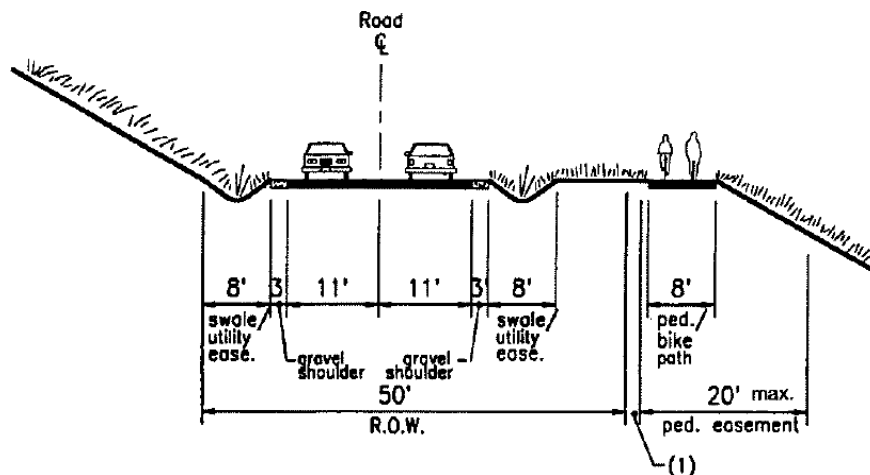
Rural Collector - Constrained (upper Cartwright Road): The rural collector constrained section mainly occurs in the upper portion of Cartwright Road. In order to maintain the visual character and minimize the site disturbance this section has been narrowed. The typical section includes a forty-six foot (46') right of way with two (2) 12-foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8-foot maximum width grass swales. A single eight foot (8') shared pedestrian/bicycle path will be approximately parallel to the right of way in a separate pedestrian easement.



Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

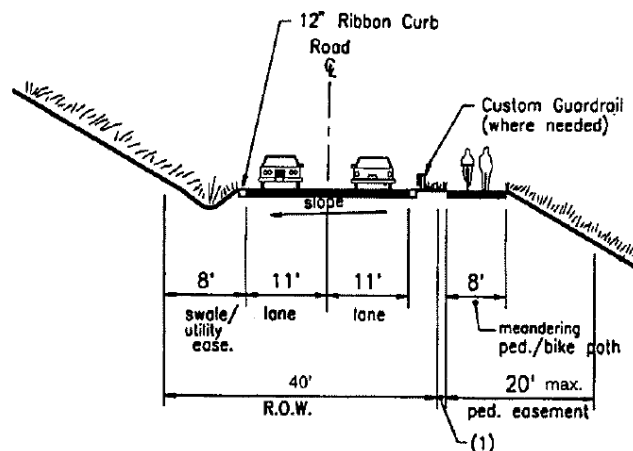
Dry Creek Bridge Crossing: The Dry Creek Bridge Crossing will provide enhanced capacity, safety, and the addition of separate bicycle/pedestrian facility across Dry Creek. The bridge can also serve as a primary visual identity element for the project and may become a "covered bridge" with appropriate vertical clearance and architectural style. The bridge crossing will remain in its current location. Bridge width and associated grading should be kept to a minimum to prevent impact to the riparian corridor. The typical section includes a thirty-two foot (32') wide bridge surface with two (2) 13-foot travel lanes. A single ten-foot (10') pedestrian/bicycle path will be accommodated in a separate pedestrian/bicycle bridge crossing.



Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

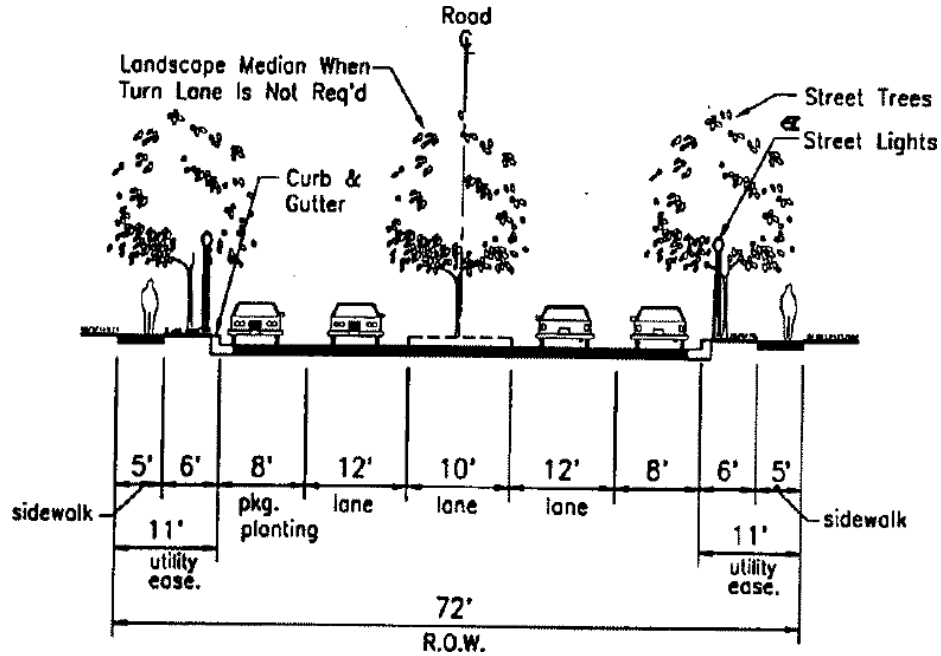
Rural Residential - Typical: Rural residential streets include most of the roadways in Hidden Springs and will serve to carry local traffic to/from individual homesites. These roadways will be located and designed to discourage through-traffic and maintain low vehicular speeds. The typical section includes a fifty-foot (50') right of way with two (2) 11-foot travel lanes, two (2) 3-foot stabilized shoulders, and two (2) 8-foot maximum width grass swales. A single eight foot (8') shared pedestrian/bicycle path will meander beyond the ROW in a pedestrian easement as necessary.



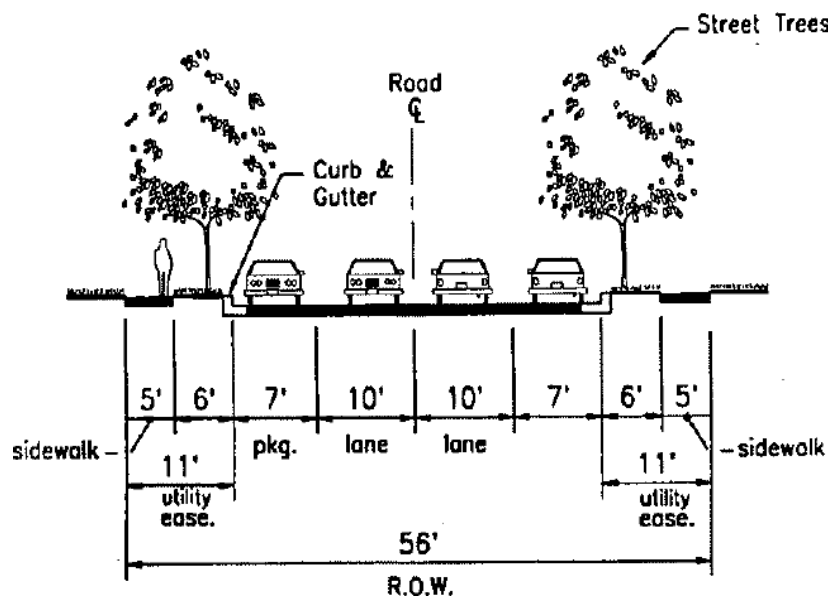
Notes:

(1) Pedestrian easement may or may not be contiguous. (Typical)

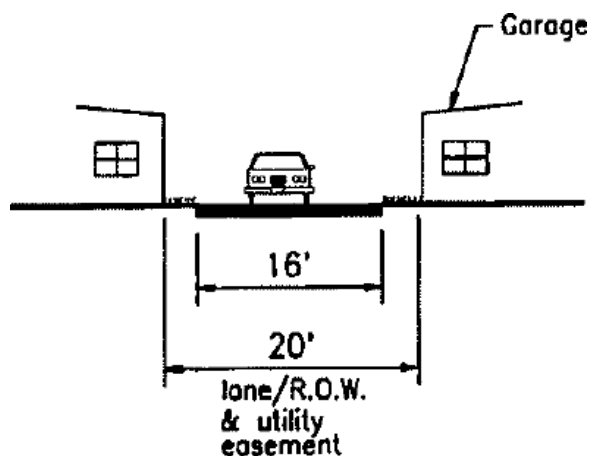
Rural Residential - Constrained: Constrained rural residential streets occur in steeply sloped areas that cannot handle the width required for the typical rural residential section. This section includes a forty-foot (40') right of way with two (2) 11-foot travel lanes, no stabilized shoulders (but a 12-inch ribbon curb included in the 11-foot travel lane) and one grass swale on the uphill side of the street. An eight-foot (8') pedestrian/bicycle path will be located on the downhill side of the street with a wood guardrail separating it from the street for safety purposes.



Village Street - Primary (Seaman's Gulch Road, Dry Creek Road, and McFarland Road within the Village Center): Primary village streets will serve as the "main streets" of the Village Center and will accommodate the potential for commercial uses, community center, school, and village residential uses along their frontage. Village streets should establish a comfortable environment for pedestrians with slower vehicular speeds, frequent vehicular stops, on-street parking, and tree-lined sidewalks. The typical section includes a seventy-two-foot (72') ROW with two (2) 12-foot travel lanes, one ten foot (10') turn lane (where necessary) or planted median, two (2) 8-foot parallel parking lanes, and five foot (5') sidewalks set back from the curb with a five foot six inch (5'6") tree lawn on both sides of the street and within the right of way.



Village Residential (All other streets within the Village Center): Residential village streets should also establish a comfortable pedestrian environment with slow vehicular speeds, frequent vehicular stops, on-street parking, and tree-lined sidewalks. Because turning volumes for these streets should be low enough to eliminate the need for turn lanes, the typical section includes a fifty-six-foot (56') right of way with two (2) 10-foot travel lanes, two (2) 7-foot parallel parking lanes and five foot (5') sidewalks set back from the curb with a five foot six inch (5'6") tree lawn.



Village Alley: Alleys will be created to eliminate driveways on village streets. Fewer driveways on village streets means more on-street parking, more resident interaction, less utilitarian infrastructure, and no unsightly garages lining residential streets. Alleys will also be used for utility easements, trash collection and emergency vehicular access. The typical alley section includes a sixteen-foot (16') paved lane with two-foot (2') shoulders on each side.

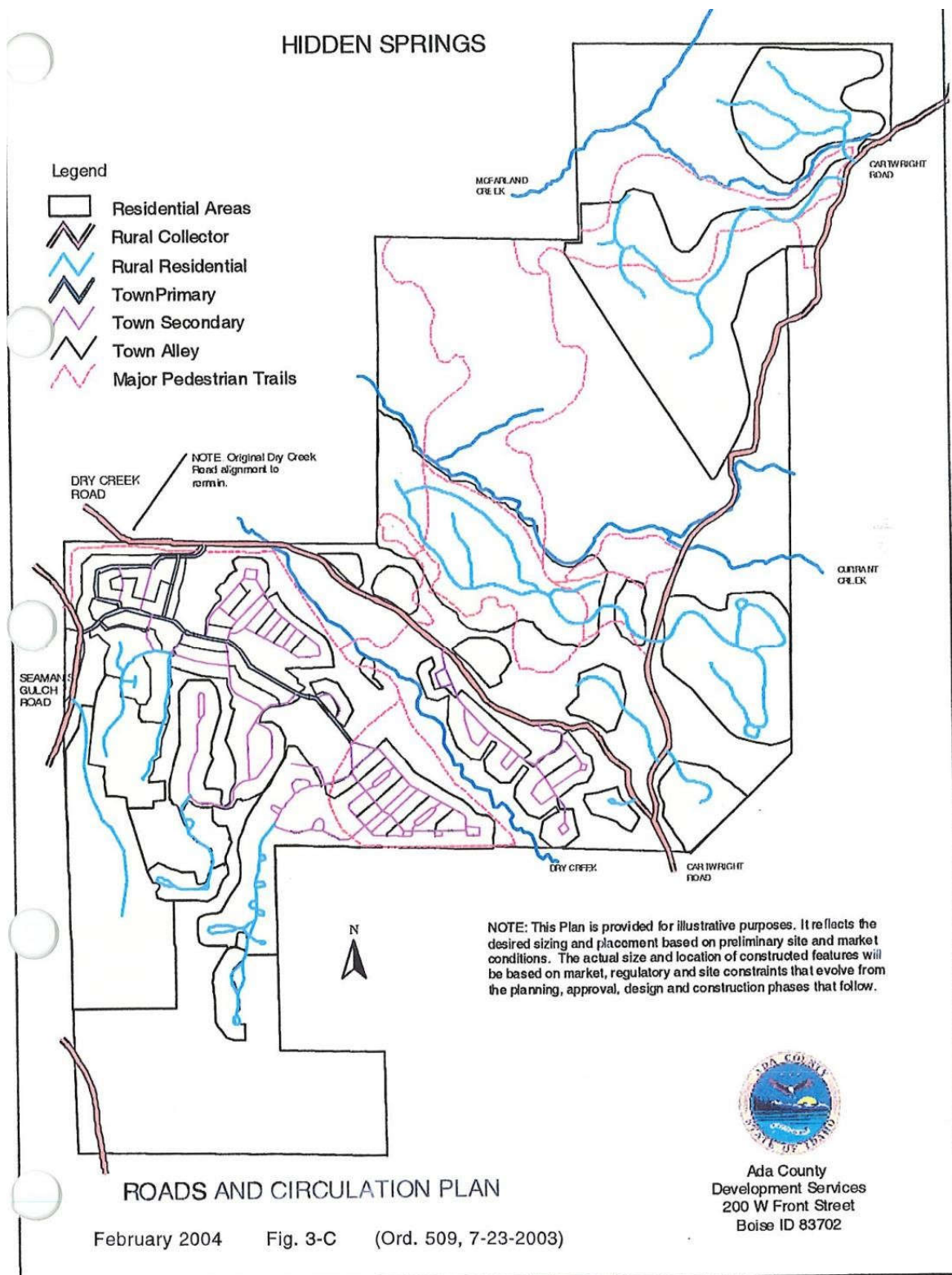


Figure 3-C

8-13D-9-24: Traffic Strategy

Hidden Springs has been carefully planned to minimize traffic impacts on surrounding roadways and concentrate off-site trips to the south and west of the community. Six (6) key elements of this strategy are:

Project Density: It is anticipated that approximately seventy five percent (75%) of the population of the Hidden Springs Community is projected to be located on the south side of Dry Creek Road. The traffic analysis of Hidden Springs concludes the highest percentage of trips into downtown Boise, Eagle and south to I-84 will occur within the existing road system to the south and west of the project: on Seaman's Gulch Road, to Hill Road, Gary Lane to Glenwood Road and State Street; and on Dry Creek Road west to Highway 55.

Location of Village Center: The Village Center with its commercial uses, schools and other community activities will capture traffic within the community and reduce the need to go outside the community for goods and services.

Trip Reduction Strategy: A trip reduction strategy is included as part of the overall Hidden Springs Traffic Strategy. This strategy is centered around the concept of travel demand management, which will result in trip reduction based on providing commercial and community support uses in the Village Center, telecommuting, recreation facilities, a park and ride lot, an extensive bicycle and pedestrian path system, and vanpooling.

Rural Road Sections: As part of the rural character of the community, rural road sections (designs) will be utilized to the greatest extent possible and based on approval of these sections by ACHD. These sections will not have curbs, gutters, or sidewalks.

Also, these roads will have a parallel path system that will accommodate bicycles and pedestrians thereby reducing vehicular trips and improving both the safety and alternate transportation options in the community.

Future Growth Scenario: Due to the topography of the area, it is anticipated that the bulk of future development within Dry Creek Valley will occur to the west of Hidden Springs. Strategic placement of Hidden Springs densities at the south, and placement of the Village Center at the west end of the community will lead this future trend and route the majority of community traffic toward transportation corridors to the population centers and services to the west.

Traffic Focus and Diversion: Hidden Springs supports traffic planning and design measures that will direct traffic to corridors with adequate capacity and future additional potential. These measures include: diversionary intersections at Hill Road and Gary Lane, Hill Road and 36th (both recently adopted by ACHD), and Cartwright Road and 36th Street (future) that will direct traffic to the south rather than along Hill Road and Harrison Boulevard; and plans for new and expanded north-south corridors on Eagle Road and on routes being evaluated in the Bench to Valley Study.

The widening of 36th Street and connection of Veteran's Memorial Parkway through to Curtis Road and the I-84 connector will result in a significant reduction in potential traffic on State Street and through parts of the North End. Also, the future connection of Gary Lane and Glenwood Road through to Cole Road and the mall area will provide another major north-south connection that will ease pressures on the North End.

These improvements will greatly increase the already good accessibility of Hidden Springs.

8-13D-9-25: Trip Reduction Strategy

Travel Demand Management Through Trip Reduction Strategy: One of the primary concerns surrounding development of the foothills is the potential traffic impact on existing neighborhoods. The Hidden Springs Specific Plan places major emphasis on the concept of Travel Demand Management. The Plan incorporates trip reduction strategies to promote trip containment and trip reduction to minimize impacts on existing transportation networks and existing neighborhoods. In addition, the Specific Plan focuses traffic away from areas such as Harrison Boulevard, where traffic capacity is currently strained. As previously noted, recent decisions by ACHD concerning new north-south connections on Curtis Road and Glenwood Street will reduce potential traffic pressures on the North End.

Hidden Springs is focused around a Village Center which contains recreational, institutional and commercial activities. These may include: general store, hardware, cafe, real estate office, daycare, grade school site, and a community center. The initial phase will contain approximately eighty to one hundred sixty-two (80-162) units and will include construction of the general store.

Other elements of the community and design will support trip reductions. Hidden Springs will incorporate the most advanced practical telecommunications technology to encourage and promote telecommuting. The site will also have a pedestrian and bicycle trail system for internal circulation and connections to the Village Center which will access the wider foothills trail system. Hidden Springs will also have a park and ride lot near the Village Center.

Bicycle security facilities will be installed at several locations in the Village Center and at the park and ride lot to provide residents complete non-automobile transportation. Upon the issuance of the three hundredth (300th), five hundredth (500th) and seven hundredth (700th) residential building permits, Hidden Springs will provide the local matching funds for the purchase of a van for project residents to use in Ada County Highway District's vanpooling program. Hidden Springs will provide a bus shelter in the Village Center for use when the regional transit district provides bus service to the area.

8-13D-9-26: Open Space and Trails Strategy

Overview: Hidden Springs includes a strategy for creating a comprehensive system of trails and paths to allow pedestrian, bicycle and equestrian access to open space and outlying foothill areas. Internally, this system will connect the residential neighborhoods with the Village Center, community open space and the greenbelt along Dry Creek. These internal trails will in turn provide external connections to regional open space and the trail system along Currant Creek, McFarland Creek, and Dry Creek. Five (5) highlights of this strategy include:

Safety: The path and trail system will generally be contiguous although not always directly parallel to the community road system. This will allow pedestrians and bicycles to circulate independently of vehicular traffic providing a greater degree of safety.

Trip Reduction: Providing alternative modes of travel is one of the primary goals of Hidden Springs. Developing trails and distinct internal connections between the open space, neighborhoods, and the Village Center, as well as access to community facilities and recreation areas for pedestrian and bicycle traffic will reduce the number of vehicular trips necessary within the project area.

Regional Connections: The Hidden Springs trail system will make a major contribution to regional public access and trail systems. Hidden Springs will implement the first phase of a greenbelt trail that runs along Dry Creek, from Bogus Basin to the city of Eagle. It will also

implement major pieces of the foothills regional trail system that provides access across the western foothills and beyond.

Wildlife Protection: Wildlife is considered an important natural resource of Hidden Springs. Therefore, protection of wildlife habitat is an important component of the trails and open space strategy. Major trails and paths within the community typically occur along the perimeter of wildlife management areas and riparian corridors. This will allow pedestrian, bicycle, and equestrian access to these areas, while also maintaining the integrity of the habitat's larger area. Intrusions or disturbance by development will be minimized.

Wildfire Prevention: Strategic alignment of the trail system around the perimeter of neighborhood and wildlife management areas will provide emergency access for homeowners and firefighters while serving as fire breaks to limit the spread or incidence of wildfire.

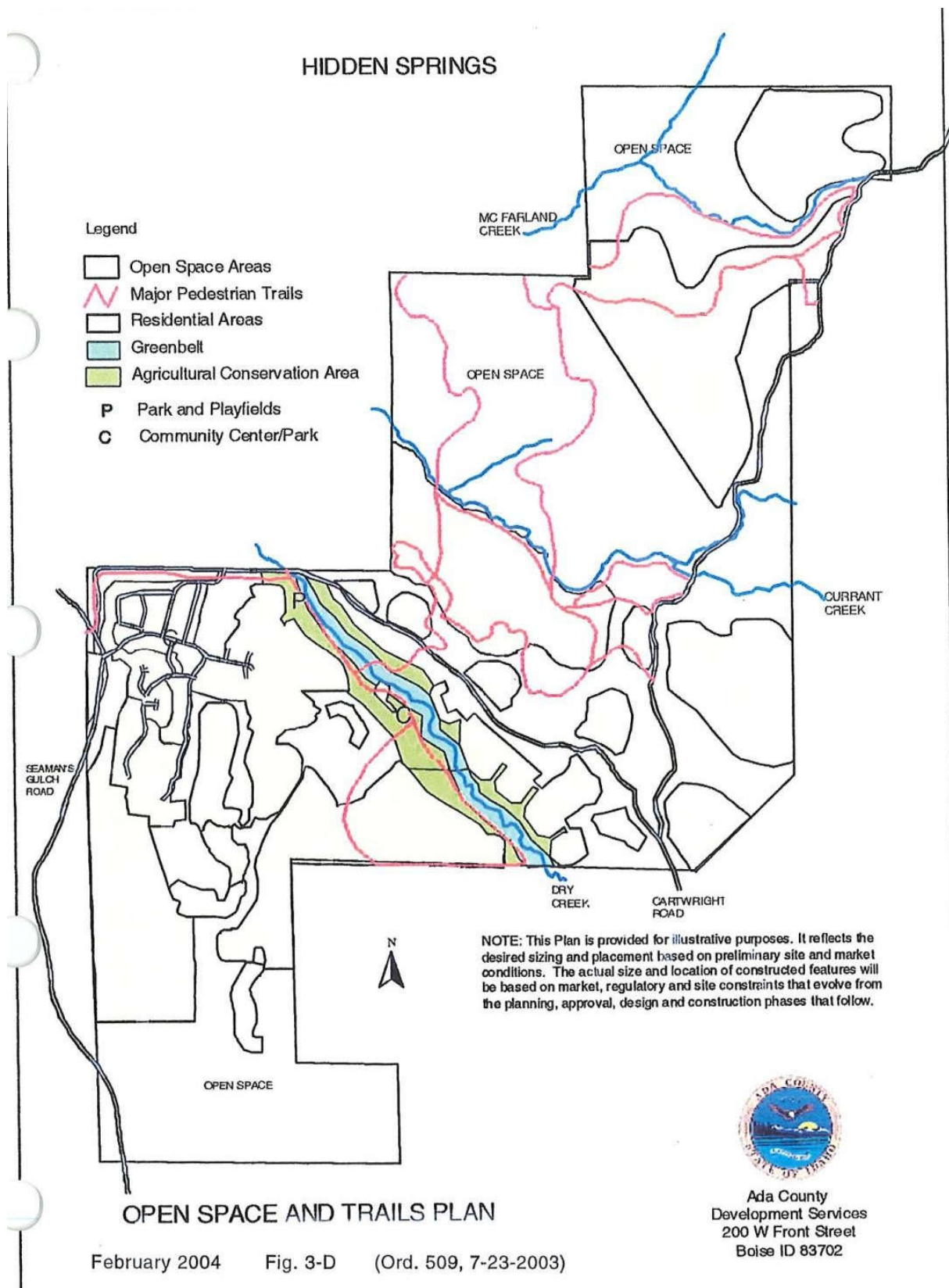


Figure 3-D

8-13D-9-27: Wildfire Prevention Strategy

Background: The Hidden Springs community has been carefully planned with a strategy for the prevention, control and rapid extinguishment of wildfires. This program is intended to address the legitimate concern about residential development in the foothill areas as it relates to public safety and wildfire prevention, while maintaining the functional and aesthetic parameters of the community. Development of a program for wildfire prevention has been an effort involving members of the planning team and local fire experts. This strategy has been reviewed with fire and resource experts since the 1996 wildfire affecting the Hidden Springs property. The consensus is that the strategy remains valid and highly desirable as an approach to dealing with fire hazards in the foothills. Seven (7) primary criteria have been identified in establishing a sound wildfire prevention program for this project:

Available Water: Two (2) aspects of water systems have been considered in the planning and development of this community. The first is the quality and quantity of water available for domestic use. The second is the type of system and quantity of water available for fire protection. The availability of water for fire protection on the Hidden Springs community will exceed the minimum storage requirement of five hundred fifty thousand (550,000) gallons. Fire flow will also exceed the minimum one thousand five hundred (1,500) gallons per minute with additional buffering for peak hour demands.

Water mains will be sized to accommodate fire hydrants at a maximum of five hundred foot (500') spacing in residential areas and about three hundred fifty foot (350') spacing near commercial and community structures. Hydrants will be strategically located near emergency access easements to the residential perimeter and wildlife management areas, as well as periodically along roadways. Booster pumps to ensure adequate pressure and backup power are also part of the design of the water distribution system.

Lots greater than two and a half (2.5) acres located north of the power lines will be served from individual wells, subject to approval by the required jurisdictional agencies. Each residential building will be required to have a fire sprinkler system meeting NFPA 13D supplied from their individual well. Fire hydrants connected to the public water system are located approximately one and one-fourth ($1\frac{1}{4}$) miles south of the ninth (9th) addition access on Cartwright Road. Fill and return time for a firetruck would be ten (10) minutes or less.

Proximity Of Fire Services: Fire service will be provided by the North Ada fire and rescue district. The bureau of land management also has responsibilities for fire protection in the foothills because of extensive public lands in the area. A fire station site will be provided in the village center in the first phase of the project. When the district constructs a station on the site, volunteers from Hidden Springs may be asked to supplement the staff at the new station. The new facility is envisioned by the district to house a pumper, tanker, and grassfire equipment (that have adequate capacity to serve Hidden Springs, the Dry Creek Valley, and adjacent areas) at its completion.

Emergency Vehicle Access: Primary roads within the community will be designed to provide access for emergency vehicles. Provisions will be made for access by firefighting equipment and personnel from two (2) directions into each residential neighborhood. All roads will have a maximum gradient of ten percent (10%). Spurs that serve those areas occurring off the primary roads will terminate in cul-de-sacs, with adequate turnarounds for emergency vehicles. All roads will be maintained by Ada County highway district to its standards. Emergency access easements

to residential perimeters and major open space areas will be provided at strategic locations, including ends of cul-de-sacs and between adjoining lots.

Site Planning: Careful site planning for fire protection at the perimeter of the residential neighborhoods as well as local protection for individual homesites is a critical function of the wildfire prevention program for Hidden Springs. As such, a comprehensive system of roads, trails, riparian greenways, and open preserves is an integral part of each neighborhood. This system provides strategic emergency access points and firebreaks at the neighborhood perimeters that allow firefighters to confine a fire to a small area. To reduce local exposure to hillside areas, the residential lots in each neighborhood will be low density, with a limited building envelope on the most level portion of the site. Also, setbacks will be required between all structures and adjacent slopes.

Noncombustible Construction Materials: Architectural design guidelines for the Hidden Springs project will require that noncombustible materials such as tile/slate, asphalt composition shingles, and standing seam metal be utilized for roofing materials. These guidelines will also require any highly combustible material used for exterior siding, paneling, fencing and other wood structures to be factory treated with an industry rated fire-retardant chemical.

Landscaping And Fuel Modification: The landscape planting guidelines for Hidden Springs will include provisions for wildfire prevention in conjunction with site planning, aesthetics, water requirements, native plants, and ongoing maintenance programs. The goal of these guideline provisions will be twofold. First, to implement a comprehensive landscape design that will reduce fuel volume in the common and perimeter areas, and second, to provide individual homesites with a framework for fuel modification. The guideline criteria for the fuel modification in the common areas and residential neighborhoods of Hidden Springs are: planting fire resistant plant materials; establishing irrigated landscape envelopes within each homesite; developing vegetation buffers that provide transition to adjacent native vegetation and establishing criteria for clearance between buildings and plantings within each site.

Following the wildfire on a portion of the Hidden Springs property in the summer of 1996, a revegetation effort is getting underway. In consultation with wildfire and vegetation experts, a mix of fire-resistant grasses and plants will be planted in several stages over the coming months.

Maintenance and Management: Ongoing maintenance, management and enforcement of the wildfire prevention program will be the responsibility of the community association and governed by the covenants, codes, and restrictions for the Hidden Springs community. The design guidelines for the project will be administered by a design review committee for site planning, architectural and landscape design compliance with the wildfire prevention program. Additionally, public information and education programs about wildfire prevention will be developed in cooperation with the North Ada fire and rescue district and the bureau of land management.

8-13D-9-28: Wildlife Strategy

Wildlife Preservation and Enhancement Techniques: The Hidden Springs project will take an active approach to optimizing the site's ability to support a wide diversity of wildlife species. The master land use plan includes the following wildlife management and enhancement techniques:

1. Designation of a major wildlife area and winter range area both north of Currant Creek, south of the power line and west of Cartwright Road as well as east of Cartwright Road and north of the power line. Hidden Springs will work with the Bureau of Land

Management (BLM) and the Idaho Department of Fish and Game (IDFG) to enhance vegetation in this area including supplemental seeding and seedling planting of sage and bitterbrush. Hidden Springs will allow IDFG to post peak seasonal closure signs surrounding this winter range area. This includes posting peak seasonal closure signs at the trailheads to this area.

2. Designation of multiple portions of the site as permanent open space including:
 - The agricultural area in the valley floor.
 - The Dry Creek riparian corridor.
 - Most of the south facing slopes north of Dry Creek.
 - The Currant Creek riparian corridor.
 - The McFarland Creek riparian corridor and surrounding valley floor.
3. Designation of several trail/migration corridors including:
 - The Dry Creek regional greenbelt and migration corridor.
 - The Currant Creek regional trail and migration corridor.
 - The McFarland Creek trail and migration corridor.
 - A series of local intracommunity trails including a loop trail around development to the southwest, a trail connecting Currant Creek to Dry Creek and a trail connecting the power line to Currant Creek.
 - Working closely with neighboring landowners, as the Grossman family has been, to encourage them to extend these trails and corridors through their properties to the federal lands beyond.
4. Location of low-density farm/ranch and rural lots as buffers near those areas of the site which accommodate greater intensities of wildlife species.
5. Designation of building envelopes on all large, rural and farm/ranch lots to minimize the disruption of wildlife habitat in the form of native groundcover vegetation and existing soil and drainage patterns.
6. Restricting fencing in rear lot buffer areas which abut major wildlife migration corridors and the preserved winter range area.

In addition, the project's design guidelines (Section 8-13D-6 of this Article) will:

1. Encourage the clustering of buildings and related landscape to maximize contiguous open space.
2. Limit fencing across critical migration corridors to a maximum height and minimum kick space as recommended by Idaho fish and game. If barbed wire fencing is used, the bottom wire shall be smooth.
3. Require all new landscape material on lots outside building envelopes to be drought tolerant, native and from a list of less palatable or nonpalatable plant species.
4. Encourage replanting of wildlife food species and plant species which enhance critical habitat.
5. Prohibit the installation and require the complete removal of noxious plants and weeds within the designated development envelope by the builder or homeowner.

6. Require builders to employ “best practices” grading techniques including incremental phasing/reparation, dust controls, grading, limit fencing, etc.
7. Limit modifications to natural drainageways to those which are absolutely necessary or those which increase the effectiveness of the drainageway in carrying stormwater and accommodating wildlife.
8. Prohibit exposed dumping and composting (covered composting is permitted).
9. Require residential trash to be kept inside the house, garage or appropriate enclosure until the morning of trash collection. Encourage trash containers to have attached lids.
10. Require dogs and cats to be in latchable carriers or on leashes when outside the residential or commercial lots during critical migration periods as determined by Idaho fish and game.
11. Prohibit contractors from bringing dogs to construction sites.
12. Limit motorized vehicles from roads and trails (4-wheel drive vehicles, snowmobiles and motorcycles) except for construction, fire, emergency and maintenance vehicles.
13. Include wildlife educational materials and an acknowledgment of wildlife presence and the potential for property damage in the project’s homeowners’ documents.
14. Post big game crossing signs at major crossing points along Cartwright Road and Dry Creek Road (maximum 4 signs). Where wildlife and development conflicts continue to occur despite these measures, Hidden Springs will work with local, state and federal agencies in an attempt to resolve these conflicts.

8-13D-9-29: Water Supply

A water infrastructure extension agreement to provide Hidden Springs potable water is in place between United Water Idaho, Inc. (United Water), and Hidden Springs. Water transmission, storage and the first phase of the water distribution facilities have been built, tested and are available for service.

Lots greater than two and a half (2.5) acres located north of the power lines will be served from individual wells, subject to approval by the required jurisdictional agencies.

Water Supply Requirements – South of Power Lines: The average demand is estimated at approximately 0.275 million gallons per day (mgd) or about two hundred (200) gallons per minute (gpm). This demand is equivalent to a withdrawal of three hundred (300) acre- feet. Approximately forty (40) to forty five percent (45%) (135 acre- feet) of this annual usage will be consumptively used by irrigation, with the remainder returning to the aquifer as recharge from the subsurface wastewater treatment system. The peak day demand is estimated at 1.4 mgd, or approximately one thousand (1,000) gpm.

Sources: Existing system extension. An agreement has been reached with United Water Company to supply water to the project from this source, a booster pump station would be built at the storage reservoir, and a water main extended to the project area. A second storage reservoir on the north side of the summit between Seaman’s Gulch and Dry Creek provides gravity service to the water system described in the following section.

Water Supply Requirements – North of Power Lines: The average demand for an individual

home varies with occupancy. Estimates are based on the number of bedrooms within the home.

Sources: Individual wells on each lot will be the source of water for domestic and irrigation uses.

One Hundred Twenty Acre Annexation Area: United Water has agreed that the annexation area is serviceable as approved by the Idaho public utilities Commission. United Water will supply water to Hidden Springs from United Water's existing source supply through the new transmission facilities. The annexation area has been reduced to ninety-seven (97) acres due to the transfer of twenty-three (23) acres to the Cartwright Ranch planned community in 2007.

Conclusion: It is anticipated that the development of Hidden Springs will not negatively impact groundwater supply in the vicinity.

8-13D-9-30: Water System

Introduction: As discussed in Section 8-13D-29 of this Article, the primary water supply for the Hidden Springs project has been developed as an extension of United Water Company service lines. Lots greater than two and a half (2.5) acres located north of the power lines will be served by individual wells, subject to approval by the required jurisdictional agencies.

United Water Service General Description: The primary water system has been designed in accordance with the Idaho regulations for public drinking water systems, Title I, Chapter 8 Section 1-8200.1, as required by the Idaho Code 39-118 or 50-1326 and the fire code as adopted by the state of Idaho. The system will supply water as the primary agent for fire extinguishment.

United Water Service Demand Analysis: A plan has been prepared for the transmission and storage facilities as well as to guide the design of the distribution facilities for each phase of the planned community. The estimated maximum daily total consumption for all phases is one thousand seven hundred fifty (1,750) gallons per minute, which includes fire demand and a system leakage allowance. The peak demand for any, one-hour period, for all phases is three thousand three hundred fifty (3,350) gallons per minute. The transmission and storage facilities have been designed to accommodate expansion of the system beyond Hidden Springs' original entitlement and can accommodate one hundred twenty (120) additional dwelling units.

United Water Service Storage: Storage for domestic consumption and fire flow demand will be provided from the existing Hidden Springs reservoir. These three hundred fifty thousand (350,000) gallons tank is built, tested, and in service. A second reservoir may be constructed if required to maintain system pressure in development areas north of Dry Creek at relatively high elevations.

United Water Service Zones: Hidden Springs encompasses domestic services that will range over approximately nine hundred (900) vertical feet elevation. This range of elevation will require several service zones. The IRPDWS require a minimum design pressure of thirty-five (35) pounds per square inch (psi) and a maximum pressure of one hundred (100) psi. These pressure criteria will be achieved through the use of eight (8) service zones, with average daily pressures ranging from forty (40) psi at the top of each zone to ninety (90) psi at the bottom of each zone.

Booster pumps located at zone boundaries will supply domestic demands to the higher zones and fill the storage tanks as required north of Dry Creek. Once the tanks are filled, the boosters will be cycled off and supply will come from the tanks down through pressure reducing stations into the lower zones.

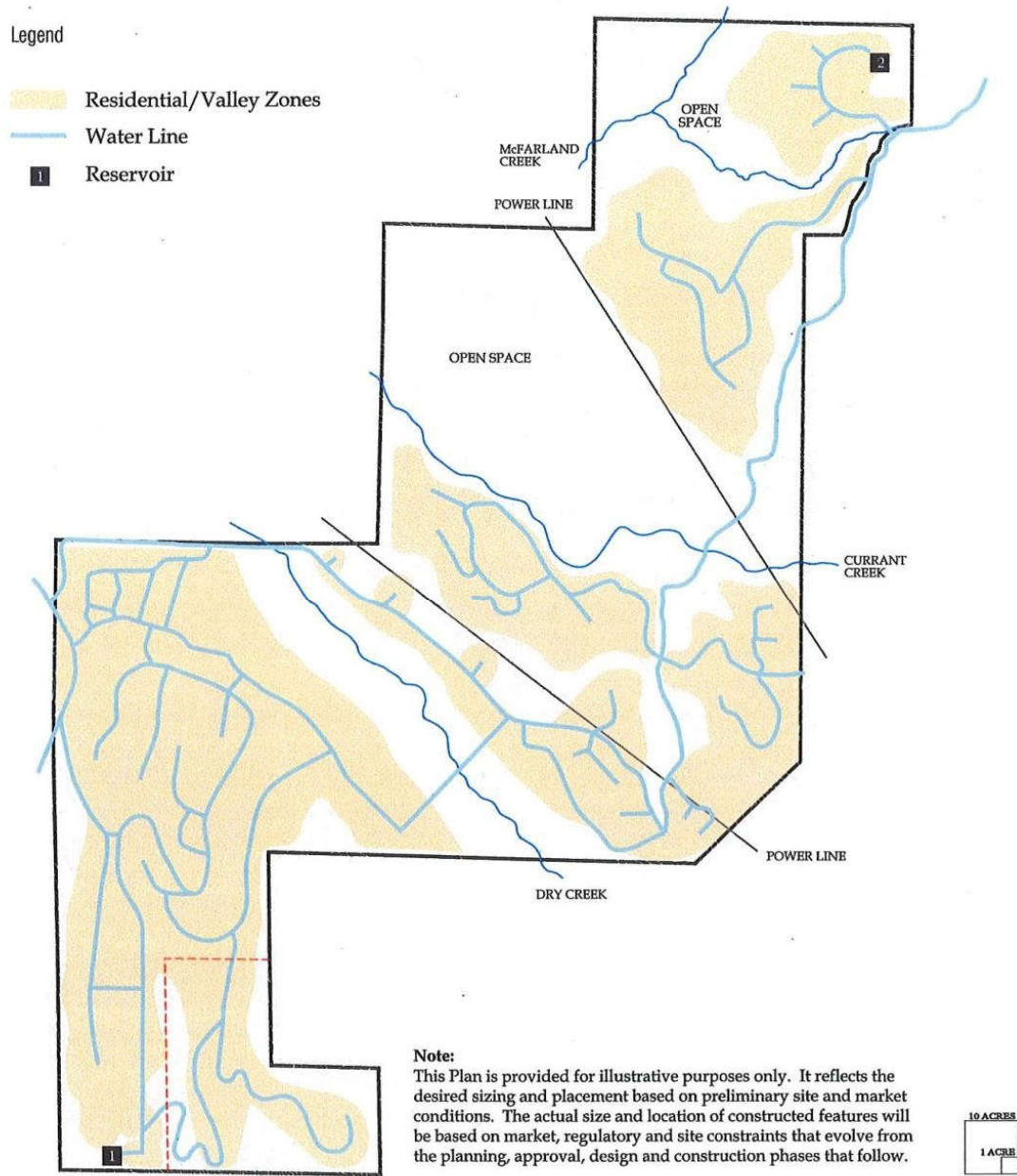
United Water Service Distribution Mains: Water mains are required to connect supply, storage and domestic service zones. The IRPDWS require that hydrants be connected to mains six inches

(6") and larger in diameter. Other mains will be larger as required for adequate fire flows. The fire code requires that hydrants be spaced at intervals not to exceed five hundred feet (500') for residential fire demands. Hydrant spacing can vary somewhat to accommodate intersections and larger lots. Hydrant spacing near commercial and community structures will be decreased to about three hundred fifty feet (350') or as local conditions require.

United Water Service Meters: This system includes meters for all users. The meter installation includes an automatic readout device located near the meter or at a convenient location nearby. These meters, data storage devices and database software together with a rate structure that promotes conservation are the heart and soul of the water system management structure.

United Water Service to Units: Hidden Springs is committed to providing service to all residential units in the community. The water distribution plan map shows the conceptual layout of the water distribution system and is not intended to document a complete layout of the entire community system. During design and plotting of individual phases, specific design and location for all service lines will be finalized and documented in the appropriate documents.

Individual Wells: The large lots located north of the power lines will have individual, on site wells that will provide domestic water and fire sprinkler water to meet NFPA 13D requirements.



April 1999

(Ord. 377, 7-28-1999)

Fig. 3-E

Figure 3-E

8-13D-9-31: Water Quality Management

Water quality protection is a central strategic aspect of Hidden Springs. Certainly, the local and state environmental regulations will not tolerate any foreseeable pollution to either ground water or surface water. More important, the prospective market for land ownership in the proposed development will not tolerate pollution or even the potential for pollution of surface water and ground water. Water quality management is reflected throughout this application in the land uses, in the infrastructure and in the way the owner's association operates. The following is a brief summary of the various water quality management practices incorporated throughout this application:

Water Conservation: The most effective way to manage water quality is to conserve water. Hidden Springs policies include conservation of ground water used for domestic supply and for irrigation. These conservation measures are intended to minimize the amount of natural ground water brought into the consumption or usage cycle, leaving the most water at the source and the ground water untouched. Conservation will take several general forms. Water will be conserved by limiting the area and type of irrigation allowed throughout the development. Domestic supply will be limited by promoting or requiring the use of water-saving showers and fixtures within each individual house or commercial unit. Lastly, all sources of use throughout the proposed development will be metered and a monitoring system established to track the use and abuse of water supply throughout the development. Other specific water conservation strategies will be applied where appropriate and are discussed in the following section.

Road And Drainage Design: Roads have been laid out throughout Hidden Springs in a manner that takes advantage of local terrain and soil conditions. The roadway concepts in this application include rural road section with large grass swales and various runoff features on-site which are used to collect, treat, and dispose of excess drainage. Runoff from the site will not exceed predevelopment levels. Runoff from hard surfaces on lots is intended to be retained on the lot site in grassed areas or swales provided in or adjacent to the building envelope. On larger rural lots, individual drainage retention and disposal features may take other forms. Generally, all lots will be graded with retention swales strategically located on each lot.

Land Use Configuration: The absolute foundation for rational development including water quality management is to utilize the natural soils and geologic features on-site to their optimum. This type of planning is the basis of the configuration presented in this application. Water quality management becomes a subconscious element of the layout process.

Wastewater Treatment System: The wastewater treatment system constructed for Hidden Springs is a sophisticated aerated lagoon biological treatment system. For some individual lots greater than two and one-half (2.5) acres, individual septic tanks and drain fields may be used. All collection, treatment, and disposal features have been planned, designed, and constructed in accordance with current regulatory guidelines and mandates. These guidelines and mandates have been established to protect ground water quality. The good soils and geologic conditions anticipated on this proposed site offer an excellent opportunity to implement these wastewater treatment facilities without any impact on ground water.

Implementation Strategy: Hidden Springs will demonstrate the technical feasibility of successful water quality management. If the technical feasibility is to become reality, certain implementation milestones should be scheduled. In preliminary design the following milestones are important:

It is anticipated that the development of Hidden Springs will not negatively impact surface and ground water quality in the vicinity.

During construction an environmental field coordinator should be on site. That person's responsibility should include observations to assure that construction activities and constructed facilities are in conformance with the intent and recommendations of the water quality management concept introduced in this application.

After construction a suitable monitoring and management structure must be in place. It must have the authority and ongoing resources to administer the water, wastewater treatment, and drainage facilities.

Qualified professional management entities will be retained to supervise operations, maintenance and monitoring of the water system and wastewater treatment system.

8-13D-9-32: Water Conservation

Water conservation is an important component of Hidden Springs' goals; and as such a comprehensive water management program will be established for the project. The goal of the water conservation plan is very simply to reduce the amount of water diverted, used, and consumed in the proposed development.

The water conservation plan is presented below. Detailed implementation measures will be developed and available for review as part of the planning process on a phase- by-phase basis. The measures will adopt water conservation measures for both exterior and interior uses.

The water conservation plan is as follows:

- Building/landscape envelopes on all residential lots larger than ten thousand (10,000) square feet.
- Use of drought tolerant grasses and shrubs.
- Efficient irrigation equipment, scheduling, and management.
- Soil amendment in landscape areas.
- Mulch cover in landscape areas.

The interior water conservation plan will include covenants or architectural standards that seek to implement interior water conservation. The plan will consider the following conservation measures:

- High efficiency (low flow) showerheads, toilets, and faucets.
- Water meters and a water usage database that facilitate real time analysis.
- Timed controller for specific uses such as lawns.

Based on experience and current literature, it is reasonable to expect that water usage can be significantly reduced below what is "normal" for the area. The planning target for conservation is ten (10) to fifteen percent (15%) reduction from these "normal" predicted demands.

8-13D-9-33: Sewer System

General Description: Hidden Springs plans for a wide range of land uses and densities. The land uses in this specific plan are tailored, in part, to the ability of the soils and geology to support those uses. Land with soils and/or geology that cannot reasonably support development are left open and undeveloped. Land with soils, geologic and/or topographic limitations that can support only

limited or low-density development are set aside for the larger rural lots. The more intense land uses are reserved to those areas where solid geology and topography are well suited to those land uses.

Planning for sewage collection, treatment and reuse requires attention to several goals.

- Use a method of collection that is well suited to the largely rural nature of the project.
- Use a method of treatment and disposal that is suited to the soils, geology, and hydrogeology of the area.
- Use the treated wastewater in a manner that is consistent with the goal of protecting groundwater quality.
- Do not discharge treated wastewater to surface water.
- Use a system that does not depend on treatment and disposal through existing systems in Boise and Eagle.
- Use a system that lends itself to professional management of operations and maintenance.

Lots greater than two and a half (2.5) acres located north of the power lines will be served through individual systems with the same general processes described above.

A sewer collection network, central sewage lift station, wastewater treatment plant and treated wastewater distribution pipeline system has been built, tested and is available for service. The design, construction and operation of the system are regulated by the Idaho Department of Health and Welfare-Division of Environmental Quality (IDHW- DEQ).

Individual Systems: The portion of Hidden Springs north of the power lines is single- family homes on rural and farm/ranch lots. Generally, and in this case, individual wastewater treatment systems are both practical and well-suited methods to manage domestic wastewater. In the current proposed layout, the rural and farm/ranch lots have been sited on soils that do provide good conditions for a limited number of individual septic tanks and drain fields. The areas for individual septic tanks and drain fields will undergo three (3) levels of review before they are ultimately permitted; those levels of review are:

- Planning,
- Preliminary, and
- Permitting.

The planning level of review is that which can be expected as a result of this application. Information presented in the predevelopment conditions section in this application provides a good description of the expected soils, geology, and groundwater conditions on the site. As mentioned, these findings have guided the siting of various uses. They also provide information suitable to establish general technical feasibility wastewater treatment systems and pressurized, subsurface dosing systems in the areas identified for their usage. More specific information will be required in subsequent review levels.

After this application is submitted and approved, the applicant will then proceed with preliminary design and final design for each successive phase. The initial phase preliminary design will include additional study for the area included in these phases. Typically, the preliminary study will include the following tasks:

- Coordinate with the Central District Health (CDH) and the Department of Environmental Quality (DEQ) to confirm the specific scope of study for both individual and community

and surface disposal systems.

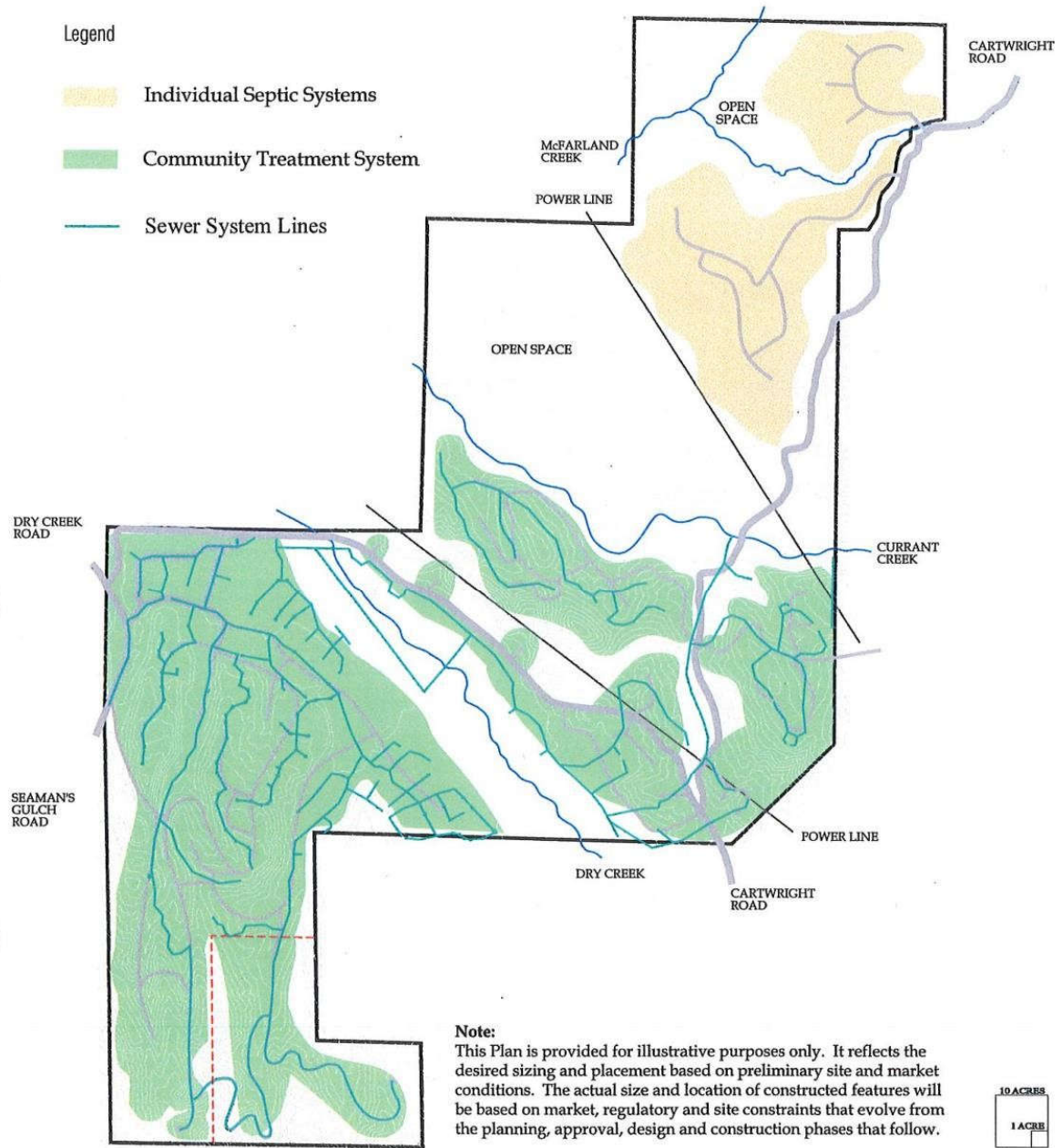
- Open soil observation pits and prepare soils logs and strategically position groundwater observation and groundwater monitoring holes.
- Evaluate soils, topography, and geology.
- Develop design, sizing, and location recommendations for all systems.
- Provide findings to CDH for approval.

Community System: In the areas where lots are generally smaller than two and one-half (2.5) acres, a wastewater treatment system is used.

The sewer collection network is a conventional gravity flow network of pipelines that flows to a central sewage lift station. The sewage lift station pumps the sewage to the wastewater treatment plant. The wastewater treatment plant is an aerated lagoon biological treatment system with a treated wastewater storage impoundment. The biologically treated wastewater is stored through the nongrowing season until it can be beneficially used for irrigation during the growing season. The biologically treated wastewater will be pumped from the storage impoundment through a filtration and disinfection system. The filtered and disinfected water will supply an irrigation distribution pipeline network for common area landscape and agricultural irrigation. The final treated wastewater will be applied at agronomic rates for beneficial use to maximize the reuse of the water as a resource and protect groundwater quality. The wastewater collection and treatment system are depicted on the sewer system plan.

System Diagram: The sewer system plan map, shows the conceptual layout of the community sewer system.

The figure also shows the general area to be served with sewer as defined by the estimated development envelopes. Therefore, the limits of areas served by sewer may not be precisely concurrent with development areas shown in the master land use plan map, which depicts the conceptual lot boundaries.



Sewer System Plan

April 1999

(Ord. 377, 7-28-1999)

Fig. 3-F



Figure 3-F

8-13D-9-34: Storm Drainage System

General Description: The natural drainage flows are altered by development of an area in three (3) basic ways. First, drainage patterns are redirected and concentrated by grading and the construction of roads. Second, flows are increased by the installation of more impervious surfaces than previously existed. Finally, the quality of the water is impacted by the runoff from pavement surfaces and fertilized landscaped areas. The storm drainage system proposed for Hidden Springs will safely transport concentrated flows to management facilities strategically located to filter nutrients and attenuate increased flows.

The diagrammatic drainage plan depicts internal drainage shed boundaries and possible locations of major management features.

Design Criteria: The design of drainage facilities associated with the Ada County road system falls under the jurisdiction of the Ada County Highway District. The design of the drainage facilities for Hidden Springs is depicted in the proposed road section designs.

Conveyance Systems: Redirection and concentration of drainage flows will primarily be a result of construction of the road network serving the project. A combination of rural and urban road sections are proposed, depending on the development intensity of a particular area. In rural section areas, grassed roadside swales will be the primary conveyance with culverts crossing at low points and other critical locations. Curb and gutter will convey drainage to a more formal storm sewer system of inlets and culverts in areas where urban road sections are proposed. In each case, the conveyance systems will be designed to deliver the storm water runoff to the management facilities while minimizing erosion.

Management Facilities: The storm water management facilities will be the primary drainage feature for mitigating the increased flows generated from Hidden Springs. These features will range from level swales graded parallel to the contour where flows are small to detention areas where higher densities will create larger flows. Other examples of these facilities include seepage trenches, dry wells, and ponds. A number of site-specific factors will affect the type of facility chosen. Less dense development, as in the northeast portion of the development, will generate lower flows requiring smaller structures in local applications. More dense development areas will include regional facilities for management due to higher anticipated flows and site availability. Soils and slope conditions, proximity to existing drainageways and size of the drainage area will also dictate the selection of facility.

These management facilities will serve a second purpose of water quality management, which is discussed below.

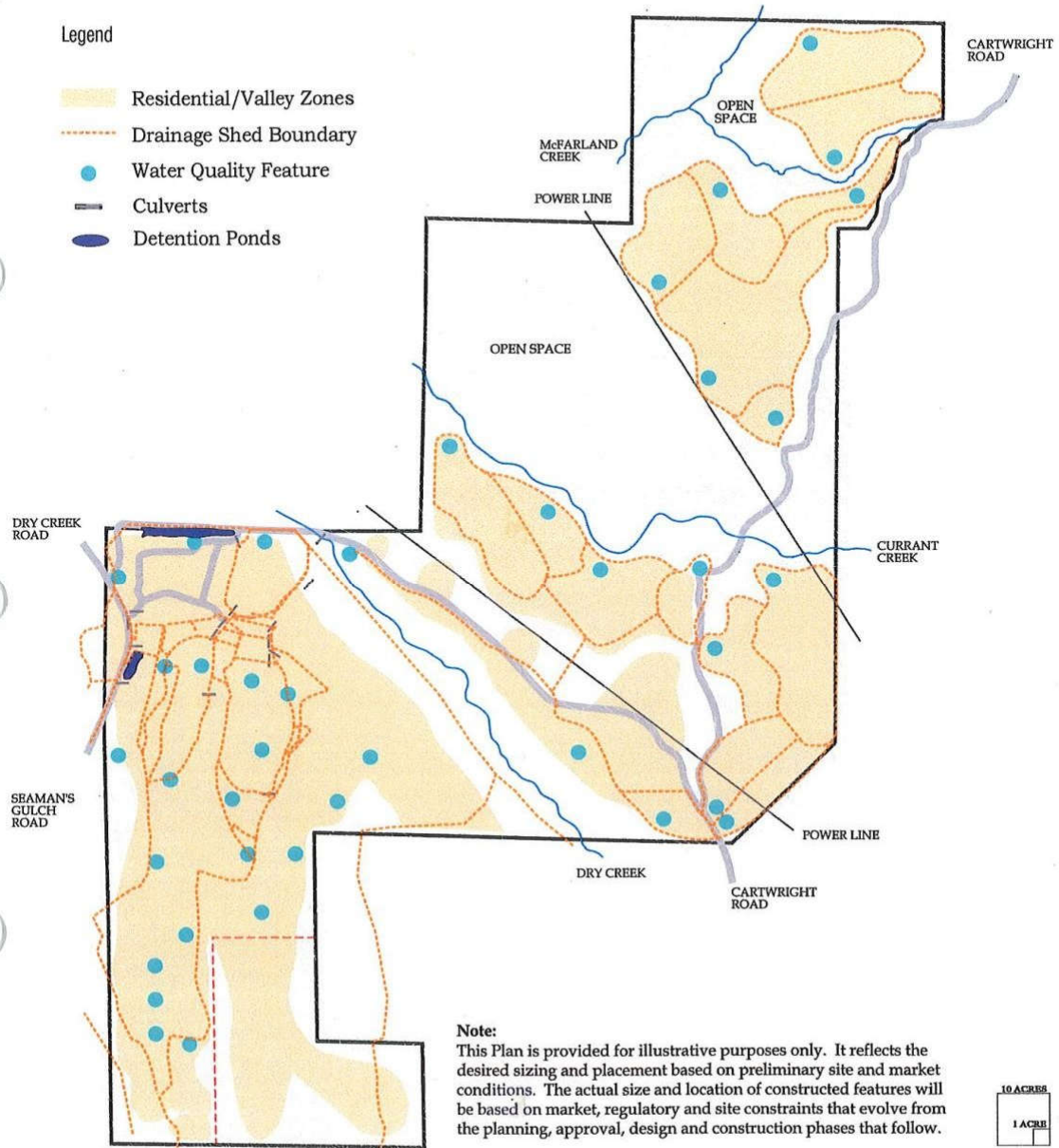
Water Quality Management: The quality of storm water runoff has become one of the most sensitive issues associated with land development. Residual materials from pavement surfaces, excess nutrients from fertilized landscaped areas and sediments carried with higher velocity flows contribute to the degradation of surface water quality. A number of strategies will be employed at Hidden Springs to minimize that degradation and to treat the water prior to discharge to the natural drainageways.

Other sections of this application address management of landscaping. Relatively narrow road sections are being proposed to minimize pavement areas while still providing safe travel ways. Rural road sections are being emphasized to allow the treatment of runoff as close to the source as possible, specifically in roadside grassed swales.

As previously discussed, all surface water runoff will be directed to management facilities for the control of runoff quantities. Hydrologic studies and management facilities will be updated and/or expanded as land use changes occur. Detaining runoff in these facilities will also allow suspended sediments and nutrients to settle. Between the source and these management facilities, erosion and sediment control techniques will be utilized to "pretreat" the runoff. Vegetated roadside and culvert discharge swales will provide nutrient uptake. Small check dams will slow channel flow velocities. Riprapped aprons will slow velocities and disperse concentrated flows from storm drainage systems. The emphasis will be on keeping the concentration of flows to a minimum and dispersing those concentrated flows in vegetated swales at every opportunity. Not only does this promote nutrient uptake but it also promotes infiltration and ground water recharge.

Surface water quality will be addressed both during and after construction of development improvements. In addition to the methods previously discussed, temporary features employed during construction will include silt fences, strawbale barriers, siltation basins, sediment traps and other proven and appropriate best management practices. The temporary mitigation program will focus on limiting the area of disturbance and treating the surface water as close to the source as possible.

HIDDEN SPRINGS



Drainage Plan

April 1999

(Ord. 377, 7-28-1999)

Fig. 3-G



Figure 3-G

8-13D-9-35: Sheriff, Fire and Emergency Medical Services

Sheriff: Police protection will be provided to the residents of Hidden Springs through the Ada County Sheriff's Office. All services and operations of the office will be coordinated through the main office at the city/county law enforcement building. It is anticipated that services for Hidden Springs will be through an agreement that is similar to the contract with the city of Eagle. The office will be encouraged to provide a sheriff station outpost at the fire station described below.

Fire Services: Fire services will be provided by north Ada fire and rescue district. The district will operate out of the fire station presently under construction in the village center.

Emergency Medical Services: Emergency medical services will be provided by aid units from Ada County. The closest station to Hidden Springs is at the headquarters station, adjacent to the north Ada fire and rescue district headquarters. This facility will adequately serve the community without the need for additional facilities.

8-13D-9-36: Landscape Strategy

The landscape of Hidden Springs is intended to knit the natural and cultural themes of the community together through careful layout, planning and design. The goal of the landscape strategy will be to establish an impression of Hidden Springs that is both visually appealing and cohesive as well as being a successful living environment. This will project a positive and active character for the community that emphasizes its opportunities, its facilities, and the vitality of its residents.

Objectives: Five key objectives that provide a framework for implementing the functional, aesthetic, and technical parameters of the landscape are as follows:

- Develop a rural theme that builds upon the character, location, traditions, history, and self-sufficiency of Hidden Springs. Utilize traditional landscape elements such as hedgerows, windrows, orchards, groves, grasslands, and cultivated land as functioning components within the community. This will reinforce the theme while providing the foundation for phased implementation or sequencing of the project.
- Create an environment that is harmonious with the regional climatic conditions. This will be achieved through careful selection of plant materials that express the desired aesthetic qualities while meeting the maintenance and durability requirements of the project. A general list of plants that meet these criteria is included in Section 8-13D-52 of this Article.
- Exercise prudent use of water resources by implementing water conservation measures in the landscape. This will include implementing the principles of xeriscaping; setting limits on landscaped and irrigated areas within common areas and residential lots; and utilizing high- efficiency, low-volume irrigation systems.
- Establish a clear and logical orientation to the neighborhoods, and open space areas within Hidden Springs. Providing a sense of entry, a sense of place and a sense of community by understanding the needs in each zone is a critical landscape planning and design factor. These areas can be characterized as outlined below.

Entries: At Seaman's Gulch and Dry Creek Roads to the west and Dry Creek Road to the east, entries to the community will be characterized by open, country roads lined with native grasses punctuated by select plantings of deciduous tree groves that will reinforce these as community gateways.

Riparian Areas: The Dry Creek, Currant Creek and McFarland Creek corridors will be characterized by naturalistic placement of trees and shrubs that will enhance and replicate the existing riparian environment while providing wildlife habitat.

Agricultural Areas: Within the Dry Creek Valley and Seaman's Gulch Road area cultivated croplands with orchards, windrows and hedgerows will be reestablished.

Rural Residential Neighborhoods: Irrigated landscape envelopes will contrast with enhanced native shrubs and grasses outside those envelopes.

Preserves: Open grasslands with scattered native scrub and tree cover. These areas will remain in their natural state and will be selectively enhanced as appropriate to the land and wildlife management parameters of the project.

Town: Traditional street trees in planting strips and medians with front and rear yard domestic gardens in the residential and commercial lots.

- Provide for ongoing maintenance and management of the common area landscape through the homeowners' association, CC and R's, and coordination with ACHD for road and right of way maintenance.
- A list of approved species will be developed specific to the Hidden Springs site that reflects water conservation and wildfire strategies and will be a component of the design guidelines.

8-13D-9-37: Essential Public Services and Anticipated Financing Plan Introduction:

The Planned Community District regulations anticipate that a planned community will be developed in phases over time. (See Section 8-13D-22 of this Article.) The regulations require that each phase of development include sufficient essential public services to serve the anticipated population of that phase and to provide for integration of such services into the planned community. This Section describes the phasing of improvements, estimated costs of the essential public services of each phase and the alternative methods of financing the costs of installing and maintaining these essential public services as well as mitigating material negative economic impacts of the community.

As described in the Phasing Plan, the first phase of development will feature a mix of unit types within the areas south of Dry Creek. Subsequent development will occur in the balance of the project south and north of Dry Creek.

The first phase of development has been identified and will include a total of eighty to one hundred sixty-two (80–162) residential units. It is anticipated that this phase would include a mixture of the following lot types: farm/ranch lots, rural lots, large lots, regular lots, village homes, and town homes.

Sufficient infrastructure, including essential public services, will be developed initially to support this phase of development. Subsequent development will occur together with the necessary infrastructure, at a pace and within site areas in response to market conditions and the need to have an integrated community at the completion of each phase. For purposes of this Section, the financing plan is considered for the first phase and the combination of all subsequent phases.

The remainder of this Section considers each of the essential public services.

Roads And Streets: The proposed roads and circulation plan includes several categories of improvements:

- Project Improvements: Representing the rural collector roads which provide the primary access and circulation within the project.
- Residential Site Improvements: Which provide the secondary roads within the individual project areas.

The street improvements associated with the first phase will include:

- Project Improvements: The realignment, widening, and paving of Dry Creek Road, and Seaman's Gulch Road as realigned within the site area. However, the existing alignment of Dry Creek Road will remain in its present condition and location.
- Residential Site Improvements: The construction of rural residential local and secondary roads as necessary to serve first phase developments.

Anticipated Costs

The projected costs of these improvements are estimated to be:

	Phase I	Later Phases	Total
Project cost	\$ 336,400.00	\$ 900,000.00	\$1,236,400.00
Residential sites	<u>1,051,000.00</u>	<u>7,947,860.00</u>	<u>8,998,860.00</u>
Total	\$1,387,400.00	\$8,847,860.00	\$10,235,260.00

The project and residential site improvements will be dedicated to ACHD. Impact fees assessed on the project are estimated to be \$3,737,901.00 as follows:

Development <u>Type</u>	Units	Assumed Category	Impact Fees/Unit		Total Fee
			Regular	Extraordinary	
Farm/ranch lot	30	Single-family>1,500 sf	\$1,039.00	\$2,589.00	\$108,840.00
Rural	20	Single-family>1,500 sf	1,039.00	2,589.00	72,560.00
Large lot	205	Single-family>1,500 sf	1,039.00	2,589.00	743,740.00
Regular lot	483	Single-family>1,500 sf	1,039.00	2,589.00	1,752,324.00

Village home	162	Single-family>1,500 sf	802.00	2,589.00	549,342.00
Town home	135	Multi-family	734.00	2,589.00	448,605.00
Commercial	30,000	Mixed commercial	2,083.00/ 1,000		62,490.00
					\$3,737,901.00

*From Road Impact Fee Schedule - Far Rural.

These fees will be applied to capital improvements as per the "Extraordinary Impact Fee Agreement" of August 19, 1998, between ACHD and Hidden Springs.

Mechanism For Initiating and Maintaining Each Phase

As approved by ACHD in the subdivision improvement agreement, each phase will include sufficient improvements to serve the new lots. These improvements will include the necessary project level road improvements.

Mitigation Of Adverse Economic Impacts

No adverse economic impacts were identified for the highway district as a result of this project.

Water System: Phasing of Improvements

The proposed water system plan includes two (2) categories of improvements: supply/storage and distribution (see water supply and water system Sections 8-13D-29 and 8-13D-30 of this Article for complete description of water supply and system alternatives).

The water distribution system will include water for domestic use as well as water for fire protection. These facilities can be extended incrementally as roads are built and lots developed.

Cost

The projected costs of these improvements are estimated to be:

	Phase I	Later Phases	Total
Project cost	\$ 224,000.00	\$ 84,000.00	\$ 308,000.00
Residential sites	<u>787,000.00</u>	<u>5,815,235.00</u>	<u>6,602,235.00</u>
Total	\$1,011,000.00	\$5,899,235.00	\$6,910,235.00

Mechanism For Initiating and Maintaining Each Phase

The initial phase of development is planned to include all improvements necessary to provide service.

The subsequent phases will respond to market conditions. Plans for each subsequent phase will include sufficient improvements to serve the new lots. These improvements will include the necessary reservoirs and distribution system.

The operator of the water system is United Water Company, which is responsible for all operation

and maintenance.

Mitigation Of Adverse Economic Impacts

Fees for service will be set to cover operating costs, fund depreciation, and provide a return on investment, consistent with regulations set by the Idaho Public Utilities Commission.

Sewer System: Phasing of Improvements

The proposed wastewater treatment plan calls for a community wastewater collection and treatment system based on an aerated lagoon biological treatment system with a treated wastewater storage impoundment. On some lots larger than two and one-half (2.5) acres, individual septic tanks will be used. The first system would be developed as part of the first phase.

Cost And Financing

The projected costs of the improvements are estimated to be:

	Phase I	Later Phases	Total
Project cost	\$ 500,000.00	\$ 667,213.00	\$ 1,167,213.00
Residential sites	<u>553,000.00</u>	<u>2,006,021.00</u>	<u>2,559,021.00</u>
Total	\$1,053,000.00	\$2,673,234.00	\$3,726,234.00

The cost of individual septic tanks for large lots is not included here but will be a cost to home builders.

Mechanism For Initiating and Maintaining Each Phase

The initial phase of development is planned to include all improvements necessary to provide service. The subsequent phases will respond to market conditions. Plans for each subsequent phase will include sufficient improvements to serve the new lots.

These improvements will include the necessary community collection and treatment systems.

The Hidden Springs sewer company will operate and maintain the wastewater treatment system.

Mitigation of Adverse Economic Impacts

Fees for service will be set to cover operating costs and fund depreciation, and there should not be any adverse financial impact.

Utilities: Utilities include power, telephone, cable TV and natural gas. These services must be extended to and throughout the development and will be located beneath or adjacent to streets and roads as were depicted in the roads and circulation plan map. These extensions will occur as development proceeds. The portion of the cost to be borne by the project is estimated to be:

Phase I	Subsequent Phases	Total
\$184,000.00	\$1,318,000.00	\$1,502,000.00

The cost of these improvements will be funded privately by the developer and potentially by capital investments by utility providers.

Mitigation of Adverse Economic Impacts

Fees for service will be set to cover operating costs, fund depreciation, and provide a return on investment, consistent with regulations set by the Idaho Public Utilities Commission.

Landscape And Trails: The trails/open space plan and landscaping plan include a variety of landscape features and recreational amenities: a greenbelt, pedestrian easements, trails, an equestrian center, preserve areas, a community center with recreational fields, and a community park.

The cost of the landscape, trail and recreational improvements are estimated to be:

	Phase I	Later Phases	Total
Landscape	\$214,000.00	\$ 958,000.00	\$1,172,000.00
Trails	156,000.00	168,000.00	324,000.00
Recreation	<u>20,000.00</u>	<u>600,000.00</u>	<u>620,000.00</u>
Total	\$390,000.00	\$1,726,000.00	\$2,116,000.00

These facilities will serve both residents of the community as well as other citizens of the County and elsewhere.

Maintenance of the open space and recreation features are anticipated to be provided by the community association or the developer. The improvements would be held in common ownership and maintenance would be funded by community association fees. Alternatively, some or all of these amenities could be conveyed to the County Parks Department or some public or quasi-public entity upon completion.

Mechanism for Initiating and Maintaining Each Phase

Landscape and recreational features will be developed in phases along with the other infrastructure items. The features developed in each phase are created to assure the marketability of the project. The additional membership of homeowners as development proceeds will provide additional community association resources to maintain the facilities.

Mitigation of Adverse Economic Impacts

There are no adverse economic impacts identified for providers of these public services.

Schools: The economic impact analysis included in this application considers the school facility needs associated with the community. The development would require the following portion of the capacity of the indicated prototype school facilities:

	Phase I	Subsequent <u>Phases</u>	Total
Elementary	6.2%	34.1%	40.3%
Junior high	1.9%	10.7%	12.6%
High	1.0%	4.2%	5.2%

Initially, the students can be bussed to existing schools.

The Boise School District estimates the cost of a prototype facility to be approximately:

Elementary	\$6 million
Junior high	\$16 million
High school	\$25 million

Accordingly, the cost attributable to enrollment for the development at build-out would thus be:

Elementary	\$2.4 million
Junior high	\$2.0 million
High school	\$1.3 million

The district has recently constructed a new elementary school (Bogart Lane) and junior high (Gary Lane) which will in part service the Hidden Springs area. The district will likely require additional sites as growth continues in this general area. A school site will continue to be made available to the district.

The cost of new schools is typically funded by bond issues. However, with the development of the community, the new homeowners will share in paying off unfunded capital costs (outstanding bonds issued to construct existing school facilities) as well as the capital costs of additional facilities constructed in the district.

Mechanism for Initiating and Maintaining Each Phase

As noted, the district has recently constructed new schools in the general area of the project. This is an outcome of a recent successful bond election.

Mitigation of Adverse Economic Impacts

As presented in the economic impact analysis, the lag in collection of property tax would result in required expenditures exceeding revenues in the first year after homes are sold in phase I. However, the surplus in the second year would offset that deficit, and surpluses would exceed expenditures in every year thereafter.

Fire District: It is estimated that Hidden Springs (including the 1999 annexation of 120 acres reduced to ninety-seven (97) acres due to the transfer of twenty-three (23) acres to Cartwright Ranch planned community in 2007) would require thirty-five percent (35%) to forty percent (40%) of the service capacity of a new fire station. Such a station would also serve the growing population outside Hidden Springs.

A new fire station is presently being constructed in Hidden Springs. The station will be operated by the North Ada County Fire and Rescue District (NACF&R)

Cost and Financing of Improvements:

A new fire station is estimated by the district to cost:

Building	\$612,180.00
Equipment	\$337,000.00
	\$949,180.00

Mechanism for Initiating and Maintaining Each Phase:

As per the agreement between Hidden Springs community LLC and North Ada County Fire and Rescue, fifty percent (50%) of the tax revenue collected by NACF&R from the development area will be used to pay back Hidden Springs for the construction of the new station.

Mitigation of Adverse Economic Impacts:

The economic impact analysis concluded that there would be no adverse impacts related to the development.

Other Jurisdictions: The economic impact analysis did not identify any other capital facility needs. Further, there were no adverse impacts from operation other than a shortfall to the County in the first year after homes are sold, because of the lag in recognizing increases in assessed valuation. However, services could be provided at adequate levels within the revenues available in that year.

Financing Plan: The costs of the essential public services necessary for the community and the additional amenities discussed above will be provided either by the developer of the project or from a local improvement district (LID) or other governmental or quasi-governmental agency formed for the specific purpose of providing such financing.

With respect to an LID or other governmental or quasi-governmental agencies, as a potential source of financing for a variety of improvements, including public roads and streets, sewer, water, landscaping, trails, and other community facilities "The governing body of any municipality has the power to make or cause to be made any one or more of the following improvements. [Excerpts only]

- 1) To establish grades and layout, establish, open, extend and widen any street, sidewalk, alley, or off-street parking facility;
- 2) To construct, improve, repair, light, grade, pave, repave, surface, resurface, curb, gutter, sewer, drain, landscape and beautify any street, sidewalk, or alley;
- 5) To plant, or cause to be planted, set out, cultivate, and maintain lawns, shade trees or other landscaping;
- 8) To acquire, construct, reconstruct, extend, maintain, or repair parks and other recreational facilities; ..."

Under an LID, bonds would be issued to finance improvements with bonds repaid through assessments on the Hidden Springs property. The developer would be responsible for assessments on each parcel until it is sold to a homebuilder and ultimately a homeowner.

A local improvement district could be formed by Ada County, the Ada County Highway District or other applicable governmental entity with the approval of sixty percent (60%) of property owners (in this case the developer). Bonds are issued, secured by the development parcels. If the developer or subsequent homebuilder or homeowner fails to pay assessments, the local improvement district forecloses on the property. The risk of adverse impact on the issuing agency because of foreclosure is reduced in three (3) ways:

- By statute, the value of the assessment cannot exceed the value of the real property including improvements. There should be adequate value received in the event of foreclosure.
- As a practical matter, the value of the property should greatly exceed the assessment.
- A guarantee fund can be set up, funded by a bond process to provide monies to make bond payments.

In summary, an LID or LIDs may be used to fund some of the essential public services and other amenities. As noted earlier, whether such improvements are financed privately by the developer or through an LID, the costs of the improvements are borne by current and future property owners.

Financial Assurances: The applicant, Grossman Family Properties, is an affiliate of Grossman Company Properties, one of the premier developers in the western United States. Founded in 1964 by Sam Grossman, a twenty-five (25) year resident of Idaho, Grossman Company Properties has been involved in the acquisition, development and management of shopping centers, hotels, mixed use developments, residential and mobile home communities, as well as agricultural and land development projects throughout the west for over thirty-two (32) years.

Grossman Company Properties is also one of the financially healthiest and most active developers in the country. Current development projects include the recently completed thirty-three-million-dollar (\$33,000,000.00) renovation of the Arizona Biltmore hotel and resort in Phoenix, Arizona. With over one hundred fifty-five (155) employees and offices in Phoenix, Arizona, and Boise, Idaho, Grossman Company Properties is one of the most experienced and successful developers in the west.

As part of the application for each plat of Hidden Springs, a detailed outline of anticipated construction costs and operating and maintenance budgets will be submitted. The plat application will also identify specific responsibilities and appropriate assurances for financing of improvements and ongoing maintenance and operation of essential public services.

8-13D-9-38: Zoning Map

The official zoning map is on file with the Ada County Development Services Department.

8-13D-39: Hidden Springs Legal Description

The Hidden Springs planned community legal description is as set forth in Ada County ordinance 705.

8-13D-10: Design Requirements

8-13D-10-1: PURPOSE AND INTENT STATEMENT:

Overall Purpose/Intent: The following guidelines illustrate the general level of design and development control which Hidden Springs intends to apply to development of the residential and nonresidential parcels within the overall project. A design review committee (DRC) will be set up to review site plans, architecture and landscape designs in Hidden Springs. The DRC reserves the right to modify these standards to be more restrictive or different in design character, as long as general project intent and theme is maintained. DRC responsibilities will include the review of building plans, elevations, materials, colors, fencing, signage, lighting, landscaping and parking arrangements prior to permit application to Ada County.

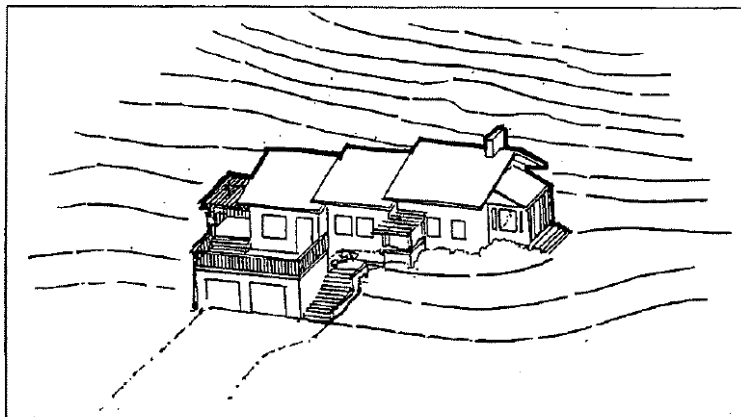
Specific responsibilities and standards will be further defined in the Declaration of Protective Covenants, Conditions and Restrictions (CC&Rs) which will also serve to control development at

Hidden Springs. The DRC shall have sole authority in determining compliance with the CC&Rs and design guidelines.

8-13D-10-2: Architecture

Hidden Springs is not intended to be developed with one prevalent architectural style. Variety in the architecture is encouraged. An emphasis, however, will be placed on indigenous architectural styles, the use of quality materials and complementary relationships between building and site design features.

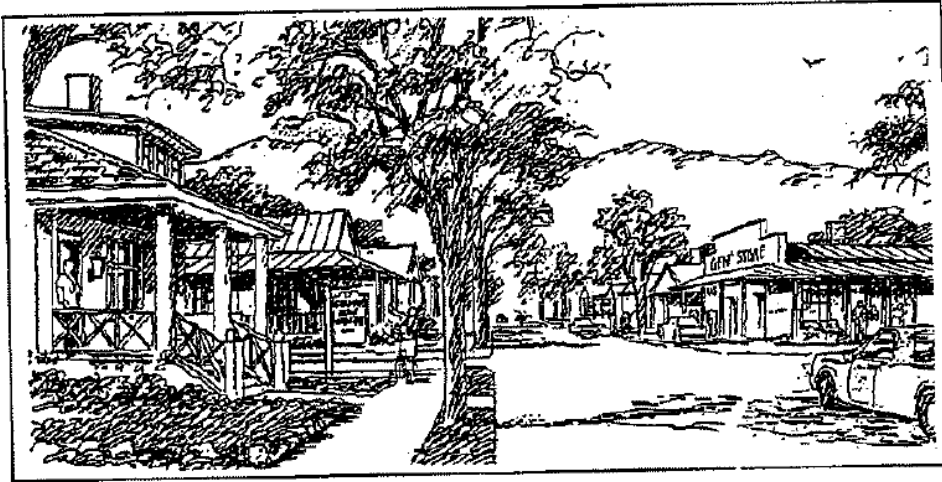
1. Building scale and height should relate to topography, lot sizes and setbacks. A mix of one (1) and two (2) story units in the rural residential neighborhoods will be encouraged. Custom homes on slope sensitive lots should use hillside adaptive design techniques such as post and beam construction and daylight basements to minimize streetside and rear yard facade exposure. Building heights in village and town home residential neighborhoods and nonresidential uses may be taller but should have a massing and scale compatible with adjoining residential uses.
2. The visual bulk of hillside residential development should be reduced so structures do not stand out prominently when seen from a distance. Building form should conform to site topography, and not overshadow natural site features. Step structures with slope and cut into hillsides should be utilized to reduce visual bulk.



Step building with natural grade to
reduce visual bulk.

3. Building height should be minimized on highly visible ridge areas by avoiding multi-story houses that "skyline" on ridges and by locating residential buildings so as not to impact views near ridges.
4. A mix of housing styles and types is encouraged. No adjacent single-family detached home will be permitted to have the same plan, elevation, or color. Variety in elevations and materials is essential.
5. Homes on farm/ranch, rural and large lots shall have side or rear-entry garages (garage doors not directly facing the street). Homes on village lots shall provide rear-entry garages where access is provided.
6. Private exterior living spaces such as porches, decks and patios are encouraged in the design of each unit in the village and town home neighborhoods.

7. Roof pitch variations are preferred. No flat roofs or rock covered roofs are permitted. Tile, concrete tile, architectural grade composition shingle or other materials approved by the DRC are permitted. Wood shake roofs are prohibited.



Porches

8. Passive solar designs, energy and water conservation measures are encouraged.
9. Building materials and color schemes should blend with the natural landscape of earth tones and grassland vegetation but minimize fuel potential for wildfires. The use or incorporation of fire resistant or treated wood, stone, and/or brick on exteriors is encouraged. Material changes, fenestration changes and variations of wall and window surface planes are also encouraged. In order to avoid the appearance of a false applique, no material changes shall be allowed on corners or where structures abut common areas. If material changes occur, they must occur at logical changes in building form.
10. Windows shall be sensitively placed to protect privacy of adjacent residences.
11. View corridors are critical to and from all open spaces. The siting of buildings, accessory structures, fences, etc., and their impact on views and adjacent uses shall be carefully considered.
12. Mechanical equipment on roofs, aboveground transformers, satellite dishes, active solar panels, utility equipment and loading, service and storage areas shall be screened from view from the streets, pathways, public areas, and adjacent uses. Trash enclosures and maintenance structures shall be designed to be compatible in style, materials and colors with the main building and shall be of masonry type construction.

8-13D-10-3: Site Design

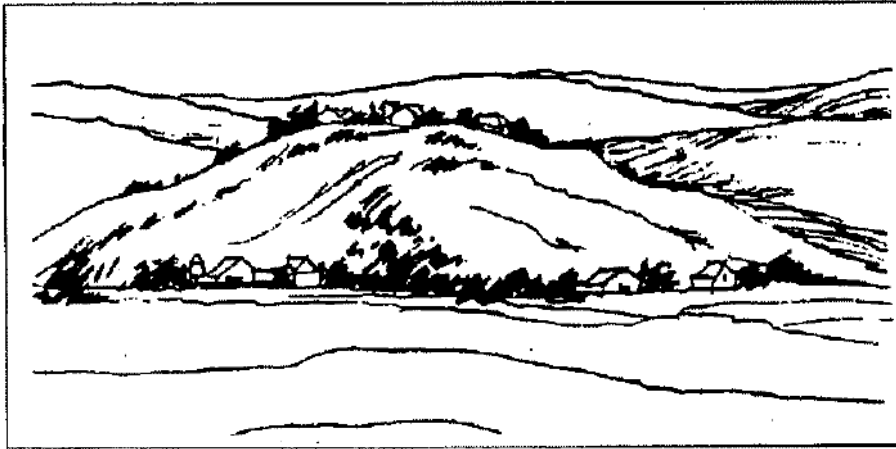
Parcel developers, builders and lot owners will be encouraged to use innovative and environmentally responsive techniques in designing the final configuration of lots, buildings, roadways, drives, etc. These techniques include, but are not limited to, the following:

1. Minimize development intensity in the highly visible valley floor and concentrate development in more hidden valley coves.



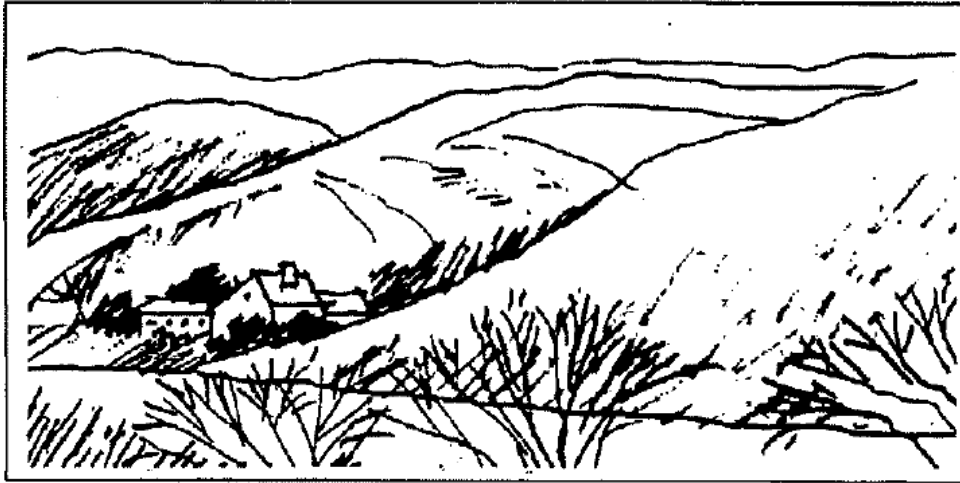
Low density development of valley floor.

2. Minimize development on highly visible hillside slopes. Keep development predominantly at the top and base of slopes.



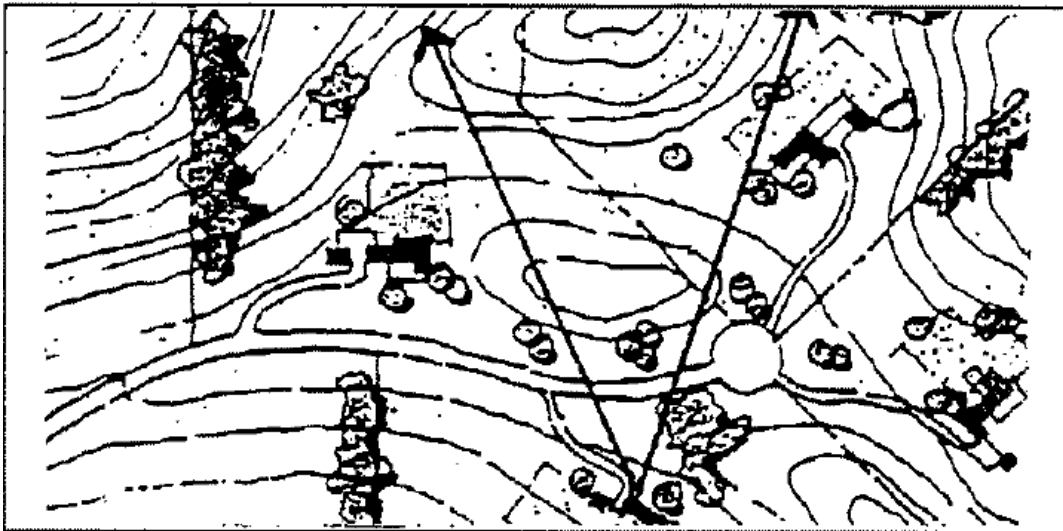
Minimize hillside/ridge development.

3. Cluster buildings to maximize contiguous open space and minimize disruption to native vegetation.
4. Tuck buildings into topographic folds and site ridge-top units in saddles to minimize "skylining."



Tuck development into topographic fields.

5. Offset and stagger building envelopes on rural residential lots to permit views between units and prevent the formation of a uniform wall of building faces.



Offset building pads to permit views between units.

6. On village and town home lots, buildings should align on build-to setback line to create a uniform edge to the town center streets.
7. Keep views at the terminus of roadway intersections open to amenities, open space, and creek beds.

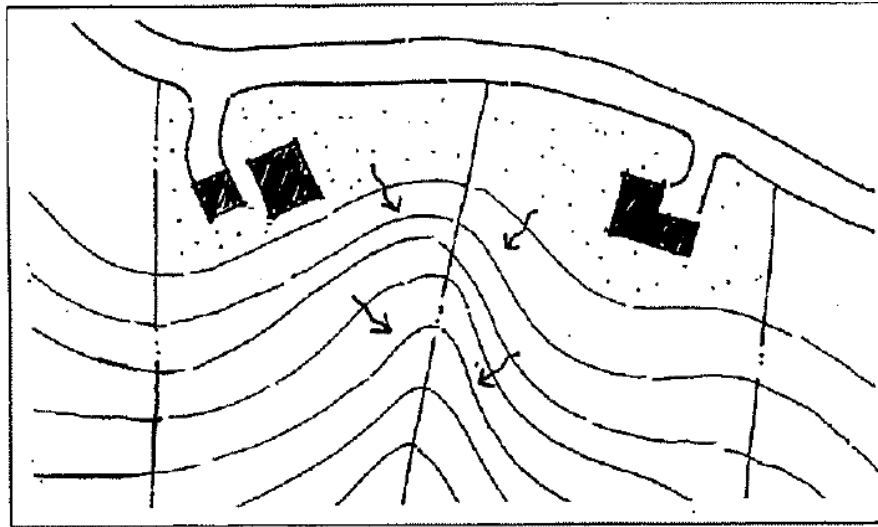
8. Avoid steep slopes (>25%) and soils with poor bearing capacities.
9. Site buildings to capitalize on passive cooling/heating.

8-13D-10-4: Site Grading and Drainage

Introduction: Lots in the residential neighborhoods will be individually graded in a site sensitive manner to reduce impacts. Cut and fill slopes along roadways will be carefully designed to minimize visual impacts. Grading and revegetation guidelines are outlined below and shall comply with Ada County and Central Health Department requirements. Grading and drainage should be kept to a minimum and should be performed in a way that respects significant natural features and visually blends with existing topography. Carefully analyze existing soil and naturally occurring drainage patterns prior to development to minimize grading and its impact on the overall drainage basin. Detailed geotechnical and hydrological reports may be required prior to grading activities.

Guidelines:

1. All disturbed areas shall be revegetated or restored, with proper erosion and dust control methods. Stockpiling, erosion, and loss of topsoil shall be minimized.
2. Revegetation shall be done as soon as possible after finish grading has been completed, usually in early Spring or in the early Fall.
3. Topsoil that is removed shall be centrally located with respect to construction phasing. The stockpile may also be protected by seeding, watering, mulching, or covering.
4. All grading shall follow Ada County requirements. Slopes of three to one (3:1) or less are preferred with overall finish grades blending with natural landforms to the greatest extent possible. Slopes greater than three to one (3:1) shall be stabilized through such means as terracing or planting. Custom retaining walls and landscaping must be used to screen cut and fill areas. Minimize grading on slopes greater than twenty five percent (25%). Soften slope banks through use of contoured grading at toe and top of slope. Provide rounded transitions and variable slope gradients. Avoid rounded long slopes with sharp transitions.
5. Individual site sensitive grading, as well as appropriate hillside adaptive construction, shall be provided on hillside lots, and shall be reviewed and approved by the DRC.
6. Detention basins, silt drains, and fences and temporary revegetation should be used in conjunction with other earthwork operations for sediment and drainage control during construction.
7. Avoid construction in areas with unstable soils that may require costly construction and greater impacts to natural conditions. Provide erosion control measures on cut and fill slopes, and on highly permeable soils. Locate individual septic systems carefully to avoid ground water impacts.
8. Use naturally occurring drainage patterns to avoid increased runoff and potential erosion problems. Use grass swale and detention ponds for gradual release and ground water recharge.



Utilize naturally occurring
drainage patterns.

9. Encourage split-level building to minimize grading and complement natural slope.
10. A graded slope that exceeds thirty three percent (33%) or eight feet (8') in height shall have special slope treatment and/or retaining walls that stabilize the slope and minimize scarring. Minimize tall visible retaining wall structures by stepping with grade. Use natural materials (stone, wood, etc.) and natural colors for retaining walls wherever practical.

8-13D-10-5: Landscape Design

Introduction: The landscape, both existing and proposed, is an integral element of the rural character at Hidden Springs. The preservation and enhancement of traditional landscape elements, such as hedgerows, agricultural fields, tree groves, and treelined stream corridors, are critical to maintaining the rural character of Dry Creek Valley.

Additional landscaping should be added to enhance the aesthetic quality of the community and serve a wide variety of functions, including glare reduction, visual screening, wind buffer, spatial definition, highlighting architecture, guiding circulation, and creating wildlife habitat.

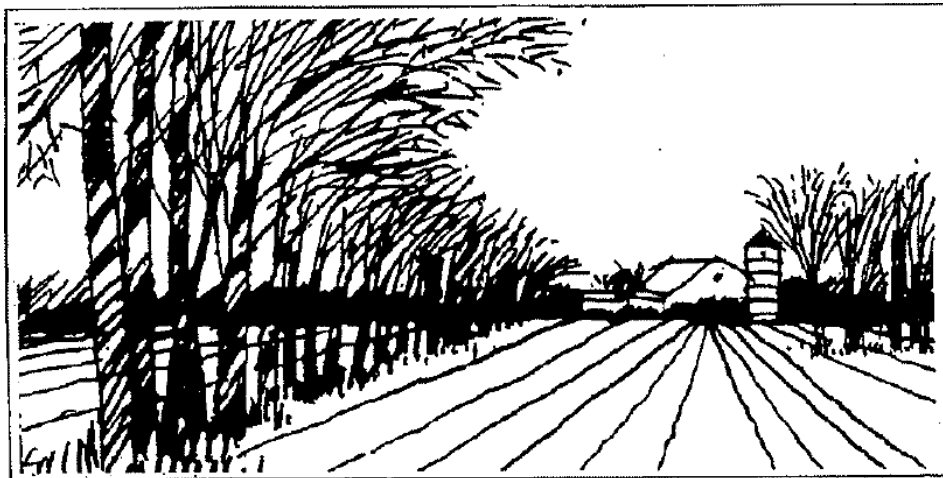
Landscaping within Hidden Springs shall integrate resource efficient design measures and environmentally compatible plants to ensure drought-resistant and water- conserving vegetation is an integral part of the design. All landscaping within the project should be provided in accordance with the requirements identified in the Hidden Springs Specific Plan.



Tree groves

Guidelines:

1. Colors and textures of plant material should be consistent within the overall project common areas yet vary within the individual residential clusters or parcels in order to create unity in the common areas and variety in the individual parcels.
2. The ultimate mature size of plants will be evaluated on maintenance, life span and functional requirements. In areas where screening is needed, plants should be selected upon their form and branching density.
3. A series of linear rows of trees, or "hedgerows," should be planted in the valley floor to help maintain the site's rural character and break down the scale of the residential villages.
4. Street trees of significant size should be planted in the Village Center to shade sidewalks, parking, and roadway, and to minimize reflected solar heat.



Hedgerows

5. All plant materials should be evaluated in terms of how well they enhance the architecture, existing plant material, enclose spaces and link various activities within Hidden Springs.

6. Climate influences should be considered in order to get maximum gain out of plant material. Deciduous plants along the south side and west side of buildings will be recommended since they provide summer shade while allowing winter sun to enter the building. Special consideration shall be given to trees with tap roots and/or noninvasive root growth.
7. Plants selected should be grouped/zoned according to water consumption rates and soil requirements. To aid in water conservation, plantings should be confined to planting beds. The use of mulches at appropriate depths shall also be encouraged.
8. Plants which require little maintenance should be favored over those which require constant spraying and pruning. Special attention shall be given to appropriate plant spacings, as this will reduce unwarranted pruning.
9. Plant life cycle should be considered with plant materials. An appropriate mix of slow, medium, and fast growth rates shall be encouraged. The result of a proper mix will be a long living, increased drought tolerant and disease resistant stand of vegetation.
10. Proper turf management aids in soil erosion control, dust stabilization, temperature moderation and high ground water recharge. The type and selection of turf areas should be selected in the same manner as all other plantings. When seeding or sodding a new lawn, the best management practices appropriate for the Treasure Valley and this specific property should be utilized. When hydro-mulching, the grass seed should be mixed into a slurry of water and cellulose and sprayed into the seed bed so that seed, mulch and even a permanganate fertilizer can be applied in one step.
11. Irrigation is critical for healthy plant material, with deep watering the best way to apply water. This promotes deeper roots which are not as susceptible to drought.

All permanent systems are to be below ground and fully automatic. Use of water conserving systems including, but not limited to, drip irrigation and moisture sensors is strongly encouraged. Irrigation heads, where used, are to be adjusted to minimize runoff. All irrigation heads adjacent to paved areas, curbs and turf shall be of pop-up type.

Backflow control devices are to be located so as to minimize their adverse visual impact. In addition, such control devices shall be screened by shrubs.
12. Undeveloped lots or portions of lots outside the building envelope should not be irrigated or ornamentally landscaped. These areas should, however, be enhanced with native, drought- resistant shrubs, grasses, and wildflowers to minimize weed growth and erosion.
13. Preserve mature trees, hedgerows, and wood lots, and incorporate as design elements of proposed developments.



Preserve existing mature trees.

14. Utilize open space and landscape buffers to transition from differing land uses, for example farm and rural lots to town center.
15. Encourage buffers between conflicting uses in the Village Center areas (residential vs. commercial), and on farm lots (agricultural practices vs. residential). Planting buffers should screen all off-street parking areas to the maximum extent practical.
16. Avoid plantings that obstruct sightlines at intersections and obstruct access to utility equipment.
17. Provide transition areas with low fuel volume plants where high fire hazard areas occur, (adjacent to undeveloped valley, grasslands, wooded hillsides).



Select trees for height, form and density.

18. Require all new landscaping material to be drought tolerant, native and from a list of less palatable and nonpalatable (to wildlife) plant species.
19. Encourage replanting of wildlife food species and plant species which enhance critical habitat for wildlife.
20. Prohibit the installation and require the complete removal of noxious plants and weeds within the development envelope.



Use orchards as screens.

Approved Plant List	
Botanical Name	Common Name
Trees	
Acer grandidentatum	Rocky Mountain Maple
Alnus sinuata	Sitka Alder
Amelanchier alnifolia	Serviceberry
Celtis occidentalis	Hackberry
Crataegus sp.	Hawthorn
Gleditsia triacanthos	Honey Locust
Populus sp.	Poplar
Pyrus calleryana	Bradford Pear
Rhus typhina	Sumac
Shrubs/GroundCovers	
Artemesia tridentata	Big Sage
Atriplex canescens	Fourwing Saltbrush
Caragana arborescens	Siberian Pea Shrub
Cercocarpus montanus	Mountain Mohogany
Chaenomeles sp.	Quince
Chrysothamnus nauseosus	Rubber Rabbitbush
Cornus stolonifera	Asanti Dogwood
Cornus stolonifera "Bailey"	Redtwig Dogwood
Cornus stolonifera (Kelsey Dwarf)	Shrub Dogwood
Elaeagnus angustifolia	Russian Olive
Mahonia repens	Creeping Oregon grape
Physocarpus opulifolius	Ninebark
Philadelphus lewisii	Syringa
Potentilla sp.	Cinquefoil
Prunus sp.	Spiraea
Rhus trilobata	Oakbrush Sumac
Ribes sp.	Current
Rosa woodsii	Woods Rose
Salix exigua	Sandbar Willow
Symphoricarpos albus	Snowberry

8-13D-10-6: Signage

Introduction: The signage and graphics program within Hidden Springs will follow the overall "ranch" theme of the project. Signage will further reinforce design concepts and provide identification for the residential areas and nonresidential uses. Signage will also be provided for traffic control, along pathways and for public information purposes. In all cases, signs will be kept simple to reduce, not contribute to visual clutter.

Signage throughout the project shall be consistent and compatible. Sizes, styles, and configurations will vary depending on the specific purpose, activity level and building materials.

Guidelines:

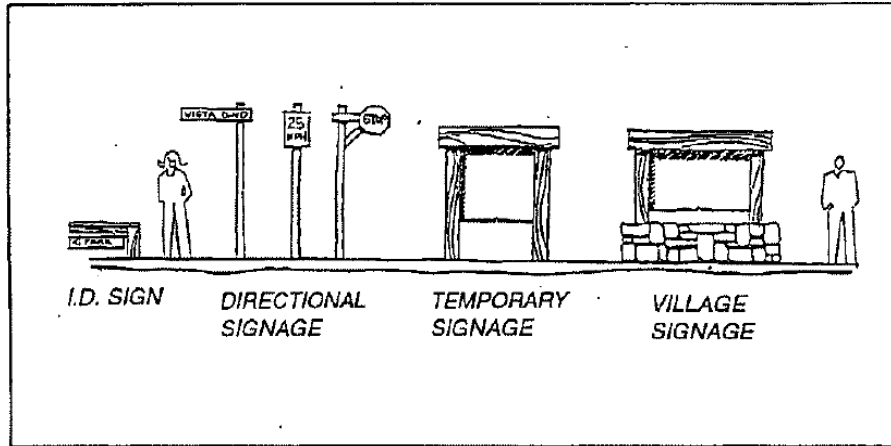
1. General:

- a.** Lighting and landscaping shall be considered an integral part of all signage proposals.
- b.** Regardless of style, signs constructed of brick, concrete, wood, stucco, stone, and other natural materials with painted or relief cut letters are encouraged.
- c.** Prohibited signs shall include:
 - Signs which constitute a hazard to traffic of pedestrians;
 - Signs located within any stream or drainage channel;
 - Mobile signs or portable signs; balloons, flags, or kite style signs;
 - Inflatable signs;
 - Signs which produce odor, sound, smoke, flame, or other emissions;
 - Signs which imitate or simulate official signs, or which use yellow or red blinking or intermittent lights resembling danger or warning signals;
 - Signs using strobe lights or individual light bulbs exceeding 75 watts;
 - Signs on public property or right of way or signs attached to utility poles, streetlights, fences, barns, sheds, or other similar structures; and
 - Roof signs and billboards.
- d.** Free-standing signs should be in proportion/scale to surrounding elements. Emphasis should be placed on sizing signs in relationship to the vehicular vs. pedestrian traffic they serve. Sign faces should only be large enough to accommodate the minimum typeface size and quantity needed to convey the intended message.

2. Residential Signage:

Identification signs will be provided at project entrances as part of the overall entry statement to Hidden Springs. Each residential area may have its own entry statement and signage theme or color combinations.

Monument signs, piers, walls, freestanding monolith/pylons shall be used.



Signage should be proportional in scale to surrounding uses.

- Project or residential identification signs shall not exceed six feet (6') in height or one hundred twenty (120) square feet in area and may be provided on each side of an entrance street. Lighting of residential entrance identification signs shall be indirect, with screened wall or ground-mounted light sources.
3. Commercial Signage: Commercial signage shall be kept small and subdued to respect the residential character of the community. Commercial establishments shall have a maximum of one identification sign either hung directly on the front facade of the structure from a porch column or roof, or on a post at the entry wall. Commercial signs shall not exceed forty-eight (48) square feet in area on facades and twenty-four feet (24') if hung from a freestanding post.
 4. Special purpose signs:
 - a. Directional, informational, and regulatory signs shall not exceed six feet (6') in height or sixteen (16) square feet in area and shall be compatible throughout the project.
 - b. Temporary signs shall not exceed six feet (6') in height and twenty- four (24) square feet in area. The location and number of temporary signs shall be subject to approval by the DRC.
 - c. Political signs are permitted to be displayed only on private property and only two (2) weeks prior to an election. They must be removed twenty-four (24) hours after the election.

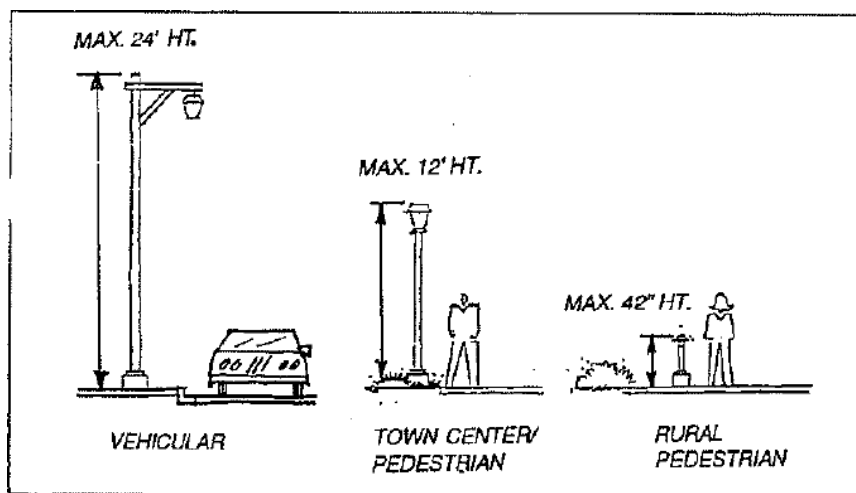
8-13D-10-7: Lighting

Introduction: Lighting in the Hidden Springs community should serve different purposes in the Village Center and rural/residential areas. In the Village Center, small scale intimate lighting for streets, sidewalks, building entries and residential lots is encouraged. In rural residential and along rural roads, lighting should be minimized to reduce light pollution in the community. Main intersections should be lighted for safety purposes only. Lighting shall be functional and efficient, while keeping with the design themes of Hidden Springs. Lighting will vary from larger scale illumination of major roadways to intimate lighting of pathways, building entries or residential

lots. In general, to reduce light pollution in the development, overall lighting shall be minimized. Lighting guidelines are outlined below.

Guidelines: All lighting shall be in accordance with the Hidden Springs Zoning Ordinance and subject to approval by the DRC.

1. Fixtures will be of a scale consistent with use.
2. Light fixture style, type and color shall be consistent and compatible throughout the project. The style of light standards along public streets shall be subject to the approval of Ada County and ACHD.
3. In all cases, lighting shall not extend beyond its tasks. Cut-off fixtures shall be used as appropriate.



Lighting fixtures should be proportional
to surrounding uses.

4. Illumination levels shall not be in excess of what is required. Lighting design shall address specific functions of activity areas. Site lighting shall be indirect in character.
5. If lighting for signage is provided, it shall relate to signage and graphics and shall heighten the visibility and appearance of signage.
6. Lighting fixtures shall be located so as to minimize shadows and interference.
7. Spillover lighting shall not be permitted. Lighting shall reflect away from adjoining properties.
8. Energy consumption shall be considered in determining lighting fixtures.
9. Light fixtures and sizes should match architectural style of buildings and be proportional to them.
10. Illumination levels should not exceed minimum required levels for its purpose. Design should address specific activities to be lighted.
11. Use of low wattage high life lighting products is encouraged. Use of photo voltaic or other renewable energy sources should be explored.

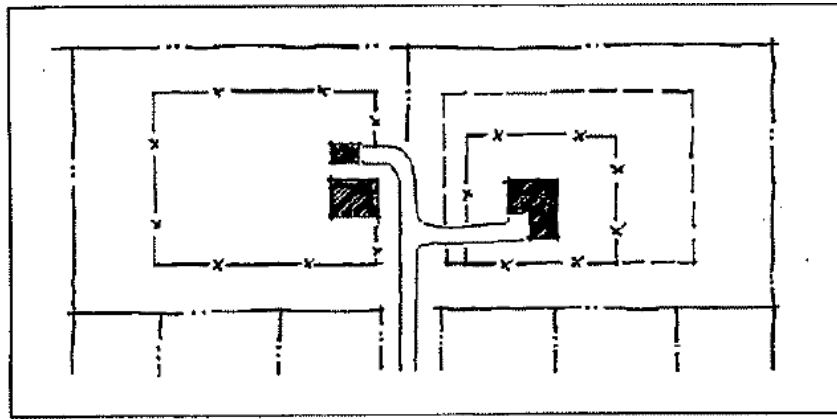
8-13D-10-8: Fences and Walls

Introduction: Fencing will be used for safety and security purposes, to control pets, enhance area themes, delineate uses and for screening. All fencing shall be approved by the DRC.

1. A consistent fencing theme will be required throughout each individual residential area at Hidden Springs.

Guidelines:

1. Fencing on farm/ranch and rural lots shall be located within the building envelope. Additional perimeter fencing may be permitted in conjunction with agricultural practices. (See subsection 8-13D-5C2 of this Article.)



Perimeter fencing of building envelope.

2. Fencing on large lots shall be located within the building envelope without exception.
3. Village and town homes are encouraged to have perimeter fencing located on the perimeter lot lines.
4. Fencing within front yards shall be limited to low (maximum 42-inch height) picket and rail style fencing, walls, hedges, etc. Taller, more opaque fencing should be used in rear and side yards where screening is important. Taller, more opaque rear and side yard fencing should terminate into the sidewalls of residence at least five feet (5') behind front/streetside facade.
5. Adequate site distances shall be maintained along roadways and intersections per Ada County codes and ordinances.

8-13D-10-9: Wildlife Conservation

1. The clustering of buildings and related landscape is encouraged to maximize contiguous open space.
2. Fencing across critical migration corridors will be limited to a maximum height and minimum kick space as recommended by Idaho Department of Fish and Game. If barbed wire fencing is used, the bottom wire shall be smooth.
3. All new landscape material on lots outside building envelopes will be required to be

drought tolerant, native and from a list of less palatable or nonpalatable plant species.

4. Replanting of wildlife food species and plant species which enhance critical habitat is encouraged.
5. The installation of noxious plants and weeds within the designated development envelope is prohibited by the builder or homeowner, and existing materials must be removed.
6. Builders are required to employ "best practices" grading techniques including incremental phasing/repairation, dust controls, grading limit fencing, etc.
7. Modifications to natural drainageways are limited to those which are absolutely necessary or those which increase the effectiveness of the drainageway in carrying storm water and accommodating wildlife.
8. Exposed dumping and composting is prohibited (covered composting is permitted).
9. Residential trash is required to be kept inside the house, garage, or appropriate enclosure until the morning of trash collection. Encourage trash containers to have attached lids.
10. Dogs and cats are required to be in latchable carriers or on leashes when outside the residential or commercial lots during critical migration periods as determined by Idaho Fish and Game.
11. Contractors will be prohibited from bringing dogs to construction sites.
12. Motorized vehicles will be limited from roads and trails (four-wheel drive vehicles, snowmobiles, and motorcycles) except for construction, fire, emergency, and maintenance vehicles.
13. Wildlife educational materials will be included and an acknowledgment of wildlife presence and the potential for property damage in the project's homeowners' documents.
14. Big game crossing signs will be posted at major crossing points along Cartwright Road and Dry Creek Road (maximum four [4] signs). Where wildlife and development conflicts continue to occur despite these measures, Hidden Springs will work with local, State and Federal agencies in an attempt to resolve these conflicts.

APPROVED AND ADOPTED this _____ day of _____, 20____.

Board of Ada County Commissioners

By: _____
Rod Beck, Chairman

By: _____
Ryan Davidson, Commissioner

By: _____
Thomas Dayley, Commissioner

ATTEST:

Trent Tripple, Ada County Clerk

PUBLISHED: _____